

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF TEXAS — FORT WORTH DIVISION
Copeland v. Weinstein Management Co., Inc., et al.

EXHIBIT

29

**Defendants' Combined Motion for Traditional and No-
Evidence Summary Judgment, filed May 11, 2026 (144
pages)**

Legal Element Supported:

Fourth Formal Corporate Ratification; contradicts Defendants' own Sept. 8 contractor report

Verified Complaint Reference:

¶¶ 6, 45, 94

CAUSE NO. 141-370402-25

WEINSTEIN MANAGEMENT CO., INC. AND WMCi DALLAS XC, LLC	§	IN THE DISTRICT COURT OF
	§	
Plaintiffs	§	
	§	
VS.	§	TARRANT COUNTY, TEXAS
	§	
KATHRYN COPELAND,	§	
	§	
Defendant	§	141ST JUDICIAL DISTRICT

**WEINSTEIN’S COMBINED MOTION FOR
TRADITIONAL AND NO-EVIDENCE SUMMARY JUDGMENT**

TO THE HONORABLE JUDGE OF SAID COURT:

COME NOW, Plaintiffs/Counter-Defendants Weinstein Management Co., Inc. and WMCi Dallas X, LLC (hereinafter referred to collectively as “Weinstein entities”) and make and file this their Combined Motion for Traditional and No-Evidence Summary Judgment, and in support thereof would respectfully show unto the Court as follows:

I.

FACTUAL AND PROCEDURAL BACKGROUND

Factual Background

Weinstein entities are the owner and operator/management company of an apartment complex in Fort Worth, Texas called The Bowery at Southside. Copeland was a tenant at The Bowery (until her lease expired October 26, 2025), who contends that she has suffered various injuries and damages in relation to the presence of mold, in the apartment she leased.

Weinstein contend that Copeland has exacerbated and/or contributed and/or caused any purported complained of condition in the apartment, that she is responsible for any injuries/damages purportedly sustained, that she interfered with and/or acted in a manner to

substantially delay (and at times halt) Weinstein’s remediation and/or repair efforts and that she has, otherwise (and additionally) failed to mitigate her damages.

On March 5, 2025, Copeland made a complaint that she found “mold” near the entry door to the apartment unit she leased from the Weinstein entities. Maintenance staff promptly responded; the area was determined not to be mold, and was wiped clean. Copeland emailed later that day, stating that ChatGPT had informed her how “dangerous” mold could be.

Copeland made no additional claims regarding “mold”. She complained on June 3, 2025 that she heard “water” in her HVAC unit. No mold was determined, and the HVAC unit was repaired/serviced. In the next weeks, Copeland began building a case for “mold” exposure (even though she had not yet made a complaint of “mold” to the Weinstein entities): she contacted a mold attorney, who provided her with a framework of how to build a case against her landlord; she acquired a witness statement [from a witness she has refused to properly disclose]; she saw a doctor who documented “mold exposure” [a full week prior to any mold testing]; and she obtained a mold assessment. On June 18, 2025, Copeland again complained of hearing “water” in her HVAC closet. Upon inspection, Weinstein discovered a small amount of material that appeared to be mold. 9 days later, on June 27, 2025, Copeland made a complaint/DTPA demand relating to new claims of mold: for the first time, in her guest bedroom and/or baseboard outside the HVAC closet, and a renewed claim that discoloration besides her entry door was “mold”.

Texas law requires that, in order for mold to be “regulated” (that is, to fall within the statutory framework of the Texas Mold Assessment and Remediation Rules), that mold must meet specific requirements: the mold must be “indoor mold”; the mold must be “visible”; the mold must meet the definition of “total surface area of contiguous square feet”; and the “total surface area” must be “25 contiguous square feet or more”. If mold fails to meet these requirements –

regardless of the genus of mold, it does not require professional remediation.

The initial mold assessment (performed by BioTex – a vendor hired by Copeland) – contended, incorrectly, that a mold condition existing within the apartment unit leased to Copeland met these conditions. However, this contention was incorrect. **BioTex failed to identify any “visible” mold – and further failed to find a “total surface area” of “visible mold” that was “25 contiguous square feet or more”.** Instead, BioTex ripped off a baseboard and drilled a hole into a wall cavity – in order to “uncover” mold which was not visible upon mere visual inspection. This was not in accordance with accepted methodology for performing mold inspection. As a result, BioTex reached a flawed and insupportable conclusion that “regulated mold” existed within the apartment, in part based on an unsubstantiated conclusion that the air around the baseboard counted as the “total surface area” of “visible” mold. BioTex further made a wild claim – far outside the scope of its licensure – that due to a mold condition, the apartment was “unfit for human occupancy”.

Based on these two flawed conclusions – that mold which required professional remediation existed in the apartment, and that the mold rendered her apartment “unfit for human occupancy”, Copeland demanded that only a licensed mold remediator work on her apartment, and that she further be provided with a list of amenities – including luxury hotel accommodations, pet boarding services, food, transportation, and medical expenses (for a mold “injury” she had yet to identify).

The Weinstein entities retained an industrial hygienist, Robin Franks, who refuted that any “regulated” mold existed in the property. She examined the manner in which BioTex performed its flawed inspection/investigation, and documented the departures from accepted methodology (and the effect of same). She concluded that there was no regulated mold in the unit (that there

was no evidence of visible mold, and no evidence of visible mold that covered 25 contiguous square foot or more.

Copeland then made reports and/or complaints to various and numerous local, state and federal agencies regarding Weinstein, the condition of the apartment and the manner in which the condition of the apartment is/was being handled/repared/remediated and in so doing, failed to provide complete and/or relevant information to these various third parties- particularly as related to her own actions/conduct which served to prevent timely repair/remediation of the apartment.

During the time that Copeland contends the apartment contained mold and needed remediation/repair (which she actively prevented from being able to move forward), Copeland failed to pay rent (from August 2025 forward) and while contending/complaining to third parties and to this Court that the apartment's condition was uninhabitable and/or unhealthy and/or unsafe- continued to frequent the apartment, kept numerous amounts of personal property items there and for a time, returned to the apartment to live (while Weinstein had a hotel room reserve for her at a Holiday Inn Express).

Copeland has continued to assert certain medical providers have indicated she suffers from conditions that were either caused by mold or exacerbated by mold (while she has simultaneously refused to identify relevant medical providers, refused to answer discovery pertaining to her medical providers, refused to produced complete records from her medical providers, actively prevented Weinstein from obtaining necessary records, and refused to permit Weinstein entities from obtainer her deposition, the deposition of medical professionals, and/or other fact witnesses).

Copeland has complained about being the victim of an assault (while staying at The Bowie House or shortly after her stay ended [noting Weinstein paid for her stay, all but the last night she stayed there, as Weinstein had procured a room at the Holiday Inn Express]), in which she contends

she suffered a closed head injury (which required ER care and services). Copeland contends she has other various pre-existing and/or co-existing medical/health conditions which have been exacerbated by “exposure to mold” – none of which has been proven to be true (and all of which Weinstein’s retained expert, Dr. Rosen, disputes and refutes).

Copeland has asserted that her personal property items were destroyed by exposure to mold, and as such, Copeland contends that none are salvageable and all need to be replaced (noting that she left voluminous items at the apartment once she began staying at various hotels, paid for by Weinstein [during the time Weinstein was trying to complete remediation and repair]).

Weinstein was forced to obtain injunctive relief against Copeland to be able to move forward with remediation and repair of the apartment (a TRO and Temporary Injunction have both been entered against Copeland).

Copeland, in turn, filed numerous extensive counter claims against Weinstein, claiming that: the condition of the apartment either exacerbated or caused certain types of illnesses/conditions, potentially harmed her two dogs, that her life has been negatively impacted in various manners, including but not limited to alleged: loss of earnings (past and future), alleged negative impact on her professional trajectory as an attorney, alleged displacement impacting her minor children, alleged impact on ability to form/sustain relationships, alleged impact on her ability to reproduce, and that her personal property items all need to be replaced– and pursuant to which she seeks various and numerous types of damages.

Procedural Background

Weinstein filed their Original Petition, Application for Temporary Restraining Order, and request for Temporary and Permanent Injunctions, on September 19, 2025 (after receiving correspondence on September 16, 2025- supposedly written by attorney, John Douglas – that

Copeland would be pursuing federal court injunctive relief against Weinstein should they continue to pursue remediation/repair of the apartment [this was the second letter of this type Weinstein had received from Mr. Douglas, and with respect to the first such letter- indicating a small claims court case would be filed – Mr. Douglas (or someone acting on his behalf) had, in fact, filed a small claims court case for “retaliation” against the Weinstein ownership entity]]. Weinstein believed Mr. Douglas – and his proclaimed intent to pursue litigation against them, to prevent them from doing what they had the right to do -remediate and repair the apartment they owned/managed- and thus, sought injunctive relief against Copeland – in relation to her continued interference with the remediation and repair efforts.

Copeland filed her Original Answer, Special Exceptions, Affirmative Defenses, and Counter-Claims on September 25, 2025. Specifically as to her counterclaims, she alleged fraudulent inducement, violations of Deceptive Trade Practices Act, breach of contract, constructive eviction/breach of an implied warranty of habitability, negligence per se (as to remediation and compliance with Texas Department of Licensing and Regulation), trespass to chattel/conversion, declaratory judgment, and inapplicable provisions of the Texas Property Code¹, American with Disabilities Act, and Fair Housing Act².

Weinstein successfully obtained a TRO against Copeland on October 2, 2025 and thereafter, successfully obtained a Temporary Injunction against Copeland on October 16, 2025. Copeland violated both – multiple times (October 7, October 21 and December 10 – these violations are the subject of Weinstein’s Motion for Civil Contempt filed against Copeland).

¹ Tex. Prop. Code §§ 92.052 (duty to repair/remedy), 92.056 (liability/remedies for failure to repair), 92.331 (retaliation).

² 42 U.S.C. § 3604(f)(3)(B)(refusal to make reasonable accommodations in rules, policies, practices, or services); 42 U.S.C. § 3617(interference, coercions, or intimidation).

On or about November 12, 2025, Copeland filed her First Amended Answer, Special Exceptions, Verified Denials, Affirmative Defenses, and Counterclaims (hereinafter, First Amended Answer and Counterclaims. Copeland has alleged (in addition to affirmative defenses and/or inferential rebuttals) Counterclaims as to the following:

- Fraudulent Inducement, and/or, in the alternative, Negligent Misrepresentation: relating to claims that Weinstein had knowledge of previous water intrusion, but concealed same from Copeland;
- Violations of the Deceptive Trade Practices Act: Copeland alleges various pre-lease (alleged concealment of prior water leak and inadequate repair of same); and post-lease allegations, relating to: the repair/remediation of the apartment unit; the condition of the apartment; “accommodations” demanded by Copeland; services by/from independent third-party contractors; and various allegations of what Copeland contends was “unconscionable conduct”.
- Breach of Contract: relating to the lease agreement;
- Violations of Property Code, as to purported failure to repair the property and “retaliation”;
- Fair Housing Act Violations: relating to Copeland’s contention that she was entitled to certain accommodations;
- Constructive eviction;
- Negligence (and Gross Negligence);
- Negligence per se, relating various allegations of Texas Department of Licensing of Regulation provisions;
- Trespass to Chattels/Conversion;
- Toxic Torts; and
- Declaratory Judgment.

Note: While Copeland has alleged different causes of action (premises liability, violations of DTPA, breach of contract, negligence/negligence per se, statutory violations, and intentional torts), Copeland has only alleged one fact pattern and has only alleged one set of injuries/damages as allegedly resulting from the incident contained in that fact pattern. Accordingly, the Weinstein entities maintain that, if

Copeland's fact pattern supports any claim at all, such claim lies in tort (and specifically premises liability), not in contract, negligence/negligence per se, statutory law, and/or intentional torts);

Pursuant to Copeland's counter claims, she seeks \$17 million dollars in damages, for various damage elements (which are repetitive throughout the pleadings), and which include:

- Past and future physical pain;
- Past and future mental anguish;
- Past and future medical expenses;
- Property loss;
- Relocation/moving costs;
- Past rents/future housing costs;
- Payment of hotel lodging paid for by Weinstein;
- Payment of dog boarding costs paid for by Weinstein;
- Loss earnings (past and future);
- Permanent life trajectory (reproductive harm, loss of partnership opportunities, socio economic and professional impairment);
- Loss of enjoyment of life;
- Statutory damages; and
- Attorneys fees.

This matter is not currently set for trial.

Status of Discovery

On October 10, 2025, Copeland served her Initial Disclosures, wherein she **wholly failed to identify any healthcare providers** from whom she either sought treatment relating to the purported mold existing in the apartment, or as related to her pre-existing/concurrently existing conditions (many of which she claims to be a condition that results in her being "disabled"). She similarly failed to identify any particular person relating to any particular element of liability or damages sought in this matter.

The parties have also exchanged other discovery; however, **Copeland has failed to produce any documents (other than a renter's insurance policy), to include any records from any healthcare providers or as to any particular element of liability or damages (and has**

wholly failed to respond, at all – to Weinstein’s Second Set of Request for Production).

Copeland has also refused to answer Interrogatories (re writing the Interrogatories served to her [with the exception of Interrogatory 1]).

Copeland has refused to provide dates for her deposition, dates for various requested fact witness depositions and dates for the depositions of several of the medical providers that she now contends should serve as “non retained” experts (to include Dr. Isabel Huang, Dr. Kim Tran, Dr. Michael Conte, Dr. Nilesh Nangrani, and Dr. Victor Kayster).

With no dates provided, Copeland’s deposition has been noticed twice. Copeland did not appear for (or file a Motion to Quash) Weinstein’s first attempt to depose her; as a result, a Certificate of Non-Appearance was taken. Copeland indicated she would, thereafter, provide dates for her deposition and (consistent with her pattern and practice), never did. Therefore, Weinstein noticed the deposition to take place on February 9, 2026. Copeland also failed to appear at this deposition. A second Certificate of Non-Appearance was taken. As of the drafting of this Motion, Copeland has yet to provide a deposition date- and that is the subject of a separate Motion filed with this Court). Significantly- Copeland also failed to respond to the subpoena duces tecum attached to her deposition notice(s).

Status of Copeland’s Designation of Experts

This matter is being conducted under a Level 2 Discovery Control Plan, with the following Designation of Expert Witnesses deadlines:

- Deadline for Designation of Expert Witnesses for parties seeking affirmative relief: January 12, 2026;
- Deadline for Designation of Expert Witnesses for parties not seeking affirmative relief: February 12, 2026.

Expert designation dates have passed and Copeland **designated no experts as to liability**. Copeland designated non-retained experts only. Further, because Copeland has failed to disclose the identities of any of her treating providers, because Copeland failed to provide significant information and/or documents pursuant to Texas Rules of Civil Procedure 194 and 195 with her Designation of Expert Witnesses. Weinstein has moved to strike/exclude same.

Because Copeland designated no experts as to liability (to include no expert regarding property management, and/or property maintenance/repair, and/or toxicology and/or the detection and/or remediation of mold), Copeland, specifically, has no expert (and thus, no expert evidence) to testify as to:

- The standard of care for a property management company for operations/management of a multi-family unit, and, particularly, as to the operation/management that Weinstein, as a reasonably prudent apartment manager, should have done/not done, including: reasonable practices within property management, compliance with various provisions of the Texas Property Code; the inspection, maintenance, monitoring, and/or provision of any particular condition within the apartment; assessment and/or warning of any dangerous/hazardous condition, water intrusion/damage, humidity, moisture content, and/or mold (and/or as to a property manager and/or owner's responsibilities in assessing, inspecting, responding to same); hiring, training, supervision, retention, and/or performance of any staff member or independent contractor, tenant interactions, and/or as to the establishment and/or appropriateness of any policies/procedures.
- The standard of care for a property management company as to what would/would not constitute fair housing practices, to include applicability and/or compliance with fair housing practices, state and federal compliance, what constitutes discriminatory practices, and the obligations/duties of multi-family housing providers.
- The alleged inadequacy of any repairs/remediation and/or as to the timeliness and/or lack thereof as performed by/on behalf of Weinstein in the apartment unit, to include whether a licensed remediator was required to remediate Copeland's apartment and/or personal property contents;
- The existence/presence of "mold" in Copeland's apartment (and, particularly, that any mold spores present in the apartment were of any particular character, to include a level which was "toxic", "severe" contained/produced "mycotoxins", constituted "contamination" of any particular portion of the apartment and/or Copeland's personal property contents, was a "dangerous" condition, and/or caused "adverse health effects on

people and animals” and/or which rendered the apartment, in any manner, uninhabitable, as alleged in Copeland’s Amended Answer and Counterclaims);

- The cause of any “mold” in the apartment unit (and, particularly, the attribution of same to any act and/or omission of Weinstein);
- The liability for the presence of “mold” in the apartment unit (for property management and/or property maintenance/repair, either under normal business practices and/or given delay in initial notice of same from Copeland to Weinstein, and/or Copeland’s continued attempts to impede, hinder, obstruct, and/or interfere with remediation of same);
- Whether any particular item in Copeland’s apartment was impacted by mold, to include: personal property conditions, personal property damage, and/or personal property valuations; and
- Allegations that Copeland’s health was potentially compromised and/or that her belongings were impacted by the effect of having “mold” in the apartment – an assertion which would require expert testimony from a medical expert and/or toxicologist, in order to support these allegations, which include: the various medical conditions she purports to have (whether pre-existing/concurrently existing, and/or subsequently existing), any alleged mold related medical/health conditions, any alleged injuries or damages resulting from “mold exposure” (to include past and/or future medical care, past and/or future expenses, past and/or future impairment, past and/or future physical pain and mental anguish, and any other type of damage allegedly resulting from mold in the apartment).

The above numerous subject matters are each well outside the general knowledge of lay persons and as such, each require expert evidence/testimony, and Copeland has **wholly failed to designate (and/or failed to properly designate) any expert to speak as to any of these matters.**

II.

SUMMARY JUDGMENT GROUNDS

This Motion is based on the pleadings on file (for the purposes of showing the contentions of the parties), and is brought pursuant to Tex. R. Civ. P. 166a(c) as a Traditional Motion for Summary Judgment and pursuant to Tex. R. Civ. P. 166a(i) as a “No Evidence” Motion for Summary Judgment.

Weinstein entities assert that there are no genuine issues of material fact and Weinstein entities are, therefore, entitled to summary judgment as a matter of law.

Specifically, the status of Texas law, Copeland's judicial admissions, and the existence of "no evidence" to support Copeland's allegations and/or damage claims, and/or to support that any alleged act or omission on the part of the Weinstein entities proximately caused the alleged incidents made the basis of this suit and/or Copeland's alleged injuries and/or damages, requires that all of Copeland's claims and causes of action be dismissed with prejudice and that the Weinstein entities recover their costs of court.

Note: Copeland has referenced that she is "entitled" to relief pursuant to the Texas Fair Housing Act; however, she has failed to plead any factual allegations, cause of action, and/or damages claim relating to same in her Counterclaims. Defendants have previously objected to Copeland's improper reference to Texas Fair Housing Act, wherein same has not been properly plead by Copeland as a Counterclaim in this matter. Such objections are made again in this Combined Motion for Summary Judgment, as same has not properly been plead (and thus, Defendants have been excluded from properly conducting discovery into these claims) and Defendants are not trying this cause of action by consent.

III. SUMMARY OF ARGUMENT

There are no genuine issues of material fact as to Copeland's cross-claims, and Weinstein is, therefore, entitled to summary judgment as a matter of law.

Specifically, the evidence submitted herein and the existence of "no evidence" to support Copeland's allegations and/or damage claims, as asserted Weinstein entities, establish that the apartment at issue never contained "regulated mold", as that term is understood under the Texas Mold Assessment Rules and Regulations, no , was not involved in the daily operation of the school, did not employ the staff at the school, was not involved in the alleged incidents made the basis of this suit, did not proximately cause the alleged incidents made the basis of this suit and did not proximately cause and was not the producing cause of Copeland's alleged injuries and/or damages.

As such, under Texas law, the evidence submitted herein and the existence of “no evidence” to support Copeland’s allegations (claims/causes of action) as against Weinstein entities establish the following:

- There is no evidence that mold existed in Copeland’s apartment which was regulated under state law, or that was of the type, amount, and/or dose exposure such that it would be considered a hazard to Copeland;
- There is no evidence Weinstein entities were negligent, in any manner;
- There is no evidence Weinstein entities breached a contract with Copeland;
- There is no evidence Weinstein entities breached any warranty with Copeland – implied or explicit;
- There is no evidence the Weinstein entities breached any duty owed to Copeland;
- There is no evidence that Copeland’s apartment was, in any manner, uninhabitable;
- There is no evidence of the presence of mold spores present in the apartment unit of any particular character, including but not limited to: a level which was “severe”, of a type which constituted “toxic mold” and/or which produced “mycotoxins”, that any testing results showed “exposure” to harmful molds, and/or that mold existed in the amount/for the period of time as alleged by Copeland;
- There is no evidence that Weinstein entities had any involvement in creating a condition on the property that posed an unreasonable risk of harm, and/or was unsafe and/or was dangerous (to include unreasonably dangerous);
- There is no evidence that Weinstein entities were provided adequate notice of any condition on the premises that posed an unreasonable risk of harm, prior to Copeland’s June 27, 2025 claim of the existence of “mold” in the apartment, and/or that Weinstein should have been aware of same (and/or that it was, in fact, a condition that posed an unreasonable risk of harm);
- There is no evidence that the Weinstein entities failed to properly maintain the premises (inclusive of inspection and/or the repair/remediation of any water intrusion/“mold” at issue);
- There is no evidence that the Weinstein entities failed to properly repair and/or remedy any condition complained of by Copeland, either directly and/or by any third-party vendor, under the factual circumstances of the case;

- There is no evidence the Weinstein entities made/provided “false information” and/or “concealed” information from Copeland regarding any condition of the apartment, that Copeland justifiably relied on any such representations, or that any representations made by the Weinstein entities caused Copeland any injury;
- There is no evidence that the Weinstein entities, by act or omission, proximately caused the incident(s) made the basis of the suit;
- There is no evidence that the Weinstein entities, by act or omission, proximately caused any injury or damage claimed by Copeland;
- There is no evidence to support that Copeland’s claims/causes of action sound in breach of contract or statutory violations, to include violations of the state/federal Fair Housing Act, Texas Property Code and/or DTPA;
- There is no evidence that the Weinstein entities and/or vendors destroyed, disposed of, retained, improperly handled, misused, caused loss use of enjoyment of property, and/or caused damage to any of Copeland’s personal property contents;
- There is no evidence that Copeland is entitled to declaratory judgment in this matter, and/or that Copeland is entitled to the specific matters upon which she seeks declaratory judgment, and/or that Copeland’s request for declaratory judgment is inapplicable as plead by Copeland;
- There is no evidence that any of the acts and/or omissions of the Weinstein entities was the producing and/or but for cause of Copeland’s alleged injury and/or damages allegedly sustained by Copeland;
- There is no evidence that Copeland suffered any injury/damage for which she is entitled to a remedy;
- There is no evidence that Copeland was deprived of the use of the apartment by any act and/or omission of the Weinstein entities;
- There is no evidence Copeland’s apartment was uninhabitable and/or that Copeland was either forced to leave the premises and/or was deprived of the use of her home;
- There is no evidence that Copeland provided to Weinstein adequate information regarding her purported disabilities to trigger any obligation under the ADA and/or Fair Housing Act;
- There is no evidence Weinstein violated any provision of the United States Fair Housing Act, and/or that Weinstein violated any law;
- There is no evidence that any particular substance existed in Copeland’s home with the capacity to cause Copeland’s complained of injuries (to either her health and/or her

personal property), and there is further no evidence that Copeland was exposed to any particular substance at any particular dosage for any particular time;

- There is no evidence that Copeland was owed and/or entitled to any particular accommodation, to include lodging, per diem expenses, pet boarding, and/or contents storage, due to any act and/or omission of Weinstein, and/or that Copeland failed to receive any particular accommodation which was owed to her under any applicable law or circumstances;
- There is no evidence that Weinstein entities owed and/or owe to Copeland any obligation – whether arising from any theory of law, to include state/federal statutory law – after October 26, 2026, except those owed under state law to a holdover tenant;
- There is no evidence that any personal property item of Copeland’s was damaged and/or needed remediation, in any manner, and specifically not as a result of any act and/or omission of the Weinstein entities;
- There is no evidence the Weinstein entities were grossly negligent, in any manner;
- There is no evidence to support Copeland’s claims for damages (inclusive of Copeland’s claims for statutory and exemplary damages); and
- There is no evidence to support Copeland’s claim for attorney’s fees.

Therefore, the Weinstein entities are entitled to summary judgment as a matter of law, and further entitled to recovery of its taxable court costs.

IV.

SUMMARY JUDGMENT EVIDENCE

In support of the Weinstein entities’ Motion for Summary Judgment Pursuant to Texas Rule of Civil Procedure 166a(c), Weinstein entities submit the following summary judgment evidence:

- **Exhibit “A”: Affidavit of Pamela Quinn;**
- **Exhibit “B”: Affidavit of Dr. Patricia Rosen;**
- **Exhibit “C”: Affidavit of Robin Franks;**

- **Exhibit “D”: January 14, 2026 Judgment in Cause No. JP03-25-SC00028212, Copeland v. Weinstein Properties/WMCi X, LLC dba The Bowery at Southside; and**
- **Exhibit “E”: February 13, 2026 Order Granting Defendant’s Motion to Strike Pro Se Plaintiff’s Notice of Appeal, Pursuant to Applicable Vexatious Litigant Order, in Cause No. JP03-25-SC00028212, Copeland v. Weinstein Properties/WMCi X, LLC dba The Bowery at Southside.**

IV.

COPELAND’S JUDICIAL ADMISSIONS

As stated herein, pursuant to Copeland’s First Amended Answer and Counterclaims, she has based every cause of action plead against the Weinstein entities on the identical set of facts. *See Copeland’s first Amended Answer, Especial Exceptions, Verified Denials, Affirmative Defenses, and Counterclaims, Section VII., Paragraphs First Amended Answer and Counterclaims, Copeland’s First Amended Answer and Counterclaims, Sections VII, Pages 10 – 14*, wherein Copeland states “To provide context for defense and counterclaims, Defendant [Copeland] alleges the following chronology”, Copeland provides a fact patterns under the headlines: “Pre-Lease Concealment”, “Initial Notices and Professional Assessment”, “Coercions and Retaliation Pattern”, “Continuing Displacement and Retaliation”, and “Medical Evidence of Health Impact”. Thereafter, Copeland, within Section VIII (the causes of action for Fraudulent Inducement, Deceptive Trade Practices Act, Breach of Contract, Failure to Repair (Tex. Prop. Code), Retaliation (Tex. Prop. Code), Fair Housing Act: Failure to Accommodate and Interference/Retaliation; Negligent Remediation/Negligence Per Se; Trespass to Chattels/Conversion, and Declaratory Judgment; Constructive Eviction, Negligence, Negligence/Gross Negligence, and/or Toxic Tort Claim). In Paragraph IX, “Damages”, pages 46 – 50, Copeland asserts universal damages, collectively, for all causes of action.

These judicial admissions establish that Copeland's entire case sounds in tort, and more specifically, in premises liability.

VI.

APPLICABLE PROCEDURAL LAW

Requirements of Tex. R. Civ. P. 166a(c)

The movant for summary judgment under Texas Rule of Civil Procedure 166a(c) has the burden of demonstrating there is no genuine issue of material fact and it is entitled to judgment as a matter of law. Tex. R. Civ. P. 166a(c)); *MD. Anderson Hosp. & Tumor Inst. v. Willrich*, 28 S.W.3d 22, 23 (Tex. 2000). Thus, a defendant moving for summary judgment must either (1) disprove at least one element of the plaintiff's cause of action, or (2) plead and conclusively establish each essential element of an affirmative defense. *Cathey v. Booth*, 900 S.W.2d 339, 341 (Tex. 1995); *Gen. Mills Rests., Inc. v. Tex. Wings, Inc.*, 12 S.W.3d 827,832 (Tex. App.-Dallas 2000, no pet.).

Requirements of Tex. R. Civ. P. 166a(i)

Texas Rules of Civil Procedure 166a(i) provides:

After adequate time for discovery, a party without presenting summary judgment evidence may move for summary judgment on the ground that there is no evidence on one or more essential elements of a claim or defense on which an adverse party would have the burden of proof at trial. The motion must state the elements as to which there is no evidence. The court must grant the motion unless the respondent produces summary judgment evidence raising a genuine issue of material fact.

Tex. R. Civ. P. 166a(i)

A motion based upon Tex. R. Civ. P. 166a(i) is required to state the elements as to which there is no evidence. *Id.*; *In re Mohawk Rubber Co.*, 982 S.W.2d 494, 498 (Tex. App.—Texarkana 1998, orig. proceeding). However, the party moving on a no-evidence summary judgment does

not have the burden of proof. *General Mills Restaurant, Inc. v. Texas Wings, Inc.*, 12 S.W.3d 827, 832 (Tex. App.—Dallas 2000, no pet.). A motion for no-evidence summary judgment is equivalent to a motion for pretrial directed verdict. *Mack Trucks, Inc. v. Tamez*, 206 S.W.3d 572, 582 (Tex. 2006); *Ortega v. City Nat'l Bank*, 97 S.W.3d 765, 772 (Tex. App.—Corpus Christi 2003, no pet.) (op. on reh'g). Such a motion should be granted if there is no evidence of at least one essential element of the claimant's cause of action. *Hamilton v. Wilson*, 249 S.W.3d 425, 426 (Tex. 2008) (per curium).

By filing a no evidence motion, the burden of proof shifts to the non-movant who must come forward with “more than a scintilla” of evidence to raise a genuine issue of material fact on the challenged elements. *Forbes, Inc. v. Granada Biosciences*, 124 S.W.3d 167, 172 (Tex. 2003). A non-movant produces “more than a scintilla” of evidence when the evidence “rises to a level that would enable reasonable and fair-minded people to differ in their conclusions.” *Ridgeway v. Ford Motor Co.*, 82 S.W.3d 26, 29 (Tex. App.—San Antonio 2002, rev'd on other grounds, 135 S.W.3d 598 (Tex. 2004)). A non-movant fails to produce “more than a scintilla” of evidence when the evidence is “so weak as to do no more than create a mere surmise or suspicion” of fact. *Forbes*, 124 S.W.3d at 172. “Mere conclusionary statements, those not supported by fact,” will not defeat a no evidence motion for summary judgment. *Price v. American National Ins. Co.*, 113 S.W.3d 424, 429-430 (Tex. App. – Houston [1st Dist.] 2003, no pet.). The evidence offered in response to such a motion for summary judgment must be in a form that would be admissible at trial. *United Blood Services v. Longoria*, 938 S.W.2d 29, 30 (Tex. 1997). Further, “[t]he court must grant the motion unless the respondent produces summary judgment evidence raising a genuine issue of material fact.” *Tex. R. Civ. P. 166a(i)*.

Importantly, the rule does not require that discovery have been completed, only that there was an adequate time by which to conduct and complete discovery. *Specialty Retailers v. Fuqua*, 29 S.W.3d 140,145 (Tex. App.—Houston [14th Dist.] 2000, pet. denied).

V.

APPLICABLE SUBSTANTIVE LAW

SUBSTANTIVE LAW APPLICABLE TO COPELAND’S LIABILITY CLAIMS

Note: While Copeland attempts to assert a premises liability claim, a negligence claim, violations of various state and federal statutes, intentional torts, and breach of contract claim, this case sounds in premises liability, only.

Elements Necessary to Establish Premises Liability

In order to prevail pursuant to a negligence or premises liability theory, a Plaintiff, must prove the following: (1) a legal duty owed, (2) breach of that duty, (3) proximate cause, and (4) harm. *Greater Houston Transp. Co. v. Phillips*, 801 S.W.2d 523, 525 (Tex. 1990); *El Chico Corp. v. Poole*, 732 S.W.2d 306, 311 (Tex. 1987). Each must be proven and none are assumed. *Id.* Duty is the threshold inquiry to establish negligence and the Plaintiff must demonstrate both the existence of and violation of such duty. *Id.* at 311. The existence of a duty is a question of law for the court to decide based upon facts surrounding the occurrence in question. *Centeq Realty, Inc. v. Siegler*, 899 S.W.2d 195, 197 (Tex. 1995); *Greater Houston* at 525. Further, in determining proximate cause, two elements are required: cause in fact and foreseeability of risk. *Western Investments, Inc. v. Urena*, 162 S.W.3d 547, 551 (Tex. 2005); *El Chico Corp. v. Poole*, 732 S.W.2d 306, 313 (Tex. 1987); *City of Gladewater v. Pike*, 727 S.W.2d 514, 517 (Tex. 1987). These elements cannot be established through mere conjecture, guess or speculation. *Urena* at 551; *McClure v. Allied Stores of Texas, Inc.* 608 SW.2d 901 (Tex. 1980); *Thomas v. CNC Invs. L.L.P.*, 234 S.W.3d 111, 124 (Tex. App.-Houston [1st Dist] 2007, no pet.).

To prevail on a premises liability theory, a Plaintiff must prove the following: (1) a legal duty owed; (2) breach of that duty; (3) proximate cause; and (4) harm. *Greater Houston Transp. Co. v. Phillips*, 801 S.W.2d 523, 525 (Tex. 1990); *El Chico Corp. v. Poole*, 732 S.W.2d 306, 311 (Tex. 1987). Duty is the threshold inquiry to establish negligence, and the Plaintiff must demonstrate both the existence of and violation of such duty. *Id* at 311. Premises liability is predicated on establishing the status of the entrant on the property which then dictates the duty owed by the owner or occupier of the property. There are three types of entrants: trespasser, licensee, and invitee.

An invitee is defined as an individual who enters the property at the express or implied invitation of the owner to do business with the owner and for their mutual advantage. *Tex. Power & Light Co. v. Holder*, 385 S.W.2d 873, 885 (Tex. Civ. App.—Tyler 1964, write ref'd n.r.e.) (per curiam), 393 S.W.2d 821, 811 (Tex. 1965). Specifically, four elements must be shown by a plaintiff seeking to prevail as an invitee: (1) the owner or operator has actual or constructive knowledge of some condition on the premises; (2) the condition posed an unreasonable risk of harm to invitees, (3) the owner failed to exercise reasonable care to reduce or eliminate risk, and (4) the failure to exercise reasonable care was the proximate cause of plaintiff's injuries. *Del Lago Partners, Inc. v. Smith*, 307 S.W.3d 762, 767 (Tex. 2010); *Motel 6 G.P., Inc. v. Lopez*, 929 S.W.2d 1, 3-4 (Tex. 1996); *Corbin v. Safeway Stores, Inc.*, 648 S.W.2d 292, 296 (Tex. 1983); However, the owner is not an insurer of a patron's safety. *Wal-Mart v. Reese*, 81 S.W.3d 812, 814 (Tex. 2002).

Further, the Texas Supreme Court has made clear –

A person injured on another's property may have either a negligence claim or a premises liability claim against the property owner. When the injury is the result of a contemporaneous, negligent activity on the property, ordinary negligence principles apply.

When the injury is the result of the property's condition rather than an activity, premises liability principles apply.

United Scaffolding, Inc. v. Levine, 537 S.W.3d 463 (Tex. 2017).

Significantly: When the alleged injury is the result of a condition of the premises, the injured party can recover only under a premises liability theory. *H.E. Butt Grocery Co. v. Warner*, 845 S.W.2d 258, 259 (Tex. 1992); *McDaniel v. Cont'l Apartments Joint Venture*, 887S.W. 2d 167, 171 (Tex. App.—Dallas 1994, writ denied) (emphasis added). **Further “adroit phrasing of the pleadings to encompass design defects, per se negligence or any other theory of negligence does not affect the application of premises liability law”.** *McDaniel* at 887 S.W.2d 171 (quoting *First Fin. Dev. Corp. v. Hughston*, 797 S.W.2d 286, 291 (Tex. App.—Corpus Christi 1990, writ denied) (emphasis added); see also *Billmeier v. Bridal Shows, Inc.* No 02-08-00314-CV, 2009 WL 1176441 at *4 (Tex. App.—Fort Worth April 30, 2009, no pet.)(mem. op). The “unreasonably dangerous condition for which a premises owner may be liable is the condition at the time and place injury occurs, not some antecedent situation that produced the condition.” *Albertsons, LLC v. Mohammadi*, 689 S.W.3d 313, 319 (Tex. 2024), citing *Brookshire Grocery Co. v. Taylor*, 222 S.W.3d 406, 407 (Tex. 2006).

Elements Necessary to Establish Causation as to Premises Liability Cases Involving Toxic Torts

A cause of action relating to mold exposure constitutes a toxic-tort cause of action. *Allison v. Fire Ins. Exch.*, 98 S.W.3d 227, 238-39 (Tex. App.—Austin 2002, pet. granted, judgment vacated w.r.m.). In Texas, toxic tort cases require proof of both general and specific causation. *Merrell Dow Pharm., Inc. v. Havner*, 953 S.W.2d 706, 714 (Tex. 1997). “General causation is whether a substance is capable of causing a particular injury or condition in the general population, while specific causation is whether a substance caused a particular individual’s injury.” *Havner*, 953 S.W.2d 706, 714 (Tex. 1997)). “Specific causation cannot be based on inferred general causation.”

Allison, 98 S.W.3d at 239. Further, a court is not required to make a determination on the admissibility of specific causation evidence, if there is no admissible general causation evidence.” *Knight v. Kirby Inland Marine Inc.*, 482 F.3d 347, 351 (5th Cir. 2007). Scientific knowledge of harmful level of exposure to a chemical, plus knowledge that the plaintiff was exposed to such quantities, are minimal facts necessary to sustain the plaintiff’s burden in a toxic tort case. *Seaman v Searcor Marine L.L.C.*, 326 Fed.Appx 721, 723 (5th Cir. 2009);

Moreover, in a situation in which a plaintiff may have been exposed to a substance from multiple settings (such as a naturally occurring substance such as mold spores, which exist in the air, there is additional guidance from the Texas Supreme Court in the asbestos context (wherein many Plaintiffs may have been exposed to asbestos in different situations over their lifetime): “[P]roof of mere frequency, regularity, and proximity is necessary but not sufficient, as it provides none of the quantitative information necessary to support causation under Texas law. While the plaintiff was not required to establish causation with “mathematical precision,” we required [d]efendant-specific evidence relating to the approximate dose to which the plaintiff was exposed, coupled with evidence that the dose was a substantial factor in causing the asbestos-related disease.” *Bostic v. Ga.-Pacific Corp.*, 439 S.W.3d 332, 338 (Tex. 2014), referencing *Borg-Warner Corp. Flores*, 232 S.W.3d 765 (Tex. 2006). Ultimately, the Court concluded that even in mesothelioma cases proof of “some exposure” or “any exposure” alone will not suffice to establish causation. *Bostic* at 338.

Elements Necessary to Establish a Violation of the Deceptive Trade Practices Act

A cause of action brought under the DTPA has three essential elements:

- (1) The plaintiff is a consumer;
- (2) The defendant engaged in false, misleading, or deceptive acts; and

(3) The defendant's acts constituted a producing cause of the consumer's damages. *Doe v. Boys Clubs*, 907 S.W.2d 472, 478 (Tex. 1995). For a plaintiff to have standing as a consumer, the plaintiff must have sought or acquired "goods" or "services" by purchase or lease Tex. Bus. & Com. Code § 17.45(4). The defendant's conduct of which plaintiff complains must be "in connection with" the plaintiff's transaction *Amstadt v. United States Brass Corp.*, 919 S.W.2d 644, 649–650 (Tex. 1996); *Basic Energy Service v. D-S-B Properties*, 367 S.W.3d 254, 270 (Tex. App.—Tyler 2011, no pet.); *Sparks v. Booth*, 232 S.W.3d 853, 864–865 (Tex. App.—Dallas 2007, no pet.). If multiple entities are involved in providing a good or service, liability is not extended to all entities in a chain of production or distribution when none of those entities' alleged misrepresentations ever reached the consumer. *Amstadt v. U.S. Brass Corp.*, 919 S.W.2d 644, 39 Tex. Sup. J. 351 (Tex. 1996).

The plaintiff must also show the defendant's actions were the producing cause of actual damages. See *Helena Chem. Co. v. Wilkins*, 47 S.W.3d 486, 502 (Tex. 2001). A producing cause is "a substantial factor in bringing about an injury, without which, the injury would not have occurred." *Metro Allied Ins. Agency, Inc. v. Lin*, 304 S.W.3d 830, at 834 (Tex. 2010). Stated another way, a plaintiff must show that the defendant's act or omission was a cause in fact of the injury complained of. *McLeod v. Gyr*, 439 S.W.3d 639, 649 (Tex. App.—Dallas 2014, no pet. h.); *Sparks v. Booth*, 232 S.W.3d 853, 865 (Tex. App.—Dallas 2007, no pet.); *Ibarra v. National Const. Rentals, Inc.*, 199 S.W.3d 32, 35–36 (Tex. App.—San Antonio 2006, no pet.); *Knebel v. Port Enterprises, Inc.*, 760 S.W.2d 829, 831 (Tex. App.—Corpus Christi 1988, writ denied)

Importantly, DTPA § 17.49(e) states:

Except as specifically provided by Subsections (b) and (h), Section 17.50, nothing in this subchapter shall apply to a cause of action for bodily injury or death or for the infliction of mental anguish.

Texas appellate courts have confirmed that the DTPA was not intended to provide relief for bodily injury claims. *DiGangi v. 24 Hour Fitness USA, Inc.*, No. 05-04-01119-CV, Tex. App. *2 (Tex. App. – Dallas [5th Dist.] 2005, no pet.) (holding that personal injury claims are generally barred by the DTPA, absent an applicable “tie in” statute); *Last v. Quail Valley Country Club, L.P.*, No. 01-08-00759-CV, Tex. App. *7 (Tex. App. - Houston [1st Dist.] 2010, pet. denied).

In 1995, the 74th Texas Legislature revised the DTPA to include the following: “Except as specifically provided by Subsections (b) and (h), Section 17.50, nothing in this subchapter shall apply to a cause of action for bodily injury or death or for the infliction of mental anguish.” Tex. Bus. And Com. Code Ann. §17.49(e). Subsections (b) and (h) of § 17.50 provide:

(b) In a suit filed under this section, each consumer who prevails may obtain:

(1) the amount of economic damages found by the trier of fact. If the trier of fact finds that the conduct of the defendant was committed knowingly, the consumer may also recover damages for mental anguish, as found by the trier of fact, and the trier of fact may award not more than three times the amount of economic damages; or if the trier of fact finds the conduct was committed intentionally, the consumer may recover damages for mental anguish, as found by the trier of fact, and the trier of fact may award not more than three times the amount of damages for mental anguish and economic damages;

....

(h) Notwithstanding any other provision of this subchapter, if a claimant is granted the right to bring a cause of action under this subchapter by another law [*note this is the tie-in statute provision*], the claimant is not limited to recovery of economic damages only, but may recover any actual damages incurred by the claimant, without regard to whether the conduct of the defendant was committed intentionally. For the purpose of the recovery of damages for a cause of action described by this subsection only, a reference in this subchapter to economic damages means actual damages. In applying Subsection (b)(1) to an award of damages under this subsection, the trier of fact is authorized to award a total of not more than three times actual damages, in accordance with that subsection.

Economic damages are defined under the act as “compensatory damages for pecuniary loss, including costs of repair and replacement.” § 17.45(11). The term does not include exemplary damages or damages for physical pain and mental anguish loss of consortium, disfigurement, physical impairment, or loss of companionship and society.” *Id.*

There are few cases which discuss the issue of whether the current DTPA is applicable to a personal injury claim. However, the cases that are available for analysis, confirm that the DTPA was not intended and cannot be used to recovery for bodily injury claims.

In *DiGangi v. 24 Hour Fitness USA, Inc.*, DiGangi was injured while using a fitness machine at the 24 Hour Fitness when a cable broke and a bar hit him in the head and mouth. No. 05-04-01119-CV 2005 Tex. App. LEXIS 4494, at *1 (Tex. App – Dallas June 10, 2005). DiGangi sued 24 Hour Fitness for negligence, breach of warranty and misrepresentation under the DTPA and Health Spa Act. The trial court granted summary judgment for 24 Hour Fitness on the DTPA and Health Spa Act claims and the Dallas Court of Appeals affirmed the trial court’s judgment, holding that DiGangi’s personal injury claims were not within the purview of the current provisions of the DTPA. DiGangi argued that he had joined the 24 Hour Fitness before it opened for business because of the gym’s representation that it would have “top of the line” and “state of the art” exercise equipment and would provide “excellent, prompt, and complete customer service.” DiGangi argued that the Health Spa Act prohibited a material misrepresentation to a member regarding the quality or extent of the facilities, alleging that this constituted a DTPA “tie” in statute that allows recovery of all actual damages. DiGangi argued that he could rely on the exceptions in § 17.50 (b) and (h) to proceed on his claim for bodily injury. The court opined that the plain meaning of the statute was clearly contrary to this argument. The court discussed the § 17.50(b) exception and stated that § 17.50(b) allows a consumer to recover any economic damages

which he is entitled to under the DTPA plus damages for mental anguish if the DTPA violation was committed knowingly or intentionally, but a consumer can only add on mental anguish damages if he is first entitled to economic damages. *Id.* ***Because DiGangi was not entitled to any damages under the DTPA due to the § 17.50(e) bar to claims for bodily injury, the § 17.50(b) exception did not apply.***

The court stated that under § 17.50(h), a consumer can bring a cause of action under the DTPA if he is granted that right by another law. The court held that in an DiGangi asserted that the Health Spa Act granted him that right because it was designed to protect the public against unfair practices involving health spa contracts and the marketing of health spa services. The court ruled that nothing in the language of the Health Spa Act afforded a right of action for bodily injury, therefore, the Health Spa Act was not a tie-in statute allowing DiGangi to recover damages for personal injury under the DTPA. In summary, to bring a DTPA action for bodily injury under Subsection 17.50(h), there must be another law that: (1) authorizes suit under the DTPA, i.e., a “tie-in statute,” and (2) the tie-in statute must afford a right of action for bodily injury.

In *Last v. Quail Valley Country Club, L.P.*, Plaintiff Robert Last fell from a mechanical bull and then struck in the head and neck by the bull while at a fundraising event. No. 01-08-00759-CV 2010 Tex. App LEXIS 2303 *1 (Tex. App. – Houston March 25, 2010 [1st District]). Plaintiff and his wife sued the country club where the fundraiser was being held, the operator of the mechanical bull, and the owner of the bull for negligence, and Plaintiffs also alleged DTPA violations against the owner and operator of the bull. *Id.* at *2. The 1st District Court of Appeals held that Lasts’ claim was a personal injury claim, and that the Legislature had expressed its intent that the DTPA does not provide a cause of action for personal injury claims, citing § 17.49(e). *Id.* at *18. The court stated that when the DTPA was revised in 1995, the revisions were “a sweeping

measure to remove most personal injury claims from the purview of the DTPA.” *Id.* (citing Bivens et al., *The 1995 Revisions to the DTPA: Altering the Landscape*, 27 *Tex. Tech. L. Rev.* 1441, 1448 (1996)). *Id.* The court also quoted the drafters’ commentary which states: “the 74th Legislature opted to exclude claims for bodily injury and death as part of the effort to restore the DTPA to be chiefly a means of relief for individual or small business consumers who have been taken advantage of by unscrupulous individuals or businesses. The DTPA had become an avenue for far too many lawsuits relating to a variety of claims outside of the consumer-business relationship, including personal injury litigation.” *Id.* at *18-19 (citing Senate Comm. on Economic Dev., *Bill Analysis*, *Tex. H.B. 668*, 74th Leg. R.S. (1995)).

In 2015, Texas federal courts acknowledged that Texas appellate courts have repeatedly admonished that the DTPA does not provide relief for personal injury claims (citing *Last and DiGangi*). *Roberts v. Zev Technologies, Inc.*, 1:15-CV-309 RP 2015 U.S. Dist. LEXIS 157663 *16 (W.D. Tex. Nov. 23, 2015). Because the Plaintiff alleged that he was personally injured when a gun accidentally discharged, Plaintiff’s claims were presumptively not allowed under 17.49(e), so the court examined whether either the § 17.50(b) or § 17.50(h) exceptions applied. *Id.*

Plaintiff took the position that because he sought damages specifically provided by § 17.50(b), § 17.49(e) did not bar his DTPA claims. Plaintiff argued that, therefore, the DTPA allowed him to recover at least economic damages, and, if he could show that the violation was committed knowingly or intentionally, he could also recover mental anguish damages. *Id.* at *17-18. The court opined that such a reading was wrong for two reasons: (1) Plaintiff applied the general rule to personal injury claimants and treated a personal injury claimant no differently than any other DTPA claimant, which would render § 17.49(e)’s bar on relief for personal injury meaningless. (2) § 17.49(e) requires that any exception must be “specifically provided” for by §

17.50(b), and the language Plaintiff cited was generally applicable and nothing in the text of § 17.50(b) allows recover specifically for personal injury claims. *Id.* at 19-20. The court concluded that nothing in § 17.50(b) overrides § 17.49(e)'s unambiguous declaration that the DTPA does not create a cause of action for personal injury claims. *Id.* at 19.

With respect to the interpretation of the exception in § 17.50(h), the court stated that if a DTPA claim is brought pursuant to § 17.50(h) for a tie-in-statute violation rather than pursuant to § 17.50(a) for general deceptive trade practices, then the bar on recovery for personal injury claims may not apply. *Id.* at *20. Plaintiff attempted to tie in Chapter 82 of the Texas Civil Practice and Remedies Code, claiming that it created a cause of action for products liability under § 17.50(h) of the DTPA. *Id.* The court rejected this argument because Chapter 82 does not include any language creating DTPA cause of action; instead, Chapter 82 restricts the type of relief available in a products liability case, regardless of the type of legal claim brought by the Plaintiff. *Id.* The court held that Chapter 82 was a restriction on personal injury relief rather than the source of personal injury relief. *Id.* The court also added that even if Chapter 82 created a DTPA tie-in cause of action, Plaintiff's live complaint did not even allege a violation of Chapter 82. *Id.* at *20-21. Plaintiff also argued that he claimed economic damages unrelated to his bodily injury such as the cost of the gun, but because the Plaintiff's live complaint focused exclusively on costs incurred as a result of Plaintiff's bodily injury, the court found that Plaintiff did not allege facts that would support a plausible claim for bodily injury unrelated to his injury. *Id.* at *21-22. *Gibbons v. Luby's Inc.*, 2015 Tex. App. LEXIS 9234, (Tex. App.-Fort Worth [2nd Dist.] 2015, pet. denied) Two cousins sued Luby's when one of them, who had a severe whitefish allergy, ordered a salmon croquette, believing it did not contain whitefish. Shortly after eating it, she had an anaphylactic reaction. She was admitted to the hospital and fully recovered. She brought suit alleging, among

other things, a violation of the DTPA, a claim on which a directed verdict was entered in favor of Defendant. The court overruled her challenge of the directed verdict, stating that Section 17.49(e) of the DTPA specifically bars claims for bodily injury except as provided under subsections 17.50(b) and (h). Subsection 17.50(b) allows a plaintiff to recover damages for mental anguish if a DTPA violation was committed knowingly. *Id.* at *24. "Knowingly" is defined as "actual awareness, at the time of the act or practice complained of, of the falsity, deception, or unfairness of the act or practice giving rise to the consumer's claim." *Id.* at *24, n. 42 (quoting TEX. BUS. & COM. CODE ANN. § 17.45(9)).

Elements Necessary to Establish Common Law Fraud

A fraud claim has six essential elements:

- 1) A material representation was made;
- 2) The representation was false;
- 3) When the representation was made, the speaker knew it was false or the speaker recklessly made the statement without any knowledge of its truth and as a positive assertion;
- 4) The speaker made the representation with the intent that it should be acted on by the other party;
- 5) The other party acted in reliance on the representation; and
- 6) The party thereby suffered injury.

De Santis v. Wackenhut Corp., 793 S.W.2d 670, 688 (Tex. 1990).

In order to maintain a fraud action, a misrepresentation must have been communicated to a plaintiff – that is it must have actually reached plaintiff. *Marshall v. Kusch*, 84 S.W.3d 781, 785 (Tex. App.—Dallas 2002, pet. denied). The falsity of the misrepresentation must be made knowingly or the representation must have been made recklessly without any knowledge of the truth of same. *Formosa Plastics Corp. USA v. Presidio Eng'rs & Contrs, Inc.*, 960 S.W.2d 41, 47–48 (Tex. 1998). Besides showing a statement was made knowingly or recklessly, a plaintiff must

also show that the representation was made with the intention that the other party act on it. *Dowling v. NADW Marketing, Inc.*, 631 S.W.2d 726, 727 (Tex. 1982).

Elements Necessary to Establish Negligent Misrepresentation

To prevail on a cause of action for negligent misrepresentation, a plaintiff must show:

- 1) A representation made by a defendant in the course of its business or in a transaction in which it has a pecuniary interest;
- 2) The representation conveyed “false information” for the guidance of others in their business;
- 3) The defendant did not exercise reasonable care or competence in obtaining or communicating the information; and
- 4) The plaintiff suffers pecuniary loss by justifiably relying on the representation.

Fed. Land Bank Ass'n of Tyler v. Sloane, 825 S.W.2d 439, 442 (Tex. 1992).

An affirmative misrepresentation is necessary to maintain a cause of action - the mere failure to disclose is insufficient. *Kastner v. Jenkins & Gilchrist, P.C.*, 231 S.W.3d 571, 578–579 (Tex. App.—Dallas 2007, no pet.). A plaintiff may not recover for negligent misrepresentation if there was no justifiable reliance. *Coastal Bank Ssb v. Chase Bank of Texas*, 135 S.W.3d 840, 843 (Tex. App.—Houston [1st Dist.] 2004, no pet.).

Elements Necessary to Establish Prove Breach of Contract

The essential elements of a breach of contract claim are:

- (1) The existence of a valid contract;
- (2) Performance or tendered performance by the plaintiff;
- (3) Breach of contract by the defendant; and
- (4) Damages sustained as a result of the breach.

Williams v. Unifund CCR Partners Assignee of Citibank, 264 S.W.3d 231, 235-36 (Tex. App.—Houston [1st Dist.] 2008, no pet.) (citing *Winchek v. American Express Travel Related Servs. Co.*, 232 S.W.3d 197, 202 (Tex. App.—Houston [1st Dist.] 2007, no pet.).

Requirements for valid contract are an offer, an acceptance in strict compliance with terms of offer, a meeting of the minds, each party's consent to the terms, consideration and execution and delivery of the contract with the intent that it be mutual and binding. *McCoy v. Alden Industries, Inc.*, 469 S.W.3d 716, 728 (Tex. App.--Fort Worth 2015, no pet.); *Paragon Indus. v. Stan Excavating*, 432 S.W.3d 542, 547 (Tex. App.--Texarkana 2014, no pet.); *Davis v. Chaparro*, 431 S.W.3d 717, 722 (Tex. App.--El Paso 2014, pet. denied). If the contract is written in a manner that it can be given a certain or definite legal meaning or interpretation, then it is not ambiguous and the court will construe the contract as a matter of law. *Progressive Mutual Ins. Co. v. Sink*, 107 S.W.3d 547, 551 (Tex. 2003); *Grain Dealers Mut. Ins. Co. v. McKee*, 943 S.W.2d 455, 458 (Tex. 1997); *Coker* at 393; *R & P Enters. v. La Guarta, Gavrel & Kirk, Inc.*, 596 S.W.2d 517, 519 (Tex. 1980). Contract terms are reasonably certain if they provide a basis for determining existence of breach and for giving appropriate remedy. *FFSS v. Corilant Fin., L.P.*, 376 S.W.3d 253, 256 (Tex. App.--Dallas 2012, no pet.).

A contractual relationship between parties may carry duties under both contract and tort law. *Jim Walter Homes v. Reed*, 711 S.W. 2d 617, 618 (Tex. 1986) (citing *Montgomery Ward & Co. v. Scharrenbeck*, 146 Tex. 153, 204 S.W.2d 508, 510 (1947)). Therefore, in determining whether an action sounds in contract or tort when there is an agreement between the parties (whether in writing or oral) and one party claims that the agreement was not fulfilled, the Courts look at the nature of the duties breached and specifically at the nature or substance of the cause of action and not necessarily the manner in which it was pleaded. *Jim Walter Homes* at 617-618. “Tort obligations are in general obligations that are imposed by law — apart and independent of promises made and therefore apart from the manifested intention of the parties – to avoid injuries to others.” *Southwestern Bell Tel. Co. v. Delanney*, 809 S.W.2d 493, 494 (Tex. 1991) (quoting W.

Page Keaton Et Al, Presser and Keeton on the Law of Torts; Section 91 at 655 (5th ed. 1984)); *Van Cleave v. Texas Utilities Electric Company*, 1995 Tex. App. LEXIS 4093 (1995). If the defendant's conduct raises liability independent of the contract between the plaintiff and the defendant, the plaintiff's claim may sound in tort. *Id.* If, however, the plaintiff must plead and prove the contract to maintain an action, it is in substance an action on the contract. *Int'l Printing Pressmen & Assistants' Union v. Smith*, 145 Tex. 399, 409, 198 S.W.2d 729, 735 (1946). This is true even though the cause of action is based on a negligent performance of the contract. *Bernard Johnson, Inc. v. Continental Constructors, Inc.*, 630 S.W.2d 365, 368 (Tex. App.—Austin 1982, writ ref'd n.r.e.). The Courts also examine the injury to determine which duty the defendant breached. *Delanney* at 494; *Jim Walter Homes* at 618. When damage or loss affects only the contract's subject matter, the plaintiff's action sounds in contract. *Delanney* at 494; *Jim Walter Homes* at 618. If the loss or damage is independent of that which the parties contemplated in their contract, the plaintiff's action may also sound in tort. *Delanney* at 494; *Scharrenbeck* at 510.

Moreover, in certain circumstances, although a contractual relationship exists, the Courts will not allow for a contract theory of recovery and instead hold that the plaintiff can only recover on a negligence theory of liability. These circumstances generally involve professional services being provided, such as healthcare services and legal services. When legal services are at issue, even though every relationship between an attorney and client is premised on there being a contractual agreement between the two, the determination is whether that service was provided by the attorney/professional with the exercise of the degree of care, skill and diligence required by that profession. *Newton v. Meade*, 143 S.W.3d 571, 573-574 (Tex. App.—Dallas 2004, no writ); *Black v. Wills*, 758 S.W.2d 809, 814 (Tex. App.—Dallas 1988, no writ); *Gabel v. Sandoval*, 648 S.W.2d 398 (Tex. App.—San Antonio 1983, writ dismissed). Moreover, Texas courts will not allow

for “impermissible fracturing” of a malpractice claim into additional putative actions. *Deutsch v. Hoover*, 97 S.W.3d 179, 189 (Tex. App.--Houston [14th Dist.] 2002, no pet). This is particularly compelling when the various causes of action asserted all arise out of the same or a single transaction. *Sledge v. Alsup*, 759 S.W.2d 1 (Tex. App7--El Paso 1988, no writ). Similarly, in the nursing home context, it has been held that a cause of action for personal injury suffered by a resident at a nursing home, sounds in tort rather than breach of contract even though the resident (or someone acting on their behalf) has entered into a written contract with the nursing home to provide care and services to the resident. *Huizar v. Four Seasons Nursing Centers of San Antonio*, 562 S.W.2d 264 (Tex. Civ. App.--San Antonio 1978, writ ref’d). The Court has reasoned that if the transaction has its origin in a contract which places the parties “in such relation as that in performing or attempting to perform the service promised, the wrong is committed, then the breach of the contract is not the gravamen of the action.” *Pecos & N. T. Ry. Co. v. Amarillo St. Ry. Co.*, 171 S.W. 1103, 1105 (Tex.Civ.App. Amarillo 1914, no writ). Thus, despite the existence of a contract, if plaintiff pleads negligence or pleads facts which would constitute negligence, the courts will consider the cause of action to be in tort rather than in contract despite the existence of a contract. *International Printing* at 735.

Elements Necessary to Establish Failure to Repair Pursuant to Tex. Prop. Code

Texas Property Code provides a limited statutory remedy as to a landlord’s duty to repair and remedy. Tex. Prop. Code § 92.052(a)(3)(A) provides that a landlord shall make a diligent effort to repair or remedy a condition if the condition ***materially affects the physical health or safety of an ordinary tenant***. Tex. Prop. Code § 92.056(b) makes a landlord liable to a tenant if:

- 1) the tenant has given the landlord notice to repair or remedy a condition by giving that notice to the person to whom or to the place where the tenant's rent is normally paid;
- 2) the condition materially affects the physical health or safety of an ordinary tenant;

- 3) the tenant has given the landlord a subsequent written notice to repair or remedy the condition after a reasonable time to repair or remedy the condition following the notice given under Subdivision (1) or the tenant has given the notice under Subdivision (1) by sending that notice by certified mail, return receipt requested, by registered mail, or by another form of mail that allows tracking of delivery from the United States Postal Service or a private delivery service;
- 4) the landlord has had a reasonable time to repair or remedy the condition after the landlord received the tenant's notice under Subdivision (1) and, if applicable, the tenant's subsequent notice under Subdivision (3);
- 5) the landlord has not made a diligent effort to repair or remedy the condition after the landlord received the tenant's notice under Subdivision (1) and, if applicable, the tenant's notice under Subdivision (3); and
- 6) the tenant was not delinquent in the payment of rent at the time any notice required by this subsection was given.

A landlord is not liable to a tenant for conditions caused by the tenant (Tex. Prop. Code § 92.056(a).

Elements Necessary to Establish Retaliation Pursuant to Tex. Prop. Code § 92.331

A landlord is prohibited from taking certain actions against a tenant, in relation for the tenant making a good faith exercise (or attempt for same) against a landlord for a right or remedy granted to the tenant by lease, municipal ordinance, or federal or state statute; for giving the landlord a notice to repair or exercise a remedy; for complaining to a governmental entity responsible for enforcing building or housing codes, a public utility, or a civic or nonprofit agency, and the tenant claims a building or housing code violation or utility problem; and believes in good faith that the complaint is valid and that the violation or problem occurred; and/or establishes, attempts to establish, or participates in a tenant organization. A landlord is prohibited from retaliating by:

- 1) filing an eviction proceeding, except for the grounds stated by Section 92.332 (non-payment of rent;
- 2) depriving the tenant of the use of the premises, except for reasons authorized by law;

- 3) decreasing services to the tenant;
- 4) increasing the tenant's rent or terminating the tenant's lease; or
- 5) engaging, in bad faith, in a course of conduct that materially interferes with the tenant's rights under the tenant's lease. Tex. Prop. Code § 92.331.

Elements Necessary to Establish Federal Fair Housing Act Violation Pursuant to U.S.C. 3604(f)(3)(B)

To recover under the Federal Fair Housing Act, one must show that he/she is a party to whom the American with Disabilities Act and/or the Fair Housing Act applies.

- **Americans With Disabilities Act:** Disability means, with respect to an individual, a physical or mental impairment that substantially limits one or more of the major life activities of such individual; a record of such an impairment; or being regarded as having such an impairment. Major life activities include but are not limited to: caring for oneself, performing manual tasks, seeing, hearing, eating, sleeping, walking, standing, sitting, reaching, lifting, bending, speaking, breathing, learning, reading, concentrating, thinking, writing, communicating, interacting with others, and working. 28 CFR § 36.105.
- **United States Fair Housing Act:** A “handicap” under the FHA refers to a physical or mental impairment which substantially limits one or more of such person’s major life activities, a record of having such an impairment, or being regarded as having such an impairment. 42 U.S.C. § 3602 (h).

42 U.S.C. § 3604 prohibits discrimination in the sale or rental of housing, along with specific other prohibited practices, including, as would be related to the rental of an apartment unit: the terms of the rental control, preferential advertising, representing a unit is not available when it was, in fact, available, to induce/attempt to induce persons of a protected class to rent an apartment. Pursuant to 42 U.S.C. § 3604 f(3)(B), “discrimination” includes a refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling.

42 U.S.C. § 3617 makes it unlawful to coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of, or on account of his having exercised or enjoyed, or on

account of his having aided or encouraged any other person in the exercise or enjoyment of, protected rights.

A party asserting any particular impairment must show that such condition “substantially limits” a major life activity:

- *Houston v. DTN Operating Company, LLC, et al*; (E.D. Texas – 2017) (mere allegations of disability without link to substantial limits of a major life activity not sufficient to support Texas or Federal Fair Housing Act);
- *Thomas v. Salvation Army*, 841 F.3d 632, 639 (4th Cir. 2016) (plaintiff’s complaint was deficient despite providing that she received care from a behavioral health organization, had an appointment with the doctor, and was on medication, because the complaint failed to adequately identify her mental disability);
- *Miles v. Housing Authority Texarkana, TX*, No. 5:15CV37-JRG-CMC, 2016 WL47927, at * 3 (E.D. Tex., Jan.5, 2016) (plaintiff failed to establish she was disabled under the FHA when she alleged she had mental, emotional, and psychological disorders that pose “great obstacles in her life and which affect her moods and ability to comprehend”);
- *Barfield v. Plano Housing Authority*, No. 4-11-cv-00206, 2012 WL 3135892, at*5 (E.D.Tex. July 6, 2012) (holding that the plaintiff failed to create a genuine issue of fact when the complaint did not state what his disability was or how the the Weinstein entities failed to accommodate it).

In a failure-to-accommodate claim, a plaintiff must demonstrate that (1) the residents of the affected dwelling or home suffer from a disability, (2) they requested an accommodation from the defendant, (3) the requested accommodation was reasonable, and (4) the requested accommodation was necessary to afford the residents equal opportunity to use and enjoy the home. Importantly, the plaintiff bears the burden of proving a violation of the FHA. *Women's Elevated Sober Living L.L.C. v. City of Plano*, 86 F.4th 1108, 1110 (5th Cir. 2023).

To prove that an accommodation request is necessary under the federal Fair Housing Act (FHA), courts require that a plaintiff prove that the requested accommodation makes the home either financially viable or therapeutically meaningful. Some courts have determined that necessity must be considered (1) in light of the statutory provision's language; (2) in accord with the purpose

of the FHA and the federal Americans with Disabilities Act, to ameliorate the plaintiff's particular disability; and (3) in the light of proposed alternatives. However, a requested accommodation that is preferable to an alternative is not sufficient; **it must be essential**. *Women's Elevated Sober Living L.L.C. v. City of Plano*, 86 F.4th 1108, 1110 (5th Cir. 2023)(emphasis added).

The 5th Circuit requires that, in order to prevail on a claim of a violation of the Fair Housing Act, the party seeking accommodations bears the burden of showing that a requested accommodation was not simply therapeutically beneficial, but was "indispensable" or "essential". To be therapeutically necessary, an accommodation be "[i]ndispensable, requisite, essential, needful; that cannot be done without, or absolutely required." *Id.* (citing *Vorchheimer*, 903 F.3d at 105). *Henderson v. Five Props. LLC*, No. 24-750, 2025 U.S. Dist. LEXIS 135125, at *9 (E.D. La. 2025).

In *Vorchheimer*, the Third Circuit determined that a resident failed to allege a cognizable failure-to-accommodate claim because the requested accommodation was merely more preferential than the proposed alternatives. See 903 F.3d at 108-09. There, the resident had an ambulatory disability which required the use of a walker to get from her condo to her building's lobby. *Id.* at 103-04. The condominium owners' association rejected her request to leave the walker in the lobby but offered several methods to store it for her, all of which she refused. *Id.* at 104. In affirming the district court's dismissal of her claim, the *Vorchheimer* court noted that the necessity inquiry "adopts a strict sense of 'necessary'" and may "function[]" as a but-for causation requirement, tying the needed accommodation to equal housing opportunity." *Id.* at 110. The Third Circuit concluded that, based on its strict reading of § 3604(f)(3)(B) and the prior jurisprudence in its court and its sister circuits, the resident failed to prove that her requested accommodation was

necessary considering the definition of the term, the purpose of the FHA, and the proffered alternatives. *Id.* at 112-13.

As to the reasonableness element, the burden is on the plaintiff to show that the requested accommodation is reasonable. See *Elderhaven, Inc. v. City of Lubbock, Tex.*, 98 F.3d 175, 178 (5th Cir. 1996) (holding that a plaintiff, and not a defendant, bears the burden of proof on the question of reasonableness). “[T]he amount of fees imposed, the relationship between the amount of fees and the overall housing cost, the proportion of other tenants paying such fees, the importance of the fees to the landlord’s overall revenues, and the importance of the fee waiver to the handicapped tenant.” *California Mobile Home Park Mgmt. Co.* I, 29 F.3d at 1417; see also *United States v. California Mobile Home Park Mgmt. Co.*, 107 F.3d 1374, 1381 (9th Cir. 1997) (“California Mobile Home Park Mgmt. Co. II”) (“Each of the factors we discussed [in California Mobile Home Park Mgmt. Co. I] is relevant to the balancing of interests inherent in any ‘reasonableness’ determination.”).

Elements Necessary to Establish Negligent Remediation/Negligence Per Se

A “negligent remediation” cause of action does not exist in Texas (as a separate cause of action from ordinary negligence).

Negligence per se is a common law doctrine predicated on a statutory definition of duty through which duty is imposed based on a standard of conduct created by a penal statute rather than on the reasonably prudent person test (or general standard of care) used in negligence claims. *Smith v. Merritt*, 940 S.W.2d 602, 606 (Tex. 1997); *Ordonez v. N.W. McCurdy & Co.*, 984 S.W.2d 264, 268 (Tex. App.—Houston [1st Dist.] 1998, no pet.).

Thus, negligence per se arises when the Court accepts a legislatively adopted criminal statute as a standard for civil liability. *Perry v. S.N.*, 973 S.W.2d 301, 304 (Tex. 1998). Therefore, a duty is imposed based on the standard of conduct created by a penal statute, rather than the reasonably prudent person standard used in “pure” negligence claims. *Pack v. Crossroads, Inc.*, 53 S.W.3d 492, 508 (Tex. App.—Fort Worth 2001, pet. denied) (citing *Smith v. Merrit*, 940 S.W.2d 602, 607 (Tex. 1997)). In *Perry*, the Supreme Court of Texas outlined several factors to be considered in determining whether imposition of tort liability for violations of a statute was appropriate. *Perry* at 309. Those factors included: (1) whether the statute is the sole source of any tort duty from the defendant to the plaintiff or merely supplies a standard of conduct for an existing common-law duty; (2) whether the statute puts the public on notice by clearly defining the required conduct; (3) whether the statute would impose liability without fault; (4) whether negligence per se would result in ruinous damages disproportionate to the seriousness of the statutory violation; and (5) whether the plaintiff’s injury is a direct or indirect result of the violation of the statute. *Id.*; See also *El Chico v. Poole*, 732 S.W.2d 306 (Tex. 1987, superseded by statute); *Ordonez v. M.W. McCurdy & Co., Inc.*, 984 S.W.2d 264, 268 (Tex. App.—Houston [1st Dist.] 1998, no pet.). These factors are not exclusive, but are guidelines to assist the court in imposition of tort liability for violations of a statute in a manner which is “fair, workable, and wise”. *Perry*, 973 S.W.2d at 305-06; *Ordonez*, 984 S.W.2d at 268 (“determination of whether to impose negligence per se should not be made merely by counting how many factors lean each way”).

Negligence per se liability requires two threshold determinations: (1) that the plaintiff belongs to the class that the statute was intended to protect; and (2) that the plaintiff’s injury is of a type that the statute was designed to prevent. *Ridgecrest Ret. & Healthcare v. Urban*, 135 S.W.3d 757, 762 (Tex. App.—Houston [1st Dist.] 2004, pet. denied) (citing *Perry v. S.N.*, 973 S.W.2d

301, 305 (Tex. 1998)). “[A]ffirmative conclusions regarding these questions,” however, do not end the court’s analysis. *Pack*, 53 S.W.3d at 508. A determination must still be made regarding the propriety of imposing tort liability for violations of the statute at issue. *Perry*, 973 S.W.3d at 305; *Smith*, 940 S.W.2d at 607-08.

Accordingly, a plaintiff asserting negligence per se is not required to prove that the defendant failed to act as a reasonably prudent person would have acted under the same or similar circumstances. *Id.* Instead, the plaintiff must prove that:

- (1) the defendant violated a statute or ordinance setting an applicable standard of care;
- (2) the breach was the proximate cause of the plaintiff’s damages; and
- (3) the statute was designed to prevent an injury to that class of persons to which the plaintiff belongs.

Trujillo v. Carrasco, 318 S.W.3d 455, 458 (Tex. App.—El Paso 2010, no pet.).

Additionally, of significance, phrasing of pleadings to encompass “per se negligence” – does not effect application of premises liability law. A plaintiff cannot creatively transform her premises defect claim into a negligence per se claim. *Padron v. Catholic Diocese of Austin*, No. 06-18-00087-CV, 2019 Tex. App. LEXIS 2838, at *15 (Tex. App.—Texarkana Apr. 10, 2019). Therefore, if violation of a city ordinance is used to attempt to establish the basis for a negligence per se cause of action – in a case which is a premises liability case -and the condition at issue is one that constitutes some sort of premises defect, then the failure to follow the ordinance- is only relevant as to the third necessary element that is to be established by the Plaintiff, under a premises liability theory: the owner failed to exercise reasonable care to reduce or eliminate risk. In other words, the ordinance is used only to indicate what constitutes “reasonable care”. *Wyckoff v. George C. Fuller Contracting Co.*, 357 S.W.3d 157 (Tex. App.—Dallas 2011); *McDaniel v. Cont’l Apartments Joint Venture*, 887 S.W.2d 167 (Tex. App.—Dallas 1994, writ denied), citing to

Keetch v. Kroger Co., 845 S.W.2d 262, 264 (Tex. 1992); and *Nixon v. Mr. Property Management Co.*, 690S.W.2d 546, 549 (Tex. 1985).

16 Tex. Admin. Code § 78 applies to persons who must be licensed and/or registered pursuant to Tex. Occup. Code § 1958, in order to engage in mold assessment and/or mold remediation. Copeland cites the following specific provisions:

- **Elements Necessary to Establish a Violation of 16 Tex. Admin. Code § 78.65:** This provision of the Tex. Admin. Code does not exist.
- **Elements Necessary to Establish a Violation of 16 Tex. Admin. Code § 78.71:** This provision of the Tex. Admin. Code does not exist.
- **Elements Necessary to Establish a Violation of Tex. Occup. Code § 1958.154:** after remediation, a license holder shall provide a certificate of mold remediation to the property owner. This certificate must include: a statement by a mold assessment license holder that, based on visual, procedural, and analytical evaluation, the mold contamination identified for the project has been remediated as outlined in the mold management plan or remediation protocol. If the mold assessment license holder determines that the underlying cause of the mold has been remediated so that it is reasonably certain that the mold will not return from that remediated cause, the mold assessment license holder shall indicate on the certificate that the underlying cause of the mold has been remediated.
- **Elements Necessary to Establish a Violation of Tex. Occup. Code § 1958.202:** This provision of the Texas Occupation Code does not exist.

Elements Necessary to Establish Trespass to Chattel/Conversation

A trespass to chattels is a wrongful interference with or injury to property that causes actual damage to the property or deprives the owner of its use for a substantial period of time. *Omnibus Int'l, Inc. v. AT&T, Inc.*, 111 S.W.3d 818, 826 (Tex. App.-Dallas 2003, pet. granted, judgment vacated w.r.m.). Conversion is the unauthorized and unlawful exercise of dominion and control over the personal property of another to the exclusion of and inconsistent with the owner's rights in the property. *Waisath v. Lack's Stores, Inc.*, 474 S.W.2d 444, 447, 15 Tex. Sup. Ct. J. 127 (Tex. 1971); *Robinson v. Nat'l Autotech, Inc.*, 117 S.W.3d 37, 39 (Tex. App.-Dallas 2003, pet. denied).

Under Texas law, a demand for the return of property can be refused without an action for conversion accruing only if "the refusal is not absolute, but is qualified by certain conditions which are reasonable and justifiable, and which are imposed in good faith and in recognition of the rights of the plaintiff." *Earthman's Inc. v. Earthman*, 526 S.W.2d 192, 204 (Tex. App.--Houston [1st Dist.] 1975, no writ) (quoting 89 C.J.S. Trover & Conversion § 59b, 564-65). Thus, only a "qualified refusal" serves to protect one against an action for conversion. *Id.*; *Burns v. Rochon*, 190 S.W.3d 263, 269 (Tex. App.—Houston [1st Dist.] 2006, no pet.)

The mere failure by the defendant to deliver the property after a demand is generally not sufficient to prove an affirmative refusal. *Ramon v. Down*, 2009 Tex. App. LEXIS 1450, 2009 WL 508427, at *2; see also *Buffet Partners LP*, 256 S.W.3d at 924 (when party accused of converting property originally had lawful possession, conversion does not occur until return of property has been demanded and refused or party in possession has unequivocally exercised acts of dominion over property inconsistent with claim of owner or person entitled to possession). To be liable for conversion, a person must intend to assert some right in the property. *Robinson v. Nat'l Autotech, Inc.*, 117 S.W.3d 37, 40 (Tex. App.—Dallas 2003, pet. denied); *MSMTBR, Inc., v. Mid-Atlantic Fin. Co.*, 2014 Tex. App. LEXIS 8103, 2014 WL 3697736, at *9 (emphasis added). *Sky Grp., LLC v. Vega St. 1, LLC*, No. 05-17-00161-CV, 2018 Tex. App. LEXIS 1652, at *14 (Tex. App.—Dallas Mar. 5, 2018, no pet.).

Declaratory Judgment Act

Copeland has asked for declaratory judgment pursuant to *16 Tex. Admin. Code* § 78.71. This provision does not exist.

Generally, Declaratory Judgment may be sought where A person interested under a deed, will, written contract, or other writings constituting a contract or whose rights, status, or other legal

relations are affected by a statute, municipal ordinance, contract, or franchise may have determined any question of construction or validity arising under the instrument, statute, ordinance, contract, or franchise and obtain a declaration of rights, status, or other legal relations thereunder. Tex. Civ. Prac. & Rem. Code § 37.004(a). Where a proceeding under this chapter involves the determination of an issue of fact, the issue may be tried and determined in the same manner as issues of fact are tried and determined in other civil actions in the court in which the proceeding is pending. *Id.* at 37.008.

Constructive Eviction

Constructive eviction occurs when four distinct elements: 1) an intention on the landlord's part that the tenant no longer enjoy the premises, 2) a material act by the landlord substantially interfering with the use and enjoyment of the premises for the purposes for which they are let; 3) an act that permanently deprives the tenant of the use and enjoyment of the premises, and 4) an abandonment of the premises by the tenant within a reasonable time after the commission of the act. *Briargrove Shopping Ctr. Joint Venture v. Vilar, Inc.*, 647 S.W.2d 329, 334 (Tex. App.—Houston [1st Dist.] 1982, no writ); see also *Westwood Motorcars, LLC v. Virtuolotry, LLC*, 689 S.W.3d 879, (Tex. 2024).

. Conduct permitted by the lease may be explicitly excluded from the jury's consideration as conduct constituting a constructive eviction. *Briargrove*, at 334.

SUBSTANTIVE LAW APPLICABLE TO DAMAGES

With respect to establishing the element of “harm” or damages, Texas courts have identified the factors and/or requirements for recovery of damages.

Physical Injury and Pain/Suffering

Texas law makes clear that with respect to cause and harm, and specifically regarding the cause of a specific medical or physical condition, medical expert testimony is required to establish a causal nexus. See Tex. R. Evid. 702, 703; *Broders v. Heise*, 924 S.W.2d 148 (Tex. 1996); *Arlington Memorial Hospital, Inc. v. Baird*, 991 S.W.2d 918, 921 (Tex. App.--Fort Worth, writ denied); *Pace v. Sadler*, 996 S.W.2d 685, 689-690 (Tex. App.--Beaumont 1991, writ denied); *Lesser v. St. Elizabeth Hosp.*, 804 S.W.2d 657 (Tex. App.--Beaumont 1991, writ denied); *Gladewater Municipal Hosp. v. Daniel*, 694 S.W.2d 619, 620 (Tex. App.--Texarkana 1985, no writ); *Kieswetter v. Center Pavilion Hosp.*, 662 S.W.2d 24, 27 (Tex. App.--Houston [1st Dist.] 1983, no writ); *Bowles v. Bourdon*, 219 S.W.2d 779 (Tex. 1949).

With respect to claims of future pain and suffering, the Plaintiff seeking this element of damage must show that there is reasonable probability that the pain and suffering will continue in the future. *National Cty. Mut. Fire Ins. v. Howard*, 749 S.W.2d 618, 622 (Tex. App.--Fort Worth 1988, writ denied).

Recovery of Medical Expenses

Past and future medical expenses are recoverable elements of damages if the plaintiff can show that such expenses were or will be necessarily incurred in treatment of the injury in question and are reasonable in amount. *Dallas Railway & Terminal Company v. Gossett*, 156 Tex. 252, 294 S.W.2d 377, 382-383 (1956); *Gerland's Food Fair, Inc. v. Hare*, 611 S.W.2d 113, 117 (Civ. App.--Houston [1st Dist.] 1980, ref. n.r.e.); *Travelers Ins. Co. v. Brown*, 750 S.W.2d 916, 918 (Tex. App.--Amarillo 1988, den.). Proof that medical services were rendered to the plaintiff is not sufficient to establish that the services were necessary in treatment of the injury at issue in the suit. *Quaker Petroleum Chems. Co. v. Waldrop*, 75 S.W.3d 549, 554 (Tex. App.--San Antonio 2002, no pet.); see *Orkin Exterminating Co., Inc. v. Davis*, 620 S.W.2d 734, 737 (Tex. Civ. App.--Dallas

1981, ref. n.r.e.) (medical bills and testimony that charges were reasonable not sufficient to show that services were necessary as result of collision in question or that they were actually performed); *Kulms v. Jenkins*, 557 S.W.2d 149, 154 (Tex. Civ. App.--Amarillo 1977, writ ref'd n.r.e.).

Moreover, the necessary causal link, between the medical expenses paid (or to be incurred) and the alleged incident/injury, must be established by competent evidence. While lay testimony may be sufficient in limited circumstances, usually expert testimony is required to establish the causal connection. *Morgan v. Compugraphic Corp.*, 675 S.W.2d 729, 732-733 (Tex. 1984) (lay testimony sufficient when sequence of events permitted inference of causation); *Guevara v. Ferrer*, 247 S.W.3d 662, 669-670 (Tex. 2007) (expert testimony required). Lay testimony as to causation is sufficient if the causal connection between medical conditions, the incident in question, and the necessity of the particular medical treatments for those conditions are all within the common knowledge and experience of laypersons. *Figueroa v. Davis*, 318 S.W.3d 53, 61-62 (Tex. App.--Houston [1st Dist.] 2010, no pet.) (when claimant's face hit steering wheel in car accident, expert testimony linking impact to dental injuries suffered was not required). Otherwise, expert medical testimony is required to show that the medical expenses were caused by the occurrence or accident at issue. *Guevara* at 667-670 (Tex. 2007); *Christus Health & Christus Health Gulf Coast v. Dorriety*, 345 S.W.3d 104, 107-111 (Tex. App.--Houston [14th Dist.] 2011, pet. denied). With respect to future medical expenses, the Plaintiff must show that in all reasonable probability future medical care will be required and the reasonable cost of that care and this must be established by the testimony of a physician. *Rosenboom Mach. & Tool, Inc. v. Machala*, 995 S.W.2d 817, 828 (Tex. App.--Houston [1st Dist.] 1999, pet denied).

Recovery for Mental Anguish

Mental anguish damages are recoverable only in connection with the defendant's breach of some other duty imposed by law. *Boyles v. Kerr*, 855 S.W.2d 593, 595-596 (Tex. 1993). With respect to recovery for mental anguish damages (past or future), recovery of this element of damage in a negligence case is based upon some type of physical injury experienced by the Plaintiff. *Fifth Club, Inc. v. Ramirez*, 196 S.W.3d 788, 797 (Tex. 2006)(when plaintiff suffered severe beating at hands of security guard, and evidence established continuing effect of depression and other significant disruptions of plaintiff's daily routine, award of future mental anguish damages was proper); *City of Tyler v. Like*, 962 S.W.2d 489, 496 (Tex. 1997). However, to support a claim for mental anguish damages, the physical injury must be more than the mental sensation of pain resulting from grief or minor injury. *Verinakis v. Medical Profiles, Inc.*, 987 S.W.2d 90, 95-96 (Tex. App.--Houston [14th Dist.] 1998, pet. denied). Further, to be compensable, mental anguish must involve a relatively high degree of mental pain and distress. It must consist of more than mere disappointment, anger, resentment or embarrassment. *Parkway Co. v. Woodruff*, 901 S.W.2d 434, 444 (Tex. 1995); *Stevens v. National Educ. Centers, Inc.*, 11 S.W.3d 185, 185-186 (Tex. 2000).

Physical Impairment

With respect to physical incapacity/impairment, the plaintiff must establish that recovery for physical impairment encompasses the loss of the plaintiff's former lifestyle. *Santa Rosa Medical Center v. Robinson*, 560 S.W.2d 751, 762 (Civ. App.--San Antonio 1977, no writ). In order to recover for physical impairment, a plaintiff must be able to establish and show that the loss is substantial and for which the plaintiff should be compensated. *Funk Farms, Inc. v. Montoya*, 736 S.W.2d 803, 807 (Tex. App.--Corpus Christi 1987, ref. n.r.e.); *Firestone Tire & Rubber Co.*

v. Battle, 745 S.W.2d 909, 917 (Tex. App.—Houston [1st Dist.] 1988, den.) Courts focus on whether the injuries have actually impeded a plaintiff's ability to engage in specific non-work-related activities considering if they are obvious from the injury itself or if there is some evidence of specific non-work-related tasks or activities that he or she can no longer perform. *Patlyek v. Brittain*, 149 S.W.3d 781, 787 (Tex. App.--Austin 2004, pet. denied).

Physical impairment includes the loss of enjoyment of life. *Golden Eagle Archery, Inc. v. Jackson*, 116 S.W.3d 757, 772 (Tex. 2003); *See also* FN 16, citing *Peek v. Equip. Serv. Co. of San Antonio*, 779 S.W.2d 802, 803 (Tex.1989); *see also Mo. Pac. R.R. Co. v. Handley*, 341 S.W.2d 203, 205 (Tex. Civ. App.-San Antonio 1960, no writ) (concluding that damages for "mental anguish, severe and continued pain and suffering, disfigurement, embarrassment and inability to live a normal life" were not excessive when the plaintiff's fingers had been amputated and he was unable to grip anything or hunt and fish as he had in the past); *but see Ramos v. Kuzas*, 65 Ohio St.3d 42, 600 N.E.2d 241, 243 (1992) (holding that "[h]edonic losses' include the inability to perform the plaintiff's usual specific activities which had given pleasure to this particular plaintiff, such as playing golf, dancing, bowling, playing musical instruments, and engaging in specific outdoor sports," which must be distinguished from "[b]asic losses" or "disability losses" that "include the inability to perform the basic mechanical body movements of walking, climbing stairs, feeding oneself, and driving a car").

Breach of Contract Damages, Generally

The general means for measuring damages for a breach of contract is "just compensation for the loss or damage actually sustained". *Phillips v. Phillips*, 820 S.W.2d 785, 788 (Tex. 1991); *Stewart v. Basey*, 245 S.W.2d 484, 486 (Tex. 1952); *Bowen v. Robinson*, 227 S.W.3d 86, 96 (Tex.

App.—Houston [1st Dist.] 2006, pet. denied). Further, damages recoverable generally for breach of contract are categorized as either direct (general) damages or special (consequential damages).

Direct damages compensate for losses that naturally and necessarily result from a breach of contract. Special or consequential damages compensate for losses that follow naturally but are not necessarily from the breach and thus, are recoverable only if the breaching party had notice or could have foreseen at the time the contract was made, that the other party would suffer that particular loss if the contract was not performed according to its terms. *Basic Capital Mgmt. v. Dynex Commercial*, 358 S.W.3d 894, 901 (Tex. 2011); *Arthur Andersen v. Perry Equipment Corp.*, 945 S.W.2d 812, 817 (Tex. 1997). Therefore, recovery of consequential or special damages requires proof that would support the conclusion that the opposing party, at the time the contract was made, knew or should have known that a failure to perform the as promised could cause a loss of the type. If the loss is too remote so that it cannot be said to have been contemplated by the parties when they contracted initially, consequential or special damages will not be awarded. *Stuart v. Bayless*, 964 S.W.2d 920, 921 (Tex. 1998).

In order to obtain damages/compensation for breach of a contractual duty, the causal connection between the breach and the loss must be proven. This connection has two elements: (1) the loss must result from the breach in the sense that it would not have occurred but for the party's failure to perform as promised, and (2) the loss must have been within the parties' contemplation at the time the contract was made. *Mead v. Johnson Group, Inc.*, 615 S.W.2d 685, 687-688 (Tex. 1981).

Further, when seeking money damages for breach of contract, the plaintiff must prove the amount of damages suffered "with reasonable certainty". *El Pas Natural Gas v. Minco Oil & Gas*, 964 S.W.2d 54, 70-71 (Tex. App.—Amarillo 1997), rev'd on other grounds, 8 S.W.3d 309 (Tex.

1999); *Lakewood Pipe v. Conveying Techniques*, 814 S.W.2d 553, 556 (Tex. App.—Houston [1st Dist.] 1991, no writ). Thus, it takes more than mere guesswork or speculation. *Vance v. My Apartment Steak House, etc.*, 677 S.W.2d 480, 484 (Tex. 1984); *El Paso Natural Gas* at 70-71. Moreover, uncertainty as to the *fact* of damages precludes recovery. *Amigo Broadcasting v. Spanish Broadcasting System*, 521 F.3d 472, 483 (5th Cir. [Tex.] 2008).

Recovery of Loss of Earning Capacity and Lost Wages/Earnings

Generally

Loss or impairment of past and future earning capacity may be recovered as an element of damages in a personal injury case. *Bonney v. San Antonio Transit Company*, 325 S.W.2d 117, 120 (1959); *McIver v. Gloria*, 169 S.W.2d 710, 712 (1943). Past earning capacity refers to the plaintiff's ability to earn a living from the date of the injury to the date of trial; future earning capacity encompasses the plaintiff's earning capacity after the date of trial. *Bonney v. San Antonio Transit Company*, 325 S.W.2d 117, 120 (1959). Moreover, recovery for loss of earning capacity is not based on the actual earnings lost, but rather on the loss of the capacity to earn money. *Strauss v. Continental Airlines, Inc.*, 67 S.W.3d 428, 435 (Tex. App.—Houston [14th Dist.] 2002, no pet.).

Significantly, for cases filed on or after September 1, 2003, proof of loss of earning capacity, loss of inheritance, or loss of contributions of a pecuniary value must be adjusted to account for income tax payments and unpaid tax liability pursuant to any federal income tax law. Furthermore, if any claimant seeks recovery for loss of earnings, loss of earning capacity, loss of contributions of pecuniary value, or loss of inheritance, the court must instruct the jury as to whether any recovery for compensatory damages sought by the claimant is subject to federal or state income taxes. *Tex. Civ. Prac. & Rem. Code* § 18.091.

Loss of Earning Capacity

A plaintiff seeking damages for loss or impairment of past or future earning capacity need not “prove the amount of such damages with the degree of certainty to which it is susceptible”. *Bonney at 121*; *McIver v. Gloria*, 169 S.W.2d 710, 712 (1943). However, if the plaintiff is employed at a fixed wage or salary, evidence of his or her past earnings must ordinarily be given. *McIver v. Gloria*, 169 S.W.2d 710, 712 (1943); *Funk Farms, Inc. v. Montoya*, 736 S.W.2d 803, 807 (Tex. App.—Corpus Christi 1987, writ ref’d n.r.e.) (award of damages for loss of future earning capacity was based on evidence of past weekly earnings plus lack of education and training, future disability, and projected life expectancy); *Border Apparel-East, Inc. v. Guadian*, 868 S.W.2d 894, 897–899 (Tex. App.—El Paso 1993, no writ) (insufficient evidence to support award for lost earning capacity in absence of evidence of plaintiff’s earning history prior to injury or of factors that would generally affect one’s capacity to earn living, such as stamina, efficiency, or weaknesses or changes that occurred as result of injury). When direct evidence of wages or salary before and after the injury is not available, the plaintiff must produce some evidence from which the loss can be reasonably measured in monetary terms. *Bonney at 121* (1959) (past earning capacity); *McIver v. Gloria*, 169 S.W.2d 710, 712 (1943) (future earning capacity).

Importantly, a party must show a physical impairment that affects his or her ability to earn a living to recover for lost earning capacity. *Metropolitan Life Ins. Co. v. Haney*, 987 S.W.2d 236, 245 (Tex. App.—Houston [14th Dist.] 1999, pet. denied); While lost earning capacity need not be based on any specific degree of physical impairment, it should be based on a composite of all the factors affecting capacity. *Goldston Corp. v. Hernandez*, 714 S.W.2d 350, 352 (Tex. App.—Corpus Christi 1986, writ ref’d n.r.e.). Significantly, in conducting this analysis, lost earning capacity may not be inferred simply from evidence of an injury, even if the injury is so serious and

permanent that such loss would seem inevitable. *Paschall v. Peevey*, 813 S.W.2d 710, 715 (Tex. App.—Austin 1991, writ denied).

Lost Earnings/Lost Wages

The plaintiff's burden of proving lost earnings is greater than the burden of proving loss or impairment of earning capacity. *T.J. Allen Distributing Co. v. Leatherwood*, 648 S.W.2d 773, 775 (Tex. App.—Beaumont 1983, writ ref'd n.r.e.); *Bailey v. Merrill*, 582 S.W.2d 489, 490 (Tex. Civ. App.—Beaumont 1979, writ ref'd n.r.e.). This is because proof of lost earnings requires evidence of the plaintiff's actual earnings prior to his or her injury and his or her earnings or possible earnings after the injury. *City of Rosenberg v. Renken*, 616 S.W.2d 292, 293–294 (Tex. Civ. App.—Houston [14th Dist.] 1981, no writ); see *River Oaks Townhomes Owners' Ass'n v. Bunt*, 712 S.W.2d 529, 533 (Tex. App.—Houston [14th Dist.] 1986, writ ref'd n.r.e.) (award of damages for lost earnings was reversed despite self-employed plaintiff's testimony that he missed five days of work as engineering consultant at \$250 per day, because there was no record of actual earnings or other basis for determining actual earnings); *Home Interiors & Gifts, Inc., v. Veliz*, 695 S.W.2d 35, 42 (Tex. App.—Corpus Christi 1985, writ ref'd n.r.e.) (award of damages for lost earnings was reversed because record contained no evidence to indicate plaintiff's actual wages or hours worked); *Tucker v. Lightfoot*, 653 S.W.2d 587, 593 (Tex. App.—San Antonio 1983, no writ) (proof of loss of past earnings may be based on estimate of average yearly earnings from sole proprietorship recomputed on monthly basis).

Recovery of DTPA Damages

Recovery of Mental Anguish Damages

Mental anguish damages may also be recoverable pursuant to an applicable statute, such as the Texas DTPA. In order to recover mental anguish damages, under the DTPA, however, it

must be shown and proven that the alleged conduct of the defendant was committed “knowingly”. *Tony Gullo Motors I, L.P. v. Chapa* 212 S.W.3d 299, 304 (Tex. 2006). “Knowingly” means actual awareness at the time of the alleged conduct complained of – of the falsity, deception or unfairness of the conduct. Actual awareness does not mean that the person have knowledge of the conduct, but instead, that the person know that the conduct is false, deceptive or unfair. *St. Paul Surplus Lines Ins. Co v. Dal-Worth Tank Co.*, 974 S.W.2d 51, 53-54 (Tex. 1998).

Recovery of Treble Damages

In order to recover up to (not more than) treble a Plaintiff’s economic damage, the alleged conduct of the defendant must, as in recovery of mental anguish damages under the DTPA, be shown to have been committed “knowingly” or “intentionally”. *Tex. Bus. & com. Code Section 17.50(b)(1)*. Determining whether the alleged conduct was committed “knowingly” and/or “intentionally” follows the same analysis and requires the same type of evidence, as when assessing entitlement to an award for mental anguish damages, pursuant to a violation of the DTPA (Please see *Recovery for Mental Anguish Damages*, herein).

In computing/calculation such award, inclusion of attorney’s fees, costs and prejudgment interest may not be considered. *Tex. Bus. & Com. Code Section 17.50(e)*.

Recovery of Exemplary Damages

Generally

To recover exemplary damages, a plaintiff must prove entitlement to same, through establishing either fraud, malice or gross negligence, and must do so by clear and convincing evidence. The burden of proof may not be shifted to the defendant or satisfied by ordinary negligence, bad faith, or a deceptive trade practice.

Tex. Civ. Prac. & Rem. Code Section 41.003.

Elements of Gross Negligence

Pursuant to Tex. R. Civ. Prac. & Rem. Code, “gross negligence” is defined as an act or omission which:

- Which when viewed objectively from the standpoint of the actor at the time of its occurrence involves an extreme degree of risk, considering the probability and magnitude of the harm to others; and
- Of which the actor has actual, subjective awareness of the risk involved but nevertheless proceeds with conscious indifference to the rights, safety, or welfare of others.

Tex. Civ. Prac. & Rem. Code Section 41.001(11)

Whether the risk was “extreme” must be judged from the view of the defendant at the time the events occurred, without the benefit of hindsight. *Transportation Ins. Co. v. Moriel*, 879 S.W.2d 10, 23 (Tex. 1994); *Exxon Mobile Corp. v. Altimore*, 256 S.W.3d 415, 418-425 (Tex. App.-Houston [14th Dist.] 2008, no pet.). “Extreme risk” is a function of both the magnitude and the probability of the anticipated injury to the plaintiff. *HCRA of Tex., Inc. v. Johnston*, 178 S.W.3d 861, 873-874 (Tex. App.-Fort Worth 2005, no pet.). The standard is not satisfied by a remote possibility of injury or even a high probability of minor harm, but rather requires the likelihood of serious injury. *Dillard Dep’t Stores, Inc. v. Silva*, 148 S.W.3d 370, 374 (Tex. 2004) (no evidence false imprisonment exposed plaintiff to extreme risk of substantial harm); *Universal Services Co., Inc. v. Ung*, 904 S.W.2d 638, 641-642 (Tex. 1995) (allowing road crew to work near pothole that had previously caused accident without taking precautions to prevent accident was not extreme conduct that created likelihood of serious injury); *Wal-Mart Stores, Inc. v. Alexander*, 868 S.W.2d 322, 326-327 (Tex. 1993) (no evidence that store’s conduct in allowing ridge to remain between entrance ramp and parking lot created extreme risk of harm). Further, with respect to “conscience indifference”, negligence and/or imperfection in efforts to protect against danger are not sufficient to establish this element. *Diamond Shamrock Refining Co. v. Hall*, 168 S.W.3d 164, 170-173

(Tex. 2005). Further, “actual awareness” means that the defendant knew about the risk, but its acts or omissions demonstrated that it did not care. *Wal-Mart Stores, Inc. at 326*.

Moreover, a corporation cannot be held grossly negligent for the acts of its employees unless certain criteria can be established. Specifically, the four separate and distinct categories that can serve as the basis for the imputation of gross negligence or malice of an employee to the corporate employer are:

1. The corporation authorized the doing and the manner of the act; or
2. The agent was unfit and the corporation was reckless in employing him; or
3. The agent was employed as a vice-principal or manager for the corporation and was acting in the scope of employment; or
4. The corporation or a vice-principal or manager of the corporation ratified or approved the act.

Hammerly Oaks, Inc. v. Edwards, 958 S.W.2d 387, 391 (Tex. 1997); *Fisher v. Carrousel Motor Hotel, Inc.*, 424 S.W.2d 627, 630 (Tex. 1967); *Fort Worth Elevators Co. Russel*, 70 S.W.2d 397, 406 (Tex. 1934).

Vice-principals include the following groups of corporate agents:

1. Corporate officers;
2. Those with authority to employ, direct, and discharge servants of the master;
- 3 Those engaged in the performance of non-delegable or absolute duties of the master; and
4. Those to whom a master has confided the management of the whole or a department or division of his business.

Fort Worth Elevators Co. v. Russell, 70 S.W.2d 397, 406 (Tex. 1934).

Absent Actual Damages There is No Basis for Recovery of Punitive Damages

Pursuant to Tex. Civ. Prac. & Rem. Code Section 41.004, exemplary damages may be awarded only if damages other than nominal damages are awarded. Moreover, Texas case law makes clear that It has long been the law in Texas that actual damages are required for an award of punitive damages.

- A plaintiff must prove that he suffered some actual damages before he can recover punitive damages. *City Prod. Corp. v. Berman*, 610 S.W.2d 446, 450 (Tex. 1980). *Berman* involved a dispute over a covenant not to compete and whether it violated antitrust provisions of the Texas Business and Commerce Code. *Id.* at 447. The Texas Supreme Court held that the covenant did not violate the antitrust laws, and, since the jury found that Plaintiff had not suffered any actual damages, it could not award Plaintiff punitive damages. *Id.* 449-50.
- A plaintiff may not recover punitive damages for breach of an implied covenant without a finding of an independent tort accompanied with actual damages. *International Bank, N.A. v. Morales*, 736 S.W.2d 622, 624 (Tex. 1987). In *Morales*, Plaintiff sued a bank for wrongful foreclosure of collateral, and the jury awarded him actual and exemplary damages. *Id.* at 623. While Plaintiff presented some evidence of actual damages as a result of the bank's breach of the implied covenant to dispose of collateral in a commercially reasonable manner, there was no evidence to establish an independent tort, any accompanying actual damages, or gross negligence. *Id.* at 624. Thus, Plaintiff was not entitled to recover exemplary damages. *Id.*
- Recovery of actual damages is a prerequisite for any award of punitive damages. *Nabours v. Longview Sav. & Loan Ass'n.*, 700 S.W.2d 901, 904 (Tex. 1985). In *Nabours*, the Plaintiffs sought an injunction to prevent the Defendant from foreclosing on their home and to recover damages. *Id.* at 901. The jury found that Plaintiffs suffered no actual damages, but they returned with a verdict for punitive damages. *Id.* The Texas Supreme Court held that Plaintiff was not entitled to the punitive damages award without a finding of actual damages. *Id.* at 903. "[A]ctual damage is a necessary element of the underlying tort upon which the punitive damages are to be based." *Id.* at 904.
- "[W]ithout evidence of actual damages, punitive damages cannot be recovered." *Saenz v. Fid. & Guar. Ins. Underwriters*, 925 S.W.2d 607, 614 (Tex. 1996). In *Saenz*, Plaintiff was working as a secretary when she fell in her chair and injured her head. *Id.* at 608. She filed suit against her employer's workers' compensation carrier and the adjuster for wrongfully inducing her to settle her claim, and the jury awarded her actual damages for future medical expenses and mental anguish as well as punitive damages. *Id.* The Texas Supreme Court held that there was no evidence that Plaintiff suffered any actual damages, and therefore, she was not entitled to an award of punitive damages. *Id.* at 614.

Property Damages/Fair Market Value

The proper measure of damages is the difference in the property's market value immediately before and immediately after the injury. *City of Tyler v. Likes*, 962 S.W.2d 489 (Tex. 1997). Market value is defined as the difference in the value of the item immediately before and after injury to the property at the place where the damage occurred. *Thomas v. Oldham*, 895 S.W.2d 252 (Tex. 1995). In addition, the market valuation must be determined in the place where the damages occurred, usually in the county in Texas where the property was located. *Peter Salt Peter Energy Company v. Crystal Oil Company*, 524 S.W.2d 383 (Tex. App. – Corpus Christ 1975, writ refused, n.r.e.).

A plaintiff may testify and provide the evidence for the fair market value for the property but only if the testimony establishes that the plaintiff is familiar with the market value and only if the plaintiff's assessment is based upon the market rather than an intrinsic value (value of the property to the plaintiff). Fair market value is identified as the price the property would bring when offered for sale by one seeking to sell (but is not obligated to sell) and bought by one who is not obligated to purchase. Intrinsic value, in contrast, is the inherent value not established by market forces but based on sentimental or personal value. *Matheus v. Sasser*, 164 S.W.3d 453, 463 (Tex. App.—Fort Worth 2005, no pet.).

Recovery of Attorney's Fees

As a preliminary matter, a party may not recover fees for work performed by that party as an attorney, as such fees are not “incurred”; a party, when proceeding pro so, does not incur attorney's fees as that term is used in its ordinary meaning because one does not at any time become liable for attorney's fees. *Jackson v. State Office of Admin. Hearings*, 351 S.W.3d 290, 300 (Tex. 2011).

In seeking recovery of attorney's fees, and when asserting additional causes of action (which would not provide for recovery of attorney's fees, the prevailing plaintiff must allocate their attorney's fees between claims on which attorney's fees are recoverable and those claims which do not provide for such recovery. *Chapa* at 212 S.W.3d 299, 310-315 (Tex. 2006); *Arlington Home, Inc. v. Peak Envtl. Consultants, Inc.*, 361 S.W.3d 773, 782 (Tex. App.—Houston [14th Dist.] 2012, pet. denied). Further, by way of example - the fact that a plaintiff's tort claim and DTPA claim are dependent upon the same set of facts and circumstances does not mean that each require the same research, discovery, proof or legal expertise, nor are unrecoverable fees rendered recoverable because they are nominal and intertwined facts do not make tort fees recoverable. *Chapa* at 313-314.

Texas courts have, for years, analyzed and considered how recovery of attorney's fees should be effectuated and calculated. It has long been the law, that Texas follows the "American Rule" which asserts that the party incurring the attorney's fees, has no inherent right to recover attorney's fees from the non-prevailing party, unless there is a specific statutory or contractual authority allowing it. *Chapa*, at 310-311 (observing that Texas law has followed the American Rule for more than a century). When fee shifting is authorized, it is not intended or permitted to be used as a mechanism for greatly improving the attorney's economic situation. *Cf. Pennsylvania v. Del. Valley Citizens' Council for Clean Air*, 478 U.S. 546 565, 106 S. Ct. 3808, 92 L. Ed. 2d 439 (1986). Therefore, the party seeking a fee must prove the reasonableness and necessity of the requested fee. *Kinsel v. Lindsey*, 526 S.W.3d 411, 427 (Tex. 2017); *In re Nat'l Lloyds Ins. Co.*, 532 S.W.3d 794, 809 (Tex. 2017).

Determining how to establish that a party's claimed attorney's fees are reasonable and necessary has been succinctly identified in the Texas Supreme Court's recent holding in *Rohrmoos*

Venture v. UTSW DVA Healthcare, LLP, 578 S.W.3d 469 (Tex. 2019). In *Rohrmoos*, the Court made clear that the starting point for calculating an attorney's fee award is determining the number of reasonable hours worked multiplied by a reasonable hourly rate and the fee claimant bears the burden of providing sufficient evidence of both. *Id* at 498. Sufficient evidence includes (at a minimum) evidence of: 1) particular services performed; 2) who performed the services; 3) approximately when the services were performed; 4) the reasonable amount of time required to perform the services; and 5) the reasonable hourly rate for each person who performed the services (this provides the base "lodestar" figure and should approximate the reasonable value of the legal services provided in prosecuting or defending a prevailing party's claim through the litigation process). *Id*. This lodestar calculation should also reflect only the hours reasonably expended for the services reasonably necessary to the litigation, and as such, excessive, redundant or unnecessary hours should be excluded. *Id* at 498-499.

VI.

THE WEINSTEIN ENTITIES ARE ENTITLED TO TRADITIONAL SUMMARY JUDGMENT , PURSUANT TO TEXAS RULE OF CIVIL PROCEDURE 166a(C)

Defendants move for traditional summary judgment on the following causes of action:

- Fraudulent Inducement
- Deceptive Trade Practices;
- Breach of Contract;
- Failure to Repair under the Property Code;
- Retaliation under the Property Code;
- Fair Housing Act violations;
- Negligence/Premises Liability;
- Gross Negligence;

- Trespass to Chattels/Conversion
- Constructive Eviction
- Toxic Torts

Weinstein notes, generally, that Copeland has no experts to testify as to liability, standard of care, causation, and/or damages, on any cause of action and/or affirmative defense for which she bears the burden of proof. Copeland's causes of action require an expert as to the standard of care required of a reasonable property management company and/or property owner – matters outside the knowledge of a lay person. Instead, Copeland has no expert to opine as to the applicable standard of care – what a property manager/owner should have done or not done – as to any particular incident complained of in her suit. She has no expert to speak as to management and maintenance of the apartment complex, generally, and/or of any of the specific matters for which she complains: leasing (as to “misrepresentations” purportedly made to her); repair and remedy of the apartment unit (as to the purported mold and/or the sufficiency of any particular previous repair, to include whether any moisture/water damage was “painted over” and/or whether the HVAC system was previously repaired correctly; what manager/owner should have done in regarding to any applicable statute, including Texas Property Code and/or federal Fair Housing Act; the obligations under the lease, and whether same were violated; the proper handling of a tenant's items when there is a water intrusion and/or necessity of repair; exclusion of a tenant from a property; and/or proper procedure/protocol for mold remediation within a multifamily apartment complex.

Copeland has identified no medical doctor who is competent to provide evidence of either general (that the amount/time/type of mold Copeland was purportedly exposed to is capable of causing human illness) and/or specific (that the illnesses/symptoms Copeland actually complains

of are the type of human illness that can be caused by mold to which she was purportedly exposed).

In order to prevail on her toxic tort claim, Plaintiff must be able to show, by expert testimony, that regulated mold (visible mold that affected more than 25 square feet of contiguous surface area) existed, and that such mold existed in a quantity, quality, and dose exposure such that it would be capable of causing human illness. Without an expert to opine of her behalf with evidence to show that the base testing and/or sampling was performed properly, and/or any mold existed in her apartment of the sufficient quantity, quality, and/or dose exposure, it is impossible for Plaintiff to make even a prima facie showing that her apartment was contaminated mold contamination, the purported concentration/level of same, and/or that she could have been injured by same. Plaintiff has further failed to provide, by expert testimony/evidence, any admissible evidence relating to laboratory testing of any sampling and/or interpretation of same; causes of mold growth, conditions leading to mold growth, signs of mold growth, proper inspection for mold growth, and/or proper remediation of mold growth. Even if a mold assessment report produced by Plaintiff were supported by a competent/proper sponsoring witness, it cannot speak to the level of mold that Plaintiff was actually exposed to in the apartment, because it does not show, and “testing” performed by Plaintiff does not show, a sufficient concentration upon objective and scientifically accepted testing, of an amount which would cause pathogenic illness to humans in particular and/or to Plaintiff specifically.

In support of their Traditional Motion for Summary Judgment on the above-referenced claims, Defendants provide the following summary judgment evidence:

- **Exhibit “A”: Affidavit of Pamela Quinn;**
- **Exhibit “B”: Affidavit of Dr. Patricia Rosen;**
- **Exhibit “C”: Affidavit of Robin Franks;**

- **Exhibit “D”: January 14, 2026 Judgment in Cause No. JP03-25-SC00028212, Copeland v. Weinstein Properties/WMCi X, LLC dba The Bowery at Southside; and**
- **Exhibit “E”: February 13, 2026 Order Granting Defendant’s Motion to Strike Pro Se Plaintiff’s Notice of Appeal, Pursuant to Applicable Vexatious Litigant Order, in Cause No. JP03-25-SC00028212, Copeland v. Weinstein Properties/WMCi X, LLC dba The Bowery at Southside.**

Description of and Reference to Summary Judgment Evidence

AFFIDAVIT OF PAMELA QUINN

The Affidavit of Pamela Quinn sets out the chronological facts of this case. **Exhibit “A”: Affidavit of Pamela Quinn.** It establishes that Weinstein acted in a manner which was appropriate/reasonable for a property owner/manager, to include that Weinstein complied with federal and state law, in every aspect of its dealings with Copeland. The Affidavit also sets out the actions of Copeland, which contrary to the provisions of the lease contract, which interfered with the repair/remediation of the apartment unit, and which were made in contradiction to Weinstein’s rights to its property and rights under the lease.

- Pamela Quinn is the Assistant Director of Asset Management and Support for Weinstein Management Co., Inc., having worked for Weinstein Management Co., Inc. for over 15 years. She identified Weinstein Management Co., Inc. (hereinafter, “Weinstein Management”), as managing the property known as “The Bowery at Southside” (hereinafter referred to as “The Bowery”), located at 405 Crawford Street, Fort Worth, Texas. The Bowery is a multi-family apartment complex owned by WMCi Dallas X, LLC (hereinafter, “WMCi”).
- Weinstein Management provides the staff to conduct all necessary tasks for the management of the property, to include as related to leasing, rent collection, maintenance, and general operations. If a lease violation, Notice of Termination or Notice to Vacate is necessary, the management staff for Weinstein Management issues these notices to a tenant (to include individuals whose leases have expired, and who refuse to leave the property). **Exhibit “A”: Affidavit of Pamela Quinn.**
- In her position, Quinn oversees the operation and management of various apartment complex properties, to include The Bowery, and works closely with the management staff and with tenants. Quinn was involved in the operation and management of the Bowery apartment complex at all relevant time, including: assisting with coordination of maintenance projects, to include locating and contracting with third party service providers, interacting with and

coordinating with and through necessary agencies, and when necessary, may be involved in direct interactions with tenants with respect to various types of matters. **Exhibit “A”:** **Affidavit of Pamela Quinn.**

- Copeland completed her lease application on October 13, 2023. In that application, (and contrary to the statements made in various pleadings in this matter) – Copeland did not state that she was “disabled” or that she suffered from “disabilities” which precluded her from work. Rather, Copeland represented to Weinstein that she worked for “Quintessential Entertainment, Inc.,” and that she made \$5,000.00 a month. She noted that her dogs, “Ruby” and “Moon” were not service animals. Copeland’s application is attached as **Exhibit “A-1” to the Affidavit of Pam Quinn.**³
- On or about October 18, 2023, WMCi entered into a standard Texas Apartment Association lease agreement with Copeland, for the rental of an apartment unit located at 405 Crawford Street, Apt. 2145, in Fort Worth, Texas, 76104. The original lease agreement, dated October 21, 2023 to December 22, 2024. When Copeland completed a Move In Inspection form, in October, 2023, **she did not note any visible mold, mold smells, and/or any indication of past or current issues with water intrusion.** Copeland did not note any visible water lines on any baseboards, and did not note that any previous damage, from water or any other source, had been painted over. See **Exhibit “A-3” to the Affidavit of Pam Quinn.** This lease agreement was extended from December 23, 2024 to May 25, 2025; and then again from May 26, 2025 to August 24, 2025.⁴ See **Exhibit “A-2” to the Affidavit of Pam Quinn.**

³ Ms. Quinn provided a compliant Business Record Affidavit within her affidavit, which proves up, as business records, the following Weinstein documents: Exhibit “A-1”: Application for The Bowery at Southside, completed by Kathryn Copeland; Exhibit “A-2”: The Lease Agreement entered into between Kathryn Copeland and WMCi; Exhibit “A-3”: Move in Inspection Form, completed by Kathryn Copeland; Exhibit “A-4”: Notice of Termination of Lease (August 26, 2025); Exhibit “A-5”: Work orders relating to the apartment rented by Kathryn Copeland Exhibit “A-6”: Email correspondence from Kodi Walker to Kathryn Copeland, dated June 27, 2025; Exhibit “A-7”: Email correspondence from Kodi Walker to Kathryn Copeland, dated June 30, 2025; Exhibit “A-8”: Email correspondence from Jessica Calkins to Kathryn Copeland, dated July 7, 2025; Exhibit “A-9”: Email correspondence between Kodi Walker and/or Jessica Calkins and Kathryn Copeland, dated July 8-11, 2025; Exhibit “A-10”: Email correspondence between Kodi Walker and/or Jessica Calkins and Kathryn Copeland, dated July 12-14, 2025; Exhibit “A-11”: Email exchange between Pamela Quinn (and other staff) and Kathryn Copeland, dated July 30, 2025- August 3, 2025; Exhibit “A-12”: August 6, 2025 Notice to Vacate for Non-Payment of Rent; Exhibit “A-13”: August 18, 2025 DTPA demand letter from Kathryn Copeland, received by Weinstein and referencing being sent to ServPro; Exhibit “A-14”: Email correspondence from Pamela Quinn to Kathryn Copeland, dated September 12-15, 2025; Exhibit “A-15”: Email correspondence from John Douglas to, among others, Pamela Quinn, dated September 16, 2025; Exhibit “A-16”: Photographs of Unit 2145 taken by Weinstein Management staff, on September 22, 2025; Exhibit “A-17”: Key Log Audit for Apartment 2145; Exhibit “A-18”: Temporary Restraining Order, dated October 2, 2025; Exhibit “A-19”: Temporary Injunction; Exhibit “A-20”: November 5, 2025 Notice to Vacate; and Exhibit “A-21”: Certificate of Mold Damage Remediation.

⁴ Copeland’s rent for 2025 for January through July was paid as follows: Richard K. Fawcett paid \$2,450.00 on January 2, 2025; Richard K. Fawcett paid \$2,519.75 on January 30, 2025; Richard K. Fawcett paid \$2,518.66 on March 1, 2025; Richard K. Fawcett paid \$2,513.80 on April 4, 2025; Richard K. Fawcett paid \$2,589.21 on April 30, 2025; Postal Money Order Serial Number 29782159402, in the amount of \$510.00, was posted on June 3, 2025; Postal Money Order Serial Number 29782159380, in the amount of \$1,000.0, was posted on June 3, 2025.; Postal Money Order Serial Number 29782159391, in the amount of \$1,000.00 was posted on June 3, 2025; Steve Burre paid \$2,515.93 on July 1, 2025. Neither Mr. Fawcett nor Mr. Burre are listed as occupants on the lease, neither were tenants

- Copeland did not pay rent for August, September, October, November, or December of 2025, or in January or in February of 2026, and no one paid rent on her behalf. Per the terms of her lease agreement, rent abatement is not provided should a tenant have an issue with the condition of their apartment (the lease language specifically states this will not be provided); the lease provides identification of the remedies provided by Chapter 92 of the Texas Property Code. See **Exhibit A-2” to the Affidavit of Pam Quinn.**
- Per the terms of the May 2025 lease extension, a minimum of 60 days’ notice was required as to: termination of the lease/intent to move-out by Copeland, and non-renewal as to WMCi and/or Weinstein Management. Copeland’s extended written lease (entered into on in May 2025) expired on August 24, 2025. See **Exhibit A-2 to the Affidavit of Pam Quinn.** Copeland did not sign a lease renewal agreement for her May 2025 lease extension prior to her lease expiration on August 24, 2025, and did not sign a lease renewal agreement or a new lease with WMCi and/or Weinstein Management from August 24, 2025 to August 26, 2025. Two days after Copeland failed to extend her lease, Copeland was provided notice on August 26, 2025, that WMCi and/or Weinstein Management would not be renewing her lease, which informed that her last date of occupancy as a tenant would be October 26, 2025. The Notice of Termination of Lease is attached as See **Exhibit “A-4” to the Affidavit of Pam Quinn.**
- On June 27, 2025, Copeland sent correspondence (purporting to be, among other things, a “demand” pursuant to Texas Deceptive Trade Practices Act, and “notice” under Texas Property Code), in which she contended that harmful mold existed within her apartment. Specifically, she complained of mold in her guest bedroom, hallway, and by the entry to the apartment. The area next to the front door in the entry was determined not to be mold (and was likely “hinge dust”, per **Exhibit “C”: Affidavit of Robin Franks).** **Exhibit “A”: Affidavit of Pamela Quinn.**
- Therefore, the previous complaints about “mold” by her front door were not accurately described as “mold”, and were properly cleaned by Weinstein staff in October 2024, and again in March 2025. This organic growth (which was noted not to be mold by the maintenance technician) was observed on the wall next to the front door. As there was no source of water in this area of the apartment, it was determined that a possible cause was condensation from the HVAC unit being turned on high. Each time, the area was treated, by cleaning the area with bleach and water, and use of Kilz and the area was painted. See **Exhibit “A-5 to the Affidavit of Pam Quinn.** Copeland made no further complaints regarding alleged mold at the area beside the door, until June 27, 2025.
- Copeland made a complaint on August 29, 2024, Copeland submitted a work order stating that she suspected a leak under her sink. However, the area was inspected and no leak was found,

and neither served as any sort of co-signor for the lease agreement entered into with Copeland. As such, neither of these gentleman had any obligation to pay rent to WMCi.

although it was noted that there were items leaning on water lines. See **Exhibit “A-5” to the Affidavit of Pam Quinn.**

- On September 9, 2024, Copeland submitted a work order relating to the performance of her HVAC. No mold was detected. See **Exhibit “A-5” to the Affidavit of Pam Quinn.** From September 2024 through May of 2025, Copeland’s HVAC filter was changed five times; at no point during these changes (which were conducted by Weinstein Management’s maintenance staff) was any mold detected or suspected within the HVAC Unit or closet in which the HVAC unit was contained.
- On or about June 3, 2025, Copeland submitted a work order which stated: “Hi - I am not sure if it is the A/C or a leak somewhere, but I hear a consistent dripping or splashing sound in my main living area. It's pretty noticeable. See **Exhibit “A-5” to the Affidavit of Pam Quinn.** On or about June 4, 2025, maintenance workers entered Copeland’s apartment. No leak was detected. The HVAC unit was unclogged. No mold was detected inside the HVAC unit closet at that time.
- At no point in time from September 2024 until June 27, 2025 did Copeland report any visible or suspected mold or smells she associated with mold, relating to the HVAC closet. Copeland made no complaints about mold in her guest bedroom, prior to June 27, 2025. From June 4, 2025 to June 27, 2025, Copeland did not report that she believed mold was present in her apartment to WMCi and/or Weinstein Management, did not report that she had suspicions of mold present in her apartment, did not report that any visitors or guests that she had to the apartment had observed or smelled mold, or that she had hired a mold assessment consultant to inspect her apartment. **Exhibit “A”: Affidavit of Pamela Quinn.**
- On June 18, 2025, at 2:29 p.m., Copeland placed another work order, stating “I think there maybe a leak or something in the A/C system cause I hear that splashing sound again. And just now I heard something that sounded like water. I recorded it on my phone for you. Maintenance staff went to the apartment, and assessed the HVAC. No leak was noted. The drain for the HVAC was unclogged at that time. Growth was noted and the area was dry. See **Exhibit “A-5” to the Affidavit of Pam Quinn.**
- On June 27, 2025, Weinstein Management’ staff (to include Kodi Walker, the manager) inspected Copeland’s apartment and assessed the area at issue, and on that date, also emailed Copeland, to propose a plan of repair/remediation, contemplating that portions of the repair could be performed in-house. See **Exhibit “A-6” to the Affidavit of Pam Quinn.** Copeland was not agreeable to having the repair performed in the manner suggested and as such, the work did not proceed, and Copeland was offered a transfer to another unit, and/or to early terminate her lease without penalty. **Exhibit “A-7” to the Affidavit of Pam Quinn.** Copeland never indicated any interest in terminating her lease early. On June 30, 2025. Copeland stated through email that she did not consent to entry to her apartment for “unlicensed remediation or inspection.
- On July 7, 2025, Weinstein agreed to provide paid lodging for Copeland at The Nobleman hotel (a hotel she had selected) and agreed to place her dogs in boarding (at Weinstein

Management's expense) (although the hotel was pet-friendly). **Exhibit "A-8" to the Affidavit of Pam Quinn.**

- On July 8, 2025, Ms. Quinn began communicating with BioTex to request a mold protocol. BioTex was the mold assessment company used by Copeland and whose report she had provided to Weinstein Management on June 27, 2025. BioTex agreed to prepare the protocol, and also provided names of mold remediation companies for my review and consideration. Also, by July 8, 2025, Weinstein Management had been in contact with ServPro (a licensed mold remediation company) to request this vendor to inspect Copeland's apartment and, also requested, via email to Copeland, that she allow access to her apartment on July 8, 2025 for this inspection. Additional attempts were made to communicate with Copeland to arrange for this inspection and ultimately, Copeland agreed to permit the inspection to go forward on July 11, 2025 (and Weinstein Management continued to follow up as to Copeland's desire to transfer to another unit). **See Exhibit "A-9" to the Affidavit of Pam Quinn.**
- On July 13, 2025, Ms. Quinn received the initial mold protocol from BioTex (and this was paid for by Weinstein Management). **Exhibit "A": Affidavit of Pamela Quinn.**
- On July 12-14, 2025, Weinstein staff emailed with Copeland, in which she was informed that while transfer to another unit was still an option, her then current apartment would need to pass inspection, and she was advised that a "strong pet urine odor" had been detected during the inspection conducted by Weinstein management staff and ServPro. Thereafter, Copeland did not pursue transfer to another unit and instead, re-urged her request for hotel lodging, which was again offered to her, for The Nobleman (a four-star hotel, that she had requested), and her dogs were boarded. **Exhibit "A-10" to the Affidavit of Pam Quinn.**
- On July 14, 2025, instead of accepting lodging at The Nobleman as she had been requesting, Copeland instead then demanded that she be placed at The Bowie House (which is a five-star hotel and substantially more expensive, but which did not have a kitchenette, an amenity Copeland had previously demanded as being "required" to accommodate her unidentified "disabilities"). Weinstein Management's staff confirmed reservations at The Nobleman had been made, but that same would not include "incidentals" – which would be Copeland's responsibility. Copeland began lodging at The Nobleman on this date. **Exhibit "A": Affidavit of Pamela Quinn.**
- On July 22, 2025, Copeland was assured that all required steps had been completed prior to remediation, and that Servpro would be completing the remediation per the protocol and was advised that the work would start on July 24, 2025. **Exhibit "A": Affidavit of Pamela Quinn.**
- ServPro intended to start its work on July 24, 2025 (using the initial BioTex, July 18, 2025 protocol), but could not start that day due to ServPro needing to communicate certain matters with TDLR (the Texas Department of Licensing Regulation). Thereafter, on July 31, 2025, at Copeland's request, BioTex provided a "revised" remediation protocol. Further, no work could be done yet because Copeland had not moved her personal property out of the guest bedroom in the apartment, and had not provided permission for movement of the property. **Exhibit "A": Affidavit of Pamela Quinn.**

- In preparation for the remediation/repair of Copeland's apartment, and as a measure of courtesy, between July 30, 2025 and August 1, 2025, Copeland was asked to move her belongings and/or asked for permission to move her belongings so that the work could begin. Copeland failed/refused to move the items or to provide her permission for staff to move the property within the apartment. Rather than cooperate with this request (as her lease required), she responded in a discourteous manner. See **Exhibit "A-11" to the Affidavit of Pam Quinn.**
- Copeland did not pay August rent and therefore on August 6, 2025, Copeland was served a Notice to Vacate for Non-Payment of Rent. See **Exhibit "A-12" to the Affidavit of Pam Quinn** (though no eviction was ever pursued in response to this Notice to Vacate).
- BioTex provided another revised mold protocol, dated August 4, 2025, and requested that ServPro refrain from starting its work, at that time. Based on this second revised protocol, ServPro indicated it would need to revise its estimate for its services and on August 5, 2025, Ms. Quinn requested ServPro to move forward with providing the revised estimate. Copeland had still not provided any indication that she would move the property that had been requested or permit Weinstein Management to do so; however, Ms. Quinn was attempting to continue to move the project forward. Ms. Quinn approved the updated invoice on August 6, 2025 and requested information from ServPro as to when it could get started. ServPro required a seven-day notice period to schedule the work and Ms. Quinn was aware that the work could not start until the property was moved (out of the way, inside of the apartment). ServPro provided a schedule for the work, anticipating it could begin on or about Thursday, August 14, 2025. Thereafter, ServPro provided a schedule for its anticipated work, which had the work starting on Thursday, August 14, 2025, by beginning containment set up. As such, still with no response from Copeland as to movement of her property, Weinstein Management's maintenance staff moved the property so that ServPro could access the guest bedroom. Though Weinstein Management's staff ultimately moved the items, as necessary, Copeland's failure to respond to this request, ultimately caused additional delay to the remediation/repair work. **Exhibit "A": Affidavit of Pamela Quinn.**
- ServPro then began preparing for its work by setting up the containment and completing this, along with air scrubber installation, on August 14 and 15, 2025. ServPro's equipment and information identifying the company, was visible in the apartment and it placed the required signage on the door. **Exhibit "A": Affidavit of Pamela Quinn.**
- On August 17, 2025, upon discovering that certain personal property items had been moved from the guest bedroom to other rooms of the apartment, Copeland called the Fort Worth Police Department to make a complaint about "criminal activity". Ms. Quinn have reviewed the Fort Worth Police Department report and note that the police determined that no criminal activity had occurred. **Exhibit "A": Affidavit of Pamela Quinn.**
- On August 18, 2025, Copeland sent another DTPA demand letter to Weinstein Management, and also to ServPro, and asserted, among other things, that entry into her apartment was a trespass and an unauthorized entry. See **Exhibit A-13" to the Affidavit of Pam Quinn.**

- Servpro contacted the Texas Department of Licensing and Regulation, and secured notice with same that remediation would begin Copeland's apartment on August 21, 2025, and was expected to be completed by September 2, 2025, at the earliest. **Exhibit "A": Affidavit of Pamela Quinn.**
- On August 20, 2025, Weinstein's counsel, Glynis L. Zavarelli, sent correspondence to Copeland. Copeland was advised in that correspondence that the remediation work would be paused in order to provide an opportunity for the apartment to be inspected by Copeland (and any expert she would like to include) but that the work would resume on August 21, 2025, with an expected completion date of September 2, 2025. **Exhibit "A": Affidavit of Pamela Quinn.**
- On August 21, 2025, correspondence was directed to counsel for Weinstein from John Douglas, counsel for Copeland, which was dated August 20, 2025 and which among other things, indicated he wanted an assurance that no further entry would be made the apartment, indicating a small claims court lawsuit was being filed, and indicating that without written assurance that no further entry would be made, a temporary restraining order would be filed. **Exhibit "A": Affidavit of Pamela Quinn.**
- On August 21, 2025, Copeland filed a "retaliation" lawsuit in Justice of the Peace Court No. 4, asserting that various lawful actions of Weinstein Entities constituted "retaliation" based on her report of "mold" 53 days prior. **Exhibit "A": Affidavit of Pamela Quinn.**
- On August 21, 2025, Copeland emailed ServPro, demanding that no work be performed on her apartment, and asked if ServPro intended to proceed under the August 4, 2025 protocol (stating that the condition had changed) and requesting various types of information from ServPro and stated that Weinstein was using ServPro to "cover for other activities that aren't actually a full, licensed remediation" and accusing Weinstein of "taking short cuts" which "expose others to liability" while "keeping themselves insulated" and referring to ServPro as a "scapegoat". This email again refers to spoliation, and demanding ServPro's position by noon the following day. **Exhibit "A": Affidavit of Pamela Quinn.**
- On August 22, 2025, Ms. Quinn received notice from ServPro that it would be terminating all work in Copeland's apartment unit. **Exhibit "A": Affidavit of Pamela Quinn.**
- On August 22, 2025, Glynis Zavarelli received correspondence from ServPro's counsel that ServPro was immediately terminating its work. Ms. Quinn reviewed this correspondence, and understood that ServPro would no longer be working on the apartment. **Exhibit "A": Affidavit of Pamela Quinn.**
- On August 25, 2025, Weinstein contacted BioTex to perform a new assessment given the length of time which had passed since the original assessment. On or about August 25, 2025, Ms. Quinn received email correspondence from BioTex's attorney, stating that Copeland had sent a legal demand and that she did not consent to BioTex involvement or inspecting her unit (and this again, was the company she had used to obtain the initial June 18, 2025 assessment and who had prepared the first three mold remediation protocols). As such, BioTex did not perform the assessment it had scheduled for August 27, 2025. Also on August 25, 2025,

ServPro requested access to the apartment to remove equipment from/around the containment area it had already put in place. **Exhibit “A”: Affidavit of Pamela Quinn.**

- On August 26, 2026, Glynis Zavarelli sent correspondence to Copeland, suggesting a process by which an agreed mold assessment company could be selected and scheduled to complete an updated assessment. Per this plan, Weinstein Management and Copeland were both asked to provide the names of two mold assessment companies by August 28, 2025 and from there, discussions could take place by which an agreement could perhaps be reached. Copeland did not respond, and on August 28, 2025, Weinstein (though its counsel) provided the names of two mold assessment companies to Copeland. Copeland never responded, to include ever providing names for other companies. **Exhibit “A”: Affidavit of Pamela Quinn.**
- Weinstein Management decided to use Dallas Mold Consultants (one of the two names provided by Weinstein Management), for the updated mold assessment and arranged for Dallas Mold Consultants to be at the apartment on September 4, 2025 (which was the earliest date available). **Exhibit “A”: Affidavit of Pamela Quinn.**
- On or about September 4, 2025, ServPro removed its equipment. ServPro left in place the containment area which had already been secured. Containment included sheeting enclosing the guest bedroom and sealing of the HVAC unit vents. This work by ServPro – placement of equipment and the containment area sheeting, sealing of the vent, and laying of plastic sheeting to protect flooring – was the extent of remediation preparation work undertaken prior to ServPro’s termination of services. **Exhibit “A”: Affidavit of Pamela Quinn.**
- On or about September 4, 2025, after ServPro removed its equipment, Dallas Mold Consultants entered the apartment to perform an updated mold assessment. On or about September 8, 2025, Dallas Mold Consultants provided a mold protocol for the remediation of the apartment and the cleaning of the contents therein, based on its September 4, 2025, mold assessment. On or about September 8, 2025, Weinstein provided the mold assessment and protocol prepared by Dallas Mold Consultants to a new mold remediation company, Dedicated Mold Specialist, to perform remediation on the apartment unit. Dedicated Mold Specialist then applied for and received permission from Texas Department of Licensing and Regulation to perform mold remediation in apartment unit 2145. **Exhibit “A”: Affidavit of Pamela Quinn.**
- Copeland stayed at The Nobleman, paid for by Weinstein, from July 14, 2025, until August 22, 2025 (at which point she was criminally trespassed from The Nobleman). From August 22, 2025 until September 10, 2025, Copeland stayed at The Bowie House, paid for by Weinstein. On September 11, 2025, Copeland was criminally trespassed from The Bowie House. On September 11 and 12, 2025, Weinstein made reservations on behalf of Copeland at a Holiday Inn in Fort Worth, which Copeland decided not to use. **Exhibit “A”: Affidavit of Pamela Quinn.**
- At some point, on or about September 11 or 12, 2025, Copeland voluntarily returned to her apartment and ultimately appears to have stayed there until September 19, 2025. **Exhibit “A”: Affidavit of Pamela Quinn.**

- On September 12, 2025, Ms. Quinn sent an email to Copeland, after Copeland voluntarily re-entered her apartment, after mold containment had been established by ServPro, stating:

The containment areas within the 2145 unit must be left in place and the HVAC must remain in the off position. We will need to enter the unit Monday September 15th at 10am to perform a landlord inspection to verify that the containment areas are intact and the HVAC has remained off. The September 12, 2025 email is attached as **Exhibit “A-14” to the Affidavit of Pam Quinn.**

- Also on September 12, 2025, the acting manager, Andrea Meza attempted to enter the apartment, not knowing if Copeland had actually returned to the apartment by that date, but Ms. Meza could not gain access. On September 15 and 16, 2025, Weinstein Management staff continued to attempt to access the apartment to be able to inspect and ensure the containment materials had not been disturbed and the HVAC had not been turned on, but were unable to gain access to the apartment. **Exhibit “A”: Affidavit of Pamela Quinn.**
- Dedicated Mold Specialist indicated it could start its work on September 22, 2025. In September 15, 2025, Glynis L. Zavarelli, sent correspondence to Copeland; per this correspondence, Copeland was advised that remediation work was scheduled to begin on September 22, 2025 and that she could not be in the apartment while the work was on going. **Exhibit “A”: Affidavit of Pamela Quinn.**
- On September 15, 2025, Weinstein staff members attempted to enter Apartment 2145 on two occasions, found that the deadbolt had been bolted inside. Therefore, the staff was not able to enter the apartment to inspect the apartment so that they could confirm that the containment area was intact and that the HVAC system was turned off. **Exhibit “A”: Affidavit of Pamela Quinn.**
- On September 16, 2025, Weinstein Management staff members knocked on the door of Apartment 2145 to determine if Copeland was still in the apartment and/or to determine if an inspection of the apartment as to the containment area and HVAC unit could take place. There was no response to the knock, and when staff attempted to enter but were unable to because the deadbolt was still engaged. Also on September 16, 2025, Ms. Quinn received an email from John Douglas, written as a ‘cease and desist’ letter, indicating that entry into the apartment would be considered a trespass, retaliation and spoliation and stating that a federal lawsuit would be filed, in which a TRO would be requested. See **Exhibit “A-15” to the Affidavit of Pam Quinn.**
- On September 19, 2025, Weinstein Entities filed for their Original Petition, Application for Temporary Restraining Order, and Request for Temporary and Permanent Injunctions in Tarrant County District Court, Cause No. 141 -370402-25. The purpose of the Temporary Restraining Order/Injunction was to permit Weinstein vendors to enter the apartment for purposes of repair and/or remediation, and to prevent Copeland from interfering with that process. Also on September 19/20, 2025, (after the Weinstein Petition was filed) Copeland left the apartment, and Weinstein Management agreed to pay for Copeland’s lodging at another hotel (The Worthington). **Exhibit “A”: Affidavit of Pamela Quinn.**

- On September 22, 2025, Weinstein personnel entered the apartment unit 2145, escorting personnel from vendor, Dedicated Mold Specialist. Upon entering the apartment, water intrusion was found to be coming from the HVAC unit. The photographs attached as **Exhibit “A-16” to the Affidavit of Pam Quinn**, were taken by a Weinstein Management employee, and are a fair and accurate depiction of Apartment 2145 when it was entered on September 22, 2025. These photographs were sent to me by management staff at The Bowery.
- The water intrusion was the result of the HVAC system having been turned on by someone within the unit at some point after Dallas Mold Consultant’s September 4, 2025 inspection and assessment of the unit. The HVAC unit, after being turned on and being unable to circulate air due to the containment area, then “froze”. After it “froze”, it then “defrosted”, which caused water intrusion into the areas of the apartment which was previously not affected by water intrusion. It was unknown for how long the HVAC unit in the closet had been leaking. **Exhibit “A”: Affidavit of Pamela Quinn.**
- No one from Weinstein Management entered apartment 2145 from September 11th through September 21, 2025, and no one from Weinstein Management entered the apartment until September 22, 2025. See **Exhibit “A-17” to the Affidavit of Pam Quinn**, the key log audit of Copeland’s apartment.
- Copeland did not report to any staff of The Bowery (or anyone else associated with Weinstein Management) that she had turned on the HVAC unit when she went back to the apartment on September 11 or 12, 2025 and/or at any time while she was there through September 19, 2025, she did not report that the HVAC Unit was not operating correctly and/or that it was leaking, and did not report to The Bowery that any water intrusion had occurred in the apartment unit. **Exhibit “A”: Affidavit of Pamela Quinn.**
- As a result of the water intrusion, there was visible water on the floor of the apartment, and there was moisture-impacted items observed in the kitchen, living room, hallway, and guest bathroom. As related to the apartment structure, new and extensive damage was found to the flooring, drywall, HVAC closet, and tub/shower in the hallway bathroom. Attached as **Exhibit “A-16” to the Affidavit of Pam Quinn** are photographs showing the water intrusion.
- Dedicated Mold Specialist began water mitigation efforts, which included operation of air movers, humidifiers, and removal of water-damaged flooring and drywall. As a result of the new and extensive damage, the estimate of damages to apartment unit 2145 has increased, as noted below. **Exhibit “A”: Affidavit of Pamela Quinn.**
- On September 26, 2025. Copeland returned to her apartment. Dedicated Mold was there on that date to begin their remediation work; however, due to the interactions with Copeland, they stopped their work efforts for the day. Copeland was upset (as she indicated in an email she sent to me on September 27, 2025) that furniture and other personal property items (along with the washer, dryer, and refrigerator, belonging to Weinstein) had been moved out of the apartment by another vendor, Reign Restorations (hereinafter referred to as “Reign”) so that certain areas could be accessed. This was coordinated by Dedicated Mold Specialist. The items that were moved by Reign were placed in its facility and have been stored there since (at no

cost to Copeland; Weinstein Management has paid all of the costs associated with this storage). Copeland did not give authority to clean the items and therefore, no cleaning was performed. The items can be returned to Copeland, and Weinstein Management has offered to relocate the items (at Weinstein Management expense) at Copeland's direction as to where she would like the items, but no request has been made. The items remain stored at Reign, at Weinstein's expense. **Exhibit "A": Affidavit of Pamela Quinn.**

- On October 2, 2025, a hearing on Weinstein Entities' Temporary Restraining Order was held, and the restraining order was granted. This Temporary Restraining Order made clear that Weinstein could proceed with its remediation of the apartment. The Temporary Restraining Order is attached as **Exhibit "A-18" to the Affidavit of Pam Quinn.**
- On October 4, 2025, Weinstein staff, per the oral Order of the Court in the hearing on the Temporary Restraining Order, entered Copeland's apartment. The remaining personal property items were packed in boxes. Copeland was contacted to request how she wanted her medical/sentimental items and jewelry to be delivered to her, and how she wanted the remaining items to be handled. Copeland failed to answer, and has failed to provide a place and/or time for these items to be delivered to her – ever since October 4, 2025. These items are being stored in a fourth-floor storage room at The Bowery, at no expense to Copeland. **Exhibit "A": Affidavit of Pamela Quinn.**
- On October 6, 2025, Dedicated Mold Specialist returned to the apartment to continue its work. **Exhibit "A": Affidavit of Pamela Quinn.**
- On October 16, 2025, Weinstein Entities were granted a Temporary Injunction, extending the terms of the Temporary Injunction until trial. A copy of the Temporary Injunction is attached as **Exhibit "A-19" to the Affidavit of Pam Quinn.**
- On October 17, 2025, Dallas Mold Consultants inspected the apartment and on inspection, noted the area by the front door- which had not been included on its initial assessment (and notably – BioTex had not initially included this area for remediation on its protocol). Dallas Mold Consultants took samples from that area. On October 23, 2025 Dana Boor (from Dallas Mold Consultants) emailed to Copeland, indicating that Ms. Boor found no unusual fungal ecology in the area by the front door, and explaining that the apartment contents had to be moved out so that the remediation company had room to perform a full environmental cleaning of the apartment. **Exhibit "A": Affidavit of Pamela Quinn.**
- On October 26, 2025, Copeland's lease term expired. However, she failed to remove her items from the balcony, and from two storage rooms on the premises where her personal property is being stored, and additionally failed to return the access devices for the apartment and the apartment complex. Copeland continued to occupy these portions of the property without the consent and against the will of Weinstein Entities. On November 5, 2025, Weinstein Management sent Copeland a Notice to Vacate. The Notice to Vacate is attached as **Exhibit "A-20" to the Affidavit of Pam Quinn.**

- On December 12, 2025, WMCi Dallas X, LLC filed a forcible entry and detainer suit against Copeland, due to Copeland's refusal to vacate the areas where her items are being stored – the balcony of her apartment, and two storage rooms, and refusal to return the access devices. Ultimately, judgement was issued for WMCi Dallas X, LLC, and a writ of possession was executed against Copeland as to the apartment, and any contents within. Copeland has appealed this Court action. **Exhibit "A": Affidavit of Pamela Quinn.**
- Remediation has been completed and a final clearance test of the apartment has been conducted. The clearance test confirmed there is no actionable mold activity in the apartment. The repair of the apartment (installation of flooring and drywall, as well as painting) has also been completed. The Certificate of Mold Damage Remediation, issued to Weinstein Properties – The Bowery at Southside, is attached as **Exhibit "21" to the Affidavit of Pam Quinn.**
- From July 14, 2025 to August 22, 2025, Weinstein Management secured and paid for hotel lodging for Copeland at The Nobleman Hotel in Fort Worth, Texas. The Nobleman Hotel is a four-star pet-friendly hotel, and was a hotel Copeland requested for lodging. **Exhibit "A": Affidavit of Pamela Quinn.**
- From August 22, 2025 until September 10, 2025, Weinstein Management secured and paid for hotel lodging for Copeland at The Bowie House, in Fort Worth, Texas, and was a hotel Copeland requested for lodging. **Exhibit "A": Affidavit of Pamela Quinn.**
- From September 10, 2025 to September 15, 2025, Weinstein Management secured and paid for hotel lodging for Copeland at The Holiday Inn Express Suites – Fossil Creek, although portions of the payments made were returned and/or cancelled when Copeland failed to check-in. **Exhibit "A": Affidavit of Pamela Quinn.**
- From September 16, 2025 to September 17, 2025, Weinstein Management secured and paid for hotel lodging for Copeland at the Holiday Inn Express Suites Fort Worth – Downtown, which she failed to utilize (never checking in). From September 20, 2025 to October 26, 2025, Weinstein Management secured and paid for hotel lodging for Copeland at The Worthington Hotel in Fort Worth, Texas, which was a hotel Copeland identified and requested for lodging. **Exhibit "A": Affidavit of Pamela Quinn.**
- From July 14, 2025, to October 26, 2025, Weinstein Management has secured and paid for pet boarding for Copeland's two dogs. Significantly – while staying in luxury hotels (paid for by Weinstein Management) and while avoiding pet ownership responsibilities (by keeping her dogs in boarding, also paid for by Weinstein Management), from July 15, 2025 to October 26, 2025, Copeland continued to freely access the apartment unit, as she had (and still has) key fob access. The Lock Audit Report demonstrates that Copeland continued to access the apartment complex during this time period, that she did not "vacate" or "abandon" the apartment, and that neither Weinstein entity denied her access to the apartment, including at least 28 separate entries into the apartment from July 15, 2025 to October 21, 2025, including two occasions in which Copeland violated the Court's **Temporary Restraining Order and Temporary Injunction.** See **Exhibit "A-17", to the Affidavit of Pam Quinn**

- Weinstein Management have incurred actual harm and/or damages, to include: 1) paying additional money they would not otherwise have had to pay, including paying costs/expenses to duplicate vendors, which Weinstein Management were forced to hire after Copeland's conduct caused previous vendors to stop/terminate work, 2) significant interruption to Weinstein Management's business operations, and 3) causing additional damage to the interior of the apartment. Further, Weinstein Management has incurred significant expenses for Copeland's hotel lodging and pet boarding- with Copeland failing to pay (and/or anyone on her behalf paying) any rent from August 2025 forward. Weinstein Management as the manager and operator of The Bowery, has incurred \$ 119,403.83 for expenses relating to the lodging of Copeland and her pets, for mold assessment consultations, for water mitigation relating to the September 19/20 water intrusion event, for remediation of Copeland's apartment and storage of her items at Reign Restoration. **Exhibit "A": Affidavit of Pamela Quinn.**

AFFIDAVIT OF ROBIN FRANKS

The threshold issue for each of the causes of action asserted by Copeland is the premise that Copeland's apartment was infested with mold – mold which required a specific type of remediation under Texas Law. According to the **Exhibit "C": Affidavit of Robin Franks**, such premise is untrue. Whatever mold existed in Copeland's apartment in June 2025 was limited in size/scope, and location, and constituted a small amount which could have been cleaned by Weinstein's maintenance staff (had Copeland permitted same) – it did not require professional remediation.

Robin Franks is licensed as a Texas Department of Licensing & Regulation (TDLR) Mold Assessment Consultant (Tx MAC #0270).⁵ Franks' affidavit further sets out her extensive

⁵ Ms. Franks is the President, founder, and active technical Principal of TGE Resources, Inc., a Texas Corporation that began business in Houston, Texas, in 1994. The firm continues to practice environmental consulting, environmental engineering, industrial hygiene, and remediation consulting. The firm holds a TDSHS Asbestos Consultant Agency license (#100171) and a TDLR Mold Assessment Company license (#ACO0123). Franks also holds the following certifications: Florida Department of Business and Professional Regulation Mold Assessor (#MRSA1712); a Professional Geologist in Texas (TxPG #875), Mississippi (MsPG #0778, Tennessee (TnPG #3213), and Louisiana (LaPG #532); as an Institute of Hazardous Materials Management Certified Hazardous Materials Manager (CHMM #3725); through the Texas Commission on Environmental Quality (TCEQ) as a Corrective Action Project Manager (CAPM #642); as a Radiation Safety Officer (RSO) & NORMs Surveyor & Remediation Supervisor (Fed. NRC Compliant); as a Texas Department of State Health Services (TDSHS) Licensed Asbestos Individual Consultant (LAIC #105379); as well as a TDSHS Certified Lead Abatement Supervisor (#2080002) and Project Designer (#2090082). These certifications and licenses require evidence of relevant education, routine classroom refreshers, ethics training, enforcement of a stringent code of conduct, and the risk of censure for non-compliance. Franks is an expert in the following areas: Environmental Real Property Transactional & Operational Due Diligence

field experience in executing, managing, and directing projects involving microbes and bioaerosols, and she is knowledgeable of associated State and local regulations pertaining to their assessment, reporting, remediation planning, and corrective action, including the state-specific mold regulations in Texas (Chapter 78 of the Texas Administrative Code [the Texas Mold Assessment & Remediation Rules, or TMARR] and Chapter 1958 of the Texas Occupations Code). Franks affidavit establishes the following:

- Mold is omnipresent in the environment, and no matter how efficient mechanical systems are (when in use) at filtering indoor air, or how effective cleaning and maintenance are, some mold will be found on surfaces and in indoor/outdoor air. Outdoor mold is naturally associated with soil and the decay of vegetation. Mold spores passively enter any enclosed space from the outside by ambient airflow (typically associated with dust) when doors/windows are opened and when people and pets track microbes into indoor space; and thereafter (if not routinely cleaned/removed) mold can accumulate with and within particulate (dust) upon interior furnishings and other surfaces. Mold will also readily grow in poor hygiene conditions, especially if food or beverage spills go unattended. **Exhibit “C”: Affidavit of Robin Franks.**
- In the IH industry, **certain conditions must be met to report a mold condition with any validity.** First, there must be a source of moisture – mold will not grow or continue to grow without a moisture source. Second, the mold must have a food source, such as cellulose, which is universally present within a residential built environment – such as wood, wallboard, insulation materials, and other construction-related materials and debris, including construction dust. Once a source of moisture has been identified and field confirmed, the source area (mold reservoir) needs to delineated/mapped to identify affected building materials (especially if visible indoor mold is present), and if ambient air is tested under industry standard (professional) methods, the following ambient air conditions are typically considered conclusive in establishing the likelihood of a mold condition within an indoor environment:
 - a. Elevated mold spore counts (inside vs. outside) – outside air mold concentrations and the assemblage reported by the laboratory are compared to the indoor mold assemblage (mold counts per mold type) – material variability and spore count dominance in the samples are considered.
 - b. Material concentrations of atypical mold (genus/mold taxa), if found indoors (compared to the outside sample), are considered, especially if they dominate the air sample result.

(AAI/ASTM [All Appropriate Inquires/ASTM International]; Environmental Compliance & Operational Audit; Permit Preparation; Emergency Response Program Management for Hazardous Materials Releases; Preparation, Management & Execution of “Impaired Property” Environmental Reports; Environmental Considerations for Repurposing Commercial Real Estate; Risk-Based Management of Environmentally Impaired Property – Hazard Mitigation/RIFS (Remedial Investigation and Feasibility Studies); and Built Environment Risk Mitigation Consulting; Asbestos, Lead Paint, Microbial, Industrial Hygiene.

- c. Mold genera that are “wet indicators” per reliable industry resources are considered and reported.
 - d. Elevated concentrations of “hyphal fragments” (fruiting bodies and/or reproductive particulate of mold) are considered, given that relatively high concentrations of this material in the air sample suggest active microbial growth/sporulation.
 - e. Following practical use of industry-standard sampling techniques (air and surface) with reference to respected industry guidelines, as discussed above, visible mold and corresponding moisture are to be established and quantified during the visual assessment, or their presence ruled out definitively.
 - f. If sampling is conducted and air samples are collected, the results are compared against the above factors (or similar) to create a reasonable body of evidence to determine whether a mold condition exists, especially for regulatory purposes under the TMARR. The independent IH professional, who possesses the necessary training, experience, and expertise, must review and consider all relevant findings and, without personal interest or bias driven toward a pre-defined outcome, prepare a responsive TMARR-compliant mold remediation protocol for use by a qualified, state-licensed remediation contractor.
- Indoor mold is defined in Texas Administrative Rules of the TDLR 16 TAC, Chapter 78 (effective 11/1/2017), Section 78.10, “Definitions” (19) as “*Mold contamination that was not purposely grown or brought into a building and that has the potential to affect the indoor air quality of the building*”. Mold is regulated in Texas under the TMARR (TDLR 16 TAC, Chapter 78). **Mold must meet all the following criteria to be regulated and actionable: 1st - the mold must be “indoor mold”; 2nd - the mold must be “visible”; 3rd - the mold must meet the definition of “total surface area of contiguous square feet”; 4th - the “total surface area” must be “25 contiguous square feet or more”. Exhibit “C”: Affidavit of Robin Franks.**
 - The BioTex report **failed to meet the minimum requirements of the TMARR** and fell well below industry expectations for quality for the following reasons: sampling was not performed according to nationally accepted methods, there was no real-time data collection of collateral conditions affecting the investigation, no description was made of how samples were preserved, the samples were not properly documented, and the report fails to locate visible mold and/or particularly and/or properly the existence of mold subject to regulation. ⁶ **Exhibit “C”:**

⁶ Sampling performed by BioTex was not performed according to nationally accepted methods. There was no description included to ensure that general industry methods were used and that equipment was properly maintained, pre-cleaned, and calibrated; and that sample collection times and volumes were properly documented per the TMARR/industry standard methodology. The report includes no reference to conditions that may have compromised/impacted sample results (weather conditions/rain, the exterior use of landscaping equipment such as blowers during sampling, etc.), which is an industry-standard requirement for compliant mold reports. BioTex only took a single air sample collected from the outside (sample labeled A1), which deviates from best practice; two samples (one before and one after) would be collected as a standard to demonstrate statistical normality. Wall check sampling, used by BioTex, is an unreliable technique for determining the presence of mold. The “wall check” spore trap sampling train is routinely misused (abused), and this technique is applied in a random, non-forensic manner

Affidavit of Robin Franks.

- There is no evidence that indoor, regulated (actionable) mold was ever found or reported in Unit 2145 by BioTex or any other party. A mold condition that is regulated by TDLR must be visible and must consist of an affected indoor area encompassing 25 contiguous square feet of surface area (or more). This was not found/identified within Unit 2145 at any time – as such, **remediation by a TDLR-licensed remediator was never required.** (This was confirmed when BioTex stated that *“mold could not be visually seen”* in the guest bedroom; this is a critical statement because if BioTex did not *“see”* visual mold, it could not have been present in a regulated amount.) **Exhibit “C”: Affidavit of Robin Franks.**
- There were multiple statements in the BioTex report that were unsubstantiated by fact, not shown by proper methodology and/or sampling, and/or that constitute speculation, including:
 - a. *“The visual fungal investigation found visible mold in the front entryway, HVAC closet area, and guest bedroom. “Visible” mold (beyond localized areas of mold to baseboard/associated wallboard and carpet tack) was not referenced in the report nor observed in photographs (an area of black vertical discoloration was observed in a report photograph near a door hinge of the entryway, which was more likely than not the result of hinge dust accumulation under its repeated use, not mold.). There is no substantiation that any “visible” mold existed in the apartment.*
 - b. *“[A] previous leak coming from the HVAC closet has resulted in extensive water damage and mold growth in the guest bedroom and areas surrounding the HVAC closet. Mold growth was observed on the baseboards, drywall and carpet tack strip at the time of the mold assessment. The BioTex report lacks any evidence or factual basis for a “previous leak”. Extensive damage was not documented in the BioTex photographs, and the mold growth described was not documented. It is notable that the BioTex report presents no moisture meter results or any other forensic data.*
 - c. The BioTex report also stated, likely in error, that *“the scope and magnitude of the mold growth and affected areas exceeds 25 contiguous square feet therefore the mobile home company is required to have a Mold Protocol written by a Texas licensed Mold Assessment Consultant and to hire a Texas licensed Mold Remediation Company....* BioTex likely referenced the *“mobile home company”* in error; this reference is believed to be an artifact from a prior client’s report. Regardless, the BioTex report contains no evidence that any regulated mold existed in the subject apartment unit; no mold protocol was required, nor was there a need to hire a consultant for further work.
- In addition, the **BioTex report includes the following statement, which is entirely out of context, without basis, and indicates that the report should be entirely disregarded: *BioTex Inspections is hereby notifying the client that 405 Crawford Street, Apt. 2145, Fort Worth, TX is unfit for human occupancy until mold remediation of the residence/facility/structure (including all items/contents within) is performed in accordance***

solely to find mold, even in the absence of visible mold or evidence of moisture intrusion. **Wall checks are not a generally accepted sampling strategy for mold assessment and are a discouraged methodology in industry.**

with the Texas Mold Assessment and Remediation Administrative Rules. This company and its assessor are not qualified to opine whether a location is “fit” or “unfit” for “human occupancy”. Mr. Reist is not a medical professional and, by offering this opinion, is providing this opinion outside his professional expertise, in direct noncompliance with 25 TAC 78.72, the TMARR Code of Ethics.⁷ **Exhibit “C”: Affidavit of Robin Franks.**

- Surface sampling using Bio-tape lifts and prepared swab samplers is also commonly used and beneficial in the identification of mold. **Significantly, tape lift samples collected by BioTex found that the sample showed “normal ecology,” and suggests that no personal contents cleaning or remediation to address mold contamination was needed for Ms. Copeland’s personal items.** There is further no evidence that surface swab sampling results were used to identify and/or analyze the species of any particular type of genus of mold in this matter. **With this data, it is impossible to ascertain whether *Aspergillus/Penicillium*, *Chaetomium*, and/or *Stachybotrys/Memnoniella* of the EMSL Analytical, Inc., report are species of concern or that they are capable of causing human illness. Exhibit “C”: Affidavit of Robin Franks.**
- The Biotex report fails to provide any valid basis for recommendation of mold remediation by a TDLR-licensed mold remediator. **The BioTex report provides no basis for, and inadequate data to support, the performance of any mold-related remediation, especially gross removal of building finishes within the apartment unit.** There was no forensic evidence of regulated mold found. No moisture was ever found or reported to indicate a condition supportive of active growth mold; no real-time readings (typical of a quality mold investigation) were collected or reported; and the assessor produced a report with corresponding (multiple) protocol revisions, with no objective basis for same. **Exhibit “C”: Affidavit of Robin Franks.**
- Laboratory data did not support a mold condition. Extraordinary mold was not reported within air or surface samples collected and analyzed to justify any mold remediation. The limited/isolated mold in the I-IVAC closet (which could not have served as the basis for BioTex's report, because BioTex did not observe same) could and should have been rectified by a construction contractor engaged to remove (cut away) affected materials from the area of the latent leak and to allow the apartment to be released without further complications concerning purpo lied mold. **Exhibit “C”: Affidavit of Robin Franks.**
- A licensed remediator is only required when the total surface area affected by visible, indoor mold exceeds 25 contiguous square feet. The BioTex Report failed to meet the technical and ethical requirements of a mold assessment report in Texas and fell far below the industry standard for same. Nevertheless, the BioTex Report (and subsequent mold assessment conducted in Apartment 2145) fail to show that licensed remediation was necessary in Apartment 2145, as to either the HVAC closet, baseboard, and/or the guest room wall adjacent to the HVAC closet. No unusual fungal ecology (whatsoever) was found by the front door, and with a reasonable degree of scientific certainty, the discoloration by the front door is dust

⁷ Section 78.72 (b) specifies that “all credentialed persons shall, as applicable to their area of credentialing, undertake to perform only services for which they are qualified by credential, education, training, or experience in the specific technical fields involved”.

from the hinge of the door. Further, according to the results of the BioTex report, there was also no evidence that Ms. Copeland's personal items needed to be cleaned or remediated in any manner. **Exhibit “C”: Affidavit of Robin Franks.**

- **There is no evidence that meets industry standards to show that any regulated mold condition existed within the apartment. Because there is no evidence of regulated mold, the apartment and/or the contents within the apartment did not require any kind of particular cleaning, to include: there is no evidence of the necessity of professional remediation of visible mold within the apartment unit, and no evidence that any personal property item required professional cleaning or destruction due to any mold condition. Therefore, Weinstein went well beyond what was required or necessary to respond to Ms. Copeland's complaints about her apartment, and in conducting professional remediation and repair of the apartment. Exhibit “C”: Affidavit of Robin Franks.**

Affidavit of Pamela Rosen

Dr. Patricia Rosen. is a Medical Doctor, with a Master's Degree in Epidemiology, from the Tulane University School of Public Health and Tropical Medicine.⁸ **Exhibit “B”: Affidavit of Dr. Patricia Rosen.** She has evaluated clinical effects in humans of natural and chemical exposures in a variety of settings, including: residential, industrial, workplace, educational, and medical settings. Many of these cases involved evaluating consequences of exposure to mold. ***Dr. Rosen is the only properly designated medical toxicology expert who is qualified to opine as to medical causation in this matter.***

Dr. Rosen sets out in her affidavit the following:

- Copeland has claimed that she suffers from multiple medical illnesses/conditions; none of her illnesses are related to a mold exposure. Mold illnesses are infections, allergic reactions, and at times related to toxins. However Copeland has no testing that would evaluate for those illnesses. It is my opinion that none of the conditions and/or symptoms Copeland complains of are, within a reasonable medical certainty, related to caused by or associated with mold or mold exposure or mold toxins, inclusive of Covid, Ehlers-Danlos syndrome, Postural Orthostatic Tachycardia Syndrome (POTS), Thyroid dysfunction, fibromyalgia, Binocular dysfunction,

⁸ Dr. Rosen is a fellow of the American College of Emergency Physicians. and a Fellow of the American College of Medical Toxicology and board-certified in Internal Medicine, Emergency Medicine, and in Medical Toxicology. She has consulting privileges at Seton Medical Center in Austin, Texas, and hospital privileges at Advent Rollins Brook Hospital in Lampasas, Texas, and St. David Hospital in Round Rock, Texas in emergency medicine. She currently works as an Emergency Department attending at Advent Hospital in Lampasas and at Leander Free Standing in Leander, Texas. She provides consultation through Austin Toxicology to patients and providers on an as needed basis. She has served as a reviewer for the American Journal of Medical Toxicology, and I review submissions for presentation at the ACMT Scientific Assembly on a yearly basis.

or hypogammaglobulinemia. **Exhibit “B”: Affidavit of Dr. Patricia Rosen.**

- Mold related illnesses are limited and are easily diagnosed on physical examination and appropriate testing. Allergy testing by skin tests are a common and appropriate way to test for allergies. Chest x-rays in patients with fever and hypoxia will demonstrate fungal infections. A panel of antigens are usually ordered to evaluate for hypersensitivity in patients with interstitial lung disease due to molds. Ms. Copeland did not have any of these test performed and did not have a clinical presentation to prompt these studies. **Exhibit “B”: Affidavit of Dr. Patricia Rosen**
- Copeland is not immunocompromised and would not be at risk for systemic illness due to mold infections. Toxicity from molds is most often encountered following ingestion; this is not consistent with Ms. Copeland's complaints. Copeland has never had x-rays showing fungal infiltrates and has not had signs or symptoms of hypersensitivity pneumonitis. Some of Mrs. Copeland's complaints began prior to her moving into the apartment at the Bowery. This includes Covid in December of 2022 at which time she stopped working. Thus illnesses prior to the claimed exposure could not be considered causative. **Exhibit “B”: Affidavit of Dr. Patricia Rosen**
- Urine studies looking at mold toxins is recommended to evaluate food products. Low levels of mold and mycotoxins are present in food. Urine tests will show those levels. These do not correlate or indicate infection or illness and are found in the urine of healthy persons. nHe also found that she had elevated immunoglobulin studies which usually are interpreted as showing prior exposure to the infection agent and is expected in normal healthy people. (His recommended therapies of vitamins and hyperbaric treatments are clearly not indicated for any of Ms. Copeland's complaints). **Exhibit “B”: Affidavit of Dr. Patricia Rosen**
- In order to prove causation, certain criteria should be met. These are listed in Bradford Hills criteria originally developed to assist in the development of a scientific means to establish causation versus association. (An example of this would be: "Is it the snow that falls that makes the leaves fall from the trees?" Answer: No. These two events just occur around the same time.) In Ms. Copeland's case the criteria are not met specifically, her illnesses occurred prior to her exposure to the agent she is stating caused her illnesses. (Temporality criteria) Certainly alternative etiologies were not considered. (Coherence criteria). Her symptoms are not specific to mold exposure and in fact are not known to be due to mold. or mold toxins. (Plausibility consistency). There is no evidence of any exposure so a dose response can not be posited. The association of mold in a home associated with the illnesses Ms. Copeland is complaining about does not exist. As stated above, mold is known to cause specific illnesses and Ms. Copeland does not suffer from any of them. **Exhibit “B”: Affidavit of Dr. Patricia Rosen**
 - "Strength of association: whether the association is strong and statistically significant."
 - "Consistency of the association: whether multiple studies show the same (or substantially similar) results."

- "Specificity of the Association: whether the observed effect has only one known cause."
- "Temporality of the Association: whether the purported cause precedes the observed effect."
- "Biological gradient (aka "Dose-response"): whether a stronger or greater exposure leads to greater amounts of harm."
- "Plausibility: there must be both a rational and theoretical basis for the result."
- "Coherence: whether the cause-effect relationship conflicts with what is already known and whether there are other competing hypotheses."
- "Experiment: experimental evidence strengthens a causal inference and makes it more plausible."
- "Analogy: whether a commonly accepted phenomenon in one area can be applied to another area."

Based on reasonable medical probability and the application of well-accepted methodology, review of all available evidence, and Dr. Rosen's training, education, and experience: **there is no evidence that Ms. Copeland suffers from mold-related illnesses and/or exacerbation of any pre-existing illnesses related to exposure to mold or related toxins.**

Exhibit "B": Affidavit of Dr. Patricia Rosen.

Plaintiff Cannot Prove Causation for Her Toxic Torts Claim

Courts have concluded that the effects of mold are matters outside the knowledge of laypersons, so causation must be proven using reliable expert evidence. *See McBeth v. Servpro Indus.*, 2024 Tex. App. LEXIS 8955, at *12 (Tex. App. Beaumont Dec. 19, 2024, no pet. h.) (mem. op.); *Starr v. A.J. Struss & Co.*, 2015 Tex. App. LEXIS 7084, at *7 (Tex. App.—Houston [1st Dist.] July 9, 2015, no pet.) (mem. op.). **A plaintiff fails to create a fact issue on causation without expert testimony demonstrating that mold caused her health problems.** *See Plunkett v. Conn. Gen. Life Ins.*, 285 S.W.3d at 119, 122 (Tex.App.—Dallas, 2009); (emphasis added); *see*

also *Starr v. A.J. Struss & Co.*, 2015 WL 4139028, at 8 (Tex. App.—Houston [1st Dist.] July 9, 2015, no pet.) (mem. op.). A medical expert must personally examine a plaintiff to determine with a reasonable degree of medical probability that mold exposure caused a plaintiff's health complaints. See *Plunkett*, 285 S.W.3d at 119. Conclusory expert opinions are insufficient to defeat summary judgment. *Wadewitz v. Montgomery*, 951 S.W.2d 464, 466 (Tex. 1997). For instance, a non-expert plaintiff's deposition testimony and affidavit that mold exposure caused her allergies, sinus infections, nosebleeds, skin infections, and abscesses is no evidence of causation. *Starr*, 2015 WL 4139028 at *7. that is not the type of expert testimony that provides evidence of causation in a toxic mold case.

Copeland wholly failed to properly designate any experts as to either the existence of mold in her apartment, or as to medical toxicology causation. Plaintiff has no competent experts to speak as to causation relating to mold exposure – either generally and/or specifically. Plaintiff has no experts who can opine as to the existence of “mold” and/or whether same existed at a level and/or in a manner that in any manner affected the habitability of Plaintiff's apartment and/or her belongings. She cannot establish that the “mold” in her apartment was either capable of producing human illness, or that the “mold” was of such type/quantity that it required professional remediation. Plaintiff has designated no competent experts to establish that “mold” existed in the apartment, and that any mold which might have existed was of any particular character, to include a level which was “significant”, of a type which constituted “toxic mold”, “black mold”, “mycotoxin exposure”, and/or that mold existed in Plaintiff's apartment which was characterized as producing mycotoxins which were dangerous, hazardous, and/or toxic, and/or which rendered Plaintiff's apartment, in any manner, not safe/habitable. Plaintiff further has no expert to speak as to any testing and/or inspection performed by, on, or on behalf of the Plaintiff (or the

methodology relating to same) which purportedly showed that any condition existed within the apartment which showed dangerous/hazardous “mold”, and/or that any testing results showed exposure to harmful indoor molds which produced mycotoxins.

Further, Plaintiff has designated no competent experts to speak to the causation for Plaintiff’s alleged injuries/damages (i.e., that the apartment was inspected and found to contain dangerous/hazardous “mold”). Further, because Plaintiff has identified no competent experts as to multiple damages elements, Plaintiff has no evidence of the appropriate calculation of any claim for remediation/repair or damage for any of the personal property Plaintiff asserts was affected by the presence of “mold” in the apartment, no evidence as to the valuation of a DTPA claim, and no evidence to support any future damages.

Weinstein has properly designated two retained experts – Ms. Robin Franks and Dr. Patricia Rosen. These experts have been shown by their affidavit evidence to be imminently qualified in their respective fields of industrial hygiene and mold toxicity.

Robin Franks conclusively established that the initial inspection report (BioTex report of June 18, 2025) was fundamentally flawed, and was inherently unreliable, due to a departure from both TMARR standards and industry standards. **Exhibit “C”: Affidavit of Robin Franks.** Franks sets out that testing performed by BioTex fell well below accepted industry standards, such that the results of such inspection are largely unreliable. **Exhibit “C”: Affidavit of Robin Franks.** There was no evidence that any condition existed in Copeland’s apartment which would have constituted “regulated” mold under Texas law. Further, the only testing of any property of Ms. Copeland’s conclusively negates that any particular type of cleaning of her personal property was necessary. **Exhibit “C”: Affidavit of Robin Franks.** Per Ms. Franks, Weinstein was entitled to proceed with unlicensed remediation of the apartment by its own staff, had same been permitted

by Copeland, and no special procedures needed to be taken to clean Ms. Copeland's property.

Exhibit "C": Affidavit of Robin Franks.

Per the correspondence attached to Ms. Quinn's affidavit, such permitted unlicensed remediation by Weinstein staff could have been accomplished without necessitating Ms. Copeland moving out of the apartment (i.e., could have been accomplished while Copeland was living in the apartment, negating the need for luxury and/or alternative housing) and **could have been accomplished by July 1, 2025:**

"I want to confirm that there is no active leak detected in your home, and all necessary repairs have already been completed. Our team has conducted a thorough assessment, and moisture readings confirm that the area is dry. With no signs of water present, there is no risk of continued mold growth at this time.

City's Codes and Compliance department recently stopped by and informed us that they had visited your home. While we have not yet received an official report, they have requested that the necessary repairs be completed timely. With that in mind, we would like to schedule the repair work for tomorrow to resolve this quickly and minimize any disruption to your routine. This includes, but is not limited to, the replacement of baseboards and effected areas of sheetrock. **The work is limited in scope, non-invasive, and can be completed within a day with minimal to no disruption to your daily routine.**" Exhibit A-7 to Exhibit A, Pamela Quinn's Affidavit (emphasis added).

Per Dr. Rosen, the only properly designated medical doctor who is qualified to testify regarding medical causation, Ms. Copeland's purported medical conditions were neither the type of medical conditions which could result from mold exposure, nor was any reliable testing performed which could link any purported symptom or condition with mold illness. **Exhibit "B": Affidavit of Dr. Patricia Rosen.** Copeland's complained-of illnesses were largely or wholly pre-existing to her residency at The Bowery, and no particular symptom or condition is indicative of mold-related illness. **Exhibit "B": Affidavit of Dr. Patricia Rosen.**

The Weinstein Entities are Entitled to Summary Judgment on Copeland's Negligence/Premises Liability Claims

Weinstein entities contend that this case sounds in premises liability, not negligence, as there is no evidence of a contemporary negligent activity. Rather, for Copeland to prevail, she must show that a dangerous condition existed on the premises. This, Copeland cannot do, and her premises liability claim fails, as a matter of law.

Copeland has wholly failed to designate any expert to speak to any aspect of property management, to include responding to complaints and work orders, whether the work orders submitted by Copeland were handled properly by Weinstein staff, and what the appropriate standard of care was (i.e., what staff should have done to handle her complaint/work orders). Rather, Weinstein's evidence conclusively shows that each work order submitted by Copeland was properly and timely addressed, and that subsequent maintenance in the apartment was appropriate and failed to disclose the existence of any mold. **Exhibit "A": Affidavit of Pamela Quinn.**

Front Door/Entry Way

Copeland complains of mold in three areas of her apartment: the area near her front door, her guest bedroom, and the HVAC closet. Copeland complains that she "reported" "mold" near her front door on multiple occasions, but that the "mold" was never properly remediated and/or cleaned, and kept reappearing.

The area near her front door was determined **not** to be abnormal fungal activity, and was, instead, likely door-hinge dust. **Exhibit "C": Affidavit of Robin Franks.** Despite Copeland complaining about same in September 2024 and March 2025, had Copeland simply kept the area clean, there would have been no source for her complaints. This area near the front door, therefore, cannot serve as an unreasonably dangerous condition sufficient to support a premises liability cause of action. Nor can complaints about suspected "mold" near the front door serve as the basis

for notice of a separate, and unreported, purportedly unreasonably dangerous condition existing elsewhere on the property.

Copeland's claim that any condition on/near the front entry door is conclusively negated. *See Exhibit "A": Affidavit of Pamela Quinn.*, showing that the area by the front door was not thought by Weinstein staff to be "mold" (due to its appearance and also due to the lack of a water source in that area), and that this was subsequently confirmed to *not* be abnormal fungal activity. This is further confirmed by **Exhibit "C": Affidavit of Robin Franks**, confirming that the discoloration next to the door was likely hinge dust from the front door, and that there was no evidence that mold existed in that area at the time of testing.

Guest Bedroom

Copeland never complained about mold in her guest bedroom prior to June 27, 2025, when she disclosed the results of the BioTex Mold Assessment to Weinstein for the first time. In order to prevail on her premises liability cause of action, Copeland must show that the Weinstein entities had actual and/or constructive knowledge of the condition of the premises, and that there existed a condition on the premises which was hazardous.

The Affidavit of Pamela Quinn contains, as **Exhibit "A"** the work orders entered by Copeland during her tenancy. Copeland complained, one time, on September 15, 2024, wherein she stated that:

"I noticed a wet spot by the door in my second bedroom. I thought maybe a pet had an accident of something so I clean it up. I Just got home from dinner and stepped int hat room again and it was soaking wet. I think there's a leak underneath the carpet. I hear water sometimes through the walls."

This work order was noted as completed. Ms. Copeland's complaint does not reference "mold", nor does it reference any condition which had existed for any particular period of time long enough to cause mold. There is nothing evident in the work order which suggest mold was

discovered by the maintenance worker responding to same. The next day, Copeland's HVAC unit was checked and her air filter was changed. Again, Copeland made no complaint of mold to the HVAC unit, and no mold was noted by the maintenance staff.

Copeland made no other complaints of wetness in her guest bedroom, and never complained of seeing mold or suspecting mold. The first notice Weinstein entities had of a purported mold condition in the bedroom was *after* Copeland had contacted a mold lawyer, gotten a witness statement about mold, gone to a doctor complaining of "toxic mold" exposure, and gotten a mold inspection. During this time period (from approximately June 8 to June 27, 2025), Copeland failed to provide any information to Weinstein to put Weinstein on notice of a mold condition existing in her apartment. Further, while Copeland complained on June 3, 2025 of hearing "water" in her HVAC closet, the inspection of the HVAC closet the next date did not show that any mold and/or mold condition existed (and particularly, Copeland did not tell Weinstein any suspicions that the guest bedroom contained mold).

The following sequence of events is established by Copeland's own pleadings and/or exhibits attached to same (and the Court is referred to same for purposes of showing notice, not as to the truth of any matter asserted therein, as to Copeland's pleadings/exhibits), and by **Exhibit "A": Affidavit of Pamela Quinn:**

- On June 3, 2025, Copeland submits a work order claiming that she hears "water" in her HVAC closet. No mold is discovered at that time, and Copeland does not make any complaint and/or allegation of mold in the guest bedroom and/or in the entry hallway.
- On June 10, 2025, Copeland collected a note from "David Quiram" (a person with knowledge of relevant facts who Copeland has failed/refused to adequately identify) on Marriott Hotel letterhead, in which he states: On June 8, 2025, I visited Katie Copeland's apartment which had noticeable smell of mold when I walked in. Later I saw mold visibly growing by the entry door. The mold appeared to have been there for some time as it spread for several feet along the corner.

- On June 11, 2025, a representative of Just Well responded to Copeland's inquiry for legal services, declining to work with her but detailing a plan on how to "build" her case, including getting "third-party certified mold testing", building her "medical record", informing "responsible parties" gathering "photos, videos, or other documentation" and creating a "clear timeline of events, symptoms, and communications with landlords". Copeland's Motion for Appointment of Counsel, filed
- On June 13, 2025, Copeland's purported medical provider (not disclosed by her as a person with knowledge of relevant facts, not designated as an expert witness, and from whom Copeland has produced no medical records) noted "mold" exposure.

What is clear from this timeline is that Copeland spent time and resources gathering evidence – from third-party "witnesses" and from "medical providers" well before providing any notice of any condition to Weinstein on June 27, 2025.

"What constitutes a reasonable time for a premises owner to discover a dangerous condition will, of course, vary depending upon the facts and circumstances presented. *Wal-Mart Stores, Inc. v. Reece*, 81 S.W.3d 812, 816 (Tex. 2002). However, the Court has given some guidance on "what quantum of circumstantial evidence is legally sufficient to support a finding that an unreasonable dangerous condition has existed long enough to charge a proprietor with constructive notice of the condition." *Wal-Mart Stores v. Gonzalez*, 968 S.W. 2d 934, 935 (Tex. 1998).

In fact, what is clear from the Affidavit of Robin Frank is **that the inspection by BioTex showed that there was no *visible* mold in the guest bedroom.** Rather, the mold assessment consultant hired by Copeland only found mold in the guest bedroom *after drilling into a wall*. See **Exhibit "C": Affidavit of Robin Franks**. It is, therefore, impossible to expect that the Weinstein entities to know of a condition that was existing – literally – hidden inside the walls. In order to hold the Weinstein entities as having "constructive" knowledge of any condition *inside the walls* would require evidence by which to infer that one complaint of wetness, made nine months prior,

would translate into reasonably requiring the Weinstein entities to drill inside the walls – which is how the small amount of hidden mold was ultimately discovered.

The duty owed to Copeland was the duty to exercise ordinary care to keep the premises in a reasonably safe condition, inspect the premises to discover latent defects and make safe any defects or give an adequate warning. *Carlisle V. J. Weingarten, Inc.*, 152 S.W.2d 1073, 1076 (Tex. 1941); *Boyer v. Scruggs*, 806 S.W.2d 941, 945 (Tex. App.—Corpus Christi 1991, no writ). A latent defect is one not discoverable by a reasonably prudent inspection of the premises at the inception of the lease. *7979 Airport Garage, L.L.C. v. Dollar Rent A Car Sys., Inc.*, 245 S.W.3d 488, 503 (Tex. App.—Houston [14th Dist.] 2007, pet. denied). The duty owed to Copeland to inspect the property for latent defects did not extend to drilling holes in walls to discover whether mold existed in same, where there was no other complaints of mold in the vicinity of the area, and where there had been no other complaints of wetness in that wall – ever – or near that wall in the guest bedroom in the previous nine months. To hold otherwise – that landlords are required to drill holes in walls to discover hidden mold, absent complaints of visible mold or musty smells reported to property management - would make landlords de facto strictly liable for hidden mold within the walls of a leased premises; which has never been the law in Texas. Moreover, Copeland’s complaints regarding “mold” in the entryway (which was not, in fact, abnormal fungal activity) cannot be construed as “notice” of mold anywhere else in the apartment because 1: the discoloration condition in the entryway was not hazardous, but was remedied quickly and appropriately; and 2: there was nothing to suggest that any other area of the apartment contained visible mold (and this would be confirmed by BioTex, who was unable to locate “visible” mold).

Significantly: non-visible mold is not *regulated* mold in Texas. **Exhibit “C”: Affidavit of Robin Franks.** There is no requirement for a licensed remediator, or that any special steps be

taken to remediate mold inside the walls of an apartment. There is, therefore, no showing that it was unreasonably dangerous, as it expressly falls outside of the requirements that regulate how *significant* mold should be handled.

Moreover, the mold condition in the guest bedroom could have been handled within a couple of days, as originally proposed by Weinstein staff. Copeland was the person who complained (incorrectly) that only “licensed” remediators could remove the mold. Copeland was the person who refused to permit remediation in her apartment. Copeland demanded that she be placed in luxury hotels while simultaneously refusing to move her personal property.

Further, to the extent that Copeland makes collateral complaints that something within the apartment was not properly repaired in regard to either the repairs made in the guest bedroom and/or the HVAC closet (as referenced in her Deceptive Trade Practices Act and Negligent Remediation/Negligence Per Se arguments) – Copeland has wholly failed to designate any expert to speak as to either multi-family property management and/or multi-family property maintenance. Whether any repair issue was done properly, and what should have been done (i.e., the proper standard of care) are all matters that, according to Tex. R. Evid 702, are outside of the scope of a lay jury’s knowledge, and require expert opinion – which Copeland does not have.

Weinstein, on its own inspection, determined that the HVAC closet did not contain mold when it was inspected on June 4, 2025; however, when Weinstein reinspected it on June 18, 2025 (having been requested by Copeland, because she complained of hearing a noise which sounded like water, but having made no complaint of mold), Weinstein discovered a very small amount of mold growth. ***This mold growth was not part of the BioTex Mold Assessment***, because the HVAC closet was inaccessible to BioTex (although BioTex would, without permission, cut a whole in the guest bedroom wall, it did not cut a whole in the HVAC closet).

Fair Housing Act

Copeland is unable to prevail on her Fair Housing Authority claim. As a preliminary matter, she must not only show that she was disabled at the time the request was made, but that proof of same was provided to the Weinstein entities. **Copeland has wholly failed to show either, and has wholly failed to produce any evidence during discovery of either.**

In order to prevail the requested accommodation must be reasonable, and the requested accommodation must be necessary to afford the residents equal opportunity to use and enjoy the home. Importantly, the plaintiff bears the burden of proving a violation of the FHA. *Women's Elevated Sober Living L.L.C. v. City of Plano*, 86 F.4th 1108, 1110 (5th Cir. 2023).

If Copeland cannot prove that a “hazardous” mold condition existed in her apartment, then she is also unable to provide the basis of her Fair Housing Act claim – that any condition existed in her apartment, such that the condition rendered the apartment uninhabitable, and therefore Weinstein was required to make any kind of “accommodation” to Copeland.

Weinstein maintains, and Copeland is unable to show, that any duty existed to Copeland to provide any alternative housing, transportation, per diem payments, clothing, and/or medical equipment, under Fair Housing Act. Copeland is not entitled to (and there is no caselaw or statutory support for same) any accommodation that is not necessary under the Fair Housing Act. There exists no basis for Copeland to demand these types of provisions as “accommodations”, and was not required, necessary, or supported by federal law.

To prove that an accommodation request is necessary under the federal Fair Housing Act (FHA), courts require that a plaintiff prove that the requested accommodation makes the home either financially viable or therapeutically meaningful. Some courts have determined that necessity must be considered (1) in light of the statutory provision's language; (2) in accord with the purpose of the FHA and the federal Americans with Disabilities Act, to ameliorate the plaintiff's particular

disability; and (3) in the light of proposed alternatives. However, a requested accommodation that is preferable to an alternative is not sufficient; **it must be essential.** *Id.*

Pursuant to Tex. Prop. Code, Copeland was offered to be released from her lease, with no penalty. She was further offered remedies outside of the Texas Property Code, including a transfer to another apartment, or transfer to another apartment complex. These were reasonable accommodations to Copeland's (unproven) claims that she was disabled and/or could not live in the apartment while it was being remediated. Copeland refused these options, which constituted reasonable accommodations to her disability claim.

Instead, Copeland made demands to be housed in luxury hotel lodgings. This was provided to Copeland (of three hotels that Copeland herself picked out) , but which she continues to assert were insufficient. While Weinstein maintains that any provision of lodging was gratuitous and a customer service measure, Copeland incorrectly contends that these were insufficient "accommodations" made to her on behalf of the Fair Housing Act. This is untrue/unsupported by evidence. Rather, Copeland must provide that be able to prove, by sufficient summary judgment proof, that any alternative housing, to include luxury hotel lodging, was essential and therapeutically necessary. Copeland has provided no evidence of this, to include failing to bring forth any competent summary judgment evidence.

As referenced by the Fifth Circuit in *Women's Elevate Sober Living*, the Court noted that:

"Yet, the FHA only requires an "equal opportunity," not a superior advantage. Cf. *Alexander*, 469 U.S. at 309, 105 S. Ct. at 724 (applying the Rehabilitation Act). In *Alexander*, the State of Tennessee modified its Medicare program--to save taxpayer dollars--by adopting a reduction in the compensable in-hospital care from 20 to 14 days per year. Handicapped claimants argued that the change would adversely affect 27.4% of their group while affecting only 7.8% of nonhandicapped persons. In concluding that Tennessee's facially neutral change in benefits did not discriminate against the handicapped in violation of the Rehabilitation Act, the Supreme Court stated, "The state has made the same benefit--14 days of coverage-

-equally accessible to both handicapped and nonhandicapped persons, and the State is not required to assure the handicapped 'adequate health care' by providing them with more coverage than the nonhandicapped." Alexander, 469 U.S. at 309, 105 S. Ct. at 724 (emphasis added). The Court noted that the administrative cost of implementing a special regime for the handicapped "would be well beyond" the reasonable accommodations required. *Id.* at 308, 105 S. Ct. at 724. We conclude that the same reasoning is applicable to the FHA. *Bryant Woods Inn v. Howard County*, 124 F.3d 597, 605 (4th Cir. 1997).

But a preferable accommodation or alternative is not sufficient—it must be essential. To be therapeutically necessary, an accommodation be "[i]ndispensable, requisite, essential, needful; that cannot be done without, or absolutely required." *Id.* (citing *Vorchheimer*, 903 F.3d at 105). The accommodation must be so necessary and so closely linked to the individual's disability that "without the requested accommodation, the ameliorative benefit provided [would] be so insignificant that it deprives persons with disabilities from the opportunity to use and enjoy the dwelling of their choice as compared to those without disabilities." *Id.* "A requested accommodation is necessary only if the plaintiff shows that without the requested accommodation, they will receive no ameliorative effect from their disability, thereby depriving them of the equal opportunity to enjoy the dwelling." *Id.* at 1113."

The "reasonable accommodations" Copeland is seeking is not a modification or change of a policy or procedure relating to the apartment complex itself. She was offered, as a reasonable accommodation, to either break her lease without penalty, move to a different unit, or move to a different apartment complex. She declined all of these.

What Copeland is seeking is the opportunity for a unilateral extension of lessor rights under a contract. Copeland seeks to use the Fair Housing Act as a vehicle to expand her rights under the lease contract to force the Weinstein entities to provide her thousands of dollars in luxury hotel amenities and other valuable benefits (such as pet boarding and "incidentals" – for food and other daily expenses). There is no provision in the Fair Housing Act, and no reasonable interpretation of same, which permits the relief Copeland seeks.

Copeland has wholly failed to show that the provision of a hotel (even after her lease has expired) was a reasonable accommodation. She has failed to show that any particular amenity associated with a hotel was a reasonable accommodation, and more specifically, that same was required in order to ameliorate any purported disability.

The accommodations specifically referenced in Copeland's Original Answer and Counterclaims are:

- Wirtten-only communications
- Comparable, disability-effective temporary housing during remediation

Copeland has not provided any competent summary judgment evidence of what could be considered "disability effective" housing. However, the Weinstein entities note that hotels, as places of public accommodation, are independently required to be ADA-compliant, a matter of which the Court can take judicial notice. The Court can also take judicial notice of the lack of complaint in Copeland's Answer and Counterclaims that any particular hotel which Copeland was housed in during the pendency of her tenancy. More central to Copeland's claims, Copeland has no expert to speak to Fair Housing Act – either as to what is required under same, or that she was entitled to any particular accommodation, but that same was improperly denied. Copeland has no expert to opine as to how a reasonable property manager would respond if, as here, a tenant claiming to be disabled requested not only that luxury lodging be provided (and after rejecting to be let out of the lease or transferred to another unit/complex) but that such lodging was required as an accommodation under the Fair Housing Act.

Copeland complains about the lack of "interactive process" following the denial of her unreasonable requests – however, she misses that for the interactive process to be triggered, the request first made to an entity under the Fair Housing Act must be reasonable and/or permitted

within the scope of the Fair Housing Act. Copeland's demands were neither reasonable nor permitted, and moreover, continuing to gratuitously provide for Copeland's luxury lodging constituted, if any accommodation was required, the provision of such accommodation.

Further, Copeland cites no authority and has put forth no competent summary judgment evidence to show that she was entitled to *any* relief under the Fair Housing Act, after her lease was terminated. Once her lease was terminated, any obligations from Weinstein to Copeland under the Fair Housing Act were extinguished.

Finally, Copeland cannot show any damages under the Fair Housing Act claims. She was provided with over \$49,000.00 in luxury hotel lodging and/or ped boarding, most of which was provided to Copeland during a period from August to October 27, 2025 – when Copeland was not even paying rent. The damages Copeland requests either do not appear to exist (as Copeland has provided no competent summary judgment evidence as to either her “actual damages” [inclusive of lodging paid by and/or owed to Copeland, and/or medical expenses] or “mental anguish” suffered by her) or are entirely inapplicable to the facts (as to “injunctive and declarative” relief “ensuring ADA/FHA compliance” – wherein Copeland no longer resides at this apartment complex and for which Weinstein owes no ongoing obligation, or “attorneys’ fees”, wherein Copeland is pro se). Similarly – Copeland has entirely failed to show any conduct which would entitle her to punitive damages.

Defendants are Entitled to Summary Judgment on Plaintiff's Fraudulent Inducement/Negligent Misrepresentation Claim

The summary judgment evidence, as set out herein, makes clear that the basis for a fraudulent inducement claim – that a false representation was made to Copeland as to “significant water intrusion” – is not supportable in this matter. Copeland identifies no specific statement made to her, or by whom, nor provides a time and/or place wherein such statement was purportedly

made. Further, Copeland wholly fails to identify the statement upon which she is basing her claim. Rather, what Copeland appears to be incorrectly/incompletely complaining of is better categorized as fraud by nondisclosure (a wholly separate cause of action than fraudulent inducement and/or negligent misrepresentation, which Copeland has not plead). An affirmative misrepresentation is necessary to maintain a cause of action - the mere failure to disclose is insufficient. *Kastner v. Jenkins & Gilchrist, P.C.*, 231 S.W.3d 571, 578–579 (Tex. App.—Dallas 2007, no pet.).

Further, Copeland relies solely on a “visible moisture line along baseboards” which she contends constitutes “evidence of prior flooding”. As a matter of common sense, if a purported “defect” is plainly visible to a tenant (such as a “painted over” “visible moisture line”), then same cannot be a fact concealed by another party. “Material means a reasonable person would attach importance to and would be induced to act on the information in determining his choice of actions in the transaction in question.” *Smith v. KNC Optical, Inc.*, 296 S.W.3d 807, 812 (Tex. App.—Dallas 2009, no pet.). It defies logic that Copeland can, on the one hand, claim that she reasonably attached importance to any kind of statement made by any Weinstein staff member, when she could clearly see whether any such line existed. Moreover, as she has wholly failed to identify any particular representation (and as to by whom, when, where, and under what circumstances same was made), she cannot have relied on a representation – particularly where she fails to identify any particular statement made *prior* to entering into a lease with Weinstein. Further, because Copeland cannot even show that a representation was made, she is unable to show the scienter behind same (that same was either made knowingly/recklessly and/or that same was negligently).

Rather, the move-in inspection form, filled out in detail by Copeland, is completely void of any “visible” or “painted over” references. **Exhibit “A”: Affidavit of Pam Quinn.** It does not show any purported water damage, “visible moisture line”, and/or mold. Further, in making multiple work orders, Copeland does not reference any “visible” or “painted over” portion of her baseboard, nor does she request that same be repaired and/or remediated – even on June 4 and/of June 18, 2025, when she complained of hearing “water” in her walls. **Exhibit “A”: Affidavit of Pamela Quinn.**

Further, there is incontrovertible evidence that the HVAC closet was examined and/or maintenance was performed in same, on multiple occasions, between October 2023, and June 18, 2025. At no point prior to June 18, 2025 is there any evidence of any organic growth (mold or otherwise) existing within the HVAC closet. Therefore, even if Copeland had been able to identify any particular statement made by any person, at a point in time prior to the signing of her lease, same does not equate to an injury to her. Copeland is attempting to conflate a representation (which she has not and cannot identify in any pre-lease communications) with a condition which developed nearly three years later. In order to find her fraudulent misrepresentation/negligent misrepresentation theory actionable, the Court would have to believe, and Texas law would have to support, that a Weinstein employee stating, prior to October 2023, that the *visible water line* in the apartment did not constitute a water line which had been painted over, and that, when mold was discovered in an adjacent area 20 months later, same constituted a tort relating to that misrepresentation. Same is untenable. The lack of evidence of any particular representation, and the lack of any reasonable showing of reliance on any representation conclusively negate this cause of action.

Defendants are Entitled to Summary Judgment on Plaintiff's Deceptive Trade Practices Claim

Copeland identifies a number of “acts” and/or representations which she contends constitutes deceptive trade practices. Copeland has failed to provide any evidence of these matters, and has wholly failed to show that any constitute false, misleading, and/or deceptive practices, and further made a number of complaints which are demonstrably untrue, but which, even if true, do not rise to a deceptive trade act.⁹ As a preliminary matter, Copeland cannot sustain a personal injury claim/damage claim under the DTPA for the conduct and/or damages described in her pleadings.

When Copeland moved in, she completed a Move-In checklist, in which she herself confirmed that there was no visible evidence that previous water damage had occurred and/or had been painted over. Copeland is wholly unable to prove that a previous leak occurred, and/or that if a previous leak occurred, same was not appropriately and timely remedied. Copeland is unable to show that mold contamination existed “behind painted surfaces” in any manner in which such mold would be regulated (subject to required professional remediation) and/or that it existed in such a manner/for such a time that Weinstein knew or should have know about it. There is no competent summary judgment evidence to show that Weinstein had any knowledge of any water leaks/intrusion and/or water marks in Copeland’s apartment of the kind complained of by Copeland, and that same was negligently, recklessly, and/or intentionally ignored. There is no evidence that a “same” condition had caused health conditions in Copeland or in any other resident.

⁹ Such complained of activities would not rise to a Deceptive Trade Act and/or would require expert testimony to prove that same rises to a Deceptive Trade Act: whether a previous leak occurred and/or was not properly remediated; whether moisture and/or water damage existed in the apartment and/or had been “painted” over; whether repairs/remediation had not been properly completed; whether professional remediation was required; whether the unit was not habitable; remediation required licensed professionals; what cleaning, if any, the personal property required; whether the unit had been “clean” and/or was “move-in ready”; whether any kind of housing was/was not provided to Copeland; whether Weinstein owed any obligations to Copeland, post-lease expiration; the scope of requests made to the Court in furtherance of Weinstein seeking an injunction; and representations made regarding the status of remediation at any point in time.

Copeland wholly failed to designate any expert who would be able to testify or provide evidence as to what steps a reasonable property management company would take, had there been any previous water leak/intrusion (to include no testimony that “painting over” a water mark was inappropriate and/or fell below the applicable standard of care. There is, similarly, no competent expert to testify on Copeland’s behalf as to whether repairs were necessary and/or completely improperly, whether the unit was “safe” to live in, and/or whether any unusual and/or significant water damage or mold issues existed.

As cited, *supra*, the only properly designated and competent industrial hygienist expert in this matter, Robin Franks, has opined that, due to the lack of significant visible mold, no professional remediation was required, and that Weinstein staff (not licensed remediators) could have performed the type of minor repairs needed in the apartment unit. Further, Weinstein worked diligently to procure and secure a professional remediation consultant to remediate the property, and did diligently, despite Copeland’s continued attempts to intervene and/or impede those professionals. **Exhibit “C”: Affidavit of Robin Franks.** There is no evidence that any particular cleaning was required of Copeland’s personal property items. The remediation which was ultimately completed in the apartment was performed by licensed remediators. *See* **Exhibit “A”: Affidavit of Pamela Quinn.**

Copeland cannot show, by competent summary judgment evidence, that any cleaning was necessary for her personal property items. She can further not show that Weinstein represented to Copeland that her personal property items

Weinstein made no promises nor representations to Copeland regarding either her entitlement to and/or the type of lodging provided gratuitously to Copeland from July 15, 2025 to October 27, 2025. Weinstein did not “promise” to provide “disability effective accommodations”

to Copeland (nor has Copeland ever consistently represented to Weinstein what would be “disability-effective accommodation” – noting that Copeland first asked to stay at both The Bowie House and The Worthington hotels– and then complained that such luxury lodgings were not sufficient for her needs).

Copeland has not come forward with any competent standard of care evidence for any of her claims – to include the repair/remedy of the apartment, whether any particular act/omission amounts to a statutory violation (to include under TMARR, DTPA, Property Code or Fair Housing Act). She therefore cannot show that any particular act/omission of Weinstein constituted even a breach of the applicable standard of care (or what the standard of care was); she is therefore wholly unable to show that any particular conduct of Weinstein was “unconscionable”.

Copeland complains that the removal of her personal property is “unconscionable” – however, Weinstein conclusively negates that it acted improperly in either moving the items so that the unit could be remediated, or that it intended to deny and/or deprive Copeland of her personal property.¹⁰ Rather, the evidence conclusively shows that Weinstein offered to return Copeland’s property after she left it in the apartment unit (knowing that the apartment unit was going to be remediated) the day after Copeland returned to her apartment on September 26, 2025. *See Exhibit “A”: Affidavit of Pamela Quinn.* The evidence also shows, conclusively, that Weinstein offered to pay to have the property cleaned, which Copeland unreasonably refused.

As Copeland cannot bring forth competent summary judgment evidence to show that any particular deceptive trade practice occurred, Copeland can similarly not produce evidence showing any particular scienter, including that such conduct was “knowing” and/or “intentional”. The

¹⁰ Copeland references Tex. Prop. Code § 93.002, which is entirely inapplicable: This provision refers to the interruption of utilities, removal of furniture/appliances furnished by the landlord, or exclusion from a lease premises absent a Court Order, and the treatment of property abandoned by Copeland, and landlord/tenant remedies relating to same.

Affidavit of Pam Quinn (**Exhibit “A”**) explicitly demonstrates Weinstein acted appropriately in all matters. Copeland is unable to show any evidence that shows that Weinstein had any knowledge and/or intent to act in a way which was deceptive, to include no evidence that it committed any deceptive trade practices and/or deliberate concealment of any particular fact or condition of the property. As to various complaints Copeland makes regarding “insurance” promises, there is no evidence that any Weinstein staff member made and/or ratified such promises.

Weinstein is Entitled to Summary Judgment on Copeland’s Breach of Contract Counter-Claim, and Entitled to Judgment on its own Breach of Contract Claim

There exists no foundation for Copeland’s breach of contract claim. Copeland fails to point to any portion of the contract she contains was breached, and instead relies on purported statutory failures (the failure to comply with which she cites as independent causes of action). There is no contractual provision within the lease agreement which references the apartment being “fit for occupancy”. Rather, §15.1 of the lease places the burden on the tenant – as the person residing in the apartment – to inform Weinstein in writing if a condition in the apartment requires repair or maintenance. There is no contractual provision which warranties to the tenant that the apartment will remain – in every aspect – without the need for repair or maintenance over the course of the lease.

Copeland further states that Weinstein further failed to “follow contractually and legally required remediation steps and communications”. Again, Copeland does not identify any contractual portion of the lease to which she contends such “steps and communications” apply (and Weinstein is unable to identify same, but refers the Court to § 15.1, which requires the tenant to point out any condition of the property needing repair or maintenance timely and in writing).

Finally, Copeland states that Weinstein failed to “repair or remedy mold contamination and dangerous conditions despite repeated notices”. Rather, § 15.1 of the Copeland’s lease explicitly states: “*The time, manner, method and means of performing maintenance and repairs, including whether or which vendors to use, are within our sole discretion.*” The only factor Copeland points to is the debunked assessment by BioTex that the apartment is “unfit” for human occupancy. **Exhibit “C”: Affidavit of Robin Franks..** Further, this Court provided Weinstein with a Temporary Restraining Order and Temporary Injunction to prevent Copeland from continuing to interfere with the repair/remediation of the apartment unit. The provision of the Temporary Restraining Order/Temporary Injunction are explicit findings that Copeland’s interference, not Weinstein’s inaction, was the cause of the period in which the property remained unremediated.

Weinstein, however, can conclusively show that Copeland breached her lease. A valid lease exists between Plaintiff WMCi and Copeland. Plaintiff Weinstein Properties (inclusive of its staff) is Plaintiff WMCi’s agent and/or representative pursuant to the valid lease. Pursuant to Copeland’s lease, Paragraph 15.1, the Weinstein entities retain the right as to “The time, manner, method and means of performing maintenance and repairs, including whether or which vendors to use, are within our sole discretion.” **Exhibit “A”: Affidavit of Pamela Quinn.**

Pursuant to Copeland’s lease, Paragraph 11 contains agreements that certain actions/conduct by Copeland constitutes breach of contract, including:

- You agree to communicate and conduct yourself in a lawful, courteous and reasonable manner at all times when interacting with us, our representatives and other residents or occupants. Any acts of unlawful, discourteous or unreasonable communication or conduct by you, your occupants or guests is a breach of this Lease.
- Explicitly prohibited conduct under Paragraph 11.1 includes:

- Paragraph 11.1(c): disturbing or threatening the rights, comfort, health, safety, or convenience of others, including us, our agents, or our representatives;
- Paragraph 11.1(d): disrupting our business operations; and
- Paragraph 11.1(j) making bad-faith or false allegations against us or our agents to others.

Further, the lease explicitly provides that the Weinstein entities and their vendors are entitled to enter Copeland's apartment as follows, in Paragraph 15, which Copeland has flagrantly violated:

When We May Enter. If you or any other resident, guest or occupant is present, then repair or service persons, contractors, law officers, government representatives, lenders, appraisers, prospective residents or buyers, insurance agents, persons authorized to enter under your rental application, or our representatives may peacefully enter the apartment at reasonable times for reasonable business purposes. If nobody is in the apartment, then any such person may enter peacefully and at reasonable times (by breaking a window or other means when necessary) for reasonable business purposes if written notice of the entry is left in a conspicuous place in the apartment immediately after the entry. We are under no obligation to enter only when you are present, and we may, but are not obligated to, give prior notice or make appointments.

Copeland has interfered with, interrupted, delayed, and/or otherwise stymied, through threats of litigation and/or demands made to vendors, the remediation and repair of her apartment unit, since July 7, 2025, which is the first date the Weinstein entities offered to house Copeland outside of the apartment unit. **Exhibit "A": Affidavit of Pamela Quinn.** Any attempt by the Weinstein entities or their vendors to repair and/or remediate the unit was been met by Copeland making increasingly hostile demands, threats of litigation, and filing of a frivolous police report. Copeland continued to contend that any remediation/repair of her apartment constitutes "spoliation" but has made no effort to coordinate an inspection of her apartment to document any evidence which she

may contend will be spoliated, and instead is attempting to misuse the spoliation doctrine to prevent her apartment from being remediated and/or repaired.

Copeland's continuing conduct prevented timely repair and/or remediation of the Weinstein entities' property, and was unreasonable, unjustified, and in flagrant disregard of her obligations and duties under her Lease, and constitutes a breach of her lease agreement. Copeland's failure to comply with her obligations under her lease are without legal excuse. Copeland's conduct caused injury to the Weinstein entities' property, which constituted damages sustained and/or which continued to be sustained by the Weinstein entities as a result of Copeland's breach.

Specifically, Copeland's conduct prevented the Weinstein entities from making necessary and required repairs, including remediation of mold within the apartment. **Exhibit "A": Affidavit of Pamela Quinn.** Such conduct costs the Weinstein entities additional money they would not otherwise have had to pay, including paying costs/expenses to duplicate vendors, which the Weinstein entities were forced to hire after Copeland's conduct caused previous vendors to stop/terminate work, and/or caused significant interruption to the Weinstein entities' business operations, forcing the Weinstein entities to retain new vendors, and has caused and/or is potentially causing additional damage to the interior of the Weinstein entities' apartment building. **Exhibit "A": Affidavit of Pamela Quinn.** Copelands' conduct has also substantially delayed the ability to even begin, much less complete, the remediation process, and as a result, the Weinstein entities having incurred substantial lodging and pet boarding expenses.

Defendants are Entitled to Summary Judgment on Plaintiff's Failure to Repair under the Property Code Claim

Copeland filed an identical "Repair and Remedy" claim in Justice Court, after this lawsuit was filed and *after her lease expired on October 26, 2025*. By the time this claim was made –

either herein or in the Justice Court, Copeland no longer lived in the apartment unit (and was in fact not allowed to return to the apartment unit, pursuant to the Temporary Restraining Order and Temporary Injunction). The unit which is the subject of Copeland's "repair and remedy" claim – seeking to force the repair/remedy – was already in the process of remediation when Copeland's claim was filed, and, despite the pendency of this claim by Copeland, has already been remediated.

The Affidavit of Pam Quinn conclusively establishes that Weinstein diligently sought to repair the unit, once it was provided notice that same required repair and/or remediation. Plaintiff's lease expired on October 26, 2025 (and she waited until after no longer she was a legal tenant – to file any action for "repair and remediation" in this court- which is improper and results in her lacking standing to pursue these matters, at all). Copeland refused to permit Weinstein staff to remediate the apartment, and refused to allow the vendors first hired by Weinstein to proceed with assessment/remediation of the apartment. *See Exhibit "A", Affidavit of Pam Quinn.*

Due to Copeland's service of a DTPA notice to mold remediator ServPro, ServPro withdrew from the work. The mold assessment company Biotex subsequently also withdrew from providing an updated mold assessment after Copeland sent that vendor a DTPA demand letter as well. *See Exhibit "A", Affidavit of Pam Quinn.* ‘

Copeland then caused and/or contributed to the water intrusion caused (on or about September 11/12 through September 19, 2025) when she returned to live in the apartment and turned on the HVAC for air conditioning (though she was directed by Weinstein not to do so). Because the HVAC was sealed, the unit froze, then thawed – and water intrusion/leak occurred - damaging significant portions of the flooring and surrounding areas- now requiring additional work to repair.

Even if Copeland were to have standing to complain about the repair/remedy of an

apartment to which she no longer resides, Copeland's own actions show that any delay in repair/remediation was the result of Copeland's actions and conduct, rather than Weinstein's diligent attempts to have the apartment repaired/remediated. *See See Exhibit "A", Affidavit of Pam Quinn.* Further, because of Copeland's conduct in delaying and/or impeding the remediation/repair efforts of Weinstein, she cannot show that she has suffered any damages *which were not the result and/or proximate cause of her own misconduct.*

Defendants are Entitled to Summary Judgment on Plaintiff's Retaliation under the Property Code Claim

As a preliminary matter, an identical/substantially similar suit was brought in Justice Court (before this suit was filed). Judgment in that case was for Plaintiff/Counter-Defendant WMCi, and such judgment became final when Copeland failed to effectuate a proper appeal within the deadline for same. The Judgment was signed on January 14, 2026 (after Copeland and her counsel failed to appear). The Judgment is attached as **Exhibit "D"**. Copeland (who is not permitted to file pro se suits or appeals, due to the Vexatious Litigant Order) attempted to file a "Notice of Appeal", improperly signed by herself – which WMCi timely and properly moved to strike. On February 13, 2026, the Justice Court dismissed Copeland's impermissibly filed Notice of Appeal. The dismissal of Copeland's appeal (Motion to Strike Notice of Appeal) is attached as **Exhibit "E"**. Accordingly, pursuant to the doctrine of Res Judicata, this matter has already been fully and finally litigated to a judgment against Copeland, and she should be prohibited from addressing same.

Pursuant to the Texas Property Code § 92.331, retaliation by a landlord is prohibited, when the tenant, in good faith exercises or attempts to exercise against a landlord a right or remedy granted to the tenant by lease, municipal ordinance, or federal or state statute, including a notice

to repair or exercise a remedy and/or complain a tenant complains to a governmental entity responsible for enforcing building or housing codes, that a building or housing code violation or utility problem. Prohibited acts which constitute “retaliation” include filing a eviction proceeding, unless the eviction is for non-payment of rent, deprive the tenant of the premises, deprives the tenant of the use of the premises and/or decreases services to the tenant, increasing rent/terminating a lease, and/or engaging, in bad faith, in a course of conduct that materially interferes with the tenant's rights under the tenant's lease.

Copeland complains that various acts constitute “retaliation”; however, none of these Acts constitute “retaliation”.

As soon as Weinstein received the first notice of “mold” from Copeland as to the guest bedroom, on June 27, 2025, Weinstein attempted to inspect same and began plans for remediation. Copeland impermissibly refused to allow Weinstein staff to do so, insisting on the need for professional remediation. Professional remediation was not necessary. **Exhibit “C”: Affidavit of Robin Franks.** However, on July 7, 2025, Weinstein offered to allow Copeland to stay at a luxury hotel, at Weinstein’s expense, while the remediation began. *See Exhibit “A”, Affidavit of Pam Quinn.* Copeland accepted Weinstein’s offer a week later, on July 14, 2025, but refused to permit remediation to begin on the apartment; on October 2, 2025, the Court in this matter issued a Temporary Restraining Order which finally allowed Weinstein to remediate its property.

On August 24, 2025, Copeland’s lease expired; Copeland had the option of renewing her lease but did not do so. On August 26, 2025, two days after the lease expired and after Copeland failed to renew her lease, Weinstein sent a Notice of Termination, indicating that, pursuant to the terms of the lease, Weinstein would not be renewing Copeland’s lease. Pursuant to the terms of the lease, Weinstein stated that the lease agreement would be terminated on October 26, 2025.

From August 26, 2025 to October 26, 2025, Copeland neither paid rent nor requested that the lease be renewed.

Copeland complains of various conduct of Weinstein, relating to the provision of luxury hotel accommodations; however, as such accommodations were not required by contract or state/federal law (and thus, such accommodations being extra-contractual tokens of goodwill provided to Copeland from Weinstein). Weinstein’s provision of luxury accommodations, when it had no legal requirement – under either contract or state/federal law – was gratuitously provided to Copeland, as a customer service. Any complaints Copeland has regarding the gratuitous provision of luxury accommodations cannot be construed as “retaliation” – as it is neither one of types of actions which are listed as prohibited retaliatory acts, nor cant it be reasonably considered “engaging, in bad faith, in a course of conduct that materially interferes with the tenant's rights under the tenant's lease”.

Copeland Cannot Prevail on her Negligence/Negligence Per Se

Copeland has wholly failed to come forth with competent summary judgment evidence to show any contemporaneous negligent activity on the part of Weinstein, which caused her injury. When the injury is the result of a contemporaneous, negligent activity on the property, ordinary negligence principles apply. When the injury is the result of the property’s condition rather than an activity, premises liability principles apply. *United Scaffolding, Inc. v. Levine*, 537 S.W.3d 463 (Tex. 2017).

Instead, Copeland complains that Weinstein failed to hire “licensed” contractors to perform any work on the apartment, and that same was in violation of various provisions of the TMARRR (which is categorically untrue, and which Copeland cannot support – either that any contractor which performed work on the apartment was not licensed and/or that any work performed was

performed incorrectly). Rather, the evidence by Weinstein conclusively shows that: 1) no remediation or additional assessment was required to be performed under TMARR; 2) the contractors hired by Weinstein were properly licensed, as required and/or if required by applicable law; 3) the remediation was performed pursuant to TMARR, even though this was not required; 4) contents cleaning was neither required, nor required to be of any particular type, and was not required to be performed by a person licensed under Texas law.

The Affidavits of Ms. Frank and Ms. Quinn explicitly negate that a negligence per se claim/cause of action is applicable to the facts and circumstances of this case. Ms. Franks opined that there was no “regulated” mold that existed in the apartment; there was, therefore, no evidence of any particular statutory, regulatory, or administrative violation by the Weinstein. **Exhibit “C”:** **Affidavit of Robin Franks.** Because the mold was not “regulated, Weinstein was not required to comply with any particular alleged statutory, regulatory, or administrative violation on the part of any of the Weinstein, and Copeland can therefore not show that any purported deviation from the TMARR proximately caused or was the cause in fact of any alleged incident and/or Copeland’s alleged injuries and/or damages.

Trespass to Chattel/Conversion

Under Texas law, a demand for the return of property can be refused without an action for conversion accruing only if "the refusal is not absolute, but is qualified by certain conditions which are reasonable and justifiable, and which are imposed in good faith and in recognition of the rights of the plaintiff." *Earthman's Inc. v. Earthman*, 526 S.W.2d 192, 204 (Tex. App.--Houston [1st Dist.] 1975, no writ) (quoting 89 C.J.S. Trover & Conversion § 59b, 564-65). Thus, only a "qualified refusal" serves to protect one against an action for conversion. *Id.* Here – Weinstein did not refuse to return any property, and in fact offered to return the property as early

as September 27, 2025 – less than 24 hours after Copeland demanded the return of her property.

The reason Copeland does not currently have possession of her property is because she refused to allow it to be clean and refused to accept the return of the property. Copeland should not be permitted to, on the one hand, refuse to permit the property to either be cleaned and then returned, or to permit the property to be returned, and then to claim that the failure to return the property constitutes tortious conduct of Weinstein.

The mere failure by the defendant to deliver the property after a demand is generally not sufficient to prove an affirmative refusal. *Ramon v. Dow*, 2009 Tex. App. LEXIS 1450, at *2 (Tex.App.—Houston 14th Dist., no pet. hist.). See also *Buffet Partners LP, v. Sheffield Square, L.L.C.*, 256 S.W.3d 920, 924 (Tex.App.—Dallas 2008, no pet. hist.)(when party accused of converting property originally had lawful possession, conversion does not occur until return of property has been demanded and refused or party in possession has unequivocally exercised acts of dominion over property inconsistent with claim of owner or person entitled to possession). To be liable for conversion, a person must intend to assert some right in the property. *Robinson v. Nat'l Autotech, Inc.*, 117 S.W.3d 37, 40 (Tex. App.—Dallas 2003, pet. denied); *Sky Grp., LLC v. Vega St. I, LLC*, 2018 Tex. App. LEXIS 1652, at *14 (Tex. App.—Dallas, 2018, no pet.). Trespass to chattels differs from conversion in the measure of damages recoverable. "On a trespass to chattels claim, the plaintiff can recover only the diminished value of his property and the damage to his interest in its possession or use." *Simmonds v. TDCJ*, 2010 Tex. App. LEXIS 1338, 2010 WL 654498, at *7 (Tex. App.—Waco Feb. 24, 2010, no pet.) (mem. op.).

The Affidavit of Pamela Quinn, **Exhibit “A”** conclusively negates that Weinstein intended to exercise dominion over the property to the exclusion of Copeland’s rights. There is no evidence that Weinstein, in any manner, intended to assert some right to the property. Copeland cannot

show that moving the property to permit for water mitigation and/or remediation of the apartment, followed by her own refusal to permit the return or cleaning of the property, amounts to a tort.

Weinstein Conclusively Negates Copeland's Constructive Eviction Claim

A cause of action for constructive eviction requires: (1) an intention on the part of the landlord that the tenant shall no longer enjoy the premises, which intention may be inferred from the circumstances; (2) A material act by the landlord or those acting for him or with his permission that substantially interferes with the use and enjoyment of the premises for the purpose for which they are let; (3) The act must permanently deprive the tenant of the use and enjoyment of the premises; (4) The tenant must abandon the premises within a reasonable time after the commission of the act. *Metroplex Glass Ctr., Inc. v. Vantage Properties, Inc.*, 646 S.W.2d 263, 265 (Tex. Civ. App.—Dallas 1983, writ ref'd n.r.e.); *see also Hamaker v. Newman*, 2022 Tex. App. Lexis 1678 *26 (Tex.App.—Fort Worth 2022, no pet.).

Weinstein has diligently worked towards repair/remediation of the apartment unit, despite Copeland's attempts to impair, impede, interfere with and/or delay same. **Exhibit "A", Affidavit of Pam Quinn**. However – significantly and fatally to Copeland's claims – she has never (and certainly not "within a reasonable time after the commission of the act") actually abandoned the premises. **Exhibit "A", Affidavit of Pam Quinn**. "The party claiming constructive eviction . . . carries the burden to offer evidence that the premises was abandoned because of the complained-of condition." *Joseph Kemp & KRR HH Retail, LLC v. Subrina Brenham & Subrina's Tax Servs.*, No. 05-18-01377-CV, 2020 Tex. App. LEXIS 311, at *6-7 (Tex. App.—Dallas Jan. 14, 2020, pet. denied), quoting *Ferguson v. Mellon Bank, N.A.*, No. 05-92-02459-CV, 1994 Tex. App. LEXIS 3565, 1994 WL 197078, at *2 (Tex. App.—Dallas May 16, 1994, writ denied); *Coleman v. Rotana, Inc.*, 778 S.W.2d 867, 872 (Tex. App.—Dallas 1989, writ denied) ("In addition, it was appellants'

burden to offer evidence that the premises were abandoned because of inadequate parking, the intentional act of the landlord upon which they rely.") (emphasis original); *Tempo Tamers, Inc. v. Crow-Houston Four, Ltd.*, 715 S.W.2d 658, 663 (Tex. App.—Dallas 1986, writ ref'd n.r.e.) ("As an element of constructive eviction, it was incumbent upon Tempo to prove that Crow's interference with its sign caused it to abandon the shopping center and close the nightclub.") (emphasis added).

Since reporting the mold – on Jun 27, 2025, Copeland continued to live in the apartment. **Exhibit “A”, Affidavit of Pam Quinn.** Copeland was offered the option on June 30, 2025 to early terminate her lease with no penalties – and she declined; insisting instead on being lodged at a high end/luxury hotel (The Nobleman), beginning on July 14, 2025. While staying at The Nobleman (at Weinstein’s expense), Copeland continued to access the apartment, periodically and retrieve items. **Exhibit “A”, Affidavit of Pam Quinn.** Additionally, Copeland continued to occupy the apartment in the following ways (all while she failed to pay rent, and continued to insist on luxury hotel lodging, which continued to increase in price- and for which Weinstein paid):

- Copeland returned to the apartment on August 11, 2025 – according to what she told police on August 17, 2025; **Exhibit “A”, Affidavit of Pam Quinn.**
- Copeland returned to the apartment at least 28 times, on various occasions to retrieve items. **Exhibit “A”, Affidavit of Pam Quinn.**
- Copeland returned to live at the apartment from September 11/12 through September 19, 2025 (and prohibited management from accessing the apartment for inspection, by refusing to open the door to management and by deadbolting the lock. **Exhibit “A”, Affidavit of Pam Quinn.**
- Copeland returned to the apartment on October 7 and 21, 2025- after being twice ordered to stay out of the apartment. **Exhibit “A”, Affidavit of Pam Quinn.**
- Copeland continued to store personal property at the apartment complex – on the unit balcony and in two storage rooms- and even after repeated requests for removal, she refused to remove the items. **Exhibit “A”, Affidavit of Pam Quinn.**

- Copeland continued to assert affirmative rights as a tenant to the premises (to include both the Repair and Remediation and Retaliation claims, made in this lawsuit). **Exhibit “A”, Affidavit of Pam Quinn**

In short: her claim of constructive eviction is without merit, legally and factually.

Copeland cannot prove any of the elements necessary to establish a constructive eviction – and instead her own actions establish that **she never vacated or abandoned this apartment**, and continues to assert (erroneously) that she has a right to obtain an order of repair/remedy for the apartment (which though legally incorrect- it is what she subjectively believes- thus, contradicting her claim that she was forced to abandon the apartment).

With no constructive eviction having taken place- Copeland is not entitled to any “rent abatement” (and the case cited by Copeland, *Hamaker v. Newman*, 641 S.W.3d 867 (Tex. App.—Fort Worth 2022, pet. denied- is not applicable for all the reasons and factual distinctions cited herein; similarly, the case cited by Copeland as to “rent abatement”, *Davidow v. Inwood North Professional Group Phase-I*, 747S.W.2d 373 (Tex. 1988) is likewise inapplicable; this case was a commercial real estate case, and pre- dates the codification of Chapter 92 of the Texas Property Code, landlord-tenant relationships- which sets out the process which a tenant must follow to obtain any type of relief from paying rent – which Copeland never even attempted to do). Copeland is further not entitled to avoid her legal obligation to have paid rent from August forward, and the relief she seeks from this Court in that regard, should be denied.

Copeland Cannot Show that She is Entitled to Any Damages

Copeland has asserted a wide range of damages, including:

- Actual Damages; ¹¹

¹¹ Copeland’s claimed actual damages include claims for: consequential damages (costs for cleaning or replacing belongings, replacement of documents, increased food and childcare costs, transportation, storage, and other out-of-pocket expenses); loss of use of residence/loss of value of lease; loss of use and diminished value of personal property;

- Non-Economic Damages;¹²
- Exemplary/Punitive Damages;
- Treble Damages;
- Statutory Damages;
- Attorney's Fees; and
- Non-monetary relief, such as rescission, declaratory judgment, and/or injunctive relief.

Copeland is not entitled to the award of any damages. The causes of action upon which she contends actual and/or economic damages are owed to her have been conclusively negated – as Copeland cannot show that any significant mold condition existed in her apartment, she also cannot show that any damages were incurred by her, relating to same.

Most of the damages she is seeking (including any claims for past and future: medical expenses, mental anguish/pain and suffering from medical conditions she claims to have, and the value of any economic damages asserted [past or future]) require expert testimony as to both causation and amount of damages. Copeland has neither experts to opine that any damage element

property damage as to the reasonable costs of decontaminating or replacing items; moving and relocation expenses, to include: past, present, and future, including hotels, temporary lodging, deposits, moving, storage, and costs to secure permanent replacement housing; alternative housing costs; lost income and earning capacity; pet boarding costs; medical expenses (past and future, to include “medical monitoring”, diagnostic testing, regenerative treatments such as stem-cell therapy, specialist consultations, medications, and laboratory testing—necessitated by toxic exposure”).

¹² Physical pain and suffering, including: exacerbation of pre-existing traumatic brain injury and cognitive decline, vision impairment, severe weight loss and gastrointestinal dysfunction, chronic fatigue, respiratory deterioration, joint pain, and nerve damage, permanent physical disabilities; parental anguish over her children's displacement and potential exposure; hotel-to-hotel instability and resulting financial devastation; grief over contamination and loss of irreplaceable family belongings and photographs; terror and uncertainty regarding long-term health consequences; retaliation and intimidation through more than 35 harassing subpoenas; and worsening of PTSD and other documented disabilities; mental anguish (including psychological harm from displacement with children; fear and anxiety from toxic exposure; stress from property loss and severe financial and housing instability; emotional impact of retaliation and intimidation; permanent life-trajectory damage, including reproductive harm; loss of critical years and partnership opportunity; permanent socio-economic and professional impairment; enduring psychological grief; and/or loss of enjoyment of life (including loss of career, parenting activities, physical hobbies, social connections, security, dignity, autonomy, and normal human pleasures).

was caused, in any manner, by any act or omission of Weinstein (regardless of whether same is classified by Copeland as a statutory or common law duty, and regardless of whether same is characterized as negligent, reckless, and/or intentional conduct). Moreover, Copeland has produced/disclosed *no evidence of any kind of damages*.

Weinstein's expert, Dr. Rosen, conclusively negated that any of Copeland's claimed medical conditions and/or symptoms were not and could not have been caused by mold exposure. **Exhibit "B": Affidavit of Dr. Patricia Rosen.** Dr. Rosen further opined that neither the treatment Copeland received or which was referred to her constituted appropriate treatment for mold illness, nor was it appropriate for symptoms attributed to a diagnosis of mold illness. **Exhibit "B": Affidavit of Dr. Patricia Rosen.**

Copeland cannot show that she has incurred any medical expenses (having failed entirely to produce medical bills and/or records); and/or any lost wages/lost wage-earning capacity (having failed to produce any evidence of same). She cannot blame her career path on any act/omission of Weinstein (as opposed to her own misconduct, as recognized by the Texas State Bar, and/or pursuant to her claims that she has been disabled from working since before residing at The Bowery). She cannot show that any particular economic loss was attributed to any act/omission of Weinstein, to include any property damages and/or any moving costs and/or relocation expenses.

Weinstein having conclusively negated Copeland's causes of action, and Copeland, having no expert and having produced no documents, demonstrates that Copeland is not entitled to actual damages, non-economic damages, and/or statutory damages. Weinstein has – further, conclusively negated that any act or omission constitutes any tort committed against Copeland, and further conclusively negates that any act and/or omission rises to the level of exemplary, punitive, and/or

treble damages. Weinstein has conclusively negated – regardless of which theory Copeland relies on – that Copeland is entitled to any damages as a result of any acts/omissions of Weinstein that could be considered unconscionable, reckless, knowing/intentional, and/or grossly negligent. Weinstein has further negated that Copeland is entitled to any statutory damages under the Tex. Prop. Code and the Fair Housing Act, and has negated that Copeland is entitled to any non-monetary damages, to include rescission, injunctive relief (same having been denied to Copeland at least seven times over the course of this lawsuit), and declaratory relief.

Further, Copeland, proceeding pro so, cannot incur attorney's fees as that term is used in its ordinary meaning because she did not at any time become liable for attorney's fees. *Jackson v. State Office of Admin. Hearings*, 351 S.W.3d 290, 300 (Tex. 2011). She is, therefore, unable to recover attorney's fees.

Accordingly, a take-nothing judgment should be entered for Weinstein and they should be awarded their recoverable court costs and attorneys' fees. Alternatively, the judgment entered (if any) should be such that it complies with the "one satisfaction rule" (given that the Copeland purportedly suffered only one injury, arising from the same facts/circumstances which form the basis for each cause of action asserted by Copeland).

VII. THE WEINSTEIN ENTITIES ARE ENTITLED TO NO-EVIDENCE SUMMARY JUDGMENT, PURSUANT TO TEXAS RULE OF CIVIL PROCEDURE 166a(i)

This case has been on file since September 19, 2025, more than 5 months. Copeland has had adequate and sufficient time to conduct discovery, but has failed to do so. The written discovery period ends on April 11, 2025 (and thus the deadline to serve discovery has passed), and Copeland's expert designation deadline has passed. Therefore, the Weinstein entities' Combined Motion for Traditional and No-Evidence Summary Judgment is both timely and appropriate.

Status of Discovery

Written discovery has been exchanged by the parties and has been ongoing. Thus, Copeland has had adequate and sufficient time to conduct discovery (but has failed to do so, as to many of her claims/causes of action) as to the Weinstein entities and the issues raised in this Motion. Copeland has produced no documents in discovery, including in her Disclosure Responses (other than a rental insurance contract) and/or in Response to Weinstein entities' Request for Production, and has thus produced no evidence in support of any claim/damage. She has further failed to provide her deposition testimony, after being noticed twice, and failing to appear for both.

Status of Expert Designations

Copeland designated no experts as to liability or causation and has designated no qualified person to speak as to medical causation.

Copeland failed to designate any person/persons qualified to/capable of speaking as to any alleged breach of standard of care as to property management, maintenance, and/or mold rehabilitation/remediation (and, in particular, any person licensed in Texas as inspect, discover, repair, or remediate mold), and thus, has no experts to opine as to the maintenance, management, and/or operation of the apartment complex at issue, to include matters involving the necessary maintenance of the premises generally and/or the repair/remediation as to water intrusion/"mold". She has further designated no experts to speak as to her statutory claims (as to liability, causation, and/or damages) for any of her statutory claims – to include Texas Property Code and federal Fair Housing Act.

Further, Copeland has no qualified experts who can opine as to the existence of "mold" and/or whether same existed at a level and/or in a manner that in any manner affected the

habitability of the apartment unit and/or her belongings. This is a matter requiring expert testimony, and Copeland failed to properly designate same. Specifically, Copeland must have expert testimony to establish her allegations that “mold” existed in the apartment, and that any mold which might have existed was of any particular character, to include a level which was “significant”, of a type which constituted “toxic mold”, “black mold”, “mycotoxin exposure”, and/or that mold existed in the apartment unit which was characterized as producing mycotoxins which were “toxic”, or which rendered the apartment unit in any manner uninhabitable, as alleged in Copeland’s First Amended Answer and Counterclaims). Copeland would, further, need a medical expert to opine that the specific “toxic” mold to which she alleges that she was exposed to is capable of causing disease, and that it is capable of causing the specific conditions/ailments she complains of (and she would have to first definitively list what those ailments might be). Copeland further has no expert to speak as to any reliable and/or scientifically valid testing performed by, on, or on behalf of the apartment and/or Copeland herself, which showed “toxic mold”, “mycotoxins”, or that any testing results showed any harmful mold which affected, in any manner, Copeland, her apartment, or her personal property.

Further, because Copeland has identified no experts as to multiple damages elements, Copeland has no evidence of the appropriate calculation of any claim for cleaning/repair and/or damage and/or loss of use/diminished value for any of the personal property Copeland asserts was affected by the presence of “mold” in the apartment, no evidence as to “actual” damages (relocation/moving costs, medical expenses, alternative housing costs, pet boarding costs, no evidence as to the valuation of her various damage claims (to include medical expenses, lost income/lost income earning capacity), no evidence to show she has a right to recovery for various non-economic damages, and no evidence to support any future damages.

These subject matters are not common knowledge within the purview of lay persons – and do require expert evidence (*See* Texas Rule of Evidence, 702 and 703). Copeland’s claims for both liability and damages require expert evidence/testimony and Copeland has wholly failed to properly designate any experts, in that regard.

The Weinstein entities are Entitled to Summary Judgment

Therefore, after an adequate time for Copeland to conduct discovery, Copeland has developed **no evidence** to support her liability theories asserted against the Weinstein entities and no evidence to support her damage claims.

Factually – there is no evidence to indicate or support that the alleged incident(s) made the basis of this suit – water intrusion and/or the development of “mold” in the apartment unit – was caused in any manner by any act and/or omission by the Weinstein entities (or, that “mold” existed in the apartment unit in a manner that was “significant”, of a type which constituted “toxic mold”, “black mold”, “mycotoxin exposure”, and/or that mold existed in the apartment unit which was characterized as producing mycotoxins which were “toxic”, or which rendered the apartment unit in any manner a uninhabitable). Copeland has no evidence that the Weinstein entities acted and/or failed to act in response to same, or the manner in which the Weinstein entities failed to meet any standard of care (as to property management, maintenance, and/or mold remediation).

Similarly, Copeland has no evidence to indicate that the condition of the apartment posed an unreasonable risk of harm and/or was an unreasonably dangerous condition (and/or that the Weinstein entities had either subjective or objective knowledge of same), and, specifically, has no evidence that the apartment was, in any manner and/or at any point in time - uninhabitable. Further, Copeland has developed no evidence to support that breach of contract, deceptive trade practices, fraudulent inducement/negligent misrepresentations, negligent remediation/negligent per se,

failure to repair, retaliation, fair housing violations, constructive eviction, and/or conversation/trespass to chattel, are an applicable cause of action/liability theory.

The Weinstein entities, therefore, assert that there is *no evidence* to support any of Copeland's liability theories and/or her claims for damages.

There is No Evidence of Foundational Facts

The Weinstein entities assert that there is no evidence of the foundational facts for Copeland's case and specifically, the Weinstein entities assert as follows:

- There is no evidence that "mold" existed at any point in time within the apartment unit, in a manner that was unsafe, "significant", of a type which constituted "toxic mold", "black mold", "mycotoxin" exposure, "regulated" mold, and/or that mold existed in the apartment unit which was characterized as producing mycotoxins which were "toxic", or which rendered the apartment unit in any manner uninhabitable.
- There is no evidence Copeland was forced to vacate the apartment due to any condition existing within the apartment, and/or there is no evidence Copeland was excluded from the apartment.
- There is no evidence of any reliable inspection and/or no evidence of any procedure/process of inspection, testing, and/or sampling within the apartment unit that led to the discovery of any regulated "mold".
- There is no evidence that mold existed in the apartment in any particular amount or for any particular time, or of the type of mold capable of producing adverse health effects to humans.
- There is no evidence Copeland vacated the apartment because it was uninhabitable.
- There is no evidence Copeland vacated the apartment and/or was forced to vacate the apartment due to any act and/or omission of the Weinstein entities.
- There is no evidence Copeland suffered property loss in the apartment because of a need to throw out/remediate any particular piece of property, and/or that any particular piece of property was damaged and/or contaminated.
- There is no evidence any environmental hazard or unreasonably dangerous condition ever existed in the apartment unit during Copeland's tenancy.

- There is no evidence Copeland properly and/or timely notified the Weinstein entities of any unreasonably dangerous condition which made the apartment uninhabitable.
- There is no evidence Copeland's concerns about "mold" in the apartment and any subsequent effect on her personal health and property were based on anything other than mere speculation and conclusion by Copeland.
- There is no evidence Copeland's health or safety was disregarded by the Weinstein entities, in any manner.
- There is no evidence the Weinstein entities failed and/or refused to take appropriate and proper action to promptly repair/remediate any condition/issue in the apartment unit, and/or no evidence to show what a reasonable apartment complex should have done (i.e., no standard of care evidence);
- There is no evidence that the actions taken by the Weinstein entities (either directly through staff or via third-party vendors) were in any manner insufficient and/or inappropriate to resolve any condition/issue existing in the apartment unit;
- There is no evidence that any act and/or omission of the Weinstein entities proximately caused and/or was the producing cause of any incident complained of in Copeland's First Amended Answer and Counterclaims.
- There is no evidence the Weinstein entities had actual/constructive knowledge of any unsafe and/or unreasonably dangerous condition existing in the apartment unit;
- There is no evidence that any condition on the premises caused and/or contributed to any medical issue which Copeland complains of as a result of the incident made the basis of this suit;
- There is no evidence Copeland paid for rent for January, February, March, April, June, July, August, September, October, November, and/or December, 2025, or for January or February 2026;
- There is no evidence that any maintenance or remediation work in the apartment unit required any particular license or vendor to perform same, including of mold remediation;
- There is no evidence that the Weinstein entities or their staff members engaged in any kind of improper, inappropriate, and/or illegal practices, to include retaliation, failure to repair or remedy, discrimination, and/or fair housing practices.
- There is no evidence that any unsafe patent or latent toxic condition ever existed in the apartment unit; and

- There is no evidence the Weinstein entities allowed and/or permitted a dangerous condition to exist on its premises (and/or that such a dangerous condition ever existed on its premises).

Therefore, because Copeland has *no evidence* to support her foundational facts for her entire case (and all causes of action asserted), the Weinstein entities are entitled to summary judgment as a matter of law on the entirety of the case and entitled to a dismissal with prejudice.

The Weinstein Entities are Entitled to Summary Judgment on Copeland's Negligence/Premises Liability Claim, Because There is No Evidence to Support Copeland's Claim

The Weinstein entities assert that there is no evidence to support Copeland's premises liability claims, as follows:

- There is no evidence of any condition in the apartment unit which constituted a premises defect on the property;
- There is no evidence that the Weinstein entities had any involvement in purportedly creating the alleged defect (water intrusion/"mold") at issue;
- There is no evidence of any contemporaneous negligent activity which caused/contributed to any injury to Copeland;
- There is no evidence that any condition on the property made the apartment unsafe, uninhabitable, unfit for human occupancy, and/or constituted a condition that posed an unreasonable risk of harm;
- There is no evidence that either the Weinstein entities had either actual or constructive knowledge that of the existence of any condition (inclusive of "mold") within the apartment unit which constituted an unreasonable risk of harm;
- There is no evidence that either the Weinstein entities failed to use ordinary care to maintain the premises in a reasonably safe condition (and/or no evidence of what is expected to be done in that regard), to include any the making of any repairs;
- There is no evidence of any concealed defects in the apartment or defect to the apartment on any portion of the premises which remained under the control of the Weinstein entities;
- There is no evidence Copeland gave timely and/or proper written notice of any defect on the property, to include any purported "mold" condition;

- There is no evidence that any portion of the leased unit was not properly and timely repaired and/or remediated (once Copeland was under Temporary Restraining Order and/or Temporary Injunction to prevent her from obstructing and/or delaying same), inclusive of areas Copeland contends were under the Weinstein entities' exclusive control.
- There is no evidence that either the Weinstein entities had a duty to provide Copeland a warning as to any condition existing within the apartment and/or what would constitute an "adequate warning" (particularly given that the condition at issue, if same existed, was clearly open and obvious to Copeland);
- There is no evidence that either the Weinstein entities had a duty to and/or was required to, and/or that it was necessary for to hire any kind of licensed vendor to make repairs/remediation to the apartment unit, when there is no evidence that such repairs/remediation were ever needed and/or reasonable;
- There is no evidence that the Weinstein entities failed to properly maintain the premises;
- There is no evidence that any alleged failure to exercise reasonable care- by either Defendant- was the proximate cause of Copeland's fall and/or the proximate cause of Copeland's alleged injuries and/or damages;
- There is no evidence the Weinstein entities failed to and/or refused to address "mold" in Copeland's premises in a timely and proper manner;
- There is no evidence the Weinstein entities failed to assess and remediate the "toxic" mold from the Premises;
- There is no evidence the Weinstein entities created and/or permitted a dangerous condition to exist, after the Weinstein entities knew or should have known the condition existed;
- There is no evidence the Weinstein entities created and/or permitted a dangerous condition to exist, by allowing the "toxic" mold to remain in the premises without properly assessing and removing the condition or warning Copeland of the condition;
- There is no evidence the Weinstein entities failed to exercise reasonable care to reduce or eliminate any dangerous condition existing on the premises, despite actual or constructive knowledge of same.
- There is no evidence of any particular act or omissions of the Weinstein entities that proximately caused the incidents made the basis of this suit; and
- There is no evidence that any act or omission on the part of either Defendant proximately caused or was the cause in fact of any of Copeland's alleged injuries and/or damages.

Therefore, because Copeland has *no evidence* to support her premises liability claim, the Weinstein entities are entitled to summary judgment as a matter of law on Copeland's premises liability claim, and entitled to a dismissal of this claim, with prejudice.

**The Weinstein Entities Are Entitled to Summary Judgment
as to Copeland's Toxic Tort Claims**

The Weinstein entities assert that there is no evidence to support Copeland's toxic tort claim, as follows:

- There is no evidence that any condition in Copeland's apartment was capable of causing human illness;
- There is no evidence that any condition in the apartment unit was capable of causing the illnesses complained of by Copeland;
- There is no evidence Copeland suffered any particular medical condition;
- There is no evidence that any mold condition existed in Copeland's apartment for any particular time, and therefore no evidence that Copeland was exposed long enough to mold to cause any adverse health effects;
- There is no evidence that any mold condition existed in the apartment in any particular amount and/or specific does known to cause adverse health effects in humans;
- There is no evidence of any particular kind of mold *species* in Copeland's apartment which was considered and/or capable of being pathogenic and/or toxigenic to humans; and
- There is no evidence that mold exposure, if any, from indoor mold in the apartment unit leased by Copeland was a substantial, contributing, or exacerbating factor to any medical condition suffered by Copeland.

Therefore, because Copeland has *no evidence* to support her toxic claim, the Weinstein entities are entitled to summary judgment as a matter of law on Copeland's toxic tort claim, and entitled to a dismissal of this claim, with prejudice.

**The Weinstein Entities are Entitled to Summary Judgment as to Copeland's Breach of
Contract Claim Because There is No Evidence to Support This Claim**

The Weinstein entities assert that there is no evidence to support Copeland's breach of contract claim, as follows:

- There is no evidence that, based on the fact pattern alleged by Copeland, Copeland's cause of action sounds in contract and not in tort;
- There is no evidence that the Weinstein entities materially breached a contract with Copeland;
- There is no evidence that Copeland complied with conditions precedent to bringing a breach of contract claim;
- There is no evidence the apartment unit was, in any manner, uninhabitable or unfit for occupancy;
- There is no evidence that the Weinstein entities failed to maintain the premises in a safe, inhabitable condition, in any manner;
- There is no evidence that Copeland performed all of her obligations under the lease;
- There is no evidence that Copeland did not breach her lease by obstructing repair attempts by Weinstein entities;
- There is no evidence of contractually required remediation steps and communications, as alleged by Copeland, and/or that the Weinstein entities failed to comply with any requirements of the lease as to the repair and remedy of the apartment unit;
- There is no evidence that Copeland timely and promptly notified the Weinstein entities of a purported mold condition in her apartment, as required by her lease;
- There is no evidence Copeland was, in any manner, prevented from and/or unable to return to the apartment, and the full use and enjoyment of same, by any act/omission of the Weinstein entities (and, particularly, by any contractual breach by the Weinstein entities);
- There is no evidence that the Weinstein entities failed to maintain a safe premises; and
- There is no evidence that Copeland's injuries/damages were caused, in whole or in part, by any act or omission of the Weinstein entities, which could be construed as a breach of contract claim.

Therefore, because Copeland has ***no evidence*** to support her breach of contract claim (either its applicability and/or that the Weinstein entities breached any contract), the Weinstein entities

are entitled to summary judgment as a matter of law on Copeland's breach of contract claim, and entitled to a dismissal of this claim, with prejudice.

The Weinstein Entities are Entitled to Summary Judgment as to Copeland's Damage Claims and Claim for Fraudulent Inducement/Negligent Misrepresentation, Because There is No Evidence to Support Copeland's Claims

The Weinstein entities assert that there is no evidence to support Copeland's fraudulent inducement/negligent misrepresentation as follows:

- There is no evidence of any statement made by any Weinstein entity staff member, at any point in time prior to Copeland entering into a lease agreement with Weinstein;
- There is no evidence the Weinstein entities made any representation to Copeland which was not true and/or made with intent to conceal any issue relating to mold and/or moisture damage in the apartment unit;
- There is no evidence that a visible moisture line existed along the baseboards of the apartment unit, or that same was "evidence of prior flooding";
- There is no evidence that previous moisture damage had been painted over;
- There is no evidence the Weinstein entities had any knowledge of any actual or potential knowledge of mold in the apartment when Copeland signed her lease;
- There is no evidence of any particular statement made by Weinstein entities upon which Copeland relied upon in deciding to enter into a lease agreement;
- There is no evidence that Copeland was injured by her reliance on any statement by Weinstein (as opposed to any unilateral action/omission of Copeland);
- The Weinstein entities made any representation to Copeland which was not true and/or constituted "false information" as to any water intrusion issue;
- There is no evidence the apartment unit was not safe and/or habitable;
- The Weinstein entities made any representation to Copeland which was not true and/or constituted "false information" as to any purported mold existing in the apartment unit, and/or the remediation/repair relating to same;
- The Weinstein entities made any representation to Copeland which was actionable;

- There is no evidence Copeland relied on any representation made by the Weinstein entities; and
- There is no evidence Copeland's reliance, if any, caused Copeland any damage.

Therefore, because Copeland has ***no evidence*** to support her fraudulent inducement and/or negligent misrepresentation claims (either the applicability of same and/or that the Weinstein entities made any kind of improper representation to Copeland), the Weinstein entities are entitled to summary judgment as a matter of law on Copeland's breach of contract claim, and entitled to a dismissal of this claim, with prejudice.

The Weinstein Entities are Entitled to Summary Judgment as to Copeland's Claim for Violations of DTPA, Because There is No Evidence to Support Copeland's Claims

The Weinstein entities assert that there is no evidence to support Copeland's claims for violations of the Deceptive Trade Practices Act, as follows:

- There is no evidence that the Weinstein entities represented that goods and/or services had characteristics, uses, benefits, and/or qualities which the property management, maintenance, and/or that the apartment unit did not have;
- There is no evidence that the Weinstein entities represented that any agreement with Copeland conferred or involved rights, remedies, or obligations that it did not have;
- There is no evidence the Weinstein entities represented that repairs, alterations, modifications, and/or work had been performed when it had not been performed;
- There is no evidence that the Weinstein entities engaged in unconscionable actions or courses of action that took advantage of Copeland's lack of knowledge, ability, experience, and/or capacity, to a grossly unfair degree;
- There is no evidence that Copeland was forced to be exposed to a toxic environment;
- There is no evidence that Weinstein prevented Copeland from utilizing a hotel (and, in particular, for the months of June, July, August, September, and October, when there is also no evidence that Copeland paid any money toward rent or housing);
- There is no evidence that the apartment unit was not safe, habitable, and safe for occupancy;

- There is no evidence that a prior water leak had occurred and resulting water damage had been inadequately repaired;
- There is no evidence that water damage and/or moisture damage had been painted over rather than being repaired in any particular manner;
- There is no evidence that any properly noticed condition remained unabated in the condition for “months”, due to any act and/or omission of the Weinstein entities;
- There is no evidence of “extensive mold contamination” within the apartment or that the apartment was not “fit for human occupancy”;
- There is no evidence that any particular licensure was required to perform any particular work within the apartment;
- There is no evidence any remediation and/or repair of the apartment was not performed appropriately;
- There is no evidence that any of Copeland’s personal property was handled inappropriately;
- There is no evidence that mold existed near the entry door, and/or that any condition existing near the entry door was not properly and promptly repaired;
- There is no evidence that mold contamination existed behind painted surfaces, and/or that same existed for any particular amount of time, in any particular amount/concentration, and/or that same was capable of rendering the apartment uninhabitable or causing any health issues;
- There is no evidence the Weinstein entities had a duty to provide and/or promised to provide ADA-compliant temporary housing during remediation;
- There is no evidence the Weinstein entities had a duty to provide and/or promised to provide disability-effective accommodations during remediation;
- There is no evidence the Weinstein entities had a duty to provide and/or promised to provide “comparable housing” during remediation;
- There is no evidence the Weinstein entities had a duty to “prevent health deterioration” on Copeland’s behalf;
- There is no evidence that any hotel paid for or reserved by Weinstein on behalf of Copeland lacked “necessary amenities”;
- There is no evidence Weinstein entities had a duty to provide and/or promised to provide “incidentals” to Copeland;

- There is no evidence Weinstein owed any obligation (under contractual or state/federal law) to Copeland to provide lodging (of any kind) to her during remediation;
- There is no evidence Weinstein owed any obligation (under contractual or state/federal law) to Copeland to provide lodging (of any kind) to her after October 26, 2025, when her lease expired;
- There is no evidence Weinstein was obligated to and/or failed to engage in any process or procedure required under the American with Disabilities Act and/or Fair Housing Act.
- There is no evidence Copeland provided to the Weinstein entities reliable and/or complete information relating to any purported disability;
- There is no evidence of “coercive lodging terms” and/or that same would constitute a deceptive trade practice, even if there was evidence of same;
- There is no evidence that the Weinstein entities maintained uninhabitable conditions within the apartment while demanding rent, or that same would constitute a deceptive trade practice, even if there was evidence of same;
- There is no evidence that the Weinstein entities had a duty to conduct laboratory testing on any personal property of Copeland’s, or that failure to do same would constitute a deceptive trade practice;
- There is no evidence the Weinstein entities needed court order or consent to remove Copeland’s property from the apartment unit, after Copeland negligently and/or intentionally caused an emergency water intrusion event in the apartment unit;
- There is no evidence the Weinstein entities prevented Copeland from accessing her personal property;
- There is no evidence that Weinstein entities had a duty to provide to Copeland an inventory of her own property;
- There is no evidence the Weinstein entities attempted to spoliage or destroy evidence by offering to gratuitously clean Copeland’s property;
- There is no evidence that Weinstein attempting to prevent Copeland from filing complaints with any government agency;
- There is no evidence that Copeland’s statements made to third-party government agencies were truthful and/or non-disparaging;

- There is no evidence that the Weinstein entities sought to silence Copeland for exercising legal rights;
- There is no evidence that the Weinstein entities knowingly made false or misleading statements of fact;
- There is no evidence that the Weinstein entities failed to disclose information concerning goods or services which was known at the time of the transaction with the intent to induce Copeland into a transaction into which they would not have entered had the information been disclosed.
- There is no evidence that the Weinstein entities knew of or about any condition of the property detrimental to Copeland's health, prior to entering into any contract with Copeland.
- There is no evidence that the Weinstein entities had any knowledge of any condition which rendered the apartment leased to Copeland was dangerous to her health and well-being;
- There is no evidence that the Weinstein entities knowingly misrepresented that the apartment leased to Copeland was fit for occupancy in order to induce Copeland into continuing to renew her lease and/or inhabit the apartment;
- There is no evidence the Weinstein entities had any duty to disclose and/or "concealed" any mold assessment report;
- There is no evidence the Weinstein entities had any duty to disclose and/or "concealed" any water intrusion, moisture damage, and/or purported mold existing in any particular part of The Bowery to Copeland, prior to moving into the apartment unit;
- There is no evidence that the apartment unit was not fit for habitation;
- There is no evidence that the Weinstein entities engaged in false, misleading or deceptive acts;
- There is no evidence that Copeland would have "vacated immediately upon discovering extent of contamination", but-for the Weinstein entities purported misrepresentations, when Copeland knowingly moved back into her unremediated apartment unit in September, 2025;
- There is no evidence that Copeland would have "secured alternative housing before health deteriorated", but-for the Weinstein entities purported misrepresentations, when Copeland knowingly moved back into her unremediated apartment unit in September, 2025;
- There is no evidence that Copeland relied on any act/omission of the Weinstein entities;

- There is no evidence that Copeland's reliance on any act/omission of the Weinstein entities was to Copeland's detriment;
- There is no evidence that any facts alleged by Copeland support a cause of action for personal injury under this statute;
- There is no evidence that any act and/or omission by the Weinstein entities was the producing and/or proximate cause of the incident made the basis of this suit; and
- There is no evidence that any act and/or omission by the Weinstein entities was the producing and/or proximate cause of the injuries and/or damages to Copeland.

Therefore, because Copeland has *no evidence* to support her deceptive trade practices claim (either its applicability and/or that the Weinstein entities engaged in any deceptive trade practices), the Weinstein entities are entitled to summary judgment as a matter of law on Copeland's breach of contract claim, and entitled to a dismissal of this claim, with prejudice.

The Weinstein Entities are Entitled to Summary Judgment as to Copeland's Damage Claims and Claim for Statutory Violations of the Property Code, § 92.052 and 92.056, Because There is No Evidence to Support Copeland's Claims

The Weinstein entities assert that there is no evidence to support Copeland's statutory violations claim, as follows:

- There is no evidence that any facts alleged by Copeland support a cause of action under Tex. Prop. Code § 92.052 and/or 92.056;
- There is no evidence that the Weinstein entities failed to comply with any statutory obligation;
- There is no evidence of actionable injury to Copeland for any alleged violation of statutory obligation;
- There is no evidence that any purported statutory allegation caused Copeland harm;
- There is no evidence that the Weinstein entities failed in its duty to repair and/or failed to make a diligent effort to repair and/or remedy a condition;
- There is no evidence of any condition which materially affected the physical health and/or

safety of an ordinary tenant;

- There is no evidence that the Weinstein entities failed to repair any condition which caused the property to become uninhabitable.
- There is no evidence that any condition existing on the property was not caused by and/or exacerbated by Copeland's own contributory negligence;
- There is no evidence Copeland permitted the Weinstein entities an opportunity to repair and/or remedy any condition existing in the apartment without obstruction, interference, and/or delay, prior to October 2, 2025;
- There is no evidence the Weinstein entities had a reasonable time to repair and/or remedy any condition existing in the apartment without Copeland's obstruction, interference, and/or delay, prior to October 2, 2025;
- There is no evidence that - at any time any communication which could be considered a subsequent "notice" required under Chapter 92 of the Texas Property Code was provided to Weinstein – Copeland was not delinquent in the payment of her rent at the time the subsequent notice was given;
- There is no evidence that Copeland was forced to vacate the premises due to any hazardous condition existing in the apartment;
- There is no evidence that any act and/or omission by the Weinstein entities was the producing and/or proximate cause of the incident made the basis of this suit; and
- There is no evidence that any act and/or omission by the Weinstein entities was the producing and/or proximate cause of the injuries and/or damages to Copeland.

Therefore, because Copeland has ***no evidence*** to support her claims of violations of Tex. Prop. Code § 92.052 and/or 92.056 (either their applicability and/or that the Weinstein entities engaged in any improper practices), the Weinstein entities are entitled to summary judgment as a matter of law on Copeland's claims of violations of Tex. Prop. Code § 92.052 and 92.056, and entitled to a dismissal of this claim, with prejudice.

The Weinstein Entities are Entitled to Summary Judgment as to Copeland's Claim for Statutory Violations of the Property Code, § 92.331, Because There is No Evidence to Support Copeland's Claims

The Weinstein entities assert that there is no evidence to support Copeland's retaliation claim, as follows:

- There is no evidence that any facts alleged by Copeland support a cause of action under this statute;
- There is no evidence that the Weinstein entities failed to comply with any statutory obligation;
- There is no evidence of actionable injury to Copeland for any alleged violation of statutory obligation;
- There is no evidence that any purported statutory allegation caused Copeland harm;
- There is no evidence that the Weinstein entities acted in any manner that was retaliatory;
- There is no evidence Copeland was retaliated against for making a good-faith complaint about unsafe conditions to the Weinstein entities and/or because she gave the Weinstein entities a notice to repair her apartment;
- There is no evidence Copeland was retaliated against by because she, in good faith exercised or attempted to exercise against a landlord a right or remedy granted to the tenant by lease, municipal ordinance, or federal or state statute;
- There is no evidence that Copeland was retaliated against because she complained to a governmental entity responsible for enforcing building or housing codes, a public utility, and/or a civic or nonprofit agency;
- There is no evidence Copeland believed in good faith that any complaint she made to any third-party was valid and/or that the violation or problem occurred;
- There is no evidence Weinstein entities filed an eviction proceeding against Copeland, except for failure to pay rent and/or holding over after being given notice to vacate;
- There is no evidence the Weinstein entities deprived Copeland of the premises, for any reason not authorized by law;
- There is no evidence that Copeland renewed her lease and/or intended to renew her lease;
- There is no evidence that the denial of any particular demand by Copeland for monetary relief/damages and/or refusal by Weinstein to pay for housing, food, incidentals, or any other expenses, at any point in time, are evidence of retaliation;
- There is no evidence Weinstein entities engaged in a bad-faith course of conduct that materially interfered with Copeland's rights under Copeland's lease.

- There is no evidence that any situation Copeland claims to be retaliation was not caused by and/or exacerbated by Copeland's own contributory negligence and/or intentional acts;
- There is no evidence the Weinstein entities decreased services to Copeland, which they were obligated to provide to her under her lease;
- There is no evidence that any act and/or omission by the Weinstein entities was the producing and/or proximate cause of the incident made the basis of this suit; and
- There is no evidence that any act and/or omission by the Weinstein entities was the producing and/or proximate cause of the injuries and/or damages to Copeland.

Therefore, because Copeland has *no evidence* to support her claims of violations of Tex. Prop. Code § 92.0331 (either its applicability and/or that the Weinstein entities engaged in any improper practices), the Weinstein entities are entitled to summary judgment as a matter of law on Copeland's claims of violations of Tex. Prop. Code § 92.331, and entitled to a dismissal of this claim, with prejudice.

The Weinstein Entities are Entitled to Summary Judgment as to Copeland's Damage Claims and Claim for Statutory Violations of the Fair Housing Act, Because There is No Evidence to Support Copeland's Claims

The Weinstein entities assert that there is no evidence to support Copeland's claims for violations of the Fair Housing Act, as follows:

- There is no evidence that any facts alleged by Copeland support a cause of action under this statute;
- There is no evidence that the Weinstein entities failed to comply with any statutory obligation;
- There is no evidence of actionable injury to Copeland for any alleged violation of statutory obligation;
- There is no evidence that any purported statutory allegation caused Copeland harm;
- There is no evidence Copeland suffered from any particular disability and/or impairment, and/or that if she suffered from any particular disease and/or ailment, that such amounted to a physical or mental impairment that limited major life activities;

- There is no evidence that, even if Copeland did suffer from any particular disability and/or impairment, that any request made by Copeland for extra-contractual lodging and/or payment of other expenses was a reasonable accommodation request by Copeland;
- There is no evidence that Copeland made any reasonable accommodation request to Weinstein which was denied;
- There is no evidence that the need for any accommodation requested by Copeland was immediately apparent;
- There is no evidence Copeland provided any documentation verifying any disability and/or the need for any requested accommodation.
- There is no evidence that the Weinstein entities owed any obligation to Copeland – under contractual or statutory law – for any lodging during the remediation of her apartment;
- There is no evidence Copeland was entitled to licensed mold remediation under any provision of disability law;
- There is no evidence that, even if the Weinstein entities had been required to provide Copeland lodging during remediation, that they were required to provide any particular type of lodging, to include “comparable” and/or “disability-effective” temporary housing;
- There is no evidence that the Weinstein entities were required to communicate with Copeland only by her preferred “written only” communications, that same constituted a reasonable accommodation, and/or that failure to communicate with Copeland via written communication constituted a violation of Fair Housing Act;
- There is no evidence that the Weinstein violated Copeland’s rights to the exercise of fair housing rights by threatening to restrain her from contacting government regulators and/or taking adverse actions after Copeland contacted same;
- There is no evidence that conditions existed under which Weinstein was required to engage in good-faither interactive process and/or no evidence that Weinstein refused/failed to do same;
- There is no evidence that Copeland did not have an equal opportunity to use and enjoy a dwelling, except by her own intentional acts and/or omissions;
- There is no evidence that the Weinstein entities engaged in any unlawful conduct, to include coercion, intimidation, threats, and/or interference with Copeland’s exercise of fair housing rights;

- There is no evidence that the Weinstein entities owed any obligation to Copeland other than to offer to release her from her lease contract, and the Weinstein entities met this obligation;
- There is no evidence that any act and/or omission by the Weinstein entities was the proximate cause of the incident made the basis of this suit; and
- There is no evidence that any act and/or omission by the Weinstein entities was the proximate cause of the injuries and/or damages to Copeland.

Therefore, because Copeland has ***no evidence*** to support her claims of violations of Fair Housing Act (either its applicability and/or that the Weinstein entities engaged in any improper practices), the Weinstein entities are entitled to summary judgment as a matter of law on Copeland's claims of violations of Fair Housing Act, and entitled to a dismissal of this claim, with prejudice.

The Weinstein Entities are Entitled to Summary Judgment as to Copeland's Claim for Negligent Remediation/Negligent Per Se

The Weinstein Entities assert that there is no evidence to support Copeland's negligent remediation/negligence per se claims, as follows:

- There is no evidence of any particularly applicable statute or code which could or would form the basis of a negligence per se theory of liability as against the Weinstein entities, based on the facts and circumstances of this case;
- There is no evidence of any violation/breach by the Weinstein entities of any particular statute/code which could or would form the basis of a negligence per se theory of liability as against Defendants, based on the facts and circumstances of this case;
- There is no evidence that any condition which existed in the apartment constituted "regulated mold" under Texas Mold Assessment and Remediation Rules, to include no evidence that visible mold existed, and/or no evidence that a total surface area of 25 contiguous square feet of visible mold existed;
- There is no evidence of any particular statutory obligation for the Weinstein entities regarding the entry of the apartment (for remediation or any other purpose);
- There is no evidence of any particular statutory obligation for the Weinstein entities regarding the course of conduct during the remediation process;

- There is no evidence that the Weinstein entities were required to have a mold protocol written by a licensed mold assessment consultant or that they were required to hire a licensed mold remediation company;
- There is no evidence that the Weinstein entities did not have a mold protocol written by a licensed mold assessment consultant or that they did not hire a licensed mold remediation consultant;
- There is no evidence the Weinstein entities had any duty – statutory or otherwise – to file any documents with Texas Department of Licensing and Regulation, to include “start/stop” filings.
- There is no evidence the Weinstein entities had a duty to supervise either a licensed mold assessment consultant or a licensed mold remediation consultant;
- There is no evidence that the Weinstein entities violated any provision of the Texas Occupation (and no evidence that Weinstein entities had any obligations under this section of the Code);
- There is no evidence of any particular regulation under Texas law regarding the handling and/or cleaning of personal property contents;
- There is no evidence that the Weinstein entities had a duty to comply with any particular regulation under Texas law regarding the handling and/or cleaning of personal property.
- There is no evidence that the Weinstein entities engaged in any statutory violation regarding the handling and/or cleaning of Copeland’s personal property;
- There is no evidence the Weinstein entities failed to provide a Certificate of Mold Remediation upon completion of the remediation of the apartment unit;
- There is no evidence that Copeland’s property was contaminated and/or damaged;
- There is no evidence that any “mold problem” was exacerbated and/or not resolved.
- There is no evidence that Copeland suffered any particular injury (to include property damage and/or exposure to harmful conditions) as a result of any violation of any statute, by the Weinstein entities;
- There is no evidence that any provision of the Texas Occupation Code or the Texas Administrative Code relating to mold assessment and remediation apply, in any manner, to the Weinstein entities.
- There is no evidence to support negligence per se as a viable theory of recovery (given that Plaintiff’s case sounds in premises liability/toxic tort);

- There is no evidence that any purported violation/breach by the Weinstein entities of any particular statute and/or code which could or would form the basis of a negligence per se theory of liability (and again, the Weinstein entities assert that there is no such applicable code or statute) proximately caused the accident made the basis of this suit; and
- There is no evidence that any purported violation/breach by the Weinstein entities of any particular code or statute which could or would form the basis of a negligence per se theory of liability (and again, the Weinstein entities assert that there is no such applicable code or statute) proximately caused any purported/claimed injuries and/or damages sustained by Copeland.

Therefore, because Copeland has *no evidence* to support her negligence per se claim (either its applicability and/or that the Weinstein entities were negligent per se), the Weinstein entities are entitled to summary judgment as a matter of law on Copeland's negligence per se claim, and entitled to a dismissal of this claim, with prejudice.

The Weinstein entities are Entitled to Summary Judgment as to Copeland's Trespass to Chattels/Conversion Claims, Because There is No Evidence to Support Copeland's Claims

The Weinstein entities assert that there is no evidence to support Copeland's trespass to chattel/conversion claims, as follows:

- There is no evidence that the Weinstein entities owed any duty to Copeland which was breached;
- There is no evidence that the Weinstein entities made any unauthorized entry into Copeland's apartment;
- There is no evidence that the Weinstein entities conducted any unauthorized handling of Copeland's personal property contents;
- There is no evidence the Weinstein entities engaged in any conduct which caused either a minor/temporary interference with Copeland's property and/or which caused a serious/substantial interference with the property;
- There is no evidence that any act and/or omission of Weinstein entities substantially interfered with Copeland's access to property (and, instead, all available evidence shows that Copeland had immediate access to all of her property from September 26, 2025 to the present, but has chosen not to exercise that access);

- There is no evidence that any particular items were contaminated and/or needed to be decontaminated and/or replaced;
- There is no evidence of any cross-contamination and/or damage resulting from same, as to Copeland's property;
- There is no evidence that any property was handled in any manner inconsistent with Copeland's rights;
- There is no evidence the Weinstein entities intended to intentionally damage any of Copeland's personal property;
- There is no evidence that any interference with Copeland's property was not proximately caused by her failure/refusal to move and/or remove her personal property;
- There is no evidence that any interference with Copeland's property was not necessary in order to prevent greater harm;
- There is no evidence that the Weinstein entities had any duty or obligation to provide Copeland with chain-of-custody and/or documentation regarding the handling of same, that Weinstein failed to provide same, and/or that the failure to provide same would support any cause of action under these circumstances;
- There is no evidence that any personal property item of Copeland's was mishandled, damaged, rendered unusable, destroyed, disposed of, retained, and/or that Copeland was deprived of its use (by the acts/omissions of any party other than herself);
- There is no evidence any act and/or omission of the Weinstein entities proximately caused any interference with Copeland's personal property rights; and
- There is no evidence any act and/or omission of the Weinstein entities proximately caused any injuries and/or damages for which Copeland complains.

Therefore, because Copeland has ***no evidence*** to support her trespass to chattels/conversion claims (either their applicability and/or that the Weinstein entities were liable under these theories), the Weinstein entities are entitled to summary judgment as a matter of law on Copeland's trespass to chattels and/or conversion claims, and entitled to a dismissal of this claim, with prejudice.

The Weinstein entities are Entitled to Summary Judgment as to Copeland's Declaratory Judgment Claims, Because There is No Evidence to Support Copeland's Claims

The Weinstein entities assert that there is no evidence to support Copeland's claim for declaratory judgment relief, as follows:

- There is no evidence that a declaratory judgment is a proper remedy as to any complaint made by Copeland as to any act/omission of the Weinstein entities.
- There is no evidence Copeland has any right, status, or other legal relation as to the Weinstein entities affected by any statute, which she has a right to have considered by this Court;
- There is no evidence that any "declaration requested" by Copeland would resolve any matter in an actual controversy in this lawsuit;
- There is no evidence the Weinstein entities had a duty to employ any particular vendor to perform work on the apartment, to include a licensed mold assessment consultant and/or a licensed mold remediator, and/or that Weinstein had any duty to have any particular vendor to act or refrain from acting in any particular manner;
- There is no evidence Copeland was, at any point in time, entitled to any particular documents (including reports and/or protocols) relating to any work being performed in the apartment;
- There is no evidence that the Weinstein entities were required, at any point in time, to comply with any Texas Department of Licensing and Regulation requirements for any work in the apartment and/or as to the handling/cleaning of Copeland's personal property;
- There is no evidence the Weinstein entities had any duty to provide or pay for comparable, ADA-compliant temporary housing for Copeland, under either the lease or under any law, and/or that such duty extended until the apartment was "fully remediated and habitable"; and
- Copeland is entitled to any declaratory judgment relief as a result of any act/omission of the Weinstein entities.

Therefore, because Copeland has *no evidence* to support her claims for declaratory judgment (either their applicability and/or that the Weinstein entities were liable under these theories), the Weinstein entities are entitled to summary judgment as a matter of law on Copeland's declaratory judgment claims, and entitled to a dismissal of this claim, with prejudice.

The Weinstein entities are Entitled to Summary Judgment as to Copeland's Damage Claims and Claim for Constructive Eviction, Because There is No Evidence to Support Copeland's Claims

The Weinstein entities assert that there is no evidence to support Copeland's constructive eviction claim, as follows:

- There is no evidence Copeland can maintain a cause of action as to constructive eviction;
- There is no evidence that the unit was unfit for human occupancy and/or that any condition existed in the apartment which was dangerous and/or detrimental to Copeland;
- There is no evidence the Weinstein entities acted and/or failed to act in any manner which substantially interfered with Copeland's enjoyment of the premises;
- There is no evidence that the Weinstein entities intended for Copeland to vacate and/or no longer use the premises;
- There is no evidence that Copeland actually, in fact, vacated the unit, and instead, there is substantial evidence that Copeland continued to access the unit, even after Temporary Restraining Order and/or Temporary Injunction forbade her presence there;
- There is no evidence that Copeland had any intention of vacating the unit, at any point in time, and, instead, substantial evidence that Copeland intended to stay in the unit, as evidenced by her leaving her personal property items in the unit;
- There is no evidence that Copeland continued to pay rent, such that she would have been entitled to continue to enjoy the premises;
- There is no evidence that any act/omission by the Weinstein entities was the cause of the injuries and/or damages to Copeland.

Therefore, because Copeland has ***no evidence*** to support her constructive eviction claims (either their applicability and/or that the Weinstein entities were liable under these theories), the Weinstein entities are entitled to summary judgment as a matter of law on Copeland's constructive eviction claims, and entitled to a dismissal of this claim, with prejudice.

**Defendants are Entitled to Summary Judgment on
Plaintiff's Gross Negligence Claim**

There is no evidence to support Plaintiff's gross negligence claim, as follows:

- Copeland has not plead or proven a cause of action which would support a gross negligence finding;
- There is no evidence that the Weinstein entities acted in a manner which when viewed objectively from the standpoint of the Weinstein entities at the time, involved an extreme degree of risk, considering the probability and magnitude of the harm to others; and
- There is no evidence that the Weinstein entities acted in a manner for which they had actual, subjective awareness of the risk involved but nevertheless proceeded with conscious indifference to the rights, safety, or welfare of others.

Therefore, because Copeland has ***no evidence*** to support her gross negligence claim/cause of action as against the Weinstein entities, the Weinstein entities are entitled to summary judgment as a matter of law on Plaintiff's gross negligence claim/cause of action, and entitled to a dismissal of this claim, with prejudice.

**The Weinstein Entities are Entitled to Summary Judgment as to
Copeland's Damage Claims and Claim for Attorney's Fees**

- There is no evidence to support Copeland's claims for the damages sought;
- There is no evidence that the Weinstein entities (by act and/or omission) proximately caused the alleged incident(s) made the basis of this suit;
- There is no evidence that the Weinstein entities (by act and/or omission) proximately caused any alleged injury to or damage sustained by Copeland;
- There is no evidence Copeland incurred, and/or will incur in the future, any medical expenses relating to and/or resulting from any condition existing on the Weinstein entities' property, including any damages related to "mold" and/or "mold exposure" and/or due to a need for "medical monitoring";
- There is no evidence of any recoverable damages for any damages relating to the habitability of the apartment (of which there is further no evidence that same was in any manner unsafe and/or uninhabitable);

- There is no evidence Copeland incurred, and/or will incur in the future, any damages for “physical pain”, “mental anguish”, “emotional distress”, “fear and/or anxiety from toxic exposure”, “stress”, and/or relating to and/or resulting from any condition existing on the Weinstein entities’ property, including any damages related to “mold” and/or “mold exposure”;
- There is no evidence Copeland incurred, and/or will incur in the future, any damages for “physical impairment”, “loss of enjoyment of life”, “reproductive harm”, “loss of partnership opportunity”, relating to and/or resulting from any condition existing on the Weinstein entities’ property, including any damages related to “mold” and/or “mold exposure”;
- There is no evidence Copeland incurred, and/or will incur in the future, any damages for “loss or earnings”, “loss of earning capacity”, and/or “socio-economic and professional impairment” damage relating to and/or resulting from any condition existing on the Weinstein entities’ property, including any damages related to “mold” and/or “mold exposure”;
- There is no evidence that Copeland suffered any property damages, to include loss in value, repair/cleaning cost, replacement cost, and/or loss of use, as a result of the incidents made the basis of this suit, or of the proper valuation of same;
- There is no evidence Copeland incurred any actual or consequential damages, including hotel/housing costs, transportation costs, costs of food, pet boarding costs, relocation, and/or moving costs, childcare costs, storage costs, and out-of-pocket expenses;
- There is no evidence Copeland is entitled to statutory penalties, under either state or federal law;
- There is no evidence Copeland is entitled to any special damages, such as rescission;
- There is no evidence Copeland is entitled to any “treble”, “punitive”, and/or “exemplary damages” in this matter;
- There is no evidence Copeland is entitled to injunctive and/or declaratory relief; and
- There is no evidence to support an award/recovery of attorney’s fees to/for Copeland (to include no evidence of any cause of action that exists to support such award, no evidence of the amounts purportedly incurred, and no evidence of any attorney fees being properly calculated – per the Texas Supreme Court).

Therefore, because Copeland has ***no evidence*** to support her claims for damages, and/or her claim for attorney’s fees, the Weinstein entities are entitled to summary judgment as a matter of

law on Copeland's damage claims, and on Copeland's attorney fee claim, and entitled to a dismissal of all of these claims, with prejudice.

VI.

CONCLUSION

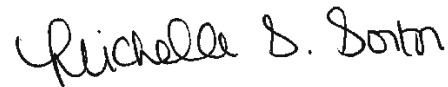
The Weinstein entities are entitled to summary judgment as to all of Copeland's causes of action and damages, as at least one essential element of each cause of action and damage claim has been conclusively negated by the Weinstein entities.

Further, the current status of Texas law, and the existence of "no evidence" to support any of Copeland's claims and causes of action make clear that summary judgment should be entered for the Weinstein entities, as to each and every cause of action asserted, and as to each and every claim for damages asserted. There is no legal basis identified by which to seek recovery of attorney's fees and no evidence to support Copeland's request for attorneys fees.

Therefore, all of Plaintiff's claims and causes of action asserted against these Defendants should be dismissed, with prejudice, and Defendants are entitled to an award of their attorney's fees and taxable court costs.

WHEREFORE PREMISES CONSIDERED the Weinstein entities respectfully request that their Combined Motion for Traditional and No-Evidence Motion for Summary Judgment be granted in its entirety, that Copeland's claims and causes of action be dismissed with prejudice to the refiling of same and that the Weinstein entities be awarded their attorney's fees and taxable court costs from Copeland, and for such other and further relief, at law and in equity, both general and specific, to which the Weinstein entities may be justly entitled.

Respectfully submitted,



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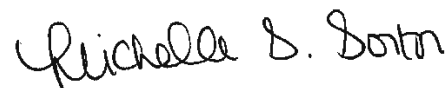
**ATTORNEY FOR WEINSTEIN
PLAINTIFFS/COUNTER
DEFENDANTS**

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing instrument was served on counsel of record this **11th** day of **May 2026**, in accordance with the Texas Rules of Civil Procedure.

Via Electronic Service

Kathryn Copeland



MICHELLE S. SORTOR

EXHIBIT “A”

CAUSE NO. 141-370402-25

**WEINSTEIN MANAGEMENT CO.,
INC. AND WMCI DALLAS X, LLC**

Plaintiffs

VS.

KATHRYN MS. COPELAND,

Defendant

§
§
§
§
§
§
§
§
§

IN THE DISTRICT COURT OF

TARRANT COUNTY, TEXAS

141ST JUDICIAL DISTRICT

AFFIDAVIT OF PAMELA QUINN

**STATE OF VIRGINIA §
 §
COUNTY OF HENRICO §**

1. “My name is Pamela Quinn. I am over the age of 18, of sound mind, and capable of making this Affidavit. I have never been convicted of a felony or misdemeanor involving moral turpitude.”
2. “The facts stated in this Affidavit are within my personal knowledge, and are true and correct.”
3. “I am the Assistant Director of Asset Management and Support for Weinstein Management Co., Inc. I have worked for Weinstein Management Co., Inc. for over 15 years. Weinstein Management Co., Inc. (hereinafter, “Weinstein Management”), manages the property known as “The Bowery at Southside” (hereinafter referred to as “The Bowery”), located at 405 Crawford Street, Fort Worth, Texas. The Bowery. The Bowery is a multi-family apartment complex owned by WMCi Dallas X, LLC (hereinafter, “WMCi”).”
4. “With respect to management and operation of the Bowery, Weinstein Management provides the staff to conduct all necessary tasks, to include as related to leasing, rent collection, maintenance, and general operations. If a lease violation, Notice of Termination or Notice to Vacate is necessary, the management staff for Weinstein Management issues these notices to a tenant (to include individuals whose leases have expired, and who refuse to leave the property).”

5. “In my position with Weinstein Management, I oversee the operation and management of various apartment complex properties, to include The Bowery, working closely with the management staff and with tenants. I was involved in the operation and management of the Bowery apartment complex at all relevant times. As a part of my job responsibilities, I am actively involved in assisting with coordination of maintenance projects, to include locating and contracting with third party service providers, interacting with and coordinating with and through necessary agencies, and when necessary, I am involved in direct interactions with tenants with respect to various types of matters.”
6. “I am aware that Weinstein Management, Inc., and WMCi X, LLC (collectively the “Weinstein Entities”) have been sued by Kathryn Copeland (“hereinafter referred to as “Ms. Copeland”) in the following matters:
 - a. *Ms. Copeland v. Weinstein Properties/WMCIX, LLC*; JP03-25-SC00028212, in the Justice of the Peace Court No. 3, Tarrant County, Texas¹;
 - b. *Ms. Copeland v. WMCIX, LLC*; JP03-25-RR00000029, in the Justice of the Peace Court No. 3, Tarrant County, Texas²; and
 - c. *Ms. Copeland v. WMCIX, LLC*; JP05-26-SC00006700, in the Justice of the Peace Court No. 5, Tarrant County, Texas³.”
7. “I am aware that the Weinstein Entities have brought suit against Ms. Copeland in the following matters:
 - a. *WMCIX, LLC v. Ms. Copeland*; JP05-26-E00044950, in the Justice of the Peace Court No. 5, Tarrant County, Texas⁴
 - b. *Weinstein, et al v. Ms. Copeland*, Cause No. 141-370402-25, in the 141st Judicial District of Tarrant County (the subject matter, in which Ms. Copeland has filed counter-claims).”
8. “I am the records custodian of Weinstein Management Co., Inc., and as such, I am the custodian of the records attached to this Affidavit.”
9. “The records attached to this Affidavit consist of the following:
 - a. **Exhibit “A-1”: Application for The Bowery at Southside, completed by Kathryn Copeland;**

¹ Retaliation lawsuit filed by Ms. Copeland against Weinstein, and which was determined adversely to her.

² Repair and remedy lawsuit filed by Ms. Copeland and determined adversely to her; this matter is on appeal to County of Law No. 2, Cause No. 2026-00108-2.

³ Ms. Copeland has filed a lawsuit against WMCi X, LLC, stating that she was improperly “locked out” from the apartment.

⁴ WMCi X, LLC prevailed on its eviction suit against Ms. Copeland; writ of possession issued, and this matter is on appeal to County Court at Law No. 1, 2026-002209-1.

- b. Exhibit “A-2”: The Lease Agreement entered into between Kathryn Copeland and WMCi;**
- c. Exhibit “A-3”: Move in Inspection Form, completed by Kathryn Copeland;**
- d. Exhibit “A-4”: Notice of Termination of Lease (August 26, 2025);**
- e. Exhibit “A-5”: Work orders relating to the apartment rented by Kathryn Copeland;**
- f. Exhibit “A-6”: Email correspondence from Kodi Walker to Kathryn Copeland, dated June 27, 2025;**
- g. Exhibit “A-7”: Email correspondence from Kodi Walker to Kathryn Copeland, dated June 30, 2025;**
- h. Exhibit “A-8”: Email correspondence from Jessica Calkins to Kathryn Copeland, dated July 7, 2025;**
- i. Exhibit “A-9”: Email correspondence between Kodi Walker and/or Jessika Calkins and Kathryn Copeland, dated July 8-11, 2025;**
- j. Exhibit “A-10”: Email correspondence between Kodi Walker and/or Jessika Calkins and Kathryn Copeland, dated July 12-14, 2025;**
- k. Exhibit “A-11”: Email exchange between Pamela Quinn (and other staff) and Kathryn Copeland, dated July 30, 2025- August 3, 2025;**
- l. Exhibit “A- 12”: August 6, 2025 Notice to Vacate for Non-Payment of Rent;**
- m. Exhibit “A-13”: August 18, 2025 DTPA demand letter from Kathryn Copeland, received by Weinstein and referencing being sent to ServPro;**
- n. Exhibit “A-14”: Email correspondence from Pamela Quinn to Kathryn Copeland, dated September 12-15, 2025;**
- o. Exhibit “A-15”: Email correspondence from John Douglas to, among others, Pamela Quinn, dated September 16, 2025;**
- p. Exhibit “A-16”: Photographs of Unit 2145 taken by Weinstein Management staff, on September 22, 2025;**
- q. Exhibit “A-17”: Key Log Audit for Apartment 2145;**

r. **Exhibit “A-18”: Temporary Restraining Order, dated October 2, 2025;**

s. **Exhibit “A-19”: Temporary Injunction;**

t. **Exhibit “A-20”: November 5, 2025 Notice to Vacate; and**

Exhibit “A-21”: Certificate of Mold Damage Remediation.

10. “The records attached to this Affidavit, consisting of _____ pages (excluding exhibit sheets) are kept in the regular course of its business. It was the regular course of that business for an employee or representative of the business with knowledge of the act, event, condition, or opinion recorded to make the record or to transmit information thereof to be included in such record. The record was made at or near the time of the act, event, condition, or opinion recorded, or reasonably soon thereafter. The attached records are the originals or exact duplicates of the originals.”
11. “Ms. Copeland completed her lease application on October 13, 2023, in which she stated that she worked for “Quintessential Entertainment, Inc.,” and that she made \$5,000.00 a month. She noted that her dogs, “Ruby” and “Moon” were not service animals. Ms. Copeland’s application is attached as **Exhibit “A-1”**.”
12. “On or about October 18, 2023, WMCi entered into a standard Texas Apartment Association lease agreement with Ms. Copeland, for the rental of an apartment unit located at 405 Crawford Street, Apt. 2145, in Fort Worth, Texas, 76104. The original lease agreement, dated October 21, 2023 to December 22, 2024, is attached as **Exhibit “A-2”**. **Exhibit “A-2”** includes Ms. Copeland’s initial lease and subsequent lease extensions.”
13. “Ms. Copeland completed a Move In Inspection form, in October, 2023, which did not note any visible mold, mold smells, and/or any indication of past or current issues with water intrusion. Ms. Copeland did not note any visible water lines on any baseboards, and did not note that any previous damage, from water or any other source, had been painted over.” See **Exhibit “A-3”**.”
14. “This lease agreement was extended as to the following periods of time, as between WMCi and Ms. Copeland:
 - a. December 23, 2024 to May 25, 2025; and
 - b. May 26, 2025 to August 24, 2025. See **Exhibit “A-2”**.”
15. “Ms. Copeland’s rent for 2025 for January through July was paid as follows:
 - a. Richard K. Fawcett paid \$2,450.00 on January 2, 2025.
 - b. Richard K. Fawcett paid \$2,519.75 on January 30, 2025.

- c. Richard K. Fawcett paid \$2,518.66 on March 1, 2025.
- d. Richard K. Fawcett paid \$2,513.80 on April 4, 2025.
- e. Richard K. Fawcett paid \$2,589.21 on April 30, 2025.
- f. Postal Money Order Serial Number 29782159402, in the amount of \$510.00, was posted on June 3, 2025.
- g. Postal Money Order Serial Number 29782159380, in the amount of \$1,000.0, was posted on June 3, 2025.
- h. Postal Money Order Serial Number 29782159391, in the amount of \$1,000.00 was posted on June 3, 2025.
- i. Steve Burre paid \$2,515.93 on July 1, 2025.

Neither Mr. Fawcett nor Mr. Burre are listed as occupants on the lease, neither were tenants and neither served as any sort of co-signor for the lease agreement entered into with Ms. Copeland. As such, neither of these gentleman had any obligation to pay rent to WMCi.”

- 16. “Ms. Copeland did not pay rent for August, September, October, November, or December of 2025, or in January or in February of 2026, and no one paid rent on her behalf. Per the terms of her lease agreement, rent abatement is not provided should a tenant have an issue with the condition of their apartment (the lease language specifically states this will not be provided); the lease provides identification of the remedies provided by Chapter 92 of the Texas Property Code. See **Exhibit A-2**”.
- 17. “Per the terms of the May 2025 lease extension, a minimum of 60 days’ notice was required as to: termination of the lease/intent to move-out by Ms. Copeland, and non-renewal as to WMCi and/or Weinstein Management. Ms. Copeland’s extended written lease (entered into on in May 2025) expired on August 24, 2025. See **Exhibit A-2**”
- 18. Ms. Copeland did not sign a lease renewal agreement for her May 2025 lease extension prior to her lease expiration on August 24, 2025, and did not sign a lease renewal agreement or a new lease with WMCi and/or Weinstein Management from August 24, 2025 to August 26, 2025.
- 19. Ms. Copeland was provided notice on August 26, 2025, that WMCi and/or Weinstein Management would not be renewing her lease, which informed that her last date of occupancy as a tenant would be October 26, 2025. The Notice of Termination of Lease is attached as See **Exhibit “A-4”**.”

20. "On August 29, 2024, Ms. Copeland submitted a work order stating that she suspected a leak under her sink. The area was inspected and no leak was found, although it was noted that there were items leaning on water lines. See **Exhibit "A-5"**.
21. "On September 9, 2024, Ms. Copeland submitted a work order relating to the performance of her HVAC. No mold was detected. See **Exhibit "A-5"**."
22. "In October 2024, and again in March 2025, organic growth (which was noted not to be mold by the maintenance technician) was observed on the wall next to the front door. As there was no source of water in this area of the apartment, it was determined that a possible cause was condensation from the HVAC unit being turned on high. Each time, the area was treated, by cleaning the area with bleach and water, and use of Kilz and the area was painted. See **Exhibit "A-5."**
23. "Ms. Copeland made no further complaints regarding alleged mold at the area beside the door, until June 27, 2025."
24. "From September 2024 through May of 2025, Ms. Copeland's HVAC filter was changed five times; at no point during these changes (which were conducted by Weinstein Management's maintenance staff) was any mold detected or suspected within the HVAC Unit or closet in which the HVAC unit was contained."
25. "At no point in time from September 2024 until June 27, 2025 did Ms. Copeland report any visible or suspected mold or smells she associated with mold, relating to the HVAC closet."
26. "Ms. Copeland made no complaints about mold in her guest bedroom, prior to June 27, 2025."
27. "On or about June 3, 2025, Ms. Copeland submitted a work order which stated: "Hi - I am not sure if it is the A/C or a leak somewhere, but I hear a consistent dripping or splashing sound in my main living area. It's pretty noticeable." See **Exhibit "A-5"**."
28. "On or about June 4, 2025, maintenance workers entered Ms. Copeland's apartment. No leak was detected. The HVAC unit was unclogged. No mold was detected inside the HVAC unit closet at that time."
29. "From June 4, 2025 to June 27, 2025, Ms. Copeland did not report that she believed mold was present in her apartment to WMCi and/or Weinstein Management, did not report that she had suspicions of mold present in her apartment, did not report that any visitors or guests that she had to the apartment had observed or smelled mold, or that she had hired a mold assessment consultant to inspect her apartment."
30. "On June 18, 2025, at 2:29 p.m., Ms. Copeland placed another work order, stating "I think there maybe a leak or something in the A/C system cause I hear that splashing sound again. And just now I heard something that sounded like water. I recorded it on

my phone for you.” Maintenance staff went to the apartment, and assessed the HVAC. No leak was noted. The drain for the HVAC was unclogged at that time. Growth was noted and the area was dry. See **Exhibit “A-5”**.”

31. “On June 27, 2025, Ms. Copeland sent correspondence (purporting to be, among other things, a “demand” pursuant to Texas Deceptive Trade Practices Act, and “notice” under Texas Property Code), in which she contended that harmful mold existed within her apartment.”
32. “On June 27, 2025, Weinstein Management’ staff (to include Kodi Walker, the manager) inspected Ms. Copeland’s apartment and assessed the area at issue, and on that date, also emailed Ms. Copeland, to propose a plan of repair/remediation, contemplating that portions of the repair could be performed in-house. See **Exhibit “A-6”**.”
33. “Ms. Copeland was not agreeable to having the repair performed in the manner suggested and as such, the work did not proceed, and Ms. Copeland was offered a transfer to another unit, and/or to early terminate her lease without penalty. **Exhibit “A-7”**.”
34. “Ms. Copeland never indicated any interest in terminating her lease early. On June 30, 2025. Ms. Copeland stated through email that she did not consent to entry to her apartment for “unlicensed remediation or inspection.”
35. “On July 7, 2025, Weinstein agreed to provide paid lodging for Ms. Copeland at The Nobleman hotel (a hotel she had selected) and agreed to place her dogs in boarding (at Weinstein Management’s expense) (although the hotel was pet-friendly). **Exhibit “A-8”**.”
36. “On July 8, 2025, I began communicating with BioTex to request a mold protocol. BioTex was the mold assessment company used by Ms. Copeland and whose report she had provided to Weinstein Management on June 27, 2025. BioTex agreed to prepare the protocol, and also provided names of mold remediation companies for my review and consideration.”
37. “Also, by July 8, 2025, Weinstein Management had been in contact with ServPro (a licensed mold remediation company) to request this vendor to inspect Ms. Copeland’s apartment and, also requested, via email to Ms. Copeland, that she allow access to her apartment on July 8, 2025 for this inspection. Additional attempts were made to communicate with Ms. Copeland to arrange for this inspection and ultimately, Ms. Copeland agreed to permit the inspection to go forward on July 11, 2025 (and Weinstein Management continued to follow up as to Ms. Copeland’s desire to transfer to another unit). See **Exhibit “A-9”**.”

38. "On July 13, 2025, I received the initial mold protocol from BioTex (and this was paid for by Weinstein Management)."
39. "On July 12-14, 2025, Weinstein staff emailed with Ms. Copeland, in which she was informed that while transfer to another unit was still an option, her then current apartment would need to pass inspection, and she was advised that a "strong pet urine odor" had been detected during the inspection conducted by Weinstein management staff and ServPro. Thereafter, Ms. Copeland did not pursue transfer to another unit and instead, re-urged her request for hotel lodging, which was again offered to her, for The Nobleman (a four-star hotel, that she had requested), and her dogs were boarded." **Exhibit "A-10".**
40. "On July 14, 2025, instead of accepting lodging at The Nobleman as she had been requesting, Ms. Copeland instead then demanded that she be placed at The Bowie House (which is a five-star hotel and substantially more expensive, but which did not have a kitchenette, an amenity Ms. Copeland had previously demanded as being "required" to accommodate her unidentified "disabilities"). Weinstein Management's staff confirmed reservations at The Nobleman had been made, but that same would not include "incidentals" – which would be Ms. Copeland's responsibility. Ms. Copeland began lodging at The Nobleman on this date."
41. "On July 22, 2025, Ms. Copeland was assured that all required steps had been completed prior to remediation, and that Servpro would be completing the remediation per the protocol and was advised that the work would start on July 24, 2025."
42. "ServPro intended to start its work on July 24, 2025 (using the initial BioTex, July 18, 2025 protocol), but could not start that day due to ServPro needing to communicate certain matters with TDLR (the Texas Department of Licensing Regulation). Thereafter, on July 31, 2025, at Ms. Copeland's request, BioTex provided a "revised" remediation protocol. Further, no work could be done yet because Ms. Copeland had not moved her personal property out of the guest bedroom in the apartment, and had not provided permission for movement of the property."
43. "In preparation for the remediation/repair of Ms. Copeland's apartment, and as a measure of courtesy, between July 30, 2025 and August 1, 2025, Ms. Copeland was asked to move her belongings and/or asked for permission to move her belongings so that the work could begin. Ms. Copeland failed/refused to move the items or to provide her permission for staff to move the property within the apartment. Rather than cooperate with this request (as her lease required), she responded in a discourteous manner. See **Exhibit "A-11".**"
44. "Ms. Copeland did not pay August rent and therefore on August 6, 2025, Ms. Copeland was served a Notice to Vacate for Non-Payment of Rent. See **Exhibit "A-12"** (though no eviction was ever pursued in response to this Notice to Vacate)."

45. “BioTex provided another revised mold protocol, dated August 4, 2025, and requested that ServPro refrain from starting its work, at that time. Based on this second revised protocol, ServPro indicated it would need to revise its estimate for its services and on August 5, 2025, I requested ServPro to move forward with providing the revised estimate. Ms. Copeland had still not provided any indication that she would move the property that had been requested or permit Weinstein Management to do so; however, I was attempting to continue to move the project forward. I approved the updated invoice on August 6, 2025 and requested information from ServPro as to when it could get started. ServPro required a seven-day notice period to schedule the work and I was aware that the work could not start until the property was moved (out of the way, inside of the apartment). ServPro provided a schedule for the work, anticipating it could begin on or about Thursday, August 14, 2025. Thereafter, ServPro provided a schedule for its anticipated work, which had the work starting on Thursday, August 14, 2025, by beginning containment set up. As such, still with no response from Ms. Copeland as to movement of her property, Weinstein Management’s maintenance staff moved the property so that ServPro could access the guest bedroom. Though Weinstein Management’s staff ultimately moved the items, as necessary, Ms. Copeland’s failure to respond to this request, ultimately caused additional delay to the remediation/repair work.”
46. “ServPro then began preparing for its work by setting up the containment and completing this, along with air scrubber installation, on August 14 and 15, 2025. ServPro’s equipment and information identifying the company, was visible in the apartment and it placed the required signage on the door.”
47. “On August 17, 2025, upon discovering that certain personal property items had been moved from the guest bedroom to other rooms of the apartment, Ms. Copeland called the Fort Worth Police Department to make a complaint about “criminal activity”. I have reviewed the Fort Worth Police Department report and note that the police determined that no criminal activity had occurred.”
48. “On August 18, 2025, Ms. Copeland sent another DTPA demand letter to Weinstein Management, and also to ServPro, and asserted, among other things, that entry into her apartment was a trespass and an unauthorized entry. I have reviewed that letter. See **Exhibit A-13**.”
49. “Servpro contacted the Texas Department of Licensing and Regulation, and secured notice with same that remediation would begin Ms. Copeland’s apartment on August 21, 2025, and was expected to be completed by September 2, 2025, at the earliest.”
50. “On August 20, 2025, Weinstein’s counsel, Glynis L. Zavarelli, sent correspondence to Ms. Copeland and I have reviewed that correspondence. Ms. Copeland was advised in that correspondence that the remediation work would be paused in order to provide an opportunity for the apartment to be inspected by Ms. Copeland (and any expert she would like to include) but that the work would resume on August 21, 2025, with an expected completion date of September 2, 2025.”

51. “On August 21, 2025, I reviewed correspondence directed to counsel for Weinstein from John Douglas, counsel for Ms. Copeland, which was dated August 20, 2025 and which among other things, indicated he wanted an assurance that no further entry would be made the apartment, indicating a small claims court lawsuit was being filed, and indicating that without written assurance that no further entry would be made, a temporary restraining order would be filed.”
52. “On August 21, 2025, Ms. Copeland filed a “retaliation” lawsuit in Justice of the Peace Court No. 4, asserting that various lawful actions of Weinstein Entities constituted “retaliation” based on her report of “mold” 53 days prior.”
53. “On August 21, 2025, Ms. Copeland emailed ServPro, demanding that no work be performed on her apartment, and asked if ServPro intended to proceed under the August 4, 2025 protocol (stating that the condition had changed) and requesting various types of information from ServPro and stated that Weinstein was using ServPro to “cover for other activities that aren’t actually a full, licensed remediation” and accusing Weinstein of “taking short cuts” which “expose others to liability” while “keeping themselves insulated” and referring to ServPro as a “scapegoat”. This email again refers to spoliation, and demanding ServPro’s position by noon the following day. I have reviewed that email.”
54. “On August 22, 2025, I received notice from ServPro that it would be terminating all work in Ms. Copeland’s apartment unit.”
55. “On August 22, 2025, Glynis Zavarelli received correspondence from ServPro’s counsel that ServPro was immediately terminating its work. I have reviewed this correspondence, and understood that ServPro would no longer be working on the apartment.”
56. “On August 25, 2025, Weinstein contacted BioTex to perform a new assessment given the length of time which had passed since the original assessment.”
57. “On or about August 25, 2025, I received email correspondence from BioTex’s attorney, stating that Ms. Copeland had sent a legal demand and that she did not consent to BioTex involvement or inspecting her unit (and this again, was the company she had used to obtain the initial June 18, 2025 assessment and who had prepared the first three mold remediation protocols). As such, BioTex did not perform the assessment it had scheduled for August 27, 2025.”
58. “On August 25, 2025, ServPro requested access to the apartment to remove equipment from/around the containment area it had already put in place.”
59. “On August 26, 2026, Glynis Zavarelli sent correspondence to Ms. Copeland. I have read this correspondence, and in part it suggests a process by which an agreed mold assessment company could be selected and scheduled to complete an updated

assessment. Per this plan, Weinstein Management and Ms. Copeland were both asked to provide the names of two mold assessment companies by August 28, 2025 and from there, discussions could take place by which an agreement could perhaps be reached.”

60. “On August 28, 2025, Weinstein (though its counsel, Ms. Zavarelli) provided the names of two mold assessment companies to Ms. Copeland. I have not seen that Ms. Copeland ever responded, to include ever providing names for other companies.”
61. “Weinstein Management decided to use Dallas Mold Consultants (one of the two names provided by Weinstein Management), for the updated mold assessment and arranged for Dallas Mold Consultants to be at the apartment on September 4, 2025 (which was the earliest date available).”
62. “On or about September 4, 2025, ServPro removed its equipment. ServPro left in place the containment area which had already been secured. Containment included sheeting enclosing the guest bedroom and sealing of the HVAC unit vents. This work by ServPro – placement of equipment and the containment area sheeting, sealing of the vent, and laying of plastic sheeting to protect flooring – was the extent of remediation preparation work undertaken prior to ServPro’s termination of services.”
63. “On or about September 4, 2025, after ServPro removed its equipment, Dallas Mold Consultants entered the apartment to perform an updated mold assessment.”
64. “On or about September 8, 2025, Dallas Mold Consultants provided a mold protocol for the remediation of the apartment and the cleaning of the contents therein, based on its September 4, 2025, mold assessment.”
65. “On or about September 8, 2025, Weinstein provided the mold assessment and protocol prepared by Dallas Mold Consultants to a new mold remediation company, Dedicated Mold Specialist, to perform remediation on the apartment unit. Dedicated Mold Specialist then applied for and received permission from Texas Department of Licensing and Regulation to perform mold remediation in apartment unit 2145.”
66. “Ms. Copeland stayed at The Nobleman, paid for by Weinstein, from July 14, 2025, until August 22, 2025 (at which point she was criminally trespassed from The Nobleman). From August 22, 2025 until September 10, 2025, Ms. Copeland stayed at The Bowie House, paid for by Weinstein. On September 11, 2025, Ms. Copeland was criminally trespassed from The Bowie House. On September 11 and 12, 2025, Weinstein made reservations on behalf of Ms. Copeland at a Holiday Inn in Fort Worth, which Ms. Copeland decided not to use.”
67. “At some point, on or about September 11 or 12, 2025, Ms. Copeland voluntarily returned to her apartment and ultimately appears to have stayed there until September 19, 2025.”

68. “On September 12, 2025, I sent an email to Ms. Copeland, after Ms. Copeland voluntarily re-entered her apartment, after mold containment had been established by ServPro, stating:

“The containment areas within the 2145 unit must be left in place and the HVAC must remain in the off position. We will need to enter the unit Monday September 15th at 10am to perform a landlord inspection to verify that the containment areas are intact and the HVAC has remained off.”

The September 12, 2025 email is attached as **Exhibit “A-14”**.”

69. “On September 12, 2025, the acting manager, Andrea Meza attempted to enter the apartment, not knowing if Ms. Copeland had actually returned to the apartment by that date, but Ms. Meza could not gain access. On September 15 and 16, 2025, Weinstein Management staff continued to attempt to access the apartment to be able to inspect and ensure the containment materials had not been disturbed and the HVAC had not been turned on, but were unable to gain access to the apartment.”
70. “Dedicated Mold Specialist indicated it could start its work on September 22, 2025.”
71. “On September 15, 2025, Glynis L. Zavarelli, sent correspondence to Ms. Copeland, which I have reviewed. Per this correspondence, Ms. Copeland was advised that remediation work was scheduled to begin on September 22, 2025 and that she could not be in the apartment while the work was on going.”
72. “On September 15, 2025, Weinstein staff members attempted to enter Apartment 2145 on two occasions, found that the deadbolt had been bolted inside. Therefore, the staff was not able to enter the apartment to inspect the apartment so that they could confirm that the containment area was intact and that the HVAC system was turned off.”
73. “On September 16, 2025, Weinstein Management staff members knocked on the door of Apartment 2145 to determine if Ms. Copeland was still in the apartment and/or to determine if an inspection of the apartment as to the containment area and HVAC unit could take place There was no response to the knock, and when staff attempted to enter but were unable to because the deadbolt was still engaged.”
74. “Also on September 16, 2025, I received an email from John Douglas, written as a ‘cease and desist’ letter, indicating that entry into the apartment would be considered a trespass, retaliation and spoliation and stating that a federal lawsuit would be filed, in which a TRO would be requested. See **Exhibit “A-15”**.”
75. “On September 19, 2025, Weinstein Entities filed for their Original Petition, Application for Temporary Restraining Order, and Request for Temporary and Permanent Injunctions in Tarrant County District Court, Cause No. 141 -370402-25. The purpose of the Temporary Restraining Order/Injunction was to permit Weinstein

vendors to enter the apartment for purposes of repair and/or remediation, and to prevent Ms. Copeland from interfering with that process.”

76. “On September 19/20, 2025, Ms. Copeland left the apartment, and Weinstein Management agreed to pay for Ms. Copeland’s lodging at another hotel (The Worthington).”
77. “On September 22, 2025, Weinstein personnel entered the apartment unit 2145, escorting personnel from vendor, Dedicated Mold Specialist. Upon entering the apartment, water intrusion was found to be coming from the HVAC unit. The photographs attached as **Exhibit “A-16”**, were taken by a Weinstein Management employee, and are a fair and accurate depiction of Apartment 2145 when it was entered on September 22, 2025. These photographs were sent to me by management staff at The Bowery.”
78. “The water intrusion was the result of the HVAC system having been turned on by someone within the unit at some point after Dallas Mold Consultant’s September 4, 2025 inspection and assessment of the unit. The HVAC unit, after being turned on and being unable to circulate air due to the containment area, then “froze”. After it “froze”, it then “defrosted”, which caused water intrusion into the areas of the apartment which was previously not affected by water intrusion. It was unknown for how long the HVAC unit in the closet had been leaking.”
79. “No one from Weinstein Management entered apartment 2145 from September 11th through September 21, 2025, and no one from Weinstein Management entered the apartment until September 22, 2025.” See **Exhibit “A-17”**, the key log audit of Ms. Copeland’s apartment.”
80. “Ms. Copeland did not report to any staff of The Bowery (or anyone else associated with Weinstein Management) that she had turned on the HVAC unit when she went back to the apartment on September 11 or 12, 2025 and/or at any time while she was there through September 19, 2025, she did not report that the HVAC Unit was not operating correctly and/or that it was leaking, and did not report to The Bowery that any water intrusion had occurred in the apartment unit.”
81. “As a result of the water intrusion, there was visible water on the floor of the apartment, and there was moisture-impacted items observed in the kitchen, living room, hallway, and guest bathroom. As related to the apartment structure, new and extensive damage was found to the flooring, drywall, HVAC closet, and tub/shower in the hallway bathroom. Attached as **Exhibit “A-16”** are photographs showing the water intrusion.”
82. “Dedicated Mold Specialist began water mitigation efforts, which included operation of air movers, humidifiers, and removal of water-damaged flooring and drywall. As a result of the new and extensive damage, the estimate of damages to apartment unit 2145 has increased, as noted below.”

83. “On September 26, 2025. Ms. Copeland returned to her apartment. Dedicated Mold was there on that date to begin their remediation work; however, due to the interactions with Ms. Copeland, they stopped their work efforts for the day. Ms. Copeland was upset (as she indicated in an email she sent to me on September 27, 2025) that furniture and other personal property items (along with the washer, dryer, and refrigerator, belonging to Weinstein) had been moved out of the apartment by another vendor, Reign Restorations (hereinafter referred to as “Reign”) so that certain areas could be accessed. This was coordinated by Dedicated Mold Specialist. The items that were moved by Reign were placed in its facility and have been stored there since (at no cost to Ms. Copeland; Weinstein Management has paid all of the costs associated with this storage). Ms. Copeland did not give authority to clean the items and therefore, no cleaning was performed. The items can be returned to Ms. Copeland, and Weinstein Management has offered to relocate the items (at Weinstein Management expense) at Ms. Copeland’s direction as to where she would like the items, but no request has been made. The items remain stored at Reign, at Weinstein’s expense.”
84. “On October 2, 2025, a hearing on Weinstein Entities’ Temporary Restraining Order was held, and the restraining order was granted. This Temporary Restraining Order made clear that Weinstein could proceed with its remediation of the apartment. The Temporary Restraining Order is attached as **Exhibit “A-18”**.”
85. “On October 4, 2025, Weinstein staff, per the oral Order of the Court in the hearing on the Temporary Restraining Order, entered Ms. Copeland’s apartment. The remaining personal property items were packed in boxes. Ms. Copeland was contacted to request how she wanted her medical/sentimental items and jewelry to be delivered to her, and how she wanted the remaining items to be handled. Ms. Copeland failed to answer, and has failed to provide a place and/or time for these items to be delivered to her – ever since October 4, 2025. These items are being stored in a fourth-floor storage room at The Bowery, at no expense to Ms. Copeland.”
86. “On October 6, 2025, Dedicated Mold Specialist returned to the apartment to continue its work.”
87. “On October 16, 2025, Weinstein Entities were granted a Temporary Injunction, extending the terms of the Temporary Injunction until trial. A copy of the Temporary Injunction is attached as **Exhibit “A-19”**.”
88. “On October 17, 2025, Dallas Mold Consultants inspected the apartment and on inspection, noted the area by the front door- which had not been included on its initial assessment (and notably – BioTex had not initially included this area for remediation on its protocol). Dallas Mold Consultants took samples from that area, and did not find anything significant there.”
89. “I have reviewed an email sent on October 23, 2025 from Dana Boor (from Dallas Mold Consultants) to Ms. Copeland indicating that Ms. Boor found no unusual fungal ecology in the area by the front door, and explaining that the apartment contents had to

be moved out so that the remediation company had room to perform a full environmental cleaning of the apartment.”

90. “On October 26, 2025, Ms. Copeland’s lease term expired. However, she failed to remove her items from the balcony, and from two storage rooms on the premises where her personal property is being stored, and additionally failed to return the access devices for the apartment and the apartment complex. Ms. Copeland continued to occupy these portions of the property without the consent and against the will of Weinstein Entities.”
91. “On November 5, 2025, Weinstein Management sent Ms. Copeland a Notice to Vacate. The Notice to Vacate is attached as **Exhibit “A-20”**.”
92. “On December 12, 2025, WMCi Dallas X, LLC filed a forcible entry and detainer suit against Ms. Copeland, due to Ms. Copeland’s refusal to vacate the areas where her items are being stored – the balcony of her apartment, and two storage rooms, and refusal to return the access devices. Ultimately, judgement was issued for WMCi Dallas X, LLC, and a writ of possession was executed against Ms. Copeland as to the apartment, and any contents within. Ms. Copeland has appealed this Court action.”
93. “Remediation has been completed and a final clearance test of the apartment has been conducted. The clearance test confirmed there is no actionable mold activity in the apartment. The repair of the apartment (installation of flooring and drywall, as well as painting) has also been completed.” The Certificate of Mold Damage Remediation, issued to Weinstein Properties – The Bowery at Southside, is attached as **Exhibit “21”**.”
94. “In interacting with Weinstein staff, Ms. Copeland failed to communicate and conduct herself in courteous and reasonable manner at all times when interacting with Weinstein staff, representatives, and/or Weinstein vendors.”
95. “Ms. Copeland’s conduct disturbed and/or threatened the rights, comfort, health, safety, and/or convenience of others, including Weinstein Management staff, agents, and/or representatives.”
96. “Ms. Copeland’s conduct disrupted the business operations of Weinstein Management.”
97. “Ms. Copeland’s conduct prevented Weinstein Management’s staff, vendors, repair or service persons, contractors, and/or representatives from peacefully entering the apartment at reasonable times for reasonable business purposes.”
98. “Ms. Copeland delayed providing Weinstein Management with the June 18, 2025 mold assessment prepared by BioTex (not providing it until June 27, 2025). Ms. Copeland interfered with, interrupted, delayed, and/or otherwise stymied, the remediation and repair of her apartment unit, from as early as July 7, 2025, which is the first date

Weinstein Management offered to house Ms. Copeland outside of the apartment unit. Thereafter, Ms. Copeland disregarded requests intended to facilitate the remediation and/or repair process, to include as related to movement of her personal property items, being available for inspections and/or permitting necessary inspections. Ms. Copeland continued to threaten litigation in response to Weinstein Management's efforts to move forward with repair and remediation (noting that every vendor utilized requires advance notice, scheduling in view of other commitments and must communicate all of this with TDLR, after which TDLR places a time line on the work being performed – and if not performed within that time parameter, aspects of the process, must be repeated and further noting that the ability to move forward was additionally impacted by the multiple changes to the mold protocol prepared by BioTex). Ms. Copeland returned to the apartment to “live” for 8 days- during which she appears to have disregarded directives as to the HVAC (and refused management's entry to the apartment – and prevented the entry by deadbolting her door), and this resulted in a water intrusion event, which further delayed remediation (and resulted in additional work, and resources – inclusive of monetary- which were necessarily expended to repair the damage).”

99. “Weinstein entered into oral and/or written contracts with BioTex and ServPro, for professional services for the inspection, assessment, and/or remediation of mold. Weinstein paid money to BioTex and to ServPro in consideration for their contractual obligations. Ms. Copeland sent correspondence to these vendors (BioTex and ServPro) which in addition to threatening legal action against each, also served to disparage Weinstein (as to ServPro) and ultimately, those vendors ceased their work with Weinstein.”
100. “In refusing to allow Weinstein Management's vendors and staff reasonable access to her apartment, Ms. Copeland engaged in interference with Weinstein Management's contractual arrangements and/or business operations, to conduct work as contracted for by Weinstein”.
101. “Because of Ms. Copeland's conduct, Weinstein Management has been forced to incur additional money, exert additional resources, and wasted valuable time in attempting to repair, remediate, and/or safeguard their property, to include preventing Weinstein from making necessary and required repairs, including remediation of mold within the apartment.”
102. “Weinstein Management worked diligently to provide for remediation and repair of the apartment at issue and continued to attempt to move the work forward, regardless of the disruption caused by Ms. Copeland, including ultimately seeking court intervention to be able to move forward in a significant manner.”
103. “All of the behavior/conduct by Ms. Copeland, described herein, and as related to her actions (or refusal to act) in delaying notification (noting that the June 27, 2025 DTPA demand was the first notice (to include written notice) she provided of the areas involving the HVAC closet and surrounding areas), causing delay, refusing her

cooperation, interruption to and/or stopping, at times, the remediation efforts- was in violation of her lease and had a causative effect on the mold condition generally and on being able to effectively remediate and repair the apartment, in a more expedited fashion.”

104. “From July 14, 2025 to August 22, 2025, Weinstein Management secured and paid for hotel lodging for Ms. Copeland at The Nobleman Hotel in Fort Worth, Texas. The Nobleman Hotel is a four-star pet-friendly hotel, and was a hotel Ms. Copeland requested for lodging.”
105. “From August 22, 2025 until September 10, 2025, Weinstein Management secured and paid for hotel lodging for Ms. Copeland at The Bowie House, in Fort Worth, Texas, and was a hotel Ms. Copeland requested for lodging.”
106. “From September 10, 2025 to September 15, 2025, Weinstein Management secured and paid for hotel lodging for Ms. Copeland at The Holiday Inn Express Suites – Fossil Creek, although portions of the payments made were returned and/or cancelled when Ms. Copeland failed to check-in.”
107. “From September 16, 2025 to September 17, 2025, Weinstein Management secured and paid for hotel lodging for Ms. Copeland at the Holiday Inn Express Suites Fort Worth – Downtown, which she failed to utilize (never checking in).”
108. “From September 20, 2025 to October 26, 2025, Weinstein Management secured and paid for hotel lodging for Ms. Copeland at The Worthington Hotel in Fort Worth, Texas, which was a hotel Ms. Copeland identified and requested for lodging.”
109. “From July 14, 2025, to October 26, 2025, Weinstein Management has secured and paid for pet boarding for Ms. Copeland’s two dogs.”
110. “Weinstein Management have incurred actual harm and/or damages, to include: 1) paying additional money they would not otherwise have had to pay, including paying costs/expenses to duplicate vendors, which Weinstein Management were forced to hire after Ms. Copeland’s conduct caused previous vendors to stop/terminate work, 2) significant interruption to Weinstein Management’s business operations, and 3) causing additional damage to the interior of the apartment. Further, Weinstein Management has incurred significant expenses for Ms. Copeland’s hotel lodging and pet boarding- with Ms. Copeland failing to pay (and/or anyone on her behalf paying) any rent from August 2025 forward.”
111. “Significantly – while staying in luxury hotels (paid for by Weinstein Management) and while avoiding pet ownership responsibilities (by keeping her dogs in boarding, also paid for by Weinstein Management), from July 15, 2025 to October 26, 2025, Ms. Copeland continued to freely access the apartment unit, as she had (and still has) key fob access. The Lock Audit Report demonstrates that Ms. Copeland continued to access the apartment complex during this time period, that she did not “vacate” or

“abandon” the apartment, and that neither Weinstein entity denied her access to the apartment:

- ✓ July 15, 2025
- ✓ July 18, 2025
- ✓ July 19, 2025
- ✓ July 20, 2025
- ✓ July 24, 2025
- ✓ July 29, 2025
- ✓ August 4, 2025
- ✓ August 5, 2025
- ✓ August 6, 2025
- ✓ August 11, 2025
- ✓ August 17, 2025
- ✓ August 19, 2025
- ✓ August 20, 2025
- ✓ August 25, 2025
- ✓ September 3, 2025
- ✓ September 11, 2025
- ✓ September 12, 2025
- ✓ September 15, 2025
- ✓ September 16, 2025
- ✓ September 17, 2025
- ✓ September 18, 2025
- ✓ September 19, 2025
- ✓ September 20, 2025
- ✓ September 21, 2025
- ✓ September 26, 2025
- ✓ September 29, 2025
- ✓ October 7, 2025 **(in violation of the District Court’s Temporary Restraining Order)**
- ✓ October 21, 2025 **(in violation of the District Court’s Temporary Injunction). See Exhibit “A-17”: Lock Audit Report. ”**

112. “Weinstein Management as the manager and operator of The Bowery, has incurred the following costs and/or has been provided the following estimates of expenses it will pay once invoiced, for expenses relating to the lodging of Ms. Copeland and her pets, for mold assessment consultations, for remediation of Ms. Copeland’s Apartment and storage of her items at Reign. This is a true and correct chart of expenses incurred and/or paid by Weinstein relating to Ms. Copeland and/or the incident(s) made the basis of this matter. I have personal knowledge of each expense represented in this chart and aver that the following is the most current information Weinstein Management has as to the amounts of money Weinstein Management has spent in attempting to mitigate damages in this matter, as to costs for lodging, pet boarding, and remediation. These costs reflect the amount to “build back” the unit, that is, to repair the unit inclusive of

purchasing new flooring, drywall, painting, and all repairs necessary to make the unit habitable after the September 11/12-19, 2025 water intrusion event:

Vendor	Dates	Paid or Invoiced	Type of Service	Cost
The Nobleman	July 14, 2025 – August 22, 2025	Cost Paid	Lodging	\$ 9,071.46
Doggie Digs	July 14, 2025 – October 1, 2025	Cost Paid	Pet Boarding	\$ 10,800.00
The Bowie House	August 22, 2025 – September 10, 2025	Cost Paid	Lodging	\$ 8,986.38
Holiday Inn Express – Fossil Creek	September 10, 2025 – September 12, 2025	Cost Paid	Lodging	\$ 342.34
The Worthington	September 20, 2025 – October 26, 2025	Cost Paid	Lodging	\$ 19,917.09
BioTex Amended Protocols	July 13, 2025	Cost Paid	Mold Assessment Protocols	\$ 1,195.00
Dallas Mold Consultants	September 4, 2025	Cost Paid	Mold Assessment and Clearance Testing	\$ 2,895.69
ServPro Containment Set up	August 14 – August 17, 2025	Cost Paid	Containment Placement	\$ 3,641.85
Dedicated Mold – Initial Scope of Work	September 9, 2025	Cost Paid	Remediation - Apartment	\$ 14,575.00
Dedicated Mold – Amended Scope of Work, due to water intrusion	September 24, 2025	Cost Paid	Repair of Apartment after water intrusion event	\$ 9,470.00
Dedicated Mold – Put back	December 17, 2025	Cost Paid	Put back of remediated areas	\$ 21,120.00
Reign Restoration	September 24 - present	Cost Paid	Contents packing and storage	\$ 17,389.02
TOTAL				\$ 119,403.83

“Further Declarant Sayeth Naught.”

Pamela Quinn
AFFIANT PAMELA QUINN

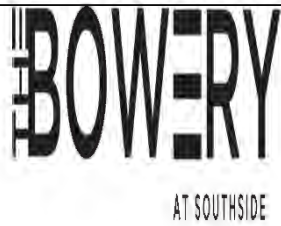
SUBSCRIBED AND SWORN TO BEFORE ME, by the said affiant, on this the 8th day of May, 2026.



Takuya Holcomb
NOTARY PUBLIC, STATE OF VIRGINIA

My Commission Expires: 02/29/28

EXHIBIT “A-1”



Application For "The Bowery at Southside"

220 E Broadway Ave,
Fort Worth, TX ,
76104
Phone: (833) 887-1948

Apartment Information

Apartment:	2145	Move in Date:	10/21/2023
Floor Plan:	Broadway	Lease Term :	14
Bed:	2	Deposit:	\$0.00
Bath:	2.00	Rent:	\$2,214.00
Area:	1228		

Applicant Information

Name:	Kathryn M Copeland	Date Of Birth:	*****
Preferred Name:	Katie	Do you have a Social Security Number?:	Yes
		SSN (US Only):	XXX-XX-9117
Email:	quinnandpoppy@gmail.com	Drivers License/ID #:	*****
Phone:	(817) 789-8498	State Issuing ID:	
:		License Country:	US
Address:	601 N. Hampton Street , 1101, Fort Worth, TX. 76102		

When did you move in?: 6/20/2022

Monthly Rent/Mortgage: \$2,580.00

Apartment Community:

: Yes

Employment Information

Status: : US Job Title: Student and Tale
Employment Student Employed Since: 1/1/2018
Employer: Quintessential Entertainment, Inc. Monthly Income: \$5,000.00
:
Address: 4504 Meandering Way :
Colleyville.TX, :
76034
Employers Phone:

Previous Employment Information

Employer: Job Title:
Supervisors Previous Employer Start
Name: Date:
Address: Previous Employer End
Date:
Monthly Income: \$0.00
Additional Income:
Employers Phone: Additional Income
Source:

Emergency Information

Name: Donald Standley

Phone: (405) 808-7695

Address: 9513 Chert St

Denton,TX,
76207**Pets Information**

Pet Type	Weight(lbs)	Age	Color	Name	Breed	Gender	Spayed/Neutered	Service Animal
Dog	15.00	0	Red and White	Ruby	Cavalier King Charles		Yes	No
Dog	13.00	0	Black and White	Moon	Cavalier Kind Charles		Yes	No

Vehicle Information

Make	Model	Year	Color	License Plate	State
Lexus	CT200h	2013	White	HCL	TX

Locator Service Info

Did you work with an apartment locator service? NO

If so, please provide their name so we can thank them.

Terms Accepted

Terms	Date Time	IP
Application fee disclaimer- I accept that Application fees are non-refundable, even if the application is denied, except to the extent otherwise required by applicable law.	Oct 13 2023 9:37PM	10.246.3.246
Legal Terms- By submitting this application, I verify that the statements provided in this application are true and correct and I agree to be screened after payment of application fees.	Oct 13 2023 8:43PM	10.246.3.202
Payment Terms- I have read and accept Terms and Conditions.	Oct 13 2023 9:37PM	10.246.3.246
Registration Terms-	Oct 13 2023 8:35PM	10.246.3.248

I have read and accept the Terms and Conditions

Screening Terms-

I have read the Renter Screening section of the Terms and Conditions, and I authorize the use of the information and contacts provided in this application to complete a credit, reference, and/or background check.

Oct 13 2023 8:43PM

10.246.3.202

Signature in Application Information-

By signing this application, I agree that the information provided in this application is true and correct.

Oct 13 2023 8:43PM

10.246.3.202

Events Completed

Event	Date Time	IP
Addendum Signing Completed	Oct 13 2023 8:36PM	10.246.3.248
Application Information Completed	Oct 13 2023 8:43PM	10.246.3.202
Payment Completed	Oct 13 2023 9:37PM	10.246.3.246

Name	Signature	Date Time	IP
Kathryn Copeland		Oct 13 2023 8:43PM	162.235.63.203

Activity Log

Activity	Date Time	IP
Registration	Oct 13 2023 8:35PM	10.246.3.248
Login	Oct 13 2023 9:33PM	10.246.3.246
Login	Oct 17 2023 4:34PM	10.246.3.244
Logout	Oct 17 2023 5:22PM	10.246.3.243

Application Details For Other Occupant (Other): Quinn An Copeland

Applicant Information

Name: Quinn An Copeland

Date Of Birth: *****

Preferred Name:

Do you have a Social Yes

Security Number?:

SSN (US Only):

Email:

Drivers License/ID #:

Phone:

State Issuing ID:

:

License Country: US

Address:

When did you move in?:

Monthly Rent/Mortgage: \$0.00

Apartment Community:

:

Employment Information

:

Job Title:

Employment

Employed Since:

Status:

Employer:

Monthly Income: \$0.00

:

Address:

:

:

Employers Phone:

Previous Employment Information

Employer:

Job Title:

Supervisors

Previous Employer Start

Name:

Date:

Address:

Previous Employer End

Date:

Monthly Income: \$0.00

Employers Phone:

Additional Income:

Additional Income

Source:

Application Details For Other Occupant (Other): Penelope Lu Copeland

Applicant Information

Name: Penelope Lu Copeland

Date Of Birth: *****

Preferred Name:

Do you have a Social Yes

Security Number?:

SSN (US Only):

Email:

Drivers License/ID #:

Phone:

State Issuing ID:

:

License Country: US

Address:

When did you move in?:

Monthly Rent/Mortgage: \$0.00

Apartment Community:

:

Employment Information

:

Job Title:

Employment

Employed Since:

Status:

Employer:

Monthly Income: \$0.00

:

Address:

:

:

Employers Phone:

Previous Employment Information

Employer:

Job Title:

Supervisors

Previous Employer Start

Name:

Date:

Address:

Previous Employer End

Date:

Monthly Income: \$0.00

Employers Phone:

Additional Income:

Additional Income

Source:

EXHIBIT “A-2”

FLOOD DISCLOSURE NOTICE

In accordance with Texas law, we are providing the following flood disclosure:

- We ☐ are or ☒ are not aware that the unit you are renting is located in a 100-year floodplain. If neither box is checked, you should assume the unit is in a 100-year floodplain. Even if the unit is not in a 100-year floodplain, the unit may still be susceptible to flooding. The Federal Emergency Management Agency (FEMA) maintains a flood map on its Internet website that is searchable by address, at no cost, to determine if a unit is located in a flood hazard area. Most renter's insurance policies do not cover damages or loss incurred in a flood. You should seek insurance coverage that would cover losses caused by a flood.
- We ☐ are or ☒ are not aware that the unit you are renting has flooded (per the statutory definition below) at least once within the last five years.

As defined in Texas Property Code 92.0135(a)(2), "flooding" means "a general or temporary condition of a partial or complete inundation of a dwelling caused by: (A) the overflow of inland or tidal waters; (B) the unusual and rapid accumulation of runoff or surface waters from any established water source such as a river, stream, or drainage ditch; or (C) excessive rainfall."

Signatures of All Residents

Signature of Owner or Owner's Representative

Kathryn

Kodi Walker

12/07/2024

Date

**Apartment Lease Contract**

This is a binding contract. Read carefully before signing.

This Lease Contract ("Lease") is between you, the resident(s) as listed below and us. The terms "you" and "your" refer to all residents. The terms "we," "us," and "our" refer to the owner listed below.

PARTIESResidents Kathryn M CopelandOwner WMCI Dallas, X LLC dba The Bowery
at SouthsideOccupants Quinn Copeland, Penelope
Copeland**LEASE DETAILS**

A. Apartment (Par. 2) Street Address: <u>405 Crawford St Apt# 2145</u> Apartment No. <u>2145</u> City: <u>Fort Worth</u> State: <u>TX</u> Zip: <u>76104</u>		
B. Initial Lease Term. Begins: <u>12/23/2024</u> Ends at 11:59 p.m. on: <u>05/25/2025</u>		
C. Monthly Base Rent (Par. 3) \$ <u>2442.00</u>	E. Security Deposit (Par. 5) \$ <u>200.00</u> <i>Note that this amount does not include any Animal Deposit, which would be reflected in an Animal Addendum.</i>	F. Notice of Termination or Intent to Move Out (Par. 4) A minimum of <u>60</u> days' written notice of termination or intent to move out required at end of initial Lease term or during renewal period. <i>If the number of days isn't filled in, notice of at least 30 days is required.</i>
D. Prorated Rent \$ <u>715.65</u> ☒ due for the remainder of 1st month or ☐ for 2nd month		
G. Late Fees (Par. 3.3) Initial Late Fee ☒ <u>10</u> % of one month's monthly base rent or ☐ \$ _____ Daily Late Fee ☐ _____ % of one month's monthly base rent for _____ days or ☐ \$ _____ for _____ days Due if rent unpaid by 11:59 p.m. on the <u>5th</u> (3rd or greater) day of the month		
H. Returned Check or Rejected Payment Fee (Par. 3.4) \$ <u>75.00</u>	J. Early Termination Fee Option (Par. 7.2) \$ _____ Notice of _____ days is required. <i>You are not eligible for early termination if you are in default.</i> Fee must be paid no later than <u>3</u> days after you give us notice <i>If any values or number of days are blank or "0," then this section does not apply.</i>	K. Violation Charges Animal Violation (Par. 12.2) Initial charge of \$ <u>100.00</u> per animal (not to exceed \$100 per animal) and A daily charge of \$ <u>10.00</u> per animal (not to exceed \$10 per day per animal) Insurance Violation (Master Lease Addendum or other separate addendum) \$ _____
I. Relletting Charge (Par. 7.1) A relletting charge of \$ <u>2095.25</u> (not to exceed 85% of the highest monthly Rent during the Lease term) may be charged in certain default situations		
L. Additional Rent - Monthly Recurring Fixed Charges. You will pay separately for these items as outlined below and/or in separate addenda, Special Provisions or an amendment to this Lease. Animal rent \$ _____ Cable/satellite \$ _____ Internet \$ _____ Package service \$ _____ Pest control \$ <u>3.00</u> Stormwater/drainage \$ _____ Trash service \$ <u>20.00</u> Washer/Dryer \$ _____ Other: _____ \$ _____ Other: _____ \$ _____ Other: _____ \$ _____ Other: _____ \$ _____		
M. Utilities and Other Variable Charges. You will pay separately for gas, water, wastewater, electricity, trash/recycling, utility billing fees and other items as outlined in separate addenda, Special Provisions or an amendment to this Lease. Utility Connection Charge or Transfer Fee: \$ <u>50.00</u> (not to exceed \$50) to be paid within 5 days of written notice (Par. 3.5)		
N. Other Charges and Requirements. You will pay separately for these items or comply with these requirements as outlined in a Master Lease Addendum, separate addenda or Special Provisions. Initial Access Device: \$ _____ Additional or Replacement Access Devices: \$ _____ Required Insurance Liability Limit (per occurrence): \$ <u>100000.00</u>		
Special Provisions. See Par. 32 or additional addenda attached. This Lease cannot be changed unless in writing and signed by you and us.		

1. **Definitions.** The following terms are commonly used in this Lease:
 - 1.1. **"Residents"** are those listed in "Residents" above who sign this Lease and are authorized to live in the apartment.
 - 1.2. **"Occupants"** are those listed in this Lease who are also authorized to live in the apartment, but who do not sign this Lease.
 - 1.3. **"Owner"** may be identified by an assumed name and is the owner only and not property managers or anyone else.
 - 1.4. **"Including"** in this Lease means "including but not limited to."
 - 1.5. **"Community Policies"** are the written apartment rules and policies, including property signage and instructions for care of our property and amenities, with which you, your occupants, and your guests must comply.
 - 1.6. **"Rent"** is monthly base rent plus additional monthly recurring fixed charges.
 - 1.7. **"Lease"** includes this document, any addenda and attachments, Community Policies and Special Provisions.
2. **Apartment.** You are leasing the apartment listed above for use as a private residence only.
 - 2.1. **Access.** In accordance with this Lease, you'll receive access information or devices for your apartment and mailbox, and other access devices including: **Gate Remote**
- 2.2. **Measurements.** Any dimensions and sizes provided to you relating to the apartment are only approximations or estimates; actual dimensions and sizes may vary.
- 2.3. **Representations.** You agree that designations or accreditations associated with the property are subject to change.
3. **Rent. You must pay your Rent on or before the 1st day of each month (due date) without demand. There are no exceptions regarding the payment of Rent, and you agree not paying Rent on or before the 1st of each month is a material breach of this Lease.**
 - 3.1. **Payments.** You will pay your Rent by any method, manner and place we specify in accordance with this Lease. **Cash is not acceptable without our prior written permission. You cannot withhold or offset Rent unless authorized by law.** We may, at our option, require at any time that you pay Rent and other sums due in one single payment by any method we specify.
 - 3.2. **Application of Payments.** Payment of each sum due is an independent covenant, which means payments are due regardless of our performance. When we receive money, other than water and wastewater payments subject to government regulation, we may apply it at our option and without notice first to any of your unpaid obligations, then to accrued rent. We may do so regardless of notations on checks or money orders and regardless of when the obligations arose. All sums other than Rent and late fees are due upon our demand. After the due date, we do not have to accept any payments.
 - 3.3. **Late Fees.** If we don't receive your monthly base rent in full when it's due, you must pay late fees as outlined in Lease Details.
 - 3.4. **Returned Payment Fee.** You'll pay the fee listed in Lease Details for each returned check or rejected electronic payment, plus initial and daily late fees if applicable, until we receive full payment in an acceptable method.
 - 3.5. **Utilities and Services.** You'll pay for all utilities and services, related deposits, and any charges or fees when they are due and as outlined in this Lease. Television channels that are provided may be changed during the Lease term if the change applies to all residents.
If your electricity is interrupted, you must use only battery-operated lighting (no flames). You must not allow any utilities (other than cable or Internet) to be cut off or switched for any reason—including disconnection for not paying your bills—until the Lease term or renewal period ends. If a utility is individually metered, it must be connected in your name and you must notify the provider of your move-out date. If you delay getting service turned on in your name by this Lease's start date or cause it to be transferred back into our name before you surrender or abandon the apartment, you'll be liable for the charge listed above (not to exceed \$50 per billing period), plus the actual or estimated cost of the utilities used while the utility should have been billed to you. If your apartment is individually metered and you change your retail electric provider, you must give us written notice. You must pay all applicable provider fees, including any fees to change service back into our name after you move out.
 - 3.6. **Lease Changes.** Lease changes are only allowed during the Lease term or renewal period if governed by Par. 10, specified in Special Provisions in Par. 32, or by a written addendum or amendment signed by you and us. At or after the end of the initial Lease term, Rent increases will become effective with at least 5 days plus the number of days' advance notice contained in Box F on page 1 in writing from us to you. Your new Lease, which may include increased Rent or Lease changes, will begin on the date stated in any advance notice we provide (without needing your signature) unless you give us written move-out notice under Par. 25, which applies only to the end of the current Lease term or renewal period.
4. **Automatic Lease Renewal and Notice of Termination.** This Lease will automatically renew month-to-month unless either party gives written notice of termination or intent to move out as required by Par. 25 and specified on page 1. **If the number of days isn't filed in, notice of at least 30 days is required.**
5. **Security Deposit.** The total security deposit for all residents is due on or before the date this Lease is signed. Any animal deposit will be designated in an animal addendum. Security deposits may not be applied to Rent without our prior written consent.
 - 5.1. **Refunds and Deductions. You must give us your advance notice of move out as provided by Par. 25 and forwarding address in writing to receive a written description and itemized list of charges or refund, in accordance with this Lease and as allowed by law, we may deduct from your security deposit any amounts due under this Lease. If you move out early or in response to a notice to vacate, you'll be liable for rekeying charges.** Upon receipt of your move-out date and forwarding address in writing, the security deposit will be returned (less lawful deductions) with an itemized accounting of any deductions, no later than 30 days after surrender or abandonment, unless laws provide otherwise. Any refund may be by one payment jointly payable to all residents and distributed to any one resident we choose, or distributed equally among all residents.
6. **Insurance. Our Insurance doesn't cover the loss of or damage to your personal property.** You will be required to have liability insurance as specified in this Lease unless otherwise prohibited by law. If you have insurance covering the apartment or your personal belongings at the time you or we suffer or allege a loss, you agree to require your insurance carrier to waive any insurance subrogation rights. Even if not required, we urge you to obtain your own insurance for losses due to theft, fire, flood, water, pipe leaks and similar occurrences. Most renter's insurance policies don't cover losses due to a flood.
7. **Reletting and Early Lease Termination.** This Lease may not be terminated early except as provided in this Lease.
 - 7.1. **Reletting Charge.** You'll be liable for a reletting charge as listed in Lease Details, (not to exceed 85% of the highest monthly Rent during the Lease term) if you: (A) fail to move in, or fail to give written move-out notice as required in Par. 25; (B) move out without paying Rent in full for the entire Lease term or renewal period; (C) move out at our demand because of your default; or (D) are judicially evicted. The reletting charge is not a termination, cancellation or buyout fee and does not release you from your obligations under this Lease, including liability for future or past-due Rent, charges for damages or other sums due.
The reletting charge is a liquidated amount covering only part of our damages—for our time, effort, and expense in finding and processing a replacement resident. These damages are uncertain and hard to ascertain—particularly those relating to inconvenience, paperwork, advertising, showing apartments, utilities for showing, checking prospects, overhead, marketing costs, and locator-service fees. You agree that the reletting charge is a reasonable estimate of our damages and that the charge is due whether or not our reletting attempts succeed.
 - 7.2. **Early Lease Termination Option Procedure.** In addition to your termination rights referred to in 7.3 or 8.1 below, if this provision applies under Lease Details, you may opt to terminate this Lease prior to the end of the Lease term **if all of the following occur:** (a) as outlined in Lease Details, you give us written notice of early termination, pay the Early Termination Option fee in full and specify the date by which you'll move out; (b) you are not in default at any time and do not hold over; and (c) you repay all rent concessions, credits or discounts you received during the Lease term. If you are in default, the Lease remedies apply.
 - 7.3. **Special Termination Rights. You may have the right under Texas law to terminate this Lease early in certain situations involving military deployment or transfer, family violence, certain sexual offenses, stalking or death of a sole resident.**
8. **Delay of Occupancy.** We are not responsible for any delay of your occupancy caused by construction, repairs, cleaning, or a previous resident's holding over. This Lease will remain in force subject to (1) abatement of Rent on a daily basis during delay, **and** (2) your right to terminate this Lease in writing as set forth below. Rent abatement and Lease termination do not apply if the delay is for cleaning or repairs that don't prevent you from moving into the apartment.
 - 8.1. **Termination.** If we give written notice to you of a delay in occupancy when or after this Lease begins, you may terminate this Lease within 3 days after you receive written notice. If we give you written notice before the date this Lease begins and the notice states that a construction or other delay is expected and that the apartment will be ready for you to occupy on a specific date, you may terminate this Lease within 7 days after receiving written notice.
After proper termination, you are entitled only to refund of any deposit(s) and any Rent you paid.

9. **Care of Unit and Damages.** You must promptly pay or reimburse us for loss, damage, consequential damages, government fines or charges, or cost of repairs or service in the apartment community because of a Lease violation; improper use, negligence, or other conduct by you, your invitees, your occupants, or your guests; or, as allowed by law, any other cause not due to our negligence or fault, except for damages by acts of God to the extent they couldn't be mitigated by your action or inaction.

Unless damage or wastewater stoppage is due to our negligence, we're not liable for—and you must pay for—repairs and replacements occurring during the Lease term or renewal period, including: (A) damage from wastewater stoppages caused by improper objects in lines exclusively serving your apartment; (B) damage to doors, windows, or screens; and (C) damage from windows or doors left open.

RESIDENT LIFE

10. **Community Policies.** *Community Policies become part of this Lease and must be followed.* We may make changes, including additions, to our written Community Policies, and those changes can become effective immediately if the Community Policies are distributed and applicable to all units in the apartment community and do not change the dollar amounts owed under this Lease.

- 10.1. **Photo/Video Release.** You give us permission to use any photograph, likeness, image or video taken of you while you are using property common areas or participating in any event sponsored by us.
- 10.2. **Disclosure of Information.** At our sole option, we may, but are not obligated to, share and use information related to this Lease for law-enforcement, governmental, or business purposes. At our request, you authorize any utility provider to give us information about pending or actual connections or disconnections of utility service to your apartment.
- 10.3. **Guests.** We may exclude from the apartment community any guests or others who, in our sole judgment, have been violating the law, violating this Lease or our Community Policies, or disturbing other residents, neighbors, visitors, or owner representatives. We may also exclude from any outside area or common area anyone who refuses to show photo identification or refuses to identify himself or herself as a resident, an authorized occupant, or a guest of a specific resident in the community.

Anyone not listed in this Lease cannot stay in the apartment for more than 7 days in one week without our prior written consent, and no more than twice that many days in any one month. If the previous space isn't filled in, 2 days total per week will be the limit.

- 10.4. **Notice of Convictions and Registration.** You must notify us within 15 days if you or any of your occupants: (A) are convicted of any felony, (B) are convicted of any misdemeanor involving a controlled substance, violence to another person, or destruction of property, or (C) register as a sex offender. Informing us of a criminal conviction or sex-offender registration doesn't waive any rights we may have against you.

- 10.5. **Odors, Noise and Construction.** You agree that odors and smells (including those related to cooking), everyday noises or sounds related to repair, renovation, improvement, or construction in or around the property are all a normal part of a multifamily living environment and that it is impractical for us to prevent them from penetrating your apartment.

11. **Conduct.** You agree to communicate and conduct yourself in a lawful, courteous and reasonable manner at all times when interacting with us, our representatives and other residents or occupants. Any acts of unlawful, discourteous or unreasonable communication or conduct by you, your occupants or guests is a breach of this Lease.

You must use customary diligence in maintaining the apartment, keeping it in a sanitary condition and not damaging or littering the common areas. Trash must be disposed of at least weekly. You will use your apartment and all other areas, including any balconies, with reasonable care. We may regulate the use of passageways, patios, balconies, porches, and activities in common areas.

- 11.1. **Prohibited Conduct.** You, your occupants, and your guests will not engage in certain prohibited conduct, including the following activities:

- (a) criminal conduct; manufacturing, delivering, or possessing a controlled substance or drug paraphernalia; engaging in or threatening violence; possessing a weapon prohibited by state law; discharging a firearm in the apartment community; or, except when allowed by law, displaying or possessing a gun, knife, or other weapon in the common area, or in a way that may alarm others;
- (b) behaving in a loud, obnoxious or dangerous manner;

- (c) disturbing or threatening the rights, comfort, health, safety, or convenience of others, including us, our agents, or our representatives;
- (d) disrupting our business operations;
- (e) storing anything in closets containing water heaters or gas appliances;
- (f) tampering with utilities or telecommunication equipment;
- (g) bringing hazardous materials into the apartment community;
- (h) using windows for entry or exit;
- (i) heating the apartment with gas-operated appliances;
- (j) making bad-faith or false allegations against us or our agents to others;
- (k) smoking of any kind, that is not in accordance with this Lease;
- (l) using glass containers in or near pools; or
- (m) conducting any kind of business (including child-care services) in your apartment or in the apartment community—except for any lawful business conducted "at home" by computer, mail, or telephone if customers, clients, patients, employees or other business associates do not come to your apartment for business purposes.

12. **Animals.** *No living creatures of any kind are allowed, even temporarily, anywhere in the apartment or apartment community unless we've given written permission.* If we allow an animal, you must sign a separate Animal Addendum and, except as set forth in the addendum, pay an animal deposit and applicable fees and additional monthly rent, as applicable. An animal deposit is considered a general security deposit. You represent that any requests, statements and representations you make, including those for an assistance or support animal, are true, accurate and made in good faith. Feeding stray, feral or wild animals is a breach of this Lease.

- 12.1. **Removal of Unauthorized Animal.** We may remove an unauthorized animal by (1) leaving, in a conspicuous place in the apartment, a written notice of our intent to remove the animal within 24 hours; and (2) following the procedures of Par. 14. We may: keep or kennel the animal; turn the animal over to a humane society, local authority or rescue organization; or return the animal to you if we consent to your request to keep the animal and you have completed and signed an Animal Addendum and paid all fees. When keeping or kenneling an animal, we won't be liable for loss, harm, sickness, or death of the animal unless due to our negligence. You must pay for the animal's reasonable care and kenneling charges.

- 12.2. **Violations of Animal Policies and Charges.** If you or any guest or occupant violates the animal restrictions of this Lease or our Community Policies, you'll be subject to charges, damages, eviction, and other remedies provided in this Lease, including animal violation charges listed in Lease Details from the date the animal was brought into your apartment until it is removed. If an animal has been in the apartment at any time during your term of occupancy (with or without our consent), we'll charge you for all cleaning and repair costs, including defecating, deodorizing, and shampooing. Initial and daily animal-violation charges and animal-removal charges are liquidated damages for our time, inconvenience, and overhead in enforcing animal restrictions and Community Policies.

13. **Parking.** You may not be guaranteed parking. We may regulate the time, manner, and place of parking of all motorized vehicles and other modes of transportation, including bicycles and scooters, in this Lease. In addition to other rights we have to tow or boot vehicles under state law, we also have the right to remove, at the expense of the vehicle owner or operator, any vehicle that is not in compliance with this Lease.

14. **When We May Enter.** If you or any other resident, guest or occupant is present, then repair or service persons, contractors, law officers, government representatives, lenders, appraisers, prospective residents or buyers, insurance agents, persons authorized to enter under your rental application, or our representatives may peacefully enter the apartment at reasonable times for reasonable business purposes. If nobody is in the apartment, then any such person may enter peacefully and at reasonable times (by breaking a window or other means when necessary) for reasonable business purposes if written notice of the entry is left in a conspicuous place in the apartment immediately after the entry. We are under no obligation to enter only when you are present, and we may, but are not obligated to, give prior notice or make appointments.

15. Requests, Repairs and Malfunctions.

- 15.1. Written Requests Required.** *If you or any occupant needs to send a request—for example, for repairs, installations, services, ownership disclosure, or security-related matters—it must be written and delivered to our designated representative in accordance with this Lease* (except for fair-housing accommodation or modification requests or situations involving imminent danger or threats to health or safety, such as fire, smoke, gas, explosion, or crime in progress). Our written notes regarding your oral request do not constitute a written request from you. Our complying with or responding to any oral request doesn't waive the strict requirement for written notices under this Lease. A request for maintenance or repair by anyone residing in your apartment constitutes a request from all residents. *The time, manner, method and means of performing maintenance and repairs, including whether or which vendors to use, are within our sole discretion.*
- 15.2. Your Requirement to Notify.** You must promptly notify us in writing of air conditioning or heating problems, water leaks or moisture, mold, electrical problems, malfunctioning lights, broken or missing locks or latches, or any other condition that poses a hazard or threat to property, health, or safety. Unless we instruct otherwise, you are required to keep the apartment cooled or heated according to this Lease. Air conditioning problems are normally not emergencies.
- 15.3. Utilities.** We may change or install utility lines or equipment serving the apartment if the work is done reasonably without substantially increasing your utility costs. We may turn off equipment and interrupt utilities as needed to perform work or to avoid property damage or other emergencies. If utilities malfunction or are damaged by fire, water, or similar cause, you must notify our representative immediately.
- 15.4. Your Remedies.** We'll act with customary diligence to make repairs and reconnections within a reasonable time, taking into consideration when casualty-insurance proceeds are received. Unless required by statute after a casualty loss, or during equipment repair, your Rent will not abate in whole or in part. "Reasonable time" accounts for the severity and nature of the problem and the reasonable availability of materials, labor, and utilities. *If we fail to timely repair a condition that materially affects the physical health or safety of an ordinary resident as required by the Texas Property Code, you may be entitled to exercise remedies under § 92.056 and § 92.0561 of the Texas Property Code. If you follow the procedures under those sections, the following remedies, among others, may be available to you: (1) termination of this Lease and an appropriate refund under § 92.056(f); (2) have the condition repaired or remedied according to § 92.0561; (3) deduct from the Rent the cost of the repair or remedy according to § 92.0561; and (4) judicial remedies according to § 92.0563.*
- 16. Our Right to Terminate for Apartment Community Damage or Closure.** If, in our sole judgment, damages to the unit or building are significant or performance of needed repairs poses a danger to you, we may terminate this Lease and your right to possession by giving you at least 7 days' written notice. If termination occurs, you agree we'll refund only prorated rent and all deposits, minus lawful deductions. We may remove and dispose of your personal property if, in our sole judgment, it causes a health or safety hazard or impedes our ability to make repairs.
- 16.1. Property Closure.** We also have the right to terminate this Lease and your right to possession by giving you at least 30 days' written notice of termination if we are demolishing your apartment or closing it and it will no longer be used for residential purposes for at least 6 months, or if any part of the property becomes subject to an eminent domain proceeding.
- 17. Assignments and Subletting.** You may not assign this Lease or sublet your apartment. You agree that you won't rent, offer to rent or license all or any part of your apartment to anyone else unless otherwise agreed to in advance by us in writing. You agree that you won't accept anything of value from anyone else for the use of any part of your apartment. You agree not to list any part of your apartment on any lodging or short-term rental website or with any person or service that advertises dwellings for rent.
- 18. Security and Safety Devices.** We'll pay for missing security devices that are required by law. You'll pay for: (A) rekeying that you request (unless we failed to rekey after the previous resident moved out); and (B) repairs or replacements because of misuse or damage by you or your family, your occupants, or your guests. You must pay immediately after the work is done unless state law authorizes advance payment. You must also pay in advance for any additional or changed security devices you request.

Texas Property Code secs. 92.154, 92.155, and 92.154 require, with some exceptions, that we provide at no cost to you when occupancy begins: (A) a window latch on each window; (B) a doorviewer (peephole or window) on each exterior door; (C) a pin lock on each sliding door; (D) either a door-handle latch or a security bar on each sliding door; (E) a keyless bolting device (deadbolt) on each exterior door; and (F) either a keyed doorknob lock or a keyed deadbolt lock on one entry door. Keyed locks will be rekeyed after the prior resident moves out. The rekeying will be done either before you move in or within 7 days after you move in, as required by law. If we fail to install or rekey security devices as required by law, you have the right to do so and deduct the reasonable cost from your next Rent payment under Texas Property Code sec. 92.165(f). We may deactivate or not install keyless bolting devices on your doors if (A) you or an occupant in the dwelling is over 55 or disabled, and (B) the requirements of Texas Property Code sec. 92.153(e) or (f) are satisfied.

- 18.1. Smoke Alarms and Detection Devices.** We'll furnish smoke alarms or other detection devices required by law or city ordinance. We may install additional detectors not so required. We'll test them and provide working batteries when you first take possession of your apartment. Upon request, we'll provide, as required by law, a smoke alarm capable of alerting a person with a hearing impairment.

You must pay for and replace batteries as needed, unless the law provides otherwise. We may replace dead or missing batteries at your expense, without prior notice to you. Neither you nor your guests or occupants may disable alarms or detectors. *If you damage or disable the smoke alarm or remove a battery without replacing it with a working battery, you may be liable to us under Texas Property Code sec. 92.2611 for \$100 plus one month's Rent, actual damages, and attorney's fees.*

- 18.2. Duty to Report.** You must immediately report to us any missing, malfunctioning or defective security devices, smoke alarms or detectors. You'll be liable if you fail to report malfunctions, or fail to report any loss, damage, or fines resulting from fire, smoke, or water.

- 19. Resident Safety and Loss.** *Unless otherwise required by law, none of us, our employees, agents, or management companies are liable to you, your guests or occupants for any damage, personal injury, loss to personal property, or loss of business or personal income, from any cause, including but not limited to: negligent or intentional acts of residents, occupants, or guests; theft, burglary, assault, vandalism or other crimes; fire, flood, water leaks, rain, hail, ice, snow, smoke, lightning, wind, explosions, interruption of utilities, pipe leaks or other occurrences unless such damage, injury or loss is caused exclusively by our negligence.*

We do not warrant security of any kind. You agree that you will not rely upon any security measures taken by us for personal security, and that you will call 911 and local law enforcement authorities if any security needs arise.

You acknowledge that we are not equipped or trained to provide personal security services to you, your guests or occupants. You recognize that we are not required to provide any private security services and that no security devices or measures on the property are fail-safe. You further acknowledge that, even if an alarm or gate amenities are provided, they are mechanical devices that can malfunction. Any charges resulting from the use of an intrusion alarm will be charged to you, including, but not limited to, any false alarms with police/fire/ambulance response or other required city charges.

20. Condition of the Premises and Alterations.

- 20.1. As-Is. We disclaim all implied warranties.** You accept the apartment, fixtures, and furniture as is, except for conditions materially affecting the health or safety of ordinary persons. You'll be given an inventory and Condition Form at or before move-in. You agree that after completion of the form or within 48 hours after move-in, whichever comes first, you must note on the form all defects or damage, sign the form, return it to us, and the form accurately reflects the condition of the premises for purposes of determining any refund due to you when you move out. Otherwise, everything will be considered to be in a clean, safe, and good working condition. You must still send a separate request for any repairs needed as provided by Par. 15.1.

- 20.2. Standards and improvements.** Unless authorized by law or by us in writing, you must not perform any repairs, painting, wallpapering, carpeting, electrical changes, or otherwise alter our property. No holes or stickers are allowed inside or outside the apartment. Unless this Lease states otherwise, we'll permit a reasonable number of small nail holes for hanging pictures on sheetrock walls and in grooves of wood-paneled walls. No water furniture, washing machines, dryers, extra phone or television outlets, alarm systems, cameras, two-way talk device, video or other door-

bells, or lock changes, additions, or rekeying is permitted unless required by law or we've consented in writing. You may install a satellite dish or antenna, but only if you sign our satellite dish or antenna lease addendum, which complies with reasonable restrictions allowed by federal law. You must not alter, damage, or remove our property, including alarm systems, detection devices, appliances, furniture, telephone and television wiring, screens, locks, or security devices. When you move in, we'll supply light bulbs for fixtures we furnish, including exterior fixtures operated from inside the apartment; after that, you'll replace them at your expense with bulbs of the same type and wattage. Your improvements to the apartment (made with or without our consent) become ours unless we agree otherwise in writing.

- 21. Notices.** Written notice to or from our employees, agents, or management companies constitutes notice to or from us. Notices to you or any other resident of the apartment constitute notice to all residents. Notices and requests from any resident constitute notice from all residents. Only residents can give notice of Lease termination and intent to move out under Par. 7.3. All notices and documents will be in English and, at our option, in any other language that you read or speak.

- 21.1. Electronic Notice.** Notice may be given electronically by us to you if allowed by law. If allowed by law and in accordance with this Lease, electronic notice from you to us must be sent to the email address and/or portal specified in this Lease. Notice may also be given by phone call or to a physical address if allowed in this Lease.

You represent that you have provided your current email address to us, and that you will notify us in the event your email address changes.

EVICTIION AND REMEDIES

- 22. Liability.** Each resident is jointly and severally liable for all Lease obligations. If you or any guest or occupant violates this Lease or our Community Policies, all residents are considered to have violated this Lease.

- 22.1. Indemnification by You.** You'll defend, indemnify and hold us and our employees, agents, and management company harmless from all liability arising from your conduct or requests to our representatives and from the conduct of or requests by your invitees, occupants or guests.

- 23. Default by Resident.**

- 23.1. Acts of Default.** You'll be in default if: (A) you don't timely pay Rent, including monthly recurring charges, or other amounts you owe; (B) you or any guest or occupant violates this Lease, our Community Policies, or fire, safety, health, criminal or other laws, regardless of whether or where arrest or conviction occurs; (C) you give incorrect, incomplete, or false answers in a rental application or in this Lease; or (D) you or any occupant is charged, detained, convicted, or given deferred adjudication or pretrial diversion for (1) an offense involving actual or potential physical harm to a person, or involving the manufacture or delivery of a controlled substance, marijuana, or drug paraphernalia as defined in the Texas Controlled Substances Act, or (2) any sex-related crime, including a misdemeanor.

- 23.2. Eviction.** If you default, including holding over, we may end your right of occupancy by giving you at least a 24-hour written notice to vacate. Termination of your possession rights doesn't release you from liability for future Rent or other Lease obligations. After giving notice to vacate or filing an eviction suit, we may still accept Rent or other sums due; the filing or acceptance doesn't waive or diminish our right of eviction or any other contractual or statutory right. Accepting money at any time doesn't waive our right to damages, to past or future Rent or other sums, or to our continuing with eviction proceedings. In an eviction, Rent is owed for the full rental period and will not be prorated.

- 23.3. Acceleration.** Unless we elect not to accelerate Rent, all monthly Rent for the rest of the Lease term or renewal period will be accelerated automatically without notice or demand (before or after acceleration) and will be immediately due if, without our written consent: (A) you move out, remove property in preparing to move out, or you or any occupant gives oral or written notice of intent to move out before the Lease term or renewal period ends; and (B) you haven't paid all Rent for the entire Lease term or renewal period. Remaining Rent will also be accelerated if you're judicially evicted or move out when we demand because you've defaulted.

If you don't pay the first month's Rent when or before this Lease begins, all future Rent for the Lease term will be automatically accelerated without notice and become immediately due. We also may end your right of occupancy and recover damages, future Rent, attorney's fees, court costs, and other lawful charges.

- 23.4. Holdover.** You and all occupants must vacate and surrender the apartment by or before the date contained in: (1) your move-out notice (2) our notice to vacate, (3) our notice of non-renewal, or (4) a written agreement specifying a different move-out date. If a holdover occurs, then you'll be liable to us for all Rent for the full term of the previously signed lease of a new resident who can't occupy because of the holdover, and at our option, we may extend the Lease term and/or increase the Rent by 25% by delivering written notice to you or your apartment while you continue to hold over.

- 23.5. Other Remedies.** We may report unpaid amounts to credit agencies as allowed by law. If we or our debt collector tries to collect any money you owe us, you agree that we or the debt collector may contact you by any legal means. If you default, you will pay us, in addition to other sums due, any rental discounts or concessions agreed to in writing that have been applied to your account. We may recover attorney's fees in connection with enforcing our rights under this Lease. All unpaid amounts you owe bear interest at the rate provided by Texas Finance Code Section 304.003(c) from the due date. You must pay all collection-agency fees if you fail to pay sums due within 10 days after you are mailed a letter demanding payment and stating that collection-agency fees will be added if you don't pay all sums by that deadline. You are also liable for a charge (not to exceed \$150) to cover our time, cost and expense for any eviction proceeding against you, plus our attorney's fees and expenses, court costs, and filing fees actually paid.

- 24. Representatives' Authority and Waivers.** Our representatives (including management personnel, employees, and agents) have no authority to waive, amend, or terminate this Lease or any part of it unless in writing and signed, and no authority to make promises, representations, or agreements that impose security duties or other obligations on us or our representatives, unless in writing and signed. No action or omission by us will be considered a waiver of our rights or of any subsequent violation, default, or time or place of performance. Our choice to enforce, not enforce or delay enforcement of written-notice requirements, rental due dates, acceleration, liens, or any other rights isn't a waiver under any circumstances. Delay in demanding sums you owe is not a waiver. Except when notice or demand is required by law, you waive any notice and demand for performance from us if you default. Nothing in this Lease constitutes a waiver of our remedies for a breach under your prior lease that occurred before the Lease term begins. Your Lease is subordinate to existing and future recorded mortgages, unless the owner's lender chooses otherwise.

All remedies are cumulative. Exercising one remedy won't constitute an election or waiver of other remedies. All provisions regarding our nonliability or nonduty apply to our employees, agents, and management companies. No employee, agent, or management company is personally liable for any of our contractual, statutory, or other obligations merely by virtue of acting on our behalf.

END OF THE LEASE TERM

- 25. Move-Out Notice.** Before moving out, you must give our representative advance written move-out notice as stated in Par. 4, even if this Lease has become a month-to-month lease. The move-out date can't be changed unless we and you both agree in writing.

Your move-out notice must comply with each of the following:

- Unless we require more than 30 days' notice, if you give notice on the first day of the month you intend to move out, move out will be on the last day of that month.
- Your move-out notice must not terminate this Lease before the end of the Lease term or renewal period.
- If we require you to give us more than 30 days' written notice to move out before the end of the Lease term, we will give you 1 written reminder not less than 5 days nor more than 90 days before your deadline for giving us your written move-out notice. If we fail to give a reminder notice, 30 days' written notice to move out is required.
- You must get from us a written acknowledgment of your notice.

- 26. Move-Out Procedures.**

- 26.1. Cleaning.** You must thoroughly clean the apartment, including doors, windows, furniture, bathrooms, kitchen appliances, patios, balconies, garages, carports, and storage rooms. You must follow move-out cleaning instructions if they have been provided. If you don't clean adequately, you'll be liable for reasonable cleaning charges—including charges for cleaning carpets, draperies, furniture, walls, etc. that are soiled beyond

normal wear (that is, wear or soiling that occurs without negligence, carelessness, accident, or abuse).

- 26.2. Move-Out Inspection.** We may, but are not obligated to, provide a joint move-out inspection. Our representatives have no authority to bind or limit us regarding deductions for repairs, damages, or charges. Any statements or estimates by us or our representative are subject to our correction, modification, or disapproval before final accounting or refunding.

- 27. Surrender and Abandonment.** You have **surrendered** the apartment when: (A) the move-out date has passed and no one is living in the apartment in our reasonable judgment; **or** (B) apartment keys and access devices listed in Par. 2.1 have been turned in to us—which ever happens first.

You have **abandoned** the apartment when all of the following have occurred: (A) everyone appears to have moved out in our reasonable judgment; (B) you've been in default for nonpayment of Rent for 5 consecutive days, or water, gas, or electric service for the apartment not connected in our name has been terminated or transferred; **and** (C) you've not responded for 2 days to our notice left on the inside of the main entry door stating that we consider the apartment abandoned. An apartment is also considered abandoned 10 days after the death of a sole resident.

- 27.1. The Ending of Your Rights.** Surrender, abandonment, or judicial eviction ends your right of possession for all purposes and gives us the immediate right to clean up, make repairs in, and relet the apartment; determine any security-deposit deductions; and remove or store property left in the apartment.

- 27.2. Removal and Storage of Property.** We, or law officers, may—but have no duty to—remove or store all property that in our sole judgment belongs to you and remains in the apartment or in common areas (including any vehicles you or any occupant or guest owns or uses) after you're judicially evicted or if you surrender or abandon the apartment.

We're not liable for casualty, loss, damage, or theft. You must pay reasonable charges for our packing, removing and storing any property.

Except for animals, we may throw away or give to a charitable organization all personal property that is:

- (1) left in the apartment after surrender or abandonment; **or**
- (2) left outside more than 1 hour after writ of possession is executed, following judicial eviction.

An animal removed after surrender, abandonment, or eviction may be kennelled or turned over to a local authority, humane society, or rescue organization.

GENERAL PROVISIONS AND SIGNATURES

- 28. TAA Membership.** We, the management company representing us, or any locator service that you used confirms membership in good standing of both the Texas Apartment Association and the affiliated local apartment association for the area where the apartment is located at the time of signing this Lease. If not, the following applies: (A) this Lease is voidable at your option and is unenforceable by us (except for property damages); and (B) we may not recover past or future rent or other charges. The above remedies also apply if both of the following occur: (1) this Lease is automatically renewed on a month-to-month basis more than once after membership in TAA and the local association has lapsed; and (2) neither the owner nor the management company is a member of TAA and the local association during the third automatic renewal. A signed affidavit from the affiliated local apartment association attesting to nonmembership when this Lease or renewal was signed will be conclusive evidence of nonmembership. Governmental entities may use TAA forms if TAA agrees in writing.

Name, address and telephone number of locator service (if applicable):

- 29. Severability and Survivability.** If any provision of this Lease is invalid or unenforceable under applicable law, it won't invalidate the remainder of this Lease or change the intent of the parties. **Paragraphs 10.1, 10.2, 16, 22.1, 27, 30 and 31 shall survive the termination of this Lease.** This Lease binds subsequent owners.

- 30. Controlling Law.** Texas law governs this Lease. All litigation arising under this Lease and all Lease obligations must be brought in the county, and precinct if applicable, where the apartment is located.

- 31. Waivers.** By signing this Lease, you agree to the following:

- 31.1. Class Action Waiver.** You agree that you will not participate in any class action claims against us or our employees, agents, or management company. You must file any claim against us individually, and **you expressly waive your right to bring, represent, join or otherwise maintain a class action, collective action or similar proceeding against us in any forum.**

YOU UNDERSTAND THAT WITHOUT THIS WAIVER, YOU COULD BE A PARTY IN A CLASS ACTION LAWSUIT. BY SIGNING THIS LEASE, YOU ACCEPT THIS WAIVER AND CHOOSE TO HAVE ANY CLAIMS DECIDED INDIVIDUALLY. THE PROVISIONS OF THIS PARAGRAPH SHALL SURVIVE THE TERMINATION OR EXPIRATION OF THIS LEASE.

- 31.2. Force Majeure.** If we are prevented from completing substantial performance of any obligation under this Lease by occurrences that are beyond our control, including but not limited to, an act of God, strikes, epidemics, war, acts of terrorism, riots, flood, fire, hurricane, tornado, sabotage or governmental regulation, then we shall be excused from any further performance of obligations to the fullest extent allowed by law.

- 32. Special Provisions.** The following, or attached Special Provisions and any addenda or Community Policies provided to you, are part of this Lease and supersede any conflicting provisions in this Lease.

The term 'Utility Connection Charge or Transfer Fee', as it relates to the "charge" in paragraph 3.5, means per utility, per billing cycle. The supplemental Resident Handbook that you agree to comply with is accessible electronically via the online Resident Portal. For "J. Optional Early Termination Fee" section, contact leasing office for fee/details.

Before submitting a rental application or signing this Lease, you should review the documents and may consult an attorney. You are bound by this Lease when it is signed. An electronic signature is binding. This Lease, including all addenda, is the entire agreement between you and us. You agree that you are NOT relying on any oral representations.

Resident or Residents (all sign below)

Kathryn 12/06/2024
(Name of Resident) Date signed

(Name of Resident) Date signed

(Name of Resident) Date signed

(Name of Resident) Date signed

(Name of Resident) Date signed

(Name of Resident) Date signed

Owner or Owner's Representative (signing on behalf of owner)

Kodi Walker

1. **Addendum.** This is an addendum to the Lease between you and us for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowery at Southside Apartments in Fort Worth, Texas OR the house, duplex, etc. located at (street address) _____ in _____, Texas.

2. **Payments.** All payments for any amounts due under the Lease must be made:
☒ at the onsite manager's office
☒ through our online portal
☒ by mail to 220 E Broadway Ave, Fort Worth, TX 79104, or
☒ other: www.bowerysouthside.com

The following payment methods are accepted:

- ☒ electronic payment
☒ personal check
☒ cashier's check
☒ money order, or
☐ other: _____

We have the right to reject any payment not made in compliance with this paragraph.

3. **Security Deposit Deductions and Other Charges.** You'll be liable for the following charges, if applicable: unpaid rent; unpaid utilities; unreimbursed service charges; repairs or damages caused by negligence, carelessness, accident, or abuse, including stickers, scratches, tears, burns, stains, or unapproved holes; replacement cost of our property that was in or attached to the apartment and is missing; replacing dead or missing alarm or detection-device batteries at any time; utilities for repairs or cleaning; trips to let in company representatives to remove your telephone, Internet, television services, or rental items (if you so request or have moved out); trips to open the apartment when you or any guest or occupant is missing a key; unreturned keys; missing or burned-out light bulbs; removing or rekeying unauthorized security devices or alarm systems; packing, removing, or storing property removed or stored under the Lease; removing illegally parked vehicles; special trips for trash removal caused by parked vehicles blocking dumpsters; false security-alarm charges unless due to our negligence; animal-related charges outlined in the Lease; government fees or fines against us for violation (by you, your occupants, or your guests) of local ordinances relating to alarms and detection devices, false alarms, recycling, or other matters; late-payment and returned-check charges; and other sums due under this Lease. You'll be liable to us for charges for replacing any keys and access devices referenced in the Lease if you don't return them all on or before your actual move-out date; and accelerated rent if you've violated the Lease. *We may also deduct from your security deposit our reasonable costs incurred in rekeying security devices required by law if you vacate the apartment in breach of this Lease.*

Upon receipt of your move-out date and forwarding address in writing, the security deposit will be returned (less lawful deductions) with an itemized accounting of any deductions, no later than 30 days after surrender or abandonment, unless laws provide otherwise. Any refund may be by one payment jointly payable to all residents and distributed to any one resident we choose or distributed equally among all residents.

4. **Requests, Consent, Access and Emergency Contact.** All written requests to us must be submitted by:

- ☒ online portal
☒ email to thebowery@weinsteinproperties.com
☒ hand delivery to our management office, or
☐ other: _____

From time to time, we may call or text residents with certain promotional or marketing messages that may be of interest. By signing this form and providing contact information, you are giving us your express written consent to contact you at the telephone number you provided for marketing or promotional purposes, even if the phone number you provided is on a corporate, state or national Do Not Call list. To opt out of receiving these messages, please submit a written request to us by the method noted above.

You agree to receive these messages from us through an automatic telephone dialing system, prerecorded/artificial voice messages, SMS or text messages, or any other data or voice transmission technology. Your agreement is not required as a condition of the purchase of any property, goods, or services from us.

Any resident, occupant, or spouse who, according to a remaining resident's affidavit, has permanently moved out or is under court order not to enter the apartment, is (at our option) no longer entitled to occupancy or access devices, unless authorized by court order.

After-hours phone number (833) 887-1948

(Always call 911 for police, fire, possible criminal activity or medical emergencies.)

5. **Parking.** We may have any unauthorized or illegally parked vehicles towed or booted according to state law at the owner or operator's expense at any time if the vehicle: (a) has a flat tire or is otherwise inoperable; (b) is on jacks, on blocks, or has a wheel missing; (c) takes up more than one parking space; (d) belongs to a resident or occupant who has surrendered or abandoned the apartment; (e) is in a handicapped space without the legally required handicapped insignia; (f) is in a space marked for office visitors, managers, or staff; (g) blocks another vehicle from exiting; (h) is in a fire lane or designated "no parking" area; (i) is in a space that requires a permit or is reserved for another resident or apartment; (j) is on the grass, sidewalk, or patio; (k) blocks a garbage truck from access to a dumpster; (l) has no current license or registration, and we have given you at least 10 days' notice that the vehicle will be towed if not removed; or (m) is not moved to allow parking lot maintenance.

6. **HVAC Operation.** If the exterior temperature drops below 32° F you must keep the heat on and set to a minimum of 50° F. You must also open all closets, cabinets, and doors under sinks to assist in keeping plumbing fixtures and plumbing pipes from freezing, and you must drip all the faucets in your apartment using both the hot and cold water. Leave the faucets dripping until the exterior temperature rises above 32° F. You must leave your HVAC system on, even if you leave for multiple days, and have it set to auto at all times.

7. **Amenities.** Your permission for use of all common areas, amenities, and recreational facilities (collectively "Amenities") located at the property is a license granted by us. This permission is expressly conditioned upon your compliance with the terms of the Lease, the Community Policies, and any signage posted in or around any of the Amenities. We have the right to set the days and hours of use for all Amenities and to change those or close any of the Amenities based upon our needs. We may make changes to the rules for the use of the Amenities at any time.

Neither we nor any of our agents, employees, management company, its agents, or its employees shall be liable for any damage or injury that results from the use of any Amenities by you, your invitees, your licensees, your occupants, or your guests. This release applies to any and all current, past or future claims or liability of any kind related to your decision to use the Amenities.

8. **Package Services.** We ☐ do or ☒ do not accept packages on behalf of residents.

If we DO accept packages, you give us permission to sign and accept any parcels or letters you receive through UPS, Federal Express, Airborne, United States Postal Service or other package delivery services. You agree that we are not liable or responsible for any lost, damaged or unordered deliveries and will hold us harmless.

9. **Fair Housing Policy.** We comply with applicable fair housing laws. In accordance with fair housing laws, we'll make reasonable accommodations to our rules, policies, practices or services and allow reasonable modifications to give disabled persons access to and use of the dwelling and common areas. We may require you to sign an addendum regarding the implementation of any accommodations or modifications, as well as your restoration obligations, if any. This fair housing policy does not expand or limit any rights and obligations under applicable law.

10. **Special Provisions.** The following special provisions control over conflicting provisions of this form:

The Supplemental Resident Handbook that you agree to comply with is accessible electronically via the online resident portal.

Kathryn

Signature of All Residents

Kodi Walker

Signature of Owner or Owner's Representative



Animal Addendum

Please note: We consider animals a serious responsibility and a risk to each resident in the dwelling. If you do not properly control and care for an animal, you'll be liable if it causes damage or disturbs other residents.

1. Dwelling Unit.

Unit # 2145 at 405 Crawford St
Apt# 2145
 (street address) in Fort Worth
 (city), Texas 76104 (zip code).

2. Lease.

Owner's name: WMCI Dallas, X LLC dba The
Bowery at Southside

Residents (list all residents): Kathryn M Copeland

3. Conditional Authorization for Animal.

You may keep the animal or animals described below in the dwelling until the Lease expires. We may terminate this authorization sooner if your right of occupancy is lawfully terminated or if in our judgment you, your animal, your guest, or any occupant violates any of the rules in this addendum.

4. Animal Deposit.

You must pay a one-time animal deposit of \$_____ when you sign this addendum. This deposit is in addition to your total security deposit under the Lease, which is a general security deposit for all purposes. Refund of the total security deposit is subject to the terms and conditions in the Lease, and this animal-deposit portion of the total deposit is not separately refundable even if the animal is removed.

5. Assistance or Service Animals.

When allowed by applicable laws, we may require written verification of or make other inquiries regarding the disability-related need for an assistance or service animal for a person with a disability. We will not charge an animal deposit, additional rent, or other fee for any authorized assistance or service animal. Except as provided by applicable law, all other provisions of this addendum apply to assistance or service animals.

6. Search and Rescue Dogs.

We may ask the handler of a search and rescue dog for proof he or she is a person with a certification issued by a nationally recognized search and rescue agency before we authorize a search and rescue dog. If we authorize a search and rescue dog, we will not charge an animal deposit, additional rent or other fee for any such dog. Except as provided by applicable law, all other provisions of this addendum apply to search and rescue dogs.

7. Additional Monthly Rent.

Your monthly base rent (as stated in the Lease) will be increased by \$_____.

8. Additional Fee.

You must also pay a one-time nonrefundable fee of \$_____ to keep the animal in the dwelling unit. The fee is due when you sign this addendum.

9. Liability Not Limited.

The additional monthly rent and additional security deposit under this Animal Addendum do not limit residents' liability for property damage, cleaning, deodorization, defecating, replacements, or personal injuries.

10. Description of Animal.

You may keep only the animal or animals described below. You may not substitute any other animal. Neither you nor your guests or occupants may bring any other animal—mammal, reptile, bird, amphibian, fish, rodent, arachnid, or insect—into the dwelling or apartment community.

Animal's name: Ruby (ESA)

Type: Dog

Breed: Cavalier King Charles

Color: Red & White

Weight: 16 lbs

Age: _____

City of license: _____

License #: _____

Date of last rabies shot: _____

Housebroken? _____

Animal owner's name: _____

Animal's name: Moon (ESA)

Type: Dog

Breed: Cavalier King Charles

Color: Black and White

Weight: 13lbs

Age: _____

City of license: _____

License #: _____

Date of last rabies shot: _____

Housebroken? _____

Animal owner's name: _____

Animal's name: _____

Type: _____

Breed: _____

Color: _____

Weight: _____

Age: _____

City of license: _____

License #: _____

Date of last rabies shot: _____

Housebroken? _____

Animal owner's name: _____

11. Special Provisions.

The following special provisions control over any conflicting provisions of this addendum:

See additional addendum titled Animal Addendum Special Provisions continued.

12. Emergency.

In an emergency involving an accident or injury to your animal, we have the right—but not the duty—to take the animal to the following veterinarian for treatment, at your expense.

Doctor: _____

Address: _____

City/State/Zip: _____

Phone: (_____) _____

13. Animal Rules.

You are responsible for the animal's actions at all times. You agree to follow these rules:

13.1 Shots and Licenses.

The animal at all times must have current rabies shots and licenses required by law. You must show us evidence of the shots and licenses if we ask.

13.2 Disturbances.

The animal must not disturb the neighbors or other residents, regardless of whether the animal is inside or outside the dwelling.

13.3 Housebreaking, Cages, Offspring.

Dogs, cats, assistance or service animals, and search and rescue dogs must be housebroken. All other animals must be caged at all times. No animal offspring are allowed.

13.4 Indoor Waste Areas.

Inside, the animal may urinate or defecate only in these designated areas: litterbox

13.5 Outdoor Waste Areas.

Outside, the animal may urinate or defecate only in these designated areas: Must clean up after pet.

13.6 Tethering.

Animals may not be tied to any fixed object anywhere outside the dwelling units, except in fenced yards (if any) for your exclusive use.

- 13.7 Off-Limit Areas.** You must not let an animal—other than an assistance or service animal—into swimming-pool areas, laundry rooms, offices, clubrooms, other recreational facilities, or other dwelling units besides your own, except that search and rescue dogs shall be allowed to use areas of the property accessible to the general public, such as the leasing office. Certain service animals in training shall also be allowed to use those areas when accompanied by an approved trainer.
- 13.8 Food & Water.** Your animal must be fed and given water inside the dwelling unit. You may not leave animal food or water outside the dwelling unit at any time, except in fenced yards (if any) for your exclusive use.
- 13.9 Leash.** You must keep the animal on a leash and under your supervision when outside the dwelling or in any private fenced area. We or our representative may pick up unleashed animals, report them to the proper authorities, or do both. We'll charge you a reasonable fee for picking up and keeping unleashed animals.
- 13.10 Animal Waste.** Unless we have designated a particular area in your dwelling unit or on the grounds for animal defecation and urination, you are prohibited from letting an animal defecate or urinate anywhere on our property and you must take the animal off our property for that purpose. If we allow animal defecation inside the unit, you must ensure that it's done in a litter box with a kitty-litter-type mix. If the animal defecates anywhere on our property (including in a fenced yard for your exclusive use), you must immediately remove the waste and repair any damage. In addition to the terms of this addendum, you must comply with all local ordinances regarding animal defecation.
- 14. Additional Rules.** We may make reasonable changes to the animal rules from time to time if we distribute a written copy of any changes to every resident who is allowed to have animals.
- 15. Violation of Rules.** If you, your guest, or any occupant violates any rule or provision of this addendum (in our judgment) and we give you written notice of the violation, you must remove the animal immediately and permanently from the premises. We also have all other rights and remedies set forth in the Lease, including eviction and recovering damages and attorney's fees from you.
- 16. Complaints About Animal.** If we receive a reasonable complaint from a neighbor or other resident or if we, in our sole discretion, determine that the animal has disturbed neighbors or other residents, we will give you written notice and you must immediately and permanently remove the animal from the premises.
- 17. Our Removal of an Animal.** In some circumstances, we may enter the dwelling unit and remove the animal within one day after leaving a written notice in a conspicuous place.
- 17.1 Causes for Removal.** We can remove an animal under this paragraph if, in our sole judgment, you have:
- (A) abandoned the animal;
 - (B) left the animal in the dwelling unit for an extended period of time without food or water;
 - (C) failed to care for a sick animal;
 - (D) violated our animal rules; OR
 - (E) let the animal defecate or urinate where it's not allowed.
- 17.2 Removal Process.** To remove an animal, we must follow the procedures in the Lease, and we may turn the animal over to a humane society or local authority. We'll return the animal to you upon request if we haven't already turned it over to a humane society or local authority. We don't have a lien on the animal for any purpose, but you must pay for reasonable care and kenneling charges for the animal. If you don't pick up the animal within five days after we remove it, it will be considered abandoned.
- 18. Liability for Damage, Injuries, Cleaning.** Except for reasonable wear and tear resulting from an assistance or service animal, you and all co-residents are jointly and severally liable for the entire amount of any damage the animal causes, including cleaning, defecating, or deodorizing. This provision applies to all parts of the dwelling unit including carpets, doors, walls, drapes, wallpaper, windows, screens, furniture, and appliances, as well as landscaping and other outside improvements. If an item cannot be satisfactorily cleaned or repaired, you must pay for us to replace it. Payment for damage, repairs, cleaning, replacements, and the like are due immediately upon demand. As the owner, you're strictly liable for the entire amount of any injury that your animal causes to another person or to anyone's property. You indemnify us for all costs of litigation and attorney's fees resulting from any such injury or damage.
- 19. Move-Out.** Except for reasonable wear and tear resulting from an assistance or service animal, when you move out, you'll pay for defecating, deodorizing, and shampooing to protect future residents from possible health hazards, regardless of how long the animal was there. We—not you—will arrange for these services.
- 20. Multiple Residents.** Each resident who signed the Lease must also sign this addendum. You, your guests, and any occupants must follow all animal rules. Each resident is jointly and severally liable for damages and all other obligations set forth in this addendum, even if the resident does not own the animal.
- 21. Dog Park.** We may provide an area to be used as a dog park. While using the park, you will be required to supervise your dog, but may remove the leash. Leashes must be used while traveling to and from the park. The park is not supervised or monitored in any way, and you use the park at your own risk. We are not liable for any injury, damage or loss which is caused as a result of any problem, defect or malfunction of the park. We are also not liable for injury, damage or loss to any person, animal or property caused by any other person or animal, including, but not limited to, dog bite, trespass, assault or any other crime. Furthermore, we are not liable for any disruption in the park's operation or performance. You hereby release us and our agents, contractors, employees and representatives from any liability connected with the park. You agree to be responsible for any property damage caused by you, your guests or other occupants to the park. You understand that participating in any activity at the park carries a risk of injury, and you are willing to assume this risk. We make no representations or warranties of any kind regarding the park.
- 22. General.** You acknowledge that no other oral or written agreement exists regarding animals. Except for any special provisions noted in paragraph 11 above, our representative has no authority to modify this addendum or the animal rules except in writing as described under paragraph 14. This Animal Addendum and the animal rules are considered part of the Lease described above.
- 23. Animal Restrictions.** No animal will be allowed that poses a threat to any other person. You represent that your animal(s) does not pose a danger or threat of any kind to any person or property; has not displayed vicious, aggressive or dangerous behavior; and has never before injured you or any other person or animal or caused any damage to your property or another person's property. You affirmatively represent and warrant that you have never had a claim or lawsuit filed against you or anyone else for an injury or damage caused by or related to the animal. You understand and agree that the approval of the animal to live in your apartment is expressly conditioned upon all of the foregoing being true and if you have made any misrepresentation it is a violation of the Lease.

You are legally bound by this document. Please read it carefully.

You are entitled to receive a copy of this Addendum after it is fully signed. Keep it in a safe place.

Resident or Residents (all sign below)

<u>Kathryn</u>	12/06/2024
(Name of Resident)	Date signed
_____	_____
(Name of Resident)	Date signed
_____	_____
(Name of Resident)	Date signed
_____	_____
(Name of Resident)	Date signed
_____	_____
(Name of Resident)	Date signed

Owner or Owner's Representative (sign below)

<u>Kodi Walker</u>	12/07/2024
_____	Date signed

Animal Addendum

Special Provisions (continued from Animal Addendum)

Special Provisions (continued): The following special provisions control over any conflicting provisions of the Animal Addendum:

A maximum of three (3) animals is allowed per apartment, including caged/tanked animals. No farm animals or livestock are allowed. The following dog breeds are prohibited on the property: Chow, Rottweiler, Staffordshire Terrier, Pit Bull, Doberman Pinscher, certain Mastiff breeds and mixed breeds that contain any portion of the foregoing breeds. Dogs resembling a prohibited breed are also prohibited, regardless of veterinary records to the contrary. Landlord, in its sole discretion, may elect to prohibit additional breeds of animals not listed above. If the animal demonstrates aggressive behavior at any time, we have the right to require the animal to be muzzled while on property and/or require the animal to be permanently removed from the premises in our discretion. There is a 3-dog maximum in ground floor apartments and a 2-dog maximum in apartments located on other floors. Tenant will incur a fee of \$25.00/incident for not picking up pet waste. If Tenant repeatedly fails to pick up pet waste, Tenant may be subject to additional action, including without limitation a lease violation notice. The deposit referenced in paragraph 4 of the Animal Addendum, additional fee referenced in paragraph 8 of the Animal Addendum and pet rent referenced in paragraph 7 of the Animal Addendum shall be as follows based on the number of animals (excluding caged/tanked animals) in the table below. There are to be no visiting animals, for any period of time, unless (i) owner has granted advance written approval, (ii) Tenant complies with paragraph 12 of the Lease, (iii) Tenant has delivered a signed animal addendum to owner regarding the visiting pet, and Tenant pays a daily non-refundable fee of \$10 for each visiting pet. All visiting pets must abide by the Pet Rules and Restrictions listed in the Animal Addendum and Resident Handbook. If any animal visits for more than ten (10) days on an annual basis, the animal shall not be deemed a visiting animal and Tenant shall be required to pay the deposit, additional fee and monthly pet rent as set forth herein. Tenant(s) authorizes Agent to inspect the premises, after the visit end date to insure the pet has been removed. If tenant does not obtain prior written consent for a visiting pet, the pet will be treated as unregistered and subject to the terms in the paragraph related to Unregistered Pets. Caged/tanked animals are allowed but 1) must remain in their cage/tank. 2) cannot be venomous/poisonous; and fish tanks must be less than 30 gallons. 3) Type, breed and size restrictions apply. 4) require a \$100 deposit prior to bringing the animal(s) to the property (fish tanks less than 10 gallons; no deposit). Note: The \$100 deposit is for up to 3 caged/tanked animals; no more than three animals are allowed per apartment.

Number of animals	Deposit	Additional Fee	Monthly Pet Rent
1	\$200.00	\$300.00	\$15.00
2	\$400.00	\$500.00	\$30.00
3	\$600.00	\$700.00	\$45.00

Resident or Residents
[All residents must sign here]

Owner or Owner's Representative
[signs here]

Kathryn

Kodi Walker

Date of Lease Contract

12/06/2024

1. **Addendum.** This is an addendum to the TAA Lease Contract for Apt. No. 2145 in the WMC Dallas, X LLC dba The Bowery at Southside

_____ Apartments in Fort Worth
Texas OR

the house, duplex, etc. located at (street address) _____
_____ in _____, Texas.

The terms of this addendum will control if the term of the Lease and this addendum conflict.

2. **Required Insurance Policy.** In accordance with the Lease, you understand and agree that this addendum requires Resident, at Resident's sole expense, to buy and maintain a liability insurance policy during the entire Lease term and any renewal periods that provides limits of liability to third parties in amount not less than \$ 100000.00 per occurrence. The liability insurance policy Resident buys and maintains must cover the actions or inactions of Resident and your occupants and guests, and be issued or underwritten by a carrier of your choice licensed to do business in Texas. The required insurance policy must identify the Owner identified in the Lease (or another entity designated by Owner) as an "Interested Party" or "Party of Interest" that will be notified by the insurer of any cancellation, non-renewal, or material change in your coverage no later than 30 days after such action. You must provide us written proof of compliance with the Lease and this addendum on or prior to the Lease commencement date; and if you do not you will not be granted possession of the Premises. You must also provide us written proof of compliance within 7 days of our written request at any other time we request it.
3. **Acknowledgement.** You acknowledge that Owner does not acquire or maintain insurance for Resident's benefit or which is designed to insure you for personal injury, loss or damage to your personal property or belongings, or your own liability for injury, loss or damage that you (or your occupants or guests) may cause others. Any insurance policy that insures you for personal injury, loss or damage to your personal property or belongings, or provide you coverage for your own liability for injury, loss or damage that you (or your occupants or guests) may cause others must be bought and maintained solely by you. We do not and are not able to provide you with information on insurance coverage, rates, or terms and conditions. You should instead seek such information from a licensed insurance company, licensed insurance agent, other licensed insurance professional, or the Texas Department of Insurance. The Texas Department of Insurance website at www.tdi.texas.gov may contain useful consumer information regarding renter's insurance. You further acknowledge that we have made no referrals, guarantees, representations or promises whatsoever concerning any insurance or services provided by any insurance company. At all times you have been and remain free to contract for the required insurance with the insurance carrier of your choosing.
4. **Default.** You understand and agree that your failure to comply with either the requirements specified in the Lease, this addendum, or both is a material breach by you of the Lease and a default of the Lease for which Owner may sue you for eviction. If you fail to buy and maintain insurance as required by the Lease and this addendum, we may, in our sole discretion, agree to refrain from filing an eviction against you for your default for not having the appropriate insurance in place upon payment by you to Owner of \$ _____ (which you agree is not a liquidated damages amount and which sum shall only apply to each month (or part thereof) you remain in breach of this insurance addendum). Owner will agree to forego commencement of an eviction based upon non-compliance with this addendum for a one-month period, during which you shall come into compliance with this addendum. Our choice to accept money from you to forego pursuit of an eviction for one month does not require us to accept money from you or forego pursuit of our remedies under this paragraph for any subsequent months. The foregoing payments are due on the 1st day of the month following the calendar month (or part thereof) during which you do not have the required insurance, with no grace period. PAYMENT OF SAID AMOUNT DOES NOT RELIEVE YOU OF YOUR OBLIGATION TO BUY AND MAINTAIN INSURANCE AS SUMMARIZED IN PARAGRAPH 2 OF THIS ADDENDUM, DOES NOT CURE THE MATERIAL BREACH AND DEFAULT DESCRIBED IN THIS PARAGRAPH, IN WHOLE OR IN PART, AND DOES NOT RELIEVE YOU OF ANY OBLIGATION TO COMPENSATE US OR ANY OTHER PARTY INJURED OR DAMAGED BY THE ACTIONS OR INACTIONS OF RESIDENT OR YOUR OCCUPANTS OR GUESTS. You further understand that we will not buy an insurance policy for you or for your benefit, and that nothing in this Lease shall be considered an agreement by Owner to furnish you with any insurance coverage.

NOTICE TO RESIDENT: YOU SHOULD BE AWARE THAT THE REQUIRED INSURANCE POLICY UNDER THIS ADDENDUM DOES NOT PROTECT YOU AGAINST LOSS OR DAMAGE TO YOUR PERSONAL PROPERTY OR BELONGINGS. YOU ARE STRONGLY ENCOURAGED TO BUY INSURANCE THAT COVERS YOU AND YOUR PROPERTY.

I have read, understand and agree to comply with the preceding provisions: [All Residents must sign this addendum]

Kathryn

Signature of All Residents

Kodi Walker

Signature of Owner or Owner's Representative

**LEASE ADDENDUM
PERSONAL LIABILITY INSURANCE REQUIRED**

Addendum. This is an addendum to the lease between you and us for Apt. No. 2145 in the WMCI Dallas, X
LLC dba The Bowery at Southside Apartments in
Fort Worth, TX; OR the house, duplex, etc. located at (street address)
_____ in
_____, TX.

1. **Insurance Acknowledgement.** Tenant acknowledges that Landlord does not maintain insurance to protect Tenant against personal injury, loss or damage to Tenant's personal property or to cover Tenant's own liability for injury, loss or damage Tenant (or Tenant's occupants or guests) may cause others. Tenant also acknowledges that Tenant may be responsible to others (including Landlord and Agent) for the full cost of any injury, loss or damage caused by Tenant's negligent actions or the negligent actions of Tenant's occupants or guests, including but not limited to damage caused by fire or smoke
2. **Building Protection fee.** Landlord agrees to waive the requirements in the Lease that Tenant purchase liability insurance covering damage from fire, vandalism, smoke, water and any other perils, with limits of at least \$100,000 (the "Insurance Requirements"), as set forth in the Lease, if Tenant 1) elects to waive the insurance requirement and pay the Building Protection Fee (as defined below) by opting into the building protection program at www.residentprotect.com; or 2) fails to provide proof of insurance as required in the Lease (in which case the Building Protection Fee will be charged to the Tenant automatically and the Tenant will be opted into the building protection program) within ten (10) business days following the date of this Addendum; or 3) cancels (voluntarily or involuntarily) its existing liability insurance coverage and Landlord receives notice of the same (in which case the Building Protection Fee may be charged to Tenant automatically and the Tenant may be opted into the building protection program). In such event, Landlord shall charge Tenant a "Building Protection Fee" in the amount of Twelve Dollars and 00/100 (\$12.00) per month. This Building Protection Fee is to be paid as additional monthly rent and will be used to help protect Landlord's assets, including real, improved and personal property owned or managed by Landlord against damage caused by a Tenant. Tenant may cancel its participation in this program at any time if Tenant purchases its own personal liability insurance policy or renter's insurance policy and provides proof of coverage to Landlord or Agent. This Building Protection Fee offers no protection for Tenant's personal property or third-party liability. Tenant should consider purchasing renter's insurance to protect Tenant from financial loss and third-party liability. Such policy must identify Landlord and Agent as additional insureds.
3. **Damage to Tenant's Personal Property.** Pursuant to the Lease, Tenant is only required to comply with the Insurance Requirements; however, Landlord highly recommends Tenant also obtain coverage for its personal property. Tenant has the option to obtain personal property reimbursement by visiting www.residentprotect.com. As a resident of this property, Tenant automatically qualifies for this reimbursement. If Tenant chooses to participate in this program, Tenant shall pay a "Property Reimbursement Fee" in the amount of Three Dollars and 00/100 (\$3.00) per month. This Property Reimbursement Fee is to be paid in the same manner as additional monthly rent. The Property Reimbursement Fee shall qualify Tenant for reimbursement for losses to Tenant's personal property up to Ten Thousand and 00/100 Dollars (\$10,000). A description of the program is available by visiting www.residentprotect.com
4. **Freedom of Choice.** At all times, Tenant can purchase insurance through the carrier or agency of Tenant's choice, subject to the requirements of the Lease, and is not required to purchase insurance through a particular carrier or participate in our property reimbursement program. However, the insurance Tenant purchases must meet the Lease's minimum Insurance Requirements at all times
5. **Default.** Tenant(s)'s failure to obtain or maintain insurance coverage meeting the Insurance Requirements shall constitute a material default of the Lease Agreement, entitling Agent to terminate the Lease Agreement and/or Tenant(s)'s right to possession under the Lease Agreement. Landlord reserves the right, and Tenant hereby authorizes Landlord, to charge Tenant a "Building Protection Fee" monthly in the amount of Twelve and 00/100 Dollars (\$12.00) as additional rent under the Lease if Tenant does not maintain coverage meeting the Insurance Requirements. Tenant may cancel its participation in this program at any time if Tenant purchases its own personal liability insurance policy or renter's insurance policy meeting the Insurance Requirements and provides proof of coverage to Landlord or Agent.
6. **Class Action Waiver.** The parties waive any right to bring class actions or representative claims on behalf of a class of individuals or to participate as a class representative or member (the "Class Action Waiver") against each other. Tenant is not waiving any right(s) to pursue claims against Landlord or Agent related to its tenancy, but Tenant agrees to file any claim(s) against Landlord or Agent in its individual capacity only, and Tenant hereby waives any rights that it may have had to bring or take part in a class or representative action.
7. **Miscellaneous.**
 - a. Except as specifically stated in this Addendum, all other terms and conditions of the Lease shall remain unchanged.
 - b. The insurance required by the Lease is not required by any law. Tenant's obligation to provide insurance stems solely from the Lease.
 - c. In the event of any conflict between the terms of this Addendum and the terms of the Lease, the terms of this Addendum shall control.

- d. The insurance required by the Lease is not an attempt to limit our liability for our own negligence or Tenant's liability for Tenant's own negligence.
- e. The insurance required by the Lease is not in lieu of, or in any way a component of, any security deposit required by the Lease.

By signing below, Tenant acknowledges and agree to be bound to the terms of this Addendum.

Resident or Residents
(All residents must sign)

Kathryn

Owner or Owner's Representative
(Signs below)

Kodi Walker

Date of Lease Contract

12/07/2024

**LEASE ADDENDUM FOR
ENCLOSED GARAGE, CARPORT, OR STORAGE UNIT**

1. **Addendum.** This is an addendum to the lease between you and us for Apt. No. 2145 in the WMCi Dallas, X LLC dba The Bowery at Southside Apartments in Fort Worth, TX; OR the house, duplex, etc. located at (street address) _____ in _____, TX.
2. **Garage, carport, or storage unit.** You are entitled to exclusive possession of: (check as applicable)
 garage or carport attached to the dwelling;
☐ garage space number(s): _____; \$ _____ /month; start date(s): _____
☒ carport space number(s): C-041; \$ 0.00 /month; start date(s): 10/21/2023 and/or
☒ storage unit number(s): S-12; \$ 25.00 /month; start date(s): 11/1/2023
 The monthly rent in the Lease Contract does not cover both the dwelling and the checked area(s) above. All terms and conditions of the lease apply to the above areas unless modified by this addendum. Start date is the same as the lease start date unless indicated above.
3. **Use restrictions.** Garage or carport may be used only for storage of operable motor vehicles unless otherwise stated in our rules, community policies, or Resident Handbook. Storage units may be used only for storage of personal property. No one may sleep, cook, barbeque, or live in a garage, carport, or storage unit. Persons not listed as a resident or occupant in the lease may not use the areas covered by this addendum. No plants may be grown in such areas. Additional Restrictions: _____
4. **No dangerous items.** In our sole judgment, items that pose an environmental hazard or a risk to the safety or health of other residents, occupants, or neighbors, or that violate any government regulation, may not be stored in the areas covered by this addendum. Prohibited items include fuel (other than in a properly capped fuel tank of a vehicle or a closed briquette lighter fluid container), fireworks, rags, piles of paper, or other material that may create a fire or environmental hazard. We may remove from such areas, without prior notice, items that we believe might constitute a fire or environmental hazard. Because of carbon monoxide risks, you may not run the motor of a vehicle inside a garage unless the garage door is open to allow fumes to escape.
5. **No smoke, fire, or carbon monoxide detectors.** No smoke, fire, or carbon monoxide detectors will be furnished by us unless required by law. We may choose to provide a detection device not required by law by separate addendum.
6. **Garage door opener.** If an enclosed garage is furnished, you ☒ will ☐ will not be provided with a ☒ garage door opener and/or ☐ garage key. You will be responsible for maintenance of any garage door opener, including battery replacement. Transmitter frequency settings may not be changed on the garage door or opener without our prior written consent. At the time of termination of the lease, the total number of garage door opener(s) and/or garage key(s) that you were assigned must be returned to us. Failure to return such opener and/or key will result in a charge of \$ 50.00, which will be deducted from your security deposit.
7. **Security.** We will not have any security responsibilities for areas covered by this addendum. Always remember to lock any door of a garage or storage unit and any door between a garage and the dwelling. When leaving, be sure to lock all keyed deadbolt locks.
8. **Insurance and loss/damage to your property.** Any area covered by this addendum is accepted by you "as is." You will maintain liability and comprehensive insurance coverage for any vehicle parked or stored. We will have no responsibility for loss or damage to vehicles or other property parked or stored in a garage, carport, or storage unit, whether caused by accident, fire, theft, water, vandalism, pests, mysterious disappearance, or otherwise. We are not responsible for pest control in such areas.
9. **Compliance.** We may periodically open and enter garages and storerooms to ensure compliance with this addendum. In that event, written notice of such opening and entry will be left inside the main entry door of your dwelling or inside the door between the garage and your dwelling.
10. **No lock changes, alterations, or improvements.** Without our prior written consent, locks on doors of garages and storage units may not be rekeyed, added, or changed, and improvements, alterations, or electrical extensions or changes to the interior or exterior of such areas are not allowed. You may not place nails, screws, bolts, or hooks into walls, ceilings, floors, or doors. Any damage not caused by us or our representatives to areas covered by this addendum will be paid for by you.
11. **Move-out and remedies.** Any items remaining after you have vacated the dwelling will be removed, sold, or otherwise disposed of according to Community Policies or the Lease Contract, which addresses disposition or sale of property left in an abandoned or surrendered dwelling. All remedies in the lease apply to areas covered by this addendum. Upon termination of the lease, your failure to return any garage door opener or other remote control device will result in a charge against you. A written 30-day notice to vacate is required for any carport, garage, or storage unit if you intend to vacate it prior to the end of the lease term for apartment Premises.

Resident or Residents
(All residents must sign)

Kathryn

Owner or Owner's Representative
(Signs below)

Kodi Walker

Date of Lease Contract
12/07/2024

**FITNESS CENTER/BUSINESS CENTER
RULES AND REGULATIONS**

Kathryn M Copeland
405 Crawford St Apt# 2145
Fort Worth, TX 76104

We hope you will enjoy the Fitness Center and/or Business Center. To ensure that everyone has a safe and enjoyable experience, please abide by the following rules and regulations. These rules and regulations become a part of the Resident Handbook that you received as part of your Move-In Packet.

1. The Fitness Center is for the use of residents and their guests. Guests are not permitted in the Business Center
2. The Fitness Center is accessible 24 hours a day; 7 days a week.

3. Residents are permitted to bring one guest per day to the Fitness Center. Guests must be accompanied by a resident at all times while in the Fitness Center. Guests must carry a guest pass at all times while in the Fitness Center. Guests must abide by all Fitness Center policies. Residents are responsible for the actions of their guests.
4. No persons under age 16 are permitted to use the exercise equipment or be in the Fitness Center.
5. No attendants or supervision of any kind will be provided by the Management for the Fitness Center.
6. Use the exercise equipment at your own risk. Weinstein Properties is not responsible for accidents or injuries related in any way to the use of the Fitness Center.
7. It is strongly recommended that appropriate work out clothing be worn while using the fitness equipment. Fitness center users assume all risk of injury resulting from failing to wear appropriate clothing.
8. The treadmills and stair stepper machines are not designed for use by persons weighing over 250 pounds.
9. Know your limits. Do not over exert yourself.
10. Read all posted instructions. If you do not understand the instructions, do not use the equipment.
11. When using the treadmill, please attach the safety key to your clothing or body.
12. No one under the influence of drugs or alcohol may use the Fitness Center or Business Center at any time.
13. Please wear shoes—no wet or bare feet are permitted in the Fitness Center or Business Center.
14. There is a \$50.00 fee for lost or stolen access cards/fobs, or for not returning the access card/fob when your occupancy expires.
15. The Fitness Center may not be used for the purpose of conducting business, including personal training or classes, at any time.
16. Landlord reserves the right to deny access to the Fitness Center and/or Business Center to any and all Tenant(s) who fail to comply with these Rules and Regulations.

I have read, understand and agree to comply with the foregoing rules and regulations.

Date: 12/06/2024

Tenant Signature: Kathryn

Date: _____

Tenant Signature: _____

LEASE ADDENDUM FOR ACCESS CONTROL DEVICES

1. Addendum. This is an addendum to the TAA Lease Contract for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowery at Southside Apartments in Fort Worth, Texas.

2. Remote control/cards/code for gate access.

- ☒ **Remote control for gate access.** Each resident on the lease will be given a remote control at no cost to use during his or her residency. Each additional remote control for you or your occupants will require a \$ 50.00 non-refundable fee.
- ☒ **Cards for gate access.** Each resident on the lease will be given a card at no cost to use during his or her residency. Each additional card for you or your occupants will require a \$ 50.00 non-refundable fee.
- ☐ **Code for gate access.** Each resident will be given, at no cost, an access code (keypad number) for the pedestrian or vehicular access gates. It is to be used only during your residency.

3. Damaged, lost or unreturned remote controls, cards, key fobs or code changes.

- ☒ If a remote control is lost, stolen or damaged, a \$ 50.00 fee will be charged for a replacement. If a remote control is not returned or is returned damaged when you move out, there will be a \$ _____ deduction from the security deposit.
- ☒ If a card is lost, stolen or damaged, a \$ 50.00 fee will be charged for a replacement card. If a card is not returned or is returned damaged when you move out, there will be a \$ _____ deduction from the security deposit.
- ☐ We may change the code(s) at any time and notify you accordingly.

4. Report damage or malfunctions. Please immediately report to the office any malfunction or damage to gates, fencing, locks, or related equipment.**5. Follow written instructions.** You and all other occupants must read and follow the written instructions that have been furnished to you regarding the access gates. If the gates are damaged by you, your occupants, guests, or invitees through negligence or misuse, you are liable for the damages under your lease, and collection of damage amounts will be pursued.**6. Personal injury and/or personal property damage.** Anything mechanical or electronic is subject to malfunction. Fencing, gates, or other devices will not prevent all crime. No security system or device is foolproof or 100 percent successful in deterring crime. Crime can still occur. Protecting residents, their families, occupants, guests, and invitees from crime is the sole responsibility of residents, occupants, and law enforcement agencies. You should first call 911 or other appropriate emergency police numbers if a crime occurs or is suspected. We are not liable to any resident, guest, occupant, or invitee for personal injury, death, or damage/loss of personal property from incidents related to perimeter fencing, automobile access gates, and/or pedestrian access gates. We reserve the right to modify or eliminate security systems other than those statutorily required.**7. RULES IN USING VEHICLE GATES.**

- Always approach entry and exit gates with caution and at a very slow rate of speed.
- Never stop your car where the gate can hit your vehicle as the gate opens or closes.
- Never follow another vehicle into an open gate. Always use your card to gain entry.
- Report to management the vehicle license plate number of any vehicle that piggybacks through the gate.
- Never force the gate open with your car.
- Never get out of your vehicle while the gates are opening or closing.
- If you are using the gates with a boat or trailer, please contact management for assistance. The length and width of the trailer may cause recognition problems with the safety loop detector and could cause damage.
- Do not operate the gate if there are small children nearby who might get caught in it as it opens or closes.
- If you lose your card, please contact the management office immediately.
- Do not give your card or code to anyone else.
- Do not tamper with gate or allow your occupants to tamper or play with gates.

Kathryn
Signatures of All Residents

Kodi Walker
Signature of Owner or Owner's Representative

1. Addendum. This is an addendum to the TAA Lease Contract for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowery at Southside Apartments in Fort Worth, Texas OR the house, duplex, etc. located at (street address) _____ in _____, Texas.

2. Smoking, in any form, anywhere inside any of the dwelling units, or inside any buildings within the apartment community, is strictly prohibited. This is our no-smoking policy; and you agree that any violation of the no-smoking policy is a material and substantial violation of this addendum and a breach of the TAA Lease Contract.

The prohibition of smoking extends to all residents, their occupants, guests, invitees and all others who are present on or in any portion of the community. The no-smoking policy and rules extend to, but are not limited to, the leasing offices, building interiors and hallways, building common areas, dwelling units, club house, exercise or spa facility, indoor tennis courts, all interior areas of the community, commercial shops, businesses, work areas, and all other spaces whether in the interior of the community or in the enclosed spaces on community grounds. Smoking is also prohibited by this addendum inside any dwelling or building, whether leased by you or another.

3. Smoking permitted in designated areas of the apartment community. Smoking is permitted only in specially designated areas, if any. The permissible smoking areas are marked by signs.

Smoking on balconies, patios, and limited common areas attached to or outside of your dwelling unit:

- ☐ is permitted
☒ is not permitted.

Only the following outside areas may be used for smoking: _____

Smoking is permitted only in specially designated areas outside the buildings of the apartment community. Smoking must be at least 15 feet from the buildings in the apartment community, including administrative office buildings. If the previous field is not completed, smoking is only permitted at least 25 feet from the buildings in the apartment community, including administrative office buildings. The smoking-permissible areas are marked by signage.

Even though smoking may be permitted in certain limited outside areas, we reserve the right to direct that you and your occupants, family, guests, and invitees immediately cease smoking in those areas if smoke is entering a dwelling or building or if it is interfering with the rights, comfort, health, safety or convenience of others in or near the apartment community or rental premises.

4. Your responsibility for damages and cleaning. You are responsible for payment of all costs and damages to your dwelling unit, other residents' dwelling units, or any other portion of the community for repair, replacement, or cleaning and odor removal due to smoking or smoke-related damage caused by you or your occupants, family, guests, or invitees, regardless of whether such use was a violation of this addendum. You agree that any costs or damages we incur related to repairs, replacement, cleaning and odor removal due to your smoking or due to your violation of the no-smoking provisions of the TAA Lease Contract are NOT normal wear and tear. You also agree that smoke-related damage, including but not limited to smoke odor that permeates sheetrock, carpeting, wood, insulation, or other components of the dwelling unit or building, shall always be in excess of normal wear and tear in our community and at the rental premises.

5. Your responsibility for loss of rental income and economic damages regarding other residents. You are responsible for payment of all lost rental income or other economic and financial damages or loss to us due to smoking or smoke-related damages caused by you or your occupants, family, guests, or invitees which results in or causes other residents to vacate their dwelling units, results in disruption of other residents' enjoyment of the community, adversely affects other residents' or occupants' health, safety, or welfare, or causes a qualified applicant to refuse to rent the unit because of smoke related damages including smoke odors.

6. Definition of smoking. "Smoking" refers to, but is not limited to, any use or possession of a cigar, cigarette, e-cigarette, hookah, vaporizer, or pipe containing tobacco or a tobacco product while that tobacco or tobacco product is burning, lighted, vaporized, or ignited, regardless of whether the person using or possessing the product is inhaling or exhaling the smoke from such product. The term tobacco includes, but is not limited to any form, compound, or synthesis of the plant of the genus *Nicotiana* or the species *N. tabacum* which is cultivated for its leaves to be used in cigarettes, cigars, e-cigarettes, hookahs, vaporizers, or pipes. Smoking also refers to use or possession of burning, lighted, vaporized, or ignited non-tobacco products if they are noxious, offensive, unsafe, unhealthy, or irritating to other persons.

7. Lease Contract termination for violation of this addendum. We have the right to exercise all remedies available to us for any violation of this addendum, which in turn is a default under the Lease, which include terminating your right of occupancy and possession. Violation of this addendum is a material and substantial default of the TAA Lease Contract. In the event we terminate your right of occupancy, you shall remain liable for all rent and other sums due under the TAA Lease Contract subject to any duty to mitigate.

8. Extent of your liability for losses due to smoking. Your responsibility for damages, cleaning, deodorizing, loss of rental income, and other economic damages under this addendum are in addition to, and not instead of your responsibility for any other damages or loss under the TAA Lease Contract or any other addendum.

9. Your responsibility for conduct of occupants, family members and guests. You are responsible for communicating the no- smoking policy and provisions of this addendum to your occupants, family, guests, and invitees and understand that a failure on their part to comply is the same as non-compliance by you.

10. No warranty of a smoke-free environment. Although we prohibit smoking in all interior parts of the dwelling units and community, there is no warranty or guaranty that your dwelling unit, buildings or the community is smoke-free. Smoking in certain limited outside areas may be allowed as provided in this Addendum. Enforcement of our no-smoking policy is a joint responsibility that requires your cooperation in reporting incidents or suspected violations of smoking. You must report violations of our no-smoking policy to us before we are obligated to investigate and take action. You agree to cooperate with us if it becomes necessary to pursue action for any violations of the no-smoking policy.

This is an important and binding legal document. By signing this addendum you are acknowledging that a violation could lead to termination of your right of possession or your right to occupy the dwelling unit and premises. If you or someone in your household is a smoker, you should carefully consider whether you will be able to abide by the terms of this addendum. Before signing you must advise us whether you or anyone who will be living in your dwelling is a smoker. If you give an incorrect or false answer, you agree that is a default under the Lease. Provide your answer by checking one of the following boxes:

- ☒ Neither you nor anyone who will be living in the dwelling unit is a smoker and it is agreed no one will ever smoke in the unit.
- ☐ Someone who will be living in the dwelling unit is a smoker but it is agreed no one will ever smoke in the unit.

Kathryn

Signatures of All Residents

Kodi Walker

Signature of Owner or Owner's Representative

LEASE ADDENDUM FOR SATELLITE DISH OR ANTENNA

Under a Federal Communications Commission (FCC) order, you as our resident have a right to install a transmitting or receiving satellite dish or antenna on the leased premises, subject to FCC limitations. We as a rental housing owner are allowed to impose reasonable restrictions relating to such installation. You are required to comply with these restrictions as a condition of installing such equipment. This addendum contains the restrictions that you and we agree to follow.

1. **Addendum.** This is an addendum to the lease between you and us for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowery at Southside

_____ Apartments in Fort Worth
 Texas OR
 the house, duplex, etc. located at (street address) _____
 _____ in _____, Texas.

2. **Number and size.** You may install 1 satellite dish(es) or antenna(s) on the leased premises. A satellite dish may not exceed one meter (3.3 feet) in diameter. Antennas that only transmit signals or that are not covered by 47 CFR §1.4000 are prohibited.
3. **Location.** Your satellite dish or antenna must be located: (1) inside your dwelling; or (2) in an area outside your dwelling such as a balcony, patio, yard, etc. of which you have exclusive use under your lease. Installation is not permitted on any parking area, roof, exterior wall, window, window sill, fence, or common area, or in an area that other residents are allowed to use. A satellite dish or antenna may not protrude beyond the vertical and horizontal space that is leased to you for your exclusive use.
4. **Safety and non-interference.** Your installation: (1) must comply with all applicable ordinances and laws and all reasonable safety standards; (2) may not interfere with our cable, telephone or electrical systems or those of neighboring properties; (3) may not be connected to our telecommunication systems; and (4) may not be connected to our electrical system except by plugging into a 110-volt duplex receptacle. If the satellite dish or antenna is placed in a permitted outside area, it must be safely secured by one of three methods: (1) securely attaching it to a portable, heavy object such as a small slab of concrete; (2) clamping it to a part of the building's exterior that lies within your leased premises (such as a balcony or patio railing); or (3) any other method approved by us in writing. No other methods are allowed. We may require reasonable screening of the satellite dish or antenna by plants, etc., so long as it does not impair reception.
5. **Signal transmission from exterior dish or antenna to interior of dwelling.** Under the FCC order, you may not damage or alter the leased premises and may not drill holes through outside walls, door jams, windowsills, etc. If your satellite dish or antenna is installed outside your dwelling (on a balcony, patio, etc.), the signals received by it may be transmitted to the interior of your dwelling only by the following methods: (1) running a "flat" cable under a door jam or windowsill in a manner that does not physically alter the premises and does not interfere with proper operation of the door or window; (2) running a traditional or flat cable through a pre-existing hole in the wall (that will not need to be enlarged to accommodate the cable); (3) connecting cables "through a window pane," similar to how an external car antenna for a cellular phone can be connected to inside wiring by a device glued to either side of the window—without drilling a hole through the window; (4) wireless transmission of the signal from the satellite dish or antenna to a device inside the dwelling; or (5) any other method approved by us in writing.
6. **Safety in installation.** In order to assure safety, the strength and type of materials used for installation must be approved by us. Installation must be done by a qualified person or company approved by us. Our approval will not be unreasonably withheld. An installer provided by the seller of the satellite dish or antenna is presumed to be qualified.
7. **Maintenance.** You will have the sole responsibility for maintaining your satellite dish, antenna, and all related equipment.
8. **Removal and damages.** You must remove the satellite dish or antenna and all related equipment when you move out of the dwelling. In accordance with the TAA Lease Contract, you must pay for any damages and for the cost of repairs or repainting caused by negligence, carelessness, accident, or abuse which may be reasonably necessary to restore the leased premises to its condition prior to the installation of your satellite dish, antenna or related equipment. You will not be responsible for normal wear and tear.
9. **Liability insurance and indemnity.** You must take full responsibility for the satellite dish, antenna, and related equipment. If the dish or antenna is installed at a height or in some other way that could result in injury to others if it becomes unattached and falls, you must provide us with evidence of liability insurance to protect us against claims of personal injury and property damage to others, related to your satellite dish, antenna, and related equipment. The insurance coverage must be \$ 1000000.00, which is an amount reasonably determined by us to accomplish that purpose. Factors affecting the amount of insurance include height of installation above ground level, potential wind velocities, risk of the dish/antenna becoming unattached and falling on someone, etc. You agree to hold us harmless and indemnify us against any of the above claims by others.
10. **Security deposit.** Your security deposit (in your Lease Contract) is increased by an additional reasonable sum of \$ 150.00 ☒ effective at time of installation or ☐ effective within _____ days of installation to help protect us against possible repair costs, damages, or failure to remove the satellite dish, antenna and related equipment at time of move-out. Factors affecting any security deposit may vary, depending on: (1) how the dish or antenna is attached (nails, screws, lag bolts drilled into walls); (2) whether holes were permitted to be drilled through walls for the cable between the satellite dish and the TV; and (3) the difficulty and cost of repair or restoration after removal, etc. A security deposit increase does not imply a right to drill into or alter the leased premises.
11. **When you may begin installation.** You may start installation of your satellite dish, antenna, or related equipment only after you have: (1) signed this addendum; (2) provided us with written evidence of the liability insurance referred to in paragraph 9 of this addendum; (3) paid us the additional security deposit, if applicable, in paragraph 10; and (4) received our written approval, which may not be unreasonably withheld, of the installation materials and the person or company that will do the installation.
12. **Miscellaneous.** If additional satellite dishes or antennas are desired, an additional lease addendum must be executed.

Kathryn
 Signatures of All Residents

Kodi Walker
 Signature of Owner or Owner's Representative

1. **Addendum.** This is an addendum to the TAA Lease Contract for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowery at Southside Apartments in Fort Worth, Texas OR the house, duplex, etc. located at (street address) _____, in _____, Texas.
2. **PUC.** Water conservation by submeter billing is encouraged by the Public Utility Commission of Texas (PUC). Submeter billing is regulated by PUC rules, and a copy of the rules is attached to this addendum. This addendum complies with those rules.
3. **Mutual Conservation Efforts.** We agree to use our best efforts to repair any water leaks inside or outside your apartment no later than 7 days after we learn about them. You agree to use your best efforts to follow the water-conservation suggestions listed in the checklist below.
4. **Submeter Billing Procedures.** Your monthly rent under the TAA Lease does *not* include a charge for water and wastewater. Instead, you will receive a separate monthly bill from us for submetered water and wastewater use, as follows:
- (A) Your monthly water and wastewater bill will conform to all applicable rules of the PUC (see attached).
 - (B) As permitted by state law, a service fee of 9% (not to exceed 9%) will be added to your monthly water-service charges.
 - (C) No other administrative or other fees will be added to your bill unless expressly allowed by law or PUC rules. No other amounts will be included in the bill except your unpaid balances and any late fees (if incurred by you). If we fail to pay our mastermeter bill to the utility company on time and incur penalties or interest, no portion of these amounts will be included in your bill.
 - (D) We will calculate your submetered share of the mastermetered water bill according to PUC rules, Section 24.281.
 - (E) We will bill you monthly for your submetered water consumption from approximately the 1 day of the month to the 31 day of the month, the latter being our scheduled submeter-reading date. Your bill will be calculated in accordance with PUC rules and this Addendum and will be prorated for the first and last months you live in the unit.
 - (F) PUC rules require us to publish figures from the previous calendar year if that information is available. The average monthly bill for all dwelling units in the apartment community last year was \$ 41.14 per unit, varying from \$ 1.75 for the lowest month's bill to \$ 100.18 for the highest month's bill for any unit. This information may or may not be relevant since the past amounts may not reflect future changes in utility-company water rates, weather variations, future total water consumption, changes in water-consumption habits of residents, and other unpredictable factors.
 - (G) During regular weekday office hours, you may examine: (1) our water and wastewater bills from the utility company; (2) our calculation of your monthly submeter bill; and (3) any other information available to you under PUC rules. Please give us reasonable advance notice to gather the data. Any disputes relating to the computation of your bill will be between you and us.
5. **Your Payment-Due Date.** Payment of your submeter water and wastewater bill is due 16 days after the date it is postmarked or hand delivered to your apartment. You agree to mail or deliver payment to the place indicated on your bill so that payment is received no later than the due date. You will pay a late charge of 5% of your water and wastewater bill if we do not receive your payment on time.

A Checklist of Water-Conservation Ideas for Your Dwelling

In the bathroom . . .

- Never put cleansing tissues, dental floss, cigarette butts, or other trash in the toilet.
- When brushing your teeth, turn off the water until you need to rinse your mouth.
- When shaving, fill the sink with hot water instead of letting the faucet run.
- Take a shower instead of filling the tub and taking a bath.
- Take a shorter shower. Showers may use up to half of your interior water consumption.
- If you take a tub bath, reduce the water level by one or two inches.
- Shampoo your hair in the shower.
- Test toilets for leaks. Add a few drops of food coloring to the tank, but do not flush. Watch to see if the coloring appears in the bowl within a few minutes. If it does, the fixture needs adjustment or repair. A slow drip can waste as much as 170 gallons a day or 5,000 gallons per month. Report all leaks to management.
- Don't leave water running while cleaning bathroom fixtures.

In the kitchen . . .

- Run your dishwasher only when you have a full load.
- If you wash dishes by hand, don't leave the water running for washing or rinsing. Fill the sink instead.
- Use your sink disposal sparingly, and never for just a few scraps.
- Keep a container of drinking water in the refrigerator.
- When cleaning vegetables, use a pan of cold water rather than letting the faucet run.
- For cooking moist food, use only a little water and place a lid on the pot.
- Report all leaks to management.

When doing the laundry . . .

- Wash only full loads of laundry or else adjust the water level to match the size of the load (if you have this option).
- Use cold water as often as possible to save energy and to conserve the hot water for uses that cold water cannot serve.

Attached: PUC Rules for Submetered Water or Wastewater Service

Also note that the service fee referenced in Item 4(B) does not apply to properties receiving Low-Income Housing Tax Credits or to properties receiving tenant-based vouchers.

Kathryn

Resident or Residents [All residents must sign here]

Kodi Walker

Owner or Owner's Representative [sign here]

Water allocation and submetering is regulated by the Texas Public Utility Commission (PUC). In accordance with PUC rules, a copy of the applicable rules is provided to you below:

SUBCHAPTER I: WATER UTILITY SUBMETERING AND ALLOCATION

§ 24.275. General Rules and Definitions

(a) Purpose and scope. The provisions of this subchapter are intended to establish a comprehensive regulatory system to assure that the practices involving submetered and allocated billing of dwelling units and multiple use facilities for water and sewer utility service are just and reasonable and include appropriate safeguards for tenants.

(b) Application. The provisions of this subchapter apply to apartment houses, condominiums, multiple use facilities, and manufactured home rental communities billing for water and wastewater utility service on a submetered or allocated basis. The provisions of this subchapter do not limit the authority of an owner, operator, or manager of an apartment house, manufactured home rental community, or multiple use facility to charge, bill for, or collect rent, an assessment, an administrative fee, a fee relating to upkeep or management of chilled water, boiler, heating, ventilation, air conditioning, or other building system, or any other amount that is unrelated to water and sewer utility service costs.

(c) Definitions. The following words and terms, when used in this subchapter, have the defined meanings, unless the context clearly indicates otherwise.

(1) Allocated utility service--Water or wastewater utility service that is master metered to an owner by a retail public utility and allocated to tenants by the owner.

(2) Apartment house--A building or buildings containing five or more dwelling units that are occupied primarily for nontransient use, including a residential condominium whether rented or owner occupied, and if a dwelling unit is rented, having rent paid at intervals of one month or more.

(3) Condominium manager--A condominium unit owners' association organized under Texas Property Code §82.101, or an incorporated or unincorporated entity comprising the council of owners under Chapter 81, Property Code, Condominium Manager and Manager of a Condominium have the same meaning.

(4) Customer service charge--A customer service charge is a rate that is not dependent on the amount of water used through the master meter.

(5) Dwelling unit--One or more rooms in an apartment house or condominium, suitable for occupancy as a residence, and containing kitchen and bathroom facilities; a unit in a multiple use facility; or a manufactured home in a manufactured home rental community.

(6) Dwelling unit base charge--A flat rate or fee charged by a retail public utility for each dwelling unit recorded by the retail public utility.

(7) Manufactured home rental community--A property on which spaces are rented for the occupancy of manufactured homes for nontransient residential use and for which rental is paid at intervals of one month or longer.

(8) Master meter--A meter used to measure, for billing purposes, all water usage of an apartment house, condominium, multiple use facility, or manufactured home rental community, including common areas, common facilities, and dwelling units.

(9) Multiple use facility--A commercial or industrial park, office complex, or marina with five or more units that are occupied primarily for nontransient use and are rented at intervals of one month or longer.

(10) Occupant--A tenant or other person authorized under a written agreement to occupy a dwelling.

(11) Overcharge--The amount, if any, a tenant is charged for submetered or nonsubmetered master metered utility service to the tenant's dwelling unit after a violation occurred relating to the assessment of a portion of utility costs in excess of the amount the tenant would have been charged under this subchapter. Overcharge and Overbilling have the same meaning.

(12) Owner--The legal titleholder of an apartment house, a manufactured home rental community, or a multiple use facility; and any individual, firm, or corporation expressly identified in the lease agreement as the landlord of tenants in the apartment house, manufactured home rental community, or multiple use facility. The term does not include the manager of an apartment house unless the manager is expressly identified as the landlord in the lease agreement.

(13) Point-of-use submeter--A device located in a plumbing system to measure the amount of water used at a specific point of use, fixture, or appliance, including a sink, toilet, bathtub, or clothes washer.

(14) Submetered utility service--Water utility service that is master metered for the owner by the retail public utility and individually metered by the owner at each dwelling unit; wastewater utility service based on

submetered water utility service; water utility service measured by point-of-use submeters when all of the water used in a dwelling unit is measured and totaled; or wastewater utility service based on total water use as measured by point-of-use submeters.

(15) Tenant--A person who owns or is entitled to occupy a dwelling unit or multiple use facility unit to the exclusion of others and, if rent is paid, who is obligated to pay for the occupancy under a written or oral rental agreement.

(16) Undercharge--The amount, if any, a tenant is charged for submetered or nonsubmetered master metered utility service to the tenant's dwelling unit less than the amount the tenant would have been charged under this subchapter. Undercharge and Underbilling have the same meaning.

(17) Utility costs--Any amount charged to the owner by a retail public utility for water or wastewater service. Utility Costs and Utility Service Costs have the same meaning.

(18) Utility service--For purposes of this subchapter, utility service includes only drinking water and wastewater.

§ 24.277. Owner Registration and Records

(a) Registration. An owner who intends to bill tenants for submetered or allocated utility service or who changes the method used to bill tenants for utility service shall register with the commission in a form prescribed by the commission.

(b) Water quantity measurement. Except as provided by subsections (c) and (d) of this section, a manager of a condominium or the owner of an apartment house, manufactured home rental community, or multiple use facility, on which construction began after January 1, 2003, shall provide for the measurement of the quantity of water, if any, consumed by the occupants of each unit through the installation of:

(1) submeters, owned by the property owner or manager, for each dwelling unit or rental unit; or

(2) individual meters, owned by the retail public utility, for each dwelling unit or rental unit.

(c) Plumbing system requirement. An owner of an apartment house on which construction began after January 1, 2003, and that provides government assisted or subsidized rental housing to low or very low income residents shall install a plumbing system in the apartment house that is compatible with the installation of submeters for the measurement of the quantity of water, if any, consumed by the occupants of each unit.

(d) Installation of individual meters. On the request by the property owner or manager, a retail public utility shall install individual meters owned by the utility in an apartment house, manufactured home rental community, multiple use facility, or condominium on which construction began after January 1, 2003, unless the retail public utility determines that installation of meters is not feasible. If the retail public utility determines that installation of meters is not feasible, the property owner or manager shall install a plumbing system that is compatible with the installation of submeters or individual meters. A retail public utility may charge reasonable costs to install individual meters.

(e) Records. The owner shall make the following records available for inspection by the tenant or the commission or commission staff at the on-site manager's office during normal business hours in accordance with subsection (g) of this section. The owner may require that the request by the tenant be in writing and include:

(1) a current and complete copy of TWC, Chapter 13, Subchapter M;

(2) a current and complete copy of this subchapter;

(3) a current copy of the retail public utility's rate structure applicable to the owner's bill;

(4) information or tips on how tenants can reduce water usage;

(5) the bills from the retail public utility to the owner;

(6) for allocated billing:

(A) the formula, occupancy factors, if any, and percentages used to calculate tenant bills;

(B) the total number of occupants or equivalent occupants if an equivalency factor is used under §24.281(c)(2) of this title (relating to Charges and Calculations); and

(C) the square footage of the tenant's dwelling unit or rental space and the total square footage of the apartment house, manufactured home rental community, or multiple use facility used for billing if dwelling unit size or rental space is used;

(7) for submetered billing:

- (A) the calculation of the average cost per gallon, liter, or cubic foot;
 - (B) if the unit of measure of the submeters or point-of-use submeters differs from the unit of measure of the master meter, a chart for converting the tenant's submeter measurement to that used by the retail public utility;
 - (C) all submeter readings; and
 - (D) all submeter test results;
 - (8) the total amount billed to all tenants each month;
 - (9) total revenues collected from the tenants each month to pay for water and wastewater service; and
 - (10) any other information necessary for a tenant to calculate and verify a water and wastewater bill.
- (f) Records retention. Each of the records required under subsection (e) of this section shall be maintained for the current year and the previous calendar year, except that all submeter test results shall be maintained until the submeter is permanently removed from service.
- (g) Availability of records.
- (1) If the records required under subsection (e) of this section are maintained at the on-site manager's office, the owner shall make the records available for inspection at the on-site manager's office within three days after receiving a written request.
 - (2) If the records required under subsection (e) of this section are not routinely maintained at the on-site manager's office, the owner shall provide copies of the records to the on-site manager within 15 days of receiving a written request from a tenant or the commission or commission staff.
 - (3) If there is no on-site manager, the owner shall make copies of the records available at the tenant's dwelling unit at a time agreed upon by the tenant within 30 days of the owner receiving a written request from the tenant.
 - (4) Copies of the records may be provided by mail if postmarked by midnight of the last day specified in paragraph (1), (2), or (3) of this subsection.

§ 24.279. Rental Agreement

- (a) Rental agreement content. The rental agreement between the owner and tenant shall clearly state in writing:
- (1) the tenant will be billed by the owner for submetered or allocated utility services, whichever is applicable;
 - (2) which utility services will be included in the bill issued by the owner;
 - (3) any disputes relating to the computation of the tenant's bill or the accuracy of any submetering device will be between the tenant and the owner;
 - (4) the average monthly bill for all dwelling units in the previous calendar year and the highest and lowest month's bills for that period;
 - (5) if not submetered, a clear description of the formula used to allocate utility services;
 - (6) information regarding billing such as meter reading dates, billing dates, and due dates;
 - (7) the period of time by which owner will repair leaks in the tenant's unit and in common areas, if common areas are not submetered;
 - (8) the tenant has the right to receive information from the owner to verify the utility bill; and
 - (9) for manufactured home rental communities and apartment houses, the service charge percentage permitted under §24.281(d)(3) of this title (relating to Charges and Calculations) that will be billed to tenants.
- (b) Requirement to provide rules. At the time a rental agreement is discussed, the owner shall provide a copy of this subchapter or a copy of the rules to the tenant to inform the tenant of his rights and the owner's responsibilities under this subchapter.
- (c) Tenant agreement to billing method changes. An owner shall not change the method by which a tenant is billed unless the tenant has agreed to the change by signing a lease or other written agreement. The owner shall provide notice of the proposed change at least 35 days prior to implementing the new method.
- (d) Change from submetered to allocated billing. An owner shall not change from submetered billing to allocated billing, except after receiving written approval from the commission after a demonstration of good cause and if the rental agreement requirements under subsections (a), (b), and (c) of this section have been met. Good cause may include:
- (1) equipment failures; or
 - (2) meter reading or billing problems that could not feasibly be corrected.

(e) Waiver of tenant rights prohibited. A rental agreement provision that purports to waive a tenant's rights or an owner's responsibilities under this subchapter is void.

§ 24.281. Charges and Calculations

- (a) Prohibited charges. Charges billed to tenants for submetered or allocated utility service may only include bills for water or wastewater from the retail public utility and must not include any fees billed to the owner by the retail public utility for any deposit, disconnect, reconnect, late payment, or other similar fees.
- (b) Dwelling unit base charge. If the retail public utility's rate structure includes a dwelling unit base charge, the owner shall bill each dwelling unit for the base charge applicable to that unit. The owner may not bill tenants for any dwelling unit base charges applicable to unoccupied dwelling units.
- (c) Customer service charge. If the retail public utility's rate structure includes a customer service charge, the owner shall bill each dwelling unit the amount of the customer service charge divided by the total number of dwelling units, including vacant units, that can receive service through the master meter serving the tenants.
- (d) Calculations for submetered utility service. The tenant's submetered charges must include the dwelling unit base charge and customer service charge, if applicable, and the gallonage charge and must be calculated each month as follows:
- (1) water utility service: the retail public utility's total monthly charges for water service (less dwelling unit base charges or customer service charges, if applicable), divided by the total monthly water consumption measured by the retail public utility to obtain an average water cost per gallon, liter, or cubic foot, multiplied by the tenant's monthly consumption or the volumetric rate charged by the retail public utility to the owner multiplied by the tenant's monthly water consumption;
 - (2) wastewater utility service: the retail public utility's total monthly charges for wastewater service (less dwelling unit base charges or customer service charges, if applicable), divided by the total monthly water consumption measured by the retail public utility, multiplied by the tenant's monthly consumption or the volumetric wastewater rate charged by the retail public utility to the owner multiplied by the tenant's monthly water consumption;
- (3) service charge for manufactured home rental community or the owner or manager of apartment house: a manufactured home rental community or apartment house may charge a service charge in an amount not to exceed 9% of the tenant's charge for submetered water and wastewater service, except when:
- (A) the resident resides in a unit of an apartment house that has received an allocation of low income housing tax credits under Texas Government Code, Chapter 2306, Subchapter DD; or
 - (B) the apartment resident receives tenant-based voucher assistance under United States Housing Act of 1937 Section 8, (42 United States Code, §1437f); and
- (4) final bill on move-out for submetered service: if a tenant moves out during a billing period, the owner may calculate a final bill for the tenant before the owner receives the bill for that period from the retail public utility. If the owner is billing using the average water or wastewater cost per gallon, liter, or cubic foot as described in paragraph (1) of this subsection, the owner may calculate the tenant's bill by calculating the tenant's average volumetric rate for the last three months and multiplying that average volumetric rate by the tenant's consumption for the billing period.
- (e) Calculations for allocated utility service.
- (1) Before an owner may allocate the retail public utility's master meter bill for water and sewer service to the tenants, the owner shall first deduct:
 - (A) dwelling unit base charges or customer service charge, if applicable; and
 - (B) common area usage such as installed landscape irrigation systems, pools, and laundry rooms, if any, as follows:
 - (i) if all common areas are separately metered or submetered, deduct the actual common area usage;
 - (ii) if common areas that are served through the master meter that provides water to the dwelling units are not separately metered or submetered and there is an installed landscape irrigation system, deduct at least 25% of the retail public utility's master meter bill;
 - (iii) if all water used for an installed landscape irrigation system is metered or submetered and there are other common areas such as pools or laundry rooms that are not metered or submetered, deduct at least 5% of the retail public utility's master meter bill; or
 - (iv) if common areas that are served through the master meter that provides water to the dwelling units are not separately metered or

submetered and there is no installed landscape irrigation system, deduct at least 5% of the retail public utility's master meter bill.

(2) To calculate a tenant's bill:

(A) for an apartment house, the owner shall multiply the amount established in paragraph (1) of this subsection by:

(i) the number of occupants in the tenant's dwelling unit divided by the total number of occupants in all dwelling units at the beginning of the month for which bills are being rendered; or

(ii) the number of occupants in the tenant's dwelling unit using a ratio occupancy formula divided by the total number of occupants in all dwelling units at the beginning of the retail public utility's billing period using the same ratio occupancy formula to determine the total. The ratio occupancy formula will reflect what the owner believes more accurately represents the water use in units that are occupied by multiple tenants. The ratio occupancy formula that is used must assign a fractional portion per tenant of no less than that on the following scale:

(I) dwelling unit with one occupant = 1;

(II) dwelling unit with two occupants = 1.6;

(III) dwelling unit with three occupants = 2.2; or

(IV) dwelling unit with more than three occupants = 2.2 + 0.4 per each additional occupant over three; or

(iii) the average number of occupants per bedroom, which shall be determined by the following occupancy formula. The formula must calculate the average number of occupants in all dwelling units based on the number of bedrooms in the dwelling unit according to the scale below, notwithstanding the actual number of occupants in each of the dwelling unit's bedrooms or all dwelling units:

(I) dwelling unit with an efficiency = 1;

(II) dwelling unit with one bedroom = 1.6;

(III) dwelling unit with two bedrooms = 2.8;

(IV) dwelling unit with three bedrooms = 4 + 1.2 for each additional bedroom; or

(iv) a factor using a combination of square footage and occupancy in which no more than 50% is based on square footage. The square footage portion must be based on the total square footage living area of the dwelling unit as a percentage of the total square footage living area of all dwelling units of the apartment house; or

(v) the individually submetered hot or cold water usage of the tenant's dwelling unit divided by all submetered hot or cold water usage in all dwelling units;

(B) a condominium manager shall multiply the amount established in paragraph (1) of this subsection by any of the factors under subparagraph (A) of this paragraph or may follow the methods outlined in the condominium contract;

(C) for a manufactured home rental community, the owner shall multiply the amount established in paragraph (1) of this subsection by:

(i) any of the factors developed under subparagraph (A) of this paragraph; or

(ii) the area of the individual rental space divided by the total area of all rental spaces; and

(D) for a multiple use facility, the owner shall multiply the amount established in paragraph (1) of this subsection by:

(i) any of the factors developed under subparagraph (A) of this paragraph; or

(ii) the square footage of the rental space divided by the total square footage of all rental spaces.

(3) If a tenant moves in or out during a billing period, the owner may calculate a bill for the tenant. If the tenant moves in during a billing period, the owner shall prorate the bill by calculating a bill as if the tenant were there for the whole month and then charging the tenant for only the number of days the tenant lived in the unit divided by the number of days in the month multiplied by the calculated bill. If a tenant moves out during a billing period before the owner receives the bill for that period from the retail public utility, the owner may calculate a final bill. The owner may calculate the tenant's bill by calculating the tenant's average bill for the last three months and multiplying that average bill by the number of days the tenant was in the unit divided by the number of days in that month.

(f) Conversion to approved allocation method. An owner using an allocation formula other than those approved in subsection (e) of this section shall immediately provide notice as required under §24.279(c) of this title (relating to Rental Agreement) and either:

(1) adopt one of the methods in subsection (e) of this section; or

(2) install submeters and begin billing on a submetered basis; or

(3) discontinue billing for utility services.

§ 24.283. Billing

(a) Monthly billing of total charges. The owner shall bill the tenant each month for the total charges calculated under §24.281 of this title (relating to Charges and Calculations). If it is permitted in the rental agreement, an occupant or occupants who are not residing in the rental unit for a period longer than 30 days may be excluded from the occupancy calculation and from paying a water and sewer bill for that period.

(b) Rendering bill.

(1) Allocated bills shall be rendered as promptly as possible after the owner receives the retail public utility bill.

(2) Submeter bills shall be rendered as promptly as possible after the owner receives the retail public utility bill or according to the time schedule in the rental agreement if the owner is billing using the retail public utility's rate.

(c) Submeter reading schedule. Submeters or point-of-use submeters shall be read within three days of the scheduled reading date of the retail public utility's master meter or according to the schedule in the rental agreement if the owner is billing using the retail public utility's rate.

(d) Billing period.

(1) Allocated bills shall be rendered for the same billing period as that of the retail public utility, generally monthly, unless service is provided for less than that period.

(2) Submeter bills shall be rendered for the same billing period as that of the retail public utility, generally monthly, unless service is provided for less than that period. If the owner uses the retail public utility's actual rate, the billing period may be an alternate billing period specified in the rental agreement.

(e) Multi-item bill. If issued on a multi-item bill, charges for submetered or allocated utility service must be separate and distinct from any other charges on the bill.

(f) Information on bill. The bill must clearly state that the utility service is submetered or allocated, as applicable, and must include all of the following:

(1) total amount due for submetered or allocated water;

(2) total amount due for submetered or allocated wastewater;

(3) total amount due for dwelling unit base charge(s) or customer service charge(s) or both, if applicable;

(4) total amount due for water or wastewater usage, if applicable;

(5) the name of the retail public utility and a statement that the bill is not from the retail public utility;

(6) name and address of the tenant to whom the bill is applicable;

(7) name of the firm rendering the bill and the name or title, address, and telephone number of the firm or person to be contacted in case of a billing dispute; and

(8) name, address, and telephone number of the party to whom payment is to be made.

(g) Information on submetered service. In addition to the information required in subsection (f) of this section, a bill for submetered service must include all of the following:

(1) the total number of gallons, liters, or cubic feet submetered or measured by point-of-use submeters;

(2) the cost per gallon, liter, or cubic foot for each service provided; and

(3) total amount due for a service charge charged by an owner of a manufactured home rental community, if applicable.

(h) Due date. The due date on the bill may not be less than 16 days after it is mailed or hand delivered to the tenant, unless the due date falls on a federal holiday or weekend, in which case the following work day will be the due date. The owner shall record the date the bill is mailed or hand delivered. A payment is delinquent if not received by the due date.

(i) Estimated bill. An estimated bill may be rendered if a master meter, submeter, or point-of-use submeter has been tampered with, cannot be read, or is out of order; and in such case, the bill must be distinctly marked as an estimate and the subsequent bill must reflect an adjustment for actual charges.

(j) Payment by tenant. Unless utility bills are paid to a third-party billing company on behalf of the owner, or unless clearly designated by the tenant, payment must be applied first to rent and then to utilities.

(k) Overbilling and underbilling. If a bill is issued and subsequently found to be in error, the owner shall calculate a billing adjustment. If the tenant is due a refund, an adjustment must be calculated for all of that tenant's bills that

Included overcharges. If the overbilling or underbilling affects all tenants, an adjustment must be calculated for all of the tenants' bills. If the tenant was undercharged, and the cause was not due to submeter or point-of-use submeter error, the owner may calculate an adjustment for bills issued in the previous six months. If the total undercharge is \$25 or more, the owner shall offer the tenant a deferred payment plan option, for the same length of time as that of the underbilling. Adjustments for usage by a previous tenant may not be back billed to a current tenant.

(l) Disputed bills. In the event of a dispute between a tenant and an owner regarding any bill, the owner shall investigate the matter and report the results of the investigation to the tenant in writing. The investigation and report must be completed within 30 days from the date the tenant gives written notification of the dispute to the owner.

(m) Late fee. A one-time penalty not to exceed 5% may be applied to delinquent accounts. If such a penalty is applied, the bill must indicate the amount due if the late penalty is incurred. No late penalty may be applied unless agreed to by the tenant in a written lease that states the percentage amount of such late penalty.

§ 24.285. Complaint Jurisdiction

(a) Jurisdiction. The commission has exclusive jurisdiction for violations under this subchapter.

(b) Complaints. If an apartment house owner, condominium manager, manufactured home rental community owner, or other multiple use facility owner violates a commission rule regarding utility costs, the person claiming the violation may file a complaint with the commission and may appear remotely for a hearing.

§ 24.287. Submeters or Point-of-Use Submeters and Plumbing Fixtures

(a) Submeters or point-of-use submeters.

(1) Same type submeters or point-of-use submeters required. All submeters or point-of-use submeters throughout a property must use the same unit of measurement, such as gallon, liter, or cubic foot.

(2) Installation by owner. The owner shall be responsible for providing, installing, and maintaining all submeters or point-of-use submeters necessary for the measurement of water to tenants and to common areas, if applicable.

(3) Submeter or point-of-use submeter tests prior to installation. No submeter or point-of-use submeter may be placed in service unless its accuracy has been established. If any submeter or point-of-use submeter is removed from service, it must be properly tested and calibrated before being placed in service again.

(4) Accuracy requirements for submeters and point-of-use submeters. Submeters must be calibrated as close as possible to the condition of zero error and within the accuracy standards established by the American Water Works Association (AWWA) for water meters. Point-of-use submeters must be calibrated as closely as possible to the condition of zero error and within the accuracy standards established by the American Society of Mechanical Engineers (ASME) for point-of-use and branch-water submetering systems.

(5) Location of submeters and point-of-use submeters. Submeters and point-of-use submeters must be installed in accordance with applicable plumbing codes and AWWA standards for water meters or ASME standards for point-of-use submeters, and must be readily accessible to the tenant and to the owner for testing and inspection where such activities will cause minimum interference and inconvenience to the tenant.

(6) Submeter and point-of-use submeter records. The owner shall maintain a record on each submeter or point-of-use submeter which includes:

- (A) an identifying number;
- (B) the installation date (and removal date, if applicable);
- (C) date(s) the submeter or point-of-use submeter was calibrated or tested;
- (D) copies of all tests; and
- (E) the current location of the submeter or point-of-use submeter.

(7) Submeter or point-of-use submeter test on request of tenant. Upon receiving a written request from the tenant, the owner shall either:

- (A) provide evidence, at no charge to the tenant, that the submeter or point-of-use submeter was calibrated or tested within the preceding 24 months and determined to be within the accuracy standards established by the AWWA for water meters or ASME standards for point-of-use submeters; or
- (B) have the submeter or point-of-use submeter removed and tested and promptly advise the tenant of the test results.

(8) Billing for submeter or point-of-use submeter test.

(A) The owner may not bill the tenant for testing costs if the submeter fails to meet AWWA accuracy standards for water meters or ASME standards for point-of-use submeters.

(B) The owner may not bill the tenant for testing costs if there is no evidence that the submeter or point-of-use submeter was calibrated or tested within the preceding 24 months.

(C) The owner may bill the tenant for actual testing costs (not to exceed \$25) if the submeter meets AWWA accuracy standards or the point-of-use submeter meets ASME accuracy standards and evidence as described in paragraph (7)(A) of this subsection was provided to the tenant.

(9) Bill adjustment due to submeter or point-of-use submeter error. If a submeter does not meet AWWA accuracy standards or a point-of-use submeter does not meet ASME accuracy standards and the tenant was overbilled, an adjusted bill must be rendered in accordance with §24.283(k) of this title (relating to Billing). The owner may not charge the tenant for any underbilling that occurred because the submeter or point-of-use submeter was in error.

(10) Submeter or point-of-use submeter testing facilities and equipment. For submeters, an owner shall comply with the AWWA's meter testing requirements. For point-of-use meters, an owner shall comply with ASME's meter testing requirements.

(b) Plumbing fixtures. After January 1, 2003, before an owner of an apartment house, manufactured home rental community, or multiple use facility or a manager of a condominium may implement a program to bill tenants for submetered or allocated water service, the owner or manager shall adhere to the following standards:

- (1) Texas Health and Safety Code, §372.002, for sink or lavatory faucets, faucet aerators, and showerheads;
- (2) perform a water leak audit of each dwelling unit or rental unit and each common area and repair any leaks found; and

(3) not later than the first anniversary of the date an owner of an apartment house, manufactured home rental community, or multiple use facility or a manager of a condominium begins to bill for submetered or allocated water service, the owner or manager shall:

- (A) remove any toilets that exceed a maximum flow of 3.5 gallons per flush; and
- (B) install toilets that meet the standards prescribed by Texas Health and Safety Code, §372.002.

(c) Plumbing fixture not applicable. Subsection (b) of this section does not apply to a manufactured home rental community owner who does not own the manufactured homes located on the property of the manufactured home rental community.

LEASE ADDENDUM FOR TRASH REMOVAL AND RECYCLING COSTS—FLAT FEE

1. **Addendum.** This is an addendum to the TAA Lease Contract for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowery at Southside Apartments in Fort Worth, Texas OR the house, duplex, etc. located at (street address) _____ in _____, Texas.

2. **Flat fee for trash/recycling costs.** Your monthly base rent under the TAA Lease Contract does not include a charge for trash removal. Instead, you will be receiving a separate bill from us for such service. You agree to pay a monthly fee of \$ 20.00 for the removal of trash and/or recycling for the apartment community, plus a nominal administrative fee of \$ _____ per month (not to exceed \$3) for processing and billing.

Your trash/recycling bill may include state and local sales taxes as required by state law.

3. **Payment due date.** Payment of your trash removal and recycling bill is due 16 days after the date it is postmarked or hand delivered to your apartment. We may include this item as a separate and distinct charge as part of a multi-item bill. You agree to mail or deliver payment to the place indicated on your bill so that payment is received no later than the due date. There will be a late charge of \$ _____ (not to exceed \$3) if we do not receive timely payment of your trash/recycling bill, but we are not obligated to accept late payment. If you are late in paying the trash removal/recycling bill, we may immediately exercise all lawful remedies under your lease contract, including eviction.

Kathryn
Signatures of All Residents

Kodi Walker
Signature of Owner or Owner's Representative

LEASE ADDENDUM FOR VALET TRASH

Addendum. This is an addendum to lease contract for Apt. No. 2145 in the The Bowery at Southside
Apartments, in Fort Worth,
TX.

This Lease Addendum for Valet Trash (this "Addendum") is made and entered into as of the date of the Lease Contract and between WMCI Dallas, X
LLC dba The Bowery at Southside (the "Owner") and
Kathryn M Copeland

(the "Resident", whether one or more) upon the terms and conditions stated herein.

The Lease Agreement, as written, is all inclusive and binding to the Landlord and the Tenant, with the exception of the following amendments and revisions:

1. Valet trash collection service will be provided for Tenant 5 nights per week, Sunday through Thursday for an additional monthly fee noted within your lease or subsequent renewal. The fee for valet trash collection is in addition to the monthly fee for regular trash. Note: Valet trash collection will not occur on designated holidays.
2. Each apartment will be provided with one container to be used for the purpose of valet trash collection. Only approved containers are allowed.
3. Tenant is responsible for placing the provided container containing bagged trash only outside the front door of the apartment no earlier than 5:00PM each evening for collection.
4. Trash collection service will begin at 7:00PM.
5. All trash must be bagged and tied securely. Pet waste must be double bagged. No broken glass or sharp objects are allowed in the container. Large items or bags weighing over 25 lbs are not permitted.
6. All bags must be placed inside the provided container. Trash will not be collected without the use of the provided container.
7. Loose trash will not be collected.
8. Boxes must be broken down and flattened.
9. If Tenant is unable to place container outside of the apartment on a designated service night, Tenant is responsible for disposing of trash in the community dumpster/trash compactor.
10. The container and/or trash may not be left outside the apartment for any reason other than pickup during the designated trash collection timeframe.
11. If a container remains outside of the apartment past 9:00AM on the morning following trash collection service, a \$25.00 fee will be assessed.
12. Tenant is required to keep the provided container clean.
13. The provided container is property of Landlord.
14. Tenant will be assessed a \$25.00 fee if an additional or replacement container is needed, or if the container is not left in the apartment when Tenant vacates.

If Tenant is found to be in violation of any of the above, Landlord will issue a warning to Tenant. If Tenant is found to be in violation a second time, the container may be removed and/or a \$25.00 fee will be assessed. In the event container is removed, it will be returned after any fees are paid. If Tenant is found to be in violation a third time, valet trash removal service will be terminated and disposing of trash in the provided dumpster/trash compactor will become the responsibility of the Tenant. Tenant will not receive any refund or rebate for valet trash removal charges.

Tenant acknowledges that valet trash is provided by a third-party provider and that changes to this addendum may occur due to a change of provider's service agreement with the owner, a change of the provider, or any other reason. Any changes to this agreement will be provided in writing at least 30 days in advance of enforcement.

Special Provisions: _____

The undersigned have read, understand and agree to comply with the terms of this Addendum.

Kathryn
Signature of All Residents

Kodi Walker
Signature of Owner or Owner's Representative
12/06/2024
Date of Lease Contract



Mold Information and Prevention Addendum

Please note: We want to maintain a high-quality living environment for our residents. To help achieve this goal, it is important that we work together to minimize any mold growth in your dwelling. This Addendum contains important information for you, and responsibilities for both you and us.

- 1. Addendum.** This is an addendum between the Residents and Owner as described in the Lease for the dwelling described below:

Unit # 2145

at WMCI Dallas, X LLC dba The Bowery at Southside

(name of apartments)

or other dwelling located at _____

(street address of house, duplex, etc.)

City/State/Zip where dwelling is located: _____

- 2. About Mold.** Mold is found everywhere in our environment, both indoors and outdoors and in both new and old structures. To avoid mold growth, it's important to **prevent excess moisture buildup** in your dwelling. Promptly notify us in writing about any air-conditioning or heating-system problems and any signs of water leaks, water infiltration or mold. We will respond in accordance with state law and the Lease to repair or remedy the situation.

If small areas of mold have already accumulated on nonporous surfaces (such as ceramic tile, formica, vinyl flooring, metal, wood, or plastic), **the Environmental Protection Agency recommends that you first clean the areas with soap** (or detergent) and water and let the surface dry thoroughly. When the surface is dry—and within 24 hours of cleaning—apply a premixed spray-on household biocide.

Do not clean or apply biocides to visible mold on porous surfaces such as sheetrock walls or ceilings or to large areas of visible mold on nonporous surfaces. Instead, notify us in writing and we will take appropriate action to comply with Section 92.051 et seq. of the Texas Property Code, subject to the special exceptions for natural disasters.

If you fail to comply with this addendum, you can be held responsible for property damage to the dwelling and any health problems that may result.

**This Addendum is part of your Lease.
You are legally bound by this document. Please read it carefully.**

Resident or Residents (all sign below)

Kathryn

(Name of Resident)

12/06/2024

Date signed

(Name of Resident)

Date signed

(Name of Resident)

Date signed

(Name of Resident)

Date signed

(Name of Resident)

Date signed

(Name of Resident)

Date signed

Owner or Owner's Representative (sign below)

Kodi Walker

12/07/2024

Date signed

You are entitled to receive a copy of this Addendum after it is fully signed. Keep it in a safe place.



Bed Bug Addendum

Please note: We want to maintain a high-quality living environment for you. It's important to work together to minimize the potential for bed bugs in your dwelling and others. This Addendum outlines your responsibility and potential liability when it comes to bed bugs.

- 1. Addendum.** This is an addendum between the Residents and Owner as described in the Lease for the dwelling described below:

Apt. # 2145 at WMCI Dallas, X LLC
dba The Bowery at Southside

(name of apartments)

or other dwelling located at _____

_____ (street address of house, duplex, etc.)

_____ (city)

_____ (state) _____ (zip).

- 2. Purpose.** This addendum modifies the Lease Contract to address any infestation of bed bugs (*Cimex lectularius*) that might be found in the dwelling or on your personal property. We will rely on representations that you make to us in this addendum.

- 3. Inspection and Infestations.** We are not aware of any current evidence of bed bugs or bed-bug infestation in the dwelling.

BY SIGNING THIS ADDENDUM, YOU REPRESENT THAT:

- YOU HAVE INSPECTED THE DWELLING BEFORE MOVING IN OR SIGNING THIS ADDENDUM, AND YOU DID NOT FIND ANY EVIDENCE OF BED BUGS OR BED-BUG INFESTATIONS, OR**

- YOU WILL INSPECT THE DWELLING WITHIN 48 HOURS AFTER MOVING IN OR SIGNING THIS ADDENDUM AND WILL NOTIFY US OF ANY BED BUGS OR BED-BUG INFESTATION.**

- 4. Access for Inspection and Pest Treatment.** You must allow us and our pest-control agents access to the dwelling at reasonable times to inspect for or treat bed bugs. We can also inspect and treat adjacent or neighboring dwellings to the infestation, even if those dwellings are not the source or cause of the known infestation. Simultaneously as we treat the dwelling, you must, at your expense, have your personal property, furniture, clothing, and possessions treated according to accepted treatment methods by a licensed pest-control firm that we approve. You agree not to treat the dwelling for a bed-bug infestation on your own.

- 5. Notification.** You must promptly notify us:

- of any known or suspected bed-bug infestation or presence in the dwelling, or in any of your clothing, furniture, or personal property;
- of any recurring or unexplained bites, stings, irritations, or sores on the skin or body that you believe are caused by bed bugs, or by any condition or pest you believe is in the dwelling; AND
- if you discover any condition or evidence that might indicate the presence or infestation of bed bugs, or if you receive any confirmation of bed-bug presence by a licensed pest-control professional or other authoritative source.

- 6. Cooperation.** If we confirm the presence or infestation of bed bugs, you must cooperate and coordinate with us and our pest-control agents to treat and eliminate them. You must follow all directions from us or our agents to clean and treat the dwelling and building that are infested. If you don't cooperate with us, you will be in default and we will have the right to terminate your right of occupancy and exercise all rights and remedies under the Lease.

- 7. Responsibilities.** You may be required to pay all reasonable costs of cleaning and pest-control treatments incurred by us to treat your dwelling unit for bed bugs. If we confirm the presence or infestation of bed bugs after you move out, you may be responsible for the cost of cleaning and pest control. If we have to move other residents in order to treat adjoining or neighboring dwellings to your dwelling unit, you may have to pay any lost rental income and other expenses we incur to relocate the neighboring residents and to clean and perform pest-control treatments to eradicate infestations in other dwellings. If you don't pay us for any costs you are liable for, you will be in default and we will have the right to terminate your right of occupancy and exercise all rights and remedies under the Lease, and we may take immediate possession of the dwelling. If you don't move out after your right of occupancy has been terminated, you will be liable for holdover rent under the Lease.

- 8. Transfers.** If we allow you to transfer to another dwelling in the community because of the presence of bed bugs, you must have your personal property and possessions treated according to accepted treatment methods or procedures established by a licensed pest-control professional. You must provide proof of such cleaning and treatment to our satisfaction.

This Addendum is part of your Lease.
You are legally bound by this document. Please read it carefully.

Resident or Residents (all sign below)

Owner or Owner's Representative (sign below)

Kathryn 12/06/2024
(Name of Resident) Date signed

(Name of Resident) Date signed

(Name of Resident) Date signed

(Name of Resident) Date signed

(Name of Resident) Date signed

(Name of Resident) Date signed

Kodi Walker 12/07/2024
Date signed

You are entitled to receive a copy of this Addendum after it is fully signed. Keep It in a safe place.

LEASE ADDENDUM FOR COMMUNICATION VIA TEXT

1. Addendum. This is an addendum to lease contract for Apt. No. 2145 in the The Bowery at Southside
Apartments, in Fort Worth, TX.

2. The Lease Agreement, as written, is all inclusive and binding to the Landlord and the Tenant(s) with the exception of the following amendments and/or revisions:

I/We understand and agree to the following:

By providing your mobile number and signing, this constitutes your signature to agree to receive recurring informational and marketing SMS/MMS text messages from Weinstein Management Co., Inc. and/or its affiliates or agents to the number you provided, including such messages sent through an automatic dialing system. Your consent is not a condition of purchasing any property, goods, or services. Depending on your mobile phone plan, standard messaging and data rates/fees or other charges may apply. You can opt out from receiving SMS/MMS text messages by responding STOP to any message you receive. If you opt out, you may receive one additional message confirming that your request has been processed.

The undersigned have read, understand, and will comply with this Agreement.

Kathryn

Signatures of All Residents

Kodi Walker

Signature of Owner or Owner's Representative

12/06/2024

Date of Lease Contract

ADDENDUM - PAYMENT OF SALES, EXCISE AND USE TAX

APARTMENT UNIT DESCRIPTION. Apt. No. 2145, 405 Crawford St Apt# 2145

 _____ (street address) in Fort Worth
 _____ (city), TX (state), 76104 (zip code).

LEASE CONTRACT DESCRIPTION. Lease Contract date: December 6, 2024
 Owner's name: WMCI Dallas, X LLC dba The Bowery at Southside

 Residents (list all residents): Kathryn M Copeland

Resident shall be responsible for payment of any applicable federal, state and local taxes, including any sales, excise or use taxes, assessed on any goods or services purchased, rented, leased or otherwise utilized by Resident at such rates as may be determined by federal, state, or local authorities from time to time.

Resident(s) (All residents must sign)	Date of Signing Addendum
<u>Kathryn</u>	<u>12/06/2024</u>
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

Owner or Owner's Representative	Date of Signing Addendum
<u>Kodi Walker</u>	<u>12/07/2024</u>
_____	_____

PACKAGE ADDENDUM

APARTMENT UNIT DESCRIPTION. Apt. No. 2145, 405 Crawford St Apt# 2145

 _____ (street address) in Fort Worth
 _____ (city), TX (state), 76104 (zip code).

LEASE CONTRACT DESCRIPTION. Lease Contract date: December 6, 2024
 Owner's name: WMCI Dallas, X LLC dba The Bowery at Southside

 Residents (list all residents): Kathryn M Copeland

The Lease Agreement, as written, is all inclusive and binding to the Landlord and the Tenant(s) with the exception of the following amendments and/or revisions:

I/We understand and agree to the following:

- We may refuse to accept any package on your behalf for any reason or no reason at all.
- As to any package for which we sign and/or receive on your behalf, you understand and agree that we have no duty to notify you of our receipt of such package, nor do we have any duty to maintain, protect, or deliver said package to you, nor do we have any duty to make said package available to you outside disclosed business hours. Any packages or personal property delivered to us or stored by us shall be at your sole risk, and you assume all risks whatsoever associated with any loss or damage to your packages and personal property.
- If available, carriers will deliver packages to a USPS Mail or Parcel Box, Package Locker, or designated Package Room. If required for delivery, you agree to create and maintain any applicable accounts required to use a Package Locker and/or Package Room. If you do not create and maintain the account, you are by default agreeing to make other arrangements for delivery of any packages intended for your address.
- If Package Boxes, Lockers, or Rooms are unavailable, carriers are instructed to deliver parcels directly to individual apartment home doors. Packages will not be accepted at the leasing office.
- For Packages not claimed from Package Lockers, Package Rooms, or other areas within 3 days we shall have the right to dispose of such items by discarding them, delivering them to the Resident's apartment, returning them to the shipper, or any other method selected at our sole discretion.
- We have the right to charge a fee to accept and/or store packages for any duration of time.

Continued on next page.

You, your guests, family, invitees, and agents hereby waive any and all claims against us or our agents of any nature regarding or relating to any package or item received by us, including but not limited to, claims for theft, misplacing or damaging any such package, except in the event of our or our agent's gross negligence or willful misconduct. You also agree to defend and indemnify us and our agents and hold us both harmless from any and all claims that may be brought by any third party relating to any injury sustained relating to or arising from any package that we received on your behalf. You also agree to indemnify us and our agents and hold us harmless from any damage caused to us or our agents by any package received by us for you. You also authorize us to throw away or otherwise dispose of any package that we, in our sole discretion, deem to be dangerous, noxious, or in the case of packaged food, spoiled, and waive any claim whatsoever resulting from such disposal.

Resident(s)

(All residents must sign)

Kathryn

Date of Signing Addendum

12/06/2024

Owner or Owner's Representative

Kodi Walker

Date of Signing Addendum

12/07/2024



CITY OF FORT WORTH TENANT AND LANDLORD INSPECTION FORM

PROPERTY ADDRESS 405 Crawford St Apt# 2145, Fort Worth, TX 76104APARTMENT ADDRESS 405 Crawford St Apt# 2145 #2145, Fort Worth, TX 76104DATE 12/06/2024TENANTS Kathryn M Copeland

 Print - Tenant's Name Performing the Inspection

The Bowery at Southside
 Print - Landlord's Name Performing the Inspection

Please list the names of all persons occupying the dwelling unit (other than overnight guests).

 The City of Fort Worth Code of Ordinances requires a "Tenant and Landlord Inspection" of each dwelling in a multifamily dwelling complex. The inspection of a dwelling unit shall be conducted by the landlord and the unit's tenant:

- 1) a minimum of once annually; and
- 2) when the occupancy of the dwelling changes.

THE TENANT MUST ANSWER THE FOLLOWING QUESTIONS BY CIRCLING EITHER YES OR NO.

- YES -- NO Has the Landlord installed a smoke detector in this residence?
 YES -- NO Did you check to make sure the smoke detector works?
 YES -- NO If battery operated, do you know the Tenant must replace smoke detector batteries?
 YES -- NO Do you know a portable barbecue or cooking appliance cannot be used on a balcony, walkway, landing or within ten (10) feet of a combustible building?
- YES -- NO Do all electrical outlets, switches or lighting fixtures operate properly?
 YES -- NO Have you seen exposed electrical wiring inside or outside the residence?
 YES -- NO Have you noticed sewage leaking from inside or outside of the residence?
 YES -- NO Have you noticed water leaking from inside or outside of the residence?
 YES -- NO Are any of the drains clogged?
 YES -- NO Have you noticed the odor of gas inside or outside of the residence?
 YES -- NO Where evidence of infestation exists, has the dwelling been exterminated within the last 30 days?
 YES -- NO Is there broken glass in the window or door frames?
 YES -- NO Do the windows and doors lock properly?
 YES -- NO Is there a door viewer (peephole) installed in each exterior door?
 YES -- NO Is there a keyless bolting device on exterior doors that doesn't require special knowledge or tools to open?
 YES -- NO If a sliding door is present, is it equipped with a pin lock?
 YES -- NO Is the building marked with contrasting property address numbers?
 YES -- NO Is the dwelling unit number marked at the entrance to the unit?
 YES -- NO Has the Landlord advised the tenant the appropriate way to report problems to the Landlord?
 YES -- NO In case of an emergency, does the tenant have an evacuation plan?
 Where is your meeting place? _____

 If the Tenant disagrees with any notation made by the Landlord, the Landlord shall permit the Tenant to make comments on the space below prior to signing it.

 The Tenant has been advised to contact the following named property employee, Resident Service Center at telephone number 682-269-2862, where this employee can be contacted during any twenty-four period, to respond to emergencies such as a fire, natural disaster, flood, collapse hazard, burst pipes or violent crime.

 The Tenant has been advised: TO REPORT UNRESOLVED VIOLATIONS OF CITY CODE MAINTENANCE STANDARDS FOR THESE PREMISES, CONTACT THE CODE COMPLIANCE DEPARTMENT AT 817-392-1234.

 We the Tenant and Landlord confirm, the above inspection report reasonably depicts the general condition of apartment address 405 Crawford St Apt# 2145 #2145, Fort Worth, TX 76104 on _____ (MM/DD/YYYY). The Landlord must provide a copy of this signed form to the tenant. The Landlord must maintain this form for a minimum of three (3) years, and make it available for examination by the Code Compliance Department.

 Tenant's Signature

 Landlord's Signature

E-SIGNATURE CERTIFICATE

This certificate details the actions recorded during the signing of this Document.

**DOCUMENT INFORMATION**

Status	Signed
Document ID	477404896
Submitted	12/07/24
Total Pages	35
Forms Included	Flood Disclosure Notice, Apartment Lease Form, Community Policies Addendum, Animal Addendum, Animal Addendum Special Provisions (Continued from Animal Addendum, Insurance Addendum, Personal Liability Insurance Addendum, Lease Addendum for Enclosed Garage, Carport or Storage Addendum, Fitness and Business Center Rules and Regulations, Lease Addendum for Access Control Devices, Lease Addendum Regarding Smoking, Satellite Dish or Antenna Addendum, Water/Wastewater Submetering Addendum, Lease Addendum for Trash Removal and Recycling Costs - Flat Fee, Valet Trash Addendum, Mold Information and Prevention Addendum, Bed Bug Addendum, Lease Addendum For Communication Via Text, Addendum - Payment of Sales, Excise and Use Tax, Package Addendum, Fort Worth Tenant and Landlord Inspection Form

PARTIES**Kathryn Copeland**

signer key: 9fd19e5f4e24e951e074856033b69166

IP address: 99.187.149.95

signing method: Blue Moon eSignature Services

authentication method: eSignature by email k.m.copeland@tcu.edu

browser: Mozilla/5.0 (Macintosh; Intel Mac OS X 10_15_7) AppleWebKit/537.36 (KHTML, like Gecko) Chrome/131.0.0.0 Safari/537.36

*Kathryn***Kodi Walker**

signer key: f87a2bc12390f64b99df74f0b28c5360

IP address: 108.82.248.235

signing method: Blue Moon eSignature Services

authentication method: eSignature by email theboweryoffice@weinsteinproperties.com

Kodi Walker

(Property Manager)

DOCUMENT AUDIT

1	12/06/24 04:10:57 PM CST	Kathryn Copeland accepted Consumer Disclosure
2	12/06/24 04:11:56 PM CST	Kathryn Copeland signed Flood Disclosure Notice
3	12/06/24 04:12:38 PM CST	Kathryn Copeland signed Apartment Lease Form
4	12/06/24 04:13:07 PM CST	Kathryn Copeland dated Apartment Lease Form
5	12/06/24 04:27:26 PM CST	Kathryn Copeland signed Community Policies Addendum
6	12/06/24 04:28:04 PM CST	Kathryn Copeland signed Animal Addendum
7	12/06/24 04:28:05 PM CST	Kathryn Copeland dated Animal Addendum
8	12/06/24 04:28:09 PM CST	Kathryn Copeland signed Animal Addendum Special Provisions (Continued from Animal Addendum)
9	12/06/24 04:28:17 PM CST	Kathryn Copeland signed Insurance Addendum
10	12/06/24 04:28:24 PM CST	Kathryn Copeland signed Personal Liability Insurance Addendum
11	12/06/24 04:30:17 PM CST	Kathryn Copeland signed Lease Addendum for Enclosed Garage, Carport or Storage Addendum
12	12/06/24 04:30:21 PM CST	Kathryn Copeland dated Fitness and Business Center Rules and Regulations

13	12/06/24 04:30:22 PM CST	Kathryn Copeland signed Fitness and Business Center Rules and Regulations
14	12/06/24 04:30:26 PM CST	Kathryn Copeland signed Lease Addendum for Access Control Devices
15	12/06/24 04:30:33 PM CST	Kathryn Copeland signed Lease Addendum Regarding Smoking
16	12/06/24 04:30:38 PM CST	Kathryn Copeland checked box on Lease Addendum Regarding Smoking
17	12/06/24 04:31:32 PM CST	Kathryn Copeland signed Satellite Dish or Antenna Addendum
18	12/06/24 04:31:46 PM CST	Kathryn Copeland signed Water/Wastewater Submetering Addendum
19	12/06/24 04:31:50 PM CST	Kathryn Copeland signed Lease Addendum for Trash Removal and Recycling Costs - Flat Fee
20	12/06/24 04:31:54 PM CST	Kathryn Copeland signed Valet Trash Addendum
21	12/06/24 04:31:59 PM CST	Kathryn Copeland signed Mold Information and Prevention Addendum
22	12/06/24 04:32:01 PM CST	Kathryn Copeland dated Mold Information and Prevention Addendum
23	12/06/24 04:32:05 PM CST	Kathryn Copeland signed Bed Bug Addendum
24	12/06/24 04:32:06 PM CST	Kathryn Copeland dated Bed Bug Addendum
25	12/06/24 04:32:11 PM CST	Kathryn Copeland signed Lease Addendum For Communication Via Text
26	12/06/24 04:32:15 PM CST	Kathryn Copeland signed Addendum - Payment of Sales, Excise and Use Tax
27	12/06/24 04:32:16 PM CST	Kathryn Copeland dated Addendum - Payment of Sales, Excise and Use Tax
28	12/06/24 04:32:19 PM CST	Kathryn Copeland signed Package Addendum
29	12/06/24 04:32:22 PM CST	Kathryn Copeland dated Package Addendum
30	12/06/24 04:32:26 PM CST	Kathryn Copeland signed Fort Worth Tenant and Landlord Inspection Form
31	12/06/24 04:32:37 PM CST	Kathryn Copeland submitted signed documents
32	12/07/24 09:16:21 AM CST	Kodi Walker accepted Consumer Disclosure
33	12/07/24 09:16:21 AM CST	Kodi Walker signed Flood Disclosure Notice
34	12/07/24 09:16:21 AM CST	Kodi Walker dated Flood Disclosure Notice
35	12/07/24 09:16:21 AM CST	Kodi Walker signed Apartment Lease Form
36	12/07/24 09:16:21 AM CST	Kodi Walker signed Community Policies Addendum
37	12/07/24 09:16:21 AM CST	Kodi Walker signed Animal Addendum
38	12/07/24 09:16:21 AM CST	Kodi Walker dated Animal Addendum
39	12/07/24 09:16:21 AM CST	Kodi Walker signed Animal Addendum Special Provisions (Continued from Animal Addendum
40	12/07/24 09:16:21 AM CST	Kodi Walker signed Insurance Addendum
41	12/07/24 09:16:21 AM CST	Kodi Walker dated Personal Liability Insurance Addendum
42	12/07/24 09:16:21 AM CST	Kodi Walker signed Personal Liability Insurance Addendum
43	12/07/24 09:16:21 AM CST	Kodi Walker signed Lease Addendum for Enclosed Garage, Carport or Storage Addendum
44	12/07/24 09:16:21 AM CST	Kodi Walker dated Lease Addendum for Enclosed Garage, Carport or Storage Addendum
45	12/07/24 09:16:21 AM CST	Kodi Walker signed Fitness and Business Center Rules and Regulations
46	12/07/24 09:16:21 AM CST	Kodi Walker signed Lease Addendum for Access Control Devices
47	12/07/24 09:16:21 AM CST	Kodi Walker signed Lease Addendum Regarding Smoking
48	12/07/24 09:16:21 AM CST	Kodi Walker signed Satellite Dish or Antenna Addendum
49	12/07/24 09:16:21 AM CST	Kodi Walker signed Water/Wastewater Submetering Addendum
50	12/07/24 09:16:21 AM CST	Kodi Walker signed Lease Addendum for Trash Removal and Recycling Costs - Flat Fee
51	12/07/24 09:16:21 AM CST	Kodi Walker signed Valet Trash Addendum
52	12/07/24 09:16:21 AM CST	Kodi Walker signed Mold Information and Prevention Addendum
53	12/07/24 09:16:21 AM CST	Kodi Walker dated Mold Information and Prevention Addendum
54	12/07/24 09:16:21 AM CST	Kodi Walker signed Bed Bug Addendum
55	12/07/24 09:16:21 AM CST	Kodi Walker dated Bed Bug Addendum
56	12/07/24 09:16:21 AM CST	Kodi Walker signed Lease Addendum For Communication Via Text
57	12/07/24 09:16:21 AM CST	Kodi Walker signed Addendum - Payment of Sales, Excise and Use Tax
58	12/07/24 09:16:21 AM CST	Kodi Walker dated Addendum - Payment of Sales, Excise and Use Tax
59	12/07/24 09:16:21 AM CST	Kodi Walker signed Package Addendum

DOCUMENT AUDIT CONTINUED

60	12/07/24 09:16:21 AM CST	Kodi Walker dated Package Addendum
61	12/07/24 09:16:21 AM CST	Kodi Walker signed Fort Worth Tenant and Landlord Inspection Form
62	12/07/24 09:16:21 AM CST	Kodi Walker submitted signed documents

FLOOD DISCLOSURE NOTICE

In accordance with Texas law, we are providing the following flood disclosure:

- We ☐ are or ☒ are not aware that the unit you are renting is located in a 100-year floodplain. If neither box is checked, you should assume the unit is in a 100-year floodplain. Even if the unit is not in a 100-year floodplain, the unit may still be susceptible to flooding. The Federal Emergency Management Agency (FEMA) maintains a flood map on its Internet website that is searchable by address, at no cost, to determine if a unit is located in a flood hazard area. Most renter's insurance policies do not cover damages or loss incurred in a flood. You should seek insurance coverage that would cover losses caused by a flood.
- We ☐ are or ☒ are not aware that the unit you are renting has flooded (per the statutory definition below) at least once within the last five years.

As defined in Texas Property Code 92.0135(a)(2), "flooding" means "a general or temporary condition of a partial or complete inundation of a dwelling caused by: (A) the overflow of inland or tidal waters; (B) the unusual and rapid accumulation of runoff or surface waters from any established water source such as a river, stream, or drainage ditch; or (C) excessive rainfall."

Signatures of All Residents

Signature of Owner or Owner's Representative

Kathryn Copeland

Date



Apartment Lease Contract

This is a binding contract. Read carefully before signing.

This Lease Contract ("Lease") is between you, the resident(s) as listed below and us. The terms "you" and "your" refer to all residents. The terms "we," "us," and "our" refer to the owner listed below.

PARTIES

Residents Kathryn M Copeland

Owner WMCI Dallas, X LLC dba The Bowery
at Southside

Occupants Quinn Copeland, Penelope
Copeland

LEASE DETAILS

A. Apartment (Par. 2) Street Address: <u>405 Crawford St Apt# 2145</u> Apartment No. <u>2145</u> City: <u>Fort Worth</u> State: <u>TX</u> Zip: <u>76104</u>		
B. Initial Lease Term. Begins: <u>10/21/2023</u> Ends at 11:59 p.m. on: <u>12/22/2024</u>		
C. Monthly Base Rent (Par. 3) \$ <u>2214.00</u>	E. Security Deposit (Par. 5) \$ <u>200.00</u> <i>Note that this amount does not include any Animal Deposit, which would be reflected in an Animal Addendum.</i>	F. Notice of Termination or Intent to Move Out (Par. 4) A minimum of <u>60</u> days' written notice of termination or intent to move out required at end of Initial Lease term or during renewal period <i>If the number of days isn't filled in, notice of at least 30 days is required.</i>
D. Prorated Rent \$ <u>804.42</u> ☒ due for the remainder of 1st month or ☐ for 2nd month		
G. Late Fees (Par. 3.3) Initial Late Fee ☒ <u>10</u> % of one month's monthly base rent or ☐ \$ _____ Due if rent unpaid by 11:59 p.m. on the <u>5th</u> (3rd or greater) day of the month Daily Late Fee ☐ _____ % of one month's monthly base rent for _____ days or ☐ \$ _____ for _____ days		
H. Returned Check or Rejected Payment Fee (Par. 3.4) \$ <u>75.00</u>	J. Optional Early Termination Fee (Par. 7.2) \$ _____ Notice of _____ days is required. <i>You are not eligible for early termination if you are in default.</i> Fee must be paid no later than <u>3</u> days after you give us notice. <i>If values are blank or "0," then this section does not apply.</i>	K. Animal Violation Charge (Par. 12.2) Initial charge of \$ <u>100.00</u> per animal (not to exceed \$100 per animal) and A daily charge of \$ <u>10.00</u> per animal (not to exceed \$10 per day per animal)
I. Relatting Charge (Par. 7.1) A reletting charge of \$ <u>1926.95</u> (not to exceed 85% of the highest monthly Rent during the Lease term) may be charged in certain default situations		
L. Additional Rent - Monthly Recurring Fixed Charges. You will pay separately for these items as outlined below and/or in separate addenda, Special Provisions or an amendment to this Lease.		
Animal rent \$ <u>30.00</u> Internet \$ _____ Storage \$ _____ Other: _____ Other: _____ Other: _____ Other: _____	Cable/satellite \$ _____ Package service \$ _____ Stormwater/drainage \$ _____	Trash service \$ <u>20.00</u> Pest control \$ <u>3.00</u> Washer/Dryer \$ _____ _____ \$ _____ _____ \$ _____ _____ \$ _____ _____ \$ _____
M. Utilities and Other Variable Charges. You will pay separately for gas, water, wastewater, electricity, trash/recycling, utility billing fees and other items as outlined in separate addenda, Special Provisions or an amendment to this Lease.		
Utility Connection Charge or Transfer Fee: \$ <u>50.00</u> (not to exceed \$50) to be paid within 5 days of written notice (Par. 3.5)		
Special Provisions. See Par. 32 or additional addenda attached. The Lease cannot be changed unless in writing and signed by you and us.		

LEASE TERMS AND CONDITIONS

1. **Definitions.** The following terms are commonly used in this Lease:
 - 1.1. **"Residents"** are those listed in "Residents" above who sign the Lease and are authorized to live in the apartment.
 - 1.2. **"Occupants"** are those listed in this Lease who are also authorized to live in the apartment, but who do not sign the Lease.
 - 1.3. **"Owner"** may be identified by an assumed name and is the owner only and not property managers or anyone else.
 - 1.4. **"Including"** in this Lease means "including but not limited to."
 - 1.5. **"Community Policies"** are the written apartment rules and policies, including property signage and instructions for care of our property and amenities, with which you, your occupants, and your guests must comply.
 - 1.6. **"Rent"** is monthly base rent plus additional monthly recurring fixed charges.
2. **Apartment.** You are leasing the apartment listed above for use as a private residence only.
 - 2.1. **Access.** In accordance with our Community Policies, you'll receive access information or devices for your apartment and mailbox, and other access devices including: Gate Remote
 - 2.2. **Measurements.** Any dimensions and sizes provided to you relating to the apartment are only approximations or estimates; actual dimensions and sizes may vary.
 - 2.3. **Representations.** You agree that designations or accreditations associated with the property are subject to change.
3. **Rent. You must pay your Rent on or before the 1st day of each month (due date) without demand. There are no exceptions regarding the payment of Rent, and you agree not paying Rent on or before the 1st of each month is a material breach of this Lease.**
 - 3.1. **Payments.** You will pay your Rent by any method, manner and place we specify in accordance with our Community Policies. **Cash is not acceptable without our prior written permission. You cannot withhold or offset Rent unless authorized by law.** We may, at our option, require at any time that you pay Rent and other sums due in one single payment by any method we specify.
 - 3.2. **Application of Payments.** Payment of each sum due is an independent covenant, which means payments are due regardless of our performance. When we receive money, other than water and wastewater payments subject to government regulation, we may apply it at our option and without notice first to any of your unpaid obligations, then to accrued rent. We may do so regardless of notations on checks or money orders and regardless of when the obligations arose. All sums other than Rent and late fees are due upon our demand. After the due date, we do not have to accept any payments.
 - 3.3. **Late Fees.** If we don't receive your monthly base rent in full when it's due, you must pay late fees as outlined in Lease Details.
 - 3.4. **Returned Payment Fee.** You'll pay the fee listed in Lease Details for each returned check or rejected electronic payment, plus initial and daily late fees if applicable, until we receive full payment in an acceptable method.
 - 3.5. **Utilities and Services.** You'll pay for all utilities and services, related deposits, and any charges or fees when they are due and as outlined in this Lease. Television channels that are provided may be changed during the Lease term if the change applies to all residents.
If your electricity is interrupted, you must use only battery-operated lighting (no flames). You must not allow any utilities (other than cable or Internet) to be cut off or switched for any reason—including disconnection for not paying your bills—until the Lease term or renewal period ends. If a utility is individually metered, it must be connected in your name and you must notify the provider of your move-out date. If you delay getting service turned on in your name by the Lease's start date or cause it to be transferred back into our name before you surrender or abandon the apartment, you'll be liable for the charge listed above (not to exceed \$50 per billing period), plus the actual or estimated cost of the utilities used while the utility should have been billed to you. If your apartment is individually metered and you change your retail electric provider, you must give us written notice. You must pay all applicable provider fees, including any fees to change service back into our name after you move out.
 - 3.6. **Lease Changes.** Lease changes are only allowed during the Lease term or renewal period if governed by Par. 10, specified in Special Provisions in Par. 32, or by a written addendum or amendment signed by you and us. At or after the end of the initial Lease term, Rent increases will become effective with at least 5 days plus the number of days' advance notice contained in Box F on page 1 in writing from us to you. Your new Lease, which may include increased Rent or Lease changes, will begin on the date stated in any advance notice we provide (without needing your signature) unless you give us written move-out notice under Par. 25, which applies only to the end of the current Lease term or renewal period.
4. **Automatic Lease Renewal and Notice of Termination.** This Lease will automatically renew month-to-month unless either party gives written notice of termination or intent to move out as required by Par. 25 and specified on page 1. ***If the number of days isn't filled in, notice of at least 30 days is required.***
5. **Security Deposit.** The total security deposit for all residents is due on or before the date this Lease is signed. Any animal deposit will be designated in an animal addendum. Security deposits may not be applied to Rent without our prior written consent.
 - 5.1. **Refunds and Deductions. You must give us your advance notice of move out as provided by Par. 25 and forwarding address in writing to receive a written description and itemized list of charges or refund. In accordance with our Community Policies and as allowed by law, we may deduct from your security deposit any amounts due under the Lease. If you move out early or in response to a notice to vacate, you'll be liable for rekeying charges.** Upon receipt of your move-out date and forwarding address in writing, the security deposit will be returned (less lawful deductions) with an itemized accounting of any deductions, no later than 30 days after surrender or abandonment, unless laws provide otherwise. Any refund may be by one payment jointly payable to all residents and distributed to any one resident we choose, or distributed equally among all residents.
6. **Insurance. Our insurance doesn't cover the loss of or damage to your personal property.** You will be required to have liability insurance as specified in our Community Policies or Lease addenda unless otherwise prohibited by law. If you have insurance covering the apartment or your personal belongings at the time you or we suffer or allege a loss, you agree to require your insurance carrier to waive any insurance subrogation rights. Even if not required, we urge you to obtain your own insurance for losses due to theft, fire, flood, water, pipe leaks and similar occurrences. Most renter's insurance policies don't cover losses due to a flood.
7. **Reletting and Early Lease Termination.** This Lease may not be terminated early except as provided in this Lease.
 - 7.1. **Reletting Charge.** You'll be liable for a reletting charge as listed in Lease Details, (not to exceed 85% of the highest monthly Rent during the Lease term) if you: (A) fail to move in, or fail to give written move-out notice as required in Par. 25; (B) move out without paying Rent in full for the entire Lease term or renewal period; (C) move out at our demand because of your default; or (D) are judicially evicted. The reletting charge is not a termination, cancellation or buyout fee and does not release you from your obligations under this Lease, including liability for future or past-due Rent, charges for damages or other sums due.
The reletting charge is a liquidated amount covering only part of our damages—for our time, effort, and expense in finding and processing a replacement resident. These damages are uncertain and hard to ascertain—particularly those relating to inconvenience, paperwork, advertising, showing apartments, utilities for showing, checking prospects, overhead, marketing costs, and locator-service fees. You agree that the reletting charge is a reasonable estimate of our damages and that the charge is due whether or not our reletting attempts succeed.
 - 7.2. **Early Lease Termination Procedures.** In addition to your termination rights referred to in 7.3 or 8.1 below, if this provision applies under Lease Details, you may terminate the Lease prior to the end of the Lease term ***if all of the following occur:*** (a) as outlined in Lease Details, you give us written notice of early termination, pay the early termination fee and specify the date by which you'll move out; (b) you are not in default at any time and do not hold over; and (c) you repay all rent concessions, credits or discounts you received during the Lease term. If you are in default, the Lease remedies apply.
 - 7.3. **Special Termination Rights. You may have the right under Texas law to terminate the Lease early in certain situations involving military deployment or transfer, family violence, certain sexual offenses, stalking or death of a sole resident.**
8. **Delay of Occupancy.** We are not responsible for any delay of your occupancy caused by construction, repairs, cleaning, or a previous resident's holding over. This Lease will remain in force subject to (1) abatement of Rent on a daily basis during delay, **and** (2) your right to terminate the Lease in writing as set forth below. Rent abatement and Lease termination do not apply if the delay is for cleaning or repairs that don't prevent you from moving into the apartment.
 - 8.1. **Termination.** If we give written notice to you of a delay in occupancy when or after the Lease begins, you may terminate the Lease within 3 days after you receive written notice. If we give you written notice before the date the Lease begins and the notice states that a construction or other delay is expected and that the apartment will be ready for you to occupy on a specific date, you may terminate the Lease within 7 days after receiving written notice.
After proper termination, you are entitled only to refund of any deposit(s) and any Rent you paid.

9. **Care of Unit and Damages.** You must promptly pay or reimburse us for loss, damage, consequential damages, government fines or charges, or cost of repairs or service in the apartment community because of a Lease or Community Policies violation; improper use, negligence, or other conduct by you, your invitees, your occupants, or your guests; or, as allowed by law, any other cause not due to our negligence or fault, except for damages by acts of God to the extent they couldn't be mitigated by your action or inaction.

Unless damage or wastewater stoppage is due to our negligence, we're not liable for—and you must pay for—repairs and replacements occurring during the Lease term or renewal period, including: (A) damage from wastewater stoppages caused by improper objects in lines exclusively serving your apartment; (B) damage to doors, windows, or screens; and (C) damage from windows or doors left open.

RESIDENT LIFE

10. **Community Policies.** *Community Policies become part of the Lease and must be followed.* We may make changes, including additions, to our written Community Policies, and those changes can become effective immediately if the Community Policies are distributed and applicable to all units in the apartment community and do not change the dollar amounts in Lease Details.

- 10.1. **Photo/Video Release.** You give us permission to use any photograph, likeness, image or video taken of you while you are using property common areas or participating in any event sponsored by us.
- 10.2. **Disclosure of Information.** At our sole option, we may, but are not obligated to, share and use information related to this Lease for law-enforcement, governmental, or business purposes. At our request, you authorize any utility provider to give us information about pending or actual connections or disconnections of utility service to your apartment.
- 10.3. **Guests.** We may exclude from the apartment community any guests or others who, in our sole judgment, have been violating the law, violating this Lease or our Community Policies, or disturbing other residents, neighbors, visitors, or owner representatives. We may also exclude from any outside area or common area anyone who refuses to show photo identification or refuses to identify himself or herself as a resident, an authorized occupant, or a guest of a specific resident in the community.

Anyone not listed in this Lease cannot stay in the apartment for more than 7 days in one week without our prior written consent, and no more than twice that many days in any one month. If the previous space isn't filled in, 2 days total per week will be the limit.

- 10.4. **Notice of Convictions and Registration.** You must notify us within 15 days if you or any of your occupants: (A) are convicted of any felony, (B) are convicted of any misdemeanor involving a controlled substance, violence to another person, or destruction of property, or (C) register as a sex offender. Informing us of a criminal conviction or sex-offender registration doesn't waive any rights we may have against you.
- 10.5. **Odors and Noise.** You agree that odors, smoke and smells including those related to cooking and everyday noises or sounds are all a normal part of a multifamily living environment and that it is impractical for us to prevent them from penetrating your apartment.
11. **Conduct.** You agree to communicate and conduct yourself in a lawful, courteous and reasonable manner at all times when interacting with us, our representatives and other residents or occupants. Any acts of unlawful, discourteous or unreasonable communication or conduct by you, your occupants or guests is a breach of this Lease.
- You must use customary diligence in maintaining the apartment, keeping it in a sanitary condition and not damaging or littering the common areas. Trash must be disposed of at least weekly. You will use your apartment and all other areas, including any balconies, with reasonable care. We may regulate the use of passageways, patios, balconies, porches, and activities in common areas.
- 11.1. **Prohibited Conduct.** You, your occupants, and your guests will not engage in certain prohibited conduct, including the following activities:
- (a) criminal conduct; manufacturing, delivering, or possessing a controlled substance or drug paraphernalia; engaging in or threatening violence; possessing a weapon prohibited by state law; discharging a firearm in the apartment community; or, except when allowed by law, displaying or possessing a gun, knife, or other weapon in the common area, or in a way that may alarm others;
 - (b) behaving in a loud, obnoxious or dangerous manner;

- (c) disturbing or threatening the rights, comfort, health, safety, or convenience of others, including us, our agents, or our representatives;
- (d) disrupting our business operations;
- (e) storing anything in closets containing water heaters or gas appliances;
- (f) tampering with utilities or telecommunication equipment;
- (g) bringing hazardous materials into the apartment community;
- (h) using windows for entry or exit;
- (i) heating the apartment with gas-operated appliances;
- (j) making bad-faith or false allegations against us or our agents to others;
- (k) smoking of any kind, that is not in accordance with our Community Policies or Lease addenda;
- (l) using glass containers in or near pools; or
- (m) conducting any kind of business (including child-care services) in your apartment or in the apartment community—except for any lawful business conducted “at home” by computer, mail, or telephone if customers, clients, patients, employees or other business associates do not come to your apartment for business purposes.

12. **Animals.** *No living creatures of any kind are allowed, even temporarily, anywhere in the apartment or apartment community unless we've given written permission.* If we allow an animal, you must sign a separate Animal Addendum and, except as set forth in the addendum, pay an animal deposit and applicable fees and additional monthly rent, as applicable. An animal deposit is considered a general security deposit. You represent that any requests, statements and representations you make, including those for an assistance or support animal, are true, accurate and made in good faith. Feeding stray, feral or wild animals is a breach of this Lease.

- 12.1. **Removal of Unauthorized Animal.** We may remove an unauthorized animal by (1) leaving, in a conspicuous place in the apartment, a written notice of our intent to remove the animal within 24 hours; and (2) following the procedures of Par. 14. We may: keep or kennel the animal; turn the animal over to a humane society, local authority or rescue organization; or return the animal to you if we consent to your request to keep the animal and you have completed and signed an Animal Addendum and paid all fees. When keeping or kenneling an animal, we won't be liable for loss, harm, sickness, or death of the animal unless due to our negligence. You must pay for the animal's reasonable care and kenneling charges.

- 12.2. **Violations of Animal Policies and Charges.** If you or any guest or occupant violates the animal restrictions of this Lease or our Community Policies, you'll be subject to charges, damages, eviction, and other remedies provided in this Lease, including animal violation charges listed in Lease Details from the date the animal was brought into your apartment until it is removed. If an animal has been in the apartment at any time during your term of occupancy (with or without our consent), we'll charge you for all cleaning and repair costs, including defleaing, deodorizing, and shampooing. Initial and daily animal-violation charges and animal-removal charges are liquidated damages for our time, inconvenience, and overhead in enforcing animal restrictions and Community Policies.

13. **Parking.** You may not be guaranteed parking. We may regulate the time, manner, and place of parking of all motorized vehicles and other modes of transportation, including bicycles and scooters, in our Community Policies. In addition to other rights we have to tow or boot vehicles under state law, we also have the right to remove, at the expense of the vehicle owner or operator, any vehicle that is not in compliance with our Community Policies.

14. **When We May Enter.** If you or any other resident, guest or occupant is present, then repair or service persons, contractors, law officers, government representatives, lenders, appraisers, prospective residents or buyers, insurance agents, persons authorized to enter under your rental application, or our representatives may peacefully enter the apartment at reasonable times for reasonable business purposes. If nobody is in the apartment, then any such person may enter peacefully and at reasonable times (by breaking a window or other means when necessary) for reasonable business purposes if written notice of the entry is left in a conspicuous place in the apartment immediately after the entry. We are under no obligation to enter only when you are present, and we may, but are not obligated to, give prior notice or make appointments.

15. Requests, Repairs and Malfunctions.

15.1. Written Requests Required. *If you or any occupant needs to send a request—for example, for repairs, installations, services, ownership disclosure, or security-related matters—it must be written and delivered to our designated representative in accordance with our Community Policies* (except for fair-housing accommodation or modification requests or situations involving imminent danger or threats to health or safety, such as fire, smoke, gas, explosion, or crime in progress). Our written notes regarding your oral request do not constitute a written request from you. Our complying with or responding to any oral request doesn't waive the strict requirement for written notices under this Lease. A request for maintenance or repair by anyone residing in your apartment constitutes a request from all residents. *The time, manner, method and means of performing maintenance and repairs, including whether or which vendors to use, are within our sole discretion.*

15.2. Your Requirement to Notify. You must promptly notify us in writing of air conditioning or heating problems, water leaks or moisture, mold, electrical problems, malfunctioning lights, broken or missing locks or latches, or any other condition that poses a hazard or threat to property, health, or safety. Unless we instruct otherwise, you are required to keep the apartment cooled or heated according to our Community Policies. Air conditioning problems are normally not emergencies.

15.3. Utilities. We may change or install utility lines or equipment serving the apartment if the work is done reasonably without substantially increasing your utility costs. We may turn off equipment and interrupt utilities as needed to perform work or to avoid property damage or other emergencies. If utilities malfunction or are damaged by fire, water, or similar cause, you must notify our representative immediately.

15.4. Your Remedies. We'll act with customary diligence to make repairs and reconnections within a reasonable time, taking into consideration when casualty-insurance proceeds are received. Unless required by statute after a casualty loss, or during equipment repair, your Rent will not abate in whole or in part. "Reasonable time" accounts for the severity and nature of the problem and the reasonable availability of materials, labor, and utilities. *If we fail to timely repair a condition that materially affects the physical health or safety of an ordinary resident as required by the Texas Property Code, you may be entitled to exercise remedies under § 92.056 and § 92.0561 of the Texas Property Code, if you follow the procedures under those sections, the following remedies, among others, may be available to you: (1) termination of the Lease and an appropriate refund under § 92.056(f); (2) have the condition repaired or remedied according to § 92.0561; (3) deduct from the Rent the cost of the repair or remedy according to § 92.0561; and (4) judicial remedies according to § 92.0563.*

16. Our Right to Terminate for Apartment Community Damage or Closure. If, in our sole judgment, damages to the unit or building are significant or performance of needed repairs poses a danger to you, we may terminate this Lease and your right to possession by giving you at least 7 days' written notice. If termination occurs, you agree we'll refund only prorated rent and all deposits, minus lawful deductions. We may remove your personal property if, in our sole judgment, it causes a health or safety hazard or impedes our ability to make repairs.

16.1. Property Closure. We also have the right to terminate this Lease and your right to possession by giving you at least 30 days' written notice of termination if we are demolishing your apartment or closing it and it will no longer be used for residential purposes for at least 6 months, or if any part of the property becomes subject to an eminent domain proceeding.

17. Assignments and Subletting. You may not assign this Lease or sublet your apartment. You agree that you won't rent, offer to rent or license all or any part of your apartment to anyone else unless otherwise agreed to in advance by us in writing. You agree that you won't accept anything of value from anyone else for the use of any part of your apartment. You agree not to list any part of your apartment on any lodging or short-term rental website or with any person or service that advertises dwellings for rent.

18. Security and Safety Devices. We'll pay for missing security devices that are required by law. You'll pay for: (A) rekeying that you request (unless we failed to rekey after the previous resident moved out); and (B) repairs or replacements because of misuse or damage by you or your family, your occupants, or your guests. You must pay immediately after the work is done unless state law authorizes advance payment. You must also pay in advance for any additional or changed security devices you request.

Texas Property Code secs. 92.151, 92.153, and 92.154 require, with some exceptions, that we provide at no cost to you when occupancy begins: (A) a window latch on each window; (B) a doorviewer (peephole or window) on each exterior door; (C) a pin lock on each sliding door; (D) either a door-handle latch or a security bar on each sliding door; (E) a keyless bolting device (deadbolt) on each exterior door; and (F) either a keyed doorknob lock or a keyed deadbolt lock on one entry door. Keyed locks will be rekeyed after the prior resident moves out. The rekeying will be done either before you move in or within 7 days after you move in, as required by law. If we fail to install or rekey security devices as required by law, you have the right to do so and deduct the reasonable cost from your next Rent payment under Texas Property Code sec. 92.165(1). We may deactivate or not install keyless bolting devices on your doors if (A) you or an occupant in the dwelling is over 55 or disabled, and (B) the requirements of Texas Property Code sec. 92.153(e) or (f) are satisfied.

18.1. Smoke Alarms and Detection Devices. We'll furnish smoke alarms or other detection devices required by law or city ordinance. We may install additional detectors not so required. We'll test them and provide working batteries when you first take possession of your apartment. Upon request, we'll provide, as required by law, a smoke alarm capable of alerting a person with a hearing impairment.

You must pay for and replace batteries as needed, unless the law provides otherwise. We may replace dead or missing batteries at your expense, without prior notice to you. Neither you nor your guests or occupants may disable alarms or detectors. *If you damage or disable the smoke alarm or remove a battery without replacing it with a working battery, you may be liable to us under Texas Property Code sec. 92.2611 for \$100 plus one month's Rent, actual damages, and attorney's fees.*

18.2. Duty to Report. You must immediately report to us any missing, malfunctioning or defective security devices, smoke alarms or detectors. You'll be liable if you fail to report malfunctions, or fail to report any loss, damage, or fines resulting from fire, smoke, or water.

19. Resident Safety and Loss. *Unless otherwise required by law, none of us, our employees, agents, or management companies are liable to you, your guests or occupants for any damage, personal injury, loss to personal property, or loss of business or personal income, from any cause, including but not limited to: negligent or intentional acts of residents, occupants, or guests; theft, burglary, assault, vandalism or other crimes; fire, flood, water leaks, rain, hail, ice, snow, smoke, lightning, wind, explosions, interruption of utilities, pipe leaks or other occurrences unless such damage, injury or loss is caused exclusively by our negligence.*

We do not warrant security of any kind. You agree that you will not rely upon any security measures taken by us for personal security, and that you will call 911 and local law enforcement authorities if any security needs arise.

You acknowledge that we are not equipped or trained to provide personal security services to you, your guests or occupants. You recognize that we are not required to provide any private security services and that no security devices or measures on the property are fail-safe. You further acknowledge that, even if an alarm or gate amenities are provided, they are mechanical devices that can malfunction. Any charges resulting from the use of an intrusion alarm will be charged to you, including, but not limited to, any false alarms with police/fire/ambulance response or other required city charges.

20. Condition of the Premises and Alterations.

20.1. As-Is. We disclaim all implied warranties. You accept the apartment, fixtures, and furniture as is, except for conditions materially affecting the health or safety of ordinary persons. You'll be given an Inventory and Condition Form at or before move-in. You agree that after completion of the form or within 48 hours after move-in, whichever comes first, you must note on the form all defects or damage, sign the form, return it to us, and the form accurately reflects the condition of the premises for purposes of determining any refund due to you when you move out. Otherwise, everything will be considered to be in a clean, safe, and good working condition. You must still send a separate request for any repairs needed as provided by Par. 15.1.

20.2. Standards and Improvements. Unless authorized by law or by us in writing, you must not perform any repairs, painting, wallpapering, carpeting, electrical changes, or otherwise alter our property. No holes or stickers are allowed inside or outside the apartment. Unless our Community Policies state otherwise, we'll permit a reasonable number of small nail holes for hanging pictures on sheetrock walls and in grooves of wood-paneled walls. No water furniture, washing machines, dryers, extra phone or television outlets, alarm systems,

cameras, video or other doorbells, or lock changes, additions, or rekeying is permitted unless required by law or we've consented in writing. You may install a satellite dish or antenna, but only if you sign our satellite-dish or antenna lease addendum, which complies with reasonable restrictions allowed by federal law. You must not alter, damage, or remove our property, including alarm systems, detection devices, appliances, furniture, telephone and television wiring, screens, locks, or security devices. When you move in, we'll supply light bulbs for fixtures we furnish, including exterior fixtures operated from inside the apartment; after that, you'll replace them at your expense with bulbs of the same type and wattage. Your improvements to the apartment (made with or without our consent) become ours unless we agree otherwise in writing.

- 21. Notices.** Written notice to or from our employees, agents, or management companies constitutes notice to or from us. Notices to you or any other resident of the apartment constitute notice to all residents. Notices and requests from any resident constitute notice from all residents. Only residents can give notice of Lease termination and intent to move out under Par. 7.3. All notices and documents will be in English and, at our option, in any other language that you read or speak.

- 21.1. Electronic Notice.** Notice may be given electronically by us to you if allowed by law. If allowed by law and in accordance with our Community Policies, electronic notice from you to us must be sent to the email address and/or portal specified in Community Policies. Notice may also be given by phone call or to a physical address if allowed in our Community Policies.

You represent that you have provided your current email address to us, and that you will notify us in the event your email address changes.

EVICTIION AND REMEDIES

- 22. Liability.** Each resident is jointly and severally liable for all Lease obligations. If you or any guest or occupant violates the Lease or our Community Policies, all residents are considered to have violated the Lease.

- 22.1. Indemnification by You.** *You'll defend, indemnify and hold us and our employees, agents, and management company harmless from all liability arising from your conduct or requests to our representatives and from the conduct of or requests by your invitees, occupants or guests.*

- 23. Default by Resident.**

- 23.1. Acts of Default.** You'll be in default if: (A) you don't timely pay Rent, including monthly recurring charges, or other amounts you owe; (B) you or any guest or occupant violates this Lease, our Community Policies, or fire, safety, health, criminal or other laws, regardless of whether or where arrest or conviction occurs; (C) you give incorrect, incomplete, or false answers in a rental application or in this Lease; or (D) you or any occupant is charged, detained, convicted, or given deferred adjudication or pretrial diversion for (1) an offense involving actual or potential physical harm to a person, or involving the manufacture or delivery of a controlled substance, marijuana, or drug paraphernalia as defined in the Texas Controlled Substances Act, or (2) any sex-related crime, including a misdemeanor.
- 23.2. Eviction.** *If you default, including holding over, we may end your right of occupancy by giving you at least a 24-hour written notice to vacate.* Termination of your possession rights doesn't release you from liability for future Rent or other Lease obligations. *After giving notice to vacate or filing an eviction suit, we may still accept Rent or other sums due; the filing or acceptance doesn't waive or diminish our right of eviction or any other contractual or statutory right.* Accepting money at any time doesn't waive our right to damages, to past or future Rent or other sums, or to our continuing with eviction proceedings. In an eviction, Rent is owed for the full rental period and will not be prorated.
- 23.3. Acceleration.** Unless we elect not to accelerate Rent, all monthly Rent for the rest of the Lease term or renewal period will be accelerated automatically without notice or demand (before or after acceleration) and will be immediately due if, without our written consent: (A) you move out, remove property in preparing to move out, or you or any occupant gives oral or written notice of intent to move out before the Lease term or renewal period ends; and (B) you haven't paid all Rent for the entire Lease term or renewal period. Remaining Rent will also be accelerated if you're judicially evicted or move out when we demand because you've defaulted.

If you don't pay the first month's Rent when or before the Lease begins, all future Rent for the Lease term will be automatically accelerated without notice and become immediately due. We also may end your right of occupancy and recover damages, future Rent, attorney's fees, court costs, and other lawful charges.

- 23.4. Holdover.** You and all occupants must vacate and surrender the apartment by or before the date contained in: (1) your move-out notice (2) our notice to vacate, (3) our notice of non-renewal, or (4) a written agreement specifying a different move-out date. If a holdover occurs, then you'll be liable to us for all Rent for the full term of the previously signed lease of a new resident who can't occupy because of the holdover, and at our option, we may extend the Lease term and/or increase the Rent by 25% by delivering written notice to you or your apartment while you continue to hold over.
- 23.5. Other Remedies.** We may report unpaid amounts to credit agencies as allowed by law. If we or our debt collector tries to collect any money you owe us, you agree that we or the debt collector may contact you by any legal means. If you default, you will pay us, in addition to other sums due, any rental discounts or concessions agreed to in writing that have been applied to your account. We may recover attorney's fees in connection with enforcing our rights under this Lease. All unpaid amounts you owe bear interest at the rate provided by Texas Finance Code Section 304.003(c) from the due date. You must pay all collection-agency fees if you fail to pay sums due within 10 days after you are mailed a letter demanding payment and stating that collection-agency fees will be added if you don't pay all sums by that deadline. You are also liable for a charge (not to exceed \$150) to cover our time, cost and expense for any eviction proceeding against you, plus our attorney's fees and expenses, court costs, and filing fees actually paid.

- 24. Representatives' Authority and Waivers.** *Our representatives (including management personnel, employees, and agents) have no authority to waive, amend, or terminate this Lease or any part of it unless in writing and signed, and no authority to make promises, representations, or agreements that impose security duties or other obligations on us or our representatives, unless in writing and signed.* No action or omission by us will be considered a waiver of our rights or of any subsequent violation, default, or time or place of performance. *Our choice to enforce, not enforce or delay enforcement of written-notice requirements, rental due dates, acceleration, liens, or any other rights isn't a waiver under any circumstances.* Delay in demanding sums you owe is not a waiver. Except when notice or demand is required by law, you waive any notice and demand for performance from us if you default. Nothing in this Lease constitutes a waiver of our remedies for a breach under your prior lease that occurred before the Lease term begins. Your Lease is subordinate to existing and future recorded mortgages, unless the owner's lender chooses otherwise.

All remedies are cumulative. Exercising one remedy won't constitute an election or waiver of other remedies. All provisions regarding our nonliability or nonduty apply to our employees, agents, and management companies. No employee, agent, or management company is personally liable for any of our contractual, statutory, or other obligations merely by virtue of acting on our behalf.

END OF THE LEASE TERM

- 25. Move-Out Notice.** *Before moving out, you must give our representative advance written move-out notice as stated in Par. 4, even if the Lease has become a month-to-month lease.* The move-out date can't be changed unless we and you both agree in writing.

Your move-out notice must comply with each of the following:

- Unless we require more than 30 days' notice, if you give notice on the first day of the month you intend to move out, move out will be on the last day of that month.
- Your move-out notice must not terminate the Lease before the end of the Lease term or renewal period.
- If we require you to give us more than 30 days' written notice to move out before the end of the Lease term, we will give you 1 written reminder not less than 5 days nor more than 90 days before your deadline for giving us your written move-out notice. If we fail to give a reminder notice, 30 days' written notice to move out is required.
- You must get from us a written acknowledgment of your notice.

- 26. Move-Out Procedures.**

- 26.1. Cleaning.** You must thoroughly clean the apartment, including doors, windows, furniture, bathrooms, kitchen appliances, patios, balconies, garages, carports, and storage rooms. You must follow move-out cleaning instructions if they have been provided. If you don't clean adequately, you'll be liable for reasonable cleaning charges—including charges for cleaning carpets, draperies, furniture, walls, etc. that are soiled beyond normal wear (that is, wear or soiling that occurs without negligence, carelessness, accident, or abuse).

26.2. Move-Out Inspection. We may, but are not obligated to, provide a joint move-out inspection. Our representatives have no authority to bind or limit us regarding deductions for repairs, damages, or charges. Any statements or estimates by us or our representative are subject to our correction, modification, or disapproval before final accounting or refunding.

27. Surrender and Abandonment. You have **surrendered** the apartment when: (A) the move-out date has passed and no one is living in the apartment in our reasonable judgment; **or** (B) apartment keys and access devices listed in Par. 2.1 have been turned in to us—whichever happens first.

You have **abandoned** the apartment when all of the following have occurred: (A) everyone appears to have moved out in our reasonable judgment; (B) you've been in default for nonpayment of Rent for 5 consecutive days, or water, gas, or electric service for the apartment not connected in our name has been terminated or transferred; **and** (C) you've not responded for 2 days to our notice left on the inside of the main entry door stating that we consider the apartment abandoned. An apartment is also considered abandoned 10 days after the death of a sole resident.

27.1. The Ending of Your Rights. Surrender, abandonment, or judicial eviction ends your right of possession for all purposes and gives us the immediate right to clean up, make repairs in, and relet the apartment; determine any security-deposit deductions; and remove or store property left in the apartment.

27.2. Removal and Storage of Property. We, or law officers, may—but have no duty to—remove or store all property that in our sole judgment belongs to you and remains in the apartment or in common areas (including any vehicles you or any occupant or guest owns or uses) after you're judicially evicted or if you surrender or abandon the apartment.

We're not liable for casualty, loss, damage, or theft. You must pay reasonable charges for our packing, removing and storing any property.

Except for animals, we may throw away or give to a charitable organization all personal property that is:

- (1) left in the apartment after surrender or abandonment; **or**
- (2) left outside more than 1 hour after writ of possession is executed, following judicial eviction.

An animal removed after surrender, abandonment, or eviction may be kennelled or turned over to a local authority, humane society, or rescue organization.

GENERAL PROVISIONS AND SIGNATURES

28. TAA Membership. We, the management company representing us, or any locator service that you used confirms membership in good standing of both the Texas Apartment Association and the affiliated local apartment association for the area where the apartment is located at the time of signing this Lease. If not, the following applies: (A) this Lease is voidable at your option and is unenforceable by us (except for property damages); and (B) we may not recover past or future rent or other charges. The above remedies also apply if both of the following occur: (1) the Lease is automatically renewed on a month-to-month basis more than once after membership in TAA and the local association has lapsed; and (2) neither the owner nor the management company is a member of TAA and the local association during the third automatic renewal. A signed affidavit from the affiliated local apartment association attesting to nonmembership when the Lease or renewal was signed will be conclusive evidence of nonmembership. Governmental entities may use TAA forms if TAA agrees in writing.

Name, address and telephone number of locator service (if applicable):

29. Severability and Survivability. If any provision of this Lease is invalid or unenforceable under applicable law, it won't invalidate the remainder of the Lease or change the intent of the parties. **Paragraphs 10.1, 10.2, 16, 27 and 31 shall survive the termination of this Lease.** This Lease binds subsequent owners.

30. Controlling Law. Texas law governs this Lease. All litigation arising under this Lease and all Lease obligations must be brought in the county, and precinct if applicable, where the apartment is located.

31. Waivers. By signing this Lease, you agree to the following:

31.1. Class Action Waiver. You agree that you will not participate in any class action claims against us or our employees, agents, or management company. You must file any claim against us individually, and **you expressly waive your right to bring, represent, join or otherwise maintain a class action, collective action or similar proceeding against us in any forum.**

YOU UNDERSTAND THAT, WITHOUT THIS WAIVER, YOU COULD BE A PARTY IN A CLASS ACTION LAWSUIT. BY SIGNING THIS LEASE, YOU ACCEPT THIS WAIVER AND CHOOSE TO HAVE ANY CLAIMS DECIDED INDIVIDUALLY. THE PROVISIONS OF THIS PARAGRAPH SHALL SURVIVE THE TERMINATION OR EXPIRATION OF THIS LEASE.

31.2. Force Majeure. If we are prevented from completing substantial performance of any obligation under this Lease by occurrences that are beyond our control, including but not limited to, an act of God, strikes, epidemics, war, acts of terrorism, riots, flood, fire, hurricane, tornado, sabotage or governmental regulation, then we shall be excused from any further performance of obligations to the fullest extent allowed by law.

32. Special Provisions. The following, or attached Special Provisions and any addenda or Community Policies provided to you, are part of this Lease and supersede any conflicting provisions in this Lease.

The term 'Utility Connection Charge or Transfer Fee', as it relates to the "charge" in paragraph 3.5, means per utility, per billing cycle. The supplemental Resident Handbook that you agree to comply with is accessible electronically via the online Resident Portal. For "J. Optional Early Termination Fee" section, contact leasing office for fee/details.

Before submitting a rental application or signing this Lease, you should review the documents and may consult an attorney. You are bound by this Lease when it is signed. An electronic signature is binding. This Lease is the entire agreement between you and us. You are NOT relying on any oral representations.

Resident or Residents (all sign below)

Kathryn Copeland 10/18/2023
(Name of Resident) Date signed

(Name of Resident) Date signed

(Name of Resident) Date signed

(Name of Resident) Date signed

(Name of Resident) Date signed

(Name of Resident) Date signed

Owner or Owner's Representative (signing on behalf of owner)

COMMUNITY POLICIES ADDENDUM

1. **Addendum.** This is an addendum to the Lease between you and us for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowery at Southside

_____ Apartments in Fort Worth,
Texas OR

the house, duplex, etc. located at (street address) _____
in _____, Texas.

2. **Payments.** All payments for any amounts due under the Lease must be made:

☒ at the onsite manager's office
☒ through our online portal
☒ by mail to 220 E Broadway Ave, Fort Worth, TX 79104, or
☒ other: www.bowerysouthside.com

The following payment methods are accepted:

☒ electronic payment
☒ personal check
☒ cashier's check
☒ money order, or
☐ other: _____

We have the right to reject any payment not made in compliance with this paragraph.

3. **Security Deposit Deductions and Other Charges.** You'll be liable for the following charges, if applicable: unpaid rent; unpaid utilities; unreimbursed service charges; repairs or damages caused by negligence, carelessness, accident, or abuse, including stickers, scratches, tears, burns, stains, or unapproved holes; replacement cost of our property that was in or attached to the apartment and is missing; replacing dead or missing alarm or detection-device batteries at any time; utilities for repairs or cleaning; trips to let in company representatives to remove your telephone, Internet, television services, or rental items (if you so request or have moved out); trips to open the apartment when you or any guest or occupant is missing a key; unreturned keys; missing or burned-out light bulbs; removing or rekeying unauthorized security devices or alarm systems; packing, removing, or storing property removed or stored under the Lease; removing illegally parked vehicles; special trips for trash removal caused by parked vehicles blocking dumpsters; false security-alarm charges unless due to our negligence; animal-related charges outlined in the Lease; government fees or fines against us for violation (by you, your occupants, or your guests) of local ordinances relating to alarms and detection devices, false alarms, recycling, or other matters; late-payment and returned-check charges; and other sums due under this Lease. You'll be liable to us for charges for replacing any keys and access devices referenced in the Lease if you don't return them all on or before your actual move-out date; and accelerated rent if you've violated the Lease. ***We may also deduct from your security deposit our reasonable costs incurred in rekeying security devices required by law if you vacate the apartment in breach of this Lease.***

Upon receipt of your move-out date and forwarding address in writing, the security deposit will be returned (less lawful deductions) with an itemized accounting of any deductions, no later than 30 days after surrender or abandonment, unless laws provide otherwise. Any refund may be by one payment jointly payable to all residents and distributed to any one resident we choose or distributed equally among all residents.

4. **Requests, Consent, Access and Emergency Contact.** All written requests to us must be submitted by:

☒ online portal
☒ email to thebowery@weinsteinproperties.com
☒ hand delivery to our management office, or
☐ other: _____

From time to time, we may call or text residents with certain promotional or marketing messages that may be of interest. By signing this form and providing contact information, you are giving us your express written consent to contact you at the telephone number you provided for marketing or promotional purposes, even if the phone number you provided is on a corporate, state or national Do Not Call list. **To opt out of receiving these messages, please submit a written request to us by the method noted above.**

You agree to receive these messages from us through an automatic telephone dialing system, prerecorded/artificial voice messages, SMS or text messages, or any other data or voice transmission technology. Your agreement is not required as a condition of the purchase of any property, goods, or services from us.

Any resident, occupant, or spouse who, according to a remaining resident's affidavit, has permanently moved out or is under court order not to enter the apartment, is (at our option) no longer entitled to occupancy or access devices, unless authorized by court order.

After-hours phone number (833) 887-1948

(Always call 911 for police, fire, possible criminal activity or medical emergencies.)

5. **Parking.** We may have any unauthorized or illegally parked vehicles towed or booted according to state law at the owner or operator's expense at any time if the vehicle: (a) has a flat tire or is otherwise inoperable; (b) is on jacks, on blocks, or has a wheel missing; (c) takes up more than one parking space; (d) belongs to a resident or occupant who has surrendered or abandoned the apartment; (e) is in a handicapped space without the legally required handicapped insignia; (f) is in a space marked for office visitors, managers, or staff; (g) blocks another vehicle from exiting; (h) is in a fire lane or designated "no parking" area; (i) is in a space that requires a permit or is reserved for another resident or apartment; (j) is on the grass, sidewalk, or patio; (k) blocks a garbage truck from access to a dumpster; (l) has no current license or registration, and we have given you at least 10 days' notice that the vehicle will be towed if not removed; or (m) is not moved to allow parking lot maintenance.

6. **HVAC Operation.** If the exterior temperature drops below 32° F you must keep the heat on and set to a minimum of 50° F. You must also open all closets, cabinets, and doors under sinks to assist in keeping plumbing fixtures and plumbing pipes from freezing, and you must drip all the faucets in your apartment using both the hot and cold water. Leave the faucets dripping until the exterior temperature rises above 32° F. You must leave your HVAC system on, even if you leave for multiple days, and have it set to auto at all times.

7. **Amenities.** Your permission for use of all common areas, amenities, and recreational facilities (collectively "Amenities") located at the property is a license granted by us. This permission is expressly conditioned upon your compliance with the terms of the Lease, the Community Policies, and any signage posted in or around any of the Amenities. We have the right to set the days and hours of use for all Amenities and to change those or close any of the Amenities based upon our needs. We may make changes to the rules for the use of the Amenities at any time.

Neither we nor any of our agents, employees, management company, its agents, or its employees shall be liable for any damage or injury that results from the use of any Amenities by you, your invitees, your licensees, your occupants, or your guests. This release applies to any and all current, past or future claims or liability of any kind related to your decision to use the Amenities.

8. **Package Services.** We ☐ do or ☒ do not accept packages on behalf of residents.

If we DO accept packages, you give us permission to sign and accept any parcels or letters you receive through UPS, Federal Express, Airborne, United States Postal Service or other package delivery services. You agree that we are not liable or responsible for any lost, damaged or unordered deliveries and will hold us harmless.

9. **Fair Housing Policy.** We comply with applicable fair housing laws. In accordance with fair housing laws, we'll make reasonable accommodations to our rules, policies, practices or services and allow reasonable modifications to give disabled persons access to and use of the dwelling and common areas. We may require you to sign an addendum regarding the implementation of any accommodations or modifications, as well as your restoration obligations, if any. This fair housing policy does not expand or limit any rights and obligations under applicable law.

10. **Special Provisions.** The following special provisions control over conflicting provisions of this form:

The Supplemental Resident Handbook that you agree to comply with is accessible
electronically via the online resident portal.

Kathryn Copeland
 Signature of All Residents

 Signature of Owner or Owner's Representative



Animal Addendum

Please note: We consider animals a serious responsibility and a risk to each resident in the dwelling. If you do not properly control and care for an animal, you'll be liable if it causes damage or disturbs other residents.

1. Dwelling Unit.

Unit # 2145 at 405 Crawford St
 Apt# 2145
 (street address) in Fort Worth
 (city), Texas 76104 (zip code).

2. Lease.

Owner's name: WMCI Dallas, X LLC dba The
Bowery at Southside

Residents (list all residents): Kathryn M Copeland

3. Conditional Authorization for Animal.

You may keep the animal or animals described below in the dwelling until the Lease expires. We may terminate this authorization sooner if your right of occupancy is lawfully terminated or if in our judgment you, your animal, your guest, or any occupant violates any of the rules in this addendum.

4. Animal Deposit.

You must pay a one-time animal deposit of \$ 400.00 when you sign this addendum. This deposit is in addition to your total security deposit under the Lease, which is a general security deposit for all purposes. Refund of the total security deposit is subject to the terms and conditions in the Lease, and this animal-deposit portion of the total deposit is not separately refundable even if the animal is removed.

5. Assistance or Service Animals.

When allowed by applicable laws, we may require written verification of or make other inquiries regarding the disability-related need for an assistance or service animal for a person with a disability. We will not charge an animal deposit, additional rent, or other fee for any authorized assistance or service animal. Except as provided by applicable law, all other provisions of this addendum apply to assistance or service animals.

6. Search and Rescue Dogs.

We may ask the handler of a search and rescue dog for proof he or she is a person with a certification issued by a nationally recognized search and rescue agency before we authorize a search and rescue dog. If we authorize a search and rescue dog, we will not charge an animal deposit, additional rent or other fee for any such dog. Except as provided by applicable law, all other provisions of this addendum apply to search and rescue dogs.

7. Additional Monthly Rent.

Your monthly base rent (as stated in the Lease) will be increased by \$ 30.00.

8. Additional Fee.

You must also pay a one-time nonrefundable fee of \$ 500.00 to keep the animal in the dwelling unit. The fee is due when you sign this addendum.

9. Liability Not Limited.

The additional monthly rent and additional security deposit under this Animal Addendum do not limit residents' liability for property damage, cleaning, deodorization, defecating, re-placements, or personal injuries.

10. Description of Animal.

You may keep only the animal or animals described below. You may not substitute any other animal. Neither you nor your guests or occupants may bring any other animal—mammal, reptile, bird, amphibian, fish, rodent, arachnid, or insect—into the dwelling or apartment community.

Animal's name: Ruby
 Type: Dog
 Breed: Cavalier King Charles
 Color: Red & White
 Weight: 16lbs
 Age: _____
 City of license: _____

License #: _____
 Date of last rabies shot: _____
 Housebroken? Yes
 Animal owner's name: Kathryn Copeland
 Animal's name: Moon
 Type: Dog
 Breed: Cavalier King Charles
 Color: Black & White
 Weight: 13 lbs
 Age: _____
 City of license: _____
 License #: _____
 Date of last rabies shot: _____
 Housebroken? Yes
 Animal owner's name: Kathryn Copeland
 Animal's name: _____
 Type: _____
 Breed: _____
 Color: _____
 Weight: _____
 Age: _____
 City of license: _____
 License #: _____
 Date of last rabies shot: _____
 Housebroken? _____
 Animal owner's name: _____

11. Special Provisions.

The following special provisions control over any conflicting provisions of this addendum:

See additional addendum titled Animal
Addendum Special Provisions continued.

12. Emergency.

In an emergency involving an accident or injury to your animal, we have the right—but not the duty—to take the animal to the following veterinarian for treatment, at your expense.

Doctor: _____
 Address: _____
 City/State/Zip: _____
 Phone: (_____) _____

13. Animal Rules.

You are responsible for the animal's actions at all times. You agree to follow these rules:

13.1 Shots and Licenses.

The animal at all times must have current rabies shots and licenses required by law. You must show us evidence of the shots and licenses if we ask.

13.2 Disturbances.

The animal must not disturb the neighbors or other residents, regardless of whether the animal is inside or outside the dwelling.

13.3 Housebreaking, Cages, Offspring.

Dogs, cats, assistance or service animals, and search and rescue dogs must be housebroken. All other animals must be caged at all times. No animal offspring are allowed.

13.4 Indoor Waste Areas.

Inside, the animal may urinate or defecate only in these designated areas: litterbox

13.5 Outdoor Waste Areas.

Outside, the animal may urinate or defecate only in these designated areas: Must clean up after pet.

13.6 Tethering.

Animals may not be tied to any fixed object anywhere outside the dwelling units, except in fenced yards (if any) for your exclusive use.

- 13.7 Off-Limit Areas.** You must not let an animal—other than an assistance or service animal—into swimming-pool areas, laundry rooms, offices, clubrooms, other recreational facilities, or other dwelling units besides your own, except that search and rescue dogs shall be allowed to use areas of the property accessible to the general public, such as the leasing office. Certain service animals in training shall also be allowed to use those areas when accompanied by an approved trainer.
- 13.8 Food & Water.** Your animal must be fed and given water inside the dwelling unit. You may not leave animal food or water outside the dwelling unit at any time, except in fenced yards (if any) for your exclusive use.
- 13.9 Leash.** You must keep the animal on a leash and under your supervision when outside the dwelling or in any private fenced area. We or our representative may pick up unleashed animals, report them to the proper authorities, or do both. We'll charge you a reasonable fee for picking up and keeping unleashed animals.
- 13.10 Animal Waste.** Unless we have designated a particular area in your dwelling unit or on the grounds for animal defecation and urination, you are prohibited from letting an animal defecate or urinate anywhere on our property and you must take the animal off our property for that purpose. If we allow animal defecation inside the unit, you must ensure that it's done in a litter box with a kitty-litter-type mix. If the animal defecates anywhere on our property (including in a fenced yard for your exclusive use), you must immediately remove the waste and repair any damage. In addition to the terms of this addendum, you must comply with all local ordinances regarding animal defecation.
- 14. Additional Rules.** We may make reasonable changes to the animal rules from time to time if we distribute a written copy of any changes to every resident who is allowed to have animals.
- 15. Violation of Rules.** If you, your guest, or any occupant violates any rule or provision of this addendum (in our judgment) and we give you written notice of the violation, you must remove the animal immediately and permanently from the premises. We also have all other rights and remedies set forth in the Lease, including eviction and recovering damages and attorney's fees from you.
- 16. Complaints About Animal.** If we receive a reasonable complaint from a neighbor or other resident or if we, in our sole discretion, determine that the animal has disturbed neighbors or other residents, we will give you written notice and you must immediately and permanently remove the animal from the premises.
- 17. Our Removal of an Animal.** In some circumstances, we may enter the dwelling unit and remove the animal within one day after leaving a written notice in a conspicuous place.
- 17.1 Causes for Removal.** We can remove an animal under this paragraph if, in our sole judgment, you have:
- (A) abandoned the animal;
 - (B) left the animal in the dwelling unit for an extended period of time without food or water;
 - (C) failed to care for a sick animal;
 - (D) violated our animal rules; OR
 - (E) let the animal defecate or urinate where it's not allowed.
- 17.2 Removal Process.** To remove an animal, we must follow the procedures in the Lease, and we may turn the animal over to a humane society or local authority. We'll return the animal to you upon request if we haven't already turned it over to a humane society or local authority. We don't have a lien on the animal for any purpose, but you must pay for reasonable care and kenneling charges for the animal. If you don't pick up the animal within five days after we remove it, it will be considered abandoned.
- 18. Liability for Damage, Injuries, Cleaning.** Except for reasonable wear and tear resulting from an assistance or service animal, you and all co-residents are jointly and severally liable for the entire amount of any damage the animal causes, including cleaning, defecating, or deodorizing. This provision applies to all parts of the dwelling unit including carpets, doors, walls, drapes, wallpaper, windows, screens, furniture, and appliances, as well as landscaping and other outside improvements. If an item cannot be satisfactorily cleaned or repaired, you must pay for us to replace it. Payment for damage, repairs, cleaning, replacements, and the like are due immediately upon demand. As the owner, you're strictly liable for the entire amount of any injury that your animal causes to another person or to anyone's property. You indemnify us for all costs of litigation and attorney's fees resulting from any such injury or damage.
- 19. Move-Out.** Except for reasonable wear and tear resulting from an assistance or service animal, when you move out, you'll pay for defleaing, deodorizing, and shampooing to protect future residents from possible health hazards, regardless of how long the animal was there. We—not you—will arrange for these services.

20. Multiple Residents. Each resident who signed the Lease must also sign this addendum. You, your guests, and any occupants must follow all animal rules. Each resident is jointly and severally liable for damages and all other obligations set forth in this addendum, even if the resident does not own the animal.

21. Dog Park. We may provide an area to be used as a dog park. While using the park, you will be required to supervise your dog, but may remove the leash. Leashes must be used while travelling to and from the park. The park is not supervised or monitored in any way, and you use the park at your own risk. We are not liable for any injury, damage or loss which is caused as a result of any problem, defect or malfunction of the park. We are also not liable for injury, damage or loss to any person, animal or property caused by any other person or animal, including, but not limited to, dog bite, trespass, assault or any other crime. Furthermore, we are not liable for any disruption in the park's operation or performance. You hereby release us and our agents, contractors, employees and representatives from any liability connected with the park. You agree to be responsible for any property damage caused by you, your guests or other occupants to the park. You understand that participating in any activity at the park carries a risk of injury, and you are willing to assume this risk. We make no representations or warranties of any kind regarding the park.

22. General. You acknowledge that no other oral or written agreement exists regarding animals. Except for any special provisions noted in paragraph 11 above, our representative has no authority to modify this addendum or the animal rules except in writing as described under paragraph 14. This Animal Addendum and the animal rules are considered part of the Lease described above.

23. Animal Restrictions. No animal will be allowed that poses a threat to any other person. You represent that your animal(s) does not pose a danger or threat of any kind to any person or property; has not displayed vicious, aggressive or dangerous behavior; and has never before injured you or any other person or animal or caused any damage to your property or another person's property. You affirmatively represent and warrant that you have never had a claim or lawsuit filed against you or anyone else for an injury or damage caused by or related to the animal. You understand and agree that the approval of the animal to live in your apartment is expressly conditioned upon all of the foregoing being true and if you have made any misrepresentation it is a violation of the Lease.

You are legally bound by this document. Please read it carefully.

You are entitled to receive a copy of this Addendum after it is fully signed. Keep it in a safe place.

Resident or Residents (all sign below)

<u>Rethryn Copeland</u>	10/18/2023
(Name of Resident)	Date signed
_____	Date signed
(Name of Resident)	Date signed
_____	Date signed
(Name of Resident)	Date signed
_____	Date signed
(Name of Resident)	Date signed
_____	Date signed

Owner or Owner's Representative (sign below)

_____ Date signed

Animal Addendum

Special Provisions (continued from Animal Addendum)

Special Provisions (continued): The following special provisions control over any conflicting provisions of the Animal Addendum:

A maximum of three (3) animals is allowed per apartment, including caged/tanked animals. No farm animals or livestock are allowed. The following dog breeds are prohibited on the property: Chow, Rottweiler, Staffordshire Terrier, Pit Bull, Doberman Pinscher, certain Mastiff breeds and mixed breeds that contain any portion of the foregoing breeds. Dogs resembling a prohibited breed are also prohibited, regardless of veterinary records to the contrary. Landlord, in its sole discretion, may elect to prohibit additional breeds of animals not listed above. There is a 3-dog maximum in ground floor apartments and a 2-dog maximum in apartments located on other floors. Tenant will incur a fee of \$25.00/incident for not picking up pet waste. If Tenant repeatedly fails to pick up pet waste, Tenant may be subject to additional action, including without limitation a lease violation notice. The deposit referenced in paragraph 4 of the Animal Addendum, additional fee referenced in paragraph 8 of the Animal Addendum and pet rent referenced in paragraph 7 of the Animal Addendum shall be as follows based on the number of animals (excluding caged/tanked animals) in the table below. There are to be no visiting animals, for any period of time, unless (i) owner has granted advance written approval, (ii) Tenant complies with paragraph 12 of the Lease, (iii) Tenant has delivered a signed animal addendum to owner regarding the visiting pet, and Tenant pays a daily non-refundable fee of \$10 for each visiting pet. All visiting pets must abide by the Pet Rules and Restrictions listed in the Animal Addendum and Resident Handbook. If any animal visits for more than ten (10) days on an annual basis, the animal shall not be deemed a visiting animal and Tenant shall be required to pay the deposit, additional fee and monthly pet rent as set forth herein. Tenant(s) authorizes Agent to inspect the premises, after the visit end date to insure the pet has been removed. If tenant does not obtain prior written consent for a visiting pet, the pet will be treated as unregistered and subject to the terms in the paragraph related to Unregistered Pets. Caged/tanked animals are allowed but 1) must remain in their cage/tank. 2) cannot be venomous/poisonous; and fish tanks must be less than 30 gallons. 3) Type, breed and size restrictions apply. 4) require a \$100 deposit prior to bringing the animal(s) to the property (fish tanks less than 10 gallons; no deposit). Note: The \$100 deposit is for up to 3 caged/tanked animals; no more than three animals are allowed per apartment.

Number of animals	Deposit	Additional Fee	Monthly Pet Rent
1	\$200.00	\$300.00	\$15.00
2	\$400.00	\$500.00	\$30.00
3	\$600.00	\$700.00	\$45.00

Resident or Residents

[All residents must sign here]

Kathryn Copeland

Owner or Owner's Representative

[signs here]

Date of Lease Contract

10/17/2023

**LEASE ADDENDUM FOR
ENCLOSED GARAGE, CARPORT, OR STORAGE UNIT**

1. **Addendum.** This is an addendum to the lease between you and us for Apt. No. 2145 in the WMCi Dallas, X LLC dba The Bowery at Southside Apartments in Fort Worth, TX; OR the house, duplex, etc. located at (street address) in _____, TX.

2. **Garage, carport, or storage unit.** You are entitled to exclusive possession of: (check as applicable)
☐ garage or carport attached to the dwelling;
☐ garage space number(s): _____; \$ _____ /month; start date(s): _____
☒ carport space number(s): C-041; \$ 0.00 /month; start date(s): 10/21/2023 and/or
☐ storage unit number(s): _____; \$ _____ /month; start date(s): _____

The monthly rent in the Lease Contract does not cover both the dwelling and the checked area(s) above. All terms and conditions of the lease apply to the above areas unless modified by this addendum. Start date is the same as the lease start date unless indicated above.

3. **Use restrictions.** Garage or carport may be used only for storage of operable motor vehicles unless otherwise stated in our rules or community policies. Storage units may be used only for storage of personal property. No one may sleep, cook, barbeque, or live in a garage, carport, or storage unit. Persons not listed as a resident or occupant in the lease may not use the areas covered by this addendum. No plants may be grown in such areas. Additional Restrictions: _____
4. **No dangerous items.** In our sole judgment, items that pose an environmental hazard or a risk to the safety or health of other residents, occupants, or neighbors, or that violate any government regulation, may not be stored in the areas covered by this addendum. Prohibited items include fuel (other than in a properly capped fuel tank of a vehicle or a closed briquette lighter fluid container), fireworks, rags, piles of paper, or other material that may create a fire or environmental hazard. We may remove from such areas, without prior notice, items that we believe might constitute a fire or environmental hazard. Because of carbon monoxide risks, you may not run the motor of a vehicle inside a garage unless the garage door is open to allow fumes to escape.
5. **No smoke, fire, or carbon monoxide detectors.** No smoke, fire, or carbon monoxide detectors will be furnished by us unless required by law. We may choose to provide a detection device not required by law by separate addendum.
6. **Garage door opener.** If an enclosed garage is furnished, you ☒ will ☐ will not be provided with a ☒ garage door opener and/or ☐ garage key. You will be responsible for maintenance of any garage door opener, including battery replacement. Transmitter frequency settings may not be changed on the garage door or opener without our prior written consent. At the time of termination of the lease, the total number of garage door opener(s) and/or garage key(s) that you were assigned must be returned to us. Failure to return such opener and/or key will result in a charge of \$ 50.00, which will be deducted from your security deposit.
7. **Security.** We will not have any security responsibilities for areas covered by this addendum. Always remember to lock any door of a garage or storage unit and any door between a garage and the dwelling. When leaving, be sure to lock all keyed deadbolt locks.
8. **Insurance and loss/damage to your property.** Any area covered by this addendum is accepted by you "as is." You will maintain liability and comprehensive insurance coverage for any vehicle parked or stored. We will have no responsibility for loss or damage to vehicles or other property parked or stored in a garage, carport, or storage unit, whether caused by accident, fire, theft, water, vandalism, pests, mysterious disappearance, or otherwise. We are not responsible for pest control in such areas.
9. **Compliance.** We may periodically open and enter garages and storerooms to ensure compliance with this addendum. In that event, written notice of such opening and entry will be left inside the main entry door of your dwelling or inside the door between the garage and your dwelling.
10. **No lock changes, alterations, or improvements.** Without our prior written consent, locks on doors of garages and storage units may not be rekeyed, added, or changed, and improvements, alterations, or electrical extensions or changes to the interior or exterior of such areas are not allowed. You may not place nails, screws, bolts, or hooks into walls, ceilings, floors, or doors. Any damage not caused by us or our representatives to areas covered by this addendum will be paid for by you.
11. **Move-out and remedies.** Any items remaining after you have vacated the dwelling will be removed, sold, or otherwise disposed of according to Community Policies or the Lease Contract, which addresses disposition or sale of property left in an abandoned or surrendered dwelling. All remedies in the lease apply to areas covered by this addendum. Upon termination of the lease, your failure to return any garage door opener or other remote control device will result in a charge against you. A written 30-day notice to vacate is required for any carport, garage, or storage unit if you intend to vacate it prior to the end of the lease term for apartment Premises.

Resident or Residents
(All residents must sign)

Owner or Owner's Representative
(Signs below)

Kathryn Copeland

Date of Lease Contract

LEASE ADDENDUM FOR CONCESSION, CREDIT OR OTHER DISCOUNT

1. Addendum. This is an addendum to the TAA Lease Contract for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowery at Southside Apartments in Fort Worth, Texas OR the house, duplex, etc. located at (street address) _____ in _____, Texas.

2. Concession or discount. As an incentive and bonus to you for signing the TAA Lease Contract, choosing our property, and agreeing to fulfill your obligations for the entire term of the TAA Lease Contract, you will receive a concession, credit or discount described below. *[Check all that apply]*
☒ One-time concession. You will receive a one-time concession in the total amount of \$ 3321.00. This concession will be credited to your charges for the month(s) of November, 2023 and half of December 2023. (6 weeks free special).

☐ Monthly discount. You will receive a monthly discount of \$ _____ for _____ months.

Special Provisions: _____

3. Payment or repayment for breach. If you move out or terminate your TAA Lease Contract early, in violation of the TAA Lease Contract, you forfeit the concession or credit received under this addendum.

If you fail to pay all of your obligations under the TAA Lease Contract, then you will be required to immediately repay us the amounts of all concessions and/or discounts that you actually received from us for the months you resided in your dwelling, in addition to all other sums due under the TAA Lease Contract for unauthorized surrender or abandonment by the resident (see TAA Lease Contract Par. 27).

Kathryn Copeland
 Signatures of All Residents

 Signature of Owner or Owner's Representative

SPECIAL STIPULATIONS ADDENDUM
PREPAID RENT

This addendum is made to the Lease Agreement between Landlord, WEINSTEIN MANAGEMENT CO., INC., a Virginia corporation doing business as

The Bowery at Southside

and Tenant(s):

Kathryn M Copeland

For the property located at:

**405 Crawford St Apt# 2145, #2145
Fort Worth, TX 76104**

The Lease Agreement, as written, is all inclusive and binding to the Landlord and the Tenant(s), with the exception of the following amendments and/or revisions:

Tenant has agreed to pay prepaid rent in the amount of \$_____ before Tenant's move in date. Tenant's failure to deliver the prepaid rent before the move-in date shall constitute a default under the lease.

If so requested by Tenant, at the discretion of Agent this amount may be applied to the Tenant's monthly rent amount after the first 12 months of tenancy or the end of the first lease term, whichever is later. For this to be considered, the apartment must be deemed to be in acceptable condition (pending inspection by Agent), Tenant must have paid on-time for the past 12 months, had no lease violations and must have provided the Landlord with valid social security numbers for all leaseholders.

The undersigned have read, understand and agree to comply with the terms of this Addendum.

WEINSTEIN MANAGEMENT CO., INC.,
Managing Agent for Landlord

Date: _____

By _____

Date: 10/18/2023

Kathryn Copeland
Tenant (Head of Household)

Date: _____

Tenant (Spouse or Other)

Original To File Copy
To Tenant Copy to
Main Office

The terms of this addendum will control if the term of the Lease and this addendum conflict.

2. **Required Insurance Policy.** In accordance with the Lease, you understand and agree that this addendum requires Resident, at Resident's sole expense, to buy and maintain a liability insurance policy during the entire Lease term and any renewal periods that provides limits of liability to third parties in amount not less than \$ 100000.00 per occurrence. The liability insurance policy Resident buys and maintains must cover the actions or inactions of Resident and your occupants and guests, and be issued or underwritten by a carrier of your choice licensed to do business in Texas. The required insurance policy must identify the Owner Identified in the Lease (or another entity designated by Owner) as an "Interested Party" or "Party of Interest" that will be notified by the insurer of any cancellation, non-renewal, or material change in your coverage no later than 30 days after such action. You must provide us written proof of compliance with the Lease and this addendum on or prior to the Lease commencement date; and if you do not you will not be granted possession of the Premises. You must also provide us written proof of compliance within 7 days of our written request at any other time we request it.

3. **Acknowledgement.** You acknowledge that Owner does not acquire or maintain insurance for Resident's benefit or which is designed to insure you for personal injury, loss or damage to your personal property or belongings, or your own liability for injury, loss or damage that you (or your occupants or guests) may cause others. Any insurance policy that insures you for personal injury, loss or damage to your personal property or belongings, or provide you coverage for your own liability for injury, loss or damage that you (or your occupants or guests) may cause others must be bought and maintained solely by you. We do not and are not able to provide you with information on insurance coverage, rates, or terms and conditions. You should instead seek such information from a licensed insurance company, licensed insurance agent, other licensed insurance professional, or the Texas Department of Insurance. The Texas Department of Insurance website at www.tdi.texas.gov may contain useful consumer information regarding renter's insurance. You further acknowledge that we have made no referrals, guarantees, representations or promises whatsoever concerning any insurance or services provided by any insurance company. At all times you have been and remain free to contract for the required insurance with the insurance carrier of your choosing.

4. **Default.** You understand and agree that your failure to comply with either the requirements specified in the Lease, this addendum, or both is a material breach by you of the Lease and a default of the Lease for which Owner may sue you for eviction. If you fail to buy and maintain insurance as required by the Lease and this addendum, we may, in our sole discretion, agree to refrain from filing an eviction against you for your default for not having the appropriate insurance in place upon payment by you to Owner of \$ _____ (which you agree is not a liquidated damages amount and which sum shall only apply to each month (or part thereof) you remain in breach of this insurance addendum). Owner will agree to forego commencement of an eviction based upon non-compliance with this addendum for a one-month period, during which you shall come into compliance with this addendum. Our choice to accept money from you to forego pursuit of an eviction for one month does not require us to accept money from you or forego pursuit of our remedies under this paragraph for any subsequent months. The foregoing payments are due on the 1st day of the month following the calendar month (or part thereof) during which you do not have the required insurance, with no grace period. PAYMENT OF SAID AMOUNT DOES NOT RELIEVE YOU OF YOUR OBLIGATION TO BUY AND MAINTAIN INSURANCE AS SUMMARIZED IN PARAGRAPH 2 OF THIS ADDENDUM, DOES NOT CURE THE MATERIAL BREACH AND DEFAULT DESCRIBED IN THIS PARAGRAPH, IN WHOLE OR IN PART, AND DOES NOT RELIEVE YOU OF ANY OBLIGATION TO COMPENSATE US OR ANY OTHER PARTY INJURED OR DAMAGED BY THE ACTIONS OR INACTIONS OF RESIDENT OR YOUR OCCUPANTS OR GUESTS. You further understand that we will not buy an insurance policy for you or for your benefit, and that nothing in this Lease shall be considered an agreement by Owner to furnish you with any insurance coverage.

NOTICE TO RESIDENT: YOU SHOULD BE AWARE THAT THE REQUIRED INSURANCE POLICY UNDER THIS ADDENDUM DOES NOT PROTECT YOU AGAINST LOSS OR DAMAGE TO YOUR PERSONAL PROPERTY OR BELONGINGS. YOU ARE STRONGLY ENCOURAGED TO BUY INSURANCE THAT COVERS YOU AND YOUR PROPERTY.

I have read, understand and agree to comply with the preceding provisions: [All Residents must sign this addendum]

Kathryn Copeland

Signature of All Residents

Signature of Owner or Owner's Representative

**LEASE ADDENDUM
PERSONAL LIABILITY INSURANCE REQUIRED**

Addendum. This is an addendum to the lease between you and us for Apt. No. 2145 in the WMCI Dallas, X
LLC dba The Bowery at Southside Apartments in
Fort Worth, TX; OR the house, duplex, etc. located at (street address)
_____ in
_____, TX.

1. **Insurance Acknowledgement.** Tenant acknowledges that Landlord does not maintain insurance to protect Tenant against personal injury, loss or damage to Tenant's personal property or to cover Tenant's own liability for injury, loss or damage Tenant (or Tenant's occupants or guests) may cause others. Tenant also acknowledges that Tenant may be responsible to others (including Landlord and Agent) for the full cost of any injury, loss or damage caused by Tenant's negligent actions or the negligent actions of Tenant's occupants or guests, including but not limited to damage caused by fire or smoke.
2. **Building Protection fee.** Landlord agrees to waive the requirements in the Lease that Tenant purchase liability insurance covering damage from fire, vandalism, smoke, water and any other perils, with limits of at least \$100,000 (the "Insurance Requirements"), as set forth in the Lease, if Tenant 1) elects to waive the insurance requirement and pay the Building Protection Fee (as defined below) by opting into the building protection program at www.residentprotect.com; or 2) fails to provide proof of insurance as required in the Lease (in which case the Building Protection Fee will be charged to the Tenant automatically and the Tenant will be opted into the building protection program) within ten (10) business days following the date of this Addendum; or 3) cancels (voluntarily or involuntarily) its existing liability insurance coverage and Landlord receives notice of the same (in which case the Building Protection Fee may be charged to Tenant automatically and the Tenant may be opted into the building protection program). In such event, Landlord shall charge Tenant a "Building Protection Fee" in the amount of Twelve Dollars and 00/100 (\$12.00) per month. This Building Protection Fee is to be paid as additional monthly rent and will be used to help protect Landlord's assets, including real, improved and personal property owned or managed by Landlord against damage caused by a Tenant. Tenant may cancel its participation in this program at any time if Tenant purchases its own personal liability insurance policy or renter's insurance policy and provides proof of coverage to Landlord or Agent. This Building Protection Fee offers no protection for Tenant's personal property or third-party liability. Tenant should consider purchasing renter's insurance to protect Tenant from financial loss and third-party liability. Such policy must identify Landlord and Agent as additional insureds.
3. **Damage to Tenant's Personal Property.** Pursuant to the Lease, Tenant is only required to comply with the Insurance Requirements; however, Landlord highly recommends Tenant also obtain coverage for its personal property. Tenant has the option to obtain personal property reimbursement by visiting www.residentprotect.com. As a resident of this property, Tenant automatically qualifies for this reimbursement. If Tenant chooses to participate in this program, Tenant shall pay a "Property Reimbursement Fee" in the amount of Three Dollars and 00/100 (\$3.00) per month. This Property Reimbursement Fee is to be paid in the same manner as additional monthly rent. The Property Reimbursement Fee shall qualify Tenant for reimbursement for losses to Tenant's personal property up to Ten Thousand and 00/100 Dollars (\$10,000). A description of the program is available by visiting www.residentprotect.com.
4. **Freedom of Choice.** At all times, Tenant can purchase insurance through the carrier or agency of Tenant's choice, subject to the requirements of the Lease, and is not required to purchase insurance through a particular carrier or participate in our property reimbursement program. However, the insurance Tenant purchases must meet the Lease's minimum Insurance Requirements at all times.
5. **Default.** Tenant(s)'s failure to obtain or maintain insurance coverage meeting the Insurance Requirements shall constitute a material default of the Lease Agreement, entitling Agent to terminate the Lease Agreement and/or Tenant(s)'s right to possession under the Lease Agreement. Landlord reserves the right, and Tenant hereby authorizes Landlord, to charge Tenant a "Building Protection Fee" monthly in the amount of Twelve and 00/100 Dollars (\$12.00) as additional rent under the Lease if Tenant does not maintain coverage meeting the Insurance Requirements. Tenant may cancel its participation in this program at any time if Tenant purchases its own personal liability insurance policy or renter's insurance policy meeting the Insurance Requirements and provides proof of coverage to Landlord or Agent.
6. **Class Action Waiver.** The parties waive any right to bring class actions or representative claims on behalf of a class of individuals or to participate as a class representative or member (the "Class Action Waiver") against each other. Tenant is not waiving any right(s) to pursue claims against Landlord or Agent related to its tenancy, but Tenant agrees to file any claim(s) against Landlord or Agent in its individual capacity only, and Tenant hereby waives any rights that it may have had to bring or take part in a class or representative action.
7. **Miscellaneous.**
 - a. Except as specifically stated in this Addendum, all other terms and conditions of the Lease shall remain unchanged.
 - b. The insurance required by the Lease is not required by any law. Tenant's obligation to provide insurance stems solely from the Lease.
 - c. In the event of any conflict between the terms of this Addendum and the terms of the Lease, the terms of this Addendum shall control.

- d. The insurance required by the Lease is not an attempt to limit our liability for our own negligence or Tenant's liability for Tenant's own negligence.
- e. The insurance required by the Lease is not in lieu of, or in any way a component of, any security deposit required by the Lease.

By signing below, Tenant acknowledges and agree to be bound to the terms of this Addendum.

Resident or Residents
(All residents must sign)

Kathryn Copeland

Owner or Owner's Representative
(Signs below)

Date of Lease Contract

**FITNESS CENTER/BUSINESS CENTER
RULES AND REGULATIONS**

Kathryn M Copeland
405 Crawford St Apt# 2145
Fort Worth, TX 76104

We hope you will enjoy the Fitness Center and/or Business Center. To ensure that everyone has a safe and enjoyable experience, please abide by the following rules and regulations. These rules and regulations become a part of the Resident Handbook that you received as part of your Move-In Packet.

1. The Fitness Center is for the use of residents and their guests. Guests are not permitted in the Business Center
2. The Fitness Center is accessible 24 hours a day; 7 days a week.

3. Residents are permitted to bring one guest per day to the Fitness Center. Guests must be accompanied by a resident at all times while in the Fitness Center. Guests must carry a guest pass at all times while in the Fitness Center. Guests must abide by all Fitness Center policies. Residents are responsible for the actions of their guests.
4. No persons under age 16 are permitted to use the exercise equipment or be in the Fitness Center.
5. No attendants or supervision of any kind will be provided by the Management for the Fitness Center.
6. Use the exercise equipment at your own risk. Weinstein Properties is not responsible for accidents or injuries related in any way to the use of the Fitness Center.
7. It is strongly recommended that appropriate work out clothing be worn while using the fitness equipment. Fitness center users assume all risk of injury resulting from failing to wear appropriate clothing.
8. The treadmills and stair stepper machines are not designed for use by persons weighing over 250 pounds.
9. Know your limits. Do not over exert yourself.
10. Read all posted instructions. If you do not understand the instructions, do not use the equipment.
11. When using the treadmill, please attach the safety key to your clothing or body.
12. No one under the influence of drugs or alcohol may use the Fitness Center or Business Center at any time.
13. Please wear shoes—no wet or bare feet are permitted in the Fitness Center or Business Center.
14. There is a \$50.00 fee for lost or stolen access cards/fobs, or for not returning the access card/fob when your occupancy expires.
15. The Fitness Center may not be used for the purpose of conducting business, including personal training or classes, at any time.
16. Landlord reserves the right to deny access to the Fitness Center and/or Business Center to any and all Tenant(s) who fail to comply with these Rules and Regulations.

I have read, understand and agree to comply with the foregoing rules and regulations.

Date: 10/18/2023

Tenant Signature: Kathryn Copeland

Date: _____

Tenant Signature: _____

LEASE ADDENDUM REGARDING SMOKING

1. Addendum. This is an addendum to the TAA Lease Contract for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowerly at Southside Apartments in Fort Worth, Texas OR the house, duplex, etc. located at (street address) _____ in _____, Texas.

2. Smoking, in any form, anywhere inside any of the dwelling units, or inside any buildings within the apartment community, is strictly prohibited. This is our no-smoking policy; and you agree that any violation of the no-smoking policy is a material and substantial violation of this addendum and a breach of the TAA Lease Contract.

The prohibition of smoking extends to all residents, their occupants, guests, invitees and all others who are present on or in any portion of the community. The no-smoking policy and rules extend to, but are not limited to, the leasing offices, building interiors and hallways, building common areas, dwelling units, club house, exercise or spa facility, indoor tennis courts, all interior areas of the community, commercial shops, businesses, work areas, and all other spaces whether in the interior of the community or in the enclosed spaces on community grounds. Smoking is also prohibited by this addendum inside any dwelling or building, whether leased by you or another.

3. Smoking permitted in designated areas of the apartment community. Smoking is permitted only in specially designated areas, if any. The permissible smoking areas are marked by signs.

Smoking on balconies, patios, and limited common areas attached to or outside of your dwelling unit:

- ☐ is permitted
☒ is not permitted.

Only the following outside areas may be used for smoking: _____

Smoking is permitted only in specially designated areas outside the buildings of the apartment community. Smoking must be at least 15 feet from the buildings in the apartment community, including administrative office buildings. If the previous field is not completed, smoking is only permitted at least 25 feet from the buildings in the apartment community, including administrative office buildings. The smoking-permissible areas are marked by signage.

Even though smoking may be permitted in certain limited outside areas, we reserve the right to direct that you and your occupants, family, guests, and invitees immediately cease smoking in those areas if smoke is entering a dwelling or building or if it is interfering with the rights, comfort, health, safety or convenience of others in or near the apartment community or rental premises.

4. Your responsibility for damages and cleaning. You are responsible for payment of all costs and damages to your dwelling unit, other residents' dwelling units, or any other portion of the community for repair, replacement, or cleaning and odor removal due to smoking or smoke-related damage caused by you or your occupants, family, guests, or invitees, regardless of whether such use was a violation of this addendum. You agree that any costs or damages we incur related to repairs, replacement, cleaning and odor removal due to your smoking or due to your violation of the no-smoking provisions of the TAA Lease Contract are NOT normal wear and tear. You also agree that smoke-related damage, including but not limited to smoke odor that permeates sheetrock, carpeting, wood, insulation, or other components of the dwelling unit or building, shall always be in excess of normal wear and tear in our community and at the rental premises.

5. Your responsibility for loss of rental income and economic damages regarding other residents. You are responsible for payment of all lost rental income or other economic and financial damages or loss to us due to smoking or smoke-related damages caused by you or your occupants, family, guests, or invitees which results in or causes other residents to vacate their dwelling units, results in disruption of other residents' enjoyment of the community, adversely affects other residents' or occupants' health, safety, or welfare, or causes a qualified applicant to refuse to rent the unit because of smoke related damages including smoke odors.

6. Definition of smoking. "Smoking" refers to, but is not limited to, any use or possession of a cigar, cigarette, e-cigarette, hookah, vaporizer, or pipe containing tobacco or a tobacco product while that tobacco or tobacco product is burning, lighted, vaporized, or ignited, regardless of whether the person using or possessing the product is inhaling or exhaling the smoke from such product. The term tobacco includes, but is not limited to any form, compound, or synthesis of the plant of the genus *Nicotiana* or the species *N. tabacum* which is cultivated for its leaves to be used in cigarettes, cigars, e-cigarettes, hookahs, vaporizers, or pipes. Smoking also refers to use or possession of burning, lighted, vaporized, or ignited non-tobacco products if they are noxious, offensive, unsafe, unhealthy, or irritating to other persons.

7. Lease Contract termination for violation of this addendum. We have the right to exercise all remedies available to us for any violation of this addendum, which in turn is a default under the Lease, which include terminating your right of occupancy and possession. Violation of this addendum is a material and substantial default of the TAA Lease Contract. In the event we terminate your right of occupancy, you shall remain liable for all rent and other sums due under the TAA Lease Contract subject to any duty to mitigate.

8. Extent of your liability for losses due to smoking. Your responsibility for damages, cleaning, deodorizing, loss of rental income, and other economic damages under this addendum are in addition to, and not instead of your responsibility for any other damages or loss under the TAA Lease Contract or any other addendum.

9. Your responsibility for conduct of occupants, family members and guests. You are responsible for communicating the no- smoking policy and provisions of this addendum to your occupants, family, guests, and invitees and understand that a failure on their part to comply is the same as non-compliance by you.

10. No warranty of a smoke-free environment. Although we prohibit smoking in all interior parts of the dwelling units and community, there is no warranty or guaranty that your dwelling unit, buildings or the community is smoke-free. Smoking in certain limited outside areas may be allowed as provided in this Addendum. Enforcement of our no-smoking policy is a joint responsibility that requires your cooperation in reporting incidents or suspected violations of smoking. You must report violations of our no-smoking policy to us before we are obligated to investigate and take action. You agree to cooperate with us if it becomes necessary to pursue action for any violations of the no-smoking policy.

This is an important and binding legal document. By signing this addendum you are acknowledging that a violation could lead to termination of your right of possession or your right to occupy the dwelling unit and premises. If you or someone in your household is a smoker, you should carefully consider whether you will be able to abide by the terms of this addendum. Before signing you must advise us whether you or anyone who will be living in your dwelling is a smoker. If you give an incorrect or false answer, you agree that is a default under the Lease. Provide your answer by checking one of the following boxes:

- ☒ Neither you nor anyone who will be living in the dwelling unit is a smoker and it is agreed no one will ever smoke in the unit.
- ☐ Someone who will be living in the dwelling unit is a smoker but it is agreed no one will ever smoke in the unit.

Kathryn Copeland

Signatures of All Residents

Signature of Owner or Owner's Representative

LEASE ADDENDUM FOR ACCESS CONTROL DEVICES

1. Addendum. This is an addendum to the TAA Lease Contract for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowery at Southside Apartments in Fort Worth, Texas.

2. Remote control/cards/code for gate access.

- ☒ **Remote control for gate access.** Each resident on the lease will be given a remote control at no cost to use during his or her residency. Each additional remote control for you or your occupants will require a \$ 50.00 non-refundable fee.
- ☒ **Cards for gate access.** Each resident on the lease will be given a card at no cost to use during his or her residency. Each additional card for you or your occupants will require a \$ 50.00 non-refundable fee.
- ☐ **Code for gate access.** Each resident will be given, at no cost, an access code (keypad number) for the pedestrian or vehicular access gates. It is to be used only during your residency.

3. Damaged, lost or unreturned remote controls, cards, key fobs or code changes.

- ☒ If a remote control is lost, stolen or damaged, a \$ 50.00 fee will be charged for a replacement. If a remote control is not returned or is returned damaged when you move out, there will be a \$ _____ deduction from the security deposit.
- ☒ If a card is lost, stolen or damaged, a \$ 50.00 fee will be charged for a replacement card. If a card is not returned or is returned damaged when you move out, there will be a \$ _____ deduction from the security deposit.
- ☐ We may change the code(s) at any time and notify you accordingly.

4. Report damage or malfunctions. Please immediately report to the office any malfunction or damage to gates, fencing, locks, or related equipment.**5. Follow written instructions.** You and all other occupants must read and follow the written instructions that have been furnished to you regarding the access gates. If the gates are damaged by you, your occupants, guests, or invitees through negligence or misuse, you are liable for the damages under your lease, and collection of damage amounts will be pursued.**6. Personal injury and/or personal property damage.** Anything mechanical or electronic is subject to malfunction. Fencing, gates, or other devices will not prevent all crime. No security system or device is foolproof or 100 percent successful in deterring crime. Crime can still occur. Protecting residents, their families, occupants, guests, and invitees from crime is the sole responsibility of residents, occupants, and law enforcement agencies. You should first call 911 or other appropriate emergency police numbers if a crime occurs or is suspected. We are not liable to any resident, guest, occupant, or invitee for personal injury, death, or damage/loss of personal property from incidents related to perimeter fencing, automobile access gates, and/or pedestrian access gates. We reserve the right to modify or eliminate security systems other than those statutorily required.**7. RULES IN USING VEHICLE GATES.**

- Always approach entry and exit gates with caution and at a very slow rate of speed.
- Never stop your car where the gate can hit your vehicle as the gate opens or closes.
- Never follow another vehicle into an open gate. Always use your card to gain entry.
- Report to management the vehicle license plate number of any vehicle that piggybacks through the gate.
- Never force the gate open with your car.
- Never get out of your vehicle while the gates are opening or closing.
- If you are using the gates with a boat or trailer, please contact management for assistance. The length and width of the trailer may cause recognition problems with the safety loop detector and could cause damage.
- Do not operate the gate if there are small children nearby who might get caught in it as it opens or closes.
- If you lose your card, please contact the management office immediately.
- Do not give your card or code to anyone else.
- Do not tamper with gate or allow your occupants to tamper or play with gates.

Kathryn Copeland

Signatures of All Residents

Signature of Owner or Owner's Representative

LEASE ADDENDUM FOR TRASH REMOVAL AND RECYCLING COSTS—FLAT FEE

1. Addendum. This is an addendum to the TAA Lease Contract for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowery at Southside

_____ Apartments in Fort Worth,
Texas OR
the house, duplex, etc. located at (street address) _____
_____ in _____, Texas.

2. Flat fee for trash/recycling costs. Your monthly base rent under the TAA Lease Contract does not include a charge for trash removal. Instead, you will be receiving a separate bill from us for such service. You agree to pay a monthly fee of \$ 20.00 for the removal of trash and/or recycling for the apartment community, plus a nominal administrative fee of \$ _____ per month (not to exceed \$3) for processing and billing.

Your trash/recycling bill may include state and local sales taxes as required by state law.

3. Payment due date. Payment of your trash removal and recycling bill is due 16 days after the date it is postmarked or hand delivered to your apartment. We may include this item as a separate and distinct charge as part of a multi-item bill. You agree to mail or deliver payment to the place indicated on your bill so that payment is received no later than the due date. There will be a late charge of \$ _____ (not to exceed \$3) if we do not receive timely payment of your trash/recycling bill, but we are not obligated to accept late payment. If you are late in paying the trash removal/recycling bill, we may immediately exercise all lawful remedies under your lease contract, including eviction.

Kathryn Copeland

Signatures of All Residents

Signature of Owner or Owner's Representative

LEASE ADDENDUM FOR VALET TRASH

Addendum. This is an addendum to lease contract for Apt. No. 2145 in the The Bowery at Southside
Apartments, in Fort Worth,
TX.

This Lease Addendum for Valet Trash (this "Addendum") is made and entered into as of the date of the Lease Contract and between WMCI Dallas, X
LLC dba The Bowery at Southside (the "Owner") and
Kathryn M Copeland

(the "Resident", whether one or more) upon the terms and conditions stated herein.

The Lease Agreement, as written, is all inclusive and binding to the Landlord and the Tenant, with the exception of the following amendments and revisions:

1. Valet trash collection service will be provided for Tenant five (5) nights per week, Sunday through Thursday for an additional monthly fee noted within your lease or subsequent renewal. The fee for valet trash collection is in addition to the monthly fee for regular trash. *Note: Valet trash collection will not occur on designated holidays.*
2. Each apartment will be provided with one container to be used for the purpose of valet trash collection. Only approved containers are allowed.
3. Tenant is responsible for placing the provided container containing bagged trash only outside the front door of the apartment no earlier than 5:00PM each evening for collection.
4. Trash collection service will begin at 7:00PM.
5. All trash must be bagged and tied securely. Pet waste must be double bagged. No broken glass or sharp objects are allowed in the container. Large items or bags weighing over 25 lbs are not permitted.
6. All bags must be placed inside the provided container. Trash will not be collected without the use of the provided container.
7. Loose trash will not be collected.
8. Boxes must be broken down and flattened.
9. If Tenant is unable to place container outside of the apartment on a designated service night, Tenant is responsible for disposing of trash in the community dumpster/trash compactor.
10. The container and/or trash may not be left outside the apartment for any reason other than pickup during the designated trash collection timeframe.
11. If a container remains outside of the apartment past 9:00AM on the morning following trash collection service, a \$25.00 fee will be assessed.
12. Tenant is required to keep the provided container clean.
13. The provided container is property of Landlord.
14. Tenant will be assessed a \$25.00 fee if an additional or replacement container is needed, or if the container is not left in the apartment when Tenant vacates.

If Tenant is found to be in violation of any of the above, Landlord will issue a warning to Tenant. If Tenant is found to be in violation a second time, the container may be removed and/or a \$25.00 fee will be assessed. In the event container is removed, it will be returned after any fees are paid. If Tenant is found to be in violation a third time, valet trash removal service will be terminated and disposing of trash in the provided dumpster/trash compactor will become the responsibility of the Tenant. Tenant will not receive any refund or rebate for valet trash removal charges.

The undersigned have read, understand and agree to comply with the terms of this Addendum.

Kathryn Copeland
Signatures of All Residents

Signature of Owner or Owner's Representative

10/17/2023

Date of Lease Contract

WATER AND WASTEWATER SUBMETERING ADDENDUM

1. Addendum. This is an addendum to the TAA Lease Contract for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowery at Southside Apartments in Fort Worth, Texas OR the house, duplex, etc. located at (street address) _____ in _____, Texas.

2. PUC. Water conservation by submeter billing is encouraged by the Public Utility Commission of Texas (PUC). Submeter billing is regulated by PUC rules, and a copy of the rules is attached to this addendum. This addendum complies with those rules.

3. Mutual Conservation Efforts. We agree to use our best efforts to repair any water leaks inside or outside your apartment no later than 7 days after we learn about them. You agree to use your best efforts to follow the water-conservation suggestions listed in the checklist below.

4. Submeter Billing Procedures. Your monthly rent under the TAA Lease does not include a charge for water and wastewater. Instead, you will receive a separate monthly bill from us for submetered water and wastewater use, as follows:

- (A) Your monthly water and wastewater bill will conform to all applicable rules of the PUC (see attached).
- (B) As permitted by state law, a service fee of 9 % (not to exceed 9%) will be added to your monthly water-service charges.
- (C) No other administrative or other fees will be added to your bill unless expressly allowed by law or PUC rules. No other amounts will be included in the bill except your unpaid balances and any late fees (if incurred by you). If we fail to pay our mastermeter bill to the utility company on time and incur penalties or interest, no portion of these amounts will be included in your bill.
- (D) We will calculate your submetered share of the mastermetered water bill according to PUC rules, Section 24.281.
- (E) We will bill you monthly for your submetered water consumption from approximately the 1 day of the month to the 31 day of the month, the latter being our scheduled submeter-reading date. Your bill will be calculated in accordance with PUC rules and this Addendum and will be prorated for the first and last months you live in the unit.
- (F) PUC rules require us to publish figures from the previous calendar year if that information is available. The average monthly bill for all dwelling units in the apartment community last year was \$ 41.14 per unit, varying from \$ 1.75 for the lowest month's bill to \$ 100.18 for the highest month's bill for any unit. This information may or may not be relevant since the past amounts may not reflect future changes in utility-company water rates, weather variations, future total water consumption, changes in water-consumption habits of residents, and other unpredictable factors.
- (G) During regular weekday office hours, you may examine: (1) our water and wastewater bills from the utility company; (2) our calculation of your monthly submeter bill; and (3) any other information available to you under PUC rules. Please give us reasonable advance notice to gather the data. Any disputes relating to the computation of your bill will be between you and us.

5. Your Payment-Due Date. Payment of your submeter water and wastewater bill is due 16 days after the date it is postmarked or hand delivered to your apartment. You agree to mail or deliver payment to the place indicated on your bill so that payment is received no later than the due date. You will pay a late charge of 5% of your water and wastewater bill if we do not receive your payment on time.

A Checklist of Water-Conservation Ideas for Your Dwelling**In the bathroom . . .**

- Never put cleansing tissues, dental floss, cigarette butts, or other trash in the toilet.
- When brushing your teeth, turn off the water until you need to rinse your mouth.
- When shaving, fill the sink with hot water instead of letting the faucet run.
- Take a shower instead of filling the tub and taking a bath.
- Take a shorter shower. Showers may use up to half of your interior water consumption.
- If you take a tub bath, reduce the water level by one or two inches.
- Shampoo your hair in the shower.
- Test toilets for leaks. Add a few drops of food coloring to the tank, but do not flush. Watch to see if the coloring appears in the bowl within a few minutes. If it does, the fixture needs adjustment or repair. A slow drip can waste as much as 170 gallons a day or 5,000 gallons per month. Report all leaks to management.
- Don't leave water running while cleaning bathroom fixtures.

In the kitchen . . .

- Run your dishwasher only when you have a full load.
- If you wash dishes by hand, don't leave the water running for washing or rinsing. Fill the sink instead.
- Use your sink disposal sparingly, and never for just a few scraps.
- Keep a container of drinking water in the refrigerator.
- When cleaning vegetables, use a pan of cold water rather than letting the faucet run.
- For cooking most food, use only a little water and place a lid on the pot.
- Report all leaks to management.

When doing the laundry . . .

- Wash only full loads of laundry or else adjust the water level to match the size of the load (if you have this option).
- Use cold water as often as possible to save energy and to conserve the hot water for uses that cold water cannot serve.

Attached: PUC Rules for Submetered Water or Wastewater Service

Also note that the service fee referenced in Item 4(B) does not apply to properties receiving Low-Income Housing Tax Credits or to properties receiving tenant-based vouchers.

Kathryn Copeland

Resident or Residents [All residents must sign here]

Owner or Owner's Representative [sign here]

Water allocation and submetering is regulated by the Texas Public Utility Commission (PUC). In accordance with PUC rules, a copy of the applicable rules is provided to you below:

SUBCHAPTER I: WATER UTILITY SUBMETERING AND ALLOCATION

§ 24.275. General Rules and Definitions

(a) Purpose and scope. The provisions of this subchapter are intended to establish a comprehensive regulatory system to assure that the practices involving submetered and allocated billing of dwelling units and multiple use facilities for water and sewer utility service are just and reasonable and include appropriate safeguards for tenants.

(b) Application. The provisions of this subchapter apply to apartment houses, condominiums, multiple use facilities, and manufactured home rental communities billing for water and wastewater utility service on a submetered or allocated basis. The provisions of this subchapter do not limit the authority of an owner, operator, or manager of an apartment house, manufactured home rental community, or multiple use facility to charge, bill for, or collect rent, an assessment, an administrative fee, a fee relating to upkeep or management of chilled water, boiler, heating, ventilation, air conditioning, or other building system, or any other amount that is unrelated to water and sewer utility service costs.

(c) Definitions. The following words and terms, when used in this subchapter, have the defined meanings, unless the context clearly indicates otherwise.

(1) Allocated utility service--Water or wastewater utility service that is master metered to an owner by a retail public utility and allocated to tenants by the owner.

(2) Apartment house--A building or buildings containing five or more dwelling units that are occupied primarily for nontransient use, including a residential condominium whether rented or owner occupied, and if a dwelling unit is rented, having rent paid at intervals of one month or more.

(3) Condominium manager--A condominium unit owners' association organized under Texas Property Code §82.101, or an incorporated or unincorporated entity comprising the council of owners under Chapter 91, Property Code. Condominium Manager and Manager of a Condominium have the same meaning.

(4) Customer service charge--A customer service charge is a rate that is not dependent on the amount of water used through the master meter.

(5) Dwelling unit--One or more rooms in an apartment house or condominium, suitable for occupancy as a residence, and containing kitchen and bathroom facilities; a unit in a multiple use facility; or a manufactured home in a manufactured home rental community.

(6) Dwelling unit base charge--A flat rate or fee charged by a retail public utility for each dwelling unit recorded by the retail public utility.

(7) Manufactured home rental community--A property on which spaces are rented for the occupancy of manufactured homes for nontransient residential use and for which rental is paid at intervals of one month or longer.

(8) Master meter--A meter used to measure, for billing purposes, all water usage of an apartment house, condominium, multiple use facility, or manufactured home rental community, including common areas, common facilities, and dwelling units.

(9) Multiple use facility--A commercial or industrial park, office complex, or marina with five or more units that are occupied primarily for nontransient use and are rented at intervals of one month or longer.

(10) Occupant--A tenant or other person authorized under a written agreement to occupy a dwelling.

(11) Overcharge--The amount, if any, a tenant is charged for submetered or nonsubmetered master metered utility service to the tenant's dwelling unit after a violation occurred relating to the assessment of a portion of utility costs in excess of the amount the tenant would have been charged under this subchapter. Overcharge and Overbilling have the same meaning.

(12) Owner--The legal titleholder of an apartment house, a manufactured home rental community, or a multiple use facility; and any individual, firm, or corporation expressly identified in the lease agreement as the landlord of tenants in the apartment house, manufactured home rental community, or multiple use facility. The term does not include the manager of an apartment house unless the manager is expressly identified as the landlord in the lease agreement.

(13) Point-of-use submeter--A device located in a plumbing system to measure the amount of water used at a specific point of use, fixture, or appliance, including a sink, toilet, bathtub, or clothes washer.

(14) Submetered utility service--Water utility service that is master metered for the owner by the retail public utility and individually metered by the owner at each dwelling unit; wastewater utility service based on

submetered water utility service; water utility service measured by point-of-use submeters when all of the water used in a dwelling unit is measured and totaled; or wastewater utility service based on total water use as measured by point-of-use submeters.

(15) Tenant--A person who owns or is entitled to occupy a dwelling unit or multiple use facility unit to the exclusion of others and, if rent is paid, who is obligated to pay for the occupancy under a written or oral rental agreement.

(16) Undercharge--The amount, if any, a tenant is charged for submetered or nonsubmetered master metered utility service to the tenant's dwelling unit less than the amount the tenant would have been charged under this subchapter. Undercharge and Underbilling have the same meaning.

(17) Utility costs--Any amount charged to the owner by a retail public utility for water or wastewater service. Utility Costs and Utility Service Costs have the same meaning.

(18) Utility service--For purposes of this subchapter, utility service includes only drinking water and wastewater.

§ 24.277. Owner Registration and Records

(a) Registration. An owner who intends to bill tenants for submetered or allocated utility service or who changes the method used to bill tenants for utility service shall register with the commission in a form prescribed by the commission.

(b) Water quantity measurement. Except as provided by subsections (c) and (d) of this section, a manager of a condominium or the owner of an apartment house, manufactured home rental community, or multiple use facility, on which construction began after January 1, 2003, shall provide for the measurement of the quantity of water, if any, consumed by the occupants of each unit through the installation of:

(1) submeters, owned by the property owner or manager, for each dwelling unit or rental unit; or

(2) individual meters, owned by the retail public utility, for each dwelling unit or rental unit.

(c) Plumbing system requirement. An owner of an apartment house on which construction began after January 1, 2003, and that provides government assisted or subsidized rental housing to low or very low income residents shall install a plumbing system in the apartment house that is compatible with the installation of submeters for the measurement of the quantity of water, if any, consumed by the occupants of each unit.

(d) Installation of individual meters. On the request by the property owner or manager, a retail public utility shall install individual meters owned by the utility in an apartment house, manufactured home rental community, multiple use facility, or condominium on which construction began after January 1, 2003, unless the retail public utility determines that installation of meters is not feasible. If the retail public utility determines that installation of meters is not feasible, the property owner or manager shall install a plumbing system that is compatible with the installation of submeters or individual meters. A retail public utility may charge reasonable costs to install individual meters.

(e) Records. The owner shall make the following records available for inspection by the tenant or the commission or commission staff at the on-site manager's office during normal business hours in accordance with subsection (g) of this section. The owner may require that the request by the tenant be in writing and include:

(1) a current and complete copy of TWC, Chapter 13, Subchapter M;

(2) a current and complete copy of this subchapter;

(3) a current copy of the retail public utility's rate structure applicable to the owner's bill;

(4) information or tips on how tenants can reduce water usage;

(5) the bills from the retail public utility to the owner;

(6) for allocated billing:

(A) the formula, occupancy factors, if any, and percentages used to calculate tenant bills;

(B) the total number of occupants or equivalent occupants if an equivalency factor is used under §24.281(a)(2) of this title (relating to Charges and Calculations); and

(C) the square footage of the tenant's dwelling unit or rental space and the total square footage of the apartment house, manufactured home rental community, or multiple use facility used for billing if dwelling unit size or rental space is used;

(7) for submetered billing:

- (A) the calculation of the average cost per gallon, liter, or cubic foot;
- (B) if the unit of measure of the submeters or point-of-use submeters differs from the unit of measure of the master meter, a chart for converting the tenant's submeter measurement to that used by the retail public utility;
- (C) all submeter readings; and
- (D) all submeter test results;
- (8) the total amount billed to all tenants each month;
- (9) total revenues collected from the tenants each month to pay for water and wastewater service; and
- (10) any other information necessary for a tenant to calculate and verify a water and wastewater bill.

(f) Records retention. Each of the records required under subsection (e) of this section shall be maintained for the current year and the previous calendar year, except that all submeter test results shall be maintained until the submeter is permanently removed from service.

(g) Availability of records.

- (1) If the records required under subsection (e) of this section are maintained at the on-site manager's office, the owner shall make the records available for inspection at the on-site manager's office within three days after receiving a written request.
- (2) If the records required under subsection (e) of this section are not routinely maintained at the on-site manager's office, the owner shall provide copies of the records to the on-site manager within 15 days of receiving a written request from a tenant or the commission or commission staff.
- (3) If there is no on-site manager, the owner shall make copies of the records available at the tenant's dwelling unit at a time agreed upon by the tenant within 30 days of the owner receiving a written request from the tenant.
- (4) Copies of the records may be provided by mail if postmarked by midnight of the last day specified in paragraph (1), (2), or (3) of this subsection.

§ 24.279. Rental Agreement

(a) Rental agreement content. The rental agreement between the owner and tenant shall clearly state in writing:

- (1) the tenant will be billed by the owner for submetered or allocated utility services, whichever is applicable;
- (2) which utility services will be included in the bill issued by the owner;
- (3) any disputes relating to the computation of the tenant's bill or the accuracy of any submetering device will be between the tenant and the owner;
- (4) the average monthly bill for all dwelling units in the previous calendar year and the highest and lowest month's bills for that period;
- (5) if not submetered, a clear description of the formula used to allocate utility services;
- (6) information regarding billing such as meter reading dates, billing dates, and due dates;
- (7) the period of time by which owner will repair leaks in the tenant's unit and in common areas, if common areas are not submetered;
- (8) the tenant has the right to receive information from the owner to verify the utility bill; and
- (9) for manufactured home rental communities and apartment houses, the service charge percentage permitted under §24.281(d)(3) of this title (relating to Charges and Calculations) that will be billed to tenants.

(b) Requirement to provide rules. At the time a rental agreement is discussed, the owner shall provide a copy of this subchapter or a copy of the rules to the tenant to inform the tenant of his rights and the owner's responsibilities under this subchapter.

(c) Tenant agreement to billing method changes. An owner shall not change the method by which a tenant is billed unless the tenant has agreed to the change by signing a lease or other written agreement. The owner shall provide notice of the proposed change at least 35 days prior to implementing the new method.

(d) Change from submetered to allocated billing. An owner shall not change from submetered billing to allocated billing, except after receiving written approval from the commission after a demonstration of good cause and if the rental agreement requirements under subsections (a), (b), and (c) of this section have been met. Good cause may include:

- (1) equipment failures; or
- (2) meter reading or billing problems that could not feasibly be corrected.

(e) Waiver of tenant rights prohibited. A rental agreement provision that purports to waive a tenant's rights or an owner's responsibilities under this subchapter is void.

§ 24.281. Charges and Calculations

(a) Prohibited charges. Charges billed to tenants for submetered or allocated utility service may only include bills for water or wastewater from the retail public utility and must not include any fees billed to the owner by the retail public utility for any deposit, disconnect, reconnect, late payment, or other similar fees.

(b) Dwelling unit base charge. If the retail public utility's rate structure includes a dwelling unit base charge, the owner shall bill each dwelling unit for the base charge applicable to that unit. The owner may not bill tenants for any dwelling unit base charges applicable to unoccupied dwelling units.

(c) Customer service charge. If the retail public utility's rate structure includes a customer service charge, the owner shall bill each dwelling unit the amount of the customer service charge divided by the total number of dwelling units, including vacant units, that can receive service through the master meter serving the tenants.

(d) Calculations for submetered utility service. The tenant's submetered charges must include the dwelling unit base charge and customer service charge, if applicable, and the gallonage charge and must be calculated each month as follows:

(1) water utility service: the retail public utility's total monthly charges for water service (less dwelling unit base charges or customer service charges, if applicable), divided by the total monthly water consumption measured by the retail public utility to obtain an average water cost per gallon, liter, or cubic foot, multiplied by the tenant's monthly consumption or the volumetric rate charged by the retail public utility to the owner multiplied by the tenant's monthly water consumption;

(2) wastewater utility service: the retail public utility's total monthly charges for wastewater service (less dwelling unit base charges or customer service charges, if applicable), divided by the total monthly water consumption measured by the retail public utility, multiplied by the tenant's monthly consumption or the volumetric wastewater rate charged by the retail public utility to the owner multiplied by the tenant's monthly water consumption;

(3) service charge for manufactured home rental community or the owner or manager of apartment house: a manufactured home rental community or apartment house may charge a service charge in an amount not to exceed 5% of the tenant's charge for submetered water and wastewater service, except when:

(A) the resident resides in a unit of an apartment house that has received an allocation of low income housing tax credits under Texas Government Code, Chapter 2306, Subchapter DD; or

(B) the apartment resident receives tenant-based voucher assistance under United States Housing Act of 1937 Section 8, (42 United States Code, §1437f); and

(4) final bill on move-out for submetered service: if a tenant moves out during a billing period, the owner may calculate a final bill for the tenant before the owner receives the bill for that period from the retail public utility. If the owner is billing using the average water or wastewater cost per gallon, liter, or cubic foot as described in paragraph (1) of this subsection, the owner may calculate the tenant's bill by calculating the tenant's average volumetric rate for the last three months and multiplying that average volumetric rate by the tenant's consumption for the billing period.

(e) Calculations for allocated utility service.

(1) Before an owner may allocate the retail public utility's master meter bill for water and sewer service to the tenants, the owner shall first deduct:

(A) dwelling unit base charges or customer service charge, if applicable; and

(B) common area usage such as installed landscape irrigation systems, pools, and laundry rooms, if any, as follows:

(i) If all common areas are separately metered or submetered, deduct the actual common area usage;

(ii) if common areas that are served through the master meter that provides water to the dwelling units are not separately metered or submetered and there is an installed landscape irrigation system, deduct at least 25% of the retail public utility's master meter bill;

(iii) If all water used for an installed landscape irrigation system is metered or submetered and there are other common areas such as pools or laundry rooms that are not metered or submetered, deduct at least 5% of the retail public utility's master meter bill; or

(iv) if common areas that are served through the master meter that provides water to the dwelling units are not separately metered or

submetered and there is no installed landscape irrigation system, deduct at least 5% of the retail public utility's master meter bill.

(2) To calculate a tenant's bill:

(A) for an apartment house, the owner shall multiply the amount established in paragraph (1) of this subsection by:

(i) the number of occupants in the tenant's dwelling unit divided by the total number of occupants in all dwelling units at the beginning of the month for which bills are being rendered; or

(ii) the number of occupants in the tenant's dwelling unit using a ratio occupancy formula divided by the total number of occupants in all dwelling units at the beginning of the retail public utility's billing period using the same ratio occupancy formula to determine the total. The ratio occupancy formula will reflect what the owner believes more accurately represents the water use in units that are occupied by multiple tenants. The ratio occupancy formula that is used must assign a fractional portion per tenant of no less than that on the following scale:

(I) dwelling unit with one occupant = 1;

(II) dwelling unit with two occupants = 1.6;

(III) dwelling unit with three occupants = 2.2; or

(IV) dwelling unit with more than three occupants = $2.2 + 0.4$ per each additional occupant over three; or

(iii) the average number of occupants per bedroom, which shall be determined by the following occupancy formula. The formula must calculate the average number of occupants in all dwelling units based on the number of bedrooms in the dwelling unit according to the scale below, notwithstanding the actual number of occupants in each of the dwelling unit's bedrooms or all dwelling units:

(I) dwelling unit with an efficiency = 1;

(II) dwelling unit with one bedroom = 1.6;

(III) dwelling unit with two bedrooms = 2.8;

(IV) dwelling unit with three bedrooms = $4 + 1.2$ for each additional bedroom; or

(iv) a factor using a combination of square footage and occupancy in which no more than 50% is based on square footage. The square footage portion must be based on the total square footage living area of the dwelling unit as a percentage of the total square footage living area of all dwelling units of the apartment house; or

(v) the individually submetered hot or cold water usage of the tenant's dwelling unit divided by all submetered hot or cold water usage in all dwelling units;

(B) a condominium manager shall multiply the amount established in paragraph (1) of this subsection by any of the factors under subparagraph (A) of this paragraph or may follow the methods outlined in the condominium contract;

(C) for a manufactured home rental community, the owner shall multiply the amount established in paragraph (1) of this subsection by:

(i) any of the factors developed under subparagraph (A) of this paragraph; or

(ii) the area of the individual rental space divided by the total area of all rental spaces; and

(D) for a multiple use facility, the owner shall multiply the amount established in paragraph (1) of this subsection by:

(i) any of the factors developed under subparagraph (A) of this paragraph; or

(ii) the square footage of the rental space divided by the total square footage of all rental spaces.

(3) If a tenant moves in or out during a billing period, the owner may calculate a bill for the tenant. If the tenant moves in during a billing period, the owner shall prorate the bill by calculating a bill as if the tenant were there for the whole month and then charging the tenant for only the number of days the tenant lived in the unit divided by the number of days in the month multiplied by the calculated bill. If a tenant moves out during a billing period before the owner receives the bill for that period from the retail public utility, the owner may calculate a final bill. The owner may calculate the tenant's bill by calculating the tenant's average bill for the last three months and multiplying that average bill by the number of days the tenant was in the unit divided by the number of days in that month.

(f) Conversion to approved allocation method. An owner using an allocation formula other than those approved in subsection (e) of this section shall immediately provide notice as required under §24.279(c) of this title (relating to Rental Agreement) and either:

(1) adopt one of the methods in subsection (e) of this section; or

(2) install submeters and begin billing on a submetered basis; or

(3) discontinue billing for utility services.

§ 24.283. Billing

(a) Monthly billing of total charges. The owner shall bill the tenant each month for the total charges calculated under §24.281 of this title (relating to Charges and Calculations). If it is permitted in the rental agreement, an occupant or occupants who are not residing in the rental unit for a period longer than 30 days may be excluded from the occupancy calculation and from paying a water and sewer bill for that period.

(b) Rendering bill.

(1) Allocated bills shall be rendered as promptly as possible after the owner receives the retail public utility bill.

(2) Submeter bills shall be rendered as promptly as possible after the owner receives the retail public utility bill or according to the time schedule in the rental agreement if the owner is billing using the retail public utility's rate.

(c) Submeter reading schedule. Submeters or point-of-use submeters shall be read within three days of the scheduled reading date of the retail public utility's master meter or according to the schedule in the rental agreement if the owner is billing using the retail public utility's rate.

(d) Billing period.

(1) Allocated bills shall be rendered for the same billing period as that of the retail public utility, generally monthly, unless service is provided for less than that period.

(2) Submeter bills shall be rendered for the same billing period as that of the retail public utility, generally monthly, unless service is provided for less than that period. If the owner uses the retail public utility's actual rate, the billing period may be an alternate billing period specified in the rental agreement.

(e) Multi-item bill. If issued on a multi-item bill, charges for submetered or allocated utility service must be separate and distinct from any other charges on the bill.

(f) Information on bill. The bill must clearly state that the utility service is submetered or allocated, as applicable, and must include all of the following:

(1) total amount due for submetered or allocated water;

(2) total amount due for submetered or allocated wastewater;

(3) total amount due for dwelling unit base charge(s) or customer service charge(s) or both, if applicable;

(4) total amount due for water or wastewater usage, if applicable;

(5) the name of the retail public utility and a statement that the bill is not from the retail public utility;

(6) name and address of the tenant to whom the bill is applicable;

(7) name of the firm rendering the bill and the name or title, address, and telephone number of the firm or person to be contacted in case of a billing dispute; and

(8) name, address, and telephone number of the party to whom payment is to be made.

(g) Information on submetered service. In addition to the information required in subsection (f) of this section, a bill for submetered service must include all of the following:

(1) the total number of gallons, liters, or cubic feet submetered or measured by point-of-use submeters;

(2) the cost per gallon, liter, or cubic foot for each service provided; and

(3) total amount due for a service charge charged by an owner of a manufactured home rental community, if applicable.

(h) Due date. The due date on the bill may not be less than 16 days after it is mailed or hand delivered to the tenant, unless the due date falls on a federal holiday or weekend, in which case the following work day will be the due date. The owner shall record the date the bill is mailed or hand delivered. A payment is delinquent if not received by the due date.

(i) Estimated bill. An estimated bill may be rendered if a master meter, submeter, or point-of-use submeter has been tampered with, cannot be read, or is out of order; and in such case, the bill must be distinctly marked as an estimate and the subsequent bill must reflect an adjustment for actual charges.

(j) Payment by tenant. Unless utility bills are paid to a third-party billing company on behalf of the owner, or unless clearly designated by the tenant, payment must be applied first to rent and then to utilities.

(k) Overbilling and underbilling. If a bill is issued and subsequently found to be in error, the owner shall calculate a billing adjustment. If the tenant is due a refund, an adjustment must be calculated for all of that tenant's bills that

included overcharges. If the overbilling or underbilling affects all tenants, an adjustment must be calculated for all of the tenants' bills. If the tenant was undercharged, and the cause was not due to submeter or point-of-use submeter error, the owner may calculate an adjustment for bills issued in the previous six months. If the total undercharge is \$25 or more, the owner shall offer the tenant a deferred payment plan option, for the same length of time as that of the underbilling. Adjustments for usage by a previous tenant may not be back billed to a current tenant.

(l) Disputed bills. In the event of a dispute between a tenant and an owner regarding any bill, the owner shall investigate the matter and report the results of the investigation to the tenant in writing. The investigation and report must be completed within 30 days from the date the tenant gives written notification of the dispute to the owner.

(m) Late fee. A one-time penalty not to exceed 5% may be applied to delinquent accounts. If such a penalty is applied, the bill must indicate the amount due if the late penalty is incurred. No late penalty may be applied unless agreed to by the tenant in a written lease that states the percentage amount of such late penalty.

§ 24.285. Complaint Jurisdiction

(a) Jurisdiction. The commission has exclusive jurisdiction for violations under this subchapter.

(b) Complaints. If an apartment house owner, condominium manager, manufactured home rental community owner, or other multiple use facility owner violates a commission rule regarding utility costs, the person claiming the violation may file a complaint with the commission and may appear remotely for a hearing.

§ 24.287. Submeters or Point-of-Use Submeters and Plumbing Fixtures

(a) Submeters or point-of-use submeters.

(1) Same type submeters or point-of-use submeters required. All submeters or point-of-use submeters throughout a property must use the same unit of measurement, such as gallon, liter, or cubic foot.

(2) Installation by owner. The owner shall be responsible for providing, installing, and maintaining all submeters or point-of-use submeters necessary for the measurement of water to tenants and to common areas, if applicable.

(3) Submeter or point-of-use submeter tests prior to installation. No submeter or point-of-use submeter may be placed in service unless its accuracy has been established. If any submeter or point-of-use submeter is removed from service, it must be properly tested and calibrated before being placed in service again.

(4) Accuracy requirements for submeters and point-of-use submeters. Submeters must be calibrated as close as possible to the condition of zero error and within the accuracy standards established by the American Water Works Association (AWWA) for water meters. Point-of-use submeters must be calibrated as closely as possible to the condition of zero error and within the accuracy standards established by the American Society of Mechanical Engineers (ASME) for point-of-use and branch-water submetering systems.

(5) Location of submeters and point-of-use submeters. Submeters and point-of-use submeters must be installed in accordance with applicable plumbing codes and AWWA standards for water meters or ASME standards for point-of-use submeters, and must be readily accessible to the tenant and to the owner for testing and inspection where such activities will cause minimum interference and inconvenience to the tenant.

(6) Submeter and point-of-use submeter records. The owner shall maintain a record on each submeter or point-of-use submeter which includes:

- (A) an identifying number;
- (B) the installation date (and removal date, if applicable);
- (C) date(s) the submeter or point-of-use submeter was calibrated or tested;
- (D) copies of all tests; and
- (E) the current location of the submeter or point-of-use submeter.

(7) Submeter or point-of-use submeter test on request of tenant. Upon receiving a written request from the tenant, the owner shall either:

- (A) provide evidence, at no charge to the tenant, that the submeter or point-of-use submeter was calibrated or tested within the preceding 24 months and determined to be within the accuracy standards established by the AWWA for water meters or ASME standards for point-of-use submeters; or
- (B) have the submeter or point-of-use submeter removed and tested and promptly advise the tenant of the test results.

(8) Billing for submeter or point-of-use submeter test.

(A) The owner may not bill the tenant for testing costs if the submeter fails to meet AWWA accuracy standards for water meters or ASME standards for point-of-use submeters.

(B) The owner may not bill the tenant for testing costs if there is no evidence that the submeter or point-of-use submeter was calibrated or tested within the preceding 24 months.

(C) The owner may bill the tenant for actual testing costs (not to exceed \$25) if the submeter meets AWWA accuracy standards or the point-of-use submeter meets ASME accuracy standards and evidence as described in paragraph (7)(A) of this subsection was provided to the tenant.

(9) Bill adjustment due to submeter or point-of-use submeter error. If a submeter does not meet AWWA accuracy standards or a point-of-use submeter does not meet ASME accuracy standards and the tenant was overbilled, an adjusted bill must be rendered in accordance with §24.283(k) of this title (relating to Billing). The owner may not charge the tenant for any underbilling that occurred because the submeter or point-of-use submeter was in error.

(10) Submeter or point-of-use submeter testing facilities and equipment. For submeters, an owner shall comply with the AWWA's meter testing requirements. For point-of-use meters, an owner shall comply with ASME's meter testing requirements.

(b) Plumbing fixtures. After January 1, 2003, before an owner of an apartment house, manufactured home rental community, or multiple use facility or a manager of a condominium may implement a program to bill tenants for submetered or allocated water service, the owner or manager shall adhere to the following standards:

(1) Texas Health and Safety Code, §372.002, for sink or lavatory faucets, faucet aerators, and showerheads;

(2) perform a water leak audit of each dwelling unit or rental unit and each common area and repair any leaks found; and

(3) not later than the first anniversary of the date an owner of an apartment house, manufactured home rental community, or multiple use facility or a manager of a condominium begins to bill for submetered or allocated water service, the owner or manager shall:

(A) remove any toilets that exceed a maximum flow of 3.5 gallons per flush; and

(B) install toilets that meet the standards prescribed by Texas Health and Safety Code, §372.002.

(c) Plumbing fixture not applicable. Subsection (b) of this section does not apply to a manufactured home rental community owner who does not own the manufactured homes located on the property of the manufactured home rental community.

LEASE ADDENDUM FOR ALLOCATING STORMWATER/DRAINAGE COSTS

- 1. Addendum.** This is an addendum to the TAA Lease Contract for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowery at Southside Apartments in Fort Worth, Texas. The terms of this addendum will control if the terms of the Lease and this addendum conflict.
- 2. Reason for allocation.** Governmental entities impose stormwater/drainage fees to help pay for the cost of maintaining the infrastructure needed to prevent flooding and lessen the impact of pollution on our water system. These fees can be significant. Our property has chosen to allocate this fee so residents are more aware of the true costs associated with these fees and so it is not necessary to raise rents to keep pace with these fee increases.
- 3. Your payment due date.** Payment of your allocated stormwater/drainage bill is due 16 days after the date it is postmarked or hand delivered to your apartment. You agree to mail or deliver payment to the place indicated on your bill so that payment is received no later than the due date. You will pay a late charge of 5 percent of your stormwater/drainage bill if we do not receive timely payment. If you are late in paying the stormwater/drainage bill, we may immediately exercise all lawful remedies under your lease contract, including eviction—just like late payment of rent.
- 4. Allocation procedures.** Your monthly base rent under the TAA Lease Contract does *not* include a charge for stormwater/drainage costs. You will pay separately for these monthly recurring fixed charges which are defined under the Lease as "Additional Rent". You may receive a separate bill from us each month or we may include these items as separate and distinct charges as part of a multi-item bill. You agree to and we will allocate the monthly stormwater/drainage bill for the apartment community based on the allocation method checked below. (*check only one*)
- ☐ A percentage reflecting your apartment unit's share of the total square footage in the apartment community, i.e. your unit's square footage divided by the total square footage in all apartment units.
- ☐ A percentage reflecting your apartment unit's share of the total number of people living in the apartment community, i.e. the number of people living in your apartment divided by the total number of people living in the entire apartment community for the month. ("People" for this purpose are all residents and occupants listed in leases at the apartment community as having a right to occupy the respective units).
- ☐ Half of your allocation will be based on your apartment's share of total square footage and half will be based on your share of total people living in the apartment community, as described above.
- ☒ Per dwelling unit
- ☐ Other formula (*see attached page*)
- 5. Penalties and fees.** Only the total stormwater/drainage bill will be allocated. Penalties or interest for any late payment of the master stormwater/ drainage bill by us will be paid for by us and will not be allocated. A nominal administrative fee of \$ 0.00 per month (not to exceed \$3) will be added to your bill for processing, billing and/or collecting.
- 6. Change of allocation formula.** The above allocation formula for determining your share of the stormwater/drainage bill cannot be changed except as follows: (1) you receive notice of the new formula at least 35 days before it takes effect; and (2) you agree to the change in a signed lease renewal or signed mutual agreement.
- 7. Right to examine records.** You may examine our stormwater/drainage bills from the utility company, and our calculations relating to the monthly allocation of the stormwater/drainage bills during regular weekday office hours. Please give us reasonable advance notice to gather the data.

Kathryn Copeland
Signatures of All Residents

Signature of Owner or Owner's Representative

LEASE ADDENDUM FOR SATELLITE DISH OR ANTENNA

Under a Federal Communications Commission (FCC) order, you as our resident have a right to install a transmitting or receiving satellite dish or antenna on the leased premises, subject to FCC limitations. We as a rental housing owner are allowed to impose reasonable restrictions relating to such installation. You are required to comply with these restrictions as a condition of installing such equipment. This addendum contains the restrictions that you and we agree to follow.

1. **Addendum.** This is an addendum to the lease between you and us for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowery at Southside

_____ Apartments in Fort Worth,
Texas OR
the house, duplex, etc. located at (*street address*) _____
_____ in _____, Texas.

2. **Number and size.** You may install 1 satellite dish(es) or antenna(s) on the leased premises. A satellite dish may not exceed one meter (3.3 feet) in diameter. Antennas that only transmit signals or that are not covered by 47 CFR §1.4000 are prohibited.

3. **Location.** Your satellite dish or antenna must be located: (1) inside your dwelling; or (2) in an area outside your dwelling such as a balcony, patio, yard, etc. of which you have exclusive use under your lease. Installation is not permitted on any parking area, roof, exterior wall, window, window sill, fence, or common area, or in an area that other residents are allowed to use. A satellite dish or antenna may not protrude beyond the vertical and horizontal space that is leased to you for your exclusive use.

4. **Safety and non-interference.** Your installation: (1) must comply with all applicable ordinances and laws and all reasonable safety standards; (2) may not interfere with our cable, telephone or electrical systems or those of neighboring properties; (3) may not be connected to our telecommunication systems; and (4) may not be connected to our electrical system except by plugging into a 110-volt duplex receptacle. If the satellite dish or antenna is placed in a permitted outside area, it must be safely secured by one of three methods: (1) securely attaching it to a portable, heavy object such as a small slab of concrete; (2) clamping it to a part of the building's exterior that lies within your leased premises (such as a balcony or patio railing); or (3) any other method approved by us in writing. No other methods are allowed. We may require reasonable screening of the satellite dish or antenna by plants, etc., so long as it does not impair reception.

5. **Signal transmission from exterior dish or antenna to interior of dwelling.** Under the FCC order, you may not damage or alter the leased premises and may not drill holes through outside walls, door jams, windowsills, etc. If your satellite dish or antenna is installed outside your dwelling (on a balcony, patio, etc.), the signals received by it may be transmitted to the interior of your dwelling only by the following methods: (1) running a "flat" cable under a door jam or windowsill in a manner that does not physically alter the premises and does not interfere with proper operation of the door or window; (2) running a traditional or flat cable through a pre-existing hole in the wall (that will not need to be enlarged to accommodate the cable); (3) connecting cables "through a window pane," similar to how an external car antenna for a cellular phone can be connected to inside wiring by a device glued to either side of the window—without drilling a hole through the window; (4) wireless transmission of the signal from the satellite dish or antenna to a device inside the dwelling; or (5) any other method approved by us in writing.

6. **Safety in installation.** In order to assure safety, the strength and type of materials used for installation must be approved by us. Installation must be done by a qualified person or company approved by us. Our approval will not be unreasonably withheld. An installer provided by the seller of the satellite dish or antenna is presumed to be qualified.

7. **Maintenance.** You will have the sole responsibility for maintaining your satellite dish, antenna, and all related equipment.

8. **Removal and damages.** You must remove the satellite dish or antenna and all related equipment when you move out of the dwelling. In accordance with the TAA Lease Contract, you must pay for any damages and for the cost of repairs or repainting caused by negligence, carelessness, accident, or abuse which may be reasonably necessary to restore the leased premises to its condition prior to the installation of your satellite dish, antenna or related equipment. You will not be responsible for normal wear and tear.

9. **Liability insurance and indemnity.** You must take full responsibility for the satellite dish, antenna, and related equipment. If the dish or antenna is installed at a height or in some other way that could result in injury to others if it becomes unattached and falls, you must provide us with evidence of liability insurance to protect us against claims of personal injury and property damage to others, related to your satellite dish, antenna, and related equipment. The insurance coverage must be \$ 1,000,000.00, which is an amount reasonably determined by us to accomplish that purpose. Factors affecting the amount of insurance include height of installation above ground level, potential wind velocities, risk of the dish/antenna becoming unattached and falling on someone, etc. You agree to hold us harmless and indemnify us against any of the above claims by others.

10. **Security deposit.** Your security deposit (in your Lease Contract) is increased by an additional reasonable sum of \$ 150.00 ☒ effective at time of installation or ☐ effective within _____ days of installation to help protect us against possible repair costs, damages, or failure to remove the satellite dish, antenna and related equipment at time of move-out. Factors affecting any security deposit may vary, depending on: (1) how the dish or antenna is attached (nails, screws, lag bolts drilled into walls); (2) whether holes were permitted to be drilled through walls for the cable between the satellite dish and the TV; and (3) the difficulty and cost of repair or restoration after removal, etc. A security deposit increase does not imply a right to drill into or alter the leased premises.

11. **When you may begin installation.** You may start installation of your satellite dish, antenna, or related equipment only after you have: (1) signed this addendum; (2) provided us with written evidence of the liability insurance referred to in paragraph 9 of this addendum; (3) paid us the additional security deposit, if applicable, in paragraph 10; and (4) received our written approval, which may not be unreasonably withheld, of the installation materials and the person or company that will do the installation.

12. **Miscellaneous.** If additional satellite dishes or antennas are desired, an additional lease addendum must be executed.

Kathryn Copeland
Signatures of All Residents

Signature of Owner or Owner's Representative

Mold Information and Prevention Addendum

Please note: We want to maintain a high-quality living environment for our residents. To help achieve this goal, it is important that we work together to minimize any mold growth in your dwelling. This addendum contains important information for you, and responsibilities for both you and us.

- 1. Addendum.** This is an addendum to the Lease Contract executed by you, the resident or residents, on the dwelling you have agreed to rent.

That dwelling is: Unit # 2145 at
WMCI Dallas, X LLC dba The Bowery at
Southside

(name of apartments)

or other dwelling located at _____

(street address of house, duplex, etc.)

City/State where dwelling is located _____

- 2. About Mold.** Mold is found everywhere in our environment, both indoors and outdoors and in both new and old structures. Molds are nothing new—they are natural microscopic organisms that reproduce by spores. They have always been with us. In the environment, molds break down organic matter and use the end product for food. Without molds we would be struggling with large amounts of dead organic matter. Mold spores (like plant pollen) spread through the air and are commonly transported by shoes, clothing, and other materials. There is conflicting scientific evidence about how much mold must accumulate before it creates adverse health effects on people and animals. Even so, we must take appropriate precautions to prevent its buildup.

- 3. Preventing Mold Begins with You.** to minimize the potential for mold growth in your dwelling, you must:

- Keep your dwelling clean—particularly the kitchen, bathroom, carpets, and floors. Regular vacuuming and mopping of the floors, plus cleaning hard surfaces using a household cleaner, are all important to remove the household dirt and debris that harbor mold or food for mold. Throw away moldy food immediately.
- Remove visible moisture accumulations on windows, walls, ceilings, floors, and other surfaces as soon as reasonably possible. Look for leaks in washing-machine hoses and discharge lines—especially if the leak is large enough for water to seep into nearby walls. If your dwelling has them, turn on exhaust fans in the bathroom before showering and in the kitchen before cooking with open pots. Also when showering, keep the shower curtain inside the tub (or fully close the shower doors). Experts also recommend that after a shower or bath you (1) wipe moisture off shower walls, shower doors, the bathtub, and the bathroom floor; (2) leave the bathroom door open until all moisture on the mirrors and bathroom walls and tile surfaces has dissipated; and (3) hang up your towels and bath mats so they will completely dry out.
- Promptly notify us in writing about any air-conditioning or heating-system problems you discover. Follow any of our rules about replacing air filters. It's also good practice to open windows and doors periodically on days when the outdoor weather is dry (i.e., humidity is below 50%) to help humid areas of your dwelling dry out.
- Promptly notify us in writing of any signs of water leaks, water infiltration, or mold. We will respond in accordance with state law and the Lease Contract to repair or remedy the situation as necessary.

- 4. Avoiding Moisture Buildup.** To avoid mold growth, it's important to prevent excess moisture buildup in your dwelling. Failing to promptly attend to leaks and moisture accumulations on dwelling surfaces can encourage mold growth, especially in places where they might get inside walls or ceilings. Prolonged moisture can come from a wide variety of sources, such as:

- rainwater leaking from roofs, windows, doors, and outside walls, as well as flood waters rising above floor level;
- overflows from showers, bathtubs, toilets, sinks, washing machines, dehumidifiers, refrigerator or air-conditioner drip pans, or clogged air-conditioner condensation lines;
- leaks from plumbing lines or fixtures, and leaks into walls from bad or missing grouting or caulking around showers, bathtubs, or sinks;
- washing-machine hose leaks, plant-watering overflows, pet urine, cooking spills, beverage spills, and steam from excessive open-pot cooking;
- leaks from clothes-dryer discharge vents (which can put a lot of moisture into the air); and
- insufficient drying of carpets, carpet pads, shower walls, and bathroom floors.

- 5. Cleaning Mold.** If small areas of mold have already accumulated on nonporous surfaces (such as ceramic tile, formica, vinyl flooring, metal, wood, or plastic), the Environmental Protection Agency recommends that you first clean the areas with soap (or detergent) and water and let the surface dry thoroughly. (Applying biocides without first cleaning away the dirt and oils from the surface is like painting over old paint without first cleaning and preparing the surface.) When the surface is dry—and within 24 hours of cleaning—apply a premixed spray-on household biocide such as Lysol Disinfectant®, Original Pine-Sol® Cleaner, Tilex Mold & Mildew Remover® or Clorox® Clean-up® Cleaner + Bleach. (Note two things: First, only a few of the common household cleaners can actually kill mold. Second, Tilex and Clorox contain bleach, which can discolor or stain surfaces, so follow the instructions on the container.) Always clean and apply a biocide to an area five or six times larger than any mold you see—mold can be present but not yet visible to the naked eye. A vacuum cleaner with a high-efficiency particulate air (HEPA) filter can be used to help remove nonvisible mold products from porous items such as fibers in sofas, chairs, drapes, and carpets—provided the fibers are completely dry. Machine washing or dry-cleaning will remove mold from clothes.

- 6. Warning for Porous Surfaces and Large Surfaces.** Do not clean or apply biocides to visible mold on porous surfaces such as sheetrock walls or ceilings or to large areas of visible mold on nonporous surfaces. Instead, notify us in writing and we will take appropriate action to comply with Section 92.051 et seq. of the Texas Property Code, subject to the special exceptions for natural disasters.

- 7. Compliance.** Complying with this addendum will help prevent mold growth in your dwelling, and both you and we will be able to respond correctly if problems develop that could lead to mold growth. If you have questions about this addendum, please contact us at the management office or at the phone number shown in your Lease Contract.

If you fail to comply with this addendum, you can be held responsible for property damage to the dwelling and any health problems that may result. We can't fix problems in your dwelling unless we know about them.

Resident or Residents (all sign below)

Owner or Owner's Representative (sign below)

 (Name of Resident)

 (Name of Resident)

 (Name of Resident)

 (Name of Resident)

 (Name of Resident)

 (Name of Resident)

You are entitled to receive a copy of this Addendum after it is fully signed. Keep it in a safe place.





Bed Bug Addendum

Please note: We want to maintain a high-quality living environment for you. It's important to work together to minimize the potential for bed bugs in your dwelling and others. This addendum outlines your responsibility and potential liability when it comes to bed bugs. It also gives you some important information about them.

1. **Addendum.** This is an addendum to the Lease Contract that you, the resident or residents, signed on the dwelling you have agreed to rent. That dwelling is:

Apt. # 2145 at WMCI Dallas, X
LIC dba The Bowery at Southside

 (name of apartments)
 or other dwelling located at _____
 _____ (street address of house, duplex, etc.)
 _____ (city)
 _____ (state) _____ (zip).

2. **Purpose.** This addendum modifies the Lease Contract to address any infestation of bed bugs (*Cimex lectularius*) that might be found in the dwelling or on your personal property. We will rely on representations that you make to us in this addendum.
3. **Inspection and Infestations.** We are not aware of any current evidence of bed bugs or bed-bug infestation in the dwelling.

BY SIGNING THIS ADDENDUM, YOU REPRESENT THAT:

- **YOU HAVE INSPECTED THE DWELLING BEFORE MOVING IN OR SIGNING THIS ADDENDUM, AND YOU DID NOT FIND ANY EVIDENCE OF BED BUGS OR BED-BUG INFESTATIONS, OR**
- **YOU WILL INSPECT THE DWELLING WITHIN 48 HOURS AFTER MOVING IN OR SIGNING THIS ADDENDUM AND WILL NOTIFY US OF ANY BED BUGS OR BED-BUG INFESTATION.**

You represent and agree that you have read the Information about bed bugs provided by us and that you are not aware of any infestation or presence of bed bugs in your current or previous dwellings, furniture, clothing, personal property and possessions and that you have fully disclosed to us any previous bed-bug infestation or issue that you have experienced.

If you disclose a previous experience of bed-bug infestation, we can review documentation of the treatment and inspect your personal property and possessions to confirm the absence of bed bugs.

4. **Access for Inspection and Pest Treatment.** You must allow us and our pest-control agents access to the dwelling at reasonable times to inspect for or treat bed bugs. You and your family members, occupants, guests, and invitees must cooperate and not interfere with inspections or treatments. We have the right to select any licensed pest-control professional to treat the dwelling and building. We can select the method of treating the dwelling, building, and common areas for bed bugs. We can also inspect and treat adjacent or neighboring dwellings to the infestation, even if those dwellings are not the source or cause of the known infestation. Simultaneously as we treat the dwelling, you must, at your expense, have your personal property, furniture, clothing, and possessions treated according to accepted treatment methods by a licensed pest-control firm that we approve. If you fail to do so, you will be in default and we will have the right to terminate your right of occupancy and exercise all rights and remedies under the Lease Contract. You agree not to treat the dwelling for a bed-bug infestation on your own.

5. **Notification.** You must promptly notify us:

- of any known or suspected bed-bug infestation or presence in the dwelling, or in any of your clothing, furniture, or personal property;
- of any recurring or unexplained bites, stings, irritations, or sores on the skin or body that you believe are caused by bed bugs, or by any condition or pest you believe is in the dwelling;
AND
- If you discover any condition or evidence that might indicate the presence or infestation of bed bugs, or if you receive any confirmation of bed-bug presence by a licensed pest-control professional or other authoritative source.

6. **Cooperation.** If we confirm the presence or infestation of bed bugs, you must cooperate and coordinate with us and our pest-control agents to treat and eliminate them. You must follow all directions from us or our agents to clean and treat the dwelling and building that are infested. You must remove or destroy personal property that cannot be treated or cleaned before we treat the dwelling. Any items you remove from the dwelling must be disposed of off-site and not in the property's trash receptacles. If we confirm the presence or infestation of bed bugs in your dwelling, we have the right to require you to temporarily vacate the dwelling and remove all furniture, clothing, and personal belongings so we can perform pest-control services. If you don't cooperate with us, you will be in default and we will have the right to terminate your right of occupancy and exercise all rights and remedies under the Lease Contract.

7. **Responsibilities.** You may be required to pay all reasonable costs of cleaning and pest-control treatments incurred by us to treat your dwelling unit for bed bugs. If we confirm the presence or infestation of bed bugs after you move out, you may be responsible for the cost of cleaning and pest control. If we have to move other residents in order to treat adjoining or neighboring dwellings to your dwelling unit, you may have to pay any lost rental income and other expenses we incur to relocate the neighboring residents and to clean and perform pest-control treatments to eradicate infestations in other dwellings. If you don't pay us for any costs you are liable for, you will be in default and we will have the right to terminate your right of occupancy and exercise all rights and remedies under the Lease Contract, and we may take immediate possession of the dwelling. If you don't move out after your right of occupancy has been terminated, you will be liable for holdover rent under the Lease Contract.

8. **Transfers.** If we allow you to transfer to another dwelling in the community because of the presence of bed bugs, you must have your personal property and possessions treated according to accepted treatment methods or procedures established by a licensed pest-control professional. You must provide proof of such cleaning and treatment to our satisfaction.

You are legally bound by this document. Please read it carefully.

Resident or Residents (all sign below)

Owner or Owner's Representative (sign below)

	10/18/2023
(Name of Resident)	Date signed
_____	Date signed
(Name of Resident)	Date signed
_____	Date signed
(Name of Resident)	Date signed
_____	Date signed
(Name of Resident)	Date signed
_____	Date signed
(Name of Resident)	Date signed
_____	Date signed

 Date signed

You are entitled to receive a copy of this Addendum after it is fully signed. Keep it in a safe place.

Bed Bugs

A Guide for Rental-Housing Residents

(Adapted with permission from the National Apartment Association)

Bed bugs are wingless, flat, broadly oval-shaped insects, with a typical lifespan of 6 to 12 months. Capable of reaching the size of an apple seed at full growth, bed bugs are distinguishable by their reddish-brown color, although after feeding on the blood of humans and warm-blooded animals—their sole food source—the bugs assume a distinctly blood-red hue until digestion is complete.

Bed bugs don't discriminate.

Bed bugs' increased presence across the United States in recent decades is due largely to a surge in international travel and trade. It's no surprise then that bed bugs have been found in some of the fanciest hotels and apartment buildings in some of the nation's most expensive neighborhoods.

Nonetheless, false claims that associate bed bugs presence with poor hygiene and uncleanness have caused rental-housing residents, out of shame, to avoid notifying owners of their presence. This only causes the bed bugs to spread.

While bed bugs are more attracted to clutter, they're certainly not discouraged by cleanliness. Bottom line: bed bugs know no social or economic bounds; claims to the contrary are false.

Bed bugs don't transmit disease.

There exists no scientific evidence that bed bugs carry disease. In fact, federal agencies tasked with addressing pests of public-health concern, namely the U.S. Environmental Protection Agency and the Centers for Disease Control and Prevention, have refused to elevate bed bugs to the threat level posed by disease-carrying pests. Again, claims associating bed bugs with disease are false.

Learn to identify bed bugs.

Bed bugs can often be found in, around, behind, under, or between:

- Bedding
- Bed frames
- Mattress seams
- Upholstered furniture, especially under cushions and along seams
- Wood furniture, especially along areas where drawers slide
- Curtains and draperies
- Window and door frames
- Ceiling and wall junctions
- Crown moldings
- Wall hangings and loose wallpaper
- Carpeting and walls (carpet can be pulled away from the wall and tack strip)
- Cracks and crevices in walls and floors
- Electronic devices, such as smoke and carbon-monoxide detectors

Because bed bugs leave some people with itchy welts similar to those made by fleas and mosquitoes, the

cause of welts like that often go misdiagnosed. One distinguishing sign is that bed-bug marks often appear in succession on exposed areas of the skin such as the face, neck, and arms. But sometimes a person has no visible reaction at all from direct contact with bed bugs.

While bed bugs typically act at night, they often leave signs of their presence through fecal markings of a red to dark-brown color, visible on or near beds. Blood stains also tend to appear when the bugs have been squashed, usually by an unsuspecting sleeping host. And because they shed, it's not uncommon to find the skin casts they leave behind.

Prevent bed-bug encounters when traveling.

Because humans serve as bed bugs' main mode of transportation, it's especially important to be mindful of bed bugs when away from home. Experts attribute the spread of bed bugs across all regions of the United States largely to increases in travel and trade, both here and abroad. So travelers are encouraged to take a few minutes on arriving to thoroughly inspect their accommodations before unpacking. Because bed bugs can easily travel from one place to another, it's also a good practice to thoroughly inspect luggage and belongings for bed bugs before heading home.

Know the bed-bug dos and don'ts.

- **Don't** bring used furniture from unknown sources into your dwelling. Countless bed-bug infestations have stemmed directly from bringing home second-hand and abandoned furniture. Unless you are absolutely sure that a piece of second-hand furniture is bed-bug-free, you should assume that a seemingly nice looking leather couch, for example, is sitting curbside waiting to be hauled off to the landfill because it's teeming with bed bugs.
- **Do** inspect rental furniture, including mattresses and couches, for the presence of bed bugs before moving it into your dwelling.
- **Do** address bed-bug sightings immediately. Rental-housing residents who suspect the presence of bed bugs in their unit must immediately notify the owner.
- **Don't** try to treat bed-bug infestations yourself. Health hazards associated with the misapplication of traditional and nontraditional chemical-based insecticides and pesticides poses too great a risk to you, your family and pets, and your neighbors.
- **Do** comply with eradication protocol. If the determination is made that your unit is indeed playing host to bed bugs, you must comply with the bed-bug-eradication protocol set forth by both your owner and their designated pest-management company.



LEASE ADDENDUM FOR COMMUNICATION VIA TEXT

1. Addendum. This is an addendum to lease contract for Apt. No. 2145 in the The Bowery at Southside
Apartments, in Fort Worth, TX.

2. The Lease Agreement, as written, is all inclusive and binding to the Landlord and the Tenant(s) with the exception of the following amendments and/or revisions:

I/We understand and agree to the following:

By providing your mobile number and signing, this constitutes your signature to agree to receive recurring informational and marketing SMS/MMS text messages from Weinstein Management Co., Inc. and/or its affiliates or agents to the number you provided, including such messages sent through an automatic dialing system. Your consent is not a condition of purchasing any property, goods, or services. Depending on your mobile phone plan, standard messaging and data rates/fees or other charges may apply. You can opt out from receiving SMS/MMS text messages by responding STOP to any message you receive. If you opt out, you may receive one additional message confirming that your request has been processed.

The undersigned have read, understand, and will comply with this Agreement.

Kathryn Copeland
Signatures of All Residents

Signature of Owner or Owner's Representative

10/17/2023
Date of Lease Contract



CITY OF FORT WORTH TENANT AND LANDLORD INSPECTION FORM

PROPERTY ADDRESS 405 Crawford St Apt# 2145, Fort Worth, TX 76104
 APARTMENT ADDRESS 405 Crawford St Apt# 2145 #2145, Fort Worth, TX 76104
 DATE 10/17/2023
 TENANTS Kathryn M Copeland

The Bowery at Southside

Print - Tenant's Name Performing the Inspection

Print - Landlord's Name Performing the Inspection

Please list the names of all persons occupying the dwelling unit (other than overnight guests).

The City of Fort Worth Code of Ordinances requires a "Tenant and Landlord Inspection" of each dwelling in a multifamily dwelling complex. The inspection of a dwelling unit shall be conducted by the landlord and the unit's tenant:

- 1) a minimum of once annually; and
- 2) when the occupancy of the dwelling changes.

THE TENANT MUST ANSWER THE FOLLOWING QUESTIONS BY CIRCLING EITHER YES OR NO.

YES -- NO Has the Landlord installed a smoke detector in this residence?
 YES -- NO Did you check to make sure the smoke detector works?
 YES -- NO If battery operated, do you know the Tenant must replace smoke detector batteries?
 YES -- NO Do you know a portable barbecue or cooking appliance cannot be used on a balcony, walkway, landing or within ten (10) feet of a combustible building?

 YES -- NO Do all electrical outlets, switches or lighting fixtures operate properly?
 YES -- NO Have you seen exposed electrical wiring inside or outside the residence?
 YES -- NO Have you noticed sewage leaking from inside or outside of the residence?
 YES -- NO Have you noticed water leaking from inside or outside of the residence?
 YES -- NO Are any of the drains clogged?
 YES -- NO Have you noticed the odor of gas inside or outside of the residence?
 YES -- NO Where evidence of infestation exists, has the dwelling been exterminated within the last 30 days?
 YES -- NO Is there broken glass in the window or door frames?
 YES -- NO Do the windows and doors lock properly?
 YES -- NO Is there a door viewer (peephole) installed in each exterior door?
 YES -- NO Is there a keyless bolting device on exterior doors that doesn't require special knowledge or tools to open?
 YES -- NO If a sliding door is present, is it equipped with a pin lock?
 YES -- NO Is the building marked with contrasting property address numbers?
 YES -- NO Is the dwelling unit number marked at the entrance to the unit?
 YES -- NO Has the Landlord advised the tenant the appropriate way to report problems to the Landlord?
 YES -- NO In case of an emergency, does the tenant have an evacuation plan?
 Where is your meeting place? _____

If the Tenant disagrees with any notation made by the Landlord, the Landlord shall permit the Tenant to make comments on the space below prior to signing it.

The Tenant has been advised to contact the following named property employee, Resident Service Center at telephone number 682-269-2862, where this employee can be contacted during any twenty-four period, to respond to emergencies such as a fire, natural disaster, flood, collapse hazard, burst pipes or violent crime.

The Tenant has been advised: TO REPORT UNRESOLVED VIOLATIONS OF CITY CODE MAINTENANCE STANDARDS FOR THESE PREMISES, CONTACT THE CODE COMPLIANCE DEPARTMENT AT 817-392-1234.

We the Tenant and Landlord confirm, the above inspection report reasonably depicts the general condition of apartment address 405 Crawford St Apt# 2145 #2145, Fort Worth, TX 76104 on _____ (MM/DD/YYYY). The Landlord must provide a copy of this signed form to the tenant. The Landlord must maintain this form for a minimum of three (3) years, and make it available for examination by the Code Compliance Department.

Tenant's Signature

Landlord's Signature

FLOOD DISCLOSURE NOTICE

In accordance with Texas law, we are providing the following flood disclosure:

- We ☐ are or ☒ are not aware that the unit you are renting is located in a 100-year floodplain. If neither box is checked, you should assume the unit is in a 100-year floodplain. Even if the unit is not in a 100-year floodplain, the unit may still be susceptible to flooding. The Federal Emergency Management Agency (FEMA) maintains a flood map on its Internet website that is searchable by address, at no cost, to determine if a unit is located in a flood hazard area. Most renter's insurance policies do not cover damages or loss incurred in a flood. You should seek insurance coverage that would cover losses caused by a flood.
- We ☐ are or ☒ are not aware that the unit you are renting has flooded (per the statutory definition below) at least once within the last five years.

As defined in Texas Property Code 92.0135(a)(2), "flooding" means "a general or temporary condition of a partial or complete inundation of a dwelling caused by: (A) the overflow of inland or tidal waters; (B) the unusual and rapid accumulation of runoff or surface waters from any established water source such as a river, stream, or drainage ditch; or (C) excessive rainfall."

Signatures of All Residents

Signature of Owner or Owner's Representative

Kathryn M Copeland

Date

**Apartment Lease Contract**

This is a binding contract. Read carefully before signing.

This Lease Contract ("Lease") is between you, the resident(s) as listed below and us. The terms "you" and "your" refer to all residents. The terms "we," "us," and "our" refer to the owner listed below.

PARTIESResidents Kathryn M CopelandOwner WMCI Dallas, X LLC dba The Bowery
at SouthsideOccupants Quinn Copeland, Penelope
Copeland**LEASE DETAILS**

A. Apartment (Par. 2) Street Address: <u>405 Crawford St Apt# 2145</u> Apartment No. <u>2145</u> City: <u>Fort Worth</u> State: <u>TX</u> Zip: <u>76104</u>		
B. Initial Lease Term. Begins: <u>05/26/2025</u> Ends at 11:59 p.m. on: <u>08/24/2025</u>		
C. Monthly Base Rent (Par. 3) \$ <u>2442.00</u>	E. Security Deposit (Par. 5) \$ <u>200.00</u> <i>Note that this amount does not include any Animal Deposit, which would be reflected in an Animal Addendum.</i>	F. Notice of Termination or Intent to Move Out (Par. 4) A minimum of <u>60</u> days' written notice of termination or intent to move out required at end of initial Lease term or during renewal period. <i>If the number of days isn't filled in, notice of at least 30 days is required.</i>
D. Prorated Rent \$ <u>479.79</u> ☒ due for the remainder of 1st month or ☐ for 2nd month		
G. Late Fees (Par. 3.3) Initial Late Fee ☒ <u>10</u> % of one month's monthly base rent or ☐ \$ _____ Daily Late Fee ☐ _____ % of one month's monthly base rent for _____ days or ☐ \$ _____ for _____ days Due if rent unpaid by 11:59 p.m. on the <u>5th</u> (3rd or greater) day of the month		
H. Returned Check or Rejected Payment Fee (Par. 3.4) \$ <u>75.00</u>	J. Early Termination Fee Option (Par. 7.2) \$ _____ Notice of _____ days is required. <i>You are not eligible for early termination if you are in default.</i> Fee must be paid no later than <u>3</u> days after you give us notice. <i>If any values or number of days are blank or "0," then this section does not apply.</i>	K. Violation Charges Animal Violation (Par. 12.2) Initial charge of \$ <u>100.00</u> per animal (not to exceed \$100 per animal) and A daily charge of \$ <u>10.00</u> per animal (not to exceed \$10 per day per animal) Insurance Violation (Master Lease Addendum or other separate addendum) \$ _____
I. Reletting Charge (Par. 7.1) A reletting charge of \$ <u>2095.25</u> (not to exceed 85% of the highest monthly Rent during the Lease term) may be charged in certain default situations		
L. Additional Rent - Monthly Recurring Fixed Charges. You will pay separately for these items as outlined below and/or in separate addenda, Special Provisions or an amendment to this Lease. Animal rent \$ _____ Cable/satellite \$ _____ Internet \$ _____ Package service \$ _____ Pest control \$ <u>5.00</u> Stormwater/drainage \$ <u>1.93</u> Trash service \$ <u>30.00</u> Washer/Dryer \$ _____ Other: _____ \$ _____ Other: _____ \$ _____ Other: _____ \$ _____ Other: _____ \$ _____		
M. Utilities and Other Variable Charges. You will pay separately for gas, water, wastewater, electricity, trash/recycling, utility billing fees and other items as outlined in separate addenda, Special Provisions or an amendment to this Lease. Utility Connection Charge or Transfer Fee: \$ <u>50.00</u> (not to exceed \$50) to be paid within 5 days of written notice (Par. 3.5)		
N. Other Charges and Requirements. You will pay separately for these items or comply with these requirements as outlined in a Master Lease Addendum, separate addenda or Special Provisions. Initial Access Device: \$ _____ Additional or Replacement Access Devices: \$ _____ Required Insurance Liability Limit (per occurrence): \$ <u>100000.00</u>		
Special Provisions. See Par. 32 or additional addenda attached. This Lease cannot be changed unless in writing and signed by you and us.		

LEASE TERMS AND CONDITIONS

1. **Definitions.** The following terms are commonly used in this Lease:
 - 1.1. **"Residents"** are those listed in "Residents" above who sign this Lease and are authorized to live in the apartment.
 - 1.2. **"Occupants"** are those listed in this Lease who are also authorized to live in the apartment, but who do not sign this Lease.
 - 1.3. **"Owner"** may be identified by an assumed name and is the owner only and not property managers or anyone else.
 - 1.4. **"Including"** in this Lease means "including but not limited to."
 - 1.5. **"Community Policies"** are the written apartment rules and policies, including property signage and instructions for care of our property and amenities, with which you, your occupants, and your guests must comply.
 - 1.6. **"Rent"** is monthly base rent plus additional monthly recurring fixed charges.
 - 1.7. **"Lease"** includes this document, any addenda and attachments, Community Policies and Special Provisions.
2. **Apartment.** You are leasing the apartment listed above for use as a private residence only.
 - 2.1. **Access.** In accordance with this Lease, you'll receive access information or devices for your apartment and mailbox, and other access devices including: Gate Remote
- 2.2. **Measurements.** Any dimensions and sizes provided to you relating to the apartment are only approximations or estimates; actual dimensions and sizes may vary.
- 2.3. **Representations.** You agree that designations or accreditations associated with the property are subject to change.
3. **Rent. You must pay your Rent on or before the 1st day of each month (due date) without demand. There are no exceptions regarding the payment of Rent, and you agree not paying Rent on or before the 1st of each month is a material breach of this Lease.**
 - 3.1. **Payments.** You will pay your Rent by any method, manner and place we specify in accordance with this Lease. **Cash is not acceptable without our prior written permission. You cannot withhold or offset Rent unless authorized by law.** We may, at our option, require at any time that you pay Rent and other sums due in one single payment by any method we specify.
 - 3.2. **Application of Payments.** Payment of each sum due is an independent covenant, which means payments are due regardless of our performance. When we receive money, other than water and wastewater payments subject to government regulation, we may apply it at our option and without notice first to any of your unpaid obligations, then to accrued rent. We may do so regardless of notations on checks or money orders and regardless of when the obligations arose. All sums other than Rent and late fees are due upon our demand. After the due date, we do not have to accept any payments.
 - 3.3. **Late Fees.** If we don't receive your monthly base rent in full when it's due, you must pay late fees as outlined in Lease Details.
 - 3.4. **Returned Payment Fee.** You'll pay the fee listed in Lease Details for each returned check or rejected electronic payment, plus initial and daily late fees if applicable, until we receive full payment in an acceptable method.
 - 3.5. **Utilities and Services.** You'll pay for all utilities and services, related deposits, and any charges or fees when they are due and as outlined in this Lease. Television channels that are provided may be changed during the Lease term if the change applies to all residents.
If your electricity is interrupted, you must use only battery-operated lighting (no flames). You must not allow any utilities (other than cable or Internet) to be cut off or switched for any reason—including disconnection for not paying your bills—until the Lease term or renewal period ends. If a utility is individually metered, it must be connected in your name and you must notify the provider of your move-out date. If you delay getting service turned on in your name by this Lease's start date or cause it to be transferred back into our name before you surrender or abandon the apartment, you'll be liable for the charge listed above (not to exceed \$50 per billing period), plus the actual or estimated cost of the utilities used while the utility should have been billed to you. If your apartment is individually metered and you change your retail electric provider, you must give us written notice. You must pay all applicable provider fees, including any fees to change service back into our name after you move out.
 - 3.6. **Lease Changes.** Lease changes are only allowed during the Lease term or renewal period if governed by Par. 10, specified in Special Provisions in Par. 32, or by a written addendum or amendment signed by you and us. At or after the end of the Initial Lease term, Rent increases will become effective with at least 5 days plus the number of days' advance notice contained in Box F on page 1 in writing from us to you. Your new Lease, which may include increased Rent or Lease changes, will begin on the date stated in any advance notice we provide (without needing your signature) unless you give us written move-out notice under Par. 25, which applies only to the end of the current Lease term or renewal period.
4. **Automatic Lease Renewal and Notice of Termination.** This Lease will automatically renew month-to-month unless either party gives written notice of termination or intent to move out as required by Par. 25 and specified on page 1. **If the number of days isn't filed in, notice of at least 30 days is required.**
5. **Security Deposit.** The total security deposit for all residents is due on or before the date this Lease is signed. Any animal deposit will be designated in an animal addendum. Security deposits may not be applied to Rent without our prior written consent.
 - 5.1. **Refunds and Deductions.** You must give us your advance notice of move out as provided by Par. 25 and forwarding address in writing to receive a written description and itemized list of charges or refund, in accordance with this Lease and as allowed by law, we may deduct from your security deposit any amounts due under this Lease. If you move out early or in response to a notice to vacate, you'll be liable for rekeying charges. Upon receipt of your move-out date and forwarding address in writing, the security deposit will be returned (less lawful deductions) with an itemized accounting of any deductions, no later than 30 days after surrender or abandonment, unless laws provide otherwise. Any refund may be by one payment jointly payable to all residents and distributed to any one resident we choose, or distributed equally among all residents.
6. **Insurance.** Our insurance doesn't cover the loss of or damage to your personal property. You will be required to have liability insurance as specified in this Lease unless otherwise prohibited by law. If you have insurance covering the apartment or your personal belongings at the time you or we suffer or allege a loss, you agree to require your insurance carrier to waive any insurance subrogation rights. Even if not required, we urge you to obtain your own insurance for losses due to theft, fire, flood, water, pipe leaks and similar occurrences. Most renter's insurance policies don't cover losses due to a flood.
7. **Reletting and Early Lease Termination.** This Lease may not be terminated early except as provided in this Lease.
 - 7.1. **Reletting Charge.** You'll be liable for a reletting charge as listed in Lease Details, (not to exceed 85% of the highest monthly Rent during the Lease term) if you: (A) fail to move in, or fail to give written move-out notice as required in Par. 25; (B) move out without paying Rent in full for the entire Lease term or renewal period; (C) move out at our demand because of your default; or (D) are judicially evicted. The reletting charge is not a termination, cancellation or buyout fee and does not release you from your obligations under this Lease, including liability for future or past-due Rent, charges for damages or other sums due.
The reletting charge is a liquidated amount covering only part of our damages—for our time, effort, and expense in finding and processing a replacement resident. These damages are uncertain and hard to ascertain—particularly those relating to inconvenience, paperwork, advertising, showing apartments, utilities for showing, checking prospects, overhead, marketing costs, and locator-service fees. You agree that the reletting charge is a reasonable estimate of our damages and that the charge is due whether or not our reletting attempts succeed.
 - 7.2. **Early Lease Termination Option Procedure.** In addition to your termination rights referred to in 7.3 or 8.1 below, if this provision applies under Lease Details, you may opt to terminate this Lease prior to the end of the Lease term ***If all of the following occur:*** (a) as outlined in Lease Details, you give us written notice of early termination, pay the Early Termination Option fee in full and specify the date by which you'll move out; (b) you are not in default at any time and do not hold over; and (c) you repay all rent concessions, credits or discounts you received during the Lease term. If you are in default, the Lease remedies apply.
 - 7.3. **Special Termination Rights.** You may have the right under Texas law to terminate this Lease early in certain situations involving military deployment or transfer, family violence, certain sexual offenses, stalking or death of a sole resident.
8. **Delay of Occupancy.** We are not responsible for any delay of your occupancy caused by construction, repairs, cleaning, or a previous resident's holding over. This Lease will remain in force subject to (1) abatement of Rent on a daily basis during delay, **and** (2) your right to terminate this Lease in writing as set forth below. Rent abatement and Lease termination do not apply if the delay is for cleaning or repairs that don't prevent you from moving into the apartment.
 - 8.1. **Termination.** If we give written notice to you of a delay in occupancy when or after this Lease begins, you may terminate this Lease within 3 days after you receive written notice. If we give you written notice before the date this Lease begins and the notice states that a construction or other delay is expected and that the apartment will be ready for you to occupy on a specific date, you may terminate this Lease within 7 days after receiving written notice.
After proper termination, you are entitled only to refund of any deposit(s) and any Rent you paid.

9. **Care of Unit and Damages.** You must promptly pay or reimburse us for loss, damage, consequential damages, government fines or charges, or cost of repairs or service in the apartment community because of a Lease violation; improper use, negligence, or other conduct by you, your invitees, your occupants, or your guests; or, as allowed by law, any other cause not due to our negligence or fault, except for damages by acts of God to the extent they couldn't be mitigated by your action or inaction.

Unless damage or wastewater stoppage is due to our negligence, we're not liable for—and you must pay for—repairs and replacements occurring during the Lease term or renewal period, including: (A) damage from wastewater stoppages caused by improper objects in lines exclusively serving your apartment; (B) damage to doors, windows, or screens; and (C) damage from windows or doors left open.

RESIDENT LIFE

10. **Community Policies.** *Community Policies become part of this Lease and must be followed.* We may make changes, including additions, to our written Community Policies, and those changes can become effective immediately if the Community Policies are distributed and applicable to all units in the apartment community and do not change the dollar amounts owed under this Lease.

- 10.1. **Photo/Video Release.** You give us permission to use any photograph, likeness, image or video taken of you while you are using property common areas or participating in any event sponsored by us.
- 10.2. **Disclosure of Information.** At our sole option, we may, but are not obligated to, share and use information related to this Lease for law-enforcement, governmental, or business purposes. At our request, you authorize any utility provider to give us information about pending or actual connections or disconnections of utility service to your apartment.
- 10.3. **Guests.** We may exclude from the apartment community any guests or others who, in our sole judgment, have been violating the law, violating this Lease or our Community Policies, or disturbing other residents, neighbors, visitors, or owner representatives. We may also exclude from any outside area or common area anyone who refuses to show photo identification or refuses to identify himself or herself as a resident, an authorized occupant, or a guest of a specific resident in the community.

Anyone not listed in this Lease cannot stay in the apartment for more than 7 days in one week without our prior written consent, and no more than twice that many days in any one month. If the previous space isn't filled in, 2 days total per week will be the limit.

- 10.4. **Notice of Convictions and Registration.** You must notify us within 15 days if you or any of your occupants: (A) are convicted of any felony, (B) are convicted of any misdemeanor involving a controlled substance, violence to another person, or destruction of property, or (C) register as a sex offender. Informing us of a criminal conviction or sex-offender registration doesn't waive any rights we may have against you.
- 10.5. **Odors, Noise and Construction.** You agree that odors and smells (including those related to cooking), everyday noises or sounds related to repair, renovation, improvement, or construction in or around the property are all a normal part of a multifamily living environment and that it is impractical for us to prevent them from penetrating your apartment.
11. **Conduct.** You agree to communicate and conduct yourself in a lawful, courteous and reasonable manner at all times when interacting with us, our representatives and other residents or occupants. Any acts of unlawful, discourteous or unreasonable communication or conduct by you, your occupants or guests is a breach of this Lease.
- You must use customary diligence in maintaining the apartment, keeping it in a sanitary condition and not damaging or littering the common areas. Trash must be disposed of at least weekly. You will use your apartment and all other areas, including any balconies, with reasonable care. We may regulate the use of passageways, patios, balconies, porches, and activities in common areas.
- 11.1. **Prohibited Conduct.** You, your occupants, and your guests will not engage in certain prohibited conduct, including the following activities:
- (a) criminal conduct; manufacturing, delivering, or possessing a controlled substance or drug paraphernalia; engaging in or threatening violence; possessing a weapon prohibited by state law; discharging a firearm in the apartment community; or, except when allowed by law, displaying or possessing a gun, knife, or other weapon in the common area, or in a way that may alarm others;
 - (b) behaving in a loud, obnoxious or dangerous manner;

- (c) disturbing or threatening the rights, comfort, health, safety, or convenience of others, including us, our agents, or our representatives;
- (d) disrupting our business operations;
- (e) storing anything in closets containing water heaters or gas appliances;
- (f) tampering with utilities or telecommunication equipment;
- (g) bringing hazardous materials into the apartment community;
- (h) using windows for entry or exit;
- (i) heating the apartment with gas-operated appliances;
- (j) making bad-faith or false allegations against us or our agents to others;
- (k) smoking of any kind, that is not in accordance with this Lease;
- (l) using glass containers in or near pools; or
- (m) conducting any kind of business (including child-care services) in your apartment or in the apartment community—except for any lawful business conducted "at home" by computer, mail, or telephone if customers, clients, patients, employees or other business associates do not come to your apartment for business purposes.

12. **Animals.** *No living creatures of any kind are allowed, even temporarily, anywhere in the apartment or apartment community unless we've given written permission.* If we allow an animal, you must sign a separate Animal Addendum and, except as set forth in the addendum, pay an animal deposit and applicable fees and additional monthly rent, as applicable. An animal deposit is considered a general security deposit. You represent that any requests, statements and representations you make, including those for an assistance or support animal, are true, accurate and made in good faith. Feeding stray, feral or wild animals is a breach of this Lease.

- 12.1. **Removal of Unauthorized Animal.** We may remove an unauthorized animal by (1) leaving, in a conspicuous place in the apartment, a written notice of our intent to remove the animal within 24 hours; and (2) following the procedures of Par. 14. We may: keep or kennel the animal; turn the animal over to a humane society, local authority or rescue organization; or return the animal to you if we consent to your request to keep the animal and you have completed and signed an Animal Addendum and paid all fees. When keeping or kenneling an animal, we won't be liable for loss, harm, sickness, or death of the animal unless due to our negligence. You must pay for the animal's reasonable care and kenneling charges.

- 12.2. **Violations of Animal Policies and Charges.** If you or any guest or occupant violates the animal restrictions of this Lease or our Community Policies, you'll be subject to charges, damages, eviction, and other remedies provided in this Lease, including animal violation charges listed in Lease Details from the date the animal was brought into your apartment until it is removed. If an animal has been in the apartment at any time during your term of occupancy (with or without our consent), we'll charge you for all cleaning and repair costs, including defleaing, deodorizing, and shampooing. Initial and daily animal-violation charges and animal-removal charges are liquidated damages for our time, inconvenience, and overhead in enforcing animal restrictions and Community Policies.

13. **Parking.** You may not be guaranteed parking. We may regulate the time, manner, and place of parking of all motorized vehicles and other modes of transportation, including bicycles and scooters. In this Lease. In addition to other rights we have to tow or boot vehicles under state law, we also have the right to remove, at the expense of the vehicle owner or operator, any vehicle that is not in compliance with this Lease.

14. **When We May Enter.** If you or any other resident, guest or occupant is present, then repair or service persons, contractors, law officers, government representatives, lenders, appraisers, prospective residents or buyers, insurance agents, persons authorized to enter under your rental application, or our representatives may peacefully enter the apartment at reasonable times for reasonable business purposes. If nobody is in the apartment, then any such person may enter peacefully and at reasonable times (by breaking a window or other means when necessary) for reasonable business purposes if written notice of the entry is left in a conspicuous place in the apartment immediately after the entry. We are under no obligation to enter only when you are present, and we may, but are not obligated to, give prior notice or make appointments.

15. Requests, Repairs and Malfunctions.

15.1. Written Requests Required. *If you or any occupant needs to send a request—for example, for repairs, installations, services, ownership disclosure, or security-related matters—it must be written and delivered to our designated representative in accordance with this Lease* (except for fair-housing accommodation or modification requests or situations involving imminent danger or threats to health or safety, such as fire, smoke, gas, explosion, or crime in progress). Our written notes regarding your oral request do not constitute a written request from you. Our complying with or responding to any oral request doesn't waive the strict requirement for written notices under this Lease. A request for maintenance or repair by anyone residing in your apartment constitutes a request from all residents. *The time, manner, method and means of performing maintenance and repairs, including whether or which vendors to use, are within our sole discretion.*

15.2. Your Requirement to Notify. You must promptly notify us in writing of air conditioning or heating problems, water leaks or moisture, mold, electrical problems, malfunctioning lights, broken or missing locks or latches, or any other condition that poses a hazard or threat to property, health, or safety. Unless we instruct otherwise, you are required to keep the apartment cooled or heated according to this Lease. Air conditioning problems are normally not emergencies.

15.3. Utilities. We may change or install utility lines or equipment serving the apartment if the work is done reasonably without substantially increasing your utility costs. We may turn off equipment and interrupt utilities as needed to perform work or to avoid property damage or other emergencies. If utilities malfunction or are damaged by fire, water, or similar cause, you must notify our representative immediately.

15.4. Your Remedies. We'll act with customary diligence to make repairs and reconnections within a reasonable time, taking into consideration when casualty-insurance proceeds are received. Unless required by statute after a casualty loss, or during equipment repair, your Rent will not abate in whole or in part. "Reasonable time" accounts for the severity and nature of the problem and the reasonable availability of materials, labor, and utilities. *If we fail to timely repair a condition that materially affects the physical health or safety of an ordinary resident as required by the Texas Property Code, you may be entitled to exercise remedies under § 92.056 and § 92.0561 of the Texas Property Code. If you follow the procedures under those sections, the following remedies, among others, may be available to you: (1) termination of this Lease and an appropriate refund under 92.056(f); (2) have the condition repaired or remedied according to § 92.0561; (3) deduct from the Rent the cost of the repair or remedy according to § 92.0561; and 4) judicial remedies according to § 92.0563.*

16. Our Right to Terminate for Apartment Community Damage or Closure. If, in our sole judgment, damages to the unit or building are significant or performance of needed repairs poses a danger to you, we may terminate this Lease and your right to possession by giving you at least 7 days' written notice. If termination occurs, you agree we'll refund only prorated rent and all deposits, minus lawful deductions. We may remove and dispose of your personal property if, in our sole judgment, it causes a health or safety hazard or impedes our ability to make repairs.

16.1. Property Closure. We also have the right to terminate this Lease and your right to possession by giving you at least 30 days' written notice of termination if we are demolishing your apartment or closing it and it will no longer be used for residential purposes for at least 6 months, or if any part of the property becomes subject to an eminent domain proceeding.

17. Assignments and Subletting. You may not assign this Lease or sublet your apartment. You agree that you won't rent, offer to rent or license all or any part of your apartment to anyone else unless otherwise agreed to in advance by us in writing. You agree that you won't accept anything of value from anyone else for the use of any part of your apartment. You agree not to list any part of your apartment on any lodging or short-term rental website or with any person or service that advertises dwellings for rent.

18. Security and Safety Devices. We'll pay for missing security devices that are required by law. You'll pay for: (A) rekeying that you request (unless we failed to rekey after the previous resident moved out); and (B) repairs or replacements because of misuse or damage by you or your family, your occupants, or your guests. You must pay immediately after the work is done unless state law authorizes advance payment. You must also pay in advance for any additional or changed security devices you request.

Texas Property Code secs. 92.151, 92.153, and 92.154 require, with some exceptions, that we provide at no cost to you when occupancy begins: (A) a window latch on each window; (B) a doorviewer (peephole or window) on each exterior door; (C) a pin lock on each sliding door; (D) either a door-handle latch or a security bar on each sliding door; (E) a keyless bolting device (deadbolt) on each exterior door; and (F) either a keyed doorknob lock or a keyed deadbolt lock on one entry door. Keyed locks will be rekeyed after the prior resident moves out. The rekeying will be done either before you move in or within 7 days after you move in, as required by law. If we fail to install or rekey security devices as required by law, you have the right to do so and deduct the reasonable cost from your next Rent payment under Texas Property Code sec. 92.165(1). We may deactivate or not install keyless bolting devices on your doors if (A) you or an occupant in the dwelling is over 55 or disabled, and (B) the requirements of Texas Property Code sec. 92.153(e) or (f) are satisfied.

18.1. Smoke Alarms and Detection Devices. We'll furnish smoke alarms or other detection devices required by law or city ordinance. We may install additional detectors not so required. We'll test them and provide working batteries when you first take possession of your apartment. Upon request, we'll provide, as required by law, a smoke alarm capable of alerting a person with a hearing impairment.

You must pay for and replace batteries as needed, unless the law provides otherwise. We may replace dead or missing batteries at your expense, without prior notice to you. Neither you nor your guests or occupants may disable alarms or detectors. *If you damage or disable the smoke alarm or remove a battery without replacing it with a working battery, you may be liable to us under Texas Property Code sec. 92.2611 for \$100 plus one month's Rent, actual damages, and attorney's fees.*

18.2. Duty to Report. You must immediately report to us any missing, malfunctioning or defective security devices, smoke alarms or detectors. You'll be liable if you fail to report malfunctions, or fail to report any loss, damage, or fines resulting from fire, smoke, or water.

19. Resident Safety and Loss. *Unless otherwise required by law, none of us, our employees, agents, or management companies are liable to you, your guests or occupants for any damage, personal injury, loss to personal property, or loss of business or personal income, from any cause, including but not limited to: negligent or intentional acts of residents, occupants, or guests; theft, burglary, assault, vandalism or other crimes; fire, flood, water leaks, rain, hail, ice, snow, smoke, lightning, wind, explosions, interruption of utilities, pipe leaks or other occurrences unless such damage, injury or loss is caused exclusively by our negligence.*

We do not warrant security of any kind. You agree that you will not rely upon any security measures taken by us for personal security, and that you will call 911 and local law enforcement authorities if any security needs arise.

You acknowledge that we are not equipped or trained to provide personal security services to you, your guests or occupants. You recognize that we are not required to provide any private security services and that no security devices or measures on the property are fail-safe. You further acknowledge that, even if an alarm or gate amenities are provided, they are mechanical devices that can malfunction. Any charges resulting from the use of an intrusion alarm will be charged to you, including, but not limited to, any false alarms with police/fire/ambulance response or other required city charges.

20. Condition of the Premises and Alterations.

20.1. As-Is. *We disclaim all implied warranties.* You accept the apartment, fixtures, and furniture as is, except for conditions materially affecting the health or safety of ordinary persons. You'll be given an Inventory and Condition Form at or before move-in. You agree that after completion of the form or **within 48 hours** after move-in, whichever comes first, you must note on the form all defects or damage, sign the form, return it to us, and the form accurately reflects the condition of the premises for purposes of determining any refund due to you when you move out. Otherwise, everything will be considered to be in a clean, safe, and good working condition. You must still send a separate request for any repairs needed as provided by Par. 15.1.

20.2. Standards and Improvements. Unless authorized by law or by us in writing, you must not perform any repairs, painting, wallpapering, carpeting, electrical changes, or otherwise alter our property. No holes or stickers are allowed inside or outside the apartment. Unless this Lease states otherwise, we'll permit a reasonable number of small nail holes for hanging pictures on sheetrock walls and in grooves of wood-paneled walls. No water furniture, washing machines, dryers, extra phone or television outlets, alarm systems, cameras, two-way talk device, video or other door-

bells, or lock changes, additions, or rekeying is permitted unless required by law or we've consented in writing. You may install a satellite dish or antenna, but only if you sign our satellite dish or antenna lease addendum, which complies with reasonable restrictions allowed by federal law. You must not alter, damage, or remove our property, including alarm systems, detection devices, appliances, furniture, telephone and television wiring, screens, locks, or security devices. When you move in, we'll supply light bulbs for fixtures we furnish, including exterior fixtures operated from inside the apartment; after that, you'll replace them at your expense with bulbs of the same type and wattage. Your improvements to the apartment (made with or without our consent) become ours unless we agree otherwise in writing.

- 21. Notices.** Written notice to or from our employees, agents, or management companies constitutes notice to or from us. Notices to you or any other resident of the apartment constitute notice to all residents. Notices and requests from any resident constitute notice from all residents. Only residents can give notice of Lease termination and intent to move out under Par. 7.3. All notices and documents will be in English and, at our option, in any other language that you read or speak.

- 21.1. Electronic Notice.** Notice may be given electronically *by us to you* if allowed by law. If allowed by law and in accordance with this Lease, electronic notice *from you to us* must be sent to the email address and/or portal specified in this Lease. Notice may also be given by phone call or to a physical address if allowed in this Lease.

You represent that you have provided your current email address to us, and that you will notify us in the event your email address changes.

EVICITION AND REMEDIES

- 22. Liability.** Each resident is jointly and severally liable for all Lease obligations. If you or any guest or occupant violates this Lease or our Community Policies, all residents are considered to have violated this Lease.

- 22.1. Indemnification by You.** *You'll defend, indemnify and hold us and our employees, agents, and management company harmless from all liability arising from your conduct or requests to our representatives and from the conduct of or requests by your invitees, occupants or guests.*

- 23. Default by Resident.**

- 23.1. Acts of Default.** You'll be in default if: (A) you don't timely pay Rent, including monthly recurring charges, or other amounts you owe; (B) you or any guest or occupant violates this Lease, our Community Policies, or fire, safety, health, criminal or other laws, regardless of whether or where arrest or conviction occurs; (C) you give incorrect, incomplete, or false answers in a rental application or in this Lease; or (D) you or any occupant is charged, detained, convicted, or given deferred adjudication or pretrial diversion for (1) an offense involving actual or potential physical harm to a person, or involving the manufacture or delivery of a controlled substance, marijuana, or drug paraphernalia as defined in the Texas Controlled Substances Act, or (2) any sex-related crime, including a misdemeanor.

- 23.2. Eviction.** *If you default, including holding over, we may end your right of occupancy by giving you at least a 24-hour written notice to vacate.* Termination of your possession rights doesn't release you from liability for future Rent or other Lease obligations. *After giving notice to vacate or filing an eviction suit, we may still accept Rent or other sums due; the filing or acceptance doesn't waive or diminish our right of eviction or any other contractual or statutory right.* Accepting money at any time doesn't waive our right to damages, to past or future Rent or other sums, or to our continuing with eviction proceedings. In an eviction, Rent is owed for the full rental period and will not be prorated.

- 23.3. Acceleration.** Unless we elect not to accelerate Rent, all monthly Rent for the rest of the Lease term or renewal period will be accelerated automatically without notice or demand (before or after acceleration) and will be immediately due if, without our written consent: (A) you move out, remove property in preparing to move out, or you or any occupant gives oral or written notice of intent to move out before the Lease term or renewal period ends; and (B) you haven't paid all Rent for the entire Lease term or renewal period. Remaining Rent will also be accelerated if you're judicially evicted or move out when we demand because you've defaulted.

If you don't pay the first month's Rent when or before this Lease begins, all future Rent for the Lease term will be automatically accelerated without notice and become immediately due. We also may end your right of occupancy and recover damages, future Rent, attorney's fees, court costs, and other lawful charges.

- 23.4. Holdover.** You and all occupants must vacate and surrender the apartment by or before the date contained in: (1) your move-out notice (2) our notice to vacate, (3) our notice of non-renewal, or (4) a written agreement specifying a different move-out date. If a holdover occurs, then you'll be liable to us for all Rent for the full term of the previously signed lease of a new resident who can't occupy because of the holdover, and at our option, we may extend the Lease term and/or increase the Rent by 25% by delivering written notice to you or your apartment while you continue to hold over.

- 23.5. Other Remedies.** We may report unpaid amounts to credit agencies as allowed by law. If we or our debt collector tries to collect any money you owe us, you agree that we or the debt collector may contact you by any legal means. If you default, you will pay us, in addition to other sums due, any rental discounts or concessions agreed to in writing that have been applied to your account. We may recover attorney's fees in connection with enforcing our rights under this Lease. All unpaid amounts you owe bear interest at the rate provided by Texas Finance Code Section 304.003(c) from the due date. You must pay all collection-agency fees if you fail to pay sums due within 10 days after you are mailed a letter demanding payment and stating that collection-agency fees will be added if you don't pay all sums by that deadline. You are also liable for a charge (not to exceed \$150) to cover our time, cost and expense for any eviction proceeding against you, plus our attorney's fees and expenses, court costs, and filing fees actually paid.

- 24. Representatives' Authority and Waivers.** *Our representatives (including management personnel, employees, and agents) have no authority to waive, amend, or terminate this Lease or any part of it unless in writing and signed, and no authority to make promises, representations, or agreements that impose security duties or other obligations on us or our representatives, unless in writing and signed.* No action or omission by us will be considered a waiver of our rights or of any subsequent violation, default, or time or place of performance. *Our choice to enforce, not enforce or delay enforcement of written-notice requirements, rental due dates, acceleration, liens, or any other rights isn't a waiver under any circumstances.* Delay in demanding sums you owe is not a waiver. Except when notice or demand is required by law, you waive any notice and demand for performance from us if you default. Nothing in this Lease constitutes a waiver of our remedies for a breach under your prior lease that occurred before the Lease term begins. Your Lease is subordinate to existing and future recorded mortgages, unless the owner's lender chooses otherwise.

All remedies are cumulative. Exercising one remedy won't constitute an election or waiver of other remedies. All provisions regarding our nonliability or nonduty apply to our employees, agents, and management companies. No employee, agent, or management company is personally liable for any of our contractual, statutory, or other obligations merely by virtue of acting on our behalf.

END OF THE LEASE TERM

- 25. Move-Out Notice.** *Before moving out, you must give our representative advance written move-out notice as stated in Par. 4, even if this Lease has become a month-to-month lease.* The move-out date can't be changed unless we and you both agree in writing.

Your move-out notice must comply with each of the following:

- Unless we require more than 30 days' notice, if you give notice on the first day of the month you intend to move out, move out will be on the last day of that month.
- Your move-out notice must not terminate this Lease before the end of the Lease term or renewal period.
- If we require you to give us more than 30 days' written notice to move out before the end of the Lease term, we will give you 1 written reminder not less than 5 days nor more than 90 days before your deadline for giving us your written move-out notice. If we fail to give a reminder notice, 30 days' written notice to move out is required.
- You must get from us a written acknowledgment of your notice.

- 26. Move-Out Procedures.**

- 26.1. Cleaning.** You must thoroughly clean the apartment, including doors, windows, furniture, bathrooms, kitchen appliances, patios, balconies, garages, carports, and storage rooms. You must follow move-out cleaning instructions if they have been provided. If you don't clean adequately, you'll be liable for reasonable cleaning charges—including charges for cleaning carpets, draperies, furniture, walls, etc. that are soiled beyond

normal wear (that is, wear or soiling that occurs without negligence, carelessness, accident, or abuse).

- 26.2. Move-Out Inspection.** We may, but are not obligated to, provide a joint move-out inspection. Our representatives have no authority to bind or limit us regarding deductions for repairs, damages, or charges. Any statements or estimates by us or our representative are subject to our correction, modification, or disapproval before final accounting or refunding.

- 27. Surrender and Abandonment.** You have **surrendered** the apartment when: (A) the move-out date has passed and no one is living in the apartment in our reasonable judgment; or (B) apartment keys and access devices listed in Par. 2.1 have been turned in to us—whichever happens first.

You have **abandoned** the apartment when all of the following have occurred: (A) everyone appears to have moved out in our reasonable judgment; (B) you've been in default for nonpayment of Rent for 5 consecutive days, or water, gas, or electric service for the apartment not connected in our name has been terminated or transferred; **and** (C) you've not responded for 2 days to our notice left on the inside of the main entry door stating that we consider the apartment abandoned. An apartment is also considered abandoned 10 days after the death of a sole resident.

- 27.1. The Ending of Your Rights.** Surrender, abandonment, or judicial eviction ends your right of possession for all purposes and gives us the immediate right to clean up, make repairs in, and relet the apartment; determine any security-deposit deductions; and remove or store property left in the apartment.

- 27.2. Removal and Storage of Property.** We, or law officers, may—but have no duty to—remove or store all property that in our sole judgment belongs to you and remains in the apartment or in common areas (including any vehicles you or any occupant or guest owns or uses) after you're judicially evicted or if you surrender or abandon the apartment.

We're not liable for casualty, loss, damage, or theft. You must pay reasonable charges for our packing, removing and storing any property.

Except for animals, we may throw away or give to a charitable organization all personal property that is:

- (1) left in the apartment after surrender or abandonment; or
- (2) left outside more than 1 hour after writ of possession is executed, following judicial eviction.

An animal removed after surrender, abandonment, or eviction may be kennelled or turned over to a local authority, humane society, or rescue organization.

GENERAL PROVISIONS AND SIGNATURES

- 28. TAA Membership.** We, the management company representing us, or any locator service that you used confirms membership in good standing of both the Texas Apartment Association and the affiliated local apartment association for the area where the apartment is located at the time of signing this Lease. If not, the following applies: (A) this Lease is voidable at your option and is unenforceable by us (except for property damages); and (B) we may not recover past or future rent or other charges. The above remedies also apply if both of the following occur: (1) this Lease is automatically renewed on a month-to-month basis more than once after membership in TAA and the local association has lapsed; and (2) neither the owner nor the management company is a member of TAA and the local association during the third automatic renewal. A signed affidavit from the affiliated local apartment association attesting to nonmembership when this Lease or renewal was signed will be conclusive evidence of nonmembership. Governmental entities may use TAA forms if TAA agrees in writing.

Name, address and telephone number of locator service (if applicable):

- 29. Severability and Survivability.** If any provision of this Lease is invalid or unenforceable under applicable law, it won't invalidate the remainder of this Lease or change the intent of the parties. **Paragraphs 10.1, 10.2, 16, 22.1, 27, 30 and 31 shall survive the termination of this Lease.** This Lease binds subsequent owners.

- 30. Controlling Law.** Texas law governs this Lease. All litigation arising under this Lease and all Lease obligations must be brought in the county, and precinct if applicable, where the apartment is located.

- 31. Waivers.** By signing this Lease, you agree to the following:

- 31.1. Class Action Waiver.** You agree that you will not participate in any class action claims against us or our employees, agents, or management company. You must file any claim against us individually, and you expressly waive your right to bring, represent, join or otherwise maintain a class action, collective action or similar proceeding against us in any forum.

YOU UNDERSTAND THAT, WITHOUT THIS WAIVER, YOU COULD BE A PARTY IN A CLASS ACTION LAWSUIT. BY SIGNING THIS LEASE, YOU ACCEPT THIS WAIVER AND CHOOSE TO HAVE ANY CLAIMS DECIDED INDIVIDUALLY. THE PROVISIONS OF THIS PARAGRAPH SHALL SURVIVE THE TERMINATION OR EXPIRATION OF THIS LEASE.

- 31.2. Force Majeure.** If we are prevented from completing substantial performance of any obligation under this Lease by occurrences that are beyond our control, including but not limited to, an act of God, strikes, epidemics, war, acts of terrorism, riots, flood, fire, hurricane, tornado, sabotage or governmental regulation, then we shall be excused from any further performance of obligations to the fullest extent allowed by law.

- 32. Special Provisions.** The following, or attached Special Provisions and any addenda or Community Policies provided to you, are part of this Lease and supersede any conflicting provisions in this Lease.

The term 'Utility Connection Charge or Transfer Fee', as it relates to the "charge" in paragraph 3.5, means per utility, per billing cycle. The supplemental Resident Handbook that you agree to comply with is accessible electronically via the online Resident Portal. For "J. Optional Early Termination Fee" section, contact leasing office for fee/details. Do not tamper with or disable any fire safety or CO2 equipment (alarms, horns, detectors, sprinklers, etc.). This violates the lease and may result in fines, reimbursement, or legal action. Do not prop any doors or gates open including but not limited to, package room, pool, amenities, etc. Doing so may result in a loss of privilege and/or lease termination.

Before submitting a rental application or signing this Lease, you should review the documents and may consult an attorney. You are bound by this Lease when it is signed. An electronic signature is binding. This Lease, including all addenda, is the entire agreement between you and us. You agree that you are NOT relying on any oral representations.

Resident or Residents (all sign below)

Kathryn M Copeland 04/29/2025
(Name of Resident) Date signed

(Name of Resident) Date signed

(Name of Resident) Date signed

(Name of Resident) Date signed

(Name of Resident) Date signed

(Name of Resident) Date signed

Owner or Owner's Representative (signing on behalf of owner)

COMMUNITY POLICIES ADDENDUM

1. **Addendum.** This is an addendum to the Lease between you and us for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowery at Southside Apartments in Fort Worth, Texas OR the house, duplex, etc. located at (street address) _____ in _____, Texas.

2. **Payments.** All payments for any amounts due under the Lease must be made:

- ☒ at the onsite manager's office
☒ through our online portal
☒ by mail to 220 E Broadway Ave, Fort Worth, TX 79104, or
☒ other: www.bowerysouthside.com

The following payment methods are accepted:

- ☒ electronic payment
☒ personal check
☒ cashier's check
☒ money order, or
☐ other: _____

We have the right to reject any payment not made in compliance with this paragraph.

3. **Security Deposit Deductions and Other Charges.** You'll be liable for the following charges, if applicable: unpaid rent; unpaid utilities; unreimbursed service charges; repairs or damages caused by negligence, carelessness, accident, or abuse, including stickers, scratches, tears, burns, stains, or unapproved holes; replacement cost of our property that was in or attached to the apartment and is missing; replacing dead or missing alarm or detection-device batteries at any time; utilities for repairs or cleaning; trips to let in company representatives to remove your telephone, Internet, television services, or rental items (if you so request or have moved out); trips to open the apartment when you or any guest or occupant is missing a key; unreturned keys; missing or burned-out light bulbs; removing or rekeying unauthorized security devices or alarm systems; packing, removing, or storing property removed or stored under the Lease; removing illegally parked vehicles; special trips for trash removal caused by parked vehicles blocking dumpsters; false security-alarm charges unless due to our negligence; animal-related charges outlined in the Lease; government fees or fines against us for violation (by you, your occupants, or your guests) of local ordinances relating to alarms and detection devices, false alarms, recycling, or other matters; late-payment and returned-check charges; and other sums due under this Lease. You'll be liable to us for charges for replacing any keys and access devices referenced in the Lease if you don't return them all on or before your actual move-out date; and accelerated rent if you've violated the Lease. *We may also deduct from your security deposit our reasonable costs incurred in rekeying security devices required by law if you vacate the apartment in breach of this Lease.*

Upon receipt of your move-out date and forwarding address in writing, the security deposit will be returned (less lawful deductions) with an itemized accounting of any deductions, no later than 30 days after surrender or abandonment, unless laws provide otherwise. Any refund may be by one payment jointly payable to all residents and distributed to any one resident we choose or distributed equally among all residents.

4. **Requests, Consent, Access and Emergency Contact.** All written requests to us must be submitted by:

- ☒ online portal
☒ email to thebowery@weinsteinproperties.com
☒ hand delivery to our management office, or
☐ other: _____

From time to time, we may call or text residents with certain promotional or marketing messages that may be of interest. By signing this form and providing contact information, you are giving us your express written consent to contact you at the telephone number you provided for marketing or promotional purposes, even if the phone number you provided is on a corporate, state or national Do Not Call list. To opt out of receiving these messages, please submit a written request to us by the method noted above.

You agree to receive these messages from us through an automatic telephone dialing system, prerecorded/artificial voice messages, SMS or text messages, or any other data or voice transmission technology. Your agreement is not required as a condition of the purchase of any property, goods, or services from us.

Any resident, occupant, or spouse who, according to a remaining resident's affidavit, has permanently moved out or is under court order not to enter the apartment, is (at our option) no longer entitled to occupancy or access devices, unless authorized by court order.

After-hours phone number (833) 887-1948

(Always call 911 for police, fire, possible criminal activity or medical emergencies.)

5. **Parking.** We may have any unauthorized or illegally parked vehicles towed or booted according to state law at the owner or operator's expense at any time if the vehicle: (a) has a flat tire or is otherwise inoperable; (b) is on jacks, on blocks, or has a wheel missing; (c) takes up more than one parking space; (d) belongs to a resident or occupant who has surrendered or abandoned the apartment; (e) is in a handicapped space without the legally required handicapped insignia; (f) is in a space marked for office visitors, managers, or staff; (g) blocks another vehicle from exiting; (h) is in a fire lane or designated "no parking" area; (i) is in a space that requires a permit or is reserved for another resident or apartment; (j) is on the grass, sidewalk, or patio; (k) blocks a garbage truck from access to a dumpster; (l) has no current license or registration, and we have given you at least 10 days' notice that the vehicle will be towed if not removed; or (m) is not moved to allow parking lot maintenance.

6. **HVAC Operation.** If the exterior temperature drops below 32° F you must keep the heat on and set to a minimum of 50° F. You must also open all closets, cabinets, and doors under sinks to assist in keeping plumbing fixtures and plumbing pipes from freezing, and you must drip all the faucets in your apartment using both the hot and cold water. Leave the faucets dripping until the exterior temperature rises above 32° F. You must leave your HVAC system on, even if you leave for multiple days, and have it set to auto at all times.

7. **Amenities.** Your permission for use of all common areas, amenities, and recreational facilities (collectively "Amenities") located at the property is a license granted by us. This permission is expressly conditioned upon your compliance with the terms of the Lease, the Community Policies, and any signage posted in or around any of the Amenities. We have the right to set the days and hours of use for all Amenities and to change those or close any of the Amenities based upon our needs. We may make changes to the rules for the use of the Amenities at any time.

Neither we nor any of our agents, employees, management company, its agents, or its employees shall be liable for any damage or injury that results from the use of any Amenities by you, your invitees, your licensees, your occupants, or your guests. This release applies to any and all current, past or future claims or liability of any kind related to your decision to use the Amenities.

8. **Package Services.** We ☐ do or ☒ do not accept packages on behalf of residents.

If we DO accept packages, you give us permission to sign and accept any parcels or letters you receive through UPS, Federal Express, Airborne, United States Postal Service or other package delivery services. You agree that we are not liable or responsible for any lost, damaged or unordered deliveries and will hold us harmless.

9. **Fair Housing Policy.** We comply with applicable fair housing laws. In accordance with fair housing laws, we'll make reasonable accommodations to our rules, policies, practices or services and allow reasonable modifications to give disabled persons access to and use of the dwelling and common areas. We may require you to sign an addendum regarding the implementation of any accommodations or modifications, as well as your restoration obligations, if any. This fair housing policy does not expand or limit any rights and obligations under applicable law.

10. **Special Provisions.** The following special provisions control over conflicting provisions of this form:

The Supplemental Resident Handbook that you agree to comply with is accessible electronically via the online resident portal. Tenant(s) and their guests shall not cause or allow pest infestations. Any infestation, real or suspected, must be reported to the Owner in writing immediately. If Tenant(s) fail to: 1) provide access for inspection or treatment, 2) prepare the apartment as required, or 3) pay pest control fees resulting from their actions, Tenant(s) will be in default and liable for damages. Tenant(s) are responsible for any costs incurred due to non-compliance. If personal property removal is necessary, Tenant(s) agree to dispose of it outside the apartment community.

Kathryn M Copeland
Signature of All Residents

Signature of Owner or Owner's Representative



Animal Addendum

Please note: We consider animals a serious responsibility and a risk to each resident in the dwelling. If you do not properly control and care for an animal, you'll be liable if it causes damage or disturbs other residents.

1. Dwelling Unit.

Unit # 2145 at 405 Crawford St
Apt# 2145
 (street address) in Fort Worth
 (city), Texas 76104 (zip code).

2. Lease.

Owner's name: WMCI Dallas, X LLC dba The
Bowery at Southside

Residents (list all residents): Kathryn M Copeland

3. **Conditional Authorization for Animal.** You may keep the animal or animals described below in the dwelling until the Lease expires. We may terminate this authorization sooner if your right of occupancy is lawfully terminated or if in our judgment you, your animal, your guest, or any occupant violates any of the rules in this addendum.

4. **Animal Deposit.** You must pay a one-time animal deposit of \$_____ when you sign this addendum. This deposit is in addition to your total security deposit under the Lease, which is a general security deposit for all purposes. Refund of the total security deposit is subject to the terms and conditions in the Lease, and this animal-deposit portion of the total deposit is not separately refundable even if the animal is removed.

5. **Assistance or Service Animals.** When allowed by applicable laws, we may require written verification of or make other inquiries regarding the disability-related need for an assistance or service animal for a person with a disability. We will not charge an animal deposit, additional rent, or other fee for any authorized assistance or service animal. Except as provided by applicable law, all other provisions of this addendum apply to assistance or service animals.

6. **Search and Rescue Dogs.** We may ask the handler of a search and rescue dog for proof he or she is a person with a certification issued by a nationally recognized search and rescue agency before we authorize a search and rescue dog. If we authorize a search and rescue dog, we will not charge an animal deposit, additional rent or other fee for any such dog. Except as provided by applicable law, all other provisions of this addendum apply to search and rescue dogs.

7. **Additional Monthly Rent.** Your monthly base rent (as stated in the Lease) will be increased by \$_____.

8. **Additional Fee.** You must also pay a one-time nonrefundable fee of \$_____ to keep the animal in the dwelling unit. The fee is due when you sign this addendum.

9. **Liability Not Limited.** The additional monthly rent and additional security deposit under this Animal Addendum do not limit residents' liability for property damage, cleaning, deodorization, defecating, replacements, or personal injuries.

10. **Description of Animal.** You may keep only the animal or animals described below. You may not substitute any other animal. Neither you nor your guests or occupants may bring any other animal—mammal, reptile, bird, amphibian, fish, rodent, arachnid, or insect—into the dwelling or apartment community.

Animal's name: Ruby (ESA)

Type: Dog

Breed: Cavalier King Charles

Color: Red & White

Weight: 16 lbs

Age: _____

City of license: _____

License #: _____

Date of last rabies shot: _____

Housebroken? _____

Animal owner's name: _____

Animal's name: Moon (ESA)

Type: Dog

Breed: Cavalier King Charles

Color: Black and White

Weight: 13lbs

Age: _____

City of license: _____

License #: _____

Date of last rabies shot: _____

Housebroken? _____

Animal owner's name: _____

Animal's name: _____

Type: _____

Breed: _____

Color: _____

Weight: _____

Age: _____

City of license: _____

License #: _____

Date of last rabies shot: _____

Housebroken? _____

Animal owner's name: _____

11. **Special Provisions.** The following special provisions control over any conflicting provisions of this addendum:

See additional addendum titled Animal
Addendum Special Provisions continued.

12. **Emergency.** In an emergency involving an accident or injury to your animal, we have the right—but not the duty—to take the animal to the following veterinarian for treatment, at your expense.

Doctor: _____

Address: _____

City/State/Zip: _____

Phone: (_____) _____

13. **Animal Rules.** You are responsible for the animal's actions at all times. You agree to follow these rules:

13.1 **Shots and Licenses.** The animal at all times must have current rabies shots and licenses required by law. You must show us evidence of the shots and licenses if we ask.

13.2 **Disturbances.** The animal must not disturb the neighbors or other residents, regardless of whether the animal is inside or outside the dwelling.

13.3 **Housebreaking, Cages, Offspring.** Dogs, cats, assistance or service animals, and search and rescue dogs must be housebroken. All other animals must be caged at all times. No animal offspring are allowed.

13.4 **Indoor Waste Areas.** Inside, the animal may urinate or defecate only in these designated areas: litterbox

13.5 **Outdoor Waste Areas.** Outside, the animal may urinate or defecate only in these designated areas: Must clean up after pet.

13.6 **Tethering.** Animals may not be tied to any fixed object anywhere outside the dwelling units, except in fenced yards (if any) for your exclusive use.

- 13.7 Off-Limit Areas.** You must not let an animal—other than an assistance or service animal—into swimming-pool areas, laundry rooms, offices, clubrooms, other recreational facilities, or other dwelling units besides your own, except that search and rescue dogs shall be allowed to use areas of the property accessible to the general public, such as the leasing office. Certain service animals in training shall also be allowed to use those areas when accompanied by an approved trainer.
- 13.8 Food & Water.** Your animal must be fed and given water inside the dwelling unit. You may not leave animal food or water outside the dwelling unit at any time, except in fenced yards (if any) for your exclusive use.
- 13.9 Leash.** You must keep the animal on a leash and under your supervision when outside the dwelling or in any private fenced area. We or our representative may pick up unleashed animals, report them to the proper authorities, or do both. We'll charge you a reasonable fee for picking up and keeping unleashed animals.
- 13.10 Animal Waste.** Unless we have designated a particular area in your dwelling unit or on the grounds for animal defecation and urination, you are prohibited from letting an animal defecate or urinate anywhere on our property and you must take the animal off our property for that purpose. If we allow animal defecation inside the unit, you must ensure that it's done in a litter box with a kitty-litter-type mix. If the animal defecates anywhere on our property (including in a fenced yard for your exclusive use), you must immediately remove the waste and repair any damage. In addition to the terms of this addendum, you must comply with all local ordinances regarding animal defecation.
- 14. Additional Rules.** We may make reasonable changes to the animal rules from time to time if we distribute a written copy of any changes to every resident who is allowed to have animals.
- 15. Violation of Rules.** If you, your guest, or any occupant violates any rule or provision of this addendum (in our judgment) and we give you written notice of the violation, you must remove the animal immediately and permanently from the premises. We also have all other rights and remedies set forth in the Lease, including eviction and recovering damages and attorney's fees from you.
- 16. Complaints About Animal.** If we receive a reasonable complaint from a neighbor or other resident or if we, in our sole discretion, determine that the animal has disturbed neighbors or other residents, we will give you written notice and you must immediately and permanently remove the animal from the premises.
- 17. Our Removal of an Animal.** In some circumstances, we may enter the dwelling unit and remove the animal within one day after leaving a written notice in a conspicuous place.
- 17.1 Causes for Removal.** We can remove an animal under this paragraph if, in our sole judgment, you have:
- (A) abandoned the animal;
 - (B) left the animal in the dwelling unit for an extended period of time without food or water;
 - (C) failed to care for a sick animal;
 - (D) violated our animal rules; OR
 - (E) let the animal defecate or urinate where it's not allowed.
- 17.2 Removal Process.** To remove an animal, we must follow the procedures in the Lease, and we may turn the animal over to a humane society or local authority. We'll return the animal to you upon request if we haven't already turned it over to a humane society or local authority. We don't have a lien on the animal for any purpose, but you must pay for reasonable care and kenneling charges for the animal. If you don't pick up the animal within five days after we remove it, it will be considered abandoned.
- 18. Liability for Damage, Injuries, Cleaning.** Except for reasonable wear and tear resulting from an assistance or service animal, you and all co-residents are jointly and severally liable for the entire amount of any damage the animal causes, including cleaning, defleeting, or deodorizing. This provision applies to all parts of the dwelling unit including carpets, doors, walls, drapes, wallpaper, windows, screens, furniture, and appliances, as well as landscaping and other outside improvements. If an item cannot be satisfactorily cleaned or repaired, you must pay for us to replace it. Payment for damage, repairs, cleaning, replacements, and the like are due immediately upon demand. As the owner, you're strictly liable for the entire amount of any injury that your animal causes to another person or to anyone's property. You indemnify us for all costs of litigation and attorney's fees resulting from any such injury or damage.
- 19. Move-Out.** Except for reasonable wear and tear resulting from an assistance or service animal, when you move out, you'll pay for defleeting, deodorizing, and shampooing to protect future residents from possible health hazards, regardless of how long the animal was there. We—not you—will arrange for these services.
- 20. Multiple Residents.** Each resident who signed the Lease must also sign this addendum. You, your guests, and any occupants must follow all animal rules. Each resident is jointly and severally liable for damages and all other obligations set forth in this addendum, even if the resident does not own the animal.
- 21. Dog Park.** We may provide an area to be used as a dog park. While using the park, you will be required to supervise your dog, but may remove the leash. Leashes must be used while travelling to and from the park. The park is not supervised or monitored in any way, and you use the park at your own risk. We are not liable for any injury, damage or loss which is caused as a result of any problem, defect or malfunction of the park. We are also not liable for injury, damage or loss to any person, animal or property caused by any other person or animal, including, but not limited to, dog bite, trespass, assault or any other crime. Furthermore, we are not liable for any disruption in the park's operation or performance. You hereby release us and our agents, contractors, employees and representatives from any liability connected with the park. You agree to be responsible for any property damage caused by you, your guests or other occupants to the park. You understand that participating in any activity at the park carries a risk of injury, and you are willing to assume this risk. We make no representations or warranties of any kind regarding the park.
- 22. General.** You acknowledge that no other oral or written agreement exists regarding animals. Except for any special provisions noted in paragraph 11 above, our representative has no authority to modify this addendum or the animal rules except in writing as described under paragraph 14. This Animal Addendum and the animal rules are considered part of the Lease described above.
- 23. Animal Restrictions.** No animal will be allowed that poses a threat to any other person. You represent that your animal(s) does not pose a danger or threat of any kind to any person or property; has not displayed vicious, aggressive or dangerous behavior; and has never before injured you or any other person or animal or caused any damage to your property or another person's property. You affirmatively represent and warrant that you have never had a claim or lawsuit filed against you or anyone else for an injury or damage caused by or related to the animal. You understand and agree that the approval of the animal to live in your apartment is expressly conditioned upon all of the foregoing being true and if you have made any misrepresentation it is a violation of the Lease.

You are legally bound by this document. Please read it carefully.

You are entitled to receive a copy of this Addendum after it is fully signed. Keep it in a safe place.

Resident or Residents (all sign below)

<u>Kathryn M. Copeland</u>	04/29/2025
(Name of Resident)	Date signed
_____	Date signed
(Name of Resident)	Date signed
_____	Date signed
(Name of Resident)	Date signed
_____	Date signed
(Name of Resident)	Date signed
_____	Date signed
(Name of Resident)	Date signed
_____	Date signed

Owner or Owner's Representative (sign below)

Date signed



Animal Addendum

Special Provisions (continued from Animal Addendum)

Special Provisions (continued): The following special provisions control over any conflicting provisions of the Animal Addendum:

A maximum of three (3) animals is allowed per apartment, including caged/tanked animals. No farm animals or livestock are allowed. The following dog breeds are prohibited on the property: Chow, Rottweiler, Staffordshire Terrier, Pit Bull, Doberman Pinscher, certain Mastiff breeds and mixed breeds that contain any portion of the foregoing breeds. Dogs resembling a prohibited breed are also prohibited, regardless of veterinary records to the contrary. Landlord, in its sole discretion, may elect to prohibit additional breeds of animals not listed above. If the animal demonstrates aggressive behavior at any time, we have the right to require the animal to be muzzled while on property and/or require the animal to be permanently removed from the premises in our discretion. There is a 3-dog maximum in ground floor apartments and a 2-dog maximum in apartments located on other floors. Tenant will incur a fee of \$25.00/incident for not picking up pet waste. If Tenant repeatedly fails to pick up pet waste, Tenant may be subject to additional action, including without limitation a lease violation notice. The deposit referenced in paragraph 4 of the Animal Addendum, additional fee referenced in paragraph 8 of the Animal Addendum and pet rent referenced in paragraph 7 of the Animal Addendum shall be as follows based on the number of animals (excluding caged/tanked animals) in the table below. There are to be no visiting animals, for any period of time, unless (i) owner has granted advance written approval, (ii) Tenant complies with paragraph 12 of the Lease, (iii) Tenant has delivered a signed animal addendum to owner regarding the visiting pet, and Tenant pays a daily non-refundable fee of \$10 for each visiting pet. All visiting pets must abide by the Pet Rules and Restrictions listed in the Animal Addendum and Resident Handbook. If any animal visits for more than ten (10) days on an annual basis, the animal shall not be deemed a visiting animal and Tenant shall be required to pay the deposit, additional fee and monthly pet rent as set forth herein. Tenant(s) authorizes Agent to inspect the premises, after the visit end date to insure the pet has been removed. If tenant does not obtain prior written consent for a visiting pet, the pet will be treated as unregistered and subject to the terms in the paragraph related to Unregistered Pets. Caged/tanked animals are allowed but 1) must remain in their cage/tank. 2) cannot be venomous/poisonous; and fish tanks must be less than 30 gallons. 3) Type, breed and size restrictions apply. 4) require a \$100 deposit prior to bringing the animal(s) to the property (fish tanks less than 10 gallons; no deposit). Note: The \$100 deposit is for up to 3 caged/tanked animals; no more than three animals are allowed per apartment.

Number of animals	Deposit	Additional Fee	Monthly Pet Rent
1	\$200.00	\$350.00	\$25.00
2	\$400.00	\$600.00	\$50.00
3	\$600.00	\$850.00	\$75.00

Resident or Residents

[All residents must sign here]

Kathryn M Copeland

Owner or Owner's Representative

[signs here]

Date of Lease Contract

04/29/2025

INSURANCE ADDENDUM

1. **Addendum.** This is an addendum to the TAA Lease Contract for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowery at Southside

_____ Apartments in Fort Worth,
Texas OR

the house, duplex, etc. located at (street address) _____
in _____, Texas.

The terms of this addendum will control if the term of the Lease and this addendum conflict.

2. **Required Insurance Policy.** In accordance with the Lease, you understand and agree that this addendum requires Resident, at Resident's sole expense, to buy and maintain a liability insurance policy during the entire Lease term and any renewal periods that provides limits of liability to third parties in amount not less than \$ 100000.00 per occurrence. The liability insurance policy Resident buys and maintains must cover the actions or inactions of Resident and your occupants and guests, and be issued or underwritten by a carrier of your choice licensed to do business in Texas. The required insurance policy must identify the Owner identified in the Lease (or another entity designated by Owner) as an "Interested Party" or "Party of Interest" that will be notified by the insurer of any cancellation, non-renewal, or material change in your coverage no later than 30 days after such action. You must provide us written proof of compliance with the Lease and this addendum on or prior to the Lease commencement date; and if you do not you will not be granted possession of the Premises. You must also provide us written proof of compliance within 7 days of our written request at any other time we request it.
3. **Acknowledgement.** You acknowledge that Owner does not acquire or maintain insurance for Resident's benefit or which is designed to insure you for personal injury, loss or damage to your personal property or belongings, or your own liability for injury, loss or damage that you (or your occupants or guests) may cause others. Any insurance policy that insures you for personal injury, loss or damage to your personal property or belongings, or provide you coverage for your own liability for injury, loss or damage that you (or your occupants or guests) may cause others must be bought and maintained solely by you. We do not and are not able to provide you with information on insurance coverage, rates, or terms and conditions. You should instead seek such information from a licensed insurance company, licensed insurance agent, other licensed insurance professional, or the Texas Department of Insurance. The Texas Department of Insurance website at www.tdi.texas.gov may contain useful consumer information regarding renter's insurance. You further acknowledge that we have made no referrals, guarantees, representations or promises whatsoever concerning any insurance or services provided by any insurance company. At all times you have been and remain free to contract for the required insurance with the insurance carrier of your choosing.
4. **Default.** You understand and agree that your failure to comply with either the requirements specified in the Lease, this addendum, or both is a material breach by you of the Lease and a default of the Lease for which Owner may sue you for eviction. If you fail to buy and maintain insurance as required by the Lease and this addendum, we may, in our sole discretion, agree to refrain from filing an eviction against you for your default for not having the appropriate insurance in place upon payment by you to Owner of \$ _____ (which you agree is not a liquidated damages amount and which sum shall only apply to each month (or part thereof) you remain in breach of this insurance addendum). Owner will agree to forego commencement of an eviction based upon non-compliance with this addendum for a one-month period, during which you shall come into compliance with this addendum. Our choice to accept money from you to forego pursuit of an eviction for one month does not require us to accept money from you or forego pursuit of our remedies under this paragraph for any subsequent months. The foregoing payments are due on the 1st day of the month following the calendar month (or part thereof) during which you do not have the required insurance, with no grace period. PAYMENT OF SAID AMOUNT DOES NOT RELIEVE YOU OF YOUR OBLIGATION TO BUY AND MAINTAIN INSURANCE AS SUMMARIZED IN PARAGRAPH 2 OF THIS ADDENDUM, DOES NOT CURE THE MATERIAL BREACH AND DEFAULT DESCRIBED IN THIS PARAGRAPH, IN WHOLE OR IN PART, AND DOES NOT RELIEVE YOU OF ANY OBLIGATION TO COMPENSATE US OR ANY OTHER PARTY INJURED OR DAMAGED BY THE ACTIONS OR INACTIONS OF RESIDENT OR YOUR OCCUPANTS OR GUESTS. You further understand that we will not buy an insurance policy for you or for your benefit, and that nothing in this Lease shall be considered an agreement by Owner to furnish you with any insurance coverage.

NOTICE TO RESIDENT: YOU SHOULD BE AWARE THAT THE REQUIRED INSURANCE POLICY UNDER THIS ADDENDUM DOES NOT PROTECT YOU AGAINST LOSS OR DAMAGE TO YOUR PERSONAL PROPERTY OR BELONGINGS. YOU ARE STRONGLY ENCOURAGED TO BUY INSURANCE THAT COVERS YOU AND YOUR PROPERTY.

I have read, understand and agree to comply with the preceding provisions: [All Residents must sign this addendum]

Kathryn M Copeland
Signature of All Residents

Signature of Owner or Owner's Representative

LEASE ADDENDUM PERSONAL LIABILITY INSURANCE REQUIRED

Addendum. This is an addendum to the lease between you and us for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowery at Southside Apartments in Fort Worth, TX; OR the house, duplex, etc. located at (street address) _____ in _____, TX.

1. **Insurance Acknowledgement.** Tenant acknowledges that Landlord does not maintain insurance to protect Tenant against personal injury, loss or damage to Tenant's personal property or to cover Tenant's own liability for injury, loss or damage Tenant (or Tenant's occupants or guests) may cause others. Tenant also acknowledges that Tenant may be responsible to others (including Landlord and Agent) for the full cost of any injury, loss or damage caused by Tenant's negligent actions or the negligent actions of Tenant's occupants or guests, including but not limited to damage caused by fire or smoke
2. **Building Protection fee.** Landlord agrees to waive the requirements in the Lease that Tenant purchase liability insurance covering damage from fire, vandalism, smoke, water and any other perils, with limits of at least \$100,000 (the "Insurance Requirements"), as set forth in the Lease, if Tenant 1) elects to waive the insurance requirement and pay the Building Protection Fee (as defined below) by opting into the building protection program at www.residentprotect.com; or 2) fails to provide proof of insurance as required in the Lease (in which case the Building Protection Fee will be charged to the Tenant automatically and the Tenant will be opted into the building protection program) within ten (10) business days following the date of this Addendum; or 3) cancels (voluntarily or involuntarily) its existing liability insurance coverage and Landlord receives notice of the same (in which case the Building Protection Fee may be charged to Tenant automatically and the Tenant may be opted into the building protection program). In such event, Landlord shall charge Tenant a "Building Protection Fee" in the amount of Twelve Dollars and 00/100 (\$12.00) per month. This Building Protection Fee is to be paid as additional monthly rent and will be used to help protect Landlord's assets, including real, improved and personal property owned or managed by Landlord against damage caused by a Tenant. Tenant may cancel its participation in this program at any time if Tenant purchases its own personal liability insurance policy or renter's insurance policy and provides proof of coverage to Landlord or Agent. This Building Protection Fee offers no protection for Tenant's personal property or third-party liability. Tenant should consider purchasing renter's insurance to protect Tenant from financial loss and third-party liability. Such policy must identify Landlord and Agent as additional insureds.
3. **Damage to Tenant's Personal Property.** Pursuant to the Lease, Tenant is only required to comply with the Insurance Requirements; however, Landlord highly recommends Tenant also obtain coverage for its personal property. Tenant has the option to obtain personal property reimbursement by visiting www.residentprotect.com. As a resident of this property, Tenant automatically qualifies for this reimbursement. If Tenant chooses to participate in this program, Tenant shall pay a "Property Reimbursement Fee" in the amount of Three Dollars and 00/100 (\$3.00) per month. This Property Reimbursement Fee is to be paid in the same manner as additional monthly rent. The Property Reimbursement Fee shall qualify Tenant for reimbursement for losses to Tenant's personal property up to Ten Thousand and 00/100 Dollars (\$10,000). A description of the program is available by visiting www.residentprotect.com.
4. **Freedom of Choice.** At all times, Tenant can purchase insurance through the carrier or agency of Tenant's choice, subject to the requirements of the Lease, and is not required to purchase insurance through a particular carrier or participate in our property reimbursement program. However, the insurance Tenant purchases must meet the Lease's minimum Insurance Requirements at all times
5. **Default.** Tenant(s)'s failure to obtain or maintain insurance coverage meeting the Insurance Requirements shall constitute a material default of the Lease Agreement, entitling Agent to terminate the Lease Agreement and/or Tenant(s)'s right to possession under the Lease Agreement. Landlord reserves the right, and Tenant hereby authorizes Landlord, to charge Tenant a "Building Protection Fee" monthly in the amount of Twelve and 00/100 Dollars (\$12.00) as additional rent under the Lease if Tenant does not maintain coverage meeting the Insurance Requirements. Tenant may cancel its participation in this program at any time if Tenant purchases its own personal liability insurance policy or renter's insurance policy meeting the Insurance Requirements and provides proof of coverage to Landlord or Agent.
6. **Class Action Waiver.** The parties waive any right to bring class actions or representative claims on behalf of a class of individuals or to participate as a class representative or member (the "Class Action Waiver") against each other. Tenant is not waiving any right(s) to pursue claims against Landlord or Agent related to its tenancy, but Tenant agrees to file any claim(s) against Landlord or Agent in its individual capacity only, and Tenant hereby waives any rights that it may have had to bring or take part in a class or representative action.
7. **Miscellaneous.**
 - a. Except as specifically stated in this Addendum, all other terms and conditions of the Lease shall remain unchanged.
 - b. The insurance required by the Lease is not required by any law. Tenant's obligation to provide insurance stems solely from the Lease.
 - c. In the event of any conflict between the terms of this Addendum and the terms of the Lease, the terms of this Addendum shall control.

- d. The insurance required by the Lease is not an attempt to limit our liability for our own negligence or Tenant's liability for Tenant's own negligence.
- e. The insurance required by the Lease is not in lieu of, or in any way a component of, any security deposit required by the Lease.

By signing below, Tenant acknowledges and agree to be bound to the terms of this Addendum.

Resident or Residents
(All residents must sign)

Kathryn M Copeland

Owner or Owner's Representative
(Signs below)

Date of Lease Contract

**LEASE ADDENDUM FOR
ENCLOSED GARAGE, CARPORT, OR STORAGE UNIT**

1. **Addendum.** This is an addendum to the lease between you and us for Apt. No. 2145 in the WMCi Dallas, X LLC dba The Bowery at Southside Apartments in Fort Worth, TX; OR the house, duplex, etc. located at (street address) _____ in _____, TX.

2. **Garage, carport, or storage unit.** You are entitled to exclusive possession of: *(check as applicable)*

☐ garage or carport attached to the dwelling;
☐ garage space number(s): _____; \$ _____ /month; start date(s): _____
☒ carport space number(s): C-041; \$ 0.00 /month; start date(s): 10/21/2023 and/or
☒ storage unit number(s): S-12; \$ 25.00 /month; start date(s): 10/21/2023

The monthly rent in the Lease Contract does not cover both the dwelling and the checked area(s) above. All terms and conditions of the lease apply to the above areas unless modified by this addendum. Start date is the same as the lease start date unless indicated above.

3. **Use restrictions.** Garage or carport may be used only for storage of operable motor vehicles unless otherwise stated in our rules, community policies, or Resident Handbook. Storage units may be used only for storage of personal property. No one may sleep, cook, barbecue, or live in a garage, carport, or storage unit. Persons not listed as a resident or occupant in the lease may not use the areas covered by this addendum. No plants may be grown in such areas. Additional Restrictions: _____
4. **No dangerous items.** In our sole judgment, items that pose an environmental hazard or a risk to the safety or health of other residents, occupants, or neighbors, or that violate any government regulation, may not be stored in the areas covered by this addendum. Prohibited items include fuel (other than in a properly capped fuel tank of a vehicle or a closed briquette lighter fluid container), fireworks, rags, piles of paper, or other material that may create a fire or environmental hazard. We may remove from such areas, without prior notice, items that we believe might constitute a fire or environmental hazard. Because of carbon monoxide risks, you may not run the motor of a vehicle inside a garage unless the garage door is open to allow fumes to escape.
5. **No smoke, fire, or carbon monoxide detectors.** No smoke, fire, or carbon monoxide detectors will be furnished by us unless required by law. We may choose to provide a detection device not required by law by separate addendum.
6. **Garage door opener.** If an enclosed garage is furnished, you will be provided with a garage door opener and key, if applicable. You will be responsible for maintenance of any garage door opener, including battery replacement. Transmitter frequency settings may not be changed on the garage door or opener without our prior written consent. At the time of termination of the lease, the total number of garage door opener(s) and/or garage key(s) that you were assigned must be returned to us. Failure to return such opener and/or key will result in a charge of \$50.00, which will be deducted from your security deposit.
7. **Security.** We will not have any security responsibilities for areas covered by this addendum. Always remember to lock any door of a garage or storage unit and any door between a garage and the dwelling. When leaving, be sure to lock all keyed deadbolt locks.
8. **Insurance and loss/damage to your property.** Any area covered by this addendum is accepted by you "as is." You will maintain liability and comprehensive insurance coverage for any vehicle parked or stored. We will have no responsibility for loss or damage to vehicles or other property parked or stored in a garage, carport, or storage unit, whether caused by accident, fire, theft, water, vandalism, pests, mysterious disappearance, or otherwise. We are not responsible for pest control in such areas.
9. **Compliance.** We may periodically open and enter garages and storerooms to ensure compliance with this addendum. In that event, written notice of such opening and entry will be left inside the main entry door of your dwelling or inside the door between the garage and your dwelling.
10. **No lock changes, alterations, or improvements.** Without our prior written consent, locks on doors of garages and storage units may not be rekeyed, added, or changed, and improvements, alterations, or electrical extensions or changes to the interior or exterior of such areas are not allowed. You may not place nails, screws, bolts, or hooks into walls, ceilings, floors, or doors. Any damage not caused by us or our representatives to areas covered by this addendum will be paid for by you.
11. **Move-out and remedies.** Any items remaining after you have vacated the dwelling will be removed, sold, or otherwise disposed of according to Community Policies or the Lease Contract, which addresses disposition or sale of property left in an abandoned or surrendered dwelling. All remedies in the lease apply to areas covered by this addendum. Upon termination of the lease, your failure to return any garage door opener or other remote control device will result in a charge against you. A written 30-day notice to vacate is required for any carport, garage, or storage unit if you intend to vacate it prior to the end of the lease term for apartment Premises.

Resident or Residents
(All residents must sign)

Kathryn M Copeland

Owner or Owner's Representative
(Signs below)

Date of Lease Contract

FITNESS CENTER/BUSINESS CENTER RULES AND REGULATIONS

Kathryn M Copeland
405 Crawford St Apt# 2145
Fort Worth, TX 76104

We hope you will enjoy the Fitness Center and/or Business Center. To ensure that everyone has a safe and enjoyable experience, please abide by the following rules and regulations. These rules and regulations become a part of the Resident Handbook that you received as part of your Move-In Packet.

1. The Fitness Center is for the use of residents and their guests. Guests are not permitted in the Business Center
2. **The Fitness Center is accessible 24 hours a day; 7 days a week.**

3. Residents are permitted to bring one guest per day to the Fitness Center. Guests must be accompanied by a resident at all times while in the Fitness Center. Guests must carry a guest pass at all times while in the Fitness Center. Guests must abide by all Fitness Center policies. Residents are responsible for the actions of their guests.
4. No persons under age 16 are permitted to use the exercise equipment or be in the Fitness Center.
5. No attendants or supervision of any kind will be provided by the Management for the Fitness Center.
6. Use the exercise equipment at your own risk. Weinstein Properties is not responsible for accidents or injuries related in any way to the use of the Fitness Center.
7. It is strongly recommended that appropriate work out clothing be worn while using the fitness equipment. Fitness center users assume all risk of injury resulting from failing to wear appropriate clothing.
8. The treadmills and stair stepper machines are not designed for use by persons weighing over 250 pounds.
9. Know your limits. Do not over exert yourself.
10. Read all posted instructions. If you do not understand the instructions, do not use the equipment.
11. When using the treadmill, please attach the safety key to your clothing or body.
12. No one under the influence of drugs or alcohol may use the Fitness Center or Business Center at any time.
13. Please wear shoes—no wet or bare feet are permitted in the Fitness Center or Business Center.
14. There is a **\$50.00** fee for lost or stolen access cards/fobs, or for not returning the access card/fob when your occupancy expires.
15. The Fitness Center may not be used for the purpose of conducting business, including personal training or classes, at any time.
16. Landlord reserves the right to deny access to the Fitness Center and/or Business Center to any and all Tenant(s) who fail to comply with these Rules and Regulations.

I have read, understand and agree to comply with the foregoing rules and regulations.

Date: 04/29/2025

Tenant Signature: Kathryn M Copeland

Date: _____

Tenant Signature: _____

LEASE ADDENDUM FOR ACCESS CONTROL DEVICES

1. Addendum. This is an addendum to the TAA Lease Contract for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowery at Southside Apartments in Fort Worth, Texas.

2. Remote control/cards/code for gate access.

- ☒ **Remote control for gate access.** Each resident on the lease will be given a remote control at no cost to use during his or her residency. Each additional remote control for you or your occupants will require a \$ 50.00 non-refundable fee.
- ☒ **Cards for gate access.** Each resident on the lease will be given a card at no cost to use during his or her residency. Each additional card for you or your occupants will require a \$ 50.00 non-refundable fee.
- ☐ **Code for gate access.** Each resident will be given, at no cost, an access code (keypad number) for the pedestrian or vehicular access gates. It is to be used only during your residency.

3. Damaged, lost or unreturned remote controls, cards, key fobs or code changes.

- ☒ If a remote control is lost, stolen or damaged, a \$ 50.00 fee will be charged for a replacement. If a remote control is not returned or is returned damaged when you move out, there will be a \$ _____ deduction from the security deposit.
- ☒ If a card is lost, stolen or damaged, a \$ 50.00 fee will be charged for a replacement card. If a card is not returned or is returned damaged when you move out, there will be a \$ _____ deduction from the security deposit.
- ☐ We may change the code(s) at any time and notify you accordingly.

4. Report damage or malfunctions. Please immediately report to the office any malfunction or damage to gates, fencing, locks, or related equipment.**5. Follow written instructions.** You and all other occupants must read and follow the written instructions that have been furnished to you regarding the access gates. If the gates are damaged by you, your occupants, guests, or invitees through negligence or misuse, you are liable for the damages under your lease, and collection of damage amounts will be pursued.**6. Personal injury and/or personal property damage.** Anything mechanical or electronic is subject to malfunction. Fencing, gates, or other devices will not prevent all crime. No security system or device is foolproof or 100 percent successful in deterring crime. Crime can still occur. Protecting residents, their families, occupants, guests, and invitees from crime is the sole responsibility of residents, occupants, and law enforcement agencies. You should first call 911 or other appropriate emergency police numbers if a crime occurs or is suspected. We are not liable to any resident, guest, occupant, or invitee for personal injury, death, or damage/loss of personal property from incidents related to perimeter fencing, automobile access gates, and/or pedestrian access gates. We reserve the right to modify or eliminate security systems other than those statutorily required.**7. RULES IN USING VEHICLE GATES.**

- Always approach entry and exit gates with caution and at a very slow rate of speed.
- Never stop your car where the gate can hit your vehicle as the gate opens or closes.
- Never follow another vehicle into an open gate. Always use your card to gain entry.
- Report to management the vehicle license plate number of any vehicle that piggybacks through the gate.
- Never force the gate open with your car.
- Never get out of your vehicle while the gates are opening or closing.
- If you are using the gates with a boat or trailer, please contact management for assistance. The length and width of the trailer may cause recognition problems with the safety loop detector and could cause damage.
- Do not operate the gate if there are small children nearby who might get caught in it as it opens or closes.
- If you lose your card, please contact the management office immediately.
- Do not give your card or code to anyone else.
- Do not tamper with gate or allow your occupants to tamper or play with gates.

Kathryn M Copeland
Signatures of All Residents

Signature of Owner or Owner's Representative

LEASE ADDENDUM REGARDING SMOKING

1. Addendum. This is an addendum to the TAA Lease Contract for Apt. No. 2145 in the WMCi Dallas, X LLC dba The Bowery at Southside

_____ Apartments in Fort Worth,
Texas OR _____

the house, duplex, etc. located at (street address) _____
in _____, Texas.

2. Smoking, in any form, anywhere inside any of the dwelling units, or inside any buildings within the apartment community, is strictly prohibited. This is our no-smoking policy; and you agree that any violation of the no-smoking policy is a material and substantial violation of this addendum and a breach of the TAA Lease Contract.

The prohibition of smoking extends to all residents, their occupants, guests, invitees and all others who are present on or in any portion of the community. The no-smoking policy and rules extend to, but are not limited to, the leasing offices, building interiors and hallways, building common areas, dwelling units, club house, exercise or spa facility, indoor tennis courts, all interior areas of the community, commercial shops, businesses, work areas, and all other spaces whether in the interior of the community or in the enclosed spaces on community grounds. Smoking is also prohibited by this addendum inside any dwelling or building, whether leased by you or another.

3. Smoking permitted in designated areas of the apartment community. Smoking is permitted only in specially designated areas, if any. The permissible smoking areas are marked by signs.

Smoking on balconies, patios, and limited common areas attached to or outside of your dwelling unit:

- ☐ is permitted
☒ is not permitted.

Only the following outside areas may be used for smoking: _____

Smoking is permitted only in specially designated areas outside the buildings of the apartment community. Smoking must be at least 15 feet from the buildings in the apartment community, including administrative office buildings. If the previous field is not completed, smoking is only permitted at least 25 feet from the buildings in the apartment community, including administrative office buildings. The smoking-permissible areas are marked by signage.

Even though smoking may be permitted in certain limited outside areas, we reserve the right to direct that you and your occupants, family, guests, and invitees immediately cease smoking in those areas if smoke is entering a dwelling or building or if it is interfering with the rights, comfort, health, safety or convenience of others in or near the apartment community or rental premises.

4. Your responsibility for damages and cleaning. You are responsible for payment of all costs and damages to your dwelling unit, other residents' dwelling units, or any other portion of the community for repair, replacement, or cleaning and odor removal due to smoking or smoke-related damage caused by you or your occupants, family, guests, or invitees, regardless of whether such use was a violation of this addendum. You agree that any costs or damages we incur related to repairs, replacement, cleaning and odor removal due to your smoking or due to your violation of the no-smoking provisions of the TAA Lease Contract are NOT normal wear and tear. You also agree that smoke-related damage, including but not limited to smoke odor that permeates sheetrock, carpeting, wood, insulation, or other components of the dwelling unit or building, shall always be in excess of normal wear and tear in our community and at the rental premises.

5. Your responsibility for loss of rental income and economic damages regarding other residents. You are responsible for payment of all lost rental income or other economic and financial damages or loss to us due to smoking or smoke-related damages caused by you or your occupants, family, guests, or invitees which results in or causes other residents to vacate their dwelling units, results in disruption of other residents' enjoyment of the community, adversely affects other residents' or occupants' health, safety, or welfare, or causes a qualified applicant to refuse to rent the unit because of smoke related damages including smoke odors.

6. Definition of smoking. "Smoking" refers to, but is not limited to, any use or possession of a cigar, cigarette, e-cigarette, hookah, vaporizer, or pipe containing tobacco or a tobacco product while that tobacco or tobacco product is burning, lighted, vaporized, or ignited, regardless of whether the person using or possessing the product is inhaling or exhaling the smoke from such product. The term tobacco includes, but is not limited to any form, compound, or synthesis of the plant of the genus Nicotiana or the species N. tabacum which is cultivated for its leaves to be used in cigarettes, cigars, e-cigarettes, hookahs, vaporizers, or pipes. Smoking also refers to use or possession of burning, lighted, vaporized, or ignited non-tobacco products if they are noxious, offensive, unsafe, unhealthy, or irritating to other persons.

7. Lease Contract termination for violation of this addendum. We have the right to exercise all remedies available to us for any violation of this addendum, which in turn is a default under the Lease, which include terminating your right of occupancy and possession. Violation of this addendum is a material and substantial default of the TAA Lease Contract. In the event we terminate your right of occupancy, you shall remain liable for all rent and other sums due under the TAA Lease Contract subject to any duty to mitigate.

8. Extent of your liability for losses due to smoking. Your responsibility for damages, cleaning, deodorizing, loss of rental income, and other economic damages under this addendum are in addition to, and not instead of your responsibility for any other damages or loss under the TAA Lease Contract or any other addendum.

9. Your responsibility for conduct of occupants, family members and guests. You are responsible for communicating the no- smoking policy and provisions of this addendum to your occupants, family, guests, and invitees and understand that a failure on their part to comply is the same as non-compliance by you.

10. No warranty of a smoke-free environment. Although we prohibit smoking in all interior parts of the dwelling units and community, there is no warranty or guaranty that your dwelling unit, buildings or the community is smoke-free. Smoking in certain limited outside areas may be allowed as provided in this Addendum. Enforcement of our no-smoking policy is a joint responsibility that requires your cooperation in reporting incidents or suspected violations of smoking. You must report violations of our no-smoking policy to us before we are obligated to investigate and take action. You agree to cooperate with us if it becomes necessary to pursue action for any violations of the no-smoking policy.

This is an important and binding legal document. By signing this addendum you are acknowledging that a violation could lead to termination of your right of possession or your right to occupy the dwelling unit and premises. If you or someone in your household is a smoker, you should carefully consider whether you will be able to abide by the terms of this addendum. Before signing you must advise us whether you or anyone who will be living in your dwelling is a smoker. If you give an incorrect or false answer, you agree that is a default under the Lease. Provide your answer by checking one of the following boxes:

- ☒ Neither you nor anyone who will be living in the dwelling unit is a smoker and it is agreed no one will ever smoke in the unit.
- ☐ Someone who will be living in the dwelling unit is a smoker but it is agreed no one will ever smoke in the unit.

Kathryn M Copeland

Signatures of All Residents

Signature of Owner or Owner's Representative

LEASE ADDENDUM FOR SATELLITE DISH OR ANTENNA

Under a Federal Communications Commission (FCC) order, you as our resident have a right to install a transmitting or receiving satellite dish or antenna on the leased premises, subject to FCC limitations. We as a rental housing owner are allowed to impose reasonable restrictions relating to such installation. You are required to comply with these restrictions as a condition of installing such equipment. This addendum contains the restrictions that you and we agree to follow.

1. Addendum. This is an addendum to the lease between you and us for Apt. No. 2145 in the WMCi Dallas, X LLC dba The Bowery at Southside

_____ Apartments in Fort Worth,
Texas OR
the house, duplex, etc. located at (street address) _____, in _____, Texas.

2. Number and size. You may install 1 satellite dish(es) or antenna(s) on the leased premises. A satellite dish may not exceed one meter (3.3 feet) in diameter. Antennas that only transmit signals or that are not covered by 47 CFR §1.4000 are prohibited.

3. Location. Your satellite dish or antenna must be located: (1) inside your dwelling; or (2) in an area outside your dwelling such as a balcony, patio, yard, etc. of which you have exclusive use under your lease. Installation is not permitted on any parking area, roof, exterior wall, window, window sill, fence, or common area, or in an area that other residents are allowed to use. A satellite dish or antenna may not protrude beyond the vertical and horizontal space that is leased to you for your exclusive use.

4. Safety and non-interference. Your installation: (1) must comply with all applicable ordinances and laws and all reasonable safety standards; (2) may not interfere with our cable, telephone or electrical systems or those of neighboring properties; (3) may not be connected to our telecommunication systems; and (4) may not be connected to our electrical system except by plugging into a 110-volt duplex receptacle. If the satellite dish or antenna is placed in a permitted outside area, it must be safely secured by one of three methods: (1) securely attaching it to a portable, heavy object such as a small slab of concrete; (2) clamping it to a part of the building's exterior that lies within your leased premises (such as a balcony or patio railing); or (3) any other method approved by us in writing. No other methods are allowed. We may require reasonable screening of the satellite dish or antenna by plants, etc., so long as it does not impair reception.

5. Signal transmission from exterior dish or antenna to interior of dwelling. Under the FCC order, you may not damage or alter the leased premises and may not drill holes through outside walls, door jams, windowsills, etc. If your satellite dish or antenna is installed outside your dwelling (on a balcony, patio, etc.), the signals received by it may be transmitted to the interior of your dwelling only by the following methods: (1) running a "flat" cable under a door jam or windowsill in a manner that does not physically alter the premises and does not interfere with proper operation of the door or window; (2) running a traditional or flat cable through a pre-existing hole in the wall (that will not need to be enlarged to accommodate the cable); (3) connecting cables "through a window pane," similar to how an external car antenna for a cellular phone can be connected to inside wiring by a device glued to either side of the window—without drilling a hole through the window; (4) wireless transmission of the signal from the satellite dish or antenna to a device inside the dwelling; or (5) any other method approved by us in writing.

6. Safety in installation. In order to assure safety, the strength and type of materials used for installation must be approved by us. Installation must be done by a qualified person or company approved by us. Our approval will not be unreasonably withheld. An installer provided by the seller of the satellite dish or antenna is presumed to be qualified.

7. Maintenance. You will have the sole responsibility for maintaining your satellite dish, antenna, and all related equipment.

8. Removal and damages. You must remove the satellite dish or antenna and all related equipment when you move out of the dwelling. In accordance with the TAA Lease Contract, you must pay for any damages and for the cost of repairs or repainting caused by negligence, carelessness, accident, or abuse which may be reasonably necessary to restore the leased premises to its condition prior to the installation of your satellite dish, antenna or related equipment. You will not be responsible for normal wear and tear.

9. Liability insurance and indemnity. You must take full responsibility for the satellite dish, antenna, and related equipment. If the dish or antenna is installed at a height or in some other way that could result in injury to others if it becomes unattached and falls, you must provide us with evidence of liability insurance to protect us against claims of personal injury and property damage to others, related to your satellite dish, antenna, and related equipment. The insurance coverage must be \$ 1,000,000.00, which is an amount reasonably determined by us to accomplish that purpose. Factors affecting the amount of insurance include height of installation above ground level, potential wind velocities, risk of the dish/antenna becoming unattached and falling on someone, etc. You agree to hold us harmless and indemnify us against any of the above claims by others.

10. Security deposit. Your security deposit (in your Lease Contract) is increased by an additional reasonable sum of \$ 150.00 ☒ effective at time of installation or ☐ effective within _____ days of installation to help protect us against possible repair costs, damages, or failure to remove the satellite dish, antenna and related equipment at time of move-out. Factors affecting any security deposit may vary, depending on: (1) how the dish or antenna is attached (nails, screws, lag bolts drilled into walls); (2) whether holes were permitted to be drilled through walls for the cable between the satellite dish and the TV; and (3) the difficulty and cost of repair or restoration after removal, etc. A security deposit increase does not imply a right to drill into or alter the leased premises.

11. When you may begin installation. You may start installation of your satellite dish, antenna, or related equipment only after you have: (1) signed this addendum; (2) provided us with written evidence of the liability insurance referred to in paragraph 9 of this addendum; (3) paid us the additional security deposit, if applicable, in paragraph 10; and (4) received our written approval, which may not be unreasonably withheld, of the installation materials and the person or company that will do the installation.

12. Miscellaneous. If additional satellite dishes or antennas are desired, an additional lease addendum must be executed.

Kathryn M Copeland
Signatures of All Residents

Signature of Owner or Owner's Representative

WATER AND WASTEWATER ALLOCATION AND SUBMETERING ADDENDUM

1. **Addendum.** This is an addendum to the TAA Lease Contract for Apt. No. 2145 at (street address) 405 Crawford St Apt# 2145
in Fort Worth, Texas. OR the house, duplex, etc. located at (street address) _____
in _____, Texas. The terms of this addendum will control if the terms of the Lease and this addendum conflict.
2. **Mutual conservation efforts.** We agree to use our best efforts to repair any water leaks inside or outside your apartment no later than 7 days after we learn about them. You agree to use your best efforts to conserve water and notify us of leaks.
3. **Your payment due date.** Payment of your water and wastewater bill is due 16 days after the date it is postmarked or hand delivered to your apartment. You agree to mail or deliver payment to the place indicated on your bill so that payment is received no later than the due date. You will pay a late charge of 5% of your water and wastewater bill if we do not receive your payment on time.
4. **Previous average.** As required under PUC rules, you are notified that the average monthly bill for all dwelling units in the previous calendar year was \$ 41.14 per unit, varying from \$ 1.75 to \$ 100.18 for the lowest to highest month's bills for any unit in the apartment community for this period, if such information is available. The above amounts do not reflect future changes in utility company water rates, weather variations, total water consumption, residents' water consumption habits, etc.
5. **Right to examine records.** During regular weekday office hours, you may examine: (1) our water/wastewater bills from the utility company; (2) our calculations of your monthly allocations; and (3) any other information available to you under PUC rules. Please give us reasonable advance notice to gather the data. Any disputes relating to the computation of your bill will be between you and us.

One of the following applies:☐ **Submeter billing procedures**

- A. Your monthly water and wastewater bill will be submetered. Please see the applicable rules of the PUC (attached).
- B. As permitted by state law, a service fee of 9 % (not to exceed 9%) will be added to your monthly water-service charges.
- C. No other administrative or other fees will be added to your bill unless expressly allowed by law or PUC rules. No other amounts will be included in the bill except your unpaid balances and any late fees (if incurred by you). If we fail to pay our mastermeter bill to the utility company on time and incur penalties or interest, no portion of these amounts will be included in your bill.
- D. Any dispute relating to the accuracy of any submetering device will be between you and us.
- E. We will bill you monthly for your submetered water consumption from approximately the 1 day of the month to the 31 day of the month, the latter being our scheduled submeter-reading date. Your bill will be calculated in accordance with PUC rules and this Addendum and will be prorated for the first and last months you live in the unit.

☐ **Allocation billing procedures**

- A. Your monthly water and wastewater bill will be allocated. Please see the applicable rules of the PUC (attached).
- B. Common area deduction. Before calculating your portion of the bill, we will deduct for irrigation of landscaping and all other common area uses, as required by PUC rules. We will also deduct for any utility company base charges and customer service charges so that you won't be paying any part of such charges for vacant units. No administrative or other fees will be added to the total mastermeter water/wastewater bill(s) to be allocated unless expressly allowed by PUC rules. No other amounts will be included in the bill except your unpaid balances and any late fees you incur. If we fail to pay our mastermeter bill to the utility company on time and incur penalties or interest, no portion of such amounts will be included in your bill.
- C. The allocation method that we will use in calculating your bill is noted below and described in the following subdivision of Section 24.281 of the PUC rules (check only one):
 - ☐ subdivision (i) actual occupancy;
 - ☐ subdivision (ii) ratio occupancy (PUC average for number of occupants in unit);
 - ☐ subdivision (iii) average occupancy (PUC average for number of bedrooms in unit);
 - ☐ subdivision (iv) combination of actual occupancy and square feet of the apartment; or
 - ☐ subdivision (v) submetered hot/cold water, ratio to total.
- D. The normal date on which the utility company sends its monthly bill to us for the water/wastewater mastermeter is about the _____ day of the month. Within 10 days thereafter, we will try to allocate that mastermeter bill among our residents by allocated billings.

Special provisions:

Kathryn M Copeland
Signatures of All Residents

Signature of Owner or Owner's Representative

Water allocation and submetering is regulated by the Texas Public Utility Commission (PUC). In accordance with PUC rules, a copy of the applicable rules is provided to you below:

SUBCHAPTER I: WATER UTILITY SUBMETERING AND ALLOCATION

§ 24.275. General Rules and Definitions

(a) Purpose and scope. The provisions of this subchapter are intended to establish a comprehensive regulatory system to assure that the practices involving submetered and allocated billing of dwelling units and multiple use facilities for water and sewer utility service are just and reasonable and include appropriate safeguards for tenants.

(b) Application. The provisions of this subchapter apply to apartment houses, condominiums, multiple use facilities, and manufactured home rental communities billing for water and wastewater utility service on a submetered or allocated basis. The provisions of this subchapter do not limit the authority of an owner, operator, or manager of an apartment house, manufactured home rental community, or multiple use facility to charge, bill for, or collect rent, an assessment, an administrative fee, a fee relating to upkeep or management of chilled water, boiler, heating, ventilation, air conditioning, or other building system, or any other amount that is unrelated to water and sewer utility service costs.

(c) Definitions. The following words and terms, when used in this subchapter, have the defined meanings, unless the context clearly indicates otherwise.

(1) Allocated utility service--Water or wastewater utility service that is master metered to an owner by a retail public utility and allocated to tenants by the owner.

(2) Apartment house--A building or buildings containing five or more dwelling units that are occupied primarily for nontransient use, including a residential condominium whether rented or owner occupied, and if a dwelling unit is rented, having rent paid at intervals of one month or more.

(3) Condominium manager--A condominium unit owners' association organized under Texas Property Code §82.101, or an incorporated or unincorporated entity comprising the council of owners under Chapter 81, Property Code. Condominium Manager and Manager of a Condominium have the same meaning.

(4) Customer service charge--A customer service charge is a rate that is not dependent on the amount of water used through the master meter.

(5) Dwelling unit--One or more rooms in an apartment house or condominium, suitable for occupancy as a residence, and containing kitchen and bathroom facilities; a unit in a multiple use facility; or a manufactured home in a manufactured home rental community.

(6) Dwelling unit base charge--A flat rate or fee charged by a retail public utility for each dwelling unit recorded by the retail public utility.

(7) Manufactured home rental community--A property on which spaces are rented for the occupancy of manufactured homes for nontransient residential use and for which rental is paid at intervals of one month or longer.

(8) Master meter--A meter used to measure, for billing purposes, all water usage of an apartment house, condominium, multiple use facility, or manufactured home rental community, including common areas, common facilities, and dwelling units.

(9) Multiple use facility--A commercial or industrial park, office complex, or marina with five or more units that are occupied primarily for nontransient use and are rented at intervals of one month or longer.

(10) Occupant--A tenant or other person authorized under a written agreement to occupy a dwelling.

(11) Overcharge--The amount, if any, a tenant is charged for submetered or nonsubmetered master metered utility service to the tenant's dwelling unit after a violation occurred relating to the assessment of a portion of utility costs in excess of the amount the tenant would have been charged under this subchapter. Overcharge and Overbilling have the same meaning.

(12) Owner--The legal titleholder of an apartment house, a manufactured home rental community, or a multiple use facility; and any individual, firm, or corporation expressly identified in the lease agreement as the landlord of tenants in the apartment house, manufactured home rental community, or multiple use facility. The term does not include the manager of an apartment home unless the manager is expressly identified as the landlord in the lease agreement.

(13) Point-of-use submeter--A device located in a plumbing system to measure the amount of water used at a specific point of use, fixture, or appliance, including a sink, toilet, bathtub, or clothes washer.

(14) Submetered utility service--Water utility service that is master metered for the owner by the retail public utility and individually metered by the owner at each dwelling unit; wastewater utility service based on

submetered water utility service; water utility service measured by point-of-use submeters when all of the water used in a dwelling unit is measured and totaled; or wastewater utility service based on total water use as measured by point-of-use submeters.

(15) Tenant--A person who owns or is entitled to occupy a dwelling unit or multiple use facility unit to the exclusion of others and, if rent is paid, who is obligated to pay for the occupancy under a written or oral rental agreement.

(16) Undercharge--The amount, if any, a tenant is charged for submetered or nonsubmetered master metered utility service to the tenant's dwelling unit less than the amount the tenant would have been charged under this subchapter. Undercharge and Underbilling have the same meaning.

(17) Utility costs--Any amount charged to the owner by a retail public utility for water or wastewater service. Utility Costs and Utility Service Costs have the same meaning.

(18) Utility service--For purposes of this subchapter, utility service includes only drinking water and wastewater.

§ 24.277. Owner Registration and Records

(a) Registration. An owner who intends to bill tenants for submetered or allocated utility service or who changes the method used to bill tenants for utility service shall register with the commission in a form prescribed by the commission.

(b) Water quantity measurement. Except as provided by subsections (c) and (d) of this section, a manager of a condominium or the owner of an apartment house, manufactured home rental community, or multiple use facility, on which construction began after January 1, 2003, shall provide for the measurement of the quantity of water, if any, consumed by the occupants of each unit through the installation of:

(1) submeters, owned by the property owner or manager, for each dwelling unit or rental unit; or

(2) individual meters, owned by the retail public utility, for each dwelling unit or rental unit.

(c) Plumbing system requirement. An owner of an apartment house on which construction began after January 1, 2003, and that provides government assisted or subsidized rental housing to low or very low income residents shall install a plumbing system in the apartment house that is compatible with the installation of submeters for the measurement of the quantity of water, if any, consumed by the occupants of each unit.

(d) Installation of individual meters. On the request by the property owner or manager, a retail public utility shall install individual meters owned by the utility in an apartment house, manufactured home rental community, multiple use facility, or condominium on which construction began after January 1, 2003, unless the retail public utility determines that installation of meters is not feasible. If the retail public utility determines that installation of meters is not feasible, the property owner or manager shall install a plumbing system that is compatible with the installation of submeters or individual meters. A retail public utility may charge reasonable costs to install individual meters.

(e) Records. The owner shall make the following records available for inspection by the tenant or the commission or commission staff at the on-site manager's office during normal business hours in accordance with subsection (g) of this section. The owner may require that the request by the tenant be in writing and include:

(1) a current and complete copy of TWC, Chapter 13, Subchapter M;

(2) a current and complete copy of this subchapter;

(3) a current copy of the retail public utility's rate structure applicable to the owner's bill;

(4) information or tips on how tenants can reduce water usage;

(5) the bills from the retail public utility to the owner;

(6) for allocated billing:

(A) the formula, occupancy factors, if any, and percentages used to calculate tenant bills;

(B) the total number of occupants or equivalent occupants if an equivalency factor is used under §24.281(e)(2) of this title (relating to Charges and Calculations); and

(C) the square footage of the tenant's dwelling unit or rental space and the total square footage of the apartment house, manufactured home rental community, or multiple use facility used for billing if dwelling unit size or rental space is used;

(7) for submetered billing:

- (A) the calculation of the average cost per gallon, liter, or cubic foot;
 - (B) if the unit of measure of the submeters or point-of-use submeters differs from the unit of measure of the master meter, a chart for converting the tenant's submeter measurement to that used by the retail public utility;
 - (C) all submeter readings; and
 - (D) all submeter test results;
 - (8) the total amount billed to all tenants each month;
 - (9) total revenues collected from the tenants each month to pay for water and wastewater service; and
 - (10) any other information necessary for a tenant to calculate and verify a water and wastewater bill.
- (f) Records retention. Each of the records required under subsection (e) of this section shall be maintained for the current year and the previous calendar year, except that all submeter test results shall be maintained until the submeter is permanently removed from service.
- (g) Availability of records.
- (1) If the records required under subsection (e) of this section are maintained at the on-site manager's office, the owner shall make the records available for inspection at the on-site manager's office within three days after receiving a written request.
 - (2) If the records required under subsection (e) of this section are not routinely maintained at the on-site manager's office, the owner shall provide copies of the records to the on-site manager within 15 days of receiving a written request from a tenant or the commission or commission staff.
 - (3) If there is no on-site manager, the owner shall make copies of the records available at the tenant's dwelling unit at a time agreed upon by the tenant within 30 days of the owner receiving a written request from the tenant.
 - (4) Copies of the records may be provided by mail if postmarked by midnight of the last day specified in paragraph (1), (2), or (3) of this subsection.

§ 24.279. Rental Agreement

- (a) Rental agreement content. The rental agreement between the owner and tenant shall clearly state in writing:
- (1) the tenant will be billed by the owner for submetered or allocated utility services, whichever is applicable;
 - (2) which utility services will be included in the bill issued by the owner;
 - (3) any disputes relating to the computation of the tenant's bill or the accuracy of any submetering device will be between the tenant and the owner;
 - (4) the average monthly bill for all dwelling units in the previous calendar year and the highest and lowest month's bills for that period;
 - (5) if not submetered, a clear description of the formula used to allocate utility services;
 - (6) information regarding billing such as meter reading dates, billing dates, and due dates;
 - (7) the period of time by which owner will repair leaks in the tenant's unit and in common areas, if common areas are not submetered;
 - (8) the tenant has the right to receive information from the owner to verify the utility bill; and
 - (9) for manufactured home rental communities and apartment houses, the service charge percentage permitted under §24.281(d)(3) of this title (relating to Charges and Calculations) that will be billed to tenants.
- (b) Requirement to provide rules. At the time a rental agreement is discussed, the owner shall provide a copy of this subchapter or a copy of the rules to the tenant to inform the tenant of his rights and the owner's responsibilities under this subchapter.
- (c) Tenant agreement to billing method changes. An owner shall not change the method by which a tenant is billed unless the tenant has agreed to the change by signing a lease or other written agreement. The owner shall provide notice of the proposed change at least 35 days prior to implementing the new method.
- (d) Change from submetered to allocated billing. An owner shall not change from submetered billing to allocated billing, except after receiving written approval from the commission after a demonstration of good cause and if the rental agreement requirements under subsections (a), (b), and (c) of this section have been met. Good cause may include:
- (1) equipment failures; or
 - (2) meter reading or billing problems that could not feasibly be corrected.

(e) Waiver of tenant rights prohibited. A rental agreement provision that purports to waive a tenant's rights or an owner's responsibilities under this subchapter is void.

§ 24.281. Charges and Calculations

- (a) Prohibited charges. Charges billed to tenants for submetered or allocated utility service may only include bills for water or wastewater from the retail public utility and must not include any fees billed to the owner by the retail public utility for any deposit, disconnect, reconnect, late payment, or other similar fees.
- (b) Dwelling unit base charge. If the retail public utility's rate structure includes a dwelling unit base charge, the owner shall bill each dwelling unit for the base charge applicable to that unit. The owner may not bill tenants for any dwelling unit base charges applicable to unoccupied dwelling units.
- (c) Customer service charge. If the retail public utility's rate structure includes a customer service charge, the owner shall bill each dwelling unit the amount of the customer service charge divided by the total number of dwelling units, including vacant units, that can receive service through the master meter serving the tenants.
- (d) Calculations for submetered utility service. The tenant's submetered charges must include the dwelling unit base charge and customer service charge, if applicable, and the gallonage charge and must be calculated each month as follows:
- (1) water utility service: the retail public utility's total monthly charges for water service (less dwelling unit base charges or customer service charges, if applicable), divided by the total monthly water consumption measured by the retail public utility to obtain an average water cost per gallon, liter, or cubic foot, multiplied by the tenant's monthly consumption or the volumetric rate charged by the retail public utility to the owner multiplied by the tenant's monthly water consumption;
 - (2) wastewater utility service: the retail public utility's total monthly charges for wastewater service (less dwelling unit base charges or customer service charges, if applicable), divided by the total monthly water consumption measured by the retail public utility, multiplied by the tenant's monthly consumption or the volumetric wastewater rate charged by the retail public utility to the owner multiplied by the tenant's monthly water consumption;
 - (3) service charge for manufactured home rental community or the owner or manager of apartment house: a manufactured home rental community or apartment house may charge a service charge in an amount not to exceed 9% of the tenant's charge for submetered water and wastewater service, except when:
 - (A) the resident resides in a unit of an apartment house that has received an allocation of low income housing tax credits under Texas Government Code, Chapter 2306, Subchapter DD; or
 - (B) the apartment resident receives tenant-based voucher assistance under United States Housing Act of 1937 Section 8, (42 United States Code, §1437f); and
 - (4) final bill on move-out for submetered service: if a tenant moves out during a billing period, the owner may calculate a final bill for the tenant before the owner receives the bill for that period from the retail public utility. If the owner is billing using the average water or wastewater cost per gallon, liter, or cubic foot as described in paragraph (1) of this subsection, the owner may calculate the tenant's bill by calculating the tenant's average volumetric rate for the last three months and multiplying that average volumetric rate by the tenant's consumption for the billing period.
- (e) Calculations for allocated utility service.
- (1) Before an owner may allocate the retail public utility's master meter bill for water and sewer service to the tenants, the owner shall first deduct:
 - (A) dwelling unit base charges or customer service charge, if applicable; and
 - (B) common area usage such as installed landscape irrigation systems, pools, and laundry rooms, if any, as follows:
 - (i) if all common areas are separately metered or submetered, deduct the actual common area usage;
 - (ii) if common areas that are served through the master meter that provides water to the dwelling units are not separately metered or submetered and there is an installed landscape irrigation system, deduct at least 25% of the retail public utility's master meter bill;
 - (iii) if all water used for an installed landscape irrigation system is metered or submetered and there are other common areas such as pools or laundry rooms that are not metered or submetered, deduct at least 5% of the retail public utility's master meter bill; or
 - (iv) if common areas that are served through the master meter that provides water to the dwelling units are not separately metered or

submetered and there is no installed landscape irrigation system, deduct at least 5% of the retail public utility's master meter bill.

(2) To calculate a tenant's bill:

(A) for an apartment house, the owner shall multiply the amount established in paragraph (1) of this subsection by:

(i) the number of occupants in the tenant's dwelling unit divided by the total number of occupants in all dwelling units at the beginning of the month for which bills are being rendered; or

(ii) the number of occupants in the tenant's dwelling unit using a ratio occupancy formula divided by the total number of occupants in all dwelling units at the beginning of the retail public utility's billing period using the same ratio occupancy formula to determine the total. The ratio occupancy formula will reflect what the owner believes more accurately represents the water use in units that are occupied by multiple tenants. The ratio occupancy formula that is used must assign a fractional portion per tenant of no less than that on the following scale:

(I) dwelling unit with one occupant = 1;

(II) dwelling unit with two occupants = 1.6;

(III) dwelling unit with three occupants = 2.2; or

(IV) dwelling unit with more than three occupants = $2.2 + 0.4$ per each additional occupant over three; or

(iii) the average number of occupants per bedroom, which shall be determined by the following occupancy formula. The formula must calculate the average number of occupants in all dwelling units based on the number of bedrooms in the dwelling unit according to the scale below, notwithstanding the actual number of occupants in each of the dwelling unit's bedrooms or all dwelling units:

(I) dwelling unit with an efficiency = 1;

(II) dwelling unit with one bedroom = 1.6;

(III) dwelling unit with two bedrooms = 2.8;

(IV) dwelling unit with three bedrooms = $4 + 1.2$ for each additional bedroom; or

(iv) a factor using a combination of square footage and occupancy in which no more than 50% is based on square footage. The square footage portion must be based on the total square footage living area of the dwelling unit as a percentage of the total square footage living area of all dwelling units of the apartment house; or

(v) the individually submetered hot or cold water usage of the tenant's dwelling unit divided by all submetered hot or cold water usage in all dwelling units;

(B) a condominium manager shall multiply the amount established in paragraph (1) of this subsection by any of the factors under subparagraph (A) of this paragraph or may follow the methods outlined in the condominium contract;

(C) for a manufactured home rental community, the owner shall multiply the amount established in paragraph (1) of this subsection by:

(i) any of the factors developed under subparagraph (A) of this paragraph; or

(ii) the area of the individual rental space divided by the total area of all rental spaces; and

(D) for a multiple use facility, the owner shall multiply the amount established in paragraph (1) of this subsection by:

(i) any of the factors developed under subparagraph (A) of this paragraph; or

(ii) the square footage of the rental space divided by the total square footage of all rental spaces.

(3) If a tenant moves in or out during a billing period, the owner may calculate a bill for the tenant. If the tenant moves in during a billing period, the owner shall prorate the bill by calculating a bill as if the tenant were there for the whole month and then charging the tenant for only the number of days the tenant lived in the unit divided by the number of days in the month multiplied by the calculated bill. If a tenant moves out during a billing period before the owner receives the bill for that period from the retail public utility, the owner may calculate a final bill. The owner may calculate the tenant's bill by calculating the tenant's average bill for the last three months and multiplying that average bill by the number of days the tenant was in the unit divided by the number of days in that month.

(f) Conversion to approved allocation method. An owner using an allocation formula other than those approved in subsection (e) of this section shall immediately provide notice as required under §24.279(c) of this title (relating to Rental Agreement) and either:

(1) adopt one of the methods in subsection (e) of this section; or

(2) install submeters and begin billing on a submetered basis; or

(3) discontinue billing for utility services.

§ 24.283. Billing

(a) Monthly billing of total charges. The owner shall bill the tenant each month for the total charges calculated under §24.281 of this title (relating to Charges and Calculations). If it is permitted in the rental agreement, an occupant or occupants who are not residing in the rental unit for a period longer than 30 days may be excluded from the occupancy calculation and from paying a water and sewer bill for that period.

(b) Rendering bill.

(1) Allocated bills shall be rendered as promptly as possible after the owner receives the retail public utility bill.

(2) Submeter bills shall be rendered as promptly as possible after the owner receives the retail public utility bill or according to the time schedule in the rental agreement if the owner is billing using the retail public utility's rate.

(c) Submeter reading schedule. Submeters or point-of-use submeters shall be read within three days of the scheduled reading date of the retail public utility's master meter or according to the schedule in the rental agreement if the owner is billing using the retail public utility's rate.

(d) Billing period.

(1) Allocated bills shall be rendered for the same billing period as that of the retail public utility, generally monthly, unless service is provided for less than that period.

(2) Submeter bills shall be rendered for the same billing period as that of the retail public utility, generally monthly, unless service is provided for less than that period. If the owner uses the retail public utility's actual rate, the billing period may be an alternate billing period specified in the rental agreement.

(e) Multi-item bill. If issued on a multi-item bill, charges for submetered or allocated utility service must be separate and distinct from any other charges on the bill.

(f) Information on bill. The bill must clearly state that the utility service is submetered or allocated, as applicable, and must include all of the following:

(1) total amount due for submetered or allocated water;

(2) total amount due for submetered or allocated wastewater;

(3) total amount due for dwelling unit base charge(s) or customer service charge(s) or both, if applicable;

(4) total amount due for water or wastewater usage, if applicable;

(5) the name of the retail public utility and a statement that the bill is not from the retail public utility;

(6) name and address of the tenant to whom the bill is applicable;

(7) name of the firm rendering the bill and the name or title, address, and telephone number of the firm or person to be contacted in case of a billing dispute; and

(8) name, address, and telephone number of the party to whom payment is to be made.

(g) Information on submetered service. In addition to the information required in subsection (f) of this section, a bill for submetered service must include all of the following:

(1) the total number of gallons, liters, or cubic feet submetered or measured by point-of-use submeters;

(2) the cost per gallon, liter, or cubic foot for each service provided; and

(3) total amount due for a service charge charged by an owner of a manufactured home rental community, if applicable.

(h) Due date. The due date on the bill may not be less than 16 days after it is mailed or hand delivered to the tenant, unless the due date falls on a federal holiday or weekend, in which case the following work day will be the due date. The owner shall record the date the bill is mailed or hand delivered. A payment is delinquent if not received by the due date.

(i) Estimated bill. An estimated bill may be rendered if a master meter, submeter, or point-of-use submeter has been tampered with, cannot be read, or is out of order; and in such case, the bill must be distinctly marked as an estimate and the subsequent bill must reflect an adjustment for actual charges.

(j) Payment by tenant. Unless utility bills are paid to a third-party billing company on behalf of the owner, or unless clearly designated by the tenant, payment must be applied first to rent and then to utilities.

(k) Overbilling and underbilling. If a bill is issued and subsequently found to be in error, the owner shall calculate a billing adjustment. If the tenant is due a refund, an adjustment must be calculated for all of that tenant's bills that

included overcharges. If the overbilling or underbilling affects all tenants, an adjustment must be calculated for all of the tenants' bills. If the tenant was undercharged, and the cause was not due to submeter or point-of-use submeter error, the owner may calculate an adjustment for bills issued in the previous six months. If the total undercharge is \$25 or more, the owner shall offer the tenant a deferred payment plan option, for the same length of time as that of the underbilling. Adjustments for usage by a previous tenant may not be back billed to a current tenant.

(f) Disputed bills. In the event of a dispute between a tenant and an owner regarding any bill, the owner shall investigate the matter and report the results of the investigation to the tenant in writing. The investigation and report must be completed within 30 days from the date the tenant gives written notification of the dispute to the owner.

(m) Late fee. A one-time penalty not to exceed 5% may be applied to delinquent accounts. If such a penalty is applied, the bill must indicate the amount due if the late penalty is incurred. No late penalty may be applied unless agreed to by the tenant in a written lease that states the percentage amount of such late penalty.

§ 24.285. Complaint Jurisdiction

(a) Jurisdiction. The commission has exclusive jurisdiction for violations under this subchapter.

(b) Complaints. If an apartment house owner, condominium manager, manufactured home rental community owner, or other multiple use facility owner violates a commission rule regarding utility costs, the person claiming the violation may file a complaint with the commission and may appear remotely for a hearing.

§ 24.287. Submeters or Point-of-Use Submeters and Plumbing Fixtures

(a) Submeters or point-of-use submeters.

(1) Same type submeters or point-of-use submeters required. All submeters or point-of-use submeters throughout a property must use the same unit of measurement, such as gallon, liter, or cubic foot.

(2) Installation by owner. The owner shall be responsible for providing, installing, and maintaining all submeters or point-of-use submeters necessary for the measurement of water to tenants and to common areas, if applicable.

(3) Submeter or point-of-use submeter tests prior to installation. No submeter or point-of-use submeter may be placed in service unless its accuracy has been established. If any submeter or point-of-use submeter is removed from service, it must be properly tested and calibrated before being placed in service again.

(4) Accuracy requirements for submeters and point-of-use submeters. Submeters must be calibrated as close as possible to the condition of zero error and within the accuracy standards established by the American Water Works Association (AWWA) for water meters. Point-of-use submeters must be calibrated as closely as possible to the condition of zero error and within the accuracy standards established by the American Society of Mechanical Engineers (ASME) for point-of-use and branch-water submetering systems.

(5) Location of submeters and point-of-use submeters. Submeters and point-of-use submeters must be installed in accordance with applicable plumbing codes and AWWA standards for water meters or ASME standards for point-of-use submeters, and must be readily accessible to the tenant and to the owner for testing and inspection where such activities will cause minimum interference and inconvenience to the tenant.

(6) Submeter and point-of-use submeter records. The owner shall maintain a record on each submeter or point-of-use submeter which includes:

- (A) an identifying number;
- (B) the installation date (and removal date, if applicable);
- (C) date(s) the submeter or point-of-use submeter was calibrated or tested;
- (D) copies of all tests; and
- (E) the current location of the submeter or point-of-use submeter.

(7) Submeter or point-of-use submeter test on request of tenant. Upon receiving a written request from the tenant, the owner shall either:

(A) provide evidence, at no charge to the tenant, that the submeter or point-of-use submeter was calibrated or tested within the preceding 24 months and determined to be within the accuracy standards established by the AWWA for water meters or ASME standards for point-of-use submeters; or

(B) have the submeter or point-of-use submeter removed and tested and promptly advise the tenant of the test results.

(8) Billing for submeter or point-of-use submeter test.

(A) The owner may not bill the tenant for testing costs if the submeter fails to meet AWWA accuracy standards for water meters or ASME standards for point-of-use submeters.

(B) The owner may not bill the tenant for testing costs if there is no evidence that the submeter or point-of-use submeter was calibrated or tested within the preceding 24 months.

(C) The owner may bill the tenant for actual testing costs (not to exceed \$25) if the submeter meets AWWA accuracy standards or the point-of-use submeter meets ASME accuracy standards and evidence as described in paragraph (7)(A) of this subsection was provided to the tenant.

(9) Bill adjustment due to submeter or point-of-use submeter error. If a submeter does not meet AWWA accuracy standards or a point-of-use submeter does not meet ASME accuracy standards and the tenant was overbilled, an adjusted bill must be rendered in accordance with §24.283(k) of this title (relating to Billing). The owner may not charge the tenant for any underbilling that occurred because the submeter or point-of-use submeter was in error.

(10) Submeter or point-of-use submeter testing facilities and equipment. For submeters, an owner shall comply with the AWWA's meter testing requirements. For point-of-use meters, an owner shall comply with ASME's meter testing requirements.

(b) Plumbing fixtures. After January 1, 2003, before an owner of an apartment house, manufactured home rental community, or multiple use facility or a manager of a condominium may implement a program to bill tenants for submetered or allocated water service, the owner or manager shall adhere to the following standards:

(1) Texas Health and Safety Code, §372.002, for sink or lavatory faucets, faucet aerators, and showerheads;

(2) perform a water leak audit of each dwelling unit or rental unit and each common area and repair any leaks found; and

(3) not later than the first anniversary of the date an owner of an apartment house, manufactured home rental community, or multiple use facility or a manager of a condominium begins to bill for submetered or allocated water service, the owner or manager shall:

(A) remove any toilets that exceed a maximum flow of 3.5 gallons per flush; and

(B) install toilets that meet the standards prescribed by Texas Health and Safety Code, §372.002.

(c) Plumbing fixture not applicable. Subsection (b) of this section does not apply to a manufactured home rental community owner who does not own the manufactured homes located on the property of the manufactured home rental community.

LEASE ADDENDUM FOR TRASH REMOVAL AND RECYCLING COSTS—FLAT FEE

1. Addendum. This is an addendum to the TAA Lease Contract for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowery at Southside Apartments in Fort Worth, Texas OR the house, duplex, etc. located at (street address) _____ in _____, Texas.

2. Flat fee for trash/recycling costs. Your monthly base rent under the TAA Lease Contract does not include a charge for trash removal. Instead, you will be receiving a separate bill from us for such service. You agree to pay a monthly fee of \$ 30.00 for the removal of trash and/or recycling for the apartment community, plus a nominal administrative fee of \$ _____ per month (not to exceed \$3) for processing and billing.

Your trash/recycling bill may include state and local sales taxes as required by state law.

3. Payment due date. Payment of your trash removal and recycling bill is due 16 days after the date it is postmarked or hand delivered to your apartment. We may include this item as a separate and distinct charge as part of a multi-item bill. You agree to mail or deliver payment to the place indicated on your bill so that payment is received no later than the due date. There will be a late charge of \$ _____ (not to exceed \$3) if we do not receive timely payment of your trash/recycling bill, but we are not obligated to accept late payment. If you are late in paying the trash removal/recycling bill, we may immediately exercise all lawful remedies under your lease contract, including eviction.

Kathryn M Copeland

 Signatures of All Residents

 Signature of Owner or Owner's Representative

LEASE ADDENDUM FOR ALLOCATING SERVICES AND GOVERNMENTAL FEES

1. **Addendum.** This is an addendum to the TAA Lease Contract for Apt. No. 2145 in the WMCI Dallas, X LLC dba The Bowery at Southside Apartments in Fort Worth, Texas. The terms of this addendum will control if the terms of the Lease and this addendum conflict.

2. **Reason for allocation.** Apartment owners receive bills for services provided to residents and charges for various governmental fees. These are direct costs that the apartment community incurs. In order to help control the cost of rent, we have chosen to allocate the services and governmental fees indicated below through an allocated bill using a standardized formula to distribute these costs fairly. While we may impose a nominal fee to help recover our costs in administering these bills, we do not add any other costs to these bills and make no profit off of them.

3. **Services and governmental fees allocated.** We will allocate the following services and governmental fees:

- | | |
|---|---|
| ☐ Cable/satellite television | ☐ Registration/license fee |
| ☒ Stormwater/drainage | ☐ Other _____ |
| ☐ Trash removal/recycling | ☐ Other _____ |
| ☐ Street repair/maintenance fee | ☐ Other _____ |
| ☐ Emergency services fee | ☐ Other _____ |
| ☐ Conservation district fee | ☐ Other _____ |
| ☐ Inspection fee | ☐ Other _____ |

4. **Your payment due date.** Payment of your allocated services and governmental fee bill is due 16 days after the date it is postmarked or hand delivered to your apartment. You agree to mail or deliver payment to the place indicated on your bill so that payment is received no later than the due date. You will pay a late charge of \$ _____ (not to exceed \$3) if we do not receive timely payment. If you are late in paying the services and governmental fee bill, we may cut off services, as allowed by law, and we may immediately exercise all other lawful remedies, including eviction—just like late payment of rent.

5. **Allocation procedures.** Your monthly base rent under the TAA Lease Contract does not include a charge for the services and governmental fees indicated above. You will pay separately for these charges which are defined under the Lease as "Additional Rent". You may receive a separate bill from us each month or we may include these items as separate and distinct charges as part of a multi-item bill.

You agree to and we will allocate the indicated services and governmental fees for the apartment community based on the allocation method checked below: *(check only one)*

- ☐ A percentage reflecting your apartment unit's share of the total square footage in the apartment community, i.e., your unit's square footage divided by the total square footage in all apartment units.
- ☐ A percentage reflecting your apartment unit's share of the total number of people living in the apartment community, i.e., the number of people living in your apartment divided by the total number of people living in the entire apartment community for the month. ("People" for this purpose are all residents and occupants listed in leases at the apartment community as having a right to occupy the respective units).
- ☐ Half of your allocation will be based on your apartment unit's share of total square footage and half will be based on your share of total people living in the apartment community, as described above.
- ☒ Per dwelling unit
- ☐ Other formula (see attached page)

6. **Penalties and fees.** Only the total of the services and governmental fee bills will be allocated. Penalties or interest for any late payment of these bills by us will be paid for by us and will not be allocated. A nominal administrative fee of \$ 3.00 per month (not to exceed \$3) will be added to your bill for processing, billing and/or collecting.

7. **Change of allocation formula.** The above allocation formula for determining your share of the services and governmental fee bills cannot be changed except as follows: (1) you receive notice of the new formula at least 35 days before it takes effect; and (2) you agree to the change in a signed lease renewal or signed mutual agreement.

8. **Right to examine records.** You may examine our service and governmental fee bills from the companies and governmental entities and our calculations relating to the monthly allocation of these bills during regular weekday office hours. Please give us reasonable advance notice to gather the data.

Kathryn M Copeland
Signatures of All Residents

Signature of Owner or Owner's Representative

LEASE ADDENDUM FOR VALET TRASH

Addendum. This is an addendum to lease contract for Apt. No. 2145 in the The Bowery at Southside
Apartments, in Fort Worth,
TX.

This Lease Addendum for Valet Trash (this "Addendum") is made and entered into as of the date of the Lease Contract and between WMCi Dallas, X
LLC dba The Bowery at Southside (the "Owner") and
Kathryn M Copeland

(the "Resident", whether one or more) upon the terms and conditions stated herein.

The Lease Agreement, as written, is all inclusive and binding to the Landlord and the Tenant, with the exception of the following amendments and revisions:

1. Valet trash collection service will be provided for Tenant 5 nights per week, Sunday through Thursday for an additional monthly fee noted within your lease or subsequent renewal. The fee for valet trash collection is in addition to the monthly fee for regular trash. Note: Valet trash collection will not occur on designated holidays.
2. Each apartment will be provided with one container to be used for the purpose of valet trash collection. Only approved containers are allowed.
3. Tenant is responsible for placing the provided container containing bagged trash only outside the front door of the apartment no earlier than 5:00PM each evening for collection.
4. Trash collection service will begin at 7:00PM.
5. All trash must be bagged and tied securely. Pet waste must be double bagged. No broken glass or sharp objects are allowed in the container. Large items or bags weighing over 25 lbs are not permitted.
6. All bags must be placed inside the provided container. Trash will not be collected without the use of the provided container.
7. Loose trash will not be collected.
8. Boxes must be broken down and flattened.
9. If Tenant is unable to place container outside of the apartment on a designated service night, Tenant is responsible for disposing of trash in the community dumpster/trash compactor.
10. The container and/or trash may not be left outside the apartment for any reason other than pickup during the designated trash collection timeframe.
11. If a container remains outside of the apartment past 9:00AM on the morning following trash collection service, a \$25.00 fee will be assessed.
12. Tenant is required to keep the provided container clean.
13. The provided container is property of Landlord.
14. Tenant will be assessed a \$25.00 fee if an additional or replacement container is needed, or if the container is not left in the apartment when Tenant vacates.

If Tenant is found to be in violation of any of the above, Landlord will issue a warning to Tenant. If Tenant is found to be in violation a second time, the container may be removed and/or a \$25.00 fee will be assessed. In the event container is removed, it will be returned after any fees are paid. If Tenant is found to be in violation a third time, valet trash removal service will be terminated and disposing of trash in the provided dumpster/trash compactor will become the responsibility of the Tenant. Tenant will not receive any refund or rebate for valet trash removal charges.

Tenant acknowledges that valet trash is provided by a third-party provider and that changes to this addendum may occur due to a change of provider's service agreement with the owner, a change of the provider, or any other reason. Any changes to this agreement will be provided in writing at least 30 days in advance of enforcement.

Special Provisions: _____

The undersigned have read, understand and agree to comply with the terms of this Addendum.

Kathryn M Copeland
Signature of All Residents

Signature of Owner or Owner's Representative
04/29/2025
Date of Lease Contract



Mold Information and Prevention Addendum

Please note: We want to maintain a high-quality living environment for our residents. To help achieve this goal, it is important that we work together to minimize any mold growth in your dwelling. This Addendum contains important information for you, and responsibilities for both you and us.

1. **Addendum.** This is an addendum between the Residents and Owner as described in the Lease for the dwelling described below:
Unit # 2145
at WMCI Dallas, X LLC dba The Bowery at
Southside

(name of apartments)
or other dwelling located at _____

(street address of house, duplex, etc.)
City/State/Zip where dwelling is located: _____

2. **About Mold.** Mold is found everywhere in our environment, both indoors and outdoors and in both new and old structures. To avoid mold growth, it's important to **prevent excess moisture buildup** in your dwelling. Promptly notify us in writing about any air-conditioning or heating-system problems and any signs of water leaks, water infiltration or mold. We will respond in accordance with state law and the Lease to repair or remedy the situation.

If small areas of mold have already accumulated on nonporous surfaces (such as ceramic tile, formica, vinyl flooring, metal, wood, or plastic), **the Environmental Protection Agency recommends that you first clean the areas with soap** (or detergent) and water and let the surface dry thoroughly. When the surface is dry—and within 24 hours of cleaning—apply a premixed spray-on household biocide.

Do not clean or apply biocides to visible mold on porous surfaces such as sheetrock walls or ceilings or to large areas of visible mold on nonporous surfaces. Instead, notify us in writing and we will take appropriate action to comply with Section 92.051 et seq. of the Texas Property Code, subject to the special exceptions for natural disasters.

If you fail to comply with this addendum, you can be held responsible for property damage to the dwelling and any health problems that may result.

**This Addendum is part of your Lease.
You are legally bound by this document. Please read it carefully.**

Resident or Residents (all sign below)

<u>Kathryn M Copeland</u>	04/29/2025
(Name of Resident)	Date signed
_____	Date signed
(Name of Resident)	Date signed
_____	Date signed
(Name of Resident)	Date signed
_____	Date signed
(Name of Resident)	Date signed
_____	Date signed
(Name of Resident)	Date signed
_____	Date signed

Owner or Owner's Representative (sign below)

Date signed

You are entitled to receive a copy of this Addendum after it is fully signed. Keep it in a safe place.





Bed Bug Addendum

Please note: We want to maintain a high-quality living environment for you. It's important to work together to minimize the potential for bed bugs in your dwelling and others. This Addendum outlines your responsibility and potential liability when it comes to bed bugs.

1. **Addendum.** This is an addendum between the Residents and Owner as described in the Lease for the dwelling described below:

Apt. # 2145 at WMCI Dallas, X LLC
dba The Bowery at Southside

(name of apartments)

or other dwelling located at _____

_____ (street address of house, duplex, etc.)

_____ (city)

_____ (state) _____ (zip).

2. **Purpose.** This addendum modifies the Lease Contract to address any infestation of bed bugs (*Cimex lectularius*) that might be found in the dwelling or on your personal property. We will rely on representations that you make to us in this addendum.

3. **Inspection and Infestations.** We are not aware of any current evidence of bed bugs or bed-bug infestation in the dwelling.

BY SIGNING THIS ADDENDUM, YOU REPRESENT THAT:

- **YOU HAVE INSPECTED THE DWELLING BEFORE MOVING IN OR SIGNING THIS ADDENDUM, AND YOU DID NOT FIND ANY EVIDENCE OF BED BUGS OR BED-BUG INFESTATIONS, OR**

- **YOU WILL INSPECT THE DWELLING WITHIN 48 HOURS AFTER MOVING IN OR SIGNING THIS ADDENDUM AND WILL NOTIFY US OF ANY BED BUGS OR BED-BUG INFESTATION.**

4. **Access for Inspection and Pest Treatment.** You must allow us and our pest-control agents access to the dwelling at reasonable times to inspect for or treat bed bugs. We can also inspect and treat adjacent or neighboring dwellings to the infestation, even if those dwellings are not the source or cause of the known infestation. Simultaneously as we treat the dwelling, you must, at your expense, have your personal property, furniture, clothing, and possessions treated according to accepted treatment methods by a licensed pest-control firm that we approve. You agree not to treat the dwelling for a bed-bug infestation on your own.

5. **Notification.** You must promptly notify us:

- of any known or suspected bed-bug infestation or presence in the dwelling, or in any of your clothing, furniture, or personal property;
- of any recurring or unexplained bites, stings, irritations, or sores on the skin or body that you believe are caused by bed bugs, or by any condition or pest you believe is in the dwelling; AND
- if you discover any condition or evidence that might indicate the presence or infestation of bed bugs, or if you receive any confirmation of bed-bug presence by a licensed pest-control professional or other authoritative source.

6. **Cooperation.** If we confirm the presence or infestation of bed bugs, you must cooperate and coordinate with us and our pest-control agents to treat and eliminate them. You must follow all directions from us or our agents to clean and treat the dwelling and building that are infested. If you don't cooperate with us, you will be in default and we will have the right to terminate your right of occupancy and exercise all rights and remedies under the Lease.

7. **Responsibilities.** You may be required to pay all reasonable costs of cleaning and pest-control treatments incurred by us to treat your dwelling unit for bed bugs. If we confirm the presence or infestation of bed bugs after you move out, you may be responsible for the cost of cleaning and pest control. If we have to move other residents in order to treat adjoining or neighboring dwellings to your dwelling unit, you may have to pay any lost rental income and other expenses we incur to relocate the neighboring residents and to clean and perform pest-control treatments to eradicate infestations in other dwellings. If you don't pay us for any costs you are liable for, you will be in default and we will have the right to terminate your right of occupancy and exercise all rights and remedies under the Lease, and we may take immediate possession of the dwelling. If you don't move out after your right of occupancy has been terminated, you will be liable for holdover rent under the Lease.

8. **Transfers.** If we allow you to transfer to another dwelling in the community because of the presence of bed bugs, you must have your personal property and possessions treated according to accepted treatment methods or procedures established by a licensed pest-control professional. You must provide proof of such cleaning and treatment to our satisfaction.

This Addendum is part of your Lease.
You are legally bound by this document. Please read it carefully.

Resident or Residents (all sign below)

Owner or Owner's Representative (sign below)

Kathryn M Copeland

(Name of Resident)

04/29/2025

Date signed

(Name of Resident)

Date signed

(Name of Resident)

Date signed

(Name of Resident)

Date signed

(Name of Resident)

Date signed

(Name of Resident)

Date signed

Date signed

You are entitled to receive a copy of this Addendum after it is fully signed. Keep it in a safe place.

LEASE ADDENDUM FOR COMMUNICATION VIA TEXT

1. Addendum. This is an addendum to lease contract for Apt. No. 2145 in the The Bowery at Southside
Apartments, in Fort Worth, TX.

2. The Lease Agreement, as written, is all inclusive and binding to the Landlord and the Tenant(s) with the exception of the following amendments and/or revisions:

I/We understand and agree to the following:

By providing your mobile number and signing, this constitutes your signature to agree to receive recurring informational and marketing SMS/MMS text messages from Weinstein Management Co., Inc. and/or its affiliates or agents to the number you provided, including such messages sent through an automatic dialing system. Your consent is not a condition of purchasing any property, goods, or services. Depending on your mobile phone plan, standard messaging and data rates/fees or other charges may apply. You can opt out from receiving SMS/MMS text messages by responding STOP to any message you receive. If you opt out, you may receive one additional message confirming that your request has been processed.

The undersigned have read, understand, and will comply with this Agreement.

Kathryn M Copeland
Signatures of All Residents

Signature of Owner or Owner's Representative

04/29/2025
Date of Lease Contract

ADDENDUM - PAYMENT OF SALES, EXCISE AND USE TAX

APARTMENT UNIT DESCRIPTION. Apt. No. 2145, 405 Crawford St Apt# 2145

 _____ (street address) in Fort Worth
 _____ (city), TX (state), 76104 (zip code).

LEASE CONTRACT DESCRIPTION. Lease Contract date: April 29, 2025
 Owner's name: WMCI Dallas, X LLC dba The Bowery at Southside

 Residents (list all residents): Kathryn M Copeland

Resident shall be responsible for payment of any applicable federal, state and local taxes, including any sales, excise or use taxes, assessed on any goods or services purchased, rented, leased or otherwise utilized by Resident at such rates as may be determined by federal, state, or local authorities from time to time.

Resident(s)	Date of Signing Addendum
(All residents must sign)	
<u>Kathryn M Copeland</u>	<u>04/29/2025</u>
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
Owner or Owner's Representative	Date of Signing Addendum
_____	_____

PACKAGE ADDENDUM

APARTMENT UNIT DESCRIPTION. Apt. No. 2145, 405 Crawford St Apt# 2145

 _____ (street address) in Fort Worth
 _____ (city), TX (state), 76104 (zip code).

LEASE CONTRACT DESCRIPTION. Lease Contract date: April 29, 2025
 Owner's name: WMCI Dallas, X LLC dba The Bowery at Southside

 Residents (list all residents): Kathryn M Copeland

The Lease Agreement, as written, is all inclusive and binding to the Landlord and the Tenant(s) with the exception of the following amendments and/or revisions:

I/We understand and agree to the following:

- We may refuse to accept any package on your behalf for any reason or no reason at all.
- As to any package for which we sign and/or receive on your behalf, you understand and agree that we have no duty to notify you of our receipt of such package, nor do we have any duty to maintain, protect, or deliver said package to you, nor do we have any duty to make said package available to you outside disclosed business hours. Any packages or personal property delivered to us or stored by us shall be at your sole risk, and you assume all risks whatsoever associated with any loss or damage to your packages and personal property.
- If available, carriers will deliver packages to a USPS Mail or Parcel Box, Package Locker, or designated Package Room. If required for delivery, you agree to create and maintain any applicable accounts required to use a Package Locker and/or Package Room. If you do not create and maintain the account, you are by default agreeing to make other arrangements for delivery of any packages intended for your address.
- If Package Boxes, Lockers, or Rooms are unavailable, carriers are instructed to deliver parcels directly to individual apartment home doors. Packages will not be accepted at the leasing office.
- For Packages not claimed from Package Lockers, Package Rooms, or other areas within 3 days we shall have the right to dispose of such items by discarding them, delivering them to the Resident's apartment, returning them to the shipper, or any other method selected at our sole discretion.
- We have the right to charge a fee to accept and/or store packages for any duration of time.

Continued on next page.

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You, your guests, family, invitees, and agents hereby waive any and all claims against us or our agents of any nature regarding or relating to any package or item received by us, including but not limited to, claims for theft, misplacing or damaging any such package, except in the event of our or our agent's gross negligence or willful misconduct. You also agree to defend and indemnify us and our agents and hold us both harmless from any and all claims that may be brought by any third party relating to any injury sustained relating to or arising from any package that we received on your behalf. You also agree to indemnify us and our agents and hold us harmless from any damage caused to us or our agents by any package received by us for you. You also authorize us to throw away or otherwise dispose of any package that we, in our sole discretion, deem to be dangerous, noxious, or in the case of packaged food, spoiled, and waive any claim whatsoever resulting from such disposal.

Resident(s)

(All residents must sign)

Kathryn M Copeland

Date of Signing Addendum

04/29/2025

Owner or Owner's Representative

Date of Signing Addendum



CITY OF FORT WORTH TENANT AND LANDLORD INSPECTION FORM

PROPERTY ADDRESS 405 Crawford St Apt# 2145, Fort Worth, TX 76104APARTMENT ADDRESS 405 Crawford St Apt# 2145 #2145, Fort Worth, TX 76104DATE 04/29/2025TENANTS Kathryn M CopelandThe Bowery at Southside

Print - Tenant's Name Performing the Inspection

Print - Landlord's Name Performing the Inspection

Please list the names of all persons occupying the dwelling unit (other than overnight guests).

The City of Fort Worth Code of Ordinances requires a "Tenant and Landlord Inspection" of each dwelling in a multifamily dwelling complex. The inspection of a dwelling unit shall be conducted by the landlord and the unit's tenant:

- 1) a minimum of once annually; and
- 2) when the occupancy of the dwelling changes.

THE TENANT MUST ANSWER THE FOLLOWING QUESTIONS BY CIRCLING EITHER YES OR NO.

- YES -- NO Has the Landlord installed a smoke detector in this residence?
- YES -- NO Did you check to make sure the smoke detector works?
- YES -- NO If battery operated, do you know the Tenant must replace smoke detector batteries?
- YES -- NO Do you know a portable barbecue or cooking appliance cannot be used on a balcony, walkway, landing or within ten (10) feet of a combustible building?
- YES -- NO Do all electrical outlets, switches or lighting fixtures operate properly?
- YES -- NO Have you seen exposed electrical wiring inside or outside the residence?
- YES -- NO Have you noticed sewage leaking from inside or outside of the residence?
- YES -- NO Have you noticed water leaking from inside or outside of the residence?
- YES -- NO Are any of the drains clogged?
- YES -- NO Have you noticed the odor of gas inside or outside of the residence?
- YES -- NO Where evidence of infestation exists, has the dwelling been exterminated within the last 30 days?
- YES -- NO Is there broken glass in the window or door frames?
- YES -- NO Do the windows and doors lock properly?
- YES -- NO Is there a door viewer (peephole) installed in each exterior door?
- YES -- NO Is there a keyless bolting device on exterior doors that doesn't require special knowledge or tools to open?
- YES -- NO If a sliding door is present, is it equipped with a pin lock?
- YES -- NO Is the building marked with contrasting property address numbers?
- YES -- NO Is the dwelling unit number marked at the entrance to the unit?
- YES -- NO Has the Landlord advised the tenant the appropriate way to report problems to the Landlord?
- YES -- NO In case of an emergency, does the tenant have an evacuation plan?
- Where is your meeting place? _____

If the Tenant disagrees with any notation made by the Landlord, the Landlord shall permit the Tenant to make comments on the space below prior to signing it.

The Tenant has been advised to contact the following named property employee, Resident Service Center at telephone number 682-269-2862, where this employee can be contacted during any twenty-four period, to respond to emergencies such as a fire, natural disaster, flood, collapse hazard, burst pipes or violent crime.

The Tenant has been advised: TO REPORT UNRESOLVED VIOLATIONS OF CITY CODE MAINTENANCE STANDARDS FOR THESE PREMISES, CONTACT THE CODE COMPLIANCE DEPARTMENT AT 817-392-1234.

We the Tenant and Landlord confirm, the above inspection report reasonably depicts the general condition of apartment address 405 Crawford St Apt# 2145 #2145, Fort Worth, TX 76104 on _____ (MM/DD/YYYY). The Landlord must provide a copy of this signed form to the tenant. The Landlord must maintain this form for a minimum of three (3) years, and make it available for examination by the Code Compliance Department.

Tenant's Signature

Landlord's Signature

EXHIBIT “A-3”

Question	Response
Tenant:	t0249152 - Kathryn Copeland - 2145 - Current
Property:	The Bowery at Southside
Unit:	2145
Email:	k.m.copeland@tcu.edu quinnandpoppy@gmail.com
Inspection Sent Date:	10/24/2023 4:04 PM
Inspection Submitted Date:	10/26/2023 12:00 AM
Resident Name who filled out inspection form:	Kathryn Copeland
Explain: (If name doesn't match)	

Damage Notes					
#	Damage	Location	Action Needed?	Comments	Picture
1	Trim piece fell off door blinds.	Living Room			
2	Hardware missing and blinds not connected at bottom.	Living Room			



3 Twist blinds difficult to open with my joint health problem. Please modify to pull tie like other blinds.

Living Room



4 Twist blinds difficult to open

Living Room

with my joint health problem. Please modify to pull tie like other blinds.



5 Twist blinds difficult to open with my joint health problem. Please modify to pull tie like other blinds.

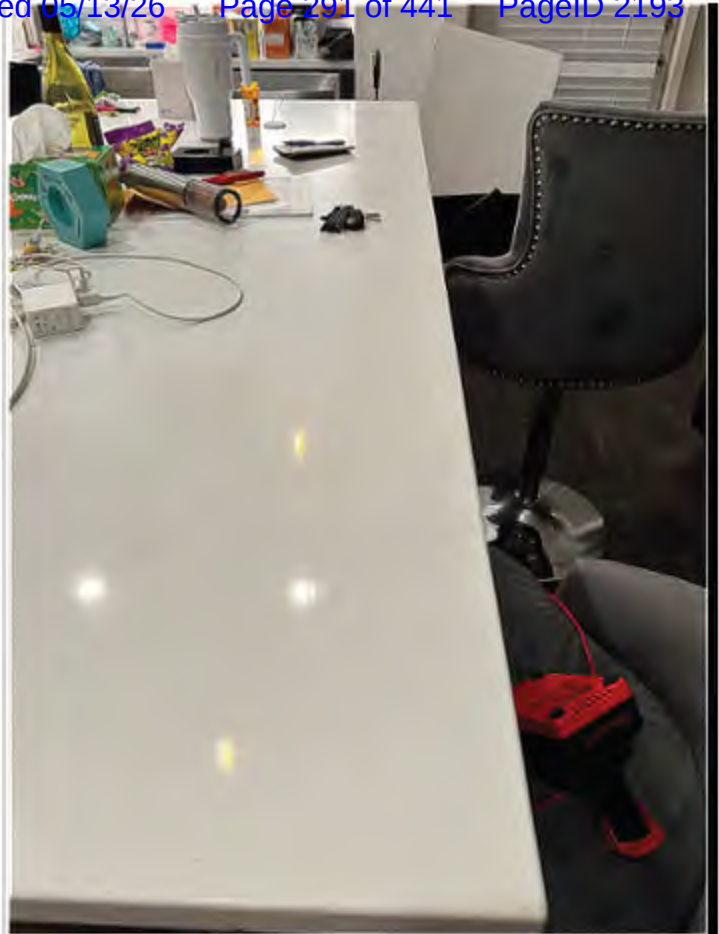
Living Room



6 General nicks and marks

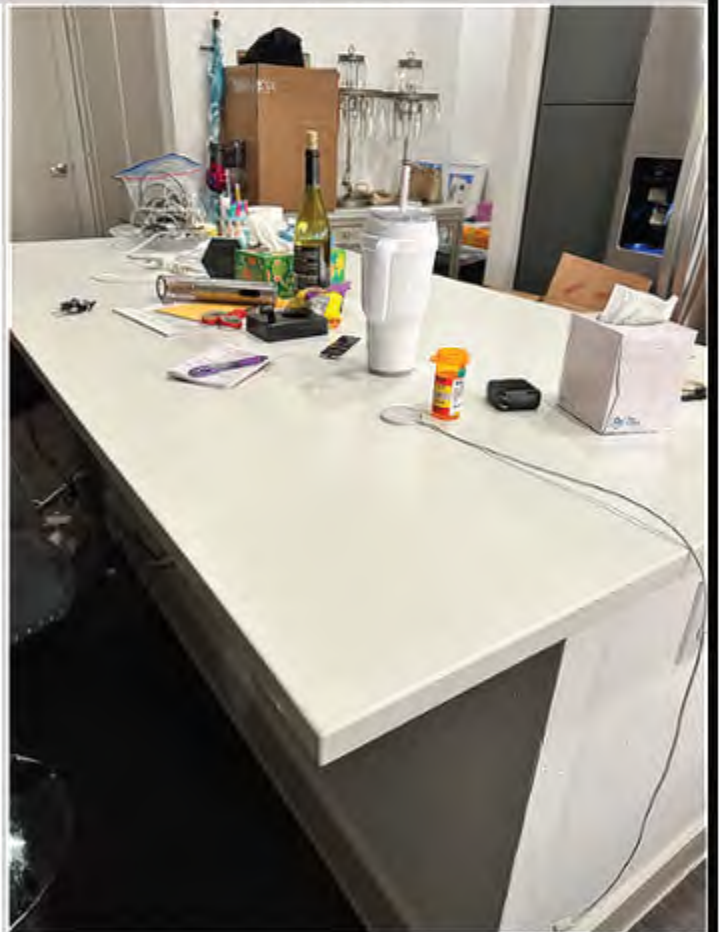
Kitchen

from prior
renters.



7 General nicks
and marks
from prior
renters.

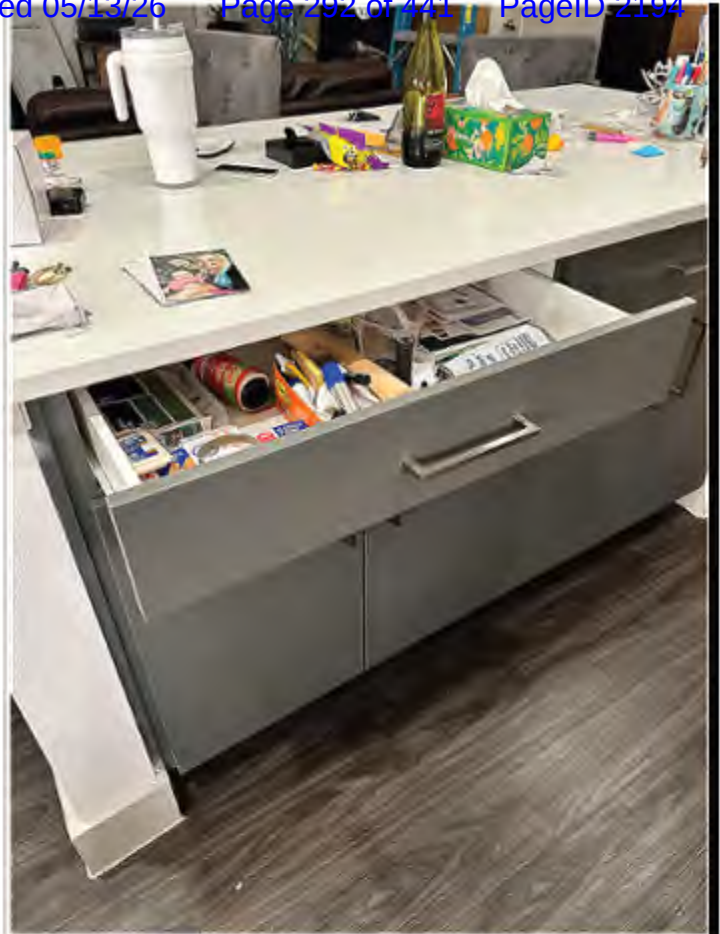
Kitchen



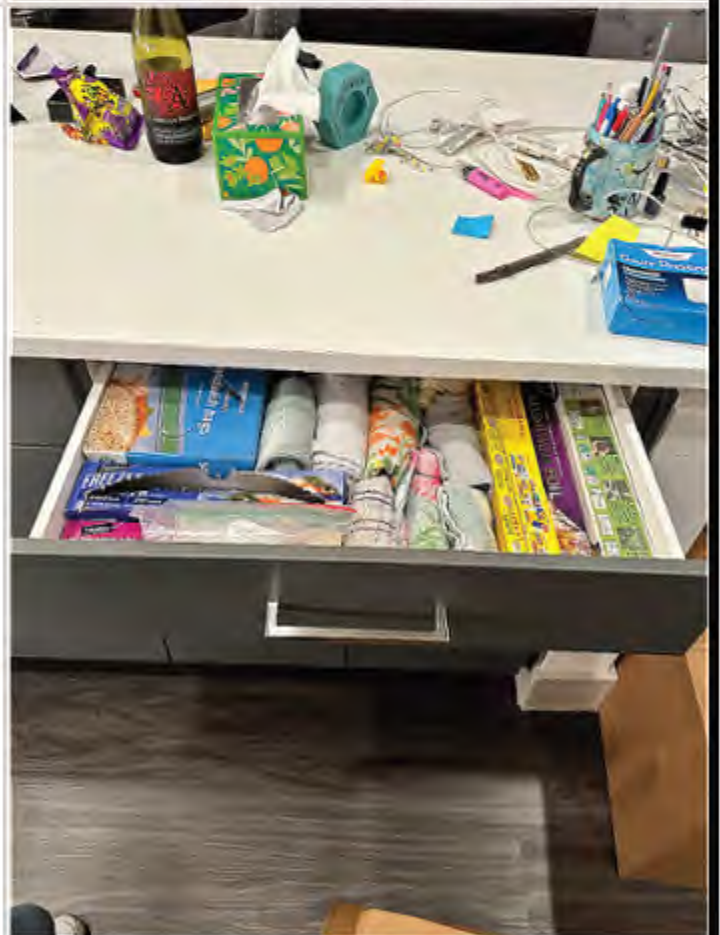
8 Island drawer 1
is difficult to

Kitchen

open. Perhaps
they all need
WD40? Or an
adjustment?



9 Island drawer 2 Kitchen
is difficult to
open. Perhaps
they all need
WD40? Or an
adjustment?



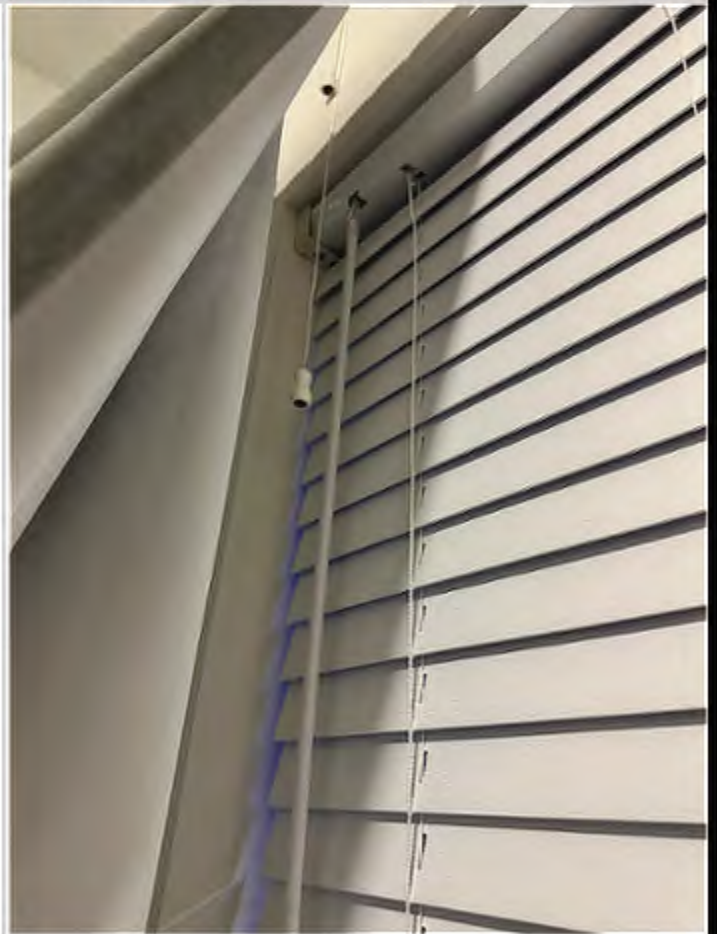
10 General nicks Kitchen
and marks on

countertops
from prior
renters.



11 Twist blinds
difficult to open
with my joint
health
problem.
Please modify
to pull tie like
other blinds.

Primary
Bedroom



12 Top trim piece
from blinds is

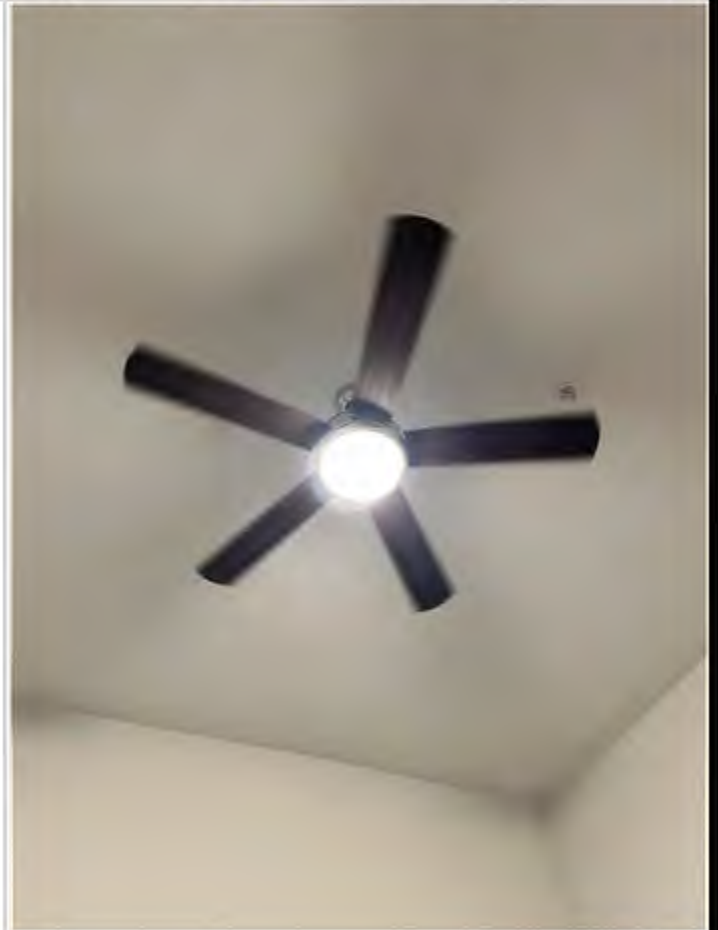
Primary
Bedroom

missing.



13 Fan makes clicking sound when running. May be unbalanced?

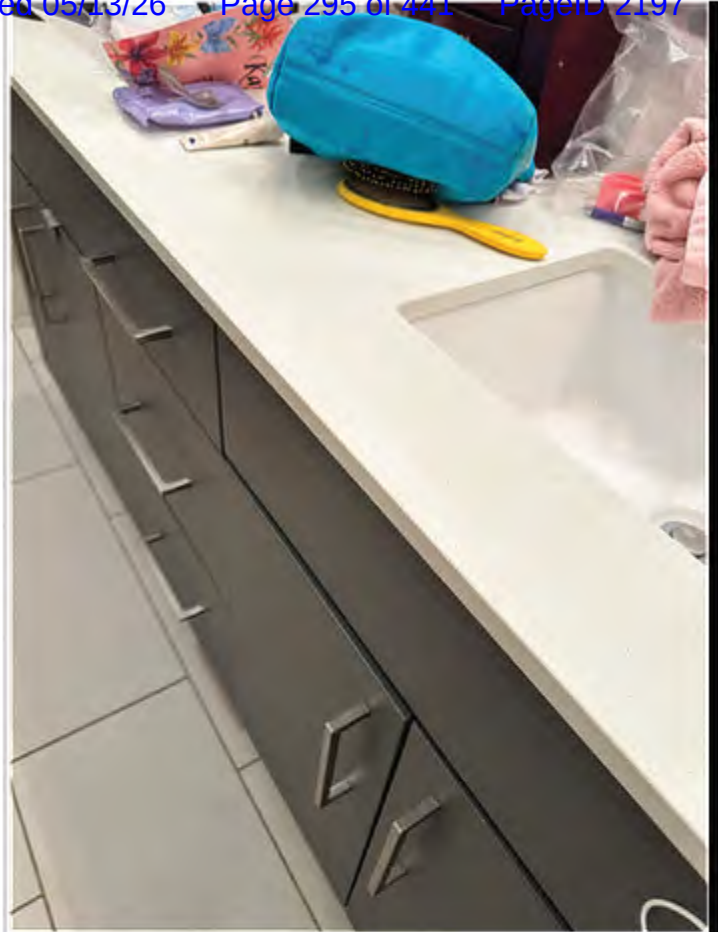
Primary
Bedroom



14 General nicks and marks on

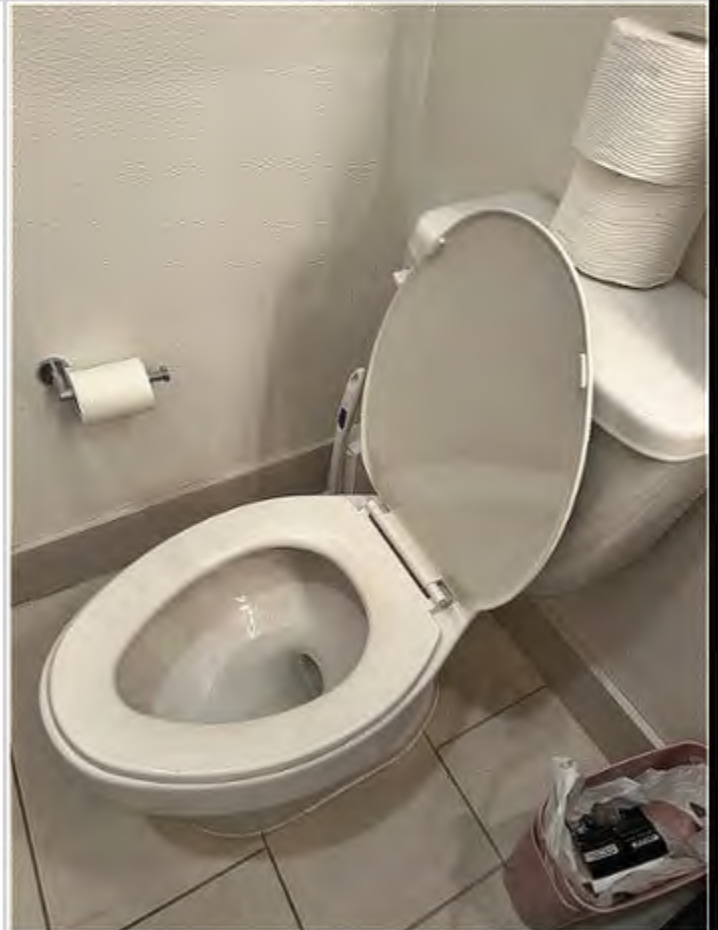
Primary
Bathroom

countertops
from prior
renters.



15 It seems like
this toilet seat
doesn't go with
this toilet.
Strange to sit
on.

Primary
Bathroom



16 Laundry door 1
doesn't close

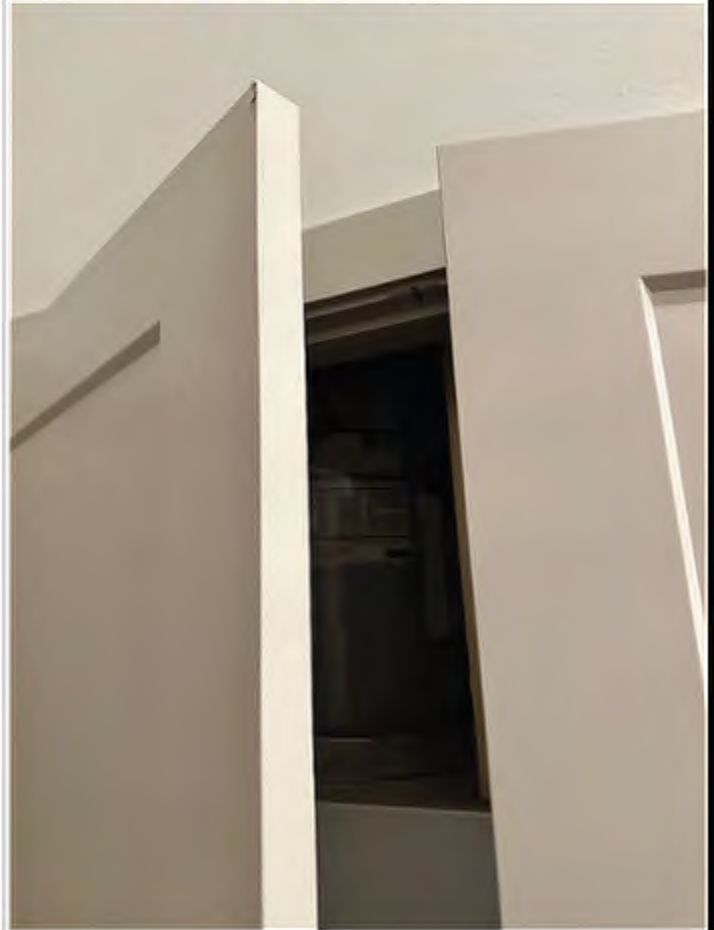
Other

well.



17 Laundry door 2
doesn't close
well.

Other



18 Washer
doesn't turn on.

Other

19 Water pressure
low. I have a
different
shower head
that may fix the
problem.

2nd Full
Bathroom



EXHIBIT “A-4”

**NOTICE OF TERMINATION
END OF TERM**

08/26/2025

Kathryn Copeland, all other occupants
405 Crawford Street #2145
Fort Worth, TX 76104 (the "Premises")

TAKE NOTICE that according to the terms and conditions of the Lease Agreement by and between Landlord, The Bowery at Southside and Tenant(s):

Kathryn Copeland, all other occupants

Your Lease or Rental Agreement is hereby terminated on October 26, 2025 and Landlord hereby requires and demands possession of the Premises. Failure to vacate your apartment premises on October 26, 2025 will result in legal action for possession of the premises, damages for holding over, and a request for attorney's fees and court costs. During the period between the date of the Notice of Termination and the date you have vacated the property, all rental payments made by you will be accepted with reservation and will not affect the termination of the terms as provided herein.

Please contact the Leasing Office at 833-887-1948 during normal business hours as posted to advise the Manager of the date you will vacate the premises and to make arrangements for the checkout inspection if you desire to be present. Your prompt attention to this matter is both necessary and appreciated.

I hereby certify that a true and exact copy of this Notice was mailed via U.S. Mail, first class, postage prepaid, to the tenants at the address above on 08/26/25.

By: *Kodi Walker*
Authorized Representative of
Weinstein Management Co., Inc.

EXHIBIT “A-5”

Work Order #3018597		Functions		Jump To	
Status	Work Completed	Vendor	Display Type	Default	
Reason		Expense Type	Brief Description	The AC in our unit is not working.	
Property	<u>bow</u>	Company	Occupant Code	<u>t0224855</u>	
	The Bowery at Southside	Funding Entity	Occupant Name		
	220 E Broadway Ave	Template	Caller Name		
	Fort Worth TX, 76104	Priority	Caller Phone		
Building		Category	Caller Email		
Floor		SubCategory	Related WO		
Unit	<u>2145</u>	Resolution	Origin	OL	
	405 Crawford St Apt# 2	Due Date & Time	Created By	On 09/04/2023	
	Fort Worth TX, 76104		Updated By	Weinstein_M... On 09/05/2023	
Location					
Bill To	<u>t0224855</u>				
Asset					

Access/Entry Notes Ok to Enter ☒ No Follow Up ☐ Problem Description

Knock on the door or call me if nobody answers the door. The AC in our unit is not working. It's 80+ degrees in my apartment

General Info Duplicate? User defined 2 User defined 3 User defined 4 User defined 5 User defined 6 Follow Up		Billing Info Batch Name Invoice Number Invoice Date		Status Dates <table border="1"> <thead> <tr> <th>WO Status</th> <th>Date</th> <th>Time</th> </tr> </thead> <tbody> <tr> <td>Call</td> <td>09/04/2023</td> <td>7:00 PM</td> </tr> <tr> <td>In Progress</td> <td>09/05/2023</td> <td>8:35 AM</td> </tr> <tr> <td>Work Completed</td> <td>09/05/2023</td> <td>12:30 PM</td> </tr> </tbody> </table>		WO Status	Date	Time	Call	09/04/2023	7:00 PM	In Progress	09/05/2023	8:35 AM	Work Completed	09/05/2023	12:30 PM
WO Status	Date	Time															
Call	09/04/2023	7:00 PM															
In Progress	09/05/2023	8:35 AM															
Work Completed	09/05/2023	12:30 PM															
Totals Comm Type: Amount 0.00 Total Comm Pay 0.00 Total Pay 0.00 Total Comm Charge 0.00 Total Tax Charge Total Charge 0.00		Payables/Charges Payable Batch Charge Batch WO CMP ☐		Approvals Workflow Status Current Step Next Step v Notes													
Full Description Print Full Description? ☐ The AC in our unit is not working. It's 80+ degrees in my apartment		Technician Notes Tenant Responsible ☐ unclogged drain Thaks															
Vendor Notes																	

Work Order #3018943

Functions

Jump To

Status	Work Completed	Vendor	Display Type	Default
Reason		Expense Type	Brief Description	Thermostat still working but seems
Property	<u>tbow</u>	Company	Occupant Code	<u>t0224855</u>
	The Bowery at Southslid	Funding Entity	Occupant Name	
	220 E Broadway Ave	Template	Caller Name	Find
	Fort Worth TX, 76104	Priority	Caller Phone	
Building		Category	Caller Email	
Floor		SubCategory	Related WO	
Unit	<u>2145</u>	Resolution	Origin	OL
	405 Crawford St Apt# 2	Due Date & Time	Created By	<u>kowalker@w...</u> On 09/05/2023
	Fort Worth TX, 76104		Updated By	On 08/15/2025
Location				
Bill To	<u>t0224855</u>			
Asset				

Access/Entry Notes ☒ Ok to Enter ☐ No Follow Up ☐ Problem Description

I work from home so just knock and I should be home.

Thermostat still working but seems like A/C is blowing hot air. I have it set to 68 on cool but it's 77 in my apartment

Other Info

Labor

Labor Payables/Charges

Material

Workflow

Approvers

Audit History

General Info

Duplicate?

User defined 2

User defined 3

User defined 4

User defined 5

User defined 6

Follow Up

Billing Info

Batch Name

Invoice Number

Invoice Date

Status Dates

WO Status	Date	Time
Call	09/05/2023	9:25 AM
In Progress	09/05/2023	10:20 AM
Work Completed	09/05/2023	2:38 PM

Totals

Comm Type:	Amount	0.00
Total Comm Pay		0.00
Total Pay		0.00
Total Comm Charge		0.00
Total Tax Charge		
Total Charge		0.00

Payables/Charges

Payable Batch

Charge Batch

WO CMP ☐

Approvals

Workflow

Status

Current Step

Next Step

Notes

Full Description

Print Full Description? ☐

Technician Notes

Tenant Responsible ☐

Thermostat still working but seems like A/C is blowing hot air. I have it set to 68 on cool but it's 77 in my apartment

duplicated work order
Thanks

Vendor Notes

Weinstein Management Co. Inc
3951 Stillman Pkwy
Glen Allen,VA 23060
Office (804) 967-5100x

Work Order No. 3259400
Date Call: 6/1/2024 7:08:03 PM

Status Work Completed

Date Completed: 6/3/2024 8:06:20 AM
Brief Desc: It is not cooling my apartment, sta
Job Site: tbow/2145
405 Crawford St Apt# 2145
Fort Worth,TX 76104

Caller Name: Kathryn Copeland
Priority: Emergency Night
Ok to enter? YES
Category: Heating and Air

Caller Phone: (817) 789-8498x
Occupant: Copeland (t0249152)
Home (817) 789-8498x
SubCategory: A/C

Access Notes: Dogs are usually in their crate

Problem Description: It is not cooling my apartment, started over the past few days.
**paged out 6-1 @ 8:10PM EST

Parts & Labor

Quantity/ Hours	Item Type/ Employee Name	Description	Unit Price	Total
0.0000	Joel Cervantes	Jesus Cervantes -	0.00	
			Total	

Authorized by:
Signed by
Dated
Invoice No.

Weinstein Management Co. Inc

3951 Stillman Pkwy
 Glen Allen, VA 23060
 Office (804) 967-5100x

Work Order No. 3351949
Date Call: 8/29/2024 10:50:39 AM

Status Work Completed

Date In Progress: 8/29/2024 1:48:16 PM
Date Completed: 8/29/2024 3:17:54 PM
Brief Desc: I think there may be a leak under m
Job Site: tbow/2145
 405 Crawford St Apt# 2145
 Fort Worth, TX 76104

Caller Name: Kathryn Copeland

Caller Phone: (817) 789-8498x
Occupant: Copeland (t0249152)

Priority: Normal
Ok to enter? YES
Category: Plumbing

Home (817) 789-8498x

SubCategory: Sink

Problem Description: I think there may be a leak under my kitchen sink because my trash bags were wet. There is also a bit of a smell.

Parts & Labor

Quantity/ Hours	Item Type/ Employee Name	Description	Unit Price	Total
0.0000	Jose Xolalpa	Jose Xolalpa -	0.00	
Total				

Authorized by: _____

Signed by _____

Dated _____

Invoice No. _____

Technician Notes: could not find leak but noticed items leaning on both water lines.

Weinstein Management Co. Inc
 3951 Stillman Pkwy
 Glen Allen,VA 23060
 Office (804) 967-5100x

Work Order No. 3366861
Date Call: 9/15/2024 10:14:00 PM

Status Work Completed

Date In Progress: 9/16/2024 10:13:34 AM
Date Completed: 10/2/2024 8:14:41 AM
Brief Desc: I noticed a wet spot by the door in
Job Site: tbow/2145
 405 Crawford St Apt# 2145
 Fort Worth,TX 76104

Caller Name: Kathryn Copeland

Caller Phone: ((81) 7)7-89-8x 498
Occupant: Copeland (t0249152)

Priority: Normal
Ok to enter? YES
Category: Carpet

Home (817) 789-8498x
SubCategory: Clean Common

Problem Description: I noticed a wet spot by the door in my second bedroom. I thought maybe a pet had an accident or some thing so I cleaned it up. I just got home from dinner and stepped in that room again and it was soaking wet. I think there's a leak underneath the carpet. I hear running water sometimes through the walls.

Parts & Labor

Quantity/ Hours	Item Type/ Employee Name	Description	Unit Price	Total
0.0000	Jose Xolalpa	Jose Xolalpa -	0.00	
			Total	
			Authorized by:	
			Signed by	
			Dated	
			Invoice No.	

Weinstein Management Co. Inc

3951 Stillman Pkwy
Glen Allen, VA 23060
Office (804) 967-5100x

Work Order No.

3366347

Date Call:

9/14/2024 12:41:57 PM

Status

Work Completed

Date In Progress:

9/16/2024 10:13:20 AM

Date Completed:

9/16/2024 1:48:15 PM

Brief Desc:

Please change my air filter. Please

Job Site:

tbow/2145
405 Crawford St Apt# 2145
Fort Worth, TX 76104

Caller Name:

Kathryn Copeland

Caller Phone:

(817) 789-8498x

Occupant:

Copeland (t0249152)

Home

(817) 789-8498x

Priority:

Normal

Ok to enter?

YES

Category:

Heating and Air

SubCategory:

Air Filter Vent

Problem Description: Please change my air filter. Please also check to see if my A-C is working correctly. It seems like it's not running quite right or the fan isn't strong enough.

Parts & Labor

Quantity/ Hours	Item Type/ Employee Name	Description	Unit Price	Total
0.0000	Jose Xolalpa	Jose Xolalpa -	0.00	
			Total	

Authorized by:**Signed by****Dated****Invoice No.**

Weinstein Management Co. Inc

3951 Stillman Pkwy
Glen Allen, VA 23060
Office (804) 967-5100x

Work Order No.

3372481

Date Call:

9/21/2024 3:30:00 PM

Status

Work Completed

Date Completed:

9/23/2024 8:44:36 AM

Brief Desc:

A-c leaking again

Job Site:

tbow/2145
405 Crawford St Apt# 2145
Fort Worth, TX 76104

Caller Name:

Kathryn Copeland

Caller Phone:

((81) 7)7-89-8x 498

Occupant:

Copeland (t0249152)

Home

(817) 789-8498x

Priority:

Emergency Night

Ok to enter?

YES

Category:

Heating and Air

SubCategory:

A/C

Problem Description: **A-c leaking again - paged out on 9-21-24 at 3:49PM

Parts & Labor

Quantity/ Hours	Item Type/ Employee Name	Description	Unit Price	Total
0.0000	Jose Xolalpa	Jose Xolalpa -	0.00	
			Total	

Authorized by:

Signed by

Dated

Invoice No.

Weinstein Management Co. Inc

3951 Stillman Pkwy
 Glen Allen, VA 23060
 Office (804) 967-5100x

Work Order No.

3385935

Date Call:

10/7/2024 12:34:18 AM

Status

Work Completed

Date In Progress:

10/7/2024 8:21:59 AM

Date Completed:

10/7/2024 10:14:23 AM

Brief Desc:

Inside the front door in the corner

Job Site:

tbow/2145
 405 Crawford St Apt# 2145
 Fort Worth, TX 76104

Caller Name:

Kathryn Copeland

Caller Phone:

(817) 789-8498x

Occupant:

Copeland (t0249152)

Home

(817) 789-8498x

Priority:

Normal

Ok to enter?

YES

Category:

Other

SubCategory:

Other

Problem Description: Inside the front door in the corner, it looks like there is mold growing on the wall.**Parts & Labor**

Quantity/ Hours	Item Type/ Employee Name	Description	Unit Price	Total
0.0000	Jose Xolalpa	Jose Xolalpa -	0.00	
Total				

Authorized by:**Signed by****Dated****Invoice No.****Technician Notes:** treated small area. not mold

Weinstein Management Co. Inc

3951 Stillman Pkwy
Glen Allen, VA 23060
Office (804) 967-5100x

Work Order No.

3502602

Date Call:

2/24/2025 12:05:35 PM

Status

Work Completed

Date In Progress:

2/24/2025 1:30:27 PM

Date Completed:

2/24/2025 3:54:02 PM

Brief Desc:

Please change filter.

Job Site:

tbow/2145
405 Crawford St Apt# 2145
Fort Worth, TX 76104

Caller Name:

Kathryn Copeland

Caller Phone:

(817) 789-8498x

Occupant:

Copeland (t0249152)

Home

(817) 789-8498x

Priority:

Normal

Ok to enter?

YES

Category:

Heating and Air

SubCategory:

Air Filter Vent

Problem Description: Please change filter.**Parts & Labor**

Quantity/ Hours	Item Type/ Employee Name	Description	Unit Price	Total
0.0000	Jose Xolalpa	Jose Xolalpa -	0.00	
Total				

Authorized by:**Signed by****Dated****Invoice No.****Technician Notes:** new filter installed

Weinstein Management Co. Inc
 3951 Stillman Pkwy
 Glen Allen,VA 23060
 Office (804) 967-5100x

Status Work Completed

Caller Name: Kathryn Copeland

Priority: Normal
Ok to enter? YES
Category: Other

Work Order No. 3510659
Date Call: 3/5/2025 12:47:27 PM
Date Due: 3/5/2025 12:00:00 AM
Date In Progress: 3/5/2025 3:58:16 PM
Date Completed: 3/6/2025 8:47:18 AM
Brief Desc: I noticed mold growing again .
Job Site: tbow/2145
 405 Crawford St Apt# 2145
 Fort Worth,TX 76104
Caller Phone: (817) 789-8498x
Occupant: Copeland (t0249152)
Home (817) 789-8498x
SubCategory: Other

Problem Description: I noticed mold growing again .

Parts & Labor

Quantity/ Hours	Item Type/ Employee Name	Description	Unit Price	Total
0.0000	Jose Xolalpa	Jose Xolalpa -	0.00	
			Total	
			Authorized by:	
			Signed by	
			Dated	
			Invoice No.	

Technician Notes: treated for mildew and killz

Weinstein Management Co. Inc

3951 Stillman Pkwy
 Glen Allen, VA 23060
 Office (804) 967-5100x

Work Order No. 3525904
Date Call: 3/24/2025 12:12:41 AM

Status Work Completed

Date In Progress: 3/24/2025 8:20:40 AM
Date Completed: 3/24/2025 10:56:14 AM
Brief Desc: I have a reminder on my calendar to

Job Site: tbow/2145
 405 Crawford St Apt# 2145
 Fort Worth, TX 76104

Caller Name: Kathryn Copeland

Caller Phone: (817) 789-8498x
Occupant: Copeland (t0249152)

Priority: Normal
Ok to enter? YES
Category: Heating and Air

Home (817) 789-8498x

SubCategory: Air Filter Vent

Problem Description: I have a reminder on my calendar to ask you to check the air filter. Thank you.

Parts & Labor

Quantity/ Hours	Item Type/ Employee Name	Description	Unit Price	Total
0.0000	Jose Xolalpa	Jose Xolalpa -	0.00	
Total				

Authorized by: _____
Signed by _____
Dated _____
Invoice No. _____

Technician Notes: new filter

Weinstein Management Co. Inc
3951 Stillman Pkwy
Glen Allen,VA 23060
Office (804) 967-5100x

Work Order No. 3592514
Date Call: 6/3/2025 3:42:07 PM
Date Due: 6/3/2025 12:00:00 AM
Date In Progress: 6/4/2025 7:58:48 AM
Date Completed: 6/4/2025 8:23:39 AM
Brief Desc: Hi - I am not sure if it is the A/C
Job Site: tbow/2145
405 Crawford St Apt# 2145
Fort Worth,TX 76104

Status Work Completed

Caller Name: Kathryn Copeland

Caller Phone: (817) 789-8498x
Occupant: Copeland (t0249152)

Priority: Normal
Ok to enter? YES
Category: Heating and Air

Home (817) 789-8498x

SubCategory: A/C

Problem Description: Hi - I am not sure if it is the A/C or a leak somewhere, but I hear a consistent dripping or splashing sound in my main living area. It's pretty noticeable.

Parts & Labor

Quantity/ Hours	Item Type/ Employee Name	Description	Unit Price	Total
0.0000	Jose Xolalpa	Jose Xolalpa -	0.00	
			Total	

Authorized by: _____
Signed by _____
Dated _____
Invoice No. _____

Technician Notes: unclogged drain

Weinstein Management Co. Inc
3951 Stillman Pkwy
Glen Allen,VA 23060
Office (804) 967-5100x

Work Order No. 3608121
Date Call: 6/18/2025 2:29:54 PM

Status Work Completed

Date Completed: 6/18/2025 4:21:06 PM
Brief Desc: I think there maybe be a leak or so
Job Site: tbow/2145
405 Crawford St Apt# 2145
Fort Worth,TX 76104

Caller Name: Kathryn Copeland

Caller Phone: (817) 789-8498x
Occupant: Copeland (t0249152)
Home (817) 789-8498x

Priority: Normal
Ok to enter? YES
Category: Heating and Air

SubCategory: A/C

Problem Description: I think there maybe be a leak or something in the A/C system cause I hear that splashing sound again. And just now I heard something that sounded like a lot of water. I recorded it on my phone for you

Parts & Labor				
Quantity/ Hours	Item Type/ Employee Name	Description	Unit Price	Total
0.0000	Jose Xolalpa	Jose Xolalpa -	0.00	
			Total	
			Authorized by:	
			Signed by	
			Dated	
			Invoice No.	

Technician Notes: Unclogged drain

EXHIBIT “A-6”

Subject: RE: URGENT HEALTH & SAFETY ISSUE – Formal Notice & Request for Accommodations – The Bowery at Southside Unit #2145
Date: Friday, June 27, 2025 at 3:42:00 PM Central Daylight Time
From: The Bowery - Kodi Walker
To: Copeland, Katie
Attachments: image002.jpg, image003.jpg

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Hi Katie,

Thank you for bringing your concerns to our attention regarding the presence of mold in your home. We understand the seriousness of your concerns and want to reassure you that we are taking prompt and appropriate action to address the issue.

As you are aware myself and my supervisor have assessed the area and confirmed that there is no active leak and no moisture present in the walls. This project is isolated and manageable.

Based on this assessment, we will need to conduct removal of the affected areas immediately. The areas included will be inside the AC closet, outside of the AC closet, behind the door of the guest bedroom, and the left side of the front door. The scope of work will be non-invasive, and no drying equipment such as fans is required. All remediation will be handled in-house by our qualified team.

Please note that your home is safe to occupy during this process, and relocation is not necessary. If you prefer not to remain in the home during the work, you are welcome to consult with your renter's insurance provider regarding temporary accommodation options.

Thank you once again for allowing us access to your home. This project is important to us, and we're committed to resolving the issue as quickly as possible with minimal disruption to you.

We're ready to begin removing any affected areas today, with the goal of completing the necessary repairs by Monday. To keep things moving smoothly, we'll need your continued cooperation and access to the area.

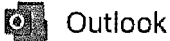
Please let us know if you have any questions or concerns. We appreciate your support and look forward to getting everything resolved promptly.

Thank you,

EXHIBIT “A-7”

8/8/25, 3:37 PM

Mail - Copeland, Katie - Outlook



RE: ADA/FHA Accommodation Request and Notice of Urgent Health Risk – Unit #2145

From The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>

Date Mon 6/30/2025 5:42 PM

To Copeland, Katie <K.M.COPELAND@tcu.edu>

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Hi Katie –

I want to start by emphasizing that your health and safety are always our top priority. We take this matter very seriously, and I want to personally assure you that our team is trained to follow all EPA guidelines when performing repairs of this nature. The work we're prepared to carry out is aligned with these standards to ensure everything is handled safely and effectively.

I want to confirm that there is no active leak detected in your home, and all necessary repairs have already been completed. Our team has conducted a thorough assessment, and moisture readings confirm that the area is dry. With no signs of water present, there is no risk of continued mold growth at this time.

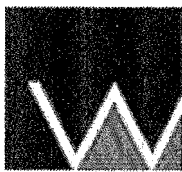
City's Codes and Compliance department recently stopped by and informed us that they had visited your home. While we have not yet received an official report, they have requested that the necessary repairs be completed timely. With that in mind, we would like to schedule the repair work for tomorrow to resolve this quickly and minimize any disruption to your routine. This includes, but is not limited to, the replacement of baseboards and effected areas of sheetrock. The work is limited in scope, non-invasive, and can be completed within a day with minimal to no disruption to your daily routine. However, if you would prefer for us to complete the work while you are away from the home for your own peace of mind, we are more than happy to coordinate a time that works better for you.

As mentioned, the scope of the work is limited, non-invasive, and will be completed within a day. Based on our assessment, there is no need for you to vacate the home or arrange for hotel accommodations. At this time, we are not able to accommodate requests for relocation or hotel reimbursement. However, if you feel that remaining in the home during this process is not comfortable for you, we completely understand and want to support you. We're happy to offer the option to transfer to another unit or to end your lease early without penalty.

Since you reported this issue, it is important that we demonstrate our responsiveness and complete the necessary repairs.

Please feel free to reach out with any questions or concerns!

Thank you,



Kodi Walker | Property Manager
 The Bowery at Southside Apartments
 220 East Broadway Ave. | Fort Worth, TX 76104
 Call or Text **833.887.1948**
[WEBSITE | RESIDENT SERVICES](#)

From: Copeland, Katie <K.M.COPELAND@tcu.edu>

Sent: Monday, June 30, 2025 2:09 PM

EXHIBIT “A-8”

8/8/25, 3:55 PM

Mail - Copeland, Katie - Outlook

 Outlook

FW: NOTICE: 7-Day Statutory Period Expired - Mycotoxin Test Results & Relocation Request

From Jessica Calkins <jcalkins@weinsteinproperties.com>
Date Mon 7/7/2025 4:59 PM
To Copeland, Katie <K.M.COPELAND@tcu.edu>
Cc The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Hi Katie- after our conversation on Saturday, I wanted to follow up with you via email, as I know you prefer to keep communication in writing.

We're currently working on bringing in a specialist to complete the necessary work. We've reached out to several contractors to gather pricing and determine how quickly they can get started for you. In the meantime, we're happy to place you in a hotel for a few days while we schedule and complete the repairs. As soon as the work is finished, you'll be able to move back into your home.

Would you like us to check availability at The Nobleman and Doggy Diggs starting tonight or tomorrow? Also, just a suggestion—there are some pet-friendly hotels in the area, and we're happy to consider those if you'd prefer to keep your furry companions with you.

Once we have a specialist ready to go, we'll update you on the scheduling of the work. Someone from our team will also be onsite to accompany the specialist during the visit.

Please let us know your preference so we can coordinate everything for you.

Thanks,



Jessika Calkins Area Manager
Weinstein Properties
p: 804.665.2272
a: 3951 Stillman Parkway Glen Allen, VA 23060

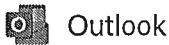
From: Copeland, Katie <K.M.COPELAND@tcu.edu>
Sent: Friday, July 4, 2025 12:39 PM
To: The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>; Lile Benaicha <lbenacha@weinsteinproperties.com>; Kelly Smith <ksmith@weinsteinproperties.com>; j.lancaster@weinsteinproperties.com <j.lancaster@weinsteinproperties.com>; j.jecklin@weinsteinproperties.com <j.jecklin@weinsteinproperties.com>; j.price@weinsteinproperties.com <j.price@weinsteinproperties.com>
Subject: NOTICE: 7-Day Statutory Period Expired - Mycotoxin Test Results & Relocation Request

Caution: This is an EXTERNAL EMAIL - Be cautious of clicking links and opening attachments.

EXHIBIT “A-9”

8/8/25, 3:56 PM

Mail - Copeland, Katie - Outlook



RE: NOTICE: 7-Day Statutory Period Expired - Mycotoxin Test Results & Relocation Request

From Jessika Calkins <jcalkins@weinsteinproperties.com>
Date Wed 7/9/2025 5:34 PM
To Copeland, Katie <K.M.COPELAND@tcu.edu>
Cc The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>

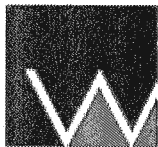
[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Hi Katie- we wanted to follow up and let you know that this Friday, we have scheduled a visit from our vendor, ServPro, to assess the current condition of your home. ServPro will be inspecting the area, noting all required materials, and confirming whether what next steps or measures are needed to complete the work. Once we receive their scope of work and if another vendor is needed to perform the repairs, we'll be sure to update you. A member of our team will accompany ServPro during the inspection at your home on Friday.

We also wanted to note that we haven't heard back from you regarding our previous communications. We're still more than happy to discuss everything we previously mentioned, including temporary hotel accommodations.\

Please don't hesitate to reach out if you have any questions.

Thanks,



Jessika Calkins Area Manager
Weinstein Properties
p: 804.665.2272
a: 3951 Stillman Parkway Glen Allen, VA 23060

From: Jessika Calkins
Sent: Monday, July 7, 2025 5:00 PM
To: K.M.COPELAND@tcu.edu
Cc: The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>
Subject: FW: NOTICE: 7-Day Statutory Period Expired - Mycotoxin Test Results & Relocation Request

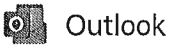
Hi Katie- after our conversation on Saturday, I wanted to follow up with you via email, as I know you prefer to keep communication in writing.

We're currently working on bringing in a specialist to complete the necessary work. We've reached out to several contractors to gather pricing and determine how quickly they can get started for you. In the meantime, we're happy to place you in a hotel for a few days while we schedule and complete the repairs. As soon as the work is finished, you'll be able to move back into your home.

Would you like us to check availability at The Nobleman and Doggy Digs starting tonight or tomorrow? Also, just a suggestion—there are some pet-friendly hotels in the area, and we're happy to consider those if you'd prefer to keep your furry companions with you.

8/8/25, 3:45 PM

Mail - Copeland, Katie - Outlook



RE: NOTICE: 7-Day Statutory Period Expired - Mycotoxin Test Results & Relocation Request

From Jessika Calkins <jcalkins@weinsteinproperties.com>
Date Fri 7/11/2025 8:47 AM
To Copeland, Katie <K.M.COPELAND@tcu.edu>
Cc The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Hi Katie- thank you for reaching out and inquiring about a transfer. We're happy to move forward with the option of transferring you to one of our sister communities. We will also be happy to waive the transfer fee for this. Have you had a chance to review their pricing and availability, and do you have a specific home in mind? We'll need to know your preferred transfer date, along with a few additional steps to complete our transfer process but we're happy to assist you with that.

I wanted to confirm that a contractor who is specialized in mold, scheduled to visit your home today to inspect and assess the unit before any work begins. Please let us know your thoughts on the transfer so we can begin working on this for you.

Thanks,



Jessika Calkins Area Manager
Weinstein Properties
p: 804.665.2272
a: 3951 Stillman Parkway Glen Allen, VA 23060

From: Copeland, Katie <K.M.COPELAND@tcu.edu>
Sent: Thursday, July 10, 2025 12:54 PM
To: Jessika Calkins <jcalkins@weinsteinproperties.com>
Cc: The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>
Subject: Re: NOTICE: 7-Day Statutory Period Expired - Mycotoxin Test Results & Relocation Request

Caution: This is an EXTERNAL EMAIL - Be cautious of clicking links and opening attachments.

If you suspect that this is a phishing email, report this to IT by entering a computer help ticket.

FOR SETTLEMENT PURPOSES ONLY — NOT ADMISSIBLE AS EVIDENCE UNDER TEX. R. EVID. 408

I am writing in the spirit of exploring early resolution options that could meet both parties' needs while

8/8/25, 3:46 PM

Mail - Copeland, Katie - Outlook

 Outlook

RE: NOTICE: 7-Day Statutory Period Expired - Mycotoxin Test Results & Relocation Request

From The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>

Date Fri 7/11/2025 12:59 PM

To Copeland, Katie <K.M.COPELAND@tcu.edu>; Jessika Calkins <jcalkins@weinsteinproperties.com>

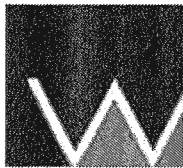
[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Hi Katie,

Yes, this is going to be a licensed mold assessment being conducted by ServPro. My maintenance supervisor and I will also be present.

For availability at Bexley Clearfork – are you going to be interested in a 1, 2, or 3 bedroom home and I'd be happy to send you that information over!

Thanks,



Kodi Walker I Property Manager

The Bowery at Southside Apartments

220 East Broadway Ave. I Fort Worth, TX 76104

Call or Text **833.887.1948**

[WEBSITE I RESIDENT SERVICES](#)

From: Copeland, Katie <K.M.COPELAND@tcu.edu>

Sent: Friday, July 11, 2025 10:53 AM

To: Jessika Calkins <jcalkins@weinsteinproperties.com>

Cc: The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>

Subject: Re: NOTICE: 7-Day Statutory Period Expired - Mycotoxin Test Results & Relocation Request

Caution: This is an EXTERNAL EMAIL - Be cautious of clicking links and opening attachments.

If you suspect that this is a phishing email, report this to IT by entering a computer help ticket.

Are they licensed mold assessment consultants?

I was thinking about the Bexley at Clearfork, but not sure of options. Can you give me details on availability?

I'm really not feeling well today. The mold just keeps making me feel worse and worse. I'm going to try and get some rest.

Katie Copeland
817-789-8498

EXHIBIT “A-10”

8/8/25, 3:48 PM

Mail - Copeland, Katie - Outlook



RE: Request for Immediate Relocation to Hotel Due to Confirmed Mold Contamination

From Jessika Calkins <jcalkins@weinsteinproperties.com>

Date Mon 7/14/2025 12:08 PM

To Copeland, Katie <K.M.COPELAND@tcu.edu>; The Bowery - Kodi Walker
<kowalker@weinsteinproperties.com>

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Hi Ms. Copeland- we're happy to accommodate your hotel reservation beginning today. Before we proceed, we just need to confirm your preference: Would you like to move forward with a pet-friendly hotel nearby so that you can bring your dogs with you, or would you prefer to continue having them boarded? If you'd like them boarded, we will need to reach out to Doggie Digs to confirm availability and ensure they can accommodate your pets. Your hotel stay will cover the period while we wait for ServPro's official report of their findings and remediation plan, which is expected by the end of the day today, and for the duration of the actual remediation work. We're hopeful the process will only take a few days, but we want to give you a heads-up so you can pack and prepare to be out of the home for several days.

Regarding your transfer request, during the inspection by both our team and ServPro, a strong pet urine odor was detected in the home. While we're willing to allow a transfer without penalty, the home still must pass inspection and be free of damages. If the odor has caused damage, there could be associated charges, and it may impact your eligibility to transfer. If you'd still like to explore transfer options, we suggest considering Bexley Grapevine, Bexley Clearfork, and Bexley Left Bank. You can check their websites or contact them directly for pricing and availability. If you'd like to move forward with the transfer, we recommend scheduling your transfer inspection as soon as possible so we can assess whether any damages would affect that process. You're also welcome to complete the remediation work first and revisit the transfer afterward just let us know how you'd like to proceed.

Also, our pest control vendor is scheduled to be in your home on Wednesday for an inspection and treatment. We'll keep you updated on anything that comes from that visit.

Please confirm your preference regarding the hotel and pets as soon as possible so we can finalize the reservation and get you checked in today.

Thank you, and let us know if you have any questions.



Jessika Calkins Area Manager

Weinstein Properties

p: 804.665.2272

a: 3951 Stillman Parkway Glen Allen, VA 23060

From: Copeland, Katie <K.M.COPELAND@tcu.edu>

Sent: Saturday, July 12, 2025 2:59 PM

To: Jessika Calkins <jcalkins@weinsteinproperties.com>; The Bowery - Kodi Walker
<kowalker@weinsteinproperties.com>

Subject: Re: Request for Immediate Relocation to Hotel Due to Confirmed Mold Contamination

8/8/25, 3:49 PM

Mail - Copeland, Katie - Outlook

 Outlook

RE: Request for Immediate Relocation to Hotel Due to Confirmed Mold Contamination

From Jessica Calkins <jcalkins@weinsteinproperties.com>

Date Mon 7/14/2025 3:53 PM

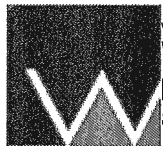
To Copeland, Katie <K.M.COPELAND@tcu.edu>; The Bowery - Kodi Walker
<kowalker@weinsteinproperties.com>

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Hi Ms. Copeland- It's great to hear from you! We can certainly get your hotel reservation made. As we previously discussed, we'll go ahead and reserve a room for you at The Nobleman. We'll make the reservation for the Noble Room and prepare the credit card authorization so you can check in smoothly. As a reminder, we will cover the room cost; however, any incidentals will be your responsibility. Do you prefer the room with 2 beds or a king?

Regarding Doggie Diggs, we were also planning to make that reservation on your behalf so we could authorize payment. If you're already on your way there, can you please confirm whether you plan to cover it yourself and submit an invoice for reimbursement? If not, we are happy to set up the reservation so we can authorize payment.

Thanks,



Jessika Calkins Area Manager

Weinstein Properties

p: 804.665.2272

a: 3951 Stillman Parkway Glen Allen, VA 23060

From: Copeland, Katie <K.M.COPELAND@tcu.edu>

Sent: Monday, July 14, 2025 3:27 PM

To: Jessica Calkins <jcalkins@weinsteinproperties.com>; The Bowery - Kodi Walker
<kowalker@weinsteinproperties.com>

Subject: Re: Request for Immediate Relocation to Hotel Due to Confirmed Mold Contamination

Importance: High

Caution: This is an EXTERNAL EMAIL - Be cautious of clicking links and opening attachments.

If you suspect that this is a phishing email, report this to IT by entering a computer help ticket.

THIS EMAIL IS INADMISSABLE AS IT INCLUDES POSSIBLE SETTLEMENT DISCUSSIONS.

Dear Ms. Calkins,

Thank you for confirming relocation. I've identified accommodations that meet my medical needs and allow for safe recovery while remediation is pending.

8/8/25, 3:50 PM

Mail - Copeland, Katie - Outlook

 Outlook

RE: Request for Immediate Relocation to Hotel Due to Confirmed Mold Contamination

From Jessika Calkins <jcalkins@weinsteinproperties.com>

Date Mon 7/14/2025 4:27 PM

To Copeland, Katie <K.M.COPELAND@tcu.edu>; The Bowery - Kodi Walker
<kowalker@weinsteinproperties.com>

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Hi Katie- we have your reservation set at the Nobleman beginning tonight. Below is the confirmation number and information ready for your check-in.

Your reservation for Jul-14-2025 has been confirmed.

Confirmation #3304025521



The Nobleman Fort Worth, Tapestry Collection by Hilton

 503 Bryan Ave
Fort Worth TX 76104 US
[Maps & Directions>>](#)

 [+16824323000](tel:+16824323000)

14 MON JUL
Check In: 3:00 PM


5 Nights

19 SAT JUL
Check Out: 12:00 PM



Add to Calendar

8/8/25, 3:50 PM

Mail - Copeland, Katie - Outlook

Your Room Information

Guest Name:	Katie Copeland
Guests:	2 Adults
Rooms:	1
Room Plan:	1 KG BED WITH KITCHENETTE



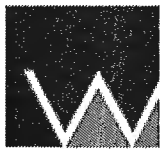
Jessika Calkins Area Manager
Weinstein Properties
p: 804.665.2272
a: 3951 Stillman Parkway Glen Allen, VA 23060

From: Jessika Calkins
Sent: Monday, July 14, 2025 3:38 PM
To: Copeland, Katie <K.M.COPELAND@tcu.edu>; The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>
Subject: RE: Request for Immediate Relocation to Hotel Due to Confirmed Mold Contamination

Hi Ms. Copeland- It's great to hear from you! We can certainly get your hotel reservation made. As we previously discussed, we'll go ahead and reserve a room for you at The Nobleman. We'll make the reservation for the Noble Room and prepare the credit card authorization so you can check in smoothly. As a reminder, we will cover the room cost; however, any incidentals will be your responsibility. Do you prefer the room with 2 beds or a king?

Regarding Doggie Diggs, we were also planning to make that reservation on your behalf so we could authorize payment. If you're already on your way there, can you please confirm whether you plan to cover it yourself and submit an invoice for reimbursement? If not, we are happy to set up the reservation so we can authorize payment.

Thanks,



Jessika Calkins Area Manager
Weinstein Properties
p: 804.665.2272
a: 3951 Stillman Parkway Glen Allen, VA 23060

From: Copeland, Katie <K.M.COPELAND@tcu.edu>
Sent: Monday, July 14, 2025 3:27 PM
To: Jessika Calkins <jcalkins@weinsteinproperties.com>; The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>
Subject: Re: Request for Immediate Relocation to Hotel Due to Confirmed Mold Contamination
Importance: High

Caution: This is an EXTERNAL EMAIL - Be cautious of clicking links and opening attachments.

If you suspect that this is a phishing email, report this to IT by entering a computer help ticket.

EXHIBIT “A-11”

8/8/25, 3:42 PM

Mail - Copeland, Katie - Outlook



Outlook

Mold Remediation Access and Authorization Required

From The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>

Date Wed 7/30/2025 2:32 PM

To Copeland, Katie <K.M.COPELAND@tcu.edu>

1 attachment (29 KB)

Personal Property Authorization.docx;

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Hi Katie,

In order to proceed with the necessary mold remediation work in your unit, we will need to temporarily move all belongings from the guest bedroom. This step is essential to ensure that the remediation can be completed thoroughly and safely.

To proceed, we kindly ask that you review and sign the attached authorization form, which grants us permission to handle and relocate your belongings during the remediation process. Please return the signed form at your earliest convenience so we can schedule the work accordingly.

If you have any questions or concerns, please don't hesitate to reach out.

Thank you for your cooperation,



Kodi Walker | Property Manager

The Bowery at Southside Apartments

220 East Broadway Ave. | Fort Worth, TX 76104

Call or Text **833.887.1948**

WEBSITE | RESIDENT SERVICES

8/8/25, 3:43 PM

Mail - Copeland, Katie - Outlook

 Outlook

Re: Mold Remediation Access and Authorization Required

From The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>
Date Wed 7/30/2025 6:18 PM
To Copeland, Katie <K.M.COPELAND@tcu.edu>

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Hi Katie,

Your hotel has been extended to 8/6/25 while we continue to navigate what next steps will be and preform remediation.

As you know, we have been working closely with ServPro on remediation in the home. We need to be able to continue with this work and follow all guidelines.

Although no agreements have been made regarding your relocation, we plan to perform the remediation while you are temporarily out of the home, and we are working to get this done as soon as possible.

Per the protocol, everything from the guest bedroom will need to be moved out of the bedroom, my team is able to perform this if you if you are able to sign the authorization form.

Thank you,

Kodi Walker
Property Manager

From: Copeland, Katie <K.M.COPELAND@tcu.edu>
Sent: Wednesday, July 30, 2025 6:00:07 PM
To: The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>; Jessika Calkins <jcalkins@weinsteinproperties.com>
Subject: Re: Mold Remediation Access and Authorization Required

Caution: This is an EXTERNAL EMAIL - Be cautious of clicking links and opening attachments. If you suspect that this is a phishing email, report this to IT by entering a computer help ticket. Have you not read my email from Saturday? It discusses options to get me relocated and what to do in the meantime.

Has the remediation protocol been created yet?

Also, what is the plan with the hotel? I believe you only extended it through today.

Katie Copeland
817-789-8498

Subject: The Bowery Unit #2145
Date: Friday, August 1, 2025 at 3:13:53 PM Central Daylight Time
From: Pamela Quinn
To: Katie Copeland
CC: The Bowery - Kodi Walker, Angela Hazelwood, Matthew Shaia
Attachments: image004.png, Personal Property Authorization.docx, BioTex Mold Protocol - Revised - Copeland.pdf

Ms. Copeland –

The attached TDLR required written protocol has been submitted to TDLR. In order to complete the remediation work in unit #2145, we need the personal belongings removed from the guest bedroom and items in the living room moved to the wall farthest from the HVAC closet.

As previously indicated, we are happy to move them for you, or you can let us know if you would like to move them yourself. If you want us to move them, we need you to sign a form acknowledging that you allow us to move the form. I have reattached that form for your reference. Please let us know at your soonest convenience how you would like to handle this. Without your response, we cannot begin work and this is leading to further delay.



Pam Quinn Assistant Director – Asset Management & Support
Weinstein Properties
c: 804.283.4708
a: 3951 Stillman Parkway, Glen Allen, VA 23060



Pam Quinn Assistant Director – Asset Management & Support
Weinstein Properties
c: 804.283.4708
a: 3951 Stillman Parkway, Glen Allen, VA 23060

From: Katie Copeland <quinnandpoppy@gmail.com>
Sent: Sunday, August 3, 2025 7:57 PM
To: Pamela Quinn <pquinn@weinsteinproperties.com>
Cc: The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>; Angela Hazelwood <ahazelwood@weinsteinproperties.com>; Matthew Shaia <mshaia@weinsteinproperties.com>
Subject: Re: The Bowery Unit #2145

Caution: This is an EXTERNAL EMAIL - Be cautious of clicking links and opening attachments.
If you suspect this is a phishing email, report this to IT by clicking a computer help link.

Pam,

Is this a joke?

You ignored every major issue I raised—medical, legal, and financial—and responded with a generic note about moving my belongings? There is still no compliant remediation plan, no rent abatement, no relocation support, no medical reimbursement, and no insurance contact. And yet you're asking for access to contaminated areas without any of that addressed?

What exactly are you trying to accomplish here—other than exposing your team and company to escalating liability?

You've now had formal notice for weeks that my unit was declared unfit for human occupancy due to toxic mold confirmed in both air and surface samples. You've received legal citations, ADA disclosures, and a detailed outline of reasonable requests. Your failure to respond meaningfully is not only negligent—it's strategic avoidance.

If this is your final position, please confirm by Monday, August 4 at 5:00 PM so I can proceed accordingly.

Katie Copeland
817-789-8498

From: Pamela Quinn <pquinn@weinsteinproperties.com>
Date: Friday, August 1, 2025 at 3:13 PM
To: Katie Copeland <quinnandpoppy@gmail.com>
Cc: The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>, Angela Hazelwood <ahazelwood@weinsteinproperties.com>, Matthew Shaia <mshaia@weinsteinproperties.com>
Subject: The Bowery Unit #2145

Ms. Copeland –

The attached TDLR required written protocol has been submitted to TDLR. In order to complete the remediation work in unit #2145, we need the personal belongings removed from the guest bedroom and items in the living room moved to the wall farthest from the HVAC closet.

As previously indicated, we are happy to move them for you, or you can let us know if you would like to move them yourself. If you want us to move them, we need you to sign a form acknowledging that you allow us to move the form. I have reattached that form for your reference. Please let us know at your soonest convenience how you would like to handle this. Without your response, we cannot begin work and this is leading to further delay.



Pam Quinn Assistant Director – Asset Management & Support

Weinstein Properties

c: 804.283.4708

a: 3951 Stillman Parkway, Glen Allen, VA 23060

EXHIBIT “A-12”

8/6/2025

Dear Valued Resident,

You are receiving the attached Notice to Vacate for Nonpayment of Rent because our records show that you have not yet paid your balance in full, including the current month.

While we understand that this may be a simple oversight, you must pay your balance in full immediately to avoid having to move out by the date indicated on the attached notice.

To pay the total amount due, including any additional late fees, court costs or attorney's fees that accrue, visit the Leasing Office to drop off a cashier's check or money order (in person or via the drop box) or you can make a debit/credit card payment by visiting bowerysouthside.com and logging into your online account. *Note: There is a service fee for debit/credit card payments. Unfortunately, we cannot accept personal checks for past due amounts.*

We appreciate your prompt attention to this matter and please do not hesitate to contact us with any questions at (833) 887-1948.

Sincerely,



The Bowery at Southside

This communication is an attempt to collect a debt. Any information obtained will be used for that purpose.

Please consider registering for Auto-Pay once your account is current.

Auto-Pay is a FEE service that automatically debits your bank account each month to pay your total balance. When enrolled into Auto-Pay, not only do you not have to remember to make a payment each month but you're also automatically entered into a drawing each month for a chance to win \$100 off your rent. To sign up, login to your Online Resident Services account and visit the Auto-Pay screen.

Note: You can also use debit/credit card for AutoPay but there is a service fee, using your bank account is FEE.

NOTICE TO VACATE FOR
NON-PAYMENT OF RENT, UTILITIES OR OTHER SUMS

8/6/2025

Kathryn Copeland and all other occupants
405 Crawford St Apt# 2145
Fort Worth, TX 76104

RE: Notice to vacate for non-payment of rent, utilities or other sums, TAA Lease Contract dated 05/26/2025 between the residents named above and WMC! Dallas X LLC t/a The Bowerly at Southside (owner).

Dear Resident(s):

Because you have not paid the following:

Water - 1140.0 gallons	4.17
Read 05/22 137590.0 - 06/22 138730.0	
# of Days = 31 (Rate is \$3.66 per 1,000 gallons)	
Wastewater - 1140.0 gallons	6.38
Read 05/22 137590.0 - 06/22 138730.0	
# of Days = 31 (Rate is \$5.60 per 1,000 gallons)	
Water Base Charge 05/22 - 06/22	1.63
Wastewater Base Charge 05/22 - 06/22	0.87
Service Fee 05/22 - 06/22	1.17
Base Rent (08/2025)	2442.00
Storm Water (08/2025)	1.93
Storage Room (08/2025)	25.00
Valet Trash (08/2025)	30.00
Pest Control Fee (08/2025)	5.00
Res Protect Waiver Only (08/2025)	12.00
Late Fee, 10% of \$2442.00	244.20

Your rights of occupancy and possession are hereby terminated under the provisions of your lease. You are still liable for rent and other charges you may owe under the TAA Lease Contract. Details of unpaid sums are above.

Demand for possession is hereby made. You are hereby given notice to vacate the dwelling on or before 11:59p.m., 09/08/2025. Your failure to move out then will result in appropriate legal action by us before the Justice of the Peace. Delay or postponement of such action does not waive our rights. This notice to vacate is unconditional.

Because of the global COVID-19 pandemic, you may be eligible for temporary protection from eviction under Federal Law. Learn the steps you should take now: visit www.cfbp.gov/eviction or call a housing counselor at 800-569-4287.

If you wish to discuss this notice of you vacating the dwelling, please contact us.

Date notice was given

8/6/2025

Signature of owner's representative

Kodi Walker

Printed Name

(833) 887-1948

Phone Number

thebowery@weinsteinproperties.com

Email Address

Proof of Delivery of Notice to Vacate to Resident

On 8/6/2025, I served the NOTICE described herein to the following Resident(s):

Kathryn Copeland

☒ Notice to vacate – Non-Payment of Rent, Utilities or Other Sums

☒ FIRST CLASS MAIL; CERTIFIED MAIL; RETURN RECEIPT REQUESTED; OR REGISTERED MAIL

8/6/2025



Signature of owner's representative

Date notice was given

Kodi Walker

Printed Name

EXHIBIT “A-13”

Kathryn Copeland
405 Crawford St. #2145
Fort Worth, Texas 76104
(817) 789-8498
K.M.Copeland@tcu.edu

August 18, 2025

To: The Bowery at Southside Management and Weinstein Properties Team
c/o Glynis L. Zavarelli; Wentz & Zavarelli, LLP, 3120 Sabre Drive, Suite 170,
Southlake, Texas 76092, gzavarelli@wandzlaw.com
Evan Simental; SERVPRO of North Fort Worth
Email: esimental@servpronorthfortworth.com

Re: **Supplemental DTPA Demand – Ongoing Retaliation, Trespass, Property
Damage, and Violations of Texas Law**; Apartment #2145, The Bowery at
Southside, Fort Worth, TX 76104

Dear Counsel and ServPro,

On **June 27, 2025**, I issued a formal demand under the Texas Deceptive Trade Practices Act (“DTPA”) regarding mold concealment, misrepresentation, and habitability violations at my leased unit, **405 Crawford St., Apt. 2145, Fort Worth, TX**. That demand remains unresolved.

Since that time, Defendants and their agents have escalated misconduct in ways that constitute new and independent violations of the DTPA, Texas Property Code, Texas Penal Code, Texas Occupations Code (TDLR Mold Assessment & Remediation rules), and federal civil rights laws (ADA/FHA).

Chronology of Violations Since June 27, 2025. *(Non-exhaustive)*

- **July 24, 2025** – ServPro confirmed in writing they would not enter without my consent. That email states, in part:

Moving forward, I will ensure all visits are properly planned and communicated in advance. Once work commences, daily notes will be provided to the management team.

Best,
Evan Simental
SERVPRO of North Fort Worth
Cell: (682) 717-7399
Office: (817) 232-3333
Email: esimental@servpronorthfortworth.com
Website: www.ServproNorthFortWorth.com

- **August 1, 2025** – I issued written instructions prohibiting entry or moving of my belongings.
- **August 6, 2025** – Landlord issued a **retaliatory Notice to Vacate** for alleged nonpayment despite uninhabitable conditions.
- **August 14, 2025** – I submitted another formal **ADA/FHA accommodation request**.
- **August 17, 2025** – I discovered my unit had been entered without consent. Belongings were moved and damaged, blinds left open, ants and mosquitoes throughout unit, and ServPro containment with logos was posted despite no TDLR-approved protocol. This was in violation of ServPro's own assurances, my spoliation letter, and state law.
 - I recorded contemporaneous video/audio documenting the discovery and my resulting anxiety attack.
 - I filed a police report and notified TDLR.

Violations

- **Criminal Trespass** (Tex. Penal Code §30.05).
- **Unauthorized Entry & Retaliation** (Tex. Prop. Code §§92.0081, 92.331).
- **Breach of Warranty of Habitability** (Tex. Prop. Code §92.056).
- **Mold Remediation Violations** (Tex. Occ. Code §1958; 16 TAC §78).
- **Conversion & Property Damage**.
- **False, Misleading, and Unconscionable Practices** under the **DTPA**.

- **Civil Rights Violations** (ADA/FHA retaliation and disability discrimination).
-

Damages

As a result of this continuing and escalated misconduct, I have suffered:

- Property damage and contamination of belongings,
- Loss of use and relocation expenses,
- Severe emotional distress and exacerbation of medical conditions,
- Retaliation for exercising my legal rights,
- Ongoing costs of pursuing regulatory and legal remedies.

Pursuant to the DTPA, I am entitled to recover:

1. **Economic damages,**
 2. **Damages for mental anguish,**
 3. **Up to treble damages** for knowing/intentional violations, and
 4. **Attorney's fees and court costs.**
-

Demand

Within **60 days of receipt**, provide:

1. Written assurances that unauthorized entry and retaliation will cease,
2. Full disclosure of ServPro's **liability insurer (carrier name, policy number, claims contact)**,
3. Compensation for all damages identified, and
4. Confirmation of evidence preservation (all logs, photos, emails, communications, and work orders related to Unit 2145).

Failure to resolve these matters within the statutory period will result in suit against all responsible parties under the DTPA, Texas Property Code, and applicable federal law. This letter provides you with the opportunity to settle this matter within 60 days before I pursue all available legal remedies, including treble damages and attorney's fees under the DTPA.

Sincerely,

Kathryn Copeland
(817) 789-8498
k.m.copeland@tcu.edu

EXHIBIT “A-14”

Michelle Sortor

From: Pamela Quinn <pquinn@weinsteinproperties.com>
Sent: Monday, September 15, 2025 4:09 PM
To: 'Copeland, Katie'
Cc: Glynis Zavarelli; Michelle Sortor; 'Brochstein, Amye'; Lile Benaicha
Subject: RE: The Bowery Unit 2145 Landlord Inspection

Ms. Copeland

Our team attempted to enter the unit again at 1:00pm today but found the deadbolt engaged with no answer to the knock or verbal call out. They will be returning tomorrow morning at 10:00am to perform the inspection.



Pam Quinn Assistant Director – Asset Management & Support
Weinstein Properties
c: 804.283.4708
a: 3951 Stillman Parkway, Glen Allen, VA 23060

From: Pamela Quinn
Sent: Monday, September 15, 2025 1:07 PM
To: 'Copeland, Katie' <K.M.COPELAND@tcu.edu>
Cc: 'Glynis Zavarelli' <gzavarelli@wandzlaw.com>; 'Michelle Sortor' <msortor@wandzlaw.com>; 'Brochstein, Amye' <amye.brochstein@phly.com>; Lile Benaicha <lbenaicha@weinsteinproperties.com>
Subject: RE: The Bowery Unit 2145 Landlord Inspection

Ms. Copeland

Our team attempted to enter to perform the landlord inspection at 11:30am but were unsuccessful with gaining entry due to the deadbolt being engaged. They also knocked but received no response. They are returning at 1:00pm today. Please allow them entrance to perform the inspection.

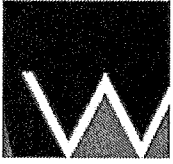


Pam Quinn Assistant Director – Asset Management & Support
Weinstein Properties
c: 804.283.4708
a: 3951 Stillman Parkway, Glen Allen, VA 23060

From: Pamela Quinn
Sent: Friday, September 12, 2025 3:00 PM
To: Copeland, Katie <K.M.COPELAND@tcu.edu>
Cc: Glynis Zavarelli <gzavarelli@wandzlaw.com>; Michelle Sortor <msortor@wandzlaw.com>; Brochstein, Amye <amye.brochstein@phly.com>; Lile Benaicha <lbenaicha@weinsteinproperties.com>
Subject: The Bowery Unit 2145 Landlord Inspection

Ms. Copeland

The containment areas within the 2145 unit must be left in place and the HVAC must remain in the off position. We will need to enter the unit Monday September 15th at 10am to perform a landlord inspection to verify that the containment areas are intact and the HVAC has remained off.



Pam Quinn Assistant Director – Asset Management & Support

Weinstein Properties

c: 804.283.4708

a: 3951 Stillman Parkway, Glen Allen, VA 23060

EXHIBIT “A-15”

Michelle Sortor

From: john@jadouglaslaw.com
Sent: Tuesday, September 16, 2025 12:52 AM
To: Pamela Quinn; Glynis Zavarelli
Cc: Michelle Sortor; amye.brochstein@phly.com
Subject: Cease and Desist — Immediate ADA/FHA Accommodation Required for Ms. Copeland
Attachments: Redacted Doctor Notes.pdf; 2025.09.11 Doctor's Note.pdf

Ms. Zavarelli,

I represent Ms. Katie Copeland regarding retaliatory acts by Weinstein Properties. Ms. Copeland is a severely injured, disabled individual recovering from a head injury. Her physicians have confirmed in writing that her health has significantly worsened due to Weinstein's mishandling of this matter and that she has a **dire need for relocation to a safe, stable environment**. I am assisting her with ensuring your compliance with her state and federal protections.

You and your agents must immediately **CEASE AND DESIST** from all harassment, retaliation, and unauthorized entry into Unit 2145. Ms. Copeland does not consent to entry. Any further attempts will be treated as trespass, retaliation, and spoliation of evidence.

Weinstein Properties has repeatedly failed to engage in the required **interactive process** under the Fair Housing Act and the Americans with Disabilities Act. Ms. Copeland has submitted multiple accommodation requests, yet Weinstein has not provided safe housing or attempted good-faith dialogue. Through analyzing all of the correspondence, I have failed to find a single instance of adhering to your requirements with regard to a displaced disabled tenant.

Immediate accommodation is required. Ms. Copeland must be relocated to safe, medically appropriate housing of her choosing that meets her documented needs, including:

- Two rooms / three beds and a yard for her service animals
- Safe air and water quality (mold-free, no sulfur odors)
- Stability and security, with no repeated moves or surprise inspections
- Access to recovery supports (e.g., hot tub/infrared sauna) as recommended by her doctors
- Per diem food allowance - please do your research on what she and her children are afforded under federal laws

Property Preservation & Access

- Ms. Copeland cannot physically pack or transport her belongings due to her head injury and physician restrictions.

- Weinstein must immediately engage a **licensed moving and storage company** to safely pack, inventory, and store all of Ms. Copeland's belongings at Weinstein's expense. Ms. Copeland is to choose the provider and date/time.
- This preserves evidence, prevents further injury, and ensures her medically necessary items (including prescriptions and medical equipment) are not lost or damaged.
- Ms. Copeland reserves the right to have an independent representative present during packing to confirm chain of custody.

Attached please find physician notes confirming that Ms. Copeland's health has worsened and documenting her urgent need for relocation and supportive accommodations. Her conditions require longer time to recover from injuries, which she should be doing in a safe ADA-compliant home.

If Weinstein does not immediately comply, we will seek emergency relief in federal court, including a Temporary Restraining Order. Continued violations will be treated as intentional ADA/FHA discrimination, retaliation, and bad-faith obstruction. FHA is being informed of your recent actions. Ignorance of your client's duties and obligations to disabled tenants is not a defense to ongoing civil rights violations. Nor does October 26, 2025 end your period of liability.

With urgency,

John Douglas

Advocate for Ms. Kathryn Copeland

September 11, 2025



Patient: Kathryn Marie
Copeland
Date of Birth: 06/28/1985
Date of Visit: 9/10/2025

Department THFW
Information: TEXAS HEALTH FORT
WORTH EMERGENCY
DEPARTMENT
1301 PENNSYLVANIA
AVENUE
FORT WORTH TX 76104
817-250-2000

To Whom It May Concern:

Kathryn Copeland was seen and treated in our emergency department on 9/10/2025.
She may return to work on 09/13/2025.

Bachim, Blaine Michael, DO

UTSouthwestern
Medical Center

University Hospital Physical Medicine & Rehabilitation Clinic
Clinic Phone: 214-645-2080

September 8, 2025

Patient Name: Kathryn Copeland
[REDACTED]
[REDACTED]

To Whom It May Concern,

I am writing this statement in support of Kathryn Copeland, [REDACTED]
[REDACTED] She has been under my care at UTSouthwestern since
October 8, 2024, for [REDACTED]
[REDACTED]
[REDACTED].

In addition to these primary conditions, review of her medical records shows she is also being treated
for the following chronic and compounding illnesses: [REDACTED]
[REDACTED]

[REDACTED] bilateral vision loss and binocular dysfunction linked to toxic mold
exposure [REDACTED] and immune abnormalities including
hypogammaglobulinemia.

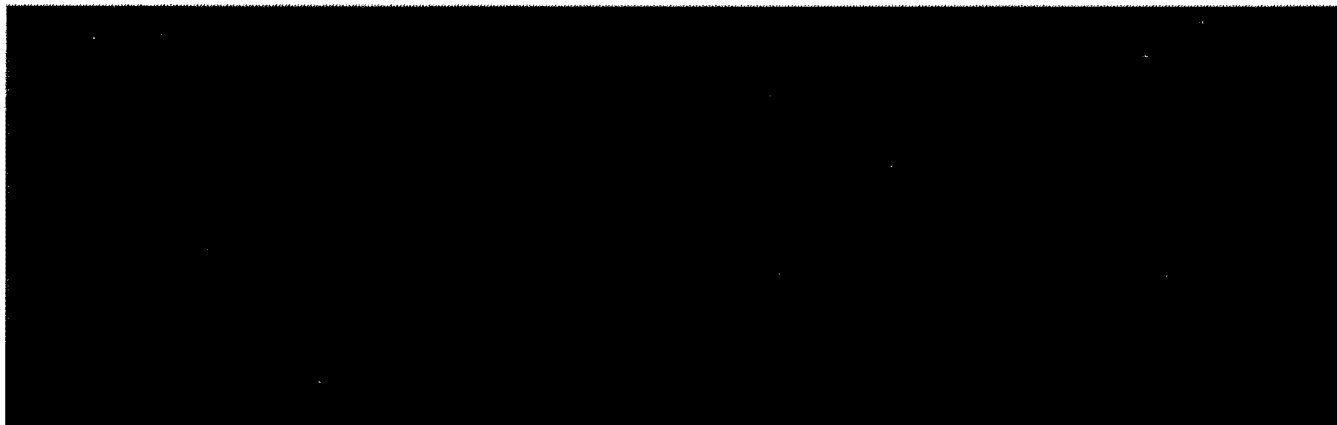
Her July 2025 evaluation by Dr. Alfred Johnson documented toxic mold exposure with extremely
elevated levels of Aspergillus, Chaetomium, and Stachybotrys. He noted severe chronic fatigue (up to
18 hours/day bedridden), 30 lbs of weight loss, cognitive impairment, and hyperbaric oxygen therapy
and urgent need for relocation.

Since my prior March 2025 statement, Ms. Copeland's health has further deteriorated. She was
displaced in June/July 2025 due to mold contamination and has been forced to live in a hotel. This
unstable housing situation prevents her from accessing home health nursing and supportive services
previously prescribed, further worsening her decline.

She continues to experience severe and disabling symptoms, including:

[REDACTED]

KATHRYN MARIE COPELAND (MR# 97531555)
Page 2



Sincerely,

 9/10/25

Isabel Huang, MD
UT Southwestern Medical Center

Patient Name: Kathryn Copeland
[REDACTED]

Date: September 11, 2025

Provider Name & Credentials: Kim Tran, M.D.

Facility: UT Southwestern Medical Center
600 S Main St 3rd Floor, Suite 500
Fort Worth, TX 76104

[REDACTED]

To Whom It May Concern,

I am the primary care physician for Kathryn Copeland. She has been under my care for multiple chronic medical conditions that significantly impair her daily functioning, including [REDACTED]

[REDACTED] immune system abnormalities (hypergammaglobulinemia), [REDACTED] and complications from toxic mold exposure.

[REDACTED]

Even minimal exertion can trigger symptom flares requiring extended rest.

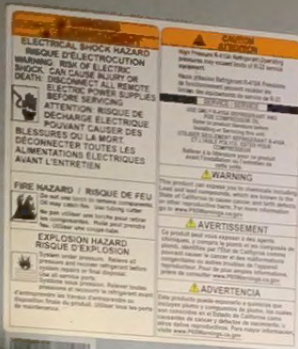
Since early 2025, Ms. Copeland's health has worsened. She was displaced from her home in June/July 2025 due to toxic mold and has been forced to live in unstable hotel housing. This disruption prevents her from accessing prescribed home health services, therapy, and ongoing medical care, further compromising her health.

[REDACTED]

Sincerely,


Kim Tran, M.D.
UT Southwestern Medical Center

EXHIBIT “A-16”



WARNING

Unit is equipped with Safe-T-Switch® condensate overflow shut-off device installed on drain pan or drain line. If unit is not operating, lift switch cap assembly to test. If unit runs, drain needs to be cleared. Clean and Test every 785 days.

Model No. H1500
Power 1500W
Voltage 220-240V
Frequency 50/60Hz
Read the instruction manual

V184267209

SAFETY INSTRUCTIONS

1. Read the instruction manual carefully before using the heater.
2. Do not use the heater if it is damaged or if the power cord is frayed or broken.
3. Do not use the heater if the plug is damaged or if the plug does not fit the outlet.
4. Do not use the heater if the cord is plugged into a grounded outlet and the ground is not connected to the earth.
5. Do not use the heater if the cord is plugged into a two-prong outlet and the ground is not connected to the earth.
6. Do not use the heater if the cord is plugged into a three-prong outlet and the ground is not connected to the earth.
7. Do not use the heater if the cord is plugged into a four-prong outlet and the ground is not connected to the earth.
8. Do not use the heater if the cord is plugged into a five-prong outlet and the ground is not connected to the earth.
9. Do not use the heater if the cord is plugged into a six-prong outlet and the ground is not connected to the earth.
10. Do not use the heater if the cord is plugged into a seven-prong outlet and the ground is not connected to the earth.

WIRING DIAGRAM

The diagram shows the internal wiring of the heater, including the power cord, switch, fuse, and heating elements. It also shows the connection to the ground and the earth.

FILTER

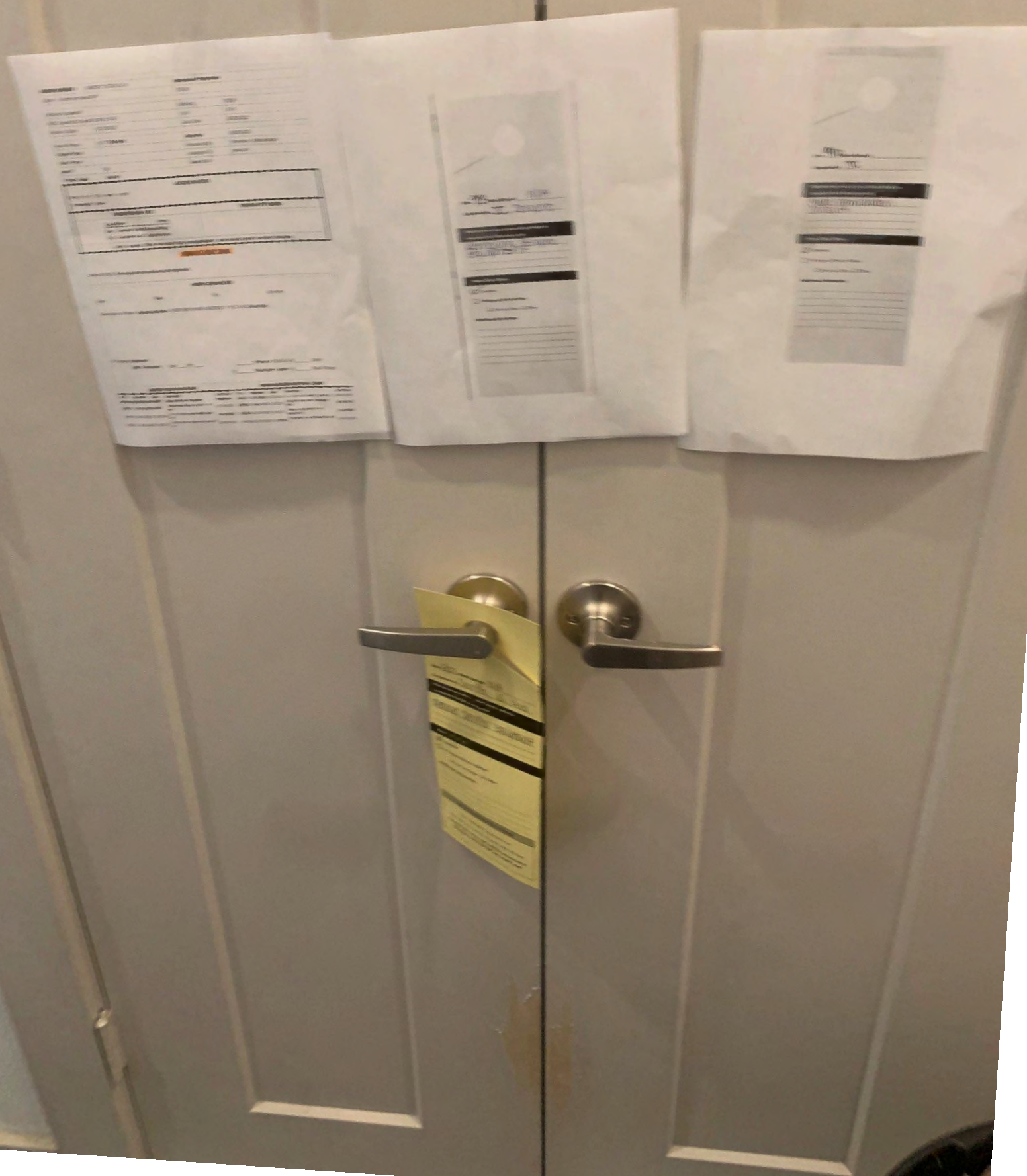
SIZE: (20"X20"X1")

































































Work Order Form

Date: 3/18/06 Work Order #: _____
Completed By: JC _____

Maintenance was on your home today to
complete the following work:

more maintenance

Work Order Status:

☐ Complete
☐ In Progress / Need to Return
☒ Put on Order ☐ Other

Additional Information:

EXHIBIT “A-17”

C013841 EAST BORADWAY APTS

11/21/2025 2:21 PM

LOCK AUDIT REPORT

Page 1 of 7

Lock name: 2145
 Lock type: UNIT LOCK
 Date created: 11/21/2025 02:20 PM
 Zone: (NO ZONE)
 Lock Software
 Version: 1.5
 Status:
 Lock Date/Time: 11/21/2025 02:17 PM
 Utility Device
 Date/Time: 11/21/2025 02:16 PM
 Number of
 Transactions: 200

B=Bad Record

(R=Resident; S=Staff; V=Vendor)

Date/Time	Key Type	Key User ID / Name	Add'l Data
11/17/2025 01:22 PM	Limited Use Key	(V)-811 LUCERO, PABLO	MONSTER CARPET
11/17/2025 01:18 PM	Limited Use Key	(V)-811 LUCERO, PABLO	MONSTER CARPET
11/11/2025 12:32 PM	Limited Use Key	(S)-1843 NIEVES, MOISES	
11/11/2025 10:08 AM	Limited Use Key	(S)-1843 NIEVES, MOISES	
11/10/2025 03:58 PM	Limited Use Key	(S)-1843 NIEVES, MOISES	
11/10/2025 02:44 PM	Limited Use Key	(S)-1843 NIEVES, MOISES	
11/07/2025 09:49 AM	Limited Use Key	(V)-812 ROJAS, JOSE	MONSTER CARPET
11/06/2025 09:37 AM	Utility Device Update Clock	(S)-1970 CRUZ, MARCELLA	
11/06/2025 10:37 AM	Utility Device Retrieve Audit	(S)-1831 WATKINS, MIKE	
11/05/2025 01:43 PM	Limited Use Key	(S)-1970 CRUZ, MARCELLA	
11/05/2025 01:41 PM	Limited Use Key	(S)-1970 CRUZ, MARCELLA	
11/05/2025 01:41 PM	Limited Use Key	(S)-1970 CRUZ, MARCELLA	
11/04/2025 06:21 PM	Resident Key	(S)-1979 CHRISTINA, PETERSON	
11/04/2025 02:11 PM	Resident Key	(S)-1979 CHRISTINA, PETERSON	
10/30/2025 02:04 PM	Utility Device Update Clock	(S)-1970 CRUZ, MARCELLA	
10/30/2025 02:04 PM	Utility Device Retrieve Audit	(S)-1831 WATKINS, MIKE	
10/29/2025 11:05 AM	Limited Use Key	(S)-1843 NIEVES, MOISES	
10/28/2025 04:39 PM	Limited Use Key	(S)-1843 NIEVES, MOISES	
10/28/2025 12:25 PM	Limited Use Key	(S)-1843 NIEVES, MOISES	

C013841 EAST BORADWAY APTS

11/21/2025 2:21 PM

LOCK AUDIT REPORT

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Date/Time	Key Type	Key User ID / Name	Add'l Data
10/27/2025 04:20 PM	Utility Device Update Clock	(S)-1843 NIEVES, MOISES	
10/27/2025 04:20 PM	Utility Device Retrieve Audit	(S)-1970 CRUZ, MARCELLA	
10/25/2025 11:42 AM	Limited Use Key	(S)-1843 NIEVES, MOISES	
10/25/2025 10:25 AM	Limited Use Key	(S)-1843 NIEVES, MOISES	
10/21/2025 08:30 PM	Resident Key	(R)-1544 KATHRYN, COPELAND	
10/21/2025 08:09 PM	Resident Key	(R)-1544 KATHRYN, COPELAND	
10/18/2025 12:08 PM	Limited Use Key	(S)-1493 ELLIOTT, MCKENZIE	
10/18/2025 10:09 AM	Limited Use Key	(S)-1493 ELLIOTT, MCKENZIE	
10/17/2025 01:16 PM	Limited Use Key	(S)-1843 NIEVES, MOISES	
10/17/2025 11:01 AM	Limited Use Key	(S)-1843 NIEVES, MOISES	
10/17/2025 10:03 AM	Limited Use Key	(S)-1843 NIEVES, MOISES	
10/15/2025 04:29 PM	Limited Use Key	(S)-1843 NIEVES, MOISES	
10/15/2025 03:39 PM	Utility Device Update Clock	(S)-1843 NIEVES, MOISES	
10/15/2025 03:39 PM	Utility Device Retrieve Audit	(S)-1392 CERVANTES, JC	
10/15/2025 03:22 PM	Utility Device Retrieve Audit	(S)-1392 CERVANTES, JC	
10/15/2025 03:22 PM	Utility Device Update Clock	(S)-1843 NIEVES, MOISES	
10/15/2025 03:22 PM	Utility Device Retrieve Audit	(S)-1392 CERVANTES, JC	
10/15/2025 03:21 PM	Utility Device Update Clock	(S)-1843 NIEVES, MOISES	
10/15/2025 03:21 PM	Utility Device Retrieve Audit	(S)-1392 CERVANTES, JC	
10/15/2025 03:09 PM	Utility Device Update Clock	(S)-1843 NIEVES, MOISES	
10/15/2025 03:09 PM	Utility Device Get Lock Info	(S)-1392 CERVANTES, JC	
10/15/2025 12:01 PM	Limited Use Key	(S)-1392 CERVANTES, JC	
10/13/2025 03:50 PM	Limited Use Key	(S)-1843 NIEVES, MOISES	
10/13/2025 02:32 PM	Limited Use Key	(S)-1831 WATKINS, MIKE	
10/10/2025 12:00 PM	Limited Use Key	(S)-1843 NIEVES, MOISES	
10/10/2025 11:06 AM	Limited Use Key	(S)-1843 NIEVES, MOISES	
10/08/2025 03:31 PM	Limited Use Key	(S)-1392 CERVANTES, JC	
10/08/2025 01:11 PM	Limited Use Key	(S)-1392 CERVANTES, JC	
10/08/2025 01:11 PM	Limited Use Key	(S)-1392 CERVANTES, JC	
10/07/2025 08:37 PM	Resident Key	(R)-1544 KATHRYN, COPELAND	
10/07/2025 08:33 PM	Resident Key	(R)-1544 KATHRYN, COPELAND	
10/07/2025 04:06 PM	Limited Use Key	(S)-1392 CERVANTES, JC	
10/07/2025 04:03 PM	Limited Use Key	(S)-1392 CERVANTES, JC	
10/07/2025 04:00 PM	Limited Use Key	(S)-1392 CERVANTES, JC	

C013841 EAST BORADWAY APTS

11/21/2025 2:21 PM

LOCK AUDIT REPORT

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Date/Time	Key Type	Key User ID / Name	Add'l Data
10/07/2025 09:46 AM	Limited Use Key	(S)-1392 CERVANTES, JC	
10/06/2025 12:24 PM	Limited Use Key	(S)-1843 NIEVES, MOISES	
10/06/2025 10:17 AM	Limited Use Key	(S)-1843 NIEVES, MOISES	
10/05/2025 04:30 PM	Limited Use Key	(S)-1931 MEZA, ANDREA	
10/05/2025 03:22 PM	Limited Use Key	(S)-1931 MEZA, ANDREA	
10/03/2025 05:14 PM	Limited Use Key	(S)-1392 CERVANTES, JC	
10/03/2025 01:28 PM	Limited Use Key	(S)-1392 CERVANTES, JC	
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10/03/2025 01:23 PM	Utility Device Retrieve Audit	(S)-1392 CERVANTES, JC	
10/03/2025 01:15 PM	Utility Device Update Clock	(S)-1843 NIEVES, MOISES	
10/03/2025 01:15 PM	Utility Device Get Lock Info	(S)-1392 CERVANTES, JC	
10/03/2025 01:15 PM	Utility Device Get Lock Info	(S)-1392 CERVANTES, JC	
10/03/2025 01:15 PM	Utility Device Update Clock	(S)-1843 NIEVES, MOISES	
10/03/2025 01:19 PM	Utility Device Get Lock Info	(S)-1392 CERVANTES, JC	
09/29/2025 11:27 AM	Resident Key	(R)-1544 KATHRYN, COPELAND	
09/29/2025 11:00 AM	Resident Key	(R)-1544 KATHRYN, COPELAND	
09/26/2025 12:40 PM	Resident Key	(R)-1544 KATHRYN, COPELAND	
09/26/2025 10:25 AM	Limited Use Key	(S)-1843 NIEVES, MOISES	
09/25/2025 03:08 PM	Limited Use Key	(S)-1843 NIEVES, MOISES	
09/25/2025 03:08 PM	Limited Use Key	(S)-1843 NIEVES, MOISES	
09/25/2025 03:08 PM	Limited Use Key	(S)-1843 NIEVES, MOISES	
09/25/2025 09:53 AM	Limited Use Key	(S)-1843 NIEVES, MOISES	
09/25/2025 09:51 AM	Limited Use Key	(S)-1843 NIEVES, MOISES	
09/24/2025 04:27 PM	Limited Use Key	(S)-1392 CERVANTES, JC	
09/24/2025 04:27 PM	Limited Use Key	(S)-1392 CERVANTES, JC	
09/24/2025 04:27 PM	Limited Use Key	(S)-1392 CERVANTES, JC	
09/24/2025 03:58 PM	Limited Use Key	(S)-1392 CERVANTES, JC	
09/24/2025 01:27 PM	Limited Use Key	(S)-1392 CERVANTES, JC	
09/24/2025 10:31 AM	Limited Use Key	(S)-1392 CERVANTES, JC	
09/24/2025 10:28 AM	Limited Use Key	(S)-1392 CERVANTES, JC	
09/23/2025 04:43 PM	Resident Key	(S)-1843 NIEVES, MOISES	
09/23/2025 01:43 PM	Resident Key	(S)-1843 NIEVES, MOISES	

C013841 EAST BORADWAY APTS

11/21/2025 2:21 PM

LOCK AUDIT REPORT

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Date/Time	Key Type	Key User ID / Name	Add'l Data
09/23/2025 12:42 PM	Resident Key	(S)-1843 NIEVES, MOISES	
09/23/2025 12:42 PM	Resident Key	(S)-1843 NIEVES, MOISES	
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09/22/2025 01:29 PM	Limited Use Key	(S)-1392 CERVANTES, JC	
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09/21/2025 05:46 AM	Resident Key	(R)-1544 KATHRYN, COPELAND	
09/20/2025 12:14 PM	Resident Key	(R)-1544 KATHRYN, COPELAND	
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09/17/2025 08:07 PM	Resident Key	(R)-1544 KATHRYN, COPELAND	
09/17/2025 07:05 PM	Resident Key	(R)-1544 KATHRYN, COPELAND	
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09/16/2025 07:14 PM	Resident Key	(R)-1544 KATHRYN, COPELAND	
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09/16/2025 09:53 AM	Limited Use Key	(S)-1392 CERVANTES, JC	
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09/15/2025 06:36 PM	Resident Key	(R)-1544 KATHRYN, COPELAND	
09/15/2025 05:17 PM	Resident Key	(R)-1544 KATHRYN, COPELAND	
09/15/2025 01:08 PM	Limited Use Key	(S)-1931 MEZA, ANDREA	
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C013841 EAST BORADWAY APTS

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Date/Time	Key Type	Key User ID / Name	Add'l Data
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08/17/2025 03:00 PM	Resident Key	(R)-1544 KATHRYN, COPELAND	
08/15/2025 05:33 PM	Limited Use Key	(V)-72 DOE, JOHN	ATT
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Date/Time	Key Type	Key User ID / Name	Add'l Data
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Date/Time	Key Type	Key User ID / Name	Add'l Data
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EXHIBIT “A-18”

141-370402-25

FILED
TARRANT COUNTY

FILED
TARRANT COUNTY
9/19/2025 2:43 PM
THOMAS A. WILDER
DISTRICT CLERK

CAUSE NO. _____ 2025 OCT -2 PM 11:13

**WEINSTEIN MANAGEMENT
COMPANY, INC. AND WMCI
DALLAS XC, LLC,**

Plaintiffs,

V.

KATHRYN COPELAND,

Defendant.

www.ck12.org

IN THE DISTRICT COURT OF
DISTRICT CLERK

TARRANT COUNTY, TEXAS

JUDICIAL DISTRICT

TEMPORARY RESTRAINING ORDER

On this day came on to be heard, Plaintiffs', Weinstein Management Company, Inc., and WMCi Dallas XC, LLC, Original Petition, Application for Temporary Restraining Order, and Request for Temporary and Permanent Injunctions, Upon hearing and notice to Defendant, Kathryn Copeland, and after considering Plaintiffs', Weinstein Management Company, Inc., and WMCi Dallas XC, LLC, Original Petition, Application for Temporary Restraining Order, and Request for Temporary and Permanent Injunctions, the Court finds that harm is imminent to Plaintiffs, and if the Court does not issue the Temporary Restraining Order, Plaintiffs will be irreparably injured. Therefore, , the Court is of the opinion that the following order should issue, to restrain and enjoin Defendant from interfering with the repair and remediation of purported mold in her apartment unit, to include refusing to allow Weinstein Properties' staff and/or third-party vendors access to the apartment in order to perform actions necessary to repair, remediate, and safeguard the apartment unit and fixtures within. The Court finds that injunctive relief is necessary to prevent further damage to the apartment unit and/or fixtures within.

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

1. Plaintiffs' request for injunctive relief is hereby **GRANTED**.
2. Plaintiffs have standing to seek injunctive relief to ensure remediation/repair work will be performed without further delay by Defendant, and prevent further damage and safeguard their property.
3. Plaintiffs do not have an adequate remedy at law, as Defendant's continued interruption, delay, and/or interference with vital maintenance, repair, and/or remediation of the property places Plaintiffs in actual danger of damage to their property.
4. Plaintiffs have a probable right to recovery under their breach of contract, declaratory judgment, and/or tortious interference with contract claims.
5. Therefore, by this Order, the Court issues this Temporary Restraining Order, **GRANTED PLAINTIFFS INJUNCTIVE RELIEF AND RESTRAINING DEFENDANT FROM THE FOLLOWING:**
 - a. Interfering with and/or preventing Plaintiffs from moving Defendant's personal property items within the unit, as may be necessary to effectuate repairs, remediation, and/or safeguarding of Plaintiffs' property;
 - b. Preventing Plaintiffs, their staff, their representatives and/or agents, and/or their vendors from entering the premises at 405 Crawford St., Apt. 2145;
 - c. Entering the premises located at 405 Crawford St., Apt. 2145, after a notice has been placed on the front door, in compliance with the applicable rules of the Texas Department of Licensing and Regulation, that mold remediation is being undertaken in the apartment;
 - d. Entering the premises located at 405 Crawford St., Apt. 2145, after remediation has been completed and while other necessary repairs (including sheetrock repair, drywall installation, and painting) are taking place;
 - e. Plaintiff will deliver all items remaining in the apartment and deliver them to Defendant within 3 days.
 - f. Defendant shall provide a list items she needs for medical or sentimental reasons and Plaintiff will deliver those items to Defendant as allowed by law.
 - g. Remediation can resume today.

The Court finds that the issuance of \$1,000.00 in security of a bond is sufficient to protect any interests of Defendant in this matter. The bond shall be affixed with two or more good and sufficient sureties, or shall be made in cash.

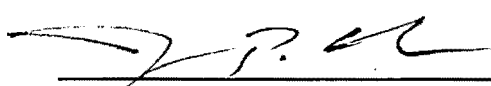
The foregoing Order shall remain in effect from the date and time of the entry of this Order until fourteen days after entry or until further agreed by the parties or as otherwise ordered by this Court.

This Court further Orders the Clerk to issue notice to Defendant that the hearing on the Plaintiffs' Application for Temporary Injunction is set for: October 14, 2025, at 10:30 a.m..

The purpose of the hearing will be to determine whether a temporary injunction should be issued upon the same grounds and particulars as specified herein or as requested in Plaintiffs' then-current petition. This hearing will take place in person at the Tom Vandergriff Civil Courts Building located at 100 North Calhoun Street, Fort Worth, TX 76196.

The Clerk shall, forthwith, issue a temporary restraining order in conformity with the law and the terms of this Order.

SIGNED on October 2, 2025, at 10:30 (a.m.) p.m.


DISTRICT COURT JUDGE

From: [Jasmin Andrade](#)
To: k.m.copeland@tcu.edu
Cc: [Amanda T. Pfisterer](#)
Subject: 141-370402-25 WEINSTEIN MANAGEMENT CO | v | KATHRYN COPELAND
Date: Thursday, October 2, 2025 11:25:00 AM
Attachments: [14137040225000022.PDF](#)
[image001.png](#)

Please see the attached signed Temporary Restraining Order.

Thank you,

Jasmin Andrade

Administrative Court Clerk-141st
Tarrant County District Clerk
Tom Vandergriff Civil Courts Building
100 N. Calhoun St, 2nd Floor
Fort Worth, TX 76196
[\(817\)-884-1588](tel:(817)884-1588)
Jandrade@tarrantcountytx.gov





Case 4:26-cv-00585-O-BP
TARRANT COUNTY
THOMAS A. WILDER
DISTRICT CLERK - CIVIL
100 N. CALHOUN ST., 2ND FLOOR
FORT WORTH, TEXAS 76196-0402

Document 40

Filed 05/13/26

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741st

KATHRYN COPELAND
405 CRAWFORD ST APT 2145
FORT WORTH TX

EXHIBIT “A-19”

CAUSE NO. 141-370402-25

**WEINSTEIN MANAGEMENT
COMPANY, INC. AND WMCi DALLAS
XC, LLC,**

Plaintiffs,

v.

KATHRYN COPELAND,

Defendant.

§
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§

IN THE DISTRICT COURT OF

TARRANT COUNTY, TEXAS

141st JUDICIAL DISTRICT

THOMAS A. WILDER
DISTRICT CLERK

2025 OCT 16 PM 2:13

FILED
TARRANT COUNTY

TEMPORARY INJUNCTION

On this day came on to be heard, Plaintiffs', Weinstein Management Company, Inc., and WMCi Dallas XC, LLC, Original Petition, Application for Temporary Restraining Order, and Request for Temporary and Permanent Injunctions, Upon hearing and notice to Defendant, Kathryn Copeland, and after considering Plaintiffs', Weinstein Management Company, Inc., and WMCi Dallas XC, LLC, Original Petition, Application for Temporary Restraining Order, and Request for Temporary and Permanent Injunctions, the Court finds that harm is imminent to Plaintiffs, and if the Court does not issue the Temporary Injunction, Plaintiffs will be irreparably injured.

Therefore, the Court is of the opinion that the following order should issue, to restrain and enjoin Defendant from interfering with the repair and remediation of purported mold in her apartment unit, to include refusing to allow Weinstein Properties' staff and/or third-party vendors access to the apartment in order to perform actions necessary to repair, remediate, and safeguard the apartment unit and fixtures within. The Court finds that injunctive relief is necessary to prevent further damage to the apartment unit and/or fixtures within, and that the harm to Plaintiffs

outweighs any potential harm to Defendant, and the requested injunctive relief is necessary to preserve the status quo pending a final adjudication on the merits..

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

1. Plaintiffs' request for injunctive relief is hereby **GRANTED**.
2. Plaintiffs have standing to seek injunctive relief to ensure remediation/repair work will continue to be performed without further delay by Defendant, and prevent further damage and safeguard their property, without which Plaintiffs will suffer immediate and irreparable injury/damages, for which there is no adequate remedy at law.
3. Plaintiffs do not have an adequate remedy at law, as Defendant's continued interruption, delay, and/or interference with vital maintenance, repair, and/or remediation of the property places Plaintiffs in actual danger of damage to their property.
4. Plaintiffs have a probable right to recovery under their breach of contract, declaratory judgment, and/or tortious interference with contract claims.
5. Plaintiffs' rights and property cannot be fully and adequately preserved without the issuance of this Temporary Injunction.
6. Therefore, by this Order, the Court issues this temporary injunction pursuant to Tex. R. Civ. P. 680, Tex. Civ. Prac. & Rem. Code § 65.001. Defendant is **TEMPORARILY ENJOINED AND RESTRAINED FROM:**
 - a. Returning any item of Defendant's personal property items to Apt. 2145;
 - b. Preventing Plaintiffs, their staff, their representatives and/or agents, and/or their vendors from entering the premises at 405 Crawford St., Apt. 2145;
 - c. Entering the premises located at 405 Crawford St., Apt. 2145, after a notice has been placed on the front door, in compliance with the applicable rules of the Texas Department of Licensing and Regulation, that mold remediation is being undertaken in the apartment;
 - d. Entering the premises located at 405 Crawford St., Apt. 2145, after remediation has been completed and while other necessary repairs (including sheetrock repair, drywall installation, installation of replacement flooring, and painting) are taking place;

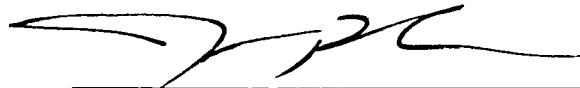
The Court **FURTHER ORDERS** that the current remediation and/or repair ongoing in the Apartment can continue to completion.

At the October 2, 2025 hearing, the Court found that the issuance of \$1,000.00 in security of a bond is sufficient to protect any interests of Defendant in this matter. The bond was to be affixed with two or more good and sufficient sureties, or shall be made in cash. The Court further finds that Plaintiffs have posted a cash bond in the amount of \$1,000.00, and that the previous Bond posted in this matter remains sufficient to protect the interests of Defendant in this matter.

The October 2, 2025 Temporary Restraining Order issued by the Court expires on October 16, 2025. This Temporary Injunction shall remain in effect as of the date and time of the entry of this Order until further order of the Court or the entry of a final judgment in this case.

The Clerk shall, forthwith, issue a Temporary Injunction in conformity with the law and the terms of this Order. *Trial set for May 11, 2026.*

SIGNED on October 14, 2025, at 10:35 a.m./p.m.



DISTRICT COURT JUDGE

From: [Jasmin Andrade](#)
To: ["k.m.copeland@tcu.edu"; "k.m.copeland@tcu.edu"; "GZAVARELLI@WANDZLAW.COM"; "MSORTOR@WANDZLAW.COM"](#)
Cc: [Priscilla M. Castillo](#)
Subject: 141-370402-25 WEINSTEIN MANAGEMENT | v | KATHRYN COPELAND
Date: Thursday, October 16, 2025 2:39:00 PM
Attachments: [141370402252025101637SETTINGORDTRIALWKOF51126.PDF](#)
[141370402252025101638TEMPINJ.PDF](#)
[image001.png](#)

Please see the attached Signed Setting order & Temporary Injunction Order.

**As ReSearchTX works to refine their noticing process,
the District Clerk's office will send notices until the issues are resolved.

Thank you,

Jasmin Andrade

Administrative Court Clerk-141st
Tarrant County District Clerk
Tom Vandergriff Civil Courts Building
100 N. Calhoun St, 2nd Floor
Fort Worth, TX 76196

[\(817\)-884-1588](tel:(817)-884-1588)

Jandrade@tarrantcountytexas.gov





Case 4:26-cv-00585-O-BP
**TARRANT COUNTY
THOMAS A. WILDER**
DISTRICT CLERK - CIVIL
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FORT WORTH, TEXAS 76196-0402

Document 40
141st

Filed 05/13/26

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PageID 2311

KATHRYN COPELAND
405 CRAWFORD ST APT 2145
FORT WORTH TX

EXHIBIT “A-20”

Subject: Notice to Vacate for Non Payment of Rent/Notice of Late Payment
Date: Thursday, November 6, 2025 at 1:30:33 PM Central Standard Time
From: thebowery@weinsteinproperties.com
To: Copeland, Katie
Attachments: NTVTX_444918_263.pdf

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Dear Resident,

You are receiving the attached Notice to Vacate for Non-Payment of Rent/Notice of Late Payment because our records show that you have not yet paid your balance in full, including the current month. A copy of this notice has also been mailed to you via First-Class Mail.

While we understand that this may be a simple oversight, you must pay your balance in full immediately to avoid having to move out by the date indicated on the attached notice.

To pay the total amount due, including any additional daily late fees that have accrued (if applicable), visit the Leasing Office to drop off a cashier's check or money order or you can make a credit card payment by visiting bowerysouthside.com and logging into your online account. Note: There is a convenience fee for credit card payments. Unfortunately, we cannot accept personal checks for past due amounts.

We appreciate your prompt attention to this matter and please do not hesitate to contact us with any questions at (833) 887-1948 or by email at thebowery@weinsteinproperties.com.

Sincerely,
The Bowery at Southside

This communication is an attempt to collect a debt. Any information obtained will be used for that purpose.

11/6/2025

Dear Valued Resident,

You are receiving the attached Notice to Vacate for Nonpayment of Rent because our records show that you have not yet paid your balance in full, including the current month.

While we understand that this may be a simple oversight, you must pay your balance in full immediately to avoid having to move out by the date indicated on the attached notice.

To pay the total amount due, including any additional late fees, court costs or attorney's fees that accrue, visit the Leasing Office to drop off a cashier's check or money order (in person or via the drop box) or you can make a debit/credit card payment by visiting bowerysouthside.com and logging into your online account. *Note: There is a service fee for debit/credit card payments. Unfortunately, we cannot accept personal checks for past due amounts.*

We appreciate your prompt attention to this matter and please do not hesitate to contact us with any questions at (833) 887-1948.

Sincerely,



The Bowery at Southside

This communication is an attempt to collect a debt. Any information obtained will be used for that purpose.

Please consider registering for Auto-Pay once your account is current.

Auto-Pay is a FREE service that automatically debits your bank account each month to pay your total balance.

When enrolled into Auto-Pay, not only do you not have to remember to make a payment each month but you're also automatically entered into a drawing each month for a chance to win \$100 off your rent. *To sign up, login to your Online Resident Services account and visit the Auto-Pay screen.*

Note: You can also use debit/credit card for AutoPay but there is a service fee, using your bank account is FREE.

**NOTICE TO VACATE FOR
NON-PAYMENT OF RENT, UTILITIES OR OTHER SUMS**

11/6/2025

Kathryn Copeland and all other occupants
405 Crawford St Apt# 2145
Fort Worth, TX 76104

RE: Notice to vacate for non-payment of rent, utilities or other sums, TAA Lease Contract dated 05/26/2025 between the residents named above and WMCi Dallas X LLC t/a The Bowery at Southside (owner).

Dear Resident(s):

Because you have not paid the following:

Water - 1140.0 gallons	4.17
Read 05/22 137590.0 - 06/22 138730.0	
# of Days = 31 (Rate is \$3.66 per 1,000 gallons)	
Wastewater - 1140.0 gallons	6.38
Read 05/22 137590.0 - 06/22 138730.0	
# of Days = 31 (Rate is \$5.60 per 1,000 gallons)	
Water Base Charge 05/22 - 06/22	1.63
Wastewater Base Charge 05/22 - 06/22	0.87
Service Fee 05/22 - 06/22	1.17
Base Rent (08/2025)	2442.00
Storm Water (08/2025)	1.93
Storage Room (08/2025)	25.00
Valet Trash (08/2025)	30.00
Pest Control Fee (08/2025)	5.00
Res Protect Waiver Only (08/2025)	12.00
Water - 730.0 gallons	2.67
Read 06/22 138730.0 - 07/22 139460.0	
# of Days = 30 (Rate is \$3.66 per 1,000 gallons)	
Wastewater - 730.0 gallons	4.09
Read 06/22 138730.0 - 07/22 139460.0	
# of Days = 30 (Rate is \$5.60 per 1,000 gallons)	
Water Base Charge 06/22 - 07/22	1.63
Wastewater Base Charge 06/22 - 07/22	0.87
Service Fee 06/22 - 07/22	0.83
Base Rent (09/2025)	2442.00
Storm Water (09/2025)	1.93
Storage Room (09/2025)	25.00
Valet Trash (09/2025)	30.00
Pest Control Fee (09/2025)	5.00
Res Protect Waiver Only (09/2025)	12.00
Late Fee, 10% of \$2442.00	244.20
Water - 90.0 gallons	0.33
Read 07/22 139460.0 - 08/22 139550.0	
# of Days = 31 (Rate is \$3.66 per 1,000 gallons)	
Wastewater - 90.0 gallons	0.50
Read 07/22 139460.0 - 08/22 139550.0	
# of Days = 31 (Rate is \$5.60 per 1,000 gallons)	
Water Base Charge 07/22 - 08/22	1.63
Wastewater Base Charge 07/22 - 08/22	0.87
Service Fee 07/22 - 08/22	0.30
Base Rent (10/2025)	2442.00

Storm Water (10/2025)	1.93
Storage Room (10/2025)	25.00
Valet Trash (10/2025)	30.00
Pest Control Fee (10/2025)	5.00
Res Protect Waiver Only (10/2025)	12.00
Late Fee, 10% of \$2442.00	244.20
Storage Room \$60.00 @ 27 days	52.26
Water - 180.0 gallons	0.66
Read 08/22 139550.0 - 09/22 139730.0	
# of Days = 31 (Rate is \$3.66 per 1,000 gallons)	
Wastewater - 180.0 gallons	1.01
Read 08/22 139550.0 - 09/22 139730.0	
# of Days = 31 (Rate is \$5.60 per 1,000 gallons)	
Water Base Charge 08/22 - 09/22	1.63
Wastewater Base Charge 08/22 - 09/22	0.87
Service Fee 08/22 - 09/22	0.38
Base Rent (11/2025)	2442.00
Storm Water (11/2025)	1.93
Storage Room (11/2025)	25.00
Storage Room (11/2025)	60.00
Valet Trash (11/2025)	30.00
Pest Control Fee (11/2025)	5.00
Res Protect Waiver Only (11/2025)	12.00
Late Fee, 10% of \$2442.00	244.20

Your rights of occupancy and possession are hereby terminated under the provisions of your lease. You are still liable for rent and other charges you may owe under the TAA Lease Contract. Details of unpaid sums are above.

Demand for possession is hereby made. You are hereby given notice to vacate the dwelling on or before 11:59p.m., 12/09/2025. Your failure to move out then will result in appropriate legal action by us before the Justice of the Peace. Delay or postponement of such action does not waive our rights. This notice to vacate is unconditional.

Because of the global COVID-19 pandemic, you may be eligible for temporary protection from eviction under Federal Law. Learn the steps you should take now: visit www.cfpb.gov/eviction or call a housing counselor at 800-569-4287.

If you wish to discuss this notice of you vacating the dwelling, please contact us.

11/6/2025

Date notice was given



Signature of owner's representative

Christina Peterson

Printed Name

(833) 887-1948

Phone Number

thebowery@weinsteinproperties.com

Email Address

Proof of Delivery of Notice to Vacate to Resident

On 11/6/2025, I served the NOTICE described herein to the following Resident(s):

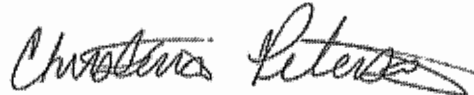
Kathryn Copeland

☒ Notice to vacate – Non-Payment of Rent, Utilities or Other Sums

☒ FIRST CLASS MAIL; CERTIFIED MAIL, RETURN RECEIPT REQUESTED; OR REGISTERED MAIL

11/6/2025

Date notice was given



Signature of owner's representative

Christina Peterson

Printed Name

EXHIBIT “A-21”

Certificate showing this property does not have mold damage

Certificate of mold damage remediation

Property owner: Keep this certificate and give a copy to your insurance agent or company.

Property owner and location

Property owner's name Weinstein Properties - The Bowery at Southside

Mailing address 220 E Broadway Ave., Fort Worth, TX 76104

Property address 220 E Broadway Ave. Unit 2145, Fort Worth, TX 76104

Lot _____ Block _____ Addition or tract _____ County Tarrant

Instructions

- **If mold damage has been treated (remediated):** Both Box A and B below must be filled out. The mold remediation contractor must fill out Box A. The mold assessment consultant must fill out Box B.
- **If no mold damage was found:** The mold assessment consultant or insurance adjuster must fill out Box C.

► **Mold damage has been treated** (If Box A and B are filled out, Box C does not need to be filled out.):

Box A: To be filled out by the mold remediation contractor.

I certify that:

- I treated the damage caused by mold at this property. Treatment can include removing, cleaning, sanitizing, and preventing mold damage.
- I gave this certificate to the property owner within 10 days after completing the work.

DMS122025

Certificate number

Cluzef

12/18/2025

Date issued

12/22/2025

Date

Mold remediation contractor's signature

Cameron Pass 333 S Kirby St, Ste 105, Garland, TX 75042

Contractor's printed name and address

12/13/2025

Date treatment completed

MAC1736

06/11/2027

Texas Department of Licensing and Regulation license number

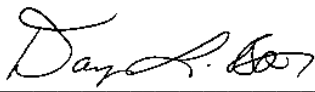
License expiration date

Box B: To be filled out by the mold assessment consultant.

I certify that:

- Damage caused by mold at this property has been treated (remediated).
- With reasonable certainty, the underlying causes of the mold have been treated so mold will not return.
- I gave a copy of my report to the property owner.

Per Occupations Code Section 1958.154: Based on visual, procedural, and analytical evaluation, the mold contamination identified for the project has been remediated as outlined in the mold management plan or remediation protocol.

12/18/2025

Mold assessment consultant's signature

Date

Dayna L. Boor 8080 N Central Expy, Suite 1700, Dallas, TX 75206

Consultant's printed name and address

MAC168702/27/2026

Texas Department of Licensing and Regulation license number

License expiration date

► **No mold damage was found** (If Box C is filled out, Box A and B do not need to be filled out.):

Box C: To be filled out by the mold assessment consultant or insurance adjuster.

I certify that:

- I inspected this property.
- I did not find signs (evidence) of any mold damage.
- I gave a copy of my report to the property owner.

Certificate number

Date issued

Mold assessment consultant or insurance adjuster's signature

Date

Consultant or adjuster's printed name and address

Texas Department of Licensing and Regulation license number, or
Texas Department of Insurance license number

License expiration date

EXHIBIT “B”

CAUSE NO. 141-370402-25

WEINSTEIN MANAGEMENT CO.,	§	IN THE DISTRICT COURT OF
INC. AND WMCI DALLAS X, LLC,	§	
	§	
Plaintiffs,	§	
	§	
v.	§	
	§	TARRANT COUNTY, TEXAS
KATHRYN COPELAND,	§	
	§	
Defendant.	§	141st JUDICIAL DISTRICT

AFFIDAVIT OF PATRICIA ROSEN, M.D., MPH

County of Travis **§**
State of Texas **§**

Before me, the undersigned authority, personally appeared Patricia Rosen, who being duly sworn, deposed and said as follows:

1. "My name is Patricia Rosen. I am over the age of twenty-one (21), I have never been convicted of a felony or crime of moral turpitude, and I am fully competent to make this affidavit. I have personal knowledge of the facts stated herein which are true and correct."
2. "I am a Medical Doctor, and I have a Master's Degree in Epidemiology, from the Tulane University School of Public Health and Tropical Medicine. I am a fellow of the American College of Emergency Physicians. and a Fellow of the American College of Medical Toxicology."
3. "I am board-certified in Internal Medicine, Emergency Medicine, and in Medical Toxicology."
4. "I have consulting privileges at Seton Medical Center in Austin, Texas, and hospital privileges at Advent Rollins Brook Hospital in Lampasas, Texas, and St. David Hospital in Round Rock, Texas in emergency medicine. I currently work as an Emergency Department attending at Advent Hospital in Lampasas and at Leander Free Standing in Leander, Texas. I provide consultation through Austin Toxicology to patients and providers on an as needed basis."

5. I have served as a reviewer for the American Journal of Medical Toxicology, and I review submissions for presentation at the ACMT Scientific Assembly on a yearly basis.
6. "In my field, I have evaluated clinical effects in humans of natural and chemical exposures in a variety of settings, including: residential, industrial, workplace, educational, and medical settings. Many of these cases involved evaluating consequences of exposure to mold. I am qualified by education, training, and experience, to evaluate these cases.
7. "I understand that Ms. Copeland has claimed that she suffers from multiple medical illnesses/conditions: None of her illnesses would be related to a mold exposure. Mold illnesses are infections, allergic reactions and at times related to toxins. However she has no testing that would evaluate for those illnesses.
8. The records provided are redacted and provide no information related to mold related illnesses. Mycotoxins due not cause Covid, Ehlers-Danlos syndrome, Postural Orthostatic Tachycardia Syndrome (POTS), Thyroid dysfunction, fibromyalgia, Binocular dysfunction or hypogammaglobulinemia. It is my opinion that none of these conditions and/or symptoms of same are, within a reasonable medical certainty, related to caused by or associated with mold or mold exposure or mold toxins.
9. Mold related illnesses are limited and are easily diagnosed on physical examination and appropriate testing. Allergy testing by skin tests are a common and appropriate way to test for allergies. Chest x-rays in patients with fever and hypoxia will demonstrate fungal infections. A panel of antigens are usually ordered to evaluate for hypersensitivity in patients with interstitial lung disease due to molds. Ms. Copeland did not have any of these test performed and did not have a clinical presentation to prompt thee studies.
10. She is not immunocompromised, and would not be at risk for systemic illness due to mold infections. Toxicity from molds is most often encountered following ingestion. For example in horses that eat moldy hay, renal injury may occur this resolves with initiation of a clean diet. In people exposed to moldy peanut butter, injury to the liver and potentially, liver cancer may develop some 20 years later. this is not consistent with Ms. Copeland's complaints. she has never had x-rays showing fungal infiltrates and has not had signs or symptoms of hypersensitivity pneumonitis.
11. Note that some off Mrs. Copeland's complaints began prior to her moving into the apartment at the Bowery. this includes Covid in December of 2022 at which time she stopped working. Thus illnesses prior to the claimed exposure could not be considered causative.
12. The documents I was provided include:
 - a. 2025.09.08 Dr. Isabel Huang Letter

- b. 2025.12.21 Dr. Isabel Huang MyChart Note
 - c. 2025.09.10 TX Health ER Note
 - d. 2025.09.11 Dr. Kim Tran Letter
 - e. Alan Spanos, MD Note (unknown whether this is at all related to Ms. Copeland)
 - f. 2023.09.07 Dr. John Bui Letter
 - g. 2025.06.13 Dr. Conte – Neurology Ophthalmologist Examination Record
 - h. Earl Johnson, Ph.D. Letter to Judge Wells
 - i. Portions of records from Dr. Alfred Johnson
 - j. 2019.12.16 ESA Letter – Moon
 - k. 2019.12.16 ESA Letter – Ruby
 - l. 2024.02.27 Dr. Victor Kaytser THHS Statement
 - m. 2024.03.18 Dr. John Bui THHS Statement
 - n. 2023.10.09 Kristi Ferguson MS CCC/SLP Letter
 - o. Dr. Nilesh Nanangani Records
 - p. Custom Care Healthcare
13. Many of these documents were not clinical evaluations and only included letters of support. Many of the records were heavily redacted.
14. Several of the records do include studies that do not demonstrate mold illness, infection, toxicity or anything else. Urine studies looking at mold toxins is recommended to evaluate food products. Low levels of mold and mycotoxins are present in food. Urine tests will show those levels. These do not correlate or indicate infection or illness and are found in the urine of healthy persons. This is a direct to consumer laboratory test that has not been approved by the FDA for diagnostic purposes. It appears that one of her providers, Dr. Johnson, diagnosed her with mold toxicity on the basis of indoor air testing. He also diagnosed her with Hashimoto's without testing for such (Hashimoto's is an autoimmune disorder associated with hypothyroidism and specific antibodies, Thyroid Peroxidase Antibodies. He also found that she had elevated immunoglobulin studies which usually are interpreted as showing prior exposure to the infection agent and is expected in normal healthy people. (His recommended therapies of vitamins and hyperbaric treatments are clearly not indicated for any of Ms. Copeland's complaints)
15. "In order to prove causation, certain criteria should be met. These are listed in Bradford Hills criteria originally developed to assist in the development of a scientific means to establish causation versus association. (Example: "Is it the snow that falls that makes the level fall for in the trees?" No. These two events just occur around the same time.)
16. "In Ms. Copeland's case the criteria are not met specifically, her illnesses occurred prior to her exposure to the agent she is stating caused her illnesses. (Temporality criteria) Certainly alternative etiologies were not considered. (Coherence criteria). Her symptoms are not specific to mold exposure and in fact are not known to be due to mold

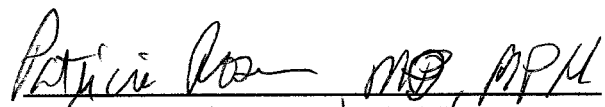
or mold toxins. (Plausibility consistency). there is no evidence of any exposure so a dose response can not be posited. The association of mold in your home is associated with the illnesses Ms. Copeland is complaining about does not exist. As stated above mold is known to cause specific illnesses and Ms. Copeland does not suffer from any of them.

- a. "Strength of association: whether the association is strong and statistically significant."
- b. "Consistency of the association: whether multiple studies show the same (or substantially similar) results."
- c. "Specificity of the Association: whether the observed effect has only one known cause."
- d. "Temporality of the Association: whether the purported cause precedes the observed effect."
- e. "Biological gradient (aka "Dose-response"): whether a stronger or greater exposure leads to greater amounts of harm."
- f. "Plausibility: there must be both a rational and theoretical basis for the result."
- g. "Coherence: whether the cause-effect relationship conflicts with what is already known and whether there are other competing hypotheses."
- h. "Experiment: experimental evidence strengthens a causal inference and makes it more plausible."
- i. "Analogy: whether a commonly accepted phenomenon in one area can be applied to another area."

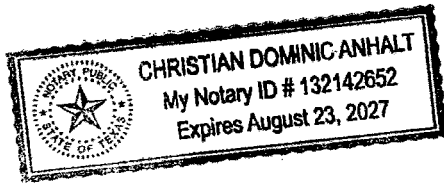
17. Based on the application of this well-accepted methodology, Ms. Copeland's complaints can not be related to her claimed exposure to mold in her apartment.

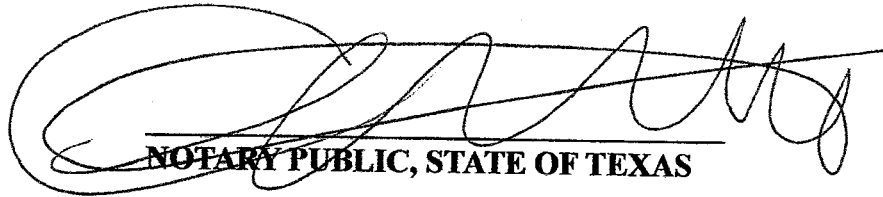
18. "Based on reasonable medical probability, review of all available evidence, and my training, education, and experience: there is no evidence that Ms. Copeland suffers from mold-related illnesses and/or exacerbation of any pre-existing illnesses related to exposure to mold, or related toxins."

Further affiant sayeth not.


PATRICIA ROSEN, MD, MPH

SUBSCRIBED AND SWORN TO BEFORE ME, by the said affiant, on this the 11
day of **May**, 2026.




NOTARY PUBLIC, STATE OF TEXAS

My Commission Expires: August 23, 2027

EXHIBIT “C”

CAUSE NO. 141-370402-25

WEINSTEIN MANAGEMENT CO.,	§	IN THE DISTRICT COURT OF
INC. AND WMCI DALLAS X, LLC,	§	
	§	
Plaintiffs,	§	
	§	
v.	§	
	§	TARRANT COUNTY, TEXAS
KATHRYN COPELAND,	§	
	§	
Defendant.	§	141st JUDICIAL DISTRICT
	§	

AFFIDAVIT OF ROBIN FRANKS, MS, PG, CHMM, RSO, LAIC, MAC

County of Harris §
State of Texas §

1. “My name is Robin Franks. I am over the age of twenty-one (21), I have never been convicted of a felony or crime of moral turpitude, and I am fully competent to make this affidavit. I have personal knowledge of the facts stated herein which are true and correct.”
2. I hold a Dual Bachelor of Science in Geology and Biology from Stephen F. Austin State University and a Master of Science in Geology from Stephen F. Austin State University.
3. I am licensed as a Texas Department of Licensing & Regulation (TDLR) Mold Assessment Consultant (Tx MAC #0270) and a Florida Department of Business and Professional Regulation Mold Assessor (#MRSA1712); a Professional Geologist in Texas (TxPG #875), Mississippi (MsPG #0778, Tennessee (TnPG #3213), and Louisiana (LaPG #532); as an Institute of Hazardous Materials Management Certified Hazardous Materials Manager (CHMM #3725); through the Texas Commission on Environmental Quality (TCEQ) as a Corrective Action Project Manager (CAPM #642); as a Radiation Safety Officer (RSO) & NORMs Surveyor & Remediation Supervisor (Fed. NRC Compliant); as a Texas Department of State Health Services (TDSHS) Licensed Asbestos Individual Consultant (LAIC #105379); as well as a TDSHS Certified Lead Abatement Supervisor (#2080002) and Project Designer (#2090082). These certifications and licenses require evidence of relevant education, routine classroom refreshers, ethics training, enforcement of a stringent code of conduct, and the risk of censure for non-compliance.
4. I am the President, founder, and active technical Principal of TGE Resources, Inc., a Texas Corporation that began business in Houston, Texas, in 1994. The firm continues to practice environmental consulting, environmental engineering, industrial hygiene, and remediation consulting. The firm holds a TDSHS Asbestos Consultant Agency license (#100171) and a

TDLR Mold Assessment Company license (#ACO0123), and serves a diverse client base local to Texas and nationally, which involves retention of both the firm and me for mold assessment, reporting, and (from time to time) expert witness and litigation support consistent with work for which I was retained in this matter.

5. I am an expert in the following areas: Environmental Real Property Transactional & Operational Due Diligence (AAI/ASTM [All Appropriate Inquires/ASTM International]); Environmental Compliance & Operational Audit; Permit Preparation; Emergency Response Program Management for Hazardous Materials Releases; Preparation, Management & Execution of “Impaired Property” Environmental Reports; Environmental Considerations for Repurposing Commercial Real Estate; Risk-Based Management of Environmentally Impaired Property – Hazard Mitigation/RIFS (Remedial Investigation and Feasibility Studies); and Built Environment Risk Mitigation Consulting: Asbestos, Lead Paint, Microbial, Industrial Hygiene.
6. I have extensive field experience in executing, managing, and directing projects involving microbes and bioaerosols, and I am knowledgeable of associated State and local regulations pertaining to their assessment, reporting, remediation planning, and corrective action. My expertise as an Indoor Air Quality (IAQ) and Industrial Hygiene (IH) expert relies on the application of appropriate response actions in the presence of moisture intrusion and ensuing mold growth to building structures and finishes. I routinely provide corrective action options and related cost estimates to address moisture within indoor spaces. I frequently provide mold/IH remediation consulting services, including obtaining and evaluating reports and cost estimates prepared by others, vetting, coordinating with licensed contractors, and overseeing abatement/remediation. I hold long-standing memberships with the American Industrial Hygiene Association (AIHA), the Indoor Air Quality Association (IAQA), and the ASTM International, to name a few; all technical/trade memberships are in good standing.
7. My work is largely focused on the characterization, mitigation planning, and removal of bioaerosols (pathogenic microbes, including mold/fungus) in the built environment. I/TGE have collectively performed 1000s of building surveys ranging from limited local source identification (forensic assessment) to comprehensive IH projects, which required a comprehensive understanding of building systems and the practical application of State regulations to address catastrophic and pervasive damage to buildings, concern for worker/occupant protection, managing public awareness, and owner/client risk. My building science investigation experience, where mold is often a prevalent concern, spans a variety of modern and historical property types, including residential, multi-family, commercial, and industrial land uses. Projects have involved schools, historical-use structures, hospitals, and child and elderly care facilities that present unique risk situations.
8. My work further involves building damage evaluation in collaboration with other experts during root-cause analysis of moisture intrusion to prevent the progression of ensuing mold once a moisture/water intrusion event has occurred. Projects often involve field inspection (survey and assessment) with air and/or surface testing for possible direct examination or culture analysis by licensed, third-party laboratories, risk mitigation following critical data

review, state-mandated protocol preparation, remediation oversight to ensure protocol compliance, clearance criteria development and critical review by field testing, and issuance of the Texas Department of Insurance (TDI) certificate of mold damage remediation (CMDR). Large project engagements have involved multi-family portfolios, retail portfolios, multiple hospital campus locations, multiple industrial facilities over 1M square feet each, large food distribution centers, and emergency response needs following named hurricanes and tropical storms.

9. Neither I, my staff, nor any TGE employee has received violations, citations, or censure from any relevant agency (TDLR or the TDSHS¹) for any IAQ/IH work performed by the firm in its 30+ year history, including surveys and activities relevant to project management during IAQ/IH abatement. Neither my firm nor I have ever been censured nor has any credential held by me or my firm been revoked, challenged, or reviewed for ethical or technical performance; and neither the firm nor I have ever been sued for technical work or opinion. No claim has ever been filed against the firm or its employees for errors, omissions, professional opinion, or technical performance in its 30+ year history.
10. I possess a strong, working knowledge of state-specific mold regulations in Texas (Chapter 78 of the Texas Administrative Code [the Texas Mold Assessment & Remediation Rules, or TMARR] and Chapter 1958 of the Texas Occupations Code). My built environment IH practice capability is applied as a resource to this industry. I commonly apply EPA Indoor Air Quality Building Education and Assessment Models, I am a longstanding member of the American Industrial Hygiene Association (AIHA) and apply associated guidance, as well as consider best practices from the Centers for Disease Control and Prevention (CDC). I apply industry standards, including those offered by the Institute of Inspection Cleaning and Restoration Certification (IICRC)² and others when buildings are impacted by wet/damp conditions and corrective measures are needed to control ensuing mold.
11. Mold is omnipresent in the environment, and no matter how efficient mechanical systems are (when in use) at filtering indoor air, or how effective cleaning and maintenance are, some mold will be found on surfaces and in indoor/outdoor air. Outdoor mold is naturally associated with soil and the decay of vegetation. Mold spores passively enter any enclosed space from the outside by ambient airflow (typically associated with dust) when

¹ Texas Department of State Health Services is the State regulatory agency that may serve in the capacity of asbestos and mold compliance inspection and enforcement.

² The IICRC creates consensus documents related to water and mold remediation. These documents apply/reference guidelines and procedures presented in various other documents prepared by the EPA, the National Institute of Environmental Health Sciences, the AIHA and others. The AIHA is the leading resource for IH professionals in industry. Per the AIHA's website www.aiha.org, "AIHA is the association for scientists and professionals committed to preserving and ensuring occupational and environmental health and safety (OEHS) in the workplace and community. Founded in 1939, we support our members with our expertise, networks, comprehensive education programs, and other products and services that help them maintain the highest professional and competency standards. More than half of AIHA's nearly 8,500 members are Certified Industrial Hygienists, and many hold other professional designations. AIHA serves as a resource for those employed across the public and private sectors and the communities in which they work". This affidavit contained relies heavily on these industry standard documents and standardized best practice.

doors/windows are opened and when people and pets track microbes into indoor space; and thereafter (if not routinely cleaned/removed) mold can accumulate with and within particulate (dust) upon interior furnishings and other surfaces. Mold will also readily grow in poor hygiene conditions, especially if food or beverage spills go unattended. Mold may become especially problematic under conditions of sustained moisture and in the presence of readily available (typically cellulose-based) food sources. When a mold reservoir initially establishes within an enclosed space under suitable conditions for its growth, it may produce bioaerosol particles similar to those found outdoors.

12. Mold genera such as *Aspergillus* and other first colonizer molds may be found on surfaces where mold has established suitable conditions for growth. Mold reservoirs may form when a typical moisture-loving (hydrophilic) mold becomes concentrated in the indoor environment due to sustained moisture. Mold reservoirs can form and become of concern when moisture intrusion occurs indoors, when such moisture is not attended to (dried out) in a timely manner, and where cellulose-based food sources (sheetrock, wood, insulation, etc.) are present. However, once the source of moisture dries up and/or the former area of moisture intrusion is cleaned, the mold will no longer be able to sustain itself and will become dormant.
13. AIHA, which provides best practices for the IH industry, has created current inspection and sampling protocols, which are included in AIHA's guidance styled: "*Recognition, Evaluation, and Control of Indoor Mold*" (aka, the "Green Book"), which (like other peer reviewed sources from AIHA, ASHRAE [American Society of Heating, Refrigerating and Air-Conditioning Engineers], IICRC, ACGIH, etc.) has been referenced and used routinely across IH practice. However, there exists no definitive source for mold assessment, sample collection, or data interpretation in the industry. The Environmental Protection Agency (EPA) has provided guidance in other literature by performing and publishing a mold in building study that identifies which molds are the most common in the indoor environment and the values of mold to be expected (commonly) outside. The EPA Building Assessment Survey and Evaluation (BASE) Study excluded indoor environments with known mold concerns & reported that the five most common fungal groups identified indoors were also commonly found outdoors. The EPA compared indoor percentiles of molds to outdoor percentiles of the same mold types (to show the distribution of the most commonly identified mold types in the U.S.). All molds studied were present in at least 25% of the indoor areas tested (including *Aspergillus*/*Penicillium* or Asp/Pen). *Aspergillus* was reported at an indoor frequency (5% to 25% of the time) with 7 to 63 colony-forming units in an air sample, compared to an outdoor frequency (25% to 50% of the time) with 7 to 1,130 units. The EPA BASE Study established that Asp/Pen (combined because these are indiscernible from each other) are very common indoors. *Aspergillus* & *Penicillium* are 2 of the 5 most common molds (both indoors and outside).
14. The National Allergy Bureau (NAB) is the nation's only pollen and mold counting network certified by the American Academy of Allergy, Asthma, & Immunology (AAAAI). The NAB is used to warn of varying levels of mold spores for those sensitive to mold and likely to experience exposure symptoms. In its reports, Asp/Pen in a "clean" residential building study reported a mean of 230 spores; in buildings known to have a moisture or flooding problem,

it was 2,235 spores; and in mold-contaminated buildings, the Asp/Pen spore count was 36,037.

15. In the IH industry, certain conditions must be met to report a mold condition with any validity. First, there must be a source of moisture³ – mold will not grow or continue to grow without a moisture source. Second, the mold must have a food source, such as cellulose, which is universally present within a residential built environment – such as wood, wallboard, insulation materials, and other construction-related materials and debris, including construction dust. Once a source of moisture has been identified and field confirmed, the source area (mold reservoir) delineated/mapped to identify affected building materials (especially if visible indoor mold is present), and if ambient air is tested under industry standard (professional) methods, the following ambient air conditions are typically considered conclusive in establishing the likelihood of a mold condition within an indoor environment:
 - a. Elevated mold spore counts (inside vs. outside) – outside air mold concentrations and the assemblage reported by the laboratory are compared to the indoor mold assemblage (mold counts per mold type) – material variability and spore count dominance in the samples are considered.
 - b. Material concentrations of atypical mold (genus/mold taxa), if found indoors (compared to the outside sample), are considered, especially if they dominate the air sample result.
 - c. Mold genera that are “wet indicators” per reliable industry resources are considered and reported.
 - d. Elevated concentrations of “hyphal fragments” (fruiting bodies and/or reproductive particulate of mold) are considered, given that relatively high concentrations of this material in the air sample suggest active microbial growth/sporulation.
 - e. Following practical use of industry-standard sampling techniques (air and surface) with reference to respected industry guidelines, as discussed above, visible mold and corresponding moisture are to be established and quantified during the visual assessment, or their presence ruled out definitively. If sampling is conducted and air samples are collected, the results are compared against the above factors (or similar) to create a

³ Out-of-range moisture (or normal moisture) levels are established during the field assessment. Areas of visible, indoor mold, areas of suspect water/moisture intrusion, and/or areas of complaint are typically field checked with a penetrating moisture meter; a Delmhorst digital, hand-held instrument or similar is often used. Meter readings are relative to and compared with typical industry standard levels/ranges common to building materials used in construction. Using the Delmhorst, once the meter pins are inserted into material being checked, a green, yellow, or red light is shown by the meter and a corresponding numerical value displayed. Depending upon the material being evaluated, the material is either “dry” (green) – in sheetrock, the meter would read 0 to 0.4; “borderline wet” (yellow) – in sheetrock, the meter would show a value range of 0.5 to 0.9; and “wet” (red) – in sheetrock, the meter would show a value of 1 or greater. Wood readings can be corrected for wood type, but typically report a percent moisture, with 6 to 15% being acceptable; greater than 15% typically warrants further investigation.

reasonable body of evidence to determine whether a mold condition exists, especially for regulatory purposes under the TMARR. The independent IH professional, who possesses the necessary training, experience, and expertise, must review and consider all relevant findings and, without personal interest or bias driven toward a pre-defined outcome, prepare a responsive TMARR-compliant mold remediation protocol for use by a qualified, state-licensed remediation contractor.

16. Indoor mold is defined in Texas Administrative Rules of the TDLR 16 TAC, Chapter 78 (effective 11/1/2017), Section 78.10, "Definitions" (19) as "*Mold contamination that was not purposely grown or brought into a building and that has the potential to affect the indoor air quality of the building*". Mold is regulated in Texas under the TMARR (TDLR 16 TAC, Chapter 78). Mold must meet all the following criteria to be regulated and actionable: 1st - the mold must be "indoor mold"; 2nd - the mold must be "visible"; 3rd - the mold must meet the definition of "total surface area of contiguous square feet"; 4th - the "total surface area" must be "25 contiguous square feet or more".
17. I have been retained as an expert by the Weinstein entities to evaluate Ms. Copeland's complaints regarding mold in apartment Unit 2145 at The Bowery at Southside. In conducting my evaluation, I have reviewed the BioTex Report dated June 18, 2025. BioTex was a mold assessment consultant company that was hired by Ms. Copeland. To my knowledge, this is the only documentation Ms. Copeland has provided that shows mold testing in her apartment and of her contents, in June of 2025.
18. The BioTex report failed to meet the minimum requirements of the TMARR and fell well below industry expectations for quality for the following reasons: sampling was not performed according to nationally accepted methods, there was no real-time data collection of collateral conditions affecting the investigation, no description was made of how samples were preserved, the samples were not properly documented, and the report fails to locate visible mold and/or particularly and/or properly the existence of mold subject to regulation.
19. There is no evidence that indoor, regulated (actionable) mold was ever found or reported in Unit 2145 by BioTex or any other party. A mold condition that is regulated by TDLR must be visible and must consist of an affected indoor area encompassing 25 contiguous square feet of surface area (or more). This was not found/identified within Unit 2145 at any time – as such, remediation by a TDLR-licensed remediator was never required. This was confirmed when BioTex stated that "*mold could not be visually seen*" in the guest bedroom. This is a critical statement because if BioTex did not "*see*" visual mold, it could not have been present in a regulated amount. Further, BioTex never observed or visually inspected the purported source of mold, which was sourced to the HVAC closet. This closet was said to have been locked; this omission disqualifies the report from use under the TMARR. Moreover, the July 13, 2025, Mold Protocol authored by Biotex references necessity of remediation in/around the HVAC closet – a closet BioTex never visually inspected, further discrediting the BioTex report/protocol. For this reason alone, the BioTex report/protocol should be disregarded.

20. There were multiple statements in the BioTex report that were unsubstantiated by fact, not shown by proper methodology and/or sampling, and/or that constitute speculation, including:

- a. *“The visual fungal investigation found visible mold in the front entryway, HVAC closet area, and guest bedroom. “Visible” mold (beyond localized areas of mold to baseboard/associated wallboard and carpet tack) was not referenced in the report nor observed in photographs (an area of black vertical discoloration was observed in a report photograph near a door hinge of the entryway, which was more likely than not the result of hinge dust accumulation under its repeated use, not mold.). There is no substantiation that any “visible” mold existed in the apartment.*
- b. *“[A] previous leak coming from the HVAC closet has resulted in extensive water damage and mold growth in the guest bedroom and areas surrounding the HVAC closet. Mold growth was observed on the baseboards, drywall and carpet tack strip at the time of the mold assessment.”* The BioTex report lacks any evidence or factual basis for a “previous leak.” Extensive damage was not documented in the BioTex photographs, and the mold growth described was not documented. It is notable that the BioTex report presents no moisture meter results or any other forensic data. Notably, the BioTex report suggests that areas of localized water damage and limited mold were not wet or conducive to ongoing or active damage that would have justified remediation.
- c. The BioTex report also stated, likely in error, that *“the scope and magnitude of the mold growth and affected areas exceeds 25 contiguous square feet therefore the mobile home company is required to have a Mold Protocol written by a Texas licensed Mold Assessment Consultant and to hire a Texas licensed Mold Remediation Company....”* BioTex likely referenced the “mobile home company” in error; this reference is believed to be an artifact from a prior client’s report. Regardless, the BioTex report contains no evidence that any regulated mold existed in the subject apartment unit; no mold protocol was required, nor was there a need to hire a consultant for further work.

21. In addition, the BioTex report includes the following statement, which is entirely out of context, without basis, and indicates that the report should be entirely disregarded: *BioTex Inspections is hereby notifying the client that 405 Crawford Street, Apt. 2145, Fort Worth, TX is unfit for human occupancy until mold remediation of the residence/facility/structure (including all items/contents within) is performed in accordance with the Texas Mold Assessment and Remediation Administrative Rules.* This company and its assessor are not qualified to opine whether a location is “fit” or “unfit” for “human occupancy”. Mr. Reist is not a medical professional and, by offering this opinion, is providing this opinion outside his professional expertise, in direct noncompliance with 25 TAC 78.72, the TMARR Code of Ethics. Section 78.72 (b) specifies that *“all credentialed persons shall, as applicable to their area of credentialing, undertake to perform only services for which they are qualified by credential, education, training, or experience in the specific technical fields involved”*. The Biotex report fails to provide any valid basis for recommendation of mold remediation by a TDLR-licensed mold remediator.

22. Sampling performed by BioTex was not performed according to nationally accepted methods. There was no description included to ensure that general industry methods were used and that equipment was properly maintained, pre-cleaned, and calibrated; and that sample collection times and volumes were properly documented per the TMARR/industry standard methodology. The report includes no reference to conditions that may have compromised/impacted sample results (weather conditions/rain, the exterior use of landscaping equipment such as blowers during sampling, etc.), which is an industry-standard requirement for compliant mold reports.
23. BioTex only took a single air sample collected from the outside (sample labeled A1), which deviates from best practice; two samples (one before and one after) would be collected as a standard to demonstrate statistical normality.
24. The air sample from within the guest bedroom (sample labeled A2) found the reported “*presence of*” the following molds at associated raw counts: “*Alternaria* (1), *Aspergillus/Penicillium* (119), *Chaetomium* (335), *Myxomycetes* (1) and *Stachybotrys/Memnoniella* (35).” Without a second outdoor air sample being available to allow for statistical comparison, and in the absence of regulated mold being visually observed and reported, the air sample provided only for the following to be considered relevant to the BioTex assessment concerning air quality and mold: *Aspergillus/Penicillium*, *Chaetomium* and *Stachybotrys/Memnoniella*, which were found in the Guest Bedroom air sample in excess of outdoor air. The presence of these molds in excess of the outdoor value does not require the localized mold to be regulated, regardless of the type (genus) of mold reported. Further, the presence of *Stachybotrys/Memnoniella* being reported in the air sample is rather unusual. It is more likely than not that the sampler (or someone else) directly disturbed the area of localized mold before air sample collection, and that this disturbance occurred in dry conditions within the damaged area. *Stachybotrys/Memnoniella* is a mucilaginous, highwater-capacity mold that is rarely found airborne unless its source area is disturbed. Therefore, the air sample collected from the Guest Bedroom, especially given that BioTex reported that mold “*could not be visually seen*”, should be disregarded.
25. Wall check sampling, used by BioTex, is an unreliable technique for determining the presence of mold. The “wall check” spore trap sampling train is routinely misused (abused), and this technique is applied in a random, non-forensic manner solely to find mold, even in the absence of visible mold or evidence of moisture intrusion. The wall check uses the same sampling train/equipment as the ambient air sample, but sample collection involves inserting an attached sampling tube into a hole made/found to access the wall cavity, allowing the extraction of building envelope (non-breathing) air across the sample media. Typically, the wall check sample is collected over a very short timeframe and involves a much smaller air volume than the ambient air sample. From a guidance perspective, the AIHA maintains that the use of cavity air samples should never be used to determine occupant exposure. AIHA describes wall check sampling as “*a controversial and unproven technique*” that has a “*strong possibility of false-positive or false-negative results.*” Under situations when wall checks may be used, AIHA states that wall check samples are typically collected for no more than two (2) minutes. This is because the risk of dust and debris overload into the wall check

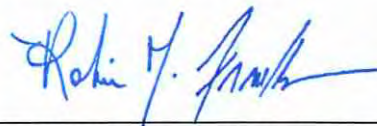
is very high, given that wall dust/debris and insulation are invariably present and drawn into the sample. High debris samples, typical of the wall check, prohibit the analyst's ability to see and count spores in the sample, rendering the sample void. Regardless of this, certain mold laboratories analyze the sample and "rate" the finding of debris (1 to 5) and "footnote" the qualified data. While the wall check can be of some (limited) value in identifying the genus of mold present in active, visible mold sources, it is useless for characterizing breathing/ambient air in an indoor environment. Wall-check air sample collection during a mold assessment universally biases the sample result to "high" when its data is erroneously compared to outside or even ambient indoor/breathing air. This is because wall check air detects both active and inactive/dormant mold, as well as dust (ambient or within walls), which is always associated with mold spores. **As such, wall checks are not a generally accepted sampling strategy for mold assessment and are a discouraged methodology in industry.**

26. BioTex tested the wall cavity of the Guest Bedroom (labeled as Sample A3). This sample was not collected from "indoor air". Wall cavities are neither visible nor exposed to view and therefore do not constitute a regulated condition under the TMARR. Given that this sample (A3) was collected from a wall cavity, it should be entirely disregarded, as it is not relevant to indoor air quality.
27. Surface sampling using Bio-tape lifts and prepared swab samplers is also commonly used and beneficial in the identification of mold, if knowledge of its genus is desired, or even (in the case of swabs) to the species level, especially in the presence of very young, very elderly, or immunocompromised individuals. Swabs can be taken from obviously active sources to confirm the presence of mold (often beneficial in healthcare), but the mold must be cultured (grown) on growth-supporting media. Tape samples are quick, easy to collect, and uncomplicated to analyze – and the data is typically not lab-qualified. Bio tape lifts are often used in concert with ambient air sampling to indicate and verify an active/nearby sporulating mold source, and/or used to document that clearance has been achieved following mold remediation. Both surface sampling techniques are uncomplicated, cost-effective, and can be efficiently analyzed by the contract laboratory to yield verifiable results, especially when surface sample data is evaluated against ambient air data.
28. Significantly, tape lift samples collected by BioTex found that the sample showed "*normal ecology*," and suggests that no personal contents cleaning or remediation to address mold contamination was needed for Ms. Copeland's personal items. Despite this finding, on July 31, 2025, and with no other support or substantiation, BioTex changed its response to conclude that it was necessary to "[r]emove all materials that may have been affected by mold and water damage", without identifying what "materials" had been so affected. BioTex then released a further revised protocol on August 4, 2025, which inexplicably states that: "*Note that no content cleaning or cleaning of the tenants' personal effects will be performed as part of the remediation process*".

29. BioTex failed to comply with the acceptable use of the swab; the swab is a useful tool for characterizing visible mold, especially when the area to be sampled is irregular, wet, or hard to reach. Using a swab to collect “settled dust”, as BioTex did, in the absence of visible, regulated mold and without any moisture assessment whatsoever is poor methodology. This unprofessional approach suggests an outcome-driven goal to advance unnecessary remediation. Because the swabs were used only to characterize “settled dust”, in the absence of visible mold, the swab sample’s associated results, and any conclusions drawn from same, should be disregarded.
30. There is no evidence that surface swab sampling results were used to identify and/or analyze the species of any particular type of genus of mold in this matter. With this data, it is impossible to ascertain whether *Aspergillus/Penicillium*, *Chaetomium*, and/or *Stachybotrys/Memnoniella* of the EMSL Analytical, Inc., report are species of concern or that they are capable of causing human illness.
31. BioTex did not document real-time data collection. BioTex’s report does not include typical industrial hygiene readings or data to support the mold investigation and an actual mold condition, such as relative humidity, temperature, moisture, CO₂ (Carbon Dioxide), or other parameters to correlate a finding of mold, which suggests that either the assessor was remiss or no out-of-range conditions were found.
32. No description is provided in the report as to the use/non-use of sample preservation, nor methods taken to ensure sample integrity in storage, transportation, and submission to the laboratory. No sample documentation is included beyond field-assigned numbers; excluded are the sample collection method, the sample identification code, each location and material sampled, the date collected, the name of the person who collected the samples, and the project name or number, which must be included for a TMARR-compliant mold report.
33. The report fails to provide any specific locations of mold – it includes photographs that lack captions (as to location or subject), fails to diagram sample locations, and fails to show the purported location of mold on floor plans/drawings.
34. **The BioTex report provides no basis for, and inadequate data to support, the performance of any mold-related remediation, especially gross removal of building finishes within the apartment unit.**
 - a. There was no forensic evidence of regulated mold found. No moisture was ever found or reported to indicate a condition supportive of active growth mold; no real-time readings (typical of a quality mold investigation) were collected or reported; and the assessor produced a report with corresponding (multiple) protocol revisions, with no objective basis for same.

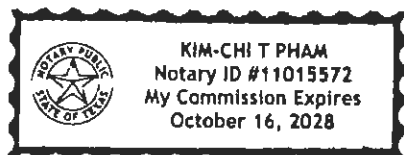
- b. Laboratory data did not support a mold condition. Extraordinary mold was not reported within air or surface samples collected and analyzed to justify any mold remediation. The limited/isolated mold in the HVAC closet (which could not have served as the basis for BioTex's report, because BioTex did not observe same) could and should have been rectified by a construction contractor engaged to remove (cut away) affected materials from the area of the latent leak and to allow the apartment to be released without further complications concerning purported mold.
 - c. Because mold-related documents provided by BioTex fell so far short of a reasonable standard of care in the industry of IH and mold assessment/corrective action consulting under the TMARR, and because related testing and reporting on behalf of Copeland failed to demonstrate that a mold condition existed within the apartment, claims of a mold condition related to the subject apartment have been successfully disproved and related reports should be invalidated for use.
35. Not all determinations that a building interior contains "mold" requires professional remediation by using a mold assessment remediator licensed by the TDLR. A licensed remediator is only required when the total surface area affected by visible, indoor mold exceeds 25 contiguous square feet. The BioTex Report failed to meet the technical and ethical requirements of a mold assessment report in Texas and fell far below the industry standard for same. Nevertheless, the BioTex Report (and subsequent mold assessment conducted in Apartment 2145) fail to show that licensed remediation was necessary in Apartment 2145, as to either the HVAC closet, baseboard, and/or the guest room wall adjacent to the HVAC closet. No unusual fungal ecology (whatsoever) was found by the front door, and with a reasonable degree of scientific certainty, the discoloration by the front door is dust from the hinge of the door. Further, according to the results of the BioTex report, there was also no evidence that Ms. Copeland's personal items needed to be cleaned or remediated in any manner.
36. In conclusion, there is no evidence that meets industry standards to show that any regulated mold condition existed within the apartment. Because there is no evidence of regulated mold, the apartment and/or the contents within the apartment did not require any kind of particular cleaning, to include: there is no evidence of the necessity of professional remediation of visible mold within the apartment unit, and no evidence that any personal property item required professional cleaning or destruction due to any mold condition. Therefore, Weinstein went well beyond what was required or necessary to respond to Ms. Copeland's complaints about her apartment, and in conducting professional remediation and repair of the apartment."

Further affiant sayeth not.



**ROBIN FRANKS MS, PG, CHMM, RSO,
LAIC, MAC**

SUBSCRIBED AND SWORN TO BEFORE ME, by the said affiant, on this the 6th day of May, 2026.




NOTARY PUBLIC, STATE OF TEXAS

My Commission Expires: 10/16/2028

EXHIBIT “D”

CASE #JP03-25-SC00028212

KATHRYN COPELAND

IN THE JUSTICE COURT

VS

PRECINCT THREE

WEINSTEIN PROPERTIES / WMCI
DALLAS X, LLC DBA THE BOWERY AT
SOUTHSIDE

TARRANT COUNTY, TEXAS

J U D G M E N T

ON THIS 14TH OF JANUARY, 2026 CAME ON TO BE HEARD THE ABOVE NUMBERED AND STYLED CAUSE, AND THEREUPON PLAINTIFF(S) APPEARED IN PERSON, AND THE DEFENDANT(S) DID NOT APPEAR. THE COURT, AFTER FULLY HEARING THE PLEADINGS, EVIDENCE, AND ARGUMENT OF THE DEFENDANT FINDS FOR THE DEFENDANT(S).

IT IS THEREFORE, ORDERED, ADJUDGED, AND DECREED BY THE COURT THAT THE PLAINTIFF(S), KATHRYN COPELAND, DOES HAVE AND RECOVER NOTHING FROM THE DEFENDANT(S).

IT IS FURTHER ORDERED THAT THE DEFENDANT(S) GO HENCE WITHOUT DELAY, AND THAT ALL COSTS OF COURT BE TAXED TO THE PARTY INCURRING SAME.

YOU MAY APPEAL THIS JUDGMENT BY FILING A BOND, MAKING A CASH DEPOSIT, OR FILING A STATEMENT OF INABILITY TO AFFORD PAYMENT OF COURT COSTS WITHIN 21 DAYS AFTER THIS JUDGMENT WAS SIGNED. SEE TEXAS RULE OF CIVIL PROCEDURE 506.

SIGNED THIS 14TH DAY OF JANUARY, 2026,



JUSTICE OF THE PEACE

PRECINCT THREE

TARRANT COUNTY, TEXAS *WCB*

EXHIBIT “E”

FILED
2/13/2026 3:38 PM
Justice of the Peace, Precinct 3
Tarrant County

CAUSE NO. JP03-25-SC00028212

KATHRYN COPELAND,

PLAINTIFF,

V.

WEINSTEIN PROPERTIES/WMCI X,
LLC DBA THE BOWERY AT
SOUTHSIDE,

DEFENDANT.

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IN THE JUSTICE COURT

PRECINCT NO. 3

TARRANT COUNTY, TEXAS

**ORDER GRANTING DEFENDANT'S MOTION TO STRIKE
PRO SE PLAINTIFF'S NOTICE OF APPEAL, PURSUANT TO APPLICABLE
VEXATIOUS LITIGANT ORDER**

ON THIS DAY CAME ON TO BE HEARD, Defendant's Motion to Strike Pro Se Plaintiff's Notice of Appeal, Pursuant to Applicable Vexatious Litigant Order. The Court, having considered Defendant's Motion to Strike Pro Se Plaintiff's Notice of Appeal, Pursuant to Applicable Vexatious Litigant Order is of the opinion that same should be **GRANTED**.

IT IS THEREFORE ORDERED, ADJUDGED, AND DECREED that Defendant's Motion to Strike Pro Se Plaintiff's Notice of Appeal, Pursuant to Applicable Vexatious Litigant Order is **GRANTED**.

IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that Plaintiff's Notice of Appeal is **STRICKEN**, and as such, has no legal force or effect.

SIGNED THIS 13th day of February, 2026.


PRESIDING JUDGE